CREDIT AGREEMENT

ARTICLE I. DEFINITIONS

Section 1.01. As used in this Agreement, the following terms have the meanings assigned to them below, presented in alphabetical order except where a defined term's own cross-referenced Schedule or Exhibit places related material elsewhere in this Agreement. Terms not otherwise defined have the meanings customarily given them in credit agreements of this type.

Section 1.02 (Internal Cross-References). Where the context permits, this Agreement, its Schedules, its Exhibits and the Compliance Certificate contemplated by Section 5.01(c) may cite a Section, Article or clause using an abbreviated form of its numeral only, omitting the word "Section" or "Article" and any internal spacing; any such abbreviated citation means the correspondingly numbered Section, Article, clause or Schedule of this Agreement, and is not a reference to a different or additional provision.

"Acceptable Intercreditor Agreement" means, if applicable, an intercreditor or subordination agreement among the Administrative Agent, the trustee under the Notes indenture and the Loan Parties, in form and substance reasonably satisfactory to the Administrative Agent, governing the relative priority of Liens on shared Collateral, if any.

"Accession Agreement" means an agreement, substantially in the form attached as an annex to the Guarantee and the Security Agreement, pursuant to which a Restricted Subsidiary becomes a Guarantor and grants a Lien on its assets in favor of the Administrative Agent, in each case as contemplated by Section 5.10.

"Additional Term Loan Commitment" means any commitment of an existing Lender or Eligible Assignee to make an additional term loan pursuant to an incremental facility established under Section 2.09, on terms no more favorable to the lenders providing it, taken as a whole, than the terms of the Term Loan Commitments, other than customary arranger or upfront fees.

"Adjusted Term SOFR" has the meaning assigned to it in Section 2.06, being Term SOFR for the applicable Interest Period plus the SOFR Adjustment, if any.

"Adjustment Date" means the first day of the calendar month following delivery of a Compliance Certificate, on which any change in the Applicable Margin determined thereby becomes effective.

"Administrative Agent" means the Person named as such in the introductory paragraph of this Agreement, in its capacity as administrative agent for the Lenders hereunder, or any successor administrative agent appointed pursuant to Article IX.

"Advance" has the same meaning as Loan.

"Affected Financial Institution" means (a) any EEA Financial Institution or (b) any UK Financial Institution.

"Affiliate" means, with respect to any Person, another Person that directly or indirectly Controls, is Controlled by, or is under common Control with, the Person specified, where "Control" means the power, directly or indirectly, to direct or cause the direction of the management and policies of a Person, whether through the ownership of voting securities, by contract or otherwise.

"Agent Parties" means the Administrative Agent, together with its Related Parties.

"Agreed Security Principles" means the principles set forth on Schedule 5.10 governing the scope of Collateral and Guarantees to be provided by Foreign Subsidiaries, reflecting customary limitations on collateral and guarantee

support under local law, cost-benefit and financial assistance considerations.

"Agreement" means this Credit Agreement, including all Schedules and Exhibits hereto, as the same may be amended, restated, supplemented or otherwise modified from time to time in accordance with its terms.

"Alternate Base Rate" has the same meaning as Base Rate.

"Anti-Corruption Laws" means the U.S. Foreign Corrupt Practices Act of 1977, as amended, and all other applicable laws concerning or relating to bribery or corruption.

"Anti-Money Laundering Laws" means the Bank Secrecy Act, the USA PATRIOT Act, and all other applicable laws and regulations relating to money laundering.

"Applicable Anti-Corruption Laws" has the same meaning as Anti-Corruption Laws.

"Applicable Margin" means, with respect to any Loan, the per annum percentage set forth in the pricing grid attached as Schedule 1.01(b), determined by reference to the Total Net Leverage Ratio most recently reported pursuant to a Compliance Certificate, and adjusted prospectively on the first Business Day following delivery of each such Compliance Certificate.

"Applicable Percentage" means, with respect to any Lender, the percentage of the aggregate Commitments (or, after the Commitments have terminated, the aggregate outstanding Loans and LC Exposure) represented by such Lender's Commitment (or outstanding Loans and LC Exposure), as reflected in the Register.

"Approved Fund" means any Person (other than a natural person) that is engaged in making, purchasing, holding or investing in bank loans and similar extensions of credit in the ordinary course of its business and that is administered or managed by a Lender, an Affiliate of a Lender, or an entity or an Affiliate of an entity that administers or manages a Lender.

"Asset Sale" has the same meaning as Disposition.

"Assignment and Assumption" means an assignment and assumption agreement entered into by a Lender and an Eligible Assignee (with the consent of any Person whose consent is required by Section 10.05), and accepted by the Administrative Agent, substantially in the form attached as Exhibit B.

"Attributable Indebtedness" means, with respect to any sale and leaseback transaction, the present value, discounted at the interest rate implicit in such transaction, of the lessee's obligation for rental payments during the remaining term of the lease.

"Authorized Officer" has the same meaning as Responsible Officer.

"Availability" means, at any date of determination, the lesser of (a) the aggregate Revolving Commitments and (b) the Borrowing Base, in each case minus the sum of outstanding Revolving Loans, Swingline Loans and LC Exposure.

"Availability Period" means, with respect to the Revolving Commitments, the period from and including the Closing Date to but excluding the earlier of (a) the Maturity Date and (b) the date the Revolving Commitments are terminated in accordance with this Agreement.

"Available Amount" means, at any date of determination, the cumulative amount available for Restricted Payments and Permitted Investments under the builder basket referenced in Sections 7.06 and 7.07, calculated as set forth on Schedule 7.06.

"Bail-In Action" means the exercise of any Write-Down and Conversion Powers by the applicable EEA Resolution Authority or UK resolution authority in respect of any liability of an EEA Financial Institution or UK Financial Institution.

"Bail-In Legislation" means, with respect to any EEA member country implementing Article 55 of Directive 2014/59/EU, the implementing law for such EEA member country, and with respect to the United Kingdom, the relevant UK Bail-In Legislation.

"Bail-In Legislation Schedule" means the document described as such and published by the Loan Market Association (or any successor person) from time to time.

"Banking Services" has the same meaning as Cash Management Agreement.

"Bankruptcy Code" means Title 11 of the United States Code, as amended, or any successor statute.

"Base Rate" means, for any day, a fluctuating rate per annum equal to the highest of (a) the Federal Funds Rate in effect on such day plus one-half of one percent, (b) the rate of interest publicly announced by the Administrative Agent as its prime commercial lending rate in effect on such day, and (c) Adjusted Term SOFR for a one-month Interest Period on such day plus one percent, in each case as conclusively determined by the Administrative Agent absent manifest error.

"Base Rate Borrowing" means a Borrowing comprised of Base Rate Loans.

"Base Rate Loan" means a Loan bearing interest at a rate determined by reference to the Base Rate.

"Benchmark" means, initially, Term SOFR; if a Benchmark Transition Event occurs with respect to Term SOFR or the then-current Benchmark, then "Benchmark" means the applicable Benchmark Replacement to the extent it has replaced such prior benchmark rate in accordance with Section 2.06(f).

"Benchmark Replacement" has the meaning given to that term in the benchmark-transition provisions of Section 2.06(f), which govern the identification of a replacement rate for Term SOFR upon the occurrence of a Benchmark Transition Event.

"Benchmark Replacement Adjustment" means, with respect to any replacement of a Benchmark with an Unadjusted Benchmark Replacement, the spread adjustment, or method for calculating such spread adjustment, that has been selected by the Administrative Agent giving due consideration to any recommendation by the Relevant Governmental Body.

"Benchmark Replacement Date" means the earlier of (a) the date on which the administrator of the then-current Benchmark permanently or indefinitely ceases to provide such Benchmark, and (b) the date on which such Benchmark is no longer representative, in each case as further specified in Section 2.06(f).

"Benchmark Transition Event" means the occurrence of one or more public statements or publications by the administrator of Term SOFR, a Governmental Authority having jurisdiction over the Administrative Agent, or an insolvency official with jurisdiction over such administrator, announcing that such administrator has ceased or will cease to provide Term SOFR permanently or indefinitely, in each case as further specified in Section 2.06(f).

"Benchmark Unavailability Period" means the period, if any, commencing upon the occurrence of a Benchmark Transition Event and ending on the date on which a Benchmark Replacement has replaced the then-current Benchmark pursuant to Section 2.06(f).

"Beneficial Ownership Certification" means a certification regarding beneficial ownership as required by the Beneficial Ownership Regulation.

"Beneficial Ownership Regulation" means 31 C.F.R. Section 1010.230, as amended.

"Blocked Person" means any Person that is the subject or target of Sanctions, or that is organized, incorporated, established, located or resident in, or a national of, a Designated Jurisdiction.

"Board" means the Board of Governors of the Federal Reserve System of the United States (or any successor Person).

"Board of Directors" means, with respect to any Person, the board of directors, board of managers or other governing body of such Person, or any committee thereof duly authorized to act on its behalf.

"Borrower Materials" means all information, reports, financial statements and other materials provided by the Borrower to the Administrative Agent for distribution to the Lenders, including via the Platform.

"Borrowing" means a group of Loans of a single Type made, converted or continued on the same date and, in the case of Term SOFR Loans, as to which a single Interest Period is in effect.

"Borrowing Base" means, at any date of determination, the amount calculated in accordance with the eligible-collateral formula set forth on Schedule 1.01(d), as most recently certified to the Administrative Agent in a Borrowing Base Certificate.

"Borrowing Base Certificate" means a certificate substantially in the form of Exhibit I, delivered by a Responsible Officer of the Borrower setting forth the calculation of the Borrowing Base as of the date of such certificate.

"Borrowing Request" means a request by the Borrower for a Borrowing, submitted in accordance with Section 2.03, substantially in the form of Exhibit E.

"Breakage Costs" means the amounts payable by the Borrower under Section 3.02 in connection with a prepayment of a Term SOFR Borrowing other than on the last day of the applicable Interest Period.

"Business Combination Agreement" has the same meaning as Purchase Agreement.

"Business Day" means any day other than a Saturday, Sunday or other day on which commercial banks in New York, New York are authorized or required by law to remain closed, provided that, when used in connection with a Term SOFR Loan, the term also excludes any day on which banks are not open for general business in London, England.

"Capital Lease Obligations" means, for any Person, the obligations of such Person to pay rent or other amounts under a lease that is required to be classified and accounted for as a finance or capital lease on the balance sheet of such Person under GAAP, and the amount of such obligations is the capitalized amount thereof determined in accordance with GAAP.

"Capitalized Lease" has the same meaning as Capital Lease Obligations, used as a noun to refer to the underlying lease instrument itself.

"Cash Dominion Period" means, if applicable pursuant to the Security Agreement, any period during which Availability is less than the threshold set forth on Schedule 5.14, during which all collections in Concentration Accounts are swept daily to reduce outstanding Revolving Loans.

"Cash Equivalents" means (a) direct obligations of the United States or any agency thereof maturing within one

year, (b) certificates of deposit, time deposits and eurodollar time deposits with any Lender or any commercial bank of recognized standing maturing within one year, (c) commercial paper rated at least A-2 or the equivalent thereof by a nationally recognized statistical rating organization, and (d) money market funds substantially all of whose assets consist of the foregoing.

"Cash Interest Expense" means, for any period, Consolidated Interest Expense for such period, excluding the amortization or write-off of deferred financing costs and any other interest expense not payable in cash.

"Cash Management Agreement" means any agreement providing for treasury, depository, overdraft, automated clearing house, cash pooling or similar cash management arrangements entered into by the Borrower or a Restricted Subsidiary with a Cash Management Bank.

"Cash Management Bank" means any Person that, at the time it entered into a Cash Management Agreement, was the Administrative Agent, a Lender, or an Affiliate of either.

"Change in Law" means the adoption of, or any change in, any law, treaty, rule or regulation after the Closing Date, or any change in the interpretation or administration thereof by a Governmental Authority, or compliance by a Lender with any request, guideline or directive (whether or not having the force of law) of a Governmental Authority made or issued after the Closing Date.

"Change of Control (Notes)" has the meaning assigned to "Change of Control" in the Notes indenture, incorporated herein by cross-reference for purposes of Section 8.01(d).

"Class" means, when used with respect to any Lender, whether such Lender's Commitment or Loan is a Revolving Commitment, a Revolving Loan, a Term Loan Commitment, a Term Loan, or an Additional Term Loan Commitment, and, when used with respect to any Commitment or Loan, refers to whether such Commitment or Loan is one of the foregoing.

"Closing Date" means the date on which the conditions precedent set forth in Section 6 are satisfied or waived and the initial Credit Extensions are made hereunder, concurrently with the closing of the Transaction.

"Code" means the Internal Revenue Code of 1986, as amended.

"Collateral" means all property and assets of the Loan Parties in which a Lien is granted or purported to be granted pursuant to any Collateral Document.

"Collateral Access Agreement" means an agreement, in form and substance reasonably satisfactory to the Administrative Agent, among a landlord, warehouseman or other third party in possession of Collateral, the Borrower or the applicable Restricted Subsidiary, and the Administrative Agent.

"Collateral Documents" means, collectively, the Security Agreement, the Pledge Agreement, each Mortgage (if any), and each other instrument executed in favor of the Administrative Agent to secure the Obligations.

"Commitment" means, as to any Lender, its Revolving Commitment, its Term Loan Commitment, or both, as the context requires.

"Commitment Fee" means the fee payable pursuant to Section 2.07(a) on the unused portion of the Revolving Commitments.

"Commitment Percentage" has the same meaning as Applicable Percentage.

"Commonly Controlled Entity" means an entity, whether or not incorporated, that is under common control with the

Borrower within the meaning of Section 4001 of ERISA, or is a member of the same controlled group as the Borrower for purposes of Section 302 of ERISA.

"Compliance Certificate" means a certificate substantially in the form of Exhibit C, delivered pursuant to Section 5.01(c), setting forth the calculation of each financial covenant in Article VI.

"Concentration Account" means a deposit account into which collections from other deposit accounts of the Borrower and its Restricted Subsidiaries are consolidated, maintained pursuant to a Cash Management Agreement.

"Conforming Changes" means, with respect to Term SOFR or a Benchmark Replacement, any technical, administrative or operational changes that the Administrative Agent determines are appropriate to reflect the adoption of such rate in a manner substantially consistent with market practice.

"Connection Income Taxes" means Other Connection Taxes that are imposed on or measured by net income or that are franchise Taxes or branch profits Taxes.

"Consolidated Total Assets" means, at any date, the total assets of the Borrower and its Restricted Subsidiaries on a consolidated basis, determined in accordance with GAAP as of the most recent fiscal quarter for which financial statements have been delivered under Section 5.01.

"Consolidated Total Debt" means, at any date, the sum, without duplication and determined on a consolidated basis for the Borrower and its Restricted Subsidiaries, of (a) Indebtedness for borrowed money, (b) obligations evidenced by notes, bonds, debentures or similar instruments, (c) Capital Lease Obligations, (d) reimbursement obligations in respect of drawn and unreimbursed Letters of Credit, and (e) Guarantees of Indebtedness of the type described in clauses (a) through (d) of any other Person, in each case whether or not such Indebtedness is contingent.

"Fixed Charge Coverage Ratio" means, for any period, the ratio of (a) Consolidated EBITDA minus Unfunded Capital Expenditures to (b) the sum, without duplication, of Consolidated Interest Expense, Scheduled Principal Payments, Cash Taxes Paid, Restricted Payments (Cash Dividends Paid), in each case for the Borrower and its Restricted Subsidiaries on a consolidated basis for such period, as further specified in Section 6.02 (such ratio, the "FCCR").

"Consolidated EBITDA" means, for any period, Consolidated Net Income for such period, increased (without duplication) by, in each case to the extent deducted in determining Consolidated Net Income for such period:

(a) Provision for income taxes;

(b) Consolidated Interest Expense;

(c) depreciation and amortization expense;

(d) non-cash stock-based compensation expense (for the applicable period, 2,100,000.00);

(e) restructuring charges, severance costs and related expenses (for the applicable period, 1,400,000.00);

(f) fees, costs and expenses incurred in connection with this Transaction and any permitted acquisition, including integration costs (for the applicable period, 3,200,000.00);

(i) the aggregate amount of cost savings, operating expense reductions and synergies, plus the aggregate amount of revenue enhancements, in each case projected by the Borrower in good faith to be realized as a result of specified actions (including this Transaction) and classified as cost savings, operating expense reductions or other synergies, on the one hand, or revenue enhancements, on the other hand, in accordance with Schedule 1.01(c) to this

Agreement; PROVIDED that the amount added pursuant to this clause (i) in respect of revenue enhancements (as so classified) ONLY shall not exceed 10.00% of Consolidated EBITDA (calculated after giving effect to all other addbacks under this definition, including cost savings, operating expense reductions and other synergies (as so classified), none of which are subject to this or any other cap under this clause (i)); and further PROVIDED that other addbacks under this definition (including without limitation stock compensation expense, restructuring and severance costs, and transaction and integration costs, aggregating 7,800,000.00 for the applicable period) are not subject to the foregoing revenue-enhancement cap;

(g) [reserved]

(h) extraordinary, unusual or non-recurring losses or charges, in each case as determined in good faith by a Responsible Officer of the Borrower;

(j) any net loss from discontinued operations and any loss on the early extinguishment of Indebtedness;

(k) non-cash impairment charges resulting from the application of GAAP impairment-of-assets standards, and non-cash losses on the sale or disposition of assets outside the ordinary course of business;

(m) fees, costs and expenses incurred in connection with any Permitted Acquisition or Permitted Investment, whether or not consummated;

(n) earn-out and contingent consideration accruals or adjustments in respect of the Transaction or any Permitted Acquisition;

(p) amounts substantiated solely by reference to the Confidential Information Memorandum or the Sponsor Model prepared in connection with the Transaction, which the Borrower represents accurately reflects addbacks not otherwise enumerated in this definition;

(q) customary management, monitoring, consulting and advisory fees paid to the Sponsor pursuant to a management services agreement disclosed to the Administrative Agent;

(r) [reserved]

(s) non-cash purchase accounting adjustments, including the effect of any purchase price allocation to inventory or deferred revenue;

(t) such other adjustments as are set forth in the QofE Report, subject to Regulation S-X quality-of-earnings presentation, in an amount not to exceed 1,100,000.00 for the applicable period;

For the avoidance of doubt, "Consolidated EBITDA" as defined in this Section 1 is the sole EBITDA measure by reference to which the financial covenants in Section 6 are tested; no other document's EBITDA presentation (however titled) substitutes for this definition for covenant purposes.

"Consolidated Net Debt" means Consolidated Total Debt minus Unrestricted Cash, where Consolidated Total Debt INCLUDES the principal amount of the Industrial Revenue Bonds assumed by the Borrower in connection with the Transaction (whether or not such Industrial Revenue Bonds are non-recourse or conduit-issued). This definition governs the covenant Consolidated Net Debt figure only, and does not govern the Net Debt figure used in the Stock Purchase Agreement's own purchase-price adjustment, which is a separate, independently defined term in that agreement.

"Contractual Obligation" means, as to any Person, any provision of any security issued by such Person or of any

agreement, instrument or undertaking to which such Person is a party or by which it or any of its property is bound.
"Contribution Agreement" means, if applicable, any agreement pursuant to which one Loan Party makes a contribution to the capital of another Loan Party in connection with the allocation of liability under the Guarantee.
"Control" has the meaning given to it within the definition of Affiliate.
"Controlled Group" has the same meaning as Commonly Controlled Entity.
"Covered Entity" means any entity that is a "covered entity" as defined in, and subject to the requirements of, the QFC Stay Rules.
"Credit Extension" means each of (a) a Borrowing and (b) an issuance, extension, renewal or increase of a Letter of Credit.
"Cure Period" means, with respect to any Default arising from a failure to perform an obligation (other than a payment obligation), the period during which such Default remains curable under the express terms of the provision giving rise to such Default.
"Customary Permitted Liens" has the same meaning as Permitted Liens.
"Daily Simple SOFR" means, for any day, SOFR published for such day by the Federal Reserve Bank of New York, as administrator of SOFR, on the website of the Federal Reserve Bank of New York.
"Debt Service" means, for any period, the sum of Cash Interest Expense and scheduled principal payments of Indebtedness for such period.
"Debtor Relief Laws" means the Bankruptcy Code and all other applicable liquidation, conservatorship, bankruptcy, moratorium, receivership, insolvency, reorganization or similar debtor relief laws of the United States or other applicable jurisdictions.
"Default" means any event or condition that, with the giving of notice, the lapse of time, or both, would constitute an Event of Default.
"Default Rate" means, with respect to any overdue amount, a rate per annum equal to two percent above the rate otherwise applicable thereto, in accordance with Section 2.06(e).
"Default Right" has the meaning assigned to that term in, and shall be interpreted in accordance with, 12 C.F.R. Sections 252.81, 47.2 or 382.1, as applicable.
"Defaulting Lender" means any Lender that has failed to fund its portion of any Borrowing required to be funded by it hereunder within two Business Days of the date required, unless such Lender notifies the Administrative Agent that such failure is the result of such Lender's good faith determination that a condition precedent to funding has not been satisfied.
"Delayed Draw Commitment" means, if established pursuant to a Refinancing Amendment, a commitment to fund a Term Loan on one or more dates after the Closing Date, subject to the conditions specified in such Refinancing Amendment.
"Designated Jurisdiction" means any country or territory that is, or whose government is, the subject or target of comprehensive Sanctions.
"Designated Non-Cash Consideration" means the fair market value of non-cash consideration received by the Borrower or a Restricted Subsidiary in connection with a Disposition permitted under Section 7.05, as designated in

a certificate of a Responsible Officer, less the amount of cash or Cash Equivalents received in respect of such non-cash consideration prior to such designation.

"Discharge of Obligations" means the payment in full in cash of all Obligations (other than contingent indemnification obligations for which no claim has been asserted), the termination of all Commitments, and the cancellation or cash-collateralization of all outstanding Letters of Credit.

"Disclosed Matters" means the matters disclosed on the Schedules to Article IV.

"Disposition" means any sale, transfer, lease, license or other disposition (including any sale and leaseback transaction) of any property or asset, or series of related dispositions, by the Borrower or any Restricted Subsidiary, other than sales of inventory in the ordinary course of business.

"Disqualified Institution" means, as of the Closing Date, each Person identified in writing to the Administrative Agent as a competitor of the Borrower, together with such Person's Affiliates that are reasonably identifiable as such solely on the basis of their names, in each case as such list may be supplemented after the Closing Date by written notice to the Administrative Agent.

"Dollar Equivalent" means, with respect to any amount denominated in a currency other than Dollars, the equivalent amount in Dollars as determined by the Administrative Agent using its then-current spot rate of exchange.

"Dollars" and the sign "$" mean lawful money of the United States of America.

"Domestic Subsidiary" means any Restricted Subsidiary that is organized under the laws of the United States, any State thereof, or the District of Columbia.

"EEA Financial Institution" means (a) any credit institution or investment firm established in an EEA member country, (b) any entity established in an EEA member country that is a parent of an institution described in clause (a), or (c) any financial institution established in an EEA member country that is a subsidiary of an institution described in clause (a) or (b) and is subject to consolidated supervision with its parent.

"EEA Resolution Authority" means any public administrative authority, or Person entrusted with public administrative authority, of an EEA member country with responsibility for the resolution of any EEA Financial Institution.

"ERISA" means the Employee Retirement Income Security Act of 1974, as amended.

"ERISA Affiliate" means any trade or business (whether or not incorporated) that, together with the Borrower, is treated as a single employer under Section 414(b), (c), (m) or (o) of the Code.

"ERISA Event" means (a) a Reportable Event, (b) the withdrawal of the Borrower or any ERISA Affiliate from a Plan subject to Section 4063 of ERISA, (c) the filing of a notice of intent to terminate a Plan under Section 4041(c) of ERISA, (d) the institution of proceedings by the PBGC to terminate a Plan, or (e) the imposition of liability on the Borrower or any ERISA Affiliate under Section 4062, 4063, 4064 or 4069 of ERISA.

"Electronic Signature" means an electronic sound, symbol or process attached to, or associated with, a contract or other record and adopted by a Person with the intent to sign, authenticate or accept such contract or record.

"Eligible Accounts" means, for purposes of the Borrowing Base, accounts receivable of the Borrower and its Restricted Subsidiaries meeting the eligibility criteria set forth on Schedule 1.01(d).

"Eligible Assignee" means (a) a Lender, (b) an Affiliate of a Lender, (c) an Approved Fund, and (d) any other

Person (other than a natural person or a Disqualified Institution) approved by the Administrative Agent and, unless an Event of Default under Section 8.01(a) or (f) has occurred and is continuing, the Borrower, such approval not to be unreasonably withheld or delayed.

"Eligible Inventory" means, for purposes of the Borrowing Base, inventory of the Borrower and its Restricted Subsidiaries meeting the eligibility criteria set forth on Schedule 1.01(d).

"Environmental Laws" means all applicable federal, state, local and foreign laws relating to pollution, the protection of the environment, or the release of, or exposure to, Hazardous Materials.

"Environmental Liability" means any liability, obligation or claim, contingent or otherwise, arising under any Environmental Law, including any liability for cleanup, remediation or personal injury or property damage resulting from a Release of Hazardous Materials.

"Environmental Permit" means any permit, license, approval or authorization required under any Environmental Law.

"Equity Cure Right" means the right of the Borrower's direct or indirect equityholders to make a cash contribution to the Borrower's common equity for the purpose of increasing Consolidated EBITDA for purposes of curing a breach of the financial covenants in Article VI, subject to the limits and conditions set forth on Schedule 6.03.

"Equity Interests" means shares of capital stock, partnership interests, membership interests in a limited liability company, beneficial interests in a trust, or any other equivalent ownership interest in a Person, and any warrants, options or other rights to acquire any of the foregoing.

"Equity Issuance" means any issuance or sale by the Borrower of its Equity Interests, other than an issuance to the Borrower or a Restricted Subsidiary or an issuance in connection with a Permitted Acquisition.

"Erroneous Payment" means any payment, or portion thereof, received by a Lender or the Issuing Bank from the Administrative Agent that the Administrative Agent, in its sole discretion, determines was made in error, whether or not known to the recipient at the time of receipt.

"Event of Default" has the meaning assigned to it in Section 8.01.

"Excess Cash Flow" means, for any fiscal year, Consolidated EBITDA for such fiscal year, minus the sum of cash interest expense, cash income taxes paid, scheduled principal payments of Indebtedness (excluding voluntary prepayments), capital expenditures not financed with the proceeds of Indebtedness, and increases in net working capital, each as further specified in the applicable Compliance Certificate.

"Excluded Assets" has the same meaning as Excluded Property.

"Excluded Contribution" means the cash proceeds of capital contributions to the common equity of the Borrower, or the cash proceeds of the sale of Equity Interests of the Borrower, in each case designated as an Excluded Contribution in a certificate of a Responsible Officer at the time received and not otherwise applied to any other basket or exception under this Agreement.

"Excluded Property" means (a) any fee-owned real property with a fair market value below the threshold set forth on Schedule 5.10, (b) any leasehold interest in real property, (c) motor vehicles and other assets subject to certificates of title as to which the Administrative Agent determines the cost of perfection is excessive relative to the value of the collateral, and (d) any asset to the extent a security interest therein is prohibited by, or requires a consent

not obtained under, an enforceable anti-assignment provision.

"Excluded Subsidiary" means any Restricted Subsidiary that is prohibited by applicable law, or by a contractual restriction existing on the Closing Date and identified on Schedule 5.10, from becoming a Guarantor.

"Excluded Swap Obligation" means, with respect to any Guarantor, any Swap Obligation if, and to the extent that, all or a portion of the Guarantee of such Guarantor of such Swap Obligation is or becomes illegal under the Commodity Exchange Act by virtue of such Guarantor's failure to constitute an "eligible contract participant" at the time such Guarantee becomes effective.

"Excluded Taxes" means, with respect to any Lender or the Administrative Agent, Taxes imposed on or measured by its net income, franchise Taxes imposed in lieu of net income Taxes, and withholding Taxes imposed as a result of a present or former connection between such recipient and the taxing jurisdiction, other than a connection arising solely from having executed this Agreement.

"Executive Order" means Executive Order No. 13224 of September 23, 2001, as amended.

"Existing Credit Facility" means, if applicable, any credit facility of the Borrower or its Restricted Subsidiaries in effect immediately prior to the Closing Date and refinanced with the proceeds of the initial Credit Extensions.

"Existing Indebtedness" means Indebtedness of the Borrower and its Restricted Subsidiaries outstanding immediately prior to the Closing Date and identified on Schedule 7.02, in each case to be repaid, defeased, discharged or otherwise extinguished substantially concurrently with the Closing Date, other than Indebtedness so identified as being permitted to remain outstanding.

"Extension Request" means a request by the Borrower, delivered to all Lenders of an applicable Class, to extend the Maturity Date applicable to such Class, subject to the consent of each Lender agreeing to such extension.

"Extraordinary Receipt" means any cash received by the Borrower or a Restricted Subsidiary that is not, in accordance with GAAP, includable in Consolidated Net Income, including proceeds of insurance (other than casualty and business interruption proceeds applied in accordance with Section 3.01(c)), judgment proceeds, and proceeds of indemnification.

"FATCA" means Sections 1471 through 1474 of the Code, as of the Closing Date (or any amended or successor version that is substantively comparable), and any current or future regulations or official interpretations thereof.

"FCPA" has the same meaning as the U.S. Foreign Corrupt Practices Act reference within the definition of Anti-Corruption Laws.

"Fair Market Value" means, with respect to any asset, the price that would be paid in an arm's-length transaction between an informed and willing buyer and an informed and willing seller, neither of which is under any compulsion to buy or sell, as determined in good faith by a Responsible Officer or, for transactions above the amount set forth on Schedule 7.05, the Borrower's board of directors.

"Federal Funds Rate" means, for any day, the rate per annum equal to the weighted average of the rates on overnight federal funds transactions with members of the Federal Reserve System arranged by federal funds brokers on such day, as published by the Federal Reserve Bank of New York, or, if such rate is not so published for any day, the average of the quotations for such day received by the Administrative Agent from three federal funds brokers of recognized standing selected by it.

"Federal Reserve Board" means the Board of Governors of the Federal Reserve System of the United States, or any successor thereto.

"Fee Letter" means the letter agreement, dated as of the date of this Agreement, among the Borrower and the Administrative Agent, setting forth certain fees payable in connection with this Agreement.

"Fiscal Quarter" means a fiscal quarter of the Borrower.

"Fiscal Year" means the fiscal year of the Borrower, ending on December 31 of each calendar year.

"Fixed GAAP Date" means the date of this Agreement; for purposes of determining compliance with any covenant contained in this Agreement, any election under FASB Accounting Standards Codification 825-10 (or any successor provision) to value any Indebtedness using fair value accounting shall be disregarded, and such determination shall be made as if such election had not been made, so that GAAP means GAAP as in effect on the Fixed GAAP Date.

"Flood Laws" means the National Flood Insurance Reform Act of 1994 and other applicable flood insurance laws and regulations.

"Foreign Lender" means any Lender that is not a "United States person" within the meaning of Section 7701(a)(30) of the Code.

"Foreign Plan" means any employee benefit plan maintained or contributed to by the Borrower or a Restricted Subsidiary that is subject to the laws of a jurisdiction other than the United States.

"Foreign Subsidiary" means any Restricted Subsidiary that is not a Domestic Subsidiary.

"Full Cash Dominion" has the same meaning as Cash Dominion Period.

"Funded Indebtedness" has the same meaning as Consolidated Total Debt.

"GAAP" means generally accepted accounting principles in the United States, consistently applied, subject to Section 1.03 (Accounting Terms).

"General Basket Amount" means, with respect to any Section of this Agreement that refers to an amount "set forth on Schedule" without further qualification, the dollar amount stated for that Section on the referenced Schedule.

"Global Intercompany Note" has the same meaning as Intercompany Note.

"Governmental Authority" means the government of the United States, any other nation, or any political subdivision thereof, whether state, local or foreign, and any agency, authority, instrumentality, regulatory body, court, central bank or other entity exercising executive, legislative, judicial, taxing, regulatory or administrative functions of or pertaining to government.

"Governmental Sanctions Authority" has the same meaning as the Sanctions definition's reference to OFAC, the U.S. Department of State, the United Nations Security Council, the European Union, and His Majesty's Treasury.

"Guarantee" means, as to any Person, any obligation of such Person guaranteeing or having the economic effect of guaranteeing any Indebtedness of any other Person, whether directly or indirectly, including by way of a letter of credit, keepwell, take-or-pay arrangement, or agreement to purchase or assume the obligations of the primary obligor.

"Guarantee Agreement" has the same meaning as Guarantee.

"Guaranteed Obligations" has the meaning assigned to the corresponding term in the Guarantee.

"Guarantor" means each Restricted Subsidiary that is a party to the Guarantee as a guarantor, together with any

Person that becomes a Guarantor after the Closing Date pursuant to Section 5.10.

"Hazardous Materials" means all pollutants, contaminants, wastes, and hazardous or toxic substances regulated under any Environmental Law, including petroleum and petroleum products.

"Historical Financial Statements" means the audited financial statements of the Borrower for the three most recently completed fiscal years preceding the Closing Date, delivered to the Administrative Agent prior to the Closing Date.

"Immaterial Subsidiary" means any Restricted Subsidiary designated as such by the Borrower that, together with all other Restricted Subsidiaries so designated, does not hold assets or generate revenue material to the Borrower and its Restricted Subsidiaries taken as a whole, as certified in the most recent Compliance Certificate.

"Impacted Loans" means Term SOFR Loans for which Term SOFR is unavailable, giving rise to the provisions of Section 2.11.

"Increase Effective Date" means the date on which an increase in the Revolving Commitments or an Additional Term Loan Commitment established under Section 2.05 becomes effective.

"Increased Facility Closing Date" has the same meaning as Increase Effective Date.

"Indebtedness" means, for any Person, without duplication, (a) obligations for borrowed money, (b) obligations evidenced by bonds, debentures, notes or similar instruments, (c) reimbursement obligations for drawn and unreimbursed letters of credit, (d) Capital Lease Obligations, (e) the deferred purchase price of property or services (other than trade payables incurred in the ordinary course of business and not overdue by more than 90 days), (f) obligations under conditional sale or title retention agreements, (g) obligations under Swap Contracts to the extent of the termination value thereof, and (h) Guarantees of any of the foregoing, but excluding trade payables, accrued expenses, deferred revenue and earn-out or contingent consideration obligations to the extent not required to be reflected as a liability on a balance sheet prepared in accordance with GAAP.

"Indebtedness for Borrowed Money" means Indebtedness of the type described in clause (a) of the definition of Indebtedness.

"Indemnified Party" has the same meaning as Indemnitee.

"Indemnified Taxes" means Taxes other than Excluded Taxes imposed on or with respect to any payment made by or on account of any obligation of a Loan Party under any Loan Document.

"Indemnitee" means the Administrative Agent, the Issuing Bank, each Lender, and each of their respective Related Parties, entitled to indemnification under Section 10.04.

"Independent Auditor" means the independent registered public accounting firm engaged by the Borrower to audit its annual financial statements.

"Information" means, for purposes of Section 10.12, all information received from the Borrower or any Restricted Subsidiary relating to the Borrower, its Restricted Subsidiaries or their businesses, other than any such information that is available to the Administrative Agent or a Lender on a non-confidential basis prior to disclosure.

"Initial Lenders" means the Lenders party to this Agreement on the Closing Date.

"Insolvency Proceeding" means any case or proceeding under the Bankruptcy Code or any other applicable federal, state or foreign bankruptcy, insolvency, receivership or similar law, or any general assignment for the benefit of creditors, or the appointment of a receiver, trustee, custodian or similar official for a Person or a substantial part of

its property.

"Insurance Requirements" means, collectively, the terms of any insurance policy required to be maintained under Section 5.05, and all requirements of the issuer of any such policy.

"Intellectual Property" means all patents, trademarks, trade names, service marks, copyrights, trade secrets, and other intellectual property rights, and all registrations and applications for any of the foregoing.

"Intercompany Note" means a promissory note evidencing intercompany Indebtedness permitted under Section 7.03(d), in form and substance reasonably satisfactory to the Administrative Agent and, if requested, pledged under the Pledge Agreement.

"Intercreditor Agreement" has the same meaning as Acceptable Intercreditor Agreement.

"Interest Payment Date" means, with respect to any Loan, the last day of each Interest Period applicable thereto and, in the case of an Interest Period longer than three months, each day that occurs every three months after the first day of such Interest Period.

"Interest Period" means, with respect to any Term SOFR Loan, the period commencing on the date such Loan is made or continued and ending on the numerically corresponding day one, three or six months thereafter, as selected by the Borrower, subject to customary end-of-month and Business Day conventions.

"Interpolated Rate" means, in relation to Term SOFR for any Interest Period for which no published tenor is available, the rate determined by linear interpolation between the two published tenors of Term SOFR that most closely correspond to such Interest Period.

"Investment" means, with respect to any Person, any direct or indirect advance, loan or other extension of credit, any purchase or other acquisition of Equity Interests, bonds, notes, debentures or other securities of any other Person, any Guarantee of Indebtedness of any other Person, and any acquisition of all or substantially all of the assets or business of another Person, in each case whether existing on the Closing Date or made thereafter.

"Investment Company Act" means the Investment Company Act of 1940, as amended.

"Issuing Bank" means the Administrative Agent, or any Lender designated by the Administrative Agent with the Borrower's consent, in its capacity as issuer of Letters of Credit hereunder.

"Joint Venture" means any Person in which the Borrower or a Restricted Subsidiary owns Equity Interests, but which is not itself a Subsidiary of the Borrower.

"Judgment Currency" has the meaning assigned to it in Section 10.14.

"Know Your Customer Requirements" has the same meaning as the requirements referenced in Section 5.15.

"Landlord Consent" has the same meaning as Collateral Access Agreement.

"Latest Financial Statements" means the most recent financial statements delivered pursuant to Section 5.01(a) or 5.01(b), as applicable.

"Lender" means each financial institution party to this Agreement as a lender, and any other Person that becomes a party hereto pursuant to an Assignment and Assumption, other than any Person that ceases to be a party hereto pursuant to an Assignment and Assumption.

"Lien" means, with respect to any asset, any mortgage, deed of trust, lien, pledge, hypothecation, encumbrance, charge or security interest in or on such asset, or the interest of a vendor or lessor under any conditional sale, capital

lease or other title retention agreement relating to such asset.

"Lien Search" means a search of Uniform Commercial Code, tax lien and judgment records conducted in connection with the closing of the Transaction, the results of which are reflected in the Perfection Certificate.

"Loan" means a Revolving Loan, a Term Loan or a Swingline Loan, as the context requires.

"Loan Documents" means, collectively, this Agreement, each Note (if any), the Collateral Documents, the Guarantee, the Fee Letter, and each other agreement, certificate or instrument delivered in connection herewith.

"Loan Party" means the Borrower and each Guarantor.

"Loan Party Assets" has the same meaning as Collateral.

"Management Agreement" means the management services agreement between the Borrower and the Sponsor referenced in clause (q) of the Consolidated EBITDA definition, disclosed to the Administrative Agent prior to the Closing Date.

"Margin Regulations" means Regulations T, U and X of the Board.

"Margin Stock" has the meaning assigned to such term in Regulation U of the Board.

"Material Adverse Effect" means a material adverse effect on (a) the business, assets, liabilities (actual or contingent), operations or financial condition of the Borrower and its Restricted Subsidiaries, taken as a whole, (b) the ability of any Loan Party to perform its obligations under any Loan Document, or (c) the rights and remedies of the Administrative Agent or the Lenders under the Loan Documents.

"Material Contract" means any contract or agreement to which the Borrower or any Restricted Subsidiary is a party, the loss of which could reasonably be expected to result in a Material Adverse Effect.

"Material Indebtedness" means Indebtedness (other than the Obligations) of the Borrower or any Restricted Subsidiary in an aggregate outstanding principal amount exceeding the threshold set forth on Schedule 8.01, referenced in Section 8.01(e).

"Material Subsidiary" means any Restricted Subsidiary other than an Immaterial Subsidiary.

"Maturity Date" means the fifth anniversary of the Closing Date, or such earlier date on which the Commitments are terminated and the Loans become due and payable in full in accordance with this Agreement.

"Maximum Facility Amount" means, at any time, the sum of the aggregate Revolving Commitments and the aggregate outstanding principal amount of the Term Loans.

"Maximum Rate" means the maximum non-usurious rate of interest permitted under applicable law from time to time in effect; no provision of the Loan Documents shall require the payment of interest in excess of the Maximum Rate.

"Mezzanine Indebtedness" means Subordinated Indebtedness incurred in a form subordinate to the Obligations but senior to the Borrower's common Equity Interests, if any is permitted under Section 7.03.

"Minimum Collateral Amount" means, at any time, an amount of cash collateral equal to 103% of the then-outstanding LC Exposure required to be posted under Section 2.13(c) or Section 8.02(c).

"Modified Following Business Day Convention" means the convention for adjusting any date that would otherwise fall on a day that is not a Business Day, so that the date is the first following day that is a Business Day, unless that day falls in the next calendar month, in which case that date will be the first preceding day that is a Business Day.

"Moody's" means Moody's Investors Service, Inc., or any successor rating agency.

"Mortgage" means each mortgage, deed of trust or similar instrument encumbering real property of a Loan Party, in form and substance reasonably satisfactory to the Administrative Agent, delivered pursuant to Section 5.10 or otherwise.

"Mortgaged Property" means, if applicable, real property encumbered by a Mortgage.

"Multiemployer Plan" means a multiemployer plan as defined in Section 4001(a)(3) of ERISA to which the Borrower, any Restricted Subsidiary or any ERISA Affiliate makes or has an obligation to make contributions.

"Multiple Employer Plan" means a Plan, other than a Multiemployer Plan, that has two or more contributing sponsors, at least two of which are not under common control, within the meaning of Section 4063 or 4064 of ERISA.

"Net Cash Proceeds" means, with respect to any Disposition or incurrence of Indebtedness, the cash proceeds thereof, net of reasonable transaction costs, taxes paid or reasonably estimated to be payable, and amounts applied to repay Indebtedness secured by the disposed asset that is required to be repaid in connection with such Disposition.

"Net Debt Proceeds" has the same meaning as Net Cash Proceeds, as applied to an incurrence of Indebtedness.

"Net Orderly Liquidation Value" means, with respect to eligible inventory or equipment included in the Borrowing Base, the value that could be obtained in an orderly liquidation, as most recently appraised by an appraiser reasonably satisfactory to the Administrative Agent.

"Non-Consenting Lender" means any Lender that does not approve any amendment, waiver or consent that requires the approval of all Lenders or all affected Lenders and that has been approved by the Required Lenders.

"Non-Public Information" means information that has not been disseminated in a manner making it available to investors generally, within the meaning of the United States federal securities laws.

"Non-U.S. Lender" has the same meaning as Foreign Lender.

"Notes Trustee" means the trustee under the Notes indenture.

"Notice of Intent to Cure" means a written notice from the Borrower to the Administrative Agent, delivered no later than the date the applicable Compliance Certificate is required to be delivered, stating the Borrower's intent to exercise the Equity Cure Right for the fiscal quarter covered by such Compliance Certificate.

"OFAC" means the U.S. Department of the Treasury's Office of Foreign Assets Control.

"OFAC Sanctioned Country List" has the same meaning as the list of Designated Jurisdictions maintained by OFAC from time to time.

"Obligations" means all advances, debts, liabilities and obligations of every Loan Party to the Administrative Agent, the Issuing Bank or any Lender arising under any Loan Document, whether present or future, direct or indirect, absolute or contingent, and whether or not evidenced by a note.

"Officer's Compliance Certificate" has the same meaning as Compliance Certificate.

"Operating Lease" means any lease of real or personal property that is not required to be classified as a Capital Lease Obligation under GAAP.

"Ordinary Course of Business" means, with respect to any Person, an action taken by such Person that is consistent in nature, scope and magnitude with the past practices of such Person and undertaken in the ordinary course of its

business operations.

"Organizational Documents" means, with respect to any Person, its certificate or articles of incorporation or formation, bylaws, limited liability company agreement, partnership agreement, or other constitutive documents.

"Original Financial Statements" has the same meaning as Historical Financial Statements.

"Other Connection Taxes" means, with respect to any recipient, Taxes imposed as a result of a present or former connection between such recipient and the jurisdiction imposing such Tax, other than a connection arising solely from such recipient having executed, delivered, or performed its obligations under, or received a payment under, or enforced, any Loan Document.

"Other Taxes" means all present or future stamp, court or documentary Taxes, or any other excise, property, intangible, recording, filing or similar Taxes arising from the execution, delivery, performance, enforcement or registration of any Loan Document, other than an assignment.

"Overnight Rate" means, for any day, the Federal Funds Rate for such day.

"PBGC" means the Pension Benefit Guaranty Corporation, or any successor thereto.

"Parent Guarantee" has the same meaning as Guarantee, to the extent the Borrower has any direct or indirect parent that becomes a Guarantor.

"Participant" means a Person purchasing a participation in a Lender's Loans and Commitments in accordance with Section 10.05.

"Participant Register" has the meaning assigned to it in Section 10.05(d).

"Payment Conditions" means, with respect to any Restricted Payment or Investment for which satisfaction of the Payment Conditions is expressly required, that (a) no Default or Event of Default has occurred and is continuing or would result therefrom, and (b) after giving pro forma effect thereto, the Total Net Leverage Ratio does not exceed the level set forth for such purpose on Schedule 7.06.

"Payment Date" has the same meaning as Interest Payment Date.

"Perfection Certificate" means a certificate, in form and substance reasonably satisfactory to the Administrative Agent, providing information necessary to perfect the Liens granted under the Collateral Documents.

"Permitted Acquisition" means any acquisition by the Borrower or a Restricted Subsidiary of the Equity Interests or assets of another Person, or a division or line of business thereof, so long as (a) no Default or Event of Default has occurred and is continuing or would result therefrom, (b) such Person or assets are used or useful in a business permitted under Section 7.08, (c) the acquired Person, if it becomes a Restricted Subsidiary, complies with Section 5.10 (Additional Guarantors), and (d) after giving pro forma effect thereto, the Borrower is in compliance with the financial covenants in Article VI, recomputed as of the most recent test date.

"Permitted Discretion" means a determination made by the Administrative Agent in good faith and in a commercially reasonable manner, consistent with the Administrative Agent's customary practices for similarly situated borrowers.

"Permitted Investment" means (a) Cash Equivalents, (b) Investments existing on the Closing Date and identified on Schedule 7.03, (c) Investments in Restricted Subsidiaries, (d) Permitted Acquisitions, (e) extensions of trade credit in the ordinary course of business, and (f) other Investments not to exceed, in the aggregate at any time outstanding,

the amount set forth for such purpose on Schedule 7.03.

"Permitted Liens" means: (a) Liens for taxes, assessments or governmental charges not yet due and payable or being contested in good faith by appropriate proceedings and for which adequate reserves have been established in accordance with GAAP; (b) statutory or common law Liens of landlords, carriers, warehousemen, mechanics, materialmen, repairmen or other like Liens arising in the ordinary course of business securing obligations that are not overdue by more than 60 days or are being contested in good faith; (c) Liens incurred or deposits made in connection with worker's compensation, unemployment insurance and other social security legislation, and Liens securing surety, appeal or performance bonds incurred in the ordinary course of business; (d) easements, rights-of-way, restrictions, encroachments, protrusions, minor title defects and other similar encumbrances on real property that do not materially interfere with the ordinary conduct of the business of the Borrower and its Restricted Subsidiaries, taken as a whole; (e) Liens securing judgments that do not constitute an Event of Default under Section 8.01(g); (f) Liens in favor of the Administrative Agent for the benefit of the Secured Parties under the Collateral Documents; (g) purchase money Liens and Liens securing Capital Lease Obligations, in each case on the specific property acquired, constructed or improved with the proceeds of the Indebtedness secured thereby, to the extent such Indebtedness is permitted under Section 7.03(e); (h) licenses of Intellectual Property granted in the ordinary course of business that do not interfere with the Collateral's value as collateral; (i) precautionary Uniform Commercial Code financing statements filed in respect of true leases or consignment arrangements entered into in the ordinary course of business; (j) Liens on cash earnest money deposits in connection with a Permitted Acquisition; (k) Liens arising by operation of law, such as materialmen's, mechanics', carriers', workers' and repairmen's Liens, arising in the ordinary course of business and securing obligations that are not yet delinquent; (l) Liens securing insurance premium financing permitted under Section 7.03(j); (m) customary bankers' Liens, rights of setoff and similar rights in favor of depository or collecting banks arising in the ordinary course of business; (n) Liens on documents and the goods covered thereby arising in the ordinary course in favor of a collecting or issuing bank in connection with documentary letters of credit; (o) zoning, building, entitlement and other land use regulations imposed by a Governmental Authority that do not materially interfere with the ordinary conduct of business; (p) Liens on the Excluded Property; (q) Liens on cash collateral securing reimbursement obligations in respect of Letters of Credit permitted hereunder; (r) Liens existing on property at the time such property is acquired pursuant to a Permitted Acquisition, so long as such Liens were not created in contemplation thereof and do not extend to any other property of the Borrower or any Restricted Subsidiary; (s) Liens securing Permitted Refinancing Indebtedness in respect of Indebtedness that was itself secured by a Permitted Lien, so long as such Liens do not extend to additional property; (t) customary Liens of a landlord under a lease or sublease entered into in the ordinary course of business; and (u) other Liens with respect to which the aggregate outstanding principal amount of the obligations secured thereby does not exceed the amount set forth on Schedule 7.02.

"Permitted Refinancing Indebtedness" means Indebtedness incurred to extend, renew, refinance or replace other Indebtedness permitted under this Agreement, so long as (a) the principal amount does not exceed the principal amount refinanced, plus accrued interest and reasonable fees and expenses, (b) the Weighted Average Life to Maturity is not shorter than that of the Indebtedness being refinanced, and (c) the other terms are not materially less

favorable, taken as a whole, to the Loan Parties than the Indebtedness being refinanced.

"Person" means any natural person, corporation, limited liability company, trust, joint venture, association, company, partnership, Governmental Authority or other entity.

"Plan" means any employee benefit plan within the meaning of Section 3(3) of ERISA (other than a Multiemployer Plan) that is maintained or contributed to by the Borrower, any Restricted Subsidiary, or any ERISA Affiliate.

"Plan Assets" means assets treated as plan assets of a Plan under Section 3(42) of ERISA and the regulations promulgated thereunder.

"Platform" means Debt Domain, Intralinks, SyndTrak or any other electronic platform reasonably selected by the Administrative Agent for the distribution of Borrower Materials.

"Pledge Agreement" means the pledge agreement, dated as of the Closing Date, among the Borrower, each Guarantor and the Administrative Agent, pledging the Pledged Equity as Collateral.

"Pledged Equity" means the Equity Interests pledged pursuant to the Pledge Agreement.

"Prepayment Event" means any of the events described in Section 3.01(a) through (c).

"Prime Rate" has the meaning given to it within the definition of Base Rate.

"Pro Forma Basis" means, for purposes of any calculation under this Agreement, that the relevant transaction or event shall be deemed to have occurred as of the first day of the applicable period, with adjustments consistent with the requirements of Regulation S-X to the extent applicable and reasonably acceptable to the Administrative Agent.

"Pro Rata Share" has the same meaning as Applicable Percentage.

"Projections" means the financial projections of the Borrower and its Restricted Subsidiaries delivered to the Administrative Agent prior to the Closing Date, prepared in good faith based on assumptions believed to be reasonable at the time made, it being understood that projections are inherently uncertain and actual results may differ materially.

"Public Lender" means a Lender that has notified the Administrative Agent that it wishes to receive only information that is not Non-Public Information with respect to the Borrower or its securities, for purposes of the Platform protocols referenced in Section 10.12.

"Purchase Agreement" means the stock purchase agreement pursuant to which the Buyer acquires the Equity Interests of the Borrower, as in effect on the Closing Date.

"QFC Stay Rules" means the regulations codified at 12 C.F.R. Section 252.2, 47.2 and 382.2, as applicable.

"Qualified ECP Guarantor" means, at any time, each Loan Party that has total assets exceeding $10,000,000 at the time its Guarantee of, or grant of a security interest to support, a Swap Obligation becomes effective, or that otherwise constitutes an "eligible contract participant" under the Commodity Exchange Act and can cause another Person to qualify as an eligible contract participant at such time.

"Quarterly Payment Date" means the last Business Day of each March, June, September and December.

"Rate Determination Date" means, with respect to any Interest Period, the date on which Term SOFR for such Interest Period is determined in accordance with the definition of Term SOFR.

"Recipient" means the Administrative Agent, any Lender, or the Issuing Bank, as applicable.

"Refinancing Amendment" means an amendment to this Agreement, in form reasonably satisfactory to the

Administrative Agent, establishing Permitted Refinancing Indebtedness as a new Class of Term Loans or Revolving Commitments hereunder, executed by the Borrower, the Administrative Agent and the Lenders providing such Permitted Refinancing Indebtedness.

"Register" has the meaning assigned to it in Section 10.05(c).

"Register Maintenance" has the same meaning as the Administrative Agent's obligations under Section 2.08.

"Regulation T" means Regulation T of the Board.

"Regulation U" means Regulation U of the Board.

"Regulation X" means Regulation X of the Board.

"Reinvestment Notice" means a certificate of a Responsible Officer stating the Borrower's intent to apply the net cash proceeds of a Disposition or casualty or condemnation event to reinvestment in assets useful in its business within the applicable Reinvestment Period, as contemplated by Section 3.01(b) and (c).

"Reinvestment Period" means, with respect to any net cash proceeds subject to a Reinvestment Notice, the period of 12 months following receipt of such proceeds, or, if the Borrower has entered into a binding commitment to reinvest within such 12-month period, 180 days thereafter.

"Related Parties" means, with respect to any Person, such Person's Affiliates and the partners, directors, officers, employees, agents, trustees and advisors of such Person and its Affiliates.

"Release" means any spilling, leaking, pumping, pouring, emitting, emptying, discharging, injecting, escaping, leaching, dumping or disposing of Hazardous Materials into the environment.

"Relevant Governmental Body" means the Federal Reserve Board and/or the Federal Reserve Bank of New York, or a committee officially endorsed or convened by the Federal Reserve Board and/or the Federal Reserve Bank of New York, or any successor thereto.

"Reportable Compliance Event" has the same meaning as Reportable Event.

"Reportable Event" means any of the events set forth in Section 4043(c) of ERISA, other than an event for which the 30-day notice period has been waived.

"Required Class Lenders" means, with respect to any Class, Lenders of such Class holding more than 50% of the aggregate unused Commitments and outstanding Loans of such Class.

"Required Lenders" means, at any time, Lenders holding more than 50% of the sum of (a) the aggregate unused Commitments and (b) the aggregate outstanding principal amount of the Loans and LC Exposure at such time.

"Requirement of Law" means, as to any Person, the Organizational Documents of such Person and any law, treaty, rule or regulation, or determination of an arbitrator or Governmental Authority, in each case applicable to or binding upon such Person or any of its property.

"Responsible Officer" means the chief executive officer, chief financial officer, treasurer or controller of the Borrower, or any other officer of the Borrower designated as such in writing to the Administrative Agent.

"Restatement Date" has the same meaning as Closing Date.

"Restricted Cash" has the meaning given to it within the definition of Unrestricted Cash, being cash and Cash Equivalents that are not Unrestricted Cash.

"Restricted Payment" means (a) any dividend or other distribution on account of any Equity Interests of the

Borrower or any Restricted Subsidiary, and (b) any payment on account of the purchase, redemption, retirement or other acquisition of any such Equity Interests, in each case other than a dividend or distribution payable solely in additional Equity Interests, or a payment by a Restricted Subsidiary to the Borrower or another Restricted Subsidiary.

"Restricted Subsidiary" means any Subsidiary of the Borrower other than a Subsidiary designated as an Unrestricted Subsidiary in accordance with Section 1.04, if any; as of the Closing Date, the Borrower has no Unrestricted Subsidiaries.

"S&P" means S&P Global Ratings, a division of S&P Global Inc., or any successor rating agency.

"SOFR" means the secured overnight financing rate published by the Federal Reserve Bank of New York (or a successor administrator), used exclusively (together with Adjusted Term SOFR) as the reference-rate basis for Loans hereunder; no Loan hereunder bears interest by reference to the London Interbank Offered Rate, which ceased to be published for most tenors after June 30, 2023.

"SOFR Adjustment" means the spread adjustment, if any, published or recommended for use with Term SOFR by the Relevant Governmental Body, applied in the calculation of Adjusted Term SOFR.

"Sanctioned Country" has the same meaning as Designated Jurisdiction.

"Sanctioned Entity" has the same meaning as Blocked Person.

"Sanctioned Person" means any Person that is the subject or target of Sanctions, including any Person listed on OFAC's Specially Designated Nationals and Blocked Persons List.

"Sanctions" means economic or financial sanctions or trade embargoes administered or enforced by OFAC, the U.S. Department of State, the United Nations Security Council, the European Union, or His Majesty's Treasury.

"Screen Rate" means, with respect to Term SOFR for any Interest Period, the rate per annum equal to Term SOFR for such Interest Period as published by the administrator described in the definition of Term SOFR.

"Secured Parties" means the Administrative Agent, the Issuing Bank, the Lenders, and each Cash Management Bank or Swap Contract counterparty entitled to the benefit of the Collateral Documents pursuant to Section 5.10 or the definition of Secured Obligations therein.

"Security Interest" has the same meaning as Lien.

"Senior Notes" means the Borrower's senior notes issued pursuant to the Notes indenture, in the aggregate original principal amount of 175,000,000.00.

"Solvency Certificate" means a certificate of the chief financial officer of the Borrower, in form reasonably satisfactory to the Administrative Agent, certifying that the Borrower and its Restricted Subsidiaries, on a consolidated basis and after giving effect to the Transaction, are Solvent.

"Solvent" means, with respect to any Person, that (a) the fair value of such Person's assets exceeds its liabilities (including contingent liabilities), (b) such Person is able to pay its debts as they mature, and (c) such Person does not have unreasonably small capital for the business in which it is engaged.

"Specified Event of Default" means an Event of Default under Section 8.01(a) or 8.01(f).

"Specified Representations" means, for purposes of the conditions precedent in Article VI applicable to the Closing Date, the representations and warranties set forth in Sections 4.01, 4.02, 4.03, 4.10, 4.11 and 4.15, and no other

representation or warranty in this Agreement.

"Standard Securitization Undertakings" means representations, warranties, covenants and indemnities customarily entered into in connection with a receivables securitization or factoring facility, none of which is contemplated by this Agreement as of the Closing Date.

"Subordinated Indebtedness" means any Indebtedness of the Borrower or a Restricted Subsidiary that is subordinated in right of payment to the Obligations pursuant to subordination terms reasonably satisfactory to the Administrative Agent.

"Subsidiary" means, with respect to any Person, any corporation, partnership, limited liability company or other entity of which more than 50% of the outstanding Equity Interests having ordinary voting power is at the time owned or controlled, directly or indirectly, by such Person or one or more of its Subsidiaries.

"Successor Guarantor" means any Person that assumes the obligations of a Guarantor under the Guarantee in connection with a transaction permitted under Section 7.04.

"Supported QFC" means a Qualified Financial Contract (as defined in, and interpreted in accordance with, 12 U.S.C. Section 5390(c)(8)(D)) that is a Loan Document.

"Swap Contract" means any interest rate, currency or commodity swap, cap, collar, floor or similar agreement, and any option with respect to any of the foregoing, entered into for hedging (and not speculative) purposes.

"Swap Obligations" means, with respect to any Guarantor, any obligation to pay or perform under any Swap Contract.

"Swap Termination Value" means, with respect to any Swap Contract, the termination value thereof determined in accordance with the terms of such Swap Contract as of the date of determination.

"Swingline Lender" means the Administrative Agent, in its capacity as lender of Swingline Loans pursuant to Section 2.04.

"Swingline Loan" means a short-term revolving loan made pursuant to Section 2.04.

"Syndication Agent" means, if any is appointed, the Person identified as such in the signature pages hereto, having no duties or obligations under the Loan Documents other than those of a Lender.

"Taxes" means all present or future taxes, levies, imposts, duties, deductions, withholdings (including backup withholding), assessments, fees or other charges imposed by any Governmental Authority, including any interest, additions to tax or penalties applicable thereto.

"Term Lender" means a Lender holding a Term Loan Commitment or, after the Closing Date, an outstanding Term Loan.

"Term Loan" means a loan made pursuant to Section 2.02.

"Term Loan Commitment" means, as to any Term Lender, its obligation to make a Term Loan pursuant to Section 2.02 in the principal amount set forth opposite such Lender's name on Schedule 2.01.

"Term SOFR" means the forward-looking term rate based on SOFR published by the Relevant Governmental Body, for the applicable tenor, as administered by CME Group Benchmark Administration Limited (or any successor administrator selected by the Relevant Governmental Body).

"Threshold Amount" has the same meaning as Material Indebtedness's referenced threshold on Schedule 8.01.

"Total Net Leverage Ratio" means, as of any date of determination, the ratio of Consolidated Net Debt as of such date to Consolidated EBITDA for the four consecutive fiscal quarters most recently ended, in each case calculated for purposes of Section 6.01 and, where applicable, the Applicable Margin pricing grid.

"Total Revolving Exposure" means, at any time, the sum of the outstanding principal amount of the Revolving Loans, the outstanding principal amount of the Swingline Loans, and the LC Exposure.

"Transaction" means, collectively, the acquisition of the Equity Interests of the Borrower pursuant to the Purchase Agreement, the entry into this Agreement and the initial Credit Extensions hereunder, and the other transactions contemplated to occur substantially concurrently with the Closing Date, as described in the Funds Flow Memorandum.

"Transaction Costs" means the fees, costs and expenses incurred by the Borrower or its Affiliates in connection with the Transaction, including the fees, costs and expenses referenced in clause (f) of the Consolidated EBITDA definition.

"Transaction Documents" means the Purchase Agreement and each other agreement, certificate or instrument delivered in connection with the Transaction.

"Type" means, with respect to any Loan, its character as a Base Rate Loan or a Term SOFR Loan.

"U.S. Person" means a "United States person" within the meaning of Section 7701(a)(30) of the Code.

"U.S. Tax Compliance Certificate" means a certificate substantially in the form agreed between the Borrower and the Administrative Agent, delivered by a Foreign Lender to establish an exemption from, or reduction of, U.S. withholding Tax.

"UCC" means the Uniform Commercial Code as in effect from time to time in the State of New York, or in any other jurisdiction the laws of which are required to be applied in connection with the perfection of a security interest in any Collateral.

"UK Financial Institution" means any BRRD Undertaking (as such term is defined under the PRA Rulebook) or any person falling within the scope of the UK Bail-In Legislation.

"UK Resolution Authority" means the Bank of England, or any successor thereto exercising the functions of a resolution authority under the UK Bail-In Legislation.

"USA PATRIOT Act" means the Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act of 2001, as amended.

"Unadjusted Benchmark Replacement" means the Benchmark Replacement excluding the Benchmark Replacement Adjustment.

"Unfunded Capital Expenditures" means capital expenditures of the Borrower and its Restricted Subsidiaries that are not financed with the proceeds of Indebtedness (other than revolving credit borrowings hereunder) or with insurance or condemnation proceeds.

"Unfunded Pension Liability" means the excess of a Plan's benefit liabilities under Section 4001(a)(16) of ERISA over the current value of that Plan's assets, determined as of the most recent valuation date for such Plan.

"Uniform Customs" means, with respect to any Letter of Credit, the Uniform Customs and Practice for Documentary Credits, or the International Standby Practices, as specified in such Letter of Credit.

"United States" means the United States of America.

"Unmatured Default" has the same meaning as Default.

"Unrestricted Cash" means, at any date, cash and Cash Equivalents of the Borrower and its Restricted Subsidiaries that are not subject to any Lien (other than a Lien in favor of the Administrative Agent under the Collateral Documents) and are not designated as restricted for any purpose.

"Unrestricted Subsidiary" means any Subsidiary of the Borrower designated as such by the Borrower's board of directors in accordance with Section 1.04, and any Subsidiary thereof; as of the Closing Date, the Borrower has no Unrestricted Subsidiaries, and no Unrestricted Subsidiary may be designated while any Default or Event of Default is continuing.

"Voting Stock" means Equity Interests of any class or classes having general voting power under ordinary circumstances to elect at least a majority of the board of directors of a Person, irrespective of whether or not, at the time, stock of any other class or classes has, or might have, voting power by reason of the happening of any contingency.

"Weighted Average Life to Maturity" means, with respect to any Indebtedness at any date, the number of years obtained by dividing the sum of the products of (a) the number of years from such date to the date of each successive scheduled principal payment of such Indebtedness and (b) the amount of each such principal payment, by the then-outstanding principal amount of such Indebtedness.

"Wholly-Owned Domestic Subsidiary" means a Domestic Subsidiary that is also a Wholly-Owned Subsidiary.

"Wholly-Owned Subsidiary" means, as to any Person, a Subsidiary all of the outstanding Equity Interests of which (other than director's qualifying shares required by applicable law) are owned by such Person and/or one or more of its Wholly-Owned Subsidiaries.

"Withholding Agent" means the Borrower and the Administrative Agent.

"Write-Down and Conversion Powers" means, with respect to any Bail-In Legislation, the writing down, cancellation, transfer, or conversion into equity of all or a portion of the liabilities of an EEA Financial Institution or UK Financial Institution, or any similar or analogous powers under such Bail-In Legislation.

"Acquisition" means any transaction, or any series of related transactions, consummated by any Loan Party or any Subsidiary, whether by purchase, merger, amalgamation, consolidation, reorganization, share exchange, contribution, or otherwise, pursuant to which such Loan Party or Subsidiary acquires, directly or indirectly, from any Person (a) all or substantially all of the assets of, or all or substantially all of the Equity Interests of, any Person, business, division, product line, or line of business, (b) a controlling interest in any Person that, immediately after giving effect thereto, is or becomes a Subsidiary, or (c) any other business, assets, or Equity Interests, in each case, to the extent constituting a business acquisition, asset acquisition, or equity acquisition; provided that the creation or formation of a new Subsidiary shall not constitute an Acquisition unless such new Subsidiary is formed for the purpose of acquiring, and contemporaneously with such formation acquires, assets or Equity Interests in a transaction that would otherwise constitute an Acquisition.

"Acquisition Agreement" means, with respect to any Acquisition, the definitive agreement or agreements pursuant to which such Acquisition is effected, including any purchase agreement, merger agreement, amalgamation agreement,

share exchange agreement, equity subscription agreement, asset purchase agreement, contribution agreement, or similar agreement, together with all exhibits, schedules, annexes, disclosure letters, and joinders thereto, in each case as the same may be amended, supplemented, amended and restated, or otherwise modified from time to time, and including any replacement or successor agreement thereto.

"Acquisition Consideration" means, with respect to any Acquisition, the aggregate amount of all consideration paid or payable by or on behalf of any Loan Party or any Subsidiary in connection with such Acquisition, including (a) cash paid or payable, including any amount deposited into escrow or paid as a deposit, (b) the principal amount of any Indebtedness assumed, incurred, or issued in connection with such Acquisition, (c) the maximum amount payable under any earnout, deferred purchase price, seller note, or other contingent or deferred consideration, (d) the fair value, determined in accordance with GAAP, of any noncash consideration, including any Equity Interests of any Loan Party or any Subsidiary, (e) any purchase price or working capital adjustment payable by or on behalf of any Loan Party or any Subsidiary, and (f) all Transaction Costs; provided that such aggregate amount shall be determined net of (x) cash and cash equivalents acquired in such Acquisition, (y) any amounts received by or on behalf of any Loan Party or any Subsidiary in final settlement of any purchase price adjustment or indemnification claim, and (z) the amount of any Indebtedness of the Target that is repaid, retired, or defeased from the proceeds of such Acquisition or from the cash or cash equivalents of the Target on or prior to the Acquisition Date, in each case to the extent not otherwise included in such aggregate amount.

"Acquisition Date" means, with respect to any Acquisition, the date on which all conditions precedent to the consummation of such Acquisition set forth in the applicable Acquisition Agreement have been satisfied or waived and the closing of such Acquisition actually occurs.

"Acquisition Documentation" means the Acquisition Agreement and all other agreements, documents, instruments, certificates, and opinions entered into or delivered in connection with an Acquisition, including any tender offer documents, merger agreement, asset purchase agreement, share purchase agreement, contribution agreement, assumption agreement, bill of sale, deed, intellectual property assignment, employment, consulting, noncompetition, escrow, and similar agreements, and any amendment, supplement, amendment and restatement, or other modification thereof; provided that no Loan Document shall constitute Acquisition Documentation.

"Acquisition Liabilities" means all liabilities, obligations, and contingencies of any Target or with respect to any assets, business, division, product line, or line of business acquired in an Acquisition, whether accrued, contingent, or otherwise, that are assumed, retained, or become obligations of any Loan Party or any Subsidiary in connection with such Acquisition, including liabilities arising under any contract, lease, license, permit, or other arrangement, liabilities for Taxes, environmental liabilities, employee benefit liabilities, product liability claims, litigation, and warranty claims.

"Acquisition Subsidiary" means any Subsidiary of a Borrower formed or designated solely for the purpose of effecting an Acquisition or holding, directly or indirectly, the Equity Interests or assets acquired in an Acquisition, and, to the extent required by the Credit Agreement, joined as a Loan Party and the subject of Liens securing the Secured Obligations.

"Asset Acquisition" means any Acquisition of all or substantially all of the assets of a Target, including a business,

division, product line, line of business, or assets constituting a business, but excluding any Equity Acquisition.
"Equity Acquisition" means any Acquisition of Equity Interests of a Target, whether by purchase, subscription, merger, amalgamation, consolidation, share exchange, or otherwise, following which the Target is or becomes a Subsidiary or is merged or amalgamated with or into a Loan Party or a Subsidiary.
"Permitted Acquisition" means any Acquisition consummated by any Loan Party or any Subsidiary, so long as (a) no Default or Event of Default has occurred and is continuing immediately prior to, or would exist immediately after giving effect to, such Acquisition, including any incurrence or assumption of Indebtedness in connection therewith, (b) such Acquisition is not a hostile acquisition and has been approved or recommended by the board of directors, or other equivalent governing body, of the Target and, to the extent required by applicable law or the organizational documents of the Target, by its equityholders, (c) the Target and its business and assets are, or immediately after giving effect to such Acquisition will be, engaged in the same or a related, complementary, or similar line of business as the Loan Parties and their Subsidiaries, (d) immediately after giving effect to such Acquisition, including any incurrence or assumption of Indebtedness in connection therewith and the application of the proceeds thereof, the Loan Parties and their Subsidiaries would be in pro forma compliance with the financial covenants set forth in Article VI, recomputed as if such Acquisition had occurred on the first day of the most recently ended period of four consecutive fiscal quarters for which financial statements have been delivered under the Credit Agreement and after giving effect to any cost savings, operating expense reductions, and other adjustments permitted by the Credit Agreement, (e) in the case of an Equity Acquisition, immediately after giving effect to such Acquisition, the Target is or becomes a wholly owned direct or indirect Subsidiary of a Loan Party and, to the extent required by the Credit Agreement, the Target executes and delivers all joinder documents, guaranties, security agreements, and other instruments as may be reasonably requested by the Administrative Agent to cause the Target to become a Loan Party and to perfect Liens in favor of the Administrative Agent for the benefit of the Secured Parties, and (f) such Acquisition does not result in the Target or any of its Subsidiaries having any Indebtedness outstanding following such Acquisition other than Indebtedness permitted under the Credit Agreement.
"Target" means the Person, business, division, product line, line of business, or assets that is or are the subject of an Acquisition.
"Transaction Costs" means all fees, expenses, costs, and charges incurred by any Loan Party or any Subsidiary in connection with the negotiation, investigation, documentation, execution, delivery, and performance of any Acquisition and the Acquisition Documentation, including (a) legal, accounting, financial advisory, investment banking, consulting, and due diligence fees and expenses, (b) brokerage and finder's fees, (c) filing, registration, recording, transfer, stamp, documentary, and similar taxes and fees, (d) costs and expenses of obtaining consents, approvals, waivers, and amendments, and (e) any other fees, expenses, costs, and charges payable to third parties in connection with such Acquisition.
"Anti-Corruption Laws" means all applicable laws, regulations, rules, and binding governmental policies relating to bribery, corruption, and kickbacks, including the United States Foreign Corrupt Practices Act and the United Kingdom Bribery Act, in each case as amended, and the rules, regulations, and official interpretations thereunder.
"Anti-Money Laundering Laws" means all applicable laws, regulations, rules, and binding governmental policies

relating to money laundering, terrorist financing, financial recordkeeping and reporting, know-your-customer, customer due diligence, and suspicious activity reporting, including the Bank Secrecy Act and the USA PATRIOT Act, in each case as amended, and the rules, regulations, and official interpretations thereunder.

"Beneficial Ownership Certification" means a certification regarding beneficial ownership, control, and ultimate beneficial owners of a legal entity customer as required by the Beneficial Ownership Regulation, in form and substance reasonably satisfactory to the Administrative Agent.

"Beneficial Ownership Regulation" means the rule titled Beneficial Ownership Requirements for Legal Entity Customers issued by the Financial Crimes Enforcement Network of the United States Department of the Treasury, as amended, and any successor rule.

"Compliance Laws" means all Anti-Corruption Laws, all Anti-Money Laundering Laws, all Sanctions, and all other applicable laws, regulations, rules, executive orders, and binding governmental policies relating to import, export, customs, trade, embargo, or economic sanctions.

"OFAC" means the Office of Foreign Assets Control of the United States Department of the Treasury and any successor agency.

"Sanctioned Country" means any country, region, or territory that is the subject or target of comprehensive economic or financial sanctions imposed, administered, or enforced by a Sanctions Authority, including Cuba, Iran, North Korea, Syria, and the Crimea, Donetsk, Luhansk, Kherson, and Zaporizhzhia regions of Ukraine.

"Sanctioned Person" means any person that is listed on any Sanctions-related designation or debarment list maintained by a Sanctions Authority, including OFAC's Specially Designated Nationals and Blocked Persons List and OFAC's Consolidated Sanctions List, that is located, organized, or resident in a Sanctioned Country, that is owned or controlled by, or acting for or on behalf of, any person described in the preceding paragraphs, or that is the government of, or any agency or instrumentality of, a Sanctioned Country.

"Sanctions" means economic or financial sanctions, trade restrictions, embargoes, asset freezes, debarments, restrictive measures, and similar requirements imposed, administered, or enforced by any Sanctions Authority, including any such measures relating to terrorism, weapons proliferation, narcotics trafficking, or human rights abuses.

"Sanctions Authority" means OFAC, the United States Department of State, the United Nations Security Council, the European Union, Her Majesty's Treasury, and any other governmental, intergovernmental, or supranational authority, agency, or body that has authority to impose, administer, or enforce economic or financial sanctions, trade restrictions, embargoes, or restrictive measures.

"USA PATRIOT Act" means the Uniting and Strengthening America by Providing Appropriate Tools Required to Intercept and Obstruct Terrorism Act, as amended, and the rules and regulations thereunder.

"Benchmark" means, for any applicable Interest Period, initially, Term SOFR for such Interest Period; provided that if a Benchmark Transition Event and its related Benchmark Replacement Date have occurred with respect to the then-current Benchmark, "Benchmark" means the applicable Benchmark Replacement.

"Benchmark Replacement" means, for any applicable tenor, the first alternative set forth below that can be determined by the Administrative Agent for the applicable Corresponding Tenor: (a) the sum of Term SOFR for the

applicable Corresponding Tenor and the Benchmark Replacement Adjustment for such Corresponding Tenor; or (b) the sum of Daily Simple SOFR for the applicable Corresponding Tenor and the Benchmark Replacement Adjustment for such Corresponding Tenor; provided that, if neither Term SOFR nor Daily Simple SOFR can be determined for such Corresponding Tenor, "Benchmark Replacement" means the alternative benchmark rate selected by the Company and the Administrative Agent, giving due consideration to any evolving or then-prevailing market convention for similar syndicated credit facilities for determining benchmark rates, together with the related Benchmark Replacement Adjustment.

"Benchmark Replacement Adjustment" means, for any applicable tenor, the spread adjustment (which may be a positive or negative value, or zero) that has been selected by the Administrative Agent and the Company, or if the Administrative Agent and the Company cannot agree, the spread adjustment, or method for calculating the spread adjustment, that would apply to the replacement of the relevant Benchmark with the applicable Benchmark Replacement under any evolving or then-prevailing market convention for similar syndicated credit facilities, or if no such convention exists, the spread adjustment determined by the Administrative Agent in its reasonable discretion.

"Benchmark Replacement Conforming Changes" means any technical, administrative or operational changes (including changes to the definition of "Interest Period", the timing and frequency of determining rates and making payments of interest, the timing of borrowing, conversion or continuation requests, the use or availability of tenors of a Benchmark, the applicability and length of lookback periods, the rounding of rates, and other administrative matters) that the Administrative Agent decides may be appropriate to reflect the adoption of any Benchmark Replacement and to permit the administration and operation by the Administrative Agent of any Benchmark Replacement in a manner substantially consistent with market practice.

"Benchmark Replacement Date" means the earliest date on which a Benchmark Transition Event has occurred with respect to the then-current Benchmark and, if the Benchmark Transition Event arises from a public statement or publication of information that the Benchmark will be discontinued or that its use will be prohibited, the date specified in such statement; provided that no Benchmark Replacement Date will occur unless the then-current Benchmark has ceased to be published, or has been prohibited for use, for at least five Business Days after the date on which such Benchmark Transition Event occurred.

"Benchmark Transition Event" means the occurrence of one or more of the following events with respect to the then-current Benchmark: (a) a public statement or publication of information by or on behalf of the administrator of the Benchmark recommending that the Benchmark be discontinued or that a substitute for the Benchmark be used; (b) a public statement or publication of information by or on behalf of the administrator of the Benchmark or a Governmental Authority having jurisdiction over the administrator of the Benchmark that the Benchmark has been or will be discontinued, or that the Benchmark is not or will not be representative, or that the Benchmark may no longer be used, or that its use is prohibited, in each case at a specified future date; or (c) a public statement or publication of information by a Governmental Authority having jurisdiction over the administrator of the Benchmark that the Benchmark has ceased to be representative or is not compliant with any applicable law or regulation; provided that any such event will be deemed not to have occurred if, at the time of the applicable

statement or publication, a successor administrator has been appointed or a successor benchmark has been selected.
"Benchmark Transition Start Date" means, if a Benchmark Transition Event and its related Benchmark Replacement Date have occurred with respect to the then-current Benchmark, the earlier of (a) the applicable Benchmark Replacement Date and (b) if such Benchmark Transition Event arises from a public statement or publication of information that the Benchmark will be discontinued or that its use will be prohibited, the date that is thirty days following the date of such statement or publication; provided that the Benchmark Transition Start Date will not occur earlier than the Benchmark Replacement Date.
"Benchmark Unavailability Period" means the period, if any, commencing on the Benchmark Replacement Date and ending on the date on which the Benchmark Replacement becomes effective for all purposes under the Credit Agreement; during such period, the applicable fallback provisions for the Benchmark shall apply as set forth in the Credit Agreement.
"Corresponding Tenor" means, with respect to any Benchmark or any tenor of a Benchmark, any tenor (including overnight) having approximately the same length as the applicable tenor, or, if no such tenor exists, the tenor requested by the Company and reasonably determined by the Administrative Agent to be the tenor most nearly corresponding to the applicable tenor.
"Daily Simple SOFR" means, for any day, the rate determined by the Administrative Agent in accordance with the conventions for this rate recommended by the Federal Reserve Bank of New York or the Alternative Reference Rates Committee, as such conventions are in effect from time to time; provided that if the Administrative Agent decides that any such convention is not administratively feasible, then the Administrative Agent may establish another convention in its reasonable discretion; provided, further, that if SOFR is not available for the applicable Business Day, Daily Simple SOFR will be the rate determined by the Administrative Agent in its reasonable discretion from a comparable published SOFR rate, or, if a Benchmark Transition Event and its related Benchmark Replacement Date have occurred, the applicable Benchmark Replacement.
"SOFR" means, for any Business Day, the secured overnight financing rate published by the Federal Reserve Bank of New York, or any successor administrator, on the Federal Reserve Bank of New York's website, or any successor page or other information service selected by the Administrative Agent, on the immediately following Business Day; provided that if such rate is not published on the applicable Business Day, SOFR will be the rate determined by the Administrative Agent in its reasonable discretion from a comparable published SOFR rate.
"Term SOFR" means, for any Interest Period, the rate per annum published by CME Group Benchmark Administration Limited, or any successor administrator, on the applicable screen page or other information service selected by the Administrative Agent, at approximately five o'clock a.m., Chicago time, two U.S. Government Securities Business Days prior to the first day of such Interest Period, for a tenor comparable to such Interest Period; provided that if such rate is not available for the applicable Interest Period, Term SOFR will be the rate determined by the Administrative Agent in its reasonable discretion from a comparable forward-looking term rate based on SOFR.
"Collateral" means, collectively, all right, title, and interest of each Loan Party and each other Person that is a party to any Security Document as a grantor in and to all property and assets, whether real, personal, or mixed, now

owned or hereafter acquired, that are or are purported to be subject to a Lien under any Security Document in favor of Collateral Agent for the benefit of Secured Parties, including all proceeds, products, accessions, rents, and profits thereof, all Supporting Obligations relating thereto, all books and records pertaining thereto, and all cash and non-cash proceeds of any of the foregoing, but excluding any Excluded Property.

"Collateral Agent" means the Administrative Agent under the Credit Agreement, in its capacity as collateral agent for the benefit of the Secured Parties, and any successor collateral agent appointed under the Credit Agreement.

"Control Agreement" means any agreement entered into among Collateral Agent, the applicable Loan Party or other grantor, and the applicable depositary bank, securities intermediary, commodity intermediary, or other financial institution, in form and substance reasonably satisfactory to Collateral Agent, pursuant to which Collateral Agent obtains control within the meaning of the Uniform Commercial Code over a deposit account, securities account, or commodity account maintained with such financial institution, together with any amendment, restatement, supplement, or other modification thereof.

"Excluded Property" means, with respect to any Loan Party or other grantor under any Security Document, (a) any property or asset to the extent the creation, attachment, or perfection of a Lien thereon in favor of Collateral Agent for the benefit of Secured Parties is prohibited by applicable law or by any Governmental Authority, unless such prohibition has been validly waived with respect to such Lien, (b) any property or asset to the extent the creation, attachment, or perfection of a Lien thereon is prohibited by any material contract, license, franchise, charter, or other authorization binding on such Loan Party or other grantor, unless such prohibition has been validly waived with respect to such Lien, (c) any property or asset that is subject to a Lien permitted by the Credit Agreement to the extent that the agreement, instrument, or other document creating or evidencing such Lien prohibits the grant of another Lien on such property or asset and such prohibition is not waived, (d) any real property located in the United States with a fair market value, together with any improvements located thereon, of less than one million Dollars, and (e) any property or asset to the extent that, in the reasonable judgment of Collateral Agent and the Borrower, the cost, burden, or consequences of obtaining or perfecting a Lien on such property or asset outweigh the benefit to the Secured Parties; provided that Excluded Property shall not include any cash or cash equivalents, accounts receivable, inventory, equipment, general intangibles, or any other property or asset that constitutes a primary operating asset of the Loan Parties.

"Intellectual Property Security Agreement" means any agreement entered into by any Loan Party or other grantor in favor of Collateral Agent for the benefit of Secured Parties, granting a security interest in and Lien on any patents, patent applications, trademarks, trademark applications, service marks, copyrights, copyright applications, trade secrets, domain names, industrial designs, and all goodwill associated with any of the foregoing, in each case owned by such Loan Party or other grantor, to secure the Secured Obligations, as the same may be amended, restated, amended and restated, supplemented, or otherwise modified from time to time.

"Intercreditor Agreement" means any intercreditor agreement, collateral trust agreement, subordination agreement, or other similar agreement entered into among Collateral Agent, one or more Loan Parties, and one or more other holders of Indebtedness or other obligations or Liens, governing the relative priority, enforcement, subordination, or application of proceeds of Liens on Collateral or other security for the Secured Obligations, as the same may be

amended, restated, amended and restated, supplemented, or otherwise modified from time to time.

"Mortgage" means any mortgage, deed of trust, deed to secure debt, trust deed, or other security instrument entered into by any Loan Party or other grantor in favor of Collateral Agent for the benefit of Secured Parties, creating a Lien on any fee or leasehold interest in real property of such Loan Party or other grantor, including any fixture filing with respect to fixtures located on such real property, as the same may be amended, restated, amended and restated, supplemented, assigned, assumed, or otherwise modified from time to time.

"Pledge Agreement" means any pledge agreement entered into by any Loan Party or other grantor in favor of Collateral Agent for the benefit of Secured Parties, pursuant to which such Loan Party or other grantor pledges and grants a security interest in the Equity Interests of any of its Subsidiaries or any other Person, together with all instruments, securities, entitlements, rights, and other property described therein, to secure the Secured Obligations, as the same may be amended, restated, amended and restated, supplemented, or otherwise modified from time to time.

"Secured Obligations" means, collectively, all obligations, liabilities, and Indebtedness of every kind of each Loan Party and each other obligor owing to any Secured Party, in each case arising under the Credit Agreement, the other Loan Documents, or any Hedging Agreement or Cash Management Agreement entered into with any Secured Party, including all principal, premium, if any, interest (including interest accruing after the commencement of any insolvency proceeding), fees, expenses, reimbursements, indemnities, damages, and other amounts payable by such Loan Party or other obligor, whether direct or indirect, absolute or contingent, liquidated or unliquidated, now existing or hereafter arising, and all obligations of each Loan Party and each other obligor under any guarantee of any of the foregoing, in each case together with all extensions, renewals, refinancings, replacements, and modifications thereof, whether or not allowed or allowable in any insolvency proceeding.

"Secured Parties" means, collectively, (a) Collateral Agent, (b) each Lender, (c) each Issuing Lender, (d) each Swingline Lender, (e) each Person that is a party to a Hedging Agreement or Cash Management Agreement with any Loan Party or other obligor to the extent such Person is a Lender or an affiliate of a Lender, (f) each other Person that is a party to the Credit Agreement or any other Loan Document and is expressly identified as a "Secured Party" for purposes of the Security Documents, and (g) each assignee, transferee, or successor of any of the foregoing.

"Security Agreement" means the Security Agreement executed and delivered by each Loan Party and each other grantor in favor of Collateral Agent for the benefit of Secured Parties, granting a security interest in and Lien on all personal property of each such Loan Party and grantor to secure the Secured Obligations, as the same may be amended, restated, amended and restated, supplemented, or otherwise modified from time to time.

"Security Documents" means, collectively, the Security Agreement, each Pledge Agreement, each Mortgage, each Intellectual Property Security Agreement, each Control Agreement, any collateral assignment of contracts, licenses, permits, or general intangibles, and all other agreements, instruments, and documents (including any landlord waiver, bailee agreement, estoppel, consent, financing statement, fixture filing, certificate of title, or other similar document) executed and delivered by any Loan Party or other grantor to Collateral Agent for the benefit of Secured Parties, creating, perfecting, confirming, or governing Liens on Collateral to secure the Secured Obligations, as the same may be amended, restated, amended and restated, supplemented, or otherwise modified from time to time.

"Automatic Stay" means the automatic stay or similar injunction arising by operation of applicable Debtor Relief Laws upon the commencement of an Insolvency Proceeding, which stays, enjoins, or prohibits the commencement or continuation of actions, judicial or administrative proceedings, enforcement of judgments, acts to obtain possession of property of the debtor or the debtor's estate, and acts to create, perfect, or enforce liens against property of the debtor or the debtor's estate.

"Bankruptcy Code" means the United States Bankruptcy Code, as amended from time to time, and any successor statute of similar import, together with all rules and regulations promulgated thereunder.

"Bankruptcy Court" means the court or other governmental authority having jurisdiction over an Insolvency Proceeding, including any appellate court having jurisdiction over appeals from or reviews of orders issued by such court in connection with such Insolvency Proceeding.

"Claims Bar Date" means, with respect to any Insolvency Proceeding, the latest date fixed by the court or other governmental authority, trustee, or other applicable official in such Insolvency Proceeding for the filing of proofs of claim or other requests for payment by creditors, as such date may be extended from time to time.

"Creditors' Committee" means, in any Insolvency Proceeding, any official committee of creditors, equity security holders, or other interests appointed, elected, or otherwise constituted pursuant to applicable Debtor Relief Laws, and any other committee of creditors or equity security holders recognized by the court or other governmental authority in such Insolvency Proceeding.

"Debtor Relief Laws" means the Bankruptcy Code and all other liquidation, conservatorship, bankruptcy, assignment for the benefit of creditors, moratorium, rearrangement, receivership, insolvency, reorganization, or similar debtor relief laws of any applicable jurisdiction, in each case as amended and in effect from time to time.

"Discharged" means, with respect to any Indebtedness or other obligation of any Person, that such Indebtedness or other obligation has been irrevocably paid, satisfied, and performed in full in cash or other consideration acceptable to the holder thereof, or has been the subject of a discharge, release, impairment, or other treatment in an Insolvency Proceeding pursuant to a plan of reorganization, liquidation, or other arrangement that has become final, nonappealable, and effective in accordance with applicable Debtor Relief Laws.

"Insolvency Proceeding" means, with respect to any Person, any case or proceeding commenced by or against such Person under any Debtor Relief Law, including any voluntary or involuntary case, any assignment for the benefit of creditors, any composition, extension, or adjustment of debts, any receivership, conservatorship, liquidation, reorganization, or other similar case or proceeding, and any other proceeding for the liquidation, dissolution, or winding up of such Person or the adjustment of its debts.

"Insolvent" means, with respect to any Person, the condition that such Person is unable or admits in writing its inability to pay its debts generally as they become due, or has liabilities, including contingent liabilities, that exceed the fair saleable value of its assets, or has suffered an Order for Relief, or has had an Insolvency Proceeding commenced against it that has not been dismissed or stayed within sixty days.

"Order for Relief" means, with respect to any Insolvency Proceeding, the entry of an order for relief, however denominated, in such Insolvency Proceeding by the court or other governmental authority having jurisdiction thereover.

"Petition Date" means, with respect to any Insolvency Proceeding, the date on which the petition, application, complaint, or other instrument commencing such Insolvency Proceeding is filed with the applicable court or other governmental authority.

"Trustee" means, with respect to any Insolvency Proceeding, any trustee, receiver, conservator, custodian, liquidator, sequestrator, examiner, or other similar official appointed or authorized in such Insolvency Proceeding, and any debtor in possession.

"Benefit Plan" means any employee benefit plan as defined in ERISA, and any other plan, fund, program, policy, or arrangement providing retirement, health, welfare, disability, death, severance, deferred compensation, bonus, incentive, stock option, stock purchase, or other employee benefits, in each case that is maintained, sponsored, contributed to, or required to be contributed to by any Credit Party or any ERISA Affiliate, or with respect to which any Credit Party or any ERISA Affiliate has or could have any liability, whether actual or contingent.

"Environmental Claim" means any claim, notice, demand, request for information, lawsuit, arbitration, administrative proceeding, investigation, or order, whether written or oral, by any governmental authority or any other person, asserting or alleging liability, responsibility, or obligation for pollution, contamination, cleanup, removal, remediation, response, corrective action, natural resource damages, personal injury, property damage, fines, penalties, or injunctive or other equitable relief, in each case arising from or relating to any Environmental Law, any Hazardous Material, any Release, or exposure to Hazardous Materials.

"Environmental Law" means all laws, statutes, ordinances, rules, regulations, codes, orders, judgments, decrees, directives, permits, and other legally enforceable requirements, together with any binding judicial or administrative interpretation thereof, and any common law cause of action or doctrine, in each case of any governmental authority and whether now or hereafter in effect, relating to the protection of the environment, natural resources, or human health and safety or to the management, manufacture, use, processing, handling, storage, treatment, transportation, disposal, containment, remediation, or Release of Hazardous Materials.

"Environmental Permit" means any permit, license, authorization, approval, consent, registration, variance, exemption, or other permission issued, granted, or required under any Environmental Law.

"ERISA" means the Employee Retirement Income Security Act of 1974, as amended from time to time, and any rules or regulations promulgated thereunder, and any successor statute, rules, or regulations.

"ERISA Affiliate" means, with respect to any Person, any trade or business, whether or not incorporated, that together with such Person is treated as a single employer under the applicable provisions of the Code or ERISA relating to controlled groups of entities, trades or businesses, or affiliated service groups, and any other trade or business that is required to be aggregated with such Person under any applicable provision of the Code or ERISA.

"Foreign Benefit Plan" means any employee benefit plan, program, policy, or arrangement, whether or not funded, that is not subject to ERISA and is maintained, sponsored, contributed to, or required to be contributed to by any Credit Party or any of its Subsidiaries for the benefit of employees, former employees, or dependents located outside the United States, including any retirement, pension, severance, termination indemnity, savings, profit sharing, deferred compensation, bonus, insurance, health, welfare, or other employee benefit plan, program, policy, or arrangement, and any plan, program, policy, or arrangement required by applicable law or by any collective

bargaining or other agreement to provide such benefits.

"Hazardous Materials" means any substance, material, waste, pollutant, contaminant, chemical, compound, or mixture that is listed, classified, regulated, or otherwise defined as hazardous, toxic, radioactive, dangerous, deleterious, infectious, or a pollutant or contaminant under any Environmental Law, and includes petroleum and petroleum products, crude oil, natural gas, natural gas liquids, synthetic gas, asbestos and asbestos-containing materials, lead and lead-based paint, polychlorinated biphenyls, per- and polyfluoroalkyl substances, mold, radon, urea formaldehyde, and any other substance or material that is regulated under any Environmental Law.

"Multiemployer Plan" means a multiemployer plan as defined in ERISA to which any Credit Party or any ERISA Affiliate makes, has made, or is obligated to make contributions, or with respect to which any Credit Party or any ERISA Affiliate has or could incur any liability, including any liability arising from being treated as an employer with respect to such plan under ERISA.

"PBGC" means the Pension Benefit Guaranty Corporation, any successor to the Pension Benefit Guaranty Corporation, and any analogous governmental entity under the laws of any foreign jurisdiction with authority over any Foreign Benefit Plan.

"Release" means any releasing, spilling, leaking, pumping, pouring, emitting, emptying, discharging, injecting, escaping, leaching, dumping, disposing, abandoning, or migrating of any Hazardous Material into or upon the environment, including the air, soil, sediment, surface water, groundwater, wetlands, or land, or from or through any building, structure, container, tank, pipeline, well, or other equipment or facility.

"Withdrawal Liability" means all liabilities, obligations, and amounts payable by any Credit Party or any ERISA Affiliate under ERISA with respect to a complete or partial withdrawal from a Multiemployer Plan or with respect to the insolvency, termination, reorganization, or mass withdrawal of a Multiemployer Plan, including any liability for unpaid contributions, withdrawal liability, deemed withdrawal liability, and any related interest, penalties, and costs, whether or not currently due and payable.

"Excluded Taxes" means any of the following Taxes imposed on or with respect to any Tax Indemnitee or required to be withheld or deducted from any payment to any Tax Indemnitee under any Loan Document: (a) Taxes imposed on or measured by net income, however denominated, franchise Taxes, and branch profits Taxes, in each case imposed by the jurisdiction under the laws of which such Tax Indemnitee is organized or in which its principal office is located or, in the case of any Lender, in which its applicable lending office is located, or that are Other Connection Taxes; (b) in the case of any Lender, United States federal withholding Taxes imposed on amounts payable to or for the account of such Lender under any Loan Document pursuant to a law in effect on the date on which such Lender becomes a party to this Agreement or on the date on which such Lender changes its applicable lending office, except to the extent that, immediately before such Lender became a party to this Agreement or changed its applicable lending office, as the case may be, amounts with respect to such Taxes were payable either to the assignor of such Lender or to such Lender; (c) Taxes attributable to the failure of such Tax Indemnitee to comply with any certification, information, documentation, or other reporting requirement, including any requirement under FATCA, if such compliance is required in order to claim an exemption from or reduction in any withholding Tax; and (d) any United States federal withholding Taxes imposed under FATCA.

"FATCA" means Sections one thousand four hundred seventy-one through one thousand four hundred seventy-four of the Internal Revenue Code, as amended from time to time, together with any current or future regulations or official interpretations thereof, any intergovernmental agreement with respect to any of the foregoing, and any law, regulation, or other guidance implementing any such intergovernmental agreement.

"Indemnified Taxes" means all Taxes, other than Excluded Taxes, imposed on or with respect to any payment made by any Loan Party under or in connection with any Loan Document and, to the extent not otherwise described in the immediately preceding portion of this definition, all Other Connection Taxes.

"Internal Revenue Code" means the Internal Revenue Code of one thousand nine hundred eighty-six, as amended from time to time.

"Other Connection Taxes" means, with respect to any Tax Indemnitee, Taxes imposed as a result of a present or former connection between such Tax Indemnitee and the jurisdiction imposing such Taxes, other than a connection arising solely from such Tax Indemnitee having executed, delivered, become a party to, performed its obligations under, received payments under, received or perfected a security interest under, engaged in any other transaction pursuant to, or enforced, any Loan Document, or from the sale or assignment of any interest in any Loan, Commitment, or Loan Document.

"Tax" means any tax, levy, impost, assessment, duty, tariff, charge, fee, deduction, or withholding of any kind imposed by any Taxing Authority, together with any interest, penalties, additions to tax, and additional amounts imposed with respect thereto.

"Tax Claim" means any audit, examination, investigation, claim, demand, assessment, proposed assessment, notice of deficiency, suit, action, arbitration, or other proceeding, dispute, or controversy with respect to any Tax or any Tax Return, whether administrative or judicial, and any assertion by any Taxing Authority of a deficiency, assessment, or adjustment with respect to any Tax.

"Tax Indemnitee" means the Administrative Agent, each Issuing Bank, each Lender, and each other recipient of any payment under any Loan Document, in each case together with each Affiliate, officer, director, employee, agent, and controlling person of any of the foregoing.

"Tax Return" means any return, declaration, report, claim for refund, information return, statement, estimate, or other similar document or filing, including any schedule or attachment thereto and including any amended return, required to be supplied, filed, or submitted to any Taxing Authority in connection with the determination, assessment, collection, or payment of any Tax or the administration of any law or regulation relating to any Tax.

"Taxes" means all present and future taxes, levies, imposts, duties, tariffs, charges, fees, assessments, deductions, withholdings, or other charges of any kind imposed by any Taxing Authority, together with any interest, penalties, fines, additions to tax, and additional amounts applied by any Taxing Authority with respect thereto.

"Taxing Authority" means the Internal Revenue Service and any other governmental or quasi-governmental authority, agency, body, official, or political subdivision, whether domestic or foreign, having jurisdiction to impose, assess, determine, collect, or enforce any Tax.

"U.S. Tax Person" means a "United States person" as defined in the Internal Revenue Code for United States federal income tax purposes.

"Accounting Change" means any change in GAAP or in the application of GAAP, including any change required or permitted by the adoption of a new or revised accounting standard, pronouncement, or interpretive guidance, that is effective after the date of the most recent audited consolidated financial statements of the Company and its Subsidiaries, and any such change shall be applied, for purposes of this Agreement, in the same manner as it is applied in the preparation of the financial statements of the Company and its Subsidiaries.

"Balance Sheet" means the consolidated balance sheet of the Company and its Subsidiaries as of any date, prepared in accordance with GAAP.

"Cash and Cash Equivalents" means, with respect to any Person at any date, cash and cash equivalents of such Person determined on a consolidated basis in accordance with GAAP, including short-term, highly liquid investments that are readily convertible into known amounts of cash and that are subject to an insignificant risk of changes in value, with original maturities of three months or less.

"Consolidated Net Income" means, for any period, the net income (or net loss) of the Company and its Subsidiaries for such period, determined on a consolidated basis in accordance with GAAP, after eliminating all intercompany items and excluding any net income attributable to noncontrolling interests.

"Current Assets" means, as of any date, the current assets of the Company and its Subsidiaries, determined on a consolidated basis in accordance with GAAP.

"Current Liabilities" means, as of any date, the current liabilities of the Company and its Subsidiaries, determined on a consolidated basis in accordance with GAAP.

"Financial Statements" means the consolidated balance sheet, consolidated statement of operations, consolidated statement of cash flows, consolidated statement of changes in shareholders' equity, and related notes of the Company and its Subsidiaries, prepared in accordance with GAAP.

"Fiscal Quarter" means any period of three consecutive months ending on March thirty-first, June thirtieth, September thirtieth, or December thirty-first of a Fiscal Year.

"Fiscal Year" means the twelve-month period ending on December thirty-first of each year.

"GAAP" means generally accepted accounting principles in the United States of America in effect from time to time, applied on a consistent basis and subject to Accounting Changes.

"Total Assets" means, as of any date, the total assets of the Company and its Subsidiaries, determined on a consolidated basis in accordance with GAAP, as set forth on the consolidated balance sheet of the Company and its Subsidiaries as of such date.

"Working Capital" means, as of any date, Current Assets minus Current Liabilities.

"Acquisition" means any transaction or series of related transactions by any Loan Party or any Subsidiary pursuant to which such Person (a) acquires all or substantially all of the assets of any other Person or any business, division, product line or branch of any other Person, (b) acquires all or a majority of the outstanding Capital Stock of any other Person, or (c) merges, consolidates, amalgamates, exchanges shares or otherwise combines with any other Person; in each case, whether for cash, property, the assumption or incurrence of Indebtedness or other liabilities, the issuance of Capital Stock, or any combination thereof.

"Acquisition Consideration" means, with respect to any Acquisition, the aggregate value of all consideration given

or payable by the Loan Parties and their Subsidiaries in connection with such Acquisition, including (a) the amount of cash and the fair market value of any other property or Capital Stock transferred or issued in connection therewith, (b) the principal amount of any Indebtedness assumed, incurred or issued in connection therewith, (c) the amount of any earn-out, purchase price adjustment, seller note, deferred payment obligation or similar contingent or deferred consideration, valued on a fair market value basis at the time of such Acquisition, and (d) all fees, expenses, premiums and commissions paid or payable in connection with such Acquisition; provided that, for purposes of calculating the Available Acquisition Basket, Acquisition Consideration shall be reduced by the amount of any cash or Cash Equivalents acquired in connection with such Acquisition and included in the acquired assets to the extent not otherwise applied to reduce the consideration paid.

"Available Acquisition Basket" means, at any time, an amount equal to the sum of (a) the greater of (x) one hundred fifty million Dollars and (y) twenty percent of Total Assets, (b) the aggregate amount of any Acquisition Consideration previously included in the calculation of the Available Acquisition Basket that has been returned, refunded, recovered or otherwise repaid to the Loan Parties or any Subsidiary in cash or Cash Equivalents, including pursuant to any purchase price adjustment, indemnity claim, earn-out shortfall or similar recovery, and (c) the aggregate principal amount of any Indebtedness or other liabilities previously included in the calculation of the Available Acquisition Basket as assumed or incurred in connection with an Acquisition that has been repaid, discharged, defeased, cancelled or otherwise terminated, in each case to the extent such repayment or other termination was not funded with the proceeds of Indebtedness incurred by a Loan Party or a Subsidiary.

"Basket" means any dollar amount, percentage of Total Assets, or other quantitative or qualitative limitation contained in the Credit Agreement that authorizes any Loan Party or any Subsidiary to take any action or enter into any transaction, or to incur or maintain any Indebtedness, Lien, Investment, Acquisition, Disposition, Restricted Payment or other obligation, without the need for the consent of the Administrative Agent or the Required Lenders or without causing a Default or Event of Default, including any such limitation that is calculated by reference to a formula, a cumulative aggregate amount or an outstanding balance at any time.

"Basket Usage" means, with respect to any Basket at any time, the aggregate amount of capacity under such Basket that is then being utilized or has been consumed, determined as follows: (a) with respect to Indebtedness, the aggregate principal amount of all Indebtedness outstanding that was incurred in reliance on such Basket, (b) with respect to Liens, the aggregate principal amount of all Indebtedness or other obligations secured by Liens incurred in reliance on such Basket, (c) with respect to Investments, the aggregate amount of all Investments made in reliance on such Basket, net of any returns, repayments, distributions, dividends, interest, fees or other amounts received in respect of such Investments and applied to reduce the amount of such Basket pursuant to the Credit Agreement, (d) with respect to Acquisitions, the aggregate Acquisition Consideration of all Acquisitions consummated in reliance on such Basket, net of any amounts returned or recovered as described in the definition of Available Acquisition Basket, and (e) with respect to any other action or transaction, the aggregate amount or value thereof.

"Disposition" means any sale, lease, license, transfer, assignment, conveyance or other disposition of any asset, property, business, division, product line, Capital Stock or other rights, or any issuance of Capital Stock by any Subsidiary, whether by merger, consolidation, amalgamation, voluntary liquidation, dissolution or otherwise;

provided that "Disposition" shall not include (a) any sale, lease, license, transfer, assignment or other disposition of Cash Equivalents in the ordinary course of business, (b) any issuance of Capital Stock by a Loan Party, or (c) any sale, lease, license, transfer, assignment or other disposition of assets by a Loan Party to another Loan Party or by a Subsidiary to a Loan Party or another Subsidiary.

"Permitted Acquisition" means any Acquisition by any Loan Party or any Subsidiary; provided that each of the following conditions is satisfied: (a) the Acquisition is consummated in accordance with the Credit Agreement and all applicable organizational documents, laws, regulations, orders, decrees and judgments; (b) the Acquisition is consensual and has been approved by the board of directors or equivalent governing body of the Person whose Capital Stock or assets are being acquired, and no tender offer, exchange offer or other direct acquisition from the equityholders of such Person shall constitute a Permitted Acquisition unless such offer or acquisition is recommended or approved by such board of directors or equivalent governing body; (c) the business or assets acquired are in, or ancillary to, a Related Business; (d) immediately before and immediately after giving effect to such Acquisition, no Default or Event of Default exists or would result; (e) after giving effect to such Acquisition, the Loan Parties and their Subsidiaries are in pro forma compliance with the financial covenants set forth in Article VI as of the most recent fiscal quarter end for which financial statements have been required to be delivered under the Credit Agreement, recomputed on a pro forma basis as if such Acquisition and any related incurrence of Indebtedness, Liens or Investments had occurred on the first day of the applicable test period; (f) the aggregate Acquisition Consideration for such Acquisition, together with the aggregate Acquisition Consideration for all other Acquisitions consummated in reliance on the Available Acquisition Basket during the period from and including the Closing Date to and including the date of such Acquisition, does not exceed the Available Acquisition Basket at such time; and (g) all consents, approvals, authorizations and filings with any governmental authority or other third party required in connection with such Acquisition have been obtained or made and are in full force and effect.

"Permitted Asset Sale" means any Disposition by any Loan Party or any Subsidiary; provided that (a) such Disposition is made at a price not less than the fair market value of the assets disposed of, (b) at least eighty percent of the consideration received in connection therewith consists of cash or Cash Equivalents, and (c) the proceeds of such Disposition are applied in accordance with the Credit Agreement; provided further that a Disposition may be a Permitted Asset Sale even if the conditions set forth above are not satisfied if such Disposition is expressly permitted by the Credit Agreement without regard to the form or amount of consideration.

"Permitted Investment" means any Investment by any Loan Party or any Subsidiary in (a) Cash Equivalents, (b) accounts receivable, notes receivable, trade credit, advances, deposits or prepayments made in the ordinary course of business, (c) inventory, equipment, real property, leasehold improvements, or other assets used or useful in a Related Business, (d) any Loan Party or any Subsidiary, (e) any joint venture or similar Person whose principal business is a Related Business, (f) any securities or other obligations received in connection with a Permitted Asset Sale or a Permitted Acquisition, or (g) any other Investment permitted under the Credit Agreement, in each case to the extent that, immediately after giving effect to such Investment, no Default or Event of Default exists or would result.

"Permitted Refinancing" means, with respect to any Indebtedness, the refinancing, refunding, renewal, replacement, defeasance or extension of such Indebtedness, in whole or in part, or any modification, supplement, amendment or

waiver of the terms thereof; provided that (a) the principal amount of such refinancing Indebtedness does not exceed the sum of the principal amount of the Indebtedness being refinanced plus the amount of any premiums, make-whole amounts, accrued and unpaid interest, fees, costs and expenses incurred in connection with such refinancing, (b) the maturity date and weighted average life to maturity of such refinancing Indebtedness are not earlier than and no shorter than, respectively, the maturity date and weighted average life to maturity of the Indebtedness being refinanced, (c) the obligors of such refinancing Indebtedness are not changed except to add a Loan Party or a Subsidiary, (d) if the Indebtedness being refinanced was secured, such refinancing Indebtedness is not secured by any assets other than the assets that secured the Indebtedness being refinanced and is not secured by a Lien ranking senior to the Lien securing the Indebtedness being refinanced, and (e) such refinancing is otherwise in compliance with the Credit Agreement.

"Permitted Transaction" means any Acquisition, Investment, Disposition, incurrence of Indebtedness, incurrence of a Lien, Restricted Payment, Sale and Lease-Back Transaction, or other action or transaction that is expressly authorized by the Credit Agreement or that is not prohibited by the Credit Agreement, in each case after giving effect to the applicable conditions, baskets, thresholds and exceptions set forth in the Credit Agreement.

"Sale and Lease-Back Transaction" means any arrangement, whether direct or indirect, with any Person providing for the leasing by any Loan Party or any Subsidiary of any real or personal property that has been or is to be sold or transferred by such Loan Party or such Subsidiary to such Person.

"Administrative Agent" means the Person appointed as administrative agent for the Lenders under this Agreement, together with its permitted successors and assigns in such capacity. The Administrative Agent shall have only those duties and responsibilities expressly set forth in this Agreement and the other Loan Documents to which it is a party and shall be entitled to all rights, protections, exculpations, and indemnities provided to it under this Agreement and such other Loan Documents in its capacity as such.

"Arranger" means each Person identified or appointed as an arranger, lead arranger, joint lead arranger, bookrunner, or joint bookrunner in connection with the syndication of the facilities under this Agreement, together with its permitted successors and assigns, in each case in its capacity as such. No Arranger shall have any duties, obligations, or liabilities under this Agreement or any other Loan Document by reason of being an Arranger.

"Assignee" means any Person that acquires a Commitment or a Loan from an Assigning Lender by execution and delivery of an Assignment and Assumption and that becomes a Lender under this Agreement with respect to such Commitment or Loan, together with its permitted successors and assigns.

"Assigning Lender" means any Lender that transfers all or any portion of its Commitments and Loans to an Assignee by execution and delivery of an Assignment and Assumption.

"Assignment and Assumption" means an assignment and assumption agreement entered into by an Assigning Lender and an Assignee and accepted by the Administrative Agent, in form and substance reasonably acceptable to the Administrative Agent, pursuant to which the Assignee acquires all or any portion of the Assigning Lender's Commitments and Loans and assumes all corresponding obligations of a Lender with respect thereto.

"Co-Agent" means each Person identified as a syndication agent, documentation agent, or in any similar agent or co-agent capacity in this Agreement or in connection with the syndication of the facilities, together with its permitted

successors and assigns, in each case in its capacity as such. No Co-Agent shall have any duties, obligations, or liabilities under this Agreement or any other Loan Document by reason of being a Co-Agent, and each Co-Agent shall be entitled to the same protections and indemnities as those provided to the Administrative Agent under this Agreement to the extent expressly set forth in this Agreement.

"Lender" means any Person that has a Commitment or holds a Loan under this Agreement, including any Person that becomes a party to this Agreement as a Lender on the Closing Date, by execution and delivery of an Assignment and Assumption, or otherwise in accordance with this Agreement, in each case for so long as such Person has any Commitment or holds any Loan, together with its permitted successors and assigns.

"Lender Party" means the Administrative Agent, each Arranger, each Co-Agent, each Lender, and each of the respective directors, officers, employees, agents, advisors, and representatives of the foregoing, in each case in their capacity as such.

"Participant" means a Person that acquires a participation in all or any part of a Lender's Commitments, Loans, or right to reimbursement or other amounts owing under any letter of credit issued or supported under this Agreement, but that is not a Lender, together with its permitted successors and assigns.

"Register" means the register required to be maintained by the Administrative Agent under the provisions of this Agreement relating to assignments, in which the Administrative Agent shall record the name and address and applicable lending office of each Lender and the amount of each Commitment and Loan of each Lender, together with all assignments and assumptions of such Commitments and Loans.

"Revolving Credit Lender" means each Lender that has a Revolving Credit Commitment or holds Revolving Credit Loans, together with its permitted successors and assigns, and includes any Lender that is a party to this Agreement as a revolving credit lender on the Closing Date.

"Term Loan Lender" means each Lender that has a Term Loan Commitment or holds a Term Loan, together with its permitted successors and assigns, and includes any Lender that is a party to this Agreement as a term loan lender on the Closing Date.

"Banking Services" means, collectively, all cash management, treasury management, depository, payment, processing, card, and similar banking services and facilities provided from time to time to any Loan Party or any Subsidiary by a Banking Services Provider, including automated clearing house and wire transfer payment services, controlled disbursement, lockbox, remote deposit capture, sweep account, zero balance account, payroll, direct deposit, account reconciliation, and other treasury management services, credit card, debit card, purchase card, commercial card, stored value card, smart card, and similar card products and services, electronic funds transfer, merchant payment processing, and other payment services, overdraft facilities, daylight overdraft privileges, and other similar credit accommodations, supply chain finance, trade finance, and receivables purchase programs, employee benefit card and related employee payment programs, and any other service or facility of a type customarily provided by banks or financial institutions to corporate borrowers and their subsidiaries in connection with cash management or treasury operations.

"Banking Services Agreement" means any agreement, instrument, or other document entered into by any Loan Party or any Subsidiary with any Banking Services Provider governing the provision of Banking Services, including any

master agreement, service agreement, deposit account agreement, account control agreement, automated clearing house agreement, wire transfer agreement, overdraft agreement, card agreement, and similar agreement, in each case as amended, restated, supplemented, or otherwise modified from time to time.

"Banking Services Obligations" means, without duplication, all obligations, liabilities, and indebtedness of the Loan Parties and their Subsidiaries in respect of Banking Services, whether absolute or contingent, direct or indirect, matured or unmatured, now existing or hereafter arising, including all reimbursement, indemnification, fee, expense, interest, and other payment obligations, all obligations arising under any Banking Services Agreement, and all Cash Management Obligations.

"Banking Services Provider" means any Person that is a Lender or an Affiliate of a Lender and that provides Banking Services to any Loan Party or any Subsidiary, together with its successors and assigns; provided that any Person that ceases to be a Lender or an Affiliate of a Lender shall continue to be a Banking Services Provider with respect to any Banking Services Obligations then outstanding until such Banking Services Obligations have been paid and performed in full.

"Cash Management Bank" means any Banking Services Provider that provides Cash Management Services to any Loan Party or any Subsidiary.

"Cash Management Obligations" means, without duplication, all obligations, liabilities, and indebtedness of the Loan Parties and their Subsidiaries arising in connection with Cash Management Services provided by any Cash Management Bank, whether absolute or contingent, direct or indirect, matured or unmatured, now existing or hereafter arising, including all fees, expenses, reimbursement, indemnification, and other payment obligations in respect thereof.

"Cash Management Services" means any of the following services and facilities provided by a Cash Management Bank to any Loan Party or any Subsidiary: automated clearing house and wire transfer payment services, controlled disbursement, lockbox, remote deposit capture, sweep account, zero balance account, payroll, direct deposit, account reconciliation, and other treasury management services, credit card, debit card, purchase card, commercial card, stored value card, smart card, and similar card products and services, electronic funds transfer, merchant payment processing, and other payment services, overdraft facilities, daylight overdraft privileges, and other similar credit accommodations, employee benefit card and related employee payment programs, supply chain finance, trade finance, and receivables purchase programs, and any other cash management, treasury management, depository, payment, or similar service requested by any Loan Party or any Subsidiary and agreed to by a Cash Management Bank.

"L/C Issuer" means each Person that has agreed to issue Letters of Credit under this Agreement and that is a Lender or an Affiliate of a Lender or is otherwise acceptable to the Administrative Agent and the applicable Loan Party, together with its successors and assigns; provided that no L/C Issuer shall be required to issue, amend, renew, extend, or replace any Letter of Credit if such action would violate any applicable law or any judgment, order, or decree of any governmental authority.

"Letter of Credit" means any letter of credit issued by an L/C Issuer for the account of any Loan Party or any Subsidiary under this Agreement, including any standby letter of credit, commercial letter of credit, documentary

letter of credit, or similar instrument, and any amendment, renewal, extension, increase, or replacement thereof.
"Letter of Credit Disbursement" means any payment or disbursement made by an L/C Issuer pursuant to a drawing under a Letter of Credit, including any payment made by an L/C Issuer upon honor of a demand or drawing under a Letter of Credit.
"Letter of Credit Exposure" means, at any time of determination, the sum, without duplication, of the aggregate maximum amount available to be drawn under all Letters of Credit then outstanding, determined after giving effect to any drawing that has been honored but not yet reimbursed as of such time, plus the aggregate amount of all Letter of Credit Disbursements that have not been reimbursed as of such time.
"Letter of Credit Fees" means, with respect to any Letter of Credit, all letter of credit fees, commissions, and charges from time to time payable by the applicable Loan Party in respect of such Letter of Credit, including participation fees payable to each Lender having a participation in such Letter of Credit in accordance with this Agreement, fronting fees payable to the applicable L/C Issuer in accordance with this Agreement, and issuance, amendment, renewal, extension, negotiation, acceptance, drawing, document examination, and other administrative fees and charges payable to the applicable L/C Issuer or the Administrative Agent in connection with the issuance, administration, or payment of such Letter of Credit.
"Fixtures" means all goods, machinery, equipment, appliances, conveyors, elevators, motors, pumps, compressors, boilers, furnaces, heating, ventilation, air conditioning, plumbing, electrical, lighting, communication, security, fire protection and similar systems and all other articles and items of property of any kind now or hereafter located on, attached to, installed in or used in connection with any Owned Real Property, Leased Real Property or Mortgaged Property, in each case to the extent such articles or items constitute or are intended to constitute fixtures under applicable law, together with all accessions, additions, replacements, repairs, parts, accessories and improvements to any of the foregoing and all proceeds of any of the foregoing.
"Ground Lease" means any lease, sublease, ground rental agreement or other similar agreement pursuant to which the Company or any Subsidiary is the lessee, sublessee or tenant of land that is unimproved or that is improved with buildings, structures or other improvements owned by the lessor or a third party, and pursuant to which the Company or such Subsidiary, as the case may be, is entitled or obligated to construct, install, own, use, maintain, replace and remove buildings, structures or other improvements on or from such land at any time during or after the term of such agreement.
"Leased Real Property" means all Real Property leased, subleased, licensed or otherwise occupied by the Company or any Subsidiary as lessee, sublessee, licensee or occupant, including all leasehold estates, subleasehold estates, licenses, occupancy agreements and other leasehold interests of the Company or such Subsidiary in such Real Property, together with all buildings, structures, improvements, Fixtures and appurtenances now or hereafter located on, attached to, installed in or used in connection with such Real Property and all easements, rights-of-way, privileges, hereditaments and appurtenances relating to such Real Property.
"Leasehold Interest" means, with respect to any Leased Real Property, the right, title and interest of the Company or any Subsidiary, as lessee, sublessee, licensee or occupant, in, to and under the lease, sublease, license or occupancy agreement relating to such Leased Real Property, including without limitation the right to have quiet enjoyment of

such Leased Real Property, the right to use, occupy and possess such Leased Real Property for the full remaining term of such agreement and any renewal or extension terms, all options and rights to renew or extend the term thereof, all options and rights to purchase all or any portion of the related real property or the reversionary interest therein, all rights to receive, use and enjoy all buildings, structures, improvements, Fixtures and other property now or hereafter located on or used in connection with such Leased Real Property, and all proceeds of any of the foregoing.

"Material Real Property" means any Owned Real Property or Leased Real Property having a fair market value in excess of five million Dollars or the loss of which, or the loss of the use of which, would reasonably be expected to have a Material Adverse Effect.

"Mortgage" means any mortgage, deed of trust, deed to secure debt, trust deed, security deed, leasehold mortgage, collateral assignment of leasehold estate, assignment of leases and rents, or other security document or instrument, in each case creating, evidencing or perfecting a Lien on any Mortgaged Property in favor of the Administrative Agent for the benefit of the Secured Parties and otherwise in form and substance reasonably satisfactory to the Administrative Agent, together with all amendments, modifications, renewals, replacements, extensions, supplements and consolidations of any of the foregoing.

"Mortgaged Property" means each parcel of Owned Real Property and each Leasehold Interest in Leased Real Property, in each case together with all rights, privileges, easements, appurtenances, buildings, structures, improvements and Fixtures relating thereto, that is or is required to be subject to a Mortgage in accordance with the Credit Agreement.

"Owned Real Property" means all Real Property owned in fee simple by the Company or any Subsidiary, including all buildings, structures, improvements and Fixtures now or hereafter located on, attached to, installed in or used in connection with such Real Property and all easements, rights-of-way, privileges, hereditaments and appurtenances relating to such Real Property.

"Real Property" means all right, title and interest of the Company and its Subsidiaries in and to real property, whether now owned or hereafter acquired, including all fee estates, leasehold estates, subleasehold estates, licenses, easements, rights-of-way, options, privileges and other rights and interests in land, and all buildings, structures, improvements and Fixtures now or hereafter located on, attached to, installed in or used in connection with such real property, and all hereditaments and appurtenances belonging or appertaining to any of the foregoing.

"Survey" means a survey of any Owned Real Property or Leased Real Property that is to be subject to a Mortgage, prepared by a licensed land surveyor in accordance with the then-current Standards of Practice for ALTA/NSPS Land Title Surveys, certified to the Administrative Agent, the Title Company and the Secured Parties, and otherwise in form and substance reasonably satisfactory to the Administrative Agent and the Title Company.

"Title Company" means any title insurance company that is reasonably satisfactory to the Administrative Agent, is duly organized, validly existing and authorized to do business and issue title insurance policies in the state or commonwealth in which the applicable Mortgaged Property is located, and has a combined capital and surplus of not less than one hundred million Dollars as determined from its most recent published annual financial statements.

"Title Policy" means a mortgagee title insurance policy, or a leasehold mortgagee title insurance policy in the case of

any Mortgaged Property that is Leased Real Property, issued by a Title Company with respect to any Mortgaged Property for the benefit of the Administrative Agent and the Secured Parties, in form and substance reasonably satisfactory to the Administrative Agent, which policy shall affirmatively provide that the Lien of the applicable Mortgage on such Mortgaged Property is a valid, enforceable and first priority Lien, subject only to Permitted Liens and such other exceptions as are reasonably acceptable to the Administrative Agent, and shall include such endorsements, affirmative coverages and reinsurance as the Administrative Agent may reasonably request.

"Intellectual Property" means all rights, interests and protections in and to every patent, patent application, invention, trademark, service mark, trade name, brand name, logo, trade dress, domain name, copyright, original work of authorship, trade secret, confidential information, software, source code, object code, database, data set, and any other form of intellectual property or intangible proprietary right, together with all registrations, applications, renewals, extensions, reissues, divisions, continuations, continuations-in-part, and goodwill associated with any of the foregoing.

"Registered Intellectual Property" means all Intellectual Property that is the subject of a registration, application for registration, or other filing with any governmental authority, including patents, utility models, trademarks, service marks, copyrights, and domain names.

"Technology" means all technical and computer-related knowledge, know-how, inventions, discoveries, improvements, algorithms, processes, methods, formulae, data, databases, technical information, and other proprietary or non-proprietary information, whether patentable or not, used in or necessary for the development, manufacturing, operation, or maintenance of any product, service, or system.

"Software" means any computer program, operating system, middleware, firmware, application, or subroutine, including all source code, object code, assembly code, executable instructions, and related documentation, in any form or medium.

"Source Code" means the human-readable form of any Software, including any annotations, comments, and procedural or functional descriptions, that is intended to be compiled or interpreted into executable form.

"Object Code" means the machine-readable form of any Software, including any compiled, assembled, or interpreted executable code, bytecode, or encrypted or protected form thereof.

"Open Source License" means any license or distribution arrangement for Software that requires, as a condition of use, modification, or distribution, that such Software or any portion thereof be disclosed or distributed in source code form, be made available at no charge, or be licensed for the purpose of making derivative works, including without limitation any GNU General Public License, GNU Lesser General Public License, Apache License, Berkeley Software Distribution License, or any other license meeting the Open Source Definition published by the Open Source Initiative.

"Trade Secret" means any information, including but not limited to a formula, pattern, compilation, program, device, method, technique, or process, that derives independent economic value, actual or potential, from not being generally known to, and not being readily ascertainable by proper means by, other persons who can obtain economic value from its disclosure or use, and that is the subject of efforts that are reasonable under the circumstances to maintain its secrecy.

"Personal Data" means any information relating to an identified or identifiable natural person, as well as any information that is associated with such a person, including but not limited to name, address, telephone number, email address, account identifier, government identification number, and any other information that is defined as personal data, personally identifiable information, or personal information under any applicable privacy or data protection law, and any data breach notification law arising therefrom.

"Cybersecurity Incident" means any actual or suspected unauthorized access, intrusion, disruption, degradation, denial of service, ransomware attack, or other compromise of any Information Technology System or any data stored, processed, or transmitted thereby, including any event that could reasonably be expected to result in a loss, corruption, unauthorized disclosure, or exfiltration of Personal Data or any confidential business information, or that triggers any notification or reporting obligation to any governmental authority or any other person under any applicable law.

"Insurance" means, with respect to any Person, all insurance policies, binders, cover notes and other agreements or arrangements for insurance or risk transfer, including property, casualty, general liability, automobile liability, workers' compensation, employer's liability, business interruption, extra expense, crime, fiduciary liability, cyber, pollution, and umbrella or excess liability coverages, maintained by or for the benefit of such Person or any of its Subsidiaries, as in effect from time to time, together with any endorsements, riders, renewals, replacements, substitutions, extensions, and upgrades thereof.

"Insurance Requirements" means, with respect to any Credit Party or any of its Subsidiaries, all terms and conditions of the insurance policies required to be maintained under the Credit Agreement, all requirements of the insurers issuing such policies, all requirements of any Governmental Authority having jurisdiction over such Person or its assets or operations with respect to insurance, and all contractual requirements binding on such Person relating to insurance, including any requirements as to minimum financial strength ratings of insurers, additional insured status, loss payee or mortgagee status, waiver of subrogation, notice of cancellation, or other protective provisions.

"Insurance Proceeds" means all amounts received or receivable in respect of any insured loss, casualty, damage, destruction, business interruption, or other event under any Insurance policy, including all payments, proceeds, and recoveries received under any Business Interruption Insurance, net of any costs and expenses incurred in the collection thereof and any premiums, deductibles, self-insured retentions, adjustable premiums, or retrospective premiums payable in connection therewith, but excluding any amounts paid directly to a third party for repair, replacement, or restoration.

"Business Interruption Insurance" means any Insurance policy or coverage providing protection against loss of earnings, extra expense, contingent business interruption, rental value, tuition or fee loss, ingress or egress, civil authority, utility service interruption, or other similar loss of income or additional expense arising from or related to a Casualty Event or other interruption of operations.

"Casualty Event" means any loss of, damage to, or destruction of or to, any property or asset of any Credit Party or any Subsidiary, including any contamination, pollution, or environmental condition giving rise to a claim, in each case that results in or could reasonably be expected to result in the receipt of Insurance Proceeds.

"Condemnation Event" means any taking of all or any part of any property or asset of any Credit Party or any

Subsidiary, or any rights in respect thereof, by or on behalf of any Governmental Authority, or any sale or other disposition of any property or asset in lieu of or under threat of such taking, whether by eminent domain, condemnation, expropriation, confiscation, nationalization, seizure, or similar proceeding, together with any proceeds thereof.

"Loss Event" means any Casualty Event or Condemnation Event.

"Replacement Value" means, with respect to any asset, the estimated cost to repair or replace such asset with a like-kind asset of equivalent capacity and functionality in accordance with then-current building codes, standards, and Insurance Requirements, as determined in good faith by the Borrower, without deduction for physical depreciation.

"Risk Retention" means any deductible, self-insured retention, coinsurance, uninsured or underinsured portion, or other amount of loss or liability retained, assumed, or borne by any Person, or by any captive insurer or other affiliate of such Person, under or in connection with any Insurance policy or any program of Self-Insurance.

"Self-Insurance" means any program or arrangement pursuant to which any Credit Party or any Subsidiary retains, assumes, or bears the economic risk of loss or liability with respect to any risk or peril, whether through a captive insurance company, a deductible or self-insured retention, a pooling arrangement, a risk retention group, or otherwise.

"Insurance Consultant" means a nationally recognized independent insurance broker, consultant, or risk management advisor selected by the Borrower and reasonably acceptable to the Administrative Agent, which broker, consultant, or advisor shall have substantial experience advising companies of similar size and industry as the Borrower with respect to property and casualty insurance, Business Interruption Insurance, liability insurance, and other insurance coverages customarily maintained by companies engaged in the Borrower's industry.

"Asset Sale" means any sale, transfer, lease, assignment, conveyance or other disposition (including by way of a merger, consolidation, or sale and leaseback transaction) by any Loan Party or any Subsidiary of any asset of any Loan Party or any Subsidiary, including any Equity Interests of any Subsidiary, whether in one transaction or a series of related transactions, other than (a) any sale, transfer, lease, assignment, conveyance or other disposition of inventory, accounts receivable, cash, Cash Equivalents or other current assets in the ordinary course of business, (b) any sale, transfer, lease, assignment, conveyance or other disposition of obsolete, damaged, worn-out, defective, surplus or scrap assets, (c) any sale, transfer, lease, assignment, conveyance or other disposition of assets by any Loan Party or any Subsidiary to any other Loan Party or any Subsidiary, (d) any sale, transfer, lease, assignment, conveyance or other disposition of assets in connection with a foreclosure, deed in lieu of foreclosure, termination of a lease, or other realization upon any Lien or security interest, (e) any issuance or sale of Equity Interests of any Subsidiary to any Loan Party or any Subsidiary, and (f) any sale, transfer, lease, assignment, conveyance or other disposition of assets to the extent financed by or exchanged for replacement assets to be used in the same or a related line of business.

"Asset Sale Offer" means an offer made by the Borrower to all Lenders on a pro rata basis to prepay or repay, as applicable, the Loans, to reduce the Commitments, and to cash collateralize the Letter of Credit Obligations, in each case with Asset Sale Proceeds, in accordance with the mandatory prepayment provisions of this Agreement, at a price equal to one hundred percent of the principal amount of the Loans or Commitments being prepaid or reduced,

plus, in the case of Loans, accrued and unpaid interest and fees to the date of such prepayment.

"Asset Sale Proceeds" means, with respect to any Asset Sale, the aggregate cash and Cash Equivalents received by any Loan Party or any Subsidiary in connection with such Asset Sale, including any cash and Cash Equivalents received in respect of any deferred purchase price, earn-out, milestone payment, escrow release or other contingent payment in connection with such Asset Sale, minus, to the extent not otherwise deducted in the calculation of such cash and Cash Equivalents and to the extent directly attributable to such Asset Sale, (a) reasonable and customary out-of-pocket fees, commissions, costs, expenses and disbursements paid or payable to third parties other than any Affiliate, (b) amounts required to be paid to any Governmental Authority in respect of Taxes, fees, charges, assessments and other governmental charges arising as a result of such Asset Sale, including estimated Taxes, (c) amounts required to be applied to repay Indebtedness of any Loan Party or any Subsidiary to the extent secured by a Lien on the assets subject to such Asset Sale and actually repaid with such proceeds, (d) amounts payable to any holder of minority Equity Interests in any Subsidiary in respect of such Asset Sale, and (e) a reasonable reserve for purchase price adjustments, indemnification obligations, earn-out or milestone obligations and other post-closing obligations or adjustments in respect of such Asset Sale; provided that, upon final determination or resolution of any such adjustment or obligation, any portion of such reserve not then required to satisfy such adjustment or obligation shall constitute Asset Sale Proceeds on the date of such final determination or resolution. For the avoidance of doubt, any noncash consideration received in connection with an Asset Sale shall not constitute Asset Sale Proceeds unless and until such noncash consideration is converted into or exchanged for cash or Cash Equivalents, and the amount of cash or Cash Equivalents received upon such conversion or exchange shall constitute Asset Sale Proceeds at the time of receipt.

"Change of Control" means the occurrence of any of the following: (a) the Permitted Holders shall cease to own, directly or indirectly, in the aggregate, Equity Interests of the Borrower representing more than fifty percent of the total ordinary voting power of all outstanding classes of Equity Interests of the Borrower entitled to vote generally in the election of directors; (b) any Person or group of Persons, other than the Permitted Holders, shall acquire beneficial ownership, directly or indirectly, of Equity Interests of the Borrower representing more than thirty-five percent of the total ordinary voting power of all outstanding classes of Equity Interests of the Borrower entitled to vote generally in the election of directors; (c) during any period of twenty-four consecutive months, individuals who at the beginning of such period constituted the board of directors or other equivalent governing body of the Borrower, together with any new directors whose election or nomination for election was approved by at least a majority of the directors then still in office who were either directors at the beginning of such period or whose election or nomination for election was previously so approved, shall cease to constitute a majority of the board of directors or other equivalent governing body of the Borrower; (d) any Person or group of Persons, other than the Permitted Holders, shall have the right or power, by contract, arrangement, understanding or otherwise, to elect or designate a majority of the board of directors or other equivalent governing body of the Borrower or to direct or cause the direction of the management and policies of the Borrower; (e) the Borrower shall cease to own, directly or indirectly, and control all of the Equity Interests of each of its Subsidiaries that are Loan Parties, other than sales or dispositions of such Equity Interests expressly permitted by this Agreement; (f) any change of control or similar

event or condition set forth in any indenture, note purchase agreement, credit agreement or other agreement or instrument governing any Material Indebtedness of the Borrower or any Subsidiary shall occur; and (g) the Borrower and its Subsidiaries, taken as a whole, sell, lease, transfer, convey, assign or otherwise dispose of all or substantially all of their assets, in one or a series of related transactions, other than to a Loan Party or a Subsidiary.

"Change of Control Offer" means an offer made by the Borrower to all Lenders on a pro rata basis, following any Change of Control, to prepay all outstanding Term Loans at the Change of Control Purchase Price, to repay all outstanding Revolving Loans at the Change of Control Purchase Price, to terminate the Commitments, and to cash collateralize all Letter of Credit Obligations, in accordance with the terms of this Agreement, which offer may be conditioned upon the substantially concurrent consummation of the transaction or event giving rise to such Change of Control.

"Change of Control Payment Date" means the date designated by the Borrower in a Change of Control Offer for the prepayment of Loans and the cash collateralization of Letter of Credit Obligations in accordance with such offer, which date shall be no earlier than the fifth Business Day after the delivery of such Change of Control Offer and no later than the thirtieth Business Day after the delivery of such Change of Control Offer.

"Change of Control Purchase Price" means, with respect to any Loan, an amount equal to one hundred percent of the outstanding principal amount of such Loan, together with accrued and unpaid interest, fees and all other amounts payable under the Loan Documents in respect of such Loan and any premium, breakage or other costs required to be paid in connection with such prepayment.

"Excess Proceeds" means, with respect to any Asset Sale, the Asset Sale Proceeds received in connection with such Asset Sale that are not reinvested in assets used or useful in the same or a related line of business as the business of the Borrower and its Subsidiaries or subject to a binding commitment to be so reinvested, in each case within the Reinvestment Period and as described in a Reinvestment Notice.

"Permitted Holders" means (a) the Sponsor, (b) any Affiliate of the Sponsor, (c) any investment fund, partnership, co-investment vehicle or other entity whose investments are managed or advised by the Sponsor or any Affiliate of the Sponsor, and (d) any group, as such term is used in the Securities Exchange Act of 1934, as amended, that consists solely of any combination of the foregoing.

"Reinvestment Notice" means a written notice delivered by the Borrower to the Administrative Agent no later than ten Business Days prior to the expiration of the Reinvestment Period, stating the intent of the Borrower and its Subsidiaries to reinvest all or a specified portion of Asset Sale Proceeds in assets used or useful in the business of the Borrower and its Subsidiaries, describing such proposed reinvestment in reasonable detail and certifying that no Default or Event of Default has occurred and is continuing or would result from such reinvestment.

"Reinvestment Period" means, with respect to any Asset Sale, the period commencing on the date of such Asset Sale and ending on the date that is twelve months after such date; provided that, if the Borrower shall have delivered a Reinvestment Notice and entered into a binding commitment to reinvest any Asset Sale Proceeds, the Reinvestment Period with respect to the Asset Sale Proceeds covered by such Reinvestment Notice shall be extended until the date that is eighteen months after the date of such Asset Sale.

For purposes of this Credit Agreement, the following terms have the meanings specified below, unless the context

otherwise requires.

(a) "Guarantee" means, with respect to any Person, any obligation of such Person guaranteeing, assuring, or providing security for any obligation of any other Person, whether direct or indirect, absolute or contingent, now or hereafter existing, including any obligation of such Person to purchase any such obligation or any property, asset, or service comprising such obligation, to advance or supply funds for the payment or performance of such obligation, to maintain the solvency, working capital, or any balance sheet or other financial condition of such other Person, or to make any payment to such other Person if such other Person fails to pay or perform any such obligation, in each case whether or not such obligation is evidenced by a promissory note, note, bond, debenture, or other instrument.

(b) "Guarantee Obligations" means, with respect to any Guarantor, all obligations and liabilities of such Guarantor under the Loan Documents, including under any Guarantee executed by such Guarantor, and all obligations and liabilities of such Guarantor to pay or perform the guaranteed obligations when due, whether at stated maturity, by acceleration, or otherwise, and all fees, expenses, indemnification obligations, and other amounts payable by such Guarantor under such Loan Documents, together with all extensions, renewals, replacements, refinancings, and amendments thereof.

(c) "Guaranteed Parties" means the Administrative Agent, the Collateral Agent, each Issuing Bank, each Swingline Lender, each Lender, each Secured Party, and each other holder of any Obligation, and each of their respective successors, assigns, and permitted transferees.

(d) "Guarantor" means each Person that has executed and delivered a Guarantee, any joinder or supplement thereto, or any other guaranty instrument, in each case in favor of the Administrative Agent for the benefit of the Secured Parties, including each Subsidiary of the Borrower that is a party to the Guarantee and Collateral Agreement, and each other Person that becomes a guarantor after the Closing Date, in each case until such time as such Person's Guarantee Obligations have been irrevocably paid in full and discharged or released in accordance with the Credit Agreement.

(e) "Intercompany Claims" means any claim, demand, cause of action, debt, liability, or obligation of any Obligor against any other Obligor or any Subsidiary of any Obligor, whether now or hereafter existing, arising out of or relating to any intercompany loan, advance, investment, contribution, distribution, or other extension of credit, including any intercompany note, and any claim for contribution, subrogation, reimbursement, or indemnification arising from any payment made by any Guarantor under its Guarantee, but excluding any obligation arising under this Credit Agreement or any other Loan Document.

(f) "Intercompany Subordination" means, with respect to each Obligor, that all Intercompany Claims held by such Obligor against the Borrower or any other Obligor are subordinated, in right of payment and in lien priority, to the prior payment in full of the Senior Indebtedness, and that no payment, distribution, or other transfer of value in respect of any Intercompany Claim shall be made or accepted by any Obligor at any time after the occurrence and during the continuance of any Event of Default, except to the extent expressly permitted by the Administrative Agent or the Guarantee and Collateral Agreement.

(g) "Payment Blockage Period" means, with respect to any Subordinated Indebtedness, the period beginning on the date the holders of such Subordinated Indebtedness receive written notice from the Administrative Agent that an

Event of Default has occurred and is continuing and ending on the date on which the earliest of the following occurs: such Event of Default has been cured or waived in accordance with the Credit Agreement, the Standstill Period with respect to such Subordinated Indebtedness has expired, or the holders of such Subordinated Indebtedness are entitled to receive payments in respect of such Subordinated Indebtedness in accordance with the terms of the applicable Subordination Agreement; provided, however, that no Payment Blockage Period may extend for more than one hundred eighty days in the aggregate during any period of three hundred sixty consecutive days unless the applicable Subordination Agreement provides otherwise.

(h) "Senior Indebtedness" means, with respect to any Person, all indebtedness, liabilities, and obligations of such Person to the Secured Parties under the Loan Documents and any interest rate protection agreement, currency exchange agreement, or commodity hedging agreement entered into with any Secured Party in connection with this Credit Agreement, whether now or hereafter existing, whether direct or indirect, absolute or contingent, matured or unmatured, liquidated or unliquidated, and whether for principal, premium, interest, fees, expenses, reimbursement obligations, indemnities, or otherwise, in each case until such indebtedness, liabilities, and obligations have been irrevocably paid in full and all commitments under the Loan Documents have been terminated.

(i) "Standstill Period" means, with respect to any Subordinated Indebtedness, the period beginning on the date the holders of such Subordinated Indebtedness deliver to the Administrative Agent a written notice of their intention to declare an acceleration, to commence any enforcement action or proceeding, or to exercise any other remedy with respect to such Subordinated Indebtedness and ending on the earlier of the date that is one hundred fifty days after the date such notice is delivered and the date on which such acceleration, enforcement action, or other remedy is permitted under the applicable Subordination Agreement; provided, however, that no Standstill Period shall continue after the Senior Indebtedness has been irrevocably paid in full and all commitments under the Loan Documents have been terminated.

(j) "Subordinated Indebtedness" means any Indebtedness of the Borrower or any Guarantor, other than the Obligations, that is subordinated in right of payment to the prior payment in full of the Senior Indebtedness and, if secured by any Lien on the Collateral, is subject to an intercreditor agreement or other Subordination Agreement that establishes the Liens on the Collateral securing such Indebtedness as junior and subordinate to the Liens on the Collateral securing the Senior Indebtedness, in form and substance reasonably satisfactory to the Administrative Agent.

(k) "Subordination Agreement" means any agreement, instrument, or document, including any intercreditor agreement, entered into by the holders of any Indebtedness of the Borrower or any Guarantor, other than the Obligations, the Borrower or such Guarantor, and the Administrative Agent for the benefit of the Secured Parties, that establishes the relative rights and priorities of the holders of such Indebtedness and the Secured Parties, including provisions governing the order and conditions of payment, the delivery of notices and standstill obligations, the exercise of remedies, the application of proceeds, and the release and termination of Liens, in form and substance reasonably satisfactory to the Administrative Agent.

(l) "Subrogation and Contribution Rights" means, with respect to any Guarantor, all rights of such Guarantor under applicable law or under any Guarantee to be subrogated to the rights of the Secured Parties and to receive

contribution, reimbursement, or indemnification from the Borrower or any other Obligor, in each case upon payment by such Guarantor of any amount under its Guarantee; provided, however, that all such rights are subordinate to the prior payment in full of all Senior Indebtedness and no such right shall be asserted or exercised by such Guarantor until the Senior Indebtedness has been irrevocably paid in full and all commitments under the Loan Documents have been terminated.

"Acceptable Electronic Signature" means an electronic sound, symbol, or process attached to or logically associated with a record and executed or adopted by a Person with the intent to sign the record, including a facsimile signature, a scanned signature, or a signature transmitted by electronic mail, but excluding any signature made using a digital authentication technology unless such technology has been approved in writing by the Administrative Agent.

"Address for Notices" means, with respect to any Person, the street address, facsimile number, electronic mail address, and, if applicable, account numbers and other payment instructions and contact details most recently provided by such Person to the Administrative Agent in writing or, in the case of any Lender, in its Administrative Questionnaire, and with respect to the Administrative Agent, the street address, facsimile number, electronic mail address, and, if applicable, account numbers and other payment instructions and contact details most recently provided by the Administrative Agent to the Loan Parties and the Lenders in writing.

"Administrative Questionnaire" means an administrative questionnaire in a form supplied by the Administrative Agent, executed and delivered to the Administrative Agent by each Lender, providing such Lender's address for notices, contact persons, wire transfer instructions, payment instructions, and such other administrative information as the Administrative Agent may reasonably request.

"Approved Electronic Platform" means an electronic platform designated by the Administrative Agent in writing to the Loan Parties and the Lenders for the posting or exchange of Communications, including any internet, intranet, extranet, cloud, portal, application, or other comparable electronic system, and any successor or replacement electronic platform so designated.

"Authorized Representative" means, with respect to any Person, any officer, director, employee, attorney, financial advisor, consultant, or other representative of such Person designated by such Person to the Administrative Agent in a written notice, and, with respect to each Loan Party, any other Person designated in writing by such Loan Party to the Administrative Agent as authorized to execute or deliver Loan Documents or Communications on behalf of such Loan Party.

"Communication" means any notice, request, instruction, direction, certificate, report, statement, disclosure, information, consent, waiver, approval, election, designation, amendment, supplement, or other communication that is delivered or required to be delivered by or on behalf of any Loan Party, the Administrative Agent, or any Lender, in each case under, in connection with, or in contemplation of the Credit Agreement or any other Loan Document, whether in writing, by Electronic Communication, or otherwise.

"Electronic Communication" means any communication transmitted by electronic mail, facsimile, mobile telephone text message, through an Approved Electronic Platform, or by any other comparable electronic medium.

"Notice Date" means, with respect to any Communication, the date on which such Communication is actually received by the intended recipient, as determined in accordance with the notice provisions of the Credit Agreement,

or, if such Communication is required to be delivered by a specific date, the earlier of the date actually received and the date deemed received under such notice provisions.

"Notice of Default" means a written Communication from the Administrative Agent or any Lender to the Borrower specifying that a Default or an Event of Default has occurred and is continuing and describing in reasonable detail the nature and existence of such Default or Event of Default.

"Public Lender" means any Lender that has notified the Administrative Agent and the Borrower in writing that its personnel who may view materials posted on an Approved Electronic Platform do not wish to receive material non-public information with respect to the Borrower or its subsidiaries.

For purposes of this Agreement, the following terms have the meanings specified below:

"Concession" means any right, privilege, franchise, license, or authorization granted by a Governmental Authority to own, construct, develop, operate, maintain, manage, finance, or provide any asset, facility, service, or activity that is owned, controlled, regulated, or sponsored by such Governmental Authority, whether pursuant to a concession agreement, a public-private partnership agreement, a lease, a license, or any similar arrangement, and includes all related permits, approvals, agreements, easements, rights of way, and other rights.

"Governmental Approval" means any action, authorization, consent, approval, license, permit, registration, accreditation, certification, designation, franchise, concession, exemption, waiver, variance, filing, declaration, notice, or other authorization or permission of, from, or by any Governmental Authority, including any zoning, land use, planning, building, environmental, health, safety, fire, sanitation, utility, energy, telecommunications, transportation, aviation, maritime, or other regulatory approval or permit, and any renewal, extension, modification, amendment, supplement, or transfer of any of the foregoing, and any application, petition, or other request for any of the foregoing.

"Governmental Authority" means the government of the United States of America, any state, commonwealth, territory, or possession thereof, the District of Columbia, and any foreign, international, or supranational government or governmental authority, and any political subdivision of any of the foregoing, and any agency, authority, department, commission, board, bureau, court, tribunal, central bank, or other instrumentality of any of the foregoing, in each case whether existing or hereafter constituted, and any entity, including any self-regulatory organization, exercising executive, legislative, judicial, taxing, regulatory, administrative, or other governmental authority or function, and any entity owned, controlled, or sponsored by any government or governmental or regulatory body.

"Governmental Order" means any order, writ, judgment, injunction, decree, ruling, award, determination, or directive of, or entered into with, any Governmental Authority, whether temporary, preliminary, or permanent.

"License" means any license, sublicense, franchise, concession, easement, right of way, or other right or permission granted by any Person, including any Governmental Authority, to use, occupy, operate, maintain, develop, improve, exploit, sell, market, distribute, manufacture, or otherwise enjoy any asset, facility, property, real estate, technology, or other right, or to conduct any business, activity, or operation, whether granted pursuant to a written or oral agreement, a statute, rule, or regulation, an administrative order, or any other act of a Governmental Authority.

"Licensed Intellectual Property" means all intellectual property and proprietary rights that are owned by any Person

other than the Borrower or any Subsidiary and are used or held for use by the Borrower or any Subsidiary under a License, including patents, patent applications, copyrights, trademark and service mark rights, trade names, domain names, trade secrets, know-how, databases, software, and all registrations and applications relating to any of the foregoing.

"Licensing Agreement" means any agreement, contract, arrangement, or understanding, whether written or oral, pursuant to which a Person grants, transfers, or makes available a License, or agrees to grant, transfer, or make available a License, to another Person, together with all amendments, modifications, renewals, extensions, supplements, and assignments thereof.

"Material Permit" means any Permit the failure to maintain in full force and effect, or the suspension, revocation, denial, nonrenewal, or material adverse modification of which, would reasonably be expected to have a Material Adverse Effect.

"Permit" means any license, permit, certificate, certification, authorization, approval, consent, registration, filing, exemption, waiver, variance, or other permission or approval by or from any Governmental Authority or any third party acting on behalf of a Governmental Authority, required under any applicable law, rule, regulation, ordinance, code, order, judgment, injunction, decree, or other governmental requirement, for the ownership, construction, commissioning, operation, maintenance, repair, use, or closure of any asset or facility or the conduct of any business or activity by the Borrower or any Subsidiary.

"Regulatory Approval" means any approval, authorization, consent, waiver, exemption, or other permission of, or any registration, declaration, filing, or notice to, any Governmental Authority, and the expiration or earlier termination of any applicable waiting period, in each case required in connection with the execution, delivery, or performance of any Loan Document or the consummation of any transaction contemplated by any Loan Document, including the making of any Loan, the issuance, extension, or renewal of any Letter of Credit, or the exercise by the Administrative Agent or any Secured Party of any right or remedy under any Loan Document.

"Required Governmental Approvals" means, collectively, all Governmental Approvals and all other approvals, authorizations, consents, waivers, exemptions, registrations, declarations, filings, notices, and expirations or terminations of waiting periods that are required, after giving effect to any applicable waiting periods, to authorize or make lawful, and to ensure the legality, validity, binding effect, and enforceability of, the execution, delivery, and performance by each Loan Party of each Loan Document to which such Loan Party is a party, the borrowings, issuances, and other extensions of credit and transactions thereunder, and the perfection and priority of all Liens purported to be created under the Loan Documents.

"Alternate Currency" means, at any time, any currency other than Dollars that is a lawful currency of a member state of the European Union, the United Kingdom, Japan, or Switzerland, that is freely transferable and freely convertible into Dollars in the international foreign exchange market, and that is acceptable to the Administrative Agent and, to the extent such currency is to be used to fund, repay, or prepay any Loan, to each Lender participating in such Loan, or, to the extent such currency is to be used in connection with any Letter of Credit, to the applicable Issuing Bank, in each case as determined by the Administrative Agent in its reasonable discretion.

"Currency Valuation Date" means the last Business Day of each calendar month, each Business Day on which the

Administrative Agent determines in its reasonable discretion that a revaluation of the Equivalent Amounts of outstanding Loans or Letter of Credit Outstandings denominated in an Alternate Currency is necessary or appropriate for any purpose under this Agreement, and each Business Day on which any Borrowing, prepayment, repayment, or issuance in an Alternate Currency is made or requested, to the extent such revaluation is required to determine the Equivalent Amount of such transaction in Dollars.

"Dollars" means the lawful currency of the United States of America.

"Equivalent Amount" means, with respect to an amount denominated in one currency, the amount of any other currency into which such first amount is converted for purposes of this Agreement, determined by the Administrative Agent using the Exchange Rate at the time of determination on the relevant Currency Valuation Date or, if no such Currency Valuation Date occurs, on the date such determination is made.

"Exchange Rate" means, for any currency on any date, the rate at which such currency may be exchanged into Dollars or another currency, as applicable, as determined by the Administrative Agent in its reasonable discretion by reference to the spot rate for such currency quoted on such screen or service of a recognized financial information vendor as the Administrative Agent may select, or, if no such screen or service is available, as determined by the Administrative Agent in consultation with the Borrower using such other publicly available reputable source as the Administrative Agent may reasonably select; provided that, for purposes of determining any amount payable by a Loan Party in a currency other than the Obligation Currency, the Exchange Rate shall be determined as of the date the relevant payment is due and, if such payment is not made when due, as of the date actually paid or as of the date of judgment, as the case may be.

"Obligation Currency" means, with respect to any amount payable by any Loan Party under any Loan Document, the currency in which such amount is denominated or, if such amount is not expressed in a particular currency, the currency in which such amount is required to be paid under the applicable Loan Document; provided, however, that if such amount is denominated in an Alternate Currency, the Obligation Currency is such Alternate Currency.

"Payment Currency" means, with respect to any payment to be made by or to the Administrative Agent, any Issuing Bank, or any Lender under any Loan Document, the currency in which such payment is to be made as determined in accordance with this Agreement and the applicable notice, request, or other provision of this Agreement; if such payment is required to be made in an Alternate Currency, the Payment Currency is such Alternate Currency, and if such payment is required to be made in Dollars, the Payment Currency is Dollars.

"Payment Office" means the office or offices of the Administrative Agent designated as its payment office for the receipt of funds and the making of payments under this Agreement, initially the office of the Administrative Agent at its address set forth in this Agreement, or such other office as the Administrative Agent may from time to time designate by written notice to the Borrower and each Lender.

"Valuation Time" means, for any currency conversion, eleven o'clock a.m. London time on the applicable Currency Valuation Date, or such other time as the Administrative Agent may reasonably select for the determination of the Exchange Rate in connection with any particular transaction.

"Value Date" means, with respect to any payment in an Alternate Currency, the date on which such payment is required to be made available to the recipient in such Alternate Currency in accordance with the terms of this

Agreement and, if such date is not a Business Day in the principal financial center of such Alternate Currency, the next succeeding Business Day in such principal financial center.

"Acceptable Bank" means any bank or trust company organized under the laws of the United States, any state thereof, or the District of Columbia, or any branch or agency of a foreign bank located in the United States, in each case having a long-term unsecured debt rating of at least A from Standard and Poor's Ratings Services and a rating of at least A-two from Moody's Investors Service, Inc., total assets in excess of fifty billion dollars, and combined capital and surplus in excess of five billion dollars; provided, that if neither Standard and Poor's Ratings Services nor Moody's Investors Service, Inc. rates such bank's long-term unsecured debt, the administrative agent may accept such other rating from another nationally recognized statistical rating organization as it deems appropriate in its reasonable discretion.

"Anti-Corruption Laws" means all laws, rules, and regulations of any Governmental Authority applicable to any Loan Party or any of its Subsidiaries or Affiliates from time to time concerning or relating to bribery, corruption, money laundering, terrorism financing, or unlawful payments, including the United States Foreign Corrupt Practices Act, as amended, the United States Bank Secrecy Act, as amended, and the USA PATRIOT Act, as amended, and any equivalent laws of any other jurisdiction in which any Loan Party operates.

"Applicable Law" means, with respect to any Person, any and all laws, statutes, ordinances, rules, regulations, treaties, policies, guidelines, orders, judgments, writs, injunctions, decrees, rulings, and determinations of any Governmental Authority, including common law and equity, applicable to such Person, any of its properties or assets, or any transaction contemplated by the Credit Agreement.

"Authorized Officer" means, with respect to any Person, the chairperson, chief executive officer, president, chief financial officer, treasurer, assistant treasurer, controller, or any vice president of such Person, and, solely for purposes of executing and delivering any certificate, notice, or other document required under any Credit Document, any other individual designated by written notice from such Person to the administrative agent as an Authorized Officer of such Person.

"Beneficial Ownership Certification" means a certification, in form and substance reasonably satisfactory to the administrative agent, signed by an Authorized Officer or other legal representative of the relevant Loan Party, confirming the beneficial ownership information required by the beneficial ownership requirements of the United States Bank Secrecy Act, as amended, and the regulations thereunder, together with, if requested, a copy of one or more valid forms of government-issued identification for each individual identified in such certification.

"Business Day" means any day other than a Saturday, Sunday, or other day on which commercial banks in New York City are authorized by law or executive order to close; provided, however, that when used in connection with any loan bearing interest at a rate based on a screen rate or other floating rate, the term Business Day also means any day on which the relevant interbank market for the applicable currency is open for dealings and, if such screen rate is used, such screen rate is published.

"Change in Law" means the occurrence after the date of the Credit Agreement of any of the following: the adoption or effectiveness of any law, rule, regulation, treaty, order, or official directive; any change in any law, rule, regulation, treaty, order, or official directive, or in the administration, interpretation, implementation, or application

thereof by any Governmental Authority; or compliance by any Lender, the administrative agent, or any other financial institution party to any Credit Document with any request, guideline, requirement, or directive, whether or not having the force of law, from any central bank, monetary authority, or other Governmental Authority, including the Dodd-Frank Wall Street Reform and Consumer Protection Act and all requests, rules, guidelines, or directives concerning capital adequacy, liquidity, or funding thereof promulgated by the Bank for International Settlements, the Basel Committee on Banking Supervision, or any United States or foreign financial regulatory authority, regardless of the date adopted, issued, enacted, or made.

"Commodity Hedging Agreement" means any agreement, understanding, or transaction, whether pursuant to a master agreement or otherwise, now existing or hereafter entered into by any Loan Party or any Subsidiary of any Loan Party, that is a swap agreement within the meaning of the Commodity Exchange Act or any similar agreement with respect to any commodity, including any commodity swap, option, future, forward contract, cap, collar, floor, or combination thereof, in each case entered into for the bona fide purpose of hedging commercial risk associated with the operation of the business of such Person and not for speculative purposes.

"Confidential Information" means all information received by the administrative agent, any arranger, or any Lender from or on behalf of any Loan Party or any Affiliate or representative of any Loan Party relating to any Loan Party or the business, financial condition, operations, properties, or affairs of any Loan Party, and all information compiled or derived from any of the foregoing; provided that Confidential Information does not include information that is or becomes generally available to the public other than as a result of a breach by any such Person of any confidentiality undertaking, information that is or becomes available to any such Person on a nonconfidential basis from a source other than a Loan Party or any representative of a Loan Party and not known to be subject to a confidentiality obligation, or information that was independently developed by any such Person without reference to any information received from any Loan Party or any Affiliate or representative of any Loan Party.

"Control" means the possession, directly or indirectly, of the power to direct or cause the direction of the management or policies of a Person, whether through the ownership of voting securities, by contract, or otherwise; and the terms "Controlling" and "Controlled" have meanings correlative to the foregoing.

"Defaulting Lender" means any Lender that (a) fails, within three Business Days following the date on which such Lender is required to fund any portion of any Loan or purchase any participation in any Loan, to fund such portion or purchase such participation, unless such failure is the subject of a good faith dispute, (b) notifies any Loan Party, the administrative agent, or any other Lender in writing that it does not intend to comply with any of its funding obligations under any Credit Document, (c) has failed, within three Business Days following written request from the administrative agent, to confirm in writing that it will comply with its funding obligations, (d) is insolvent, or is the subject of any bankruptcy, insolvency, moratorium, reorganization, receivership, conservatorship, liquidation, or similar proceeding, or has had a receiver, custodian, conservator, or similar officer appointed for it, or is generally unable to pay its debts as they become due, or (e) has a parent company that is insolvent, or the subject of any bankruptcy, insolvency, moratorium, reorganization, receivership, conservatorship, liquidation, or similar proceeding, or has had a receiver, custodian, conservator, or similar officer appointed for it, or is generally unable to pay its debts as they become due.

"Eligible Assignee" means (a) any Lender or any affiliate of any Lender, (b) any commercial bank, savings and loan association, insurance company, trust company, investment company, investment bank, pension fund, mutual fund, exchange-traded fund, investment fund, or other financial institution or institutional investor, or (c) any other Person approved by the administrative agent and, unless an Event of Default has occurred and is continuing, by the Borrower, in each case such Person having total assets in excess of one billion dollars or assets under management in excess of ten billion dollars and being organized under the laws of the United States, any state thereof, the District of Columbia, or another jurisdiction reasonably acceptable to the administrative agent.

"Adequate Protection" means, with respect to any holder of a Lien on any property of any Credit Party or any Subsidiary in a Bankruptcy Case, the allowance of cash payments, additional or replacement Liens, or other relief that is sufficient to protect the value of the interest of such holder in such property and satisfies the requirements of the Bankruptcy Code, as determined by the court in which such Bankruptcy Case is pending or as otherwise agreed by such holder and the applicable Credit Party.

"Automatic Stay" means the stay, injunction, or suspension of actions, judgments, Liens, and other proceedings against a Person or the property of a Person arising by operation of law upon the commencement of a Bankruptcy Case with respect to such Person, as such stay, injunction, or suspension may be modified, terminated, annulled, or otherwise lifted by the court in which such Bankruptcy Case is pending.

"Bankruptcy Case" means, with respect to any Person, any case or proceeding commenced by or against such Person under the Bankruptcy Code or any other applicable bankruptcy, insolvency, reorganization, receivership, liquidation, or similar debtor relief law of any jurisdiction, including any assignment for the benefit of creditors.

"Bankruptcy Code" means Title Eleven of the United States Code, as amended from time to time, and any successor statute or code.

"Chapter Eleven Plan" means any plan of reorganization, plan of liquidation, or other plan filed in a Bankruptcy Case commenced under Chapter Eleven of the Bankruptcy Code, as amended, supplemented, modified, or withdrawn from time to time.

"Confirmation Order" means the order, including any findings of fact, conclusions of law, and exhibits thereto, entered by the court in which a Bankruptcy Case is pending that confirms a Chapter Eleven Plan in accordance with the Bankruptcy Code, in form and substance reasonably satisfactory to the Administrative Agent, and which order has become final and non-appealable.

"DIP Facility" means any debtor-in-possession financing, credit facility, loan, or other extension of credit made available to any Credit Party or any Subsidiary after the commencement of a Bankruptcy Case, pursuant to an order of the court in which such Bankruptcy Case is pending and in accordance with the Bankruptcy Code.

"Exit Facility" means any credit facility, loan, note, bond, or other financing provided to any Person in connection with a Chapter Eleven Plan or a Restructuring, the proceeds of which are used to repay, refinance, discharge, or replace Indebtedness or to fund distributions or obligations, in each case on the Plan Effective Date or upon the effectiveness of such Restructuring.

"Forbearance Agreement" means any agreement, including any amendment, waiver, consent, or standstill agreement, among one or more Credit Parties and one or more lenders, creditors, agents, or representatives of creditors,

pursuant to which such lenders or creditors agree, for a limited period and upon specified terms and conditions, to refrain from exercising any right, remedy, or enforcement measure arising upon any Default, Event of Default, or other breach, or to extend, defer, reschedule, or modify any payment or other obligation, whether entered into in connection with a Restructuring, a Workout, or otherwise.

"Plan Effective Date" means, with respect to any Chapter Eleven Plan, the date on which all conditions precedent to the effectiveness of such Chapter Eleven Plan contained in such plan and in the Confirmation Order have been satisfied or waived in accordance with their terms and such plan becomes effective and binding.

"Restructuring" means any transaction or series of transactions, whether or not pursuant to a Bankruptcy Case, that adjusts, restructures, reschedules, exchanges, modifies, extends, refinances, replaces, or otherwise rearranges the terms of any Indebtedness, Equity Interests, or other obligations of any Credit Party or any Subsidiary, including any debt exchange, debt buy-back, tender offer, consent solicitation, amendment, waiver, forbearance, recapitalization, reorganization, merger, consolidation, amalgamation, compromise, settlement, scheme of arrangement, plan of arrangement, or plan of reorganization or liquidation.

"Workout" means any process or series of negotiations, forbearances, waivers, amendments, restructurings, exchanges, refinancings, or other arrangements between or among any Credit Party, any Subsidiary, and one or more lenders, creditors, agents, or other stakeholders, undertaken in response to an existing or anticipated default, maturity, liquidity constraint, financial distress, insolvency, or similar circumstance, and intended to cure, mitigate, avoid, or resolve such circumstance whether outside of or in connection with a Bankruptcy Case.

"Data Protection Laws" means all applicable national, federal, state, provincial, local, municipal, and non-United States statutes, laws, codes, regulations, ordinances, rules, executive orders, judgments, decrees, directives, orders, guidance, and binding policies relating to privacy, data protection, data security, cybersecurity, breach notification, direct marketing, unsolicited electronic communications, biometric information, telemarketing, and the Processing of Personal Data, in each case to the extent binding on any Loan Party or any of its Subsidiaries or on any processor acting on behalf of any of them.

"Data Subject" means any individual who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that individual.

"Processing" means any operation or set of operations performed, whether by manual or automated means, on Personal Data or on sets of Personal Data, including collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure, or destruction.

"Personal Data" means any information relating to a Data Subject and any other information that constitutes personal data, personal information, or personally identifiable information under any applicable Data Protection Law, including information that is linked or reasonably linkable to a Data Subject or that identifies or could be used to identify a Data Subject, but excluding information that is de-identified, aggregated, or publicly available under applicable Data Protection Laws.

"Data Breach" means any actual or reasonably suspected breach of security, cyber incident, or unauthorized or

unlawful access, acquisition, use, disclosure, modification, or destruction of Personal Data, or any loss, theft, accidental or unlawful destruction, alteration, or unavailability of Personal Data, in each case that compromises the confidentiality, integrity, availability, security, or privacy of such Personal Data.

"Privacy Claim" means any claim, demand, complaint, action, suit, arbitration, proceeding, audit, investigation, inquiry, or notice of violation or noncompliance received or brought by or before any Governmental Authority or any other person against any Loan Party or any of its Subsidiaries, or any contractual dispute, relating to any actual or alleged violation of any Data Protection Law, Privacy Policy, or other privacy or data security obligation, or in connection with a Data Breach.

"Privacy Policies" means each privacy notice, privacy statement, privacy policy, cookie policy, and other public or internal notice or disclosure published, made available, or provided by any Loan Party or any of its Subsidiaries, or on behalf of any of them by a processor, describing the Processing of Personal Data or the privacy or data security practices of such Loan Party or such Subsidiary, including any such policy or notice required by any Data Protection Law.

"Data Protection Requirements" means all obligations, duties, standards, and restrictions applicable to any Loan Party or any of its Subsidiaries, or any processor acting on behalf of any of them, under or arising out of any Data Protection Law, any order, decree, consent, certification, or undertaking made to or with any Governmental Authority or recognized certification body, any contract or Privacy Policy, and any internal rules, standards, or procedures adopted by such Loan Party or such Subsidiary, in each case relating to privacy, data protection, data security, or the Processing of Personal Data.

"Technology Systems" means all computer and telecommunications hardware, software, firmware, middleware, operating systems, databases, servers, networks, storage systems, mobile devices, end user devices, routers, switches, firewalls, cloud-based infrastructure, platform and software-as-a-service arrangements, Internet protocol addresses, domain names, applications, web sites, and all associated configurations, interfaces, and documentation, in each case owned, leased, licensed, used, or held for use by or for the benefit of any Loan Party or any of its Subsidiaries in connection with their respective businesses.

"Data Security Program" means the administrative, technical, organizational, and physical safeguards and controls, including policies, procedures, technologies, and incident response plans, implemented by or on behalf of any Loan Party or any of its Subsidiaries to protect the confidentiality, integrity, availability, and security of Technology Systems and Personal Data against unauthorized access, use, disclosure, modification, corruption, loss, theft, or destruction.

"Benefit Arrangement" means any "employee benefit plan" within the meaning of ERISA, any "employee pension benefit plan" within the meaning of ERISA, any "welfare plan" within the meaning of ERISA, and any other employment, consulting, severance, retention, change-in-control, bonus, incentive, deferred compensation, equity-based, phantom equity, health, medical, dental, disability, accident, life insurance, or other employee benefit or compensation plan, program, policy, agreement, arrangement or understanding, whether written or oral, including any Foreign Plan, that is maintained, sponsored, contributed to, or required to be contributed to by any Credit Party or any of its Restricted Subsidiaries for the benefit of any current or former officer, director, employee, consultant or

independent contractor of any Credit Party or any of its Restricted Subsidiaries.

"ERISA" means the Employee Retirement Income Security Act of nineteen seventy-four, as amended from time to time, and any successor statute of similar purpose and effect.

"ERISA Affiliate" means any Person that, together with any Credit Party or any Restricted Subsidiary, is or would be treated as a single employer under any provision of the Internal Revenue Code or ERISA governing controlled groups of corporations, trades or businesses under common control, or affiliated service groups.

"ERISA Event" means any of the following: the occurrence of a reportable event with respect to any Pension Plan or Multiemployer Plan within the meaning of ERISA, other than an event for which the thirty-day notice requirement has been waived by the PBGC; the withdrawal of any Credit Party, any Restricted Subsidiary or any ERISA Affiliate from any Pension Plan during a plan year in which it was a substantial employer; the failure of any Pension Plan or Multiemployer Plan to satisfy the minimum funding standards applicable under the Internal Revenue Code or ERISA, or the receipt by any Credit Party, any Restricted Subsidiary or any ERISA Affiliate of a notice from the Secretary of the Treasury or the PBGC that any Pension Plan is subject to a lien for unpaid minimum funding contributions; the filing of an application for a waiver of the minimum funding standard with respect to any Pension Plan; the incurrence by any Credit Party, any Restricted Subsidiary or any ERISA Affiliate of any liability under ERISA relating to the termination of, or a complete or partial withdrawal from, any Pension Plan or Multiemployer Plan, including any Withdrawal Liability; the commencement of proceedings by the PBGC to terminate any Pension Plan or Multiemployer Plan or to appoint a trustee for any Pension Plan or Multiemployer Plan; the appointment of a trustee with respect to any Pension Plan or Multiemployer Plan; the insolvency or reorganization of any Multiemployer Plan; the failure by any Credit Party, any Restricted Subsidiary or any ERISA Affiliate to pay when due any installment or other contribution required under the terms of any Pension Plan or Multiemployer Plan; the imposition of any lien in favor of any Pension Plan or Multiemployer Plan; or any other event or condition that constitutes grounds for termination of, or the imposition of liability on any Credit Party, any Restricted Subsidiary or any ERISA Affiliate with respect to, any Pension Plan or Multiemployer Plan under ERISA.

"Foreign Plan" means any plan, program, policy, arrangement or agreement maintained, sponsored, contributed to, or required to be contributed to by any Credit Party, any Restricted Subsidiary or any ERISA Affiliate for the benefit of any current or former officer, director, employee, consultant or independent contractor of any Credit Party or any Restricted Subsidiary who is located or performs services primarily outside the United States, and that is not an employee benefit plan within the meaning of ERISA.

"Multiemployer Plan" means a multiemployer plan within the meaning of ERISA.

"PBGC" means the Pension Benefit Guaranty Corporation, or any successor thereto.

"Pension Plan" means any employee pension benefit plan within the meaning of ERISA, whether or not subject to the plan termination insurance provisions of ERISA, and any Foreign Plan that is a retirement, pension, savings, profit-sharing, stock bonus, or other deferred compensation plan, in each case that is or has been established, maintained, contributed to, or required to be contributed to by any Credit Party, any Restricted Subsidiary or any ERISA Affiliate.

"Plan" means any employee benefit plan within the meaning of ERISA, and any Foreign Plan or other Benefit

Arrangement, in each case that is or has been established, maintained, contributed to, or required to be contributed to by any Credit Party, any Restricted Subsidiary or any ERISA Affiliate.

"Retiree Health Plan" means any plan, program, policy, arrangement or agreement maintained, sponsored, contributed to, or required to be contributed to by any Credit Party, any Restricted Subsidiary or any ERISA Affiliate that provides, through insurance or otherwise, medical, surgical, hospital, dental, vision, disability, life insurance or other welfare benefits to any retired or former officer, director, employee, consultant or independent contractor of any Credit Party or any Restricted Subsidiary, or to any dependent or beneficiary thereof, other than any arrangement maintained pursuant to a collective bargaining agreement or required by applicable law.

"Unfunded Pension Liability" means, at any date of determination, the excess, if any, of the actuarial present value of accrued benefits under any Pension Plan over the fair market value of the assets of such Pension Plan, as determined in accordance with the actuarial assumptions and methods used by the administrator of such Pension Plan for purposes of determining minimum funding requirements under the Internal Revenue Code and ERISA or, if no such determination has been made, in accordance with generally accepted actuarial principles.

"Withdrawal Liability" means any liability actually or potentially owed to a Multiemployer Plan arising under ERISA as a result of a complete or partial withdrawal from such Multiemployer Plan or the termination, reorganization or insolvency of such Multiemployer Plan.

"Customs" means all applicable statutes, treaties, regulations, directives, orders, decrees, administrative rulings, binding rulings, interpretive guidance, procedures, and other legal requirements of any Customs Authority or any other Governmental Authority that relate to the importation, exportation, transit, transshipment, temporary admission, bonded warehousing, foreign trade zone operations, inward or outward processing, clearance, classification, valuation, origin, marking, labeling, or movement of goods or means of conveyance, or to the assessment, collection, or enforcement of Customs Duties.

"Customs Authority" means any Governmental Authority that administers, implements, interprets, enforces, collects, or otherwise has jurisdiction over customs, border protection, revenue, taxation, port, or trade measures applicable to the importation or exportation of goods.

"Customs Broker" means any Person licensed, registered, certified, or otherwise authorized by a Customs Authority or applicable law to act as a customs broker, agent, or representative for any other Person in connection with import, export, transit, or customs matters.

"Customs Duties" means all customs duties, tariffs, imposts, levies, fees, charges, surcharges, antidumping duties, countervailing duties, and other amounts imposed, assessed, or collected by any Customs Authority in connection with the importation, exportation, transit, transshipment, entry, or clearance of goods, but excluding any tax on or measured by net income, gross receipts, or capital.

"Customs Regulations" means all regulations, notices, bulletins, rulings, interpretations, manuals, and procedural directives issued, promulgated, administered, or enforced by any Customs Authority, together with all amendments, supplements, and successor versions thereof.

"Export Control Laws" means all applicable laws, regulations, rules, orders, decrees, licenses, authorizations, and requirements relating to the export, reexport, transfer, transit, transshipment, temporary export, deemed export,

release, or transmission of goods, technology, software, services, or technical data, including all laws, regulations, rules, orders, decrees, licenses, authorizations, and requirements concerning export licenses, exemptions, exceptions, end-use, end-user, diversion, or destination restrictions.

"Import Control Laws" means all applicable laws, regulations, rules, orders, decrees, licenses, authorizations, and requirements relating to the importation, temporary admission, bonded warehousing, entry, or release of goods into any jurisdiction, including import licensing, import quotas, tariff-rate quotas, pre-shipment inspection, certification, marking, labeling, packaging, and safety or standards requirements administered by a Customs Authority.

"International Trade Controls" means all applicable laws, regulations, rules, orders, decrees, requirements, and policies relating to customs, tariffs, trade remedies, embargoes, economic sanctions, export controls, import controls, anti-boycott measures, or other restrictions or obligations imposed by any Governmental Authority in connection with cross-border trade in goods, technology, software, or services.

"Tariff" means any Customs Duty or any schedule, classification, rate, or related rule of Customs Duties applicable to goods imported into, exported from, or transiting any jurisdiction.

"Trade Agreement" means any international agreement, treaty, convention, protocol, arrangement, or understanding relating to trade, customs, or border measures to which any applicable jurisdiction is a party, including free trade agreements, customs unions, trade facilitation agreements, preferential trade arrangements, and mutual administrative assistance agreements.

"Trade Documents" means all documents, certificates, licenses, permits, forms, filings, and submissions prepared, issued, required, or used in connection with international trade or customs matters, including commercial invoices, pro forma invoices, bills of lading, sea waybills, air waybills, customs declarations, export declarations, import declarations, export licenses, import licenses, certificates of origin, certificates of analysis, packing lists, insurance certificates, inspection certificates, manifests, customs entries, and any other documents required by a Customs Authority or applicable International Trade Controls.

"Trade Remedies" means all proceedings, investigations, reviews, administrative actions, and measures relating to antidumping duties, countervailing duties, safeguards, global safeguard measures, market disruption, or other trade protection or trade remedy laws administered by a Governmental Authority.

"Ground Lease" means any lease or sublease of real property pursuant to which a Credit Party or any Subsidiary, as lessee or sublessee, obtains the right to use and occupy land owned by another Person and owns, or has the right to construct and own, all or substantially all of the improvements located or to be located on such land, in each case under a lease or sublease that is intended by the parties thereto to be characterized as a ground lease or ground sublease for purposes of real estate financing, together with all amendments, modifications, renewals, extensions, assignments, and replacements thereof.

"Landlord Lien Waiver" means an agreement among a Credit Party or any Subsidiary, as tenant, the lessor or sublessor of any Leased Real Property, and the Administrative Agent, in form and substance reasonably satisfactory to the Administrative Agent, pursuant to which such lessor or sublessor subordinates or waives any Lien or other right it may have in or to any personal property, fixtures, or other assets of such Credit Party or Subsidiary located on such Leased Real Property, grants the Administrative Agent and the Lenders reasonable access to such Leased

Real Property to inspect, remove, or take possession of such personal property, fixtures, or other assets, and agrees to provide the Administrative Agent with written notice of any default by such Credit Party or Subsidiary under the applicable Lease Document and a reasonable opportunity to cure such default.

"Lease Document" means any lease, sublease, Ground Lease, or other agreement, including all amendments, modifications, renewals, extensions, assignments, and replacements thereof, pursuant to which a Credit Party or any Subsidiary has the right to use or occupy any Real Property.

"Leased Real Property" means all Real Property leased or subleased by a Credit Party or any Subsidiary pursuant to a Lease Document, including the related Leasehold Estate and all buildings, structures, fixtures, and improvements located or to be located on such Real Property.

"Leasehold Estate" means the estate or interest of a lessee, sublessee, or ground lessee in any Leased Real Property, including the right to possess, use, and occupy such Leased Real Property during the term of the applicable Lease Document and all rights, privileges, easements, and appurtenances of such lessee under such Lease Document.

"Material Real Property" means any Owned Real Property or Leased Real Property, treating all contiguous parcels held for a single use as one parcel, that has a fair market value in excess of ten million dollars or that is otherwise material to the business, operations, assets, financial condition, or prospects of the Credit Parties and the Subsidiaries taken as a whole, as determined by the Borrower in good faith; provided that, once any Owned Real Property or Leased Real Property has been designated as Material Real Property, it shall continue to be Material Real Property until the Administrative Agent consents in writing to the contrary.

"Mortgage" means any mortgage, deed of trust, deed to secure debt, leasehold mortgage, or other security document, in form and substance reasonably satisfactory to the Administrative Agent, that creates, evidences, or perfects a Lien in favor of the Administrative Agent for the benefit of the Secured Parties on any Real Property to secure the Obligations, as the same may be amended, modified, restated, replaced, supplemented, or otherwise modified from time to time.

"Mortgaged Property" means each parcel of Owned Real Property or Leased Real Property that is, or is required to be, subject to a Mortgage, together with all buildings, structures, fixtures, and improvements located or to be located on such parcel and all easements, rights-of-way, licenses, hereditaments, and other appurtenances relating to such parcel, and all rents, issues, and profits thereof.

"Owned Real Property" means all Real Property owned in fee by a Credit Party or any Subsidiary, together with all buildings, structures, fixtures, and improvements located or to be located on such Real Property and all easements, rights-of-way, licenses, hereditaments, and other appurtenances relating to such Real Property.

"Real Property" means all right, title, and interest of a Credit Party or any Subsidiary in and to real property, whether now owned or hereafter acquired, including fee estates, Leasehold Estates, subleasehold estates, Ground Leases, easements, rights-of-way, licenses, and other interests in real property, and all buildings, structures, fixtures, and improvements located or to be located on such real property, together with all appurtenances, hereditaments, air rights, water rights, and mineral rights appertaining or belonging thereto.

"Survey" means, with respect to any Real Property, an ALTA/NSPS land title survey or other survey reasonably satisfactory to the Administrative Agent, prepared by a professional land surveyor duly licensed in the jurisdiction in

which such Real Property is located, dated no earlier than ninety days prior to the date of the Mortgage applicable to such Real Property, and containing such information and having such form and substance as the Administrative Agent and the title insurance company issuing the Title Policy for such Real Property may reasonably require.
"Title Policy" means, with respect to any Real Property, an ALTA lender's title insurance policy or, if ALTA forms are not available in the jurisdiction in which such Real Property is located, such other comparable form of title insurance policy as is reasonably satisfactory to the Administrative Agent, issued by a title insurance company reasonably satisfactory to the Administrative Agent, dated as of the date of the Mortgage with respect to such Real Property, in an amount not less than the fair market value of such Real Property or such lesser amount as the Administrative Agent may reasonably accept, insuring the Lien of such Mortgage as a valid and enforceable first-priority Lien on such Real Property, subject only to Permitted Liens and such other exceptions as the Administrative Agent may reasonably accept, and including affirmative coverage and endorsements as the Administrative Agent may reasonably request.
"Debt Issuance" means any public or private offering, issuance or sale of debt securities (other than any loan or other extension of credit under a credit facility) by the Company or any of its Subsidiaries.
"Equity Offering" means any public or private offering or sale of Equity Interests (other than any offering or sale in connection with an employee benefit plan) by the Company or any of its Subsidiaries.
"Exchange Act" means the Securities Exchange Act of nineteen thirty-four, as amended from time to time, and any statute successor thereto.
"Fitch" means Fitch Ratings Inc. and any successor or assignee thereto.
"IPO" means the initial public offering of the common stock of the Company pursuant to an effective registration statement filed with the Securities and Exchange Commission under the Securities Act.
"Investment Grade Rating" means a rating of the senior unsecured long-term debt securities of the Company of (i) BBB-minus or higher from S&P, (ii) Baa-three or higher from Moody's or (iii) BBB-minus or higher from Fitch, or the equivalent rating from any other Rating Agency.
"Moody's" means Moody's Investors Service, Inc. and any successor or assignee thereto.
"Public Offering" means any offering and sale of securities to the public pursuant to an effective registration statement filed with the Securities and Exchange Commission under the Securities Act.
"Rating Agency" means each of S&P, Moody's and Fitch, and any other rating agency that is a nationally recognized statistical rating organization and that the Administrative Agent and the Borrower have approved for purposes of this Agreement.
"Rating Event" means, at any time, with respect to the senior unsecured long-term debt securities of the Company, the occurrence of any of the following: (i) the withdrawal of any rating on such debt securities by any Rating Agency, (ii) a downgrade of any rating on such debt securities by any Rating Agency by one or more notches from the rating in effect on the Closing Date, or (iii) the failure of the Company to maintain a rating on such debt securities from at least two Rating Agencies.
"S&P" means Standard & Poor's Financial Services LLC, a subsidiary of S&P Global Inc., and any successor or assignee thereto.

"Securities Act" means the Securities Act of nineteen thirty-three, as amended from time to time, and any statute successor thereto.

"Approved Fund" means, with respect to any Lender, any Person (other than a natural person) that is engaged in making, purchasing, holding or otherwise investing in commercial loans, bonds and similar extensions of credit in the ordinary course of its business and that is managed, administered, advised or sponsored by (a) such Lender, (b) an Affiliate of such Lender, (c) an entity that administers or manages such Lender, or (d) an entity or an Affiliate of any entity that is administered or managed by such Lender or by an Affiliate of such Lender.

"Assignee" means any Person that becomes a party to this Agreement as a Lender pursuant to an Assignment and Assumption.

"Assignment and Assumption" means an assignment and assumption agreement entered into by an Assigning Lender and an Assignee and accepted by the Administrative Agent, together with any amendments thereto, in form and substance reasonably satisfactory to the Administrative Agent, pursuant to which the Assignee acquires all or any portion of the Assigning Lender's rights and obligations under this Agreement, including its Commitments and Loans.

"Assigning Lender" means, with respect to any Assignment and Assumption, the Lender that assigns all or any portion of its rights and obligations under this Agreement pursuant to such Assignment and Assumption.

"Assigns" means, with respect to any Person, the permitted successors and assigns of such Person, and references to the "successors and assigns" of any Person shall include the permitted successors and assigns of such Person under the Collateral Documents and the other Loan Documents.

"Disqualified Institution" means (a) any Person (other than a Lender) identified by the Borrower to the Administrative Agent in writing on or prior to the Closing Date as being a competitor of the Borrower or any of its Subsidiaries, (b) any Person identified by the Borrower to the Administrative Agent in writing from time to time after the Closing Date as being a competitor of the Borrower or any of its Subsidiaries, which identification shall become effective three Business Days after delivery of written notice thereof to the Administrative Agent and shall not apply retroactively to any assignment made prior to such effective date, and (c) any natural person; provided that no Person that is a Lender as of the Closing Date shall be a Disqualified Institution.

"Eligible Assignee" means (a) a Lender, (b) an Affiliate of a Lender, (c) an Approved Fund, and (d) any other Person (other than a natural person) approved by the Administrative Agent and, if no Event of Default has occurred and is continuing, by the Borrower, such approval not to be unreasonably withheld or delayed; provided that no Disqualified Institution and no Person that is controlled by, or is a holding company, investment vehicle or trust owned or controlled by, a Disqualified Institution shall be an Eligible Assignee.

"Participant" means any Person that acquires a participation interest in all or any portion of a Lender's rights and obligations under this Agreement, including any participation interest in the Commitments, Loans or other extensions of credit of such Lender.

"Participant Register" means a register maintained by a Lender to record the name and address of each Participant and the principal amount of each Participant's participation interest in such Lender's Commitments, Loans and other obligations under this Agreement; provided that no Lender shall be required to disclose all or any portion of the

Participant Register to any Person except to the extent that such disclosure is necessary to establish that such Participant's participation interest is in compliance with the terms of this Agreement or as required by applicable law.

"Register" means a register maintained by the Administrative Agent in accordance with the terms of this Agreement on which the Administrative Agent shall record the name and address of each Lender, the Commitments of each Lender, the principal amount of each Loan made by each Lender, and each assignment and assumption of any Commitment, Loan or other obligation under this Agreement; and, in the case of each Lender, the principal amount of any Loans and participations in Letters of Credit and Swingline Loans held by such Lender from time to time.

"Replacement Lender" means a Lender or an Eligible Assignee designated by the Borrower to replace a Lender that has not consented to a proposed amendment, waiver, consent or other modification of this Agreement that requires the consent of such Lender or all affected Lenders and that has been approved by the Required Lenders, pursuant to an Assignment and Assumption between such replacement Lender and the Lender being replaced.

"Successor" means, with respect to any Person, any other Person that succeeds to all or substantially all of the assets, business, liabilities and obligations of such Person by merger, consolidation, amalgamation, reorganization, restructuring, share exchange or otherwise, whether by operation of law or by contract.

"Accounting Change" means any change in accounting principles, practices, policies or methods, or any change in the application of such principles, practices, policies or methods, required by generally accepted accounting principles in the United States or by the Financial Accounting Standards Board, or adopted by the Borrower in the preparation of the financial statements of the Borrower and its Subsidiaries, including any change from one generally accepted accounting principle to another generally accepted accounting principle or a change in the method of applying an accounting principle.

"Audited Annual Financial Statements" means, with respect to any fiscal year, the consolidated balance sheet of the Borrower and its Subsidiaries as at the last day of such fiscal year and the related consolidated statements of income, comprehensive income, changes in shareholders' equity and cash flows for such fiscal year, together with the notes and schedules thereto, prepared in accordance with generally accepted accounting principles in the United States, audited by Independent Accountants, and accompanied by an unqualified report and opinion of Independent Accountants stating that such financial statements fairly present, in all material respects, the consolidated financial position and results of operations of the Borrower and its Subsidiaries in conformity with generally accepted accounting principles in the United States.

"Compliance Certificate" means a certificate of a Financial Officer of the Borrower, in form and substance reasonably satisfactory to the Administrative Agent, delivered together with the Audited Annual Financial Statements and the Unaudited Quarterly Financial Statements, certifying that such financial statements have been prepared in accordance with generally accepted accounting principles in the United States and fairly present, in all material respects, the financial condition and results of operations of the Borrower and its Subsidiaries, stating that no Default or Event of Default has occurred and is continuing or, if any Default or Event of Default has occurred and is continuing, specifying in reasonable detail the nature and period of existence of such Default or Event of Default and the actions taken or proposed to be taken with respect thereto, and setting forth in reasonable detail the

computations of the financial covenants set forth in the Credit Agreement and such other information and calculations as are necessary to demonstrate compliance with the covenants contained in the Credit Agreement.
"Financial Officer" means, with respect to any Person, the chief executive officer, chief financial officer, principal accounting officer, treasurer, assistant treasurer, controller, or any other officer of such Person whose principal duties include the preparation or review of the financial statements of such Person.
"Financial Statements" means, collectively, the Audited Annual Financial Statements and the Unaudited Quarterly Financial Statements.
"Independent Accountants" means, with respect to the audit of the financial statements of the Borrower and its Subsidiaries, the independent certified public accountants of recognized national standing selected by the Borrower and reasonably satisfactory to the Administrative Agent, who shall be independent of the Borrower and its Subsidiaries within the meaning of the rules of the Public Company Accounting Oversight Board and the Securities and Exchange Commission.
"Management's Discussion and Analysis" means, with respect to any financial statements of the Borrower and its Subsidiaries, a narrative discussion and analysis of the financial condition and results of operations of the Borrower and its Subsidiaries for the period covered by such financial statements, prepared in reasonable detail and in a manner consistent with the requirements of the Securities and Exchange Commission applicable to a public reporting company, including a discussion of material changes in the financial condition, liquidity, capital resources and results of operations of the Borrower and its Subsidiaries during such period.
"Officer's Certificate" means a certificate of a Financial Officer of the Borrower delivered to the Administrative Agent in accordance with the Credit Agreement, certifying, to the best of such Financial Officer's knowledge, the truth and accuracy of the statements made therein and that such statements are made for the purposes of the Credit Agreement.
"Reporting Date" means each date on which the Borrower is required pursuant to the Credit Agreement to deliver any Financial Statements, a Compliance Certificate, an Officer's Certificate, or any other report or certificate relating to the financial condition or results of operations of the Borrower and its Subsidiaries.
"Unaudited Quarterly Financial Statements" means, with respect to any fiscal quarter, the consolidated balance sheet of the Borrower and its Subsidiaries as at the end of such fiscal quarter and the related consolidated statements of income, comprehensive income, changes in shareholders' equity and cash flows for such fiscal quarter and the portion of the fiscal year then ended, together with the notes and schedules thereto, prepared in accordance with generally accepted accounting principles in the United States, subject to normal year-end adjustments and the absence of footnotes, and certified by a Financial Officer of the Borrower as presenting fairly, in all material respects, the financial condition and results of operations of the Borrower and its Subsidiaries in accordance with generally accepted accounting principles in the United States.
"Hedging Agreement" means any rate swap transaction, basis swap, forward rate transaction, interest rate option, interest rate cap, interest rate collar, interest rate floor, forward foreign exchange transaction, currency swap, cross-currency rate swap, currency option, commodity swap, commodity option, commodity forward transaction, or any other similar agreement, contract or transaction involving financial or commodity derivatives, or any combination of

the foregoing, together with any master agreement and any schedule, confirmation, credit support annex or other ancillary agreement entered into in connection therewith, in each case entered into by the Borrower or any of its Subsidiaries in the ordinary course of business and not for speculative purposes.

"Interest Rate Agreement" means any agreement, contract or transaction entered into by the Borrower or any of its Subsidiaries in the ordinary course of business and not for speculative purposes to manage or hedge interest rate risk, including any interest rate swap, basis swap, forward rate agreement, interest rate option, interest rate cap, interest rate collar, interest rate floor, or any other similar derivative agreement, contract or transaction with respect to interest rates or interest rate indices.

"Currency Agreement" means any agreement, contract or transaction entered into by the Borrower or any of its Subsidiaries in the ordinary course of business and not for speculative purposes to manage or hedge currency exchange rate risk, including any forward foreign exchange contract, currency swap, cross-currency swap, currency option, or any other similar derivative agreement, contract or transaction with respect to currencies or exchange rates.

"Commodity Agreement" means any agreement, contract or transaction entered into by the Borrower or any of its Subsidiaries in the ordinary course of business and not for speculative purposes to manage or hedge commodity price risk, including any commodity swap, commodity option, commodity forward contract, commodity futures contract, or any other similar derivative agreement, contract or transaction with respect to commodities or commodity prices.

"Master Agreement" means any master agreement, including any ISDA Master Agreement published by the International Swaps and Derivatives Association, Inc., together with any schedule, confirmation, credit support annex or other similar ancillary agreement entered into in connection therewith, that governs or documents any Hedging Agreement, Hedging Transaction or any other similar agreement, contract or transaction.

"Hedging Transaction" means any transaction entered into by the Borrower or any of its Subsidiaries under or governed by any Hedging Agreement or Master Agreement, including any swap, option, forward, future, cap, collar, floor or other similar derivative transaction.

"Hedging Bank" means any Person that is a party to a Hedging Agreement with the Borrower or any of its Subsidiaries, so long as such Person or an affiliate of such Person was, at the time such Hedging Agreement was entered into, a Lender, an Arranger, a Bookrunner, an Administrative Agent, a Collateral Agent, or an affiliate of any of the foregoing, in each case under the Credit Agreement.

"Hedging Obligations" means, with respect to any Hedging Agreement, all obligations and liabilities of the Borrower and each of its Subsidiaries arising under or in respect of such Hedging Agreement, including obligations to make payments, to post collateral, margin or other credit support, and all other obligations to perform thereunder, and all obligations and liabilities arising upon the early termination, liquidation, acceleration or close-out of such Hedging Agreement, whether by reason of default, termination, setoff, netting, designation or otherwise, together with any Swap Termination Value payable by the Borrower or any of its Subsidiaries in respect of such Hedging Agreement.

"Swap Termination Value" means, with respect to any Hedging Agreement or Hedging Transaction, the termination

value or amount determined in accordance with the terms of such Hedging Agreement or Hedging Transaction or any Master Agreement governing such Hedging Agreement or Hedging Transaction, as applicable, after giving effect to any netting, setoff, close-out or other similar provisions contained therein.

"Specified Hedging Agreement" means any Hedging Agreement between the Borrower or any of its Subsidiaries and a Hedging Bank that the Borrower has designated in a written notice to the Administrative Agent as a "Specified Hedging Agreement" for purposes of the Credit Agreement, and that continues to be a "Specified Hedging Agreement" until such time, if any, as the Borrower notifies the Administrative Agent in writing that such Hedging Agreement is no longer a "Specified Hedging Agreement" for purposes of the Credit Agreement.

"Administrative Agent" means the Person named as Administrative Agent in the Credit Agreement, together with any successor Administrative Agent appointed in accordance with the Credit Agreement, in each case acting in its capacity as Administrative Agent for the Lenders under the Loan Documents.

"Administrative Questionnaire" means, with respect to any Lender, the administrative questionnaire most recently delivered by such Lender to the Administrative Agent, in form and substance reasonably satisfactory to the Administrative Agent, for the purpose of identifying such Lender's lending offices, wire transfer instructions, notice addresses and other relevant administrative information.

"Agent Parties" means, collectively, the Administrative Agent, each arranger, each syndication agent, each documentation agent, each collateral agent and each other agent appointed under the Loan Documents, together with each of their respective Affiliates and the officers, directors, employees, agents, advisors, counsel, accountants and representatives of each of the foregoing, in each case in their capacities as such.

"Assignments and Assumptions" means an assignment and assumption entered into by an assigning Lender and an Eligible Assignee, accepted by the Administrative Agent and recorded in the Register, in accordance with the Credit Agreement, in form and substance reasonably satisfactory to the Administrative Agent and, to the extent required by the Credit Agreement, the Borrower, pursuant to which the Eligible Assignee acquires by assignment from the assigning Lender a portion of the assigning Lender's Loans, Commitments and Letter of Credit participations and becomes a Lender under the Credit Agreement.

"Authorized Officer" means, with respect to any Person, (a) the president, chief executive officer, chief financial officer, treasurer, assistant treasurer, secretary, assistant secretary or controller of such Person, (b) any vice president of such Person, or (c) any other officer or employee of such Person expressly authorized by a resolution of the board of directors or equivalent governing body of such Person to execute and deliver any Loan Document or any certificate, notice, instrument or other document required or contemplated to be executed or delivered by such Person under the Loan Documents.

"Defaulting Lender" means any Lender that (a) fails to fund any portion of its Loans or participations in Letters of Credit required to be funded by it under the Loan Documents within two Business Days after the date required to be funded, unless such failure is attributable solely to the failure of the Borrower to satisfy any condition precedent to such funding that is within the Borrower's control; (b) fails to pay any amount payable by it to the Administrative Agent or any other Lender under any Loan Documents within two Business Days after the date due; (c) notifies the Administrative Agent, the Borrower or any Lender in writing, or makes a public statement, that it does not intend to

comply with its funding obligations under the Loan Documents, or that it intends to withhold or condition the funding of any portion of its Loans or participations in Letters of Credit; (d) fails, within two Business Days after written request by the Administrative Agent, to confirm in writing to the Administrative Agent that it will comply with its funding obligations under the Loan Documents; or (e) becomes the subject of a bankruptcy, insolvency, reorganization, liquidation, conservatorship, receivership or similar proceeding, or has a receiver, trustee, custodian or similar official appointed for it, or is generally unable to pay its debts as they become due; provided that a Lender shall not be a Defaulting Lender solely by reason of the ownership or acquisition of any equity interest in such Lender by a governmental authority or any instrumentality thereof, unless such ownership or acquisition causes such Lender to become subject to any such proceeding. The Administrative Agent shall determine whether a Lender is a Defaulting Lender, and such determination shall be conclusive and binding on the parties absent manifest error.

"Electronic Signature" means any electronic sound, symbol or process attached to or logically associated with any contract, certificate, notice, instrument or other record and executed or adopted by a Person with the intent to sign, authenticate, verify or accept such contract, certificate, notice, instrument or other record.

"Eligible Assignee" means (a) any Lender, (b) any Affiliate of any Lender, (c) any fund or other entity that is managed, sponsored or advised by a Lender or an Affiliate of a Lender, or (d) any other Person that is a financial institution, investment fund, insurance company or other institutional investor and is approved by the Administrative Agent and, so long as no Event of Default has occurred and is continuing, by the Borrower, which approval shall not be unreasonably withheld, conditioned or delayed; provided that no natural person, no Loan Party and no Affiliate of a Loan Party shall be an Eligible Assignee.

"Lending Office" means, with respect to any Lender, the office or offices of such Lender set forth in its Administrative Questionnaire or, if applicable, in the Assignment and Assumption pursuant to which it became a Lender, or such other office or offices as such Lender may from time to time notify the Administrative Agent and the Borrower.

"Participant" means any Person that acquires a participation interest in all or any portion of any Lender's Loans, Commitments or Letter of Credit participations under the Credit Agreement; provided that no Loan Party or Affiliate of a Loan Party shall be a Participant.

"Participant Register" means the register maintained by each Lender in accordance with the Credit Agreement to record the name and address of each Participant, the principal amount and percentage of each participation interest, and the amount of each payment made in respect of such participation interest, which register shall be conclusive and binding for all purposes absent manifest error.

"Register" means the register maintained by the Administrative Agent in accordance with the Credit Agreement to record the name and address of each Lender, the Commitment and outstanding principal amount of the Loans of each Lender, each assignment and assumption, each participation interest and all payments made by the Borrower with respect to the Loans and the Commitments, which register shall be conclusive and binding for all purposes absent manifest error, and the Administrative Agent shall make the Register available to the Borrower and each Lender upon reasonable notice.

ARTICLE II. THE COMMITMENTS

Section 2.01 (Revolving Commitments). Subject to the terms and conditions set forth herein, each Revolving Lender severally agrees to make Revolving Loans to the Borrower from time to time, in an aggregate principal amount not to exceed 60,000,000.00 (the aggregate Revolving Commitments of all Revolving Lenders). 12,000,000.00 of Revolving Loans are drawn on the Closing Date to fund a portion of the Transaction and related fees and expenses, as set forth in the Funds Flow Memorandum.

Section 2.02 (Term Loan Commitments). Subject to the terms and conditions set forth herein, each Term Lender severally agrees to make a single Term Loan to the Borrower on the Closing Date, in the principal amount set forth opposite such Lender's name on Schedule 2.01 (Commitments). The Term Loans shall amortize in equal quarterly installments commencing with the first full fiscal quarter after the Closing Date, with the balance payable on the Maturity Date, in each case as set forth on Schedule 2.02 (Amortization Schedule).

Section 2.03 (Borrowing Procedures). The Borrower shall request each Borrowing by delivery of a Borrowing Request to the Administrative Agent not later than the time specified in Section 2.03(b) below, specifying the amount, Type and, in the case of a Term SOFR Borrowing, the initial Interest Period. The Administrative Agent shall promptly notify each Lender of the details of any such Borrowing.

Section 2.03(b) (Notice Periods). A Borrowing Request for a Base Rate Borrowing must be received not later than 11:00 a.m. on the requested Borrowing date; a Borrowing Request for a Term SOFR Borrowing must be received not later than 11:00 a.m. three Business Days prior to the requested Borrowing date.

Section 2.04 (Swingline Loans and Letters of Credit). Subject to the terms and conditions set forth herein, the Swingline Lender agrees to make Swingline Loans, and the Issuing Bank agrees to issue Letters of Credit for the account of the Borrower, in each case from time to time during the Availability Period, in an aggregate amount not to exceed the Swingline Commitment or the LC Commitment, respectively, each as set forth on Schedule 2.01, and in each case within the aggregate Revolving Commitments and subject to no Default or Event of Default having occurred and being continuing.

Section 2.05 (Increase Option). The Borrower may, by notice to the Administrative Agent, request the establishment of one or more Additional Term Loan Commitments or an increase in the Revolving Commitments, in each case subject to (a) no Default or Event of Default having occurred and being continuing, (b) pro forma compliance with the financial covenants in Article VI, and (c) the written consent of each Lender providing all or a portion of the increase, it being understood that no existing Lender is obligated to participate in any such increase.

Section 2.06 (Interest Rates; Benchmark Transition). Loans shall bear interest, at the Borrower's election, at the Base Rate plus the Applicable Margin or Adjusted Term SOFR for the applicable Interest Period plus the Applicable Margin. Adjusted Term SOFR means Term SOFR for the applicable Interest Period plus the SOFR Adjustment, if any. If a Benchmark Transition Event occurs with respect to Term SOFR, the Administrative Agent and the Borrower may amend this Agreement to replace Term SOFR with a Benchmark Replacement, without the consent of any other party hereto other than the Required Lenders, unless the Required Lenders object in writing within the period specified in this Section 2.06(f).

Section 2.06(e) (Default Rate). Upon the occurrence and during the continuance of an Event of Default under Section 8.01(a) (failure to pay), the Administrative Agent may, and at the request of the Required Lenders shall,

require that overdue amounts bear interest at the Default Rate.

Section 2.07 (Fees). The Borrower shall pay to the Administrative Agent, for the account of each Revolving Lender, a Commitment Fee on the average daily unused amount of such Lender's Revolving Commitment, payable quarterly in arrears, at the rate set forth in the pricing grid attached as Schedule 1.01(b). The Borrower shall also pay the fees set forth in the Fee Letter and the LC participation and fronting fees customary for facilities of this type, in each case as separately agreed with the Administrative Agent and the Issuing Bank.

Section 2.08 (Evidence of Debt; Register). The Administrative Agent shall maintain the Register recording the Commitments and Loans of each Lender. Entries in the Register shall be conclusive absent manifest error, and the Borrower, the Administrative Agent and the Lenders may treat each Person listed as a Lender in the Register as the owner of the corresponding Loan for all purposes of this Agreement.

Section 2.09 (Increased Costs). If any Change in Law shall (a) impose, modify or deem applicable any reserve, special deposit, compulsory loan, insurance charge or similar requirement against assets of, deposits with or for the account of, or credit extended by, any Lender, or (b) impose on any Lender or the London or other interbank market any other condition affecting the Loan Documents or any Term SOFR Loan made by such Lender, and the result of any of the foregoing is to increase the cost to such Lender of making or maintaining any Loan, or to reduce the amount of any sum received or receivable by such Lender hereunder, then the Borrower shall reimburse such Lender for such additional costs incurred or reduction suffered, provided that the Borrower shall not be required to compensate a Lender for any such amount incurred more than 180 days prior to the date such Lender demands reimbursement, except that, if the Change in Law is retroactive, the 180-day period shall be extended to include the period of retroactive effect.

Section 2.09(b) (Capital and Liquidity Requirements). If any Lender determines that any Change in Law affecting such Lender or its holding company regarding capital adequacy or liquidity has the effect of reducing the rate of return on such Lender's capital as a consequence of its Commitments or Loans hereunder to a level below that which such Lender could have achieved but for such Change in Law, then the Borrower shall pay to such Lender such additional amount as will compensate such Lender for such reduction, subject to the same 180-day look-back limitation as Section 2.09(a).

Section 2.10 (Taxes). Any and all payments by or on account of any obligation of the Borrower under any Loan Document shall be made free and clear of, and without deduction for, any Indemnified Taxes, provided that if the Borrower or the Administrative Agent is required by applicable law to deduct any Indemnified Taxes from such payments, then the sum payable shall be increased as necessary so that, after all required deductions have been made, the Recipient receives an amount equal to the sum it would have received had no such deductions been made. The Borrower shall additionally pay any Other Taxes to the relevant Governmental Authority in accordance with applicable law. Each Foreign Lender shall deliver a properly completed and executed U.S. Tax Compliance Certificate to the Administrative Agent and the Borrower on or prior to the date it becomes a party to this Agreement, and from time to time thereafter as reasonably requested, to establish that it is entitled to an exemption from, or reduction of, withholding Tax.

Section 2.11 (Illegality). If any Lender determines that any Change in Law has made it unlawful, or any

Governmental Authority has asserted that it is unlawful, for such Lender to make, maintain or fund Term SOFR Loans, then, upon notice thereof by such Lender to the Borrower, any obligation of such Lender to make or continue Term SOFR Loans shall be suspended until such Lender notifies the Administrative Agent that the circumstances giving rise to such determination no longer exist, and the Borrower shall, upon demand from such Lender, prepay or convert all outstanding Term SOFR Loans of such Lender to Base Rate Loans.

Section 2.12 (Mitigation Obligations; Replacement of Lenders). If any Lender requests compensation under Section 2.09, or requires the Borrower to pay Indemnified Taxes or Other Taxes to any Lender under Section 2.10, or is a Defaulting Lender, or gives notice of illegality under Section 2.11, then the Borrower may, at its sole expense, require such Lender to assign its Commitment and outstanding Loans to an Eligible Assignee designated by the Borrower and reasonably acceptable to the Administrative Agent, for a purchase price equal to the outstanding principal amount of such Loans plus accrued interest and fees, so long as such assignment does not conflict with applicable law and such Lender receives payment of the amounts described in Section 2.09 or 2.10, as applicable, through the date of such assignment.

Section 2.13 (Defaulting Lenders). Notwithstanding anything to the contrary herein, if any Lender becomes a Defaulting Lender, then, until such Lender ceases to be a Defaulting Lender, (a) the Commitment Fee shall cease to accrue on the unfunded portion of such Defaulting Lender's Commitment, (b) such Defaulting Lender's right to approve or disapprove any amendment, waiver or consent hereunder shall be restricted to matters directly and adversely affecting such Defaulting Lender differently than other affected Lenders, and (c) any payment received by the Administrative Agent for the account of such Defaulting Lender shall, at the Administrative Agent's discretion, be applied to satisfy such Defaulting Lender's funding obligations before being distributed to such Defaulting Lender.

Section 2.14 (Erroneous Payments). If the Administrative Agent notifies a Lender or the Issuing Bank that it has determined that any funds received by such Lender or the Issuing Bank from the Administrative Agent constitute an Erroneous Payment, such Lender or the Issuing Bank shall promptly, but in no event later than one Business Day after receipt of such notice, return to the Administrative Agent the amount of such Erroneous Payment, without any offset, counterclaim or defense of any kind, together with interest thereon at the Federal Funds Rate from the date such Erroneous Payment was received.

Section 2.15 (Conditions to the Initial Credit Extension). The obligation of each Lender to make the initial Credit Extension on the Closing Date is subject to the satisfaction (or waiver in accordance with Section 10.01) of the following conditions: (a) the Administrative Agent shall have received this Agreement, duly executed by each Loan Party; (b) the Administrative Agent shall have received each Collateral Document, duly executed by each applicable Loan Party, together with all instruments, certificates and other documents necessary to perfect the Liens created thereby, including UCC financing statements and, where applicable, a Mortgage; (c) the Administrative Agent shall have received a completed Perfection Certificate; (d) the Administrative Agent shall have received customary legal opinions of counsel to the Loan Parties, addressing the due authorization, execution, delivery and enforceability of the Loan Documents; (e) the Administrative Agent shall have received a certificate of a Responsible Officer certifying as to the Organizational Documents, resolutions and incumbency of each Loan Party; (f) the

Administrative Agent shall have received a Solvency Certificate; (g) the Administrative Agent shall have received evidence of insurance complying with the Insurance Requirements; (h) the Administrative Agent shall have received the Latest Financial Statements, and shall be satisfied with the results of its business, legal and financial due diligence; (i) the representations and warranties in Article IV shall be true and correct in all material respects; (j) no Default or Event of Default shall have occurred and be continuing or would result from the initial Credit Extensions; (k) the Transaction shall have been consummated, or shall be consummated substantially concurrently with the initial Credit Extensions, in accordance with the Purchase Agreement in all material respects; (l) the Administrative Agent shall have received the Beneficial Ownership Certification for the Borrower to the extent required by the Beneficial Ownership Regulation; (m) the Existing Indebtedness identified on Schedule 7.02 shall have been repaid, defeased, discharged or otherwise extinguished, or arrangements reasonably satisfactory to the Administrative Agent therefor shall have been made; (n) the Administrative Agent shall have received the Fee Letter, duly executed, and all fees and expenses required to be paid on the Closing Date shall have been paid; and (o) each Guarantor shall have executed an Accession Agreement to the extent not already a party to the Guarantee and the Security Agreement.

Section 2.16 (Conditions to Each Credit Extension). The obligation of each Lender to make any Credit Extension after the Closing Date (including any Additional Term Loan Commitment established under Section 2.05) is subject to the satisfaction of the following conditions: (a) the representations and warranties set forth in Article IV (other than those that, by their terms, are made only as of the Closing Date) shall be true and correct in all material respects as of the date of such Credit Extension; (b) no Default or Event of Default shall have occurred and be continuing or would result from such Credit Extension; (c) the Administrative Agent shall have received a Borrowing Request in accordance with Section 2.03; and (d) after giving effect to such Credit Extension, the aggregate principal amount of outstanding Revolving Loans, Swingline Loans and LC Exposure shall not exceed the lesser of the aggregate Revolving Commitments and the Borrowing Base then in effect. Each Borrowing Request submitted after the Closing Date shall be deemed to constitute a representation and warranty by the Borrower that the conditions in clauses (a) and (b) of this Section 2.16 are satisfied as of the date of the requested Credit Extension.

Section 2.17 (Extension of Maturity Date). The Borrower may, at any time prior to the then-applicable Revolving Credit Maturity Date, request an extension of the Revolving Credit Maturity Date with respect to all or a portion of the Revolving Credit Commitments by delivering a written notice (an "Extension Request") to the Administrative Agent, with a copy to each Lender, not earlier than one hundred twenty days and not later than sixty days prior to such Revolving Credit Maturity Date. The Borrower may deliver no more than two Extension Requests with respect to any Revolving Credit Commitment. Each Extension Request shall specify the proposed extended Revolving Credit Maturity Date, which shall be not more than one year after the then-applicable Revolving Credit Maturity Date, the aggregate amount of Revolving Credit Commitments to be extended, which shall be not less than ten million dollars and in integral multiples of five million dollars, the date by which Lenders must respond, which shall be not earlier than thirty days and not later than fifteen days prior to the Extension Effective Date, and the date (the "Extension Effective Date") on which the proposed extension is to become effective. The Extension Effective Date shall be not earlier than thirty days and not later than fifteen days prior to the then-applicable Revolving Credit

Maturity Date. The Administrative Agent shall promptly notify each Lender of the receipt of any Extension Request and of the amount of such Lender's Revolving Credit Commitment as of the date of such Extension Request.

Each Lender may, in its sole discretion, agree to extend the Revolving Credit Maturity Date with respect to all or a portion of its Revolving Credit Commitment to the proposed extended Revolving Credit Maturity Date by executing and delivering to the Administrative Agent an extension agreement in form and substance reasonably satisfactory to the Administrative Agent (an "Extension Agreement") on or before the Lender response date specified in the Extension Request. No Lender shall have any obligation to agree to any extension. Any Lender that does not deliver an Extension Agreement on or before such date shall be deemed to have declined to extend its Revolving Credit Commitment with respect to the amount specified in the Extension Request, and the Revolving Credit Maturity Date of such Lender's unextended Revolving Credit Commitment shall remain as in effect immediately prior to giving effect to such extension.

An extension by any Lender with respect to its Revolving Credit Commitment shall become effective on the Extension Effective Date if, on or before such date, each of the following conditions is satisfied: first, no Default or Event of Default shall have occurred and be continuing or would result from such extension; second, the representations and warranties of the Borrower contained in the Credit Agreement shall be true and correct in all material respects on and as of the Extension Effective Date with the same effect as if made on such date, except to the extent that any such representation or warranty expressly relates to an earlier date, in which case it shall have been true and correct in all material respects as of such earlier date; third, the Administrative Agent shall have received a certificate of a Responsible Officer of the Borrower, dated as of the Extension Effective Date, certifying as to the matters described in the first and second conditions and attaching resolutions or other authorizing documents of the Borrower with respect to such extension, in form and substance reasonably satisfactory to the Administrative Agent; fourth, the Administrative Agent shall have received a customary opinion of counsel for the Credit Parties, dated as of the Extension Effective Date, in form and substance reasonably satisfactory to the Administrative Agent; and fifth, the Borrower shall have paid to each extending Lender any fees agreed to be paid in connection with such extension and, to the extent invoiced, all accrued interest, fees and expenses due and payable to such extending Lender and the Administrative Agent as of the Extension Effective Date.

On the Extension Effective Date, the Revolving Credit Maturity Date with respect to the Revolving Credit Commitments of each extending Lender shall be extended to the proposed extended Revolving Credit Maturity Date, and all references in the Credit Agreement to the Revolving Credit Maturity Date with respect to such Revolving Credit Commitments, any Revolving Credit Loans made thereunder or any other obligations with respect thereto shall thereafter refer to such proposed extended Revolving Credit Maturity Date. The Revolving Credit Maturity Date with respect to the Revolving Credit Commitments of any Lender that has not delivered an Extension Agreement shall remain the Revolving Credit Maturity Date in effect immediately prior to the Extension Effective Date, and all Revolving Credit Loans outstanding under any such unextended Revolving Credit Commitment shall be repaid in full, and such unextended Revolving Credit Commitment shall terminate, no later than such earlier Revolving Credit Maturity Date.

At any time prior to the Revolving Credit Maturity Date applicable to a non-extending Lender, the Borrower may

require such non-extending Lender to assign, at par, all of its Revolving Credit Commitment and all outstanding Revolving Credit Loans to one or more assignees that are Eligible Assignees and that are reasonably satisfactory to the Administrative Agent and, so long as no Default or Event of Default has occurred and is continuing, the Issuing Bank and the Swingline Lender, in each case not to be unreasonably withheld or delayed. Each such assignee shall, as a condition to such assignment, execute and deliver an Extension Agreement with respect to the assigned Revolving Credit Commitments. If the non-extending Lender fails to execute and deliver any such assignment agreement within five Business Days after the Borrower's request therefor, the Administrative Agent may execute and deliver such assignment agreement on behalf of such non-extending Lender. No replacement pursuant to this paragraph shall be deemed to waive any rights that any Credit Party may have against the non-extending Lender as a result of such Lender's failure to extend its Revolving Credit Commitment.

For the avoidance of doubt, Revolving Credit Commitments extended pursuant to this Section shall constitute Revolving Credit Commitments under the Credit Agreement, and Revolving Credit Loans made, continued or converted under any extended Revolving Credit Commitments shall be governed by all terms and conditions of the Credit Agreement applicable to Revolving Credit Loans, except that the Revolving Credit Maturity Date applicable to such Revolving Credit Commitments and such Revolving Credit Loans shall be the proposed extended Revolving Credit Maturity Date. No extension of the Revolving Credit Maturity Date pursuant to this Section shall be deemed or construed to create a novation, and the guarantees of the Credit Parties and the Liens securing the Obligations shall continue to secure the Obligations after giving effect to any such extension.

Nothing in this Section shall be construed to extend, or to authorize the Borrower to request the extension of, the Maturity Date of the Term Loans.

Section 2.18 (Refinancing Amendments). (a) The Borrower may at any time and from time to time, by written notice to the Administrative Agent, establish one or more new credit facilities under this Agreement (each, a "Refinancing Facility") for the purpose of refinancing, in whole or in part, any or all of the Facilities, Loans and Commitments outstanding at such time. Each Refinancing Facility shall be established pursuant to an amendment to this Agreement and, if applicable, the other Loan Documents (each, a "Refinancing Amendment") executed and delivered by the Borrower, the Administrative Agent and the lenders providing such Refinancing Facility (each, a "Refinancing Lender"). Except as otherwise provided by the terms of this Agreement governing amendments and waivers, no Refinancing Amendment or any related amendment or supplement to any Loan Document shall require the consent of any Lender other than the Refinancing Lenders providing such Refinancing Facility and, to the extent provided in such terms, the Administrative Agent.

(b) The terms and conditions of each Refinancing Facility shall be set forth in the applicable Refinancing Amendment and may include any provisions that the Borrower and the Refinancing Lenders may agree, including provisions relating to interest rates, margins, fees, original issue discount, optional prepayments, mandatory prepayments, amortization, maturity, redemptions, purchases, financial covenants, events of default and conditions precedent. Each Refinancing Facility may be a term loan facility, a revolving credit facility, a letter of credit facility, a swingline facility or any combination thereof, and shall be subject to each of the following requirements:

(a) the final maturity date of such Refinancing Facility shall not be earlier than the final maturity date of the Facility

being refinanced and, if such Refinancing Facility refinances more than one Facility, shall not be earlier than the latest final maturity date of any Facility being refinanced;

(b) the weighted average life to maturity of such Refinancing Facility shall not be shorter than the weighted average life to maturity of the Facility being refinanced and, if such Refinancing Facility refinances more than one Facility, shall not be shorter than the longest weighted average life to maturity of any Facility being refinanced;

(c) the aggregate principal amount of such Refinancing Facility shall not exceed the sum of the aggregate principal amount of the Loans being refinanced and, in the case of a refinancing of revolving commitments, the aggregate amount of such revolving commitments being refinanced, plus accrued and unpaid interest, fees, premiums and expenses relating to the Facilities being refinanced and the Refinancing Facility, in each case to the extent incurred in connection with such refinancing;

(d) such Refinancing Facility shall be denominated in Dollars;

(e) such Refinancing Facility shall be guaranteed by all Loan Parties that guarantee the Facility being refinanced and shall be secured by all Collateral securing the Facility being refinanced, and any Liens securing such Refinancing Facility shall have a priority no higher than the priority of the Liens securing the Facility being refinanced;

(f) the proceeds of such Refinancing Facility shall be applied, substantially concurrently with the advance thereof, to repay, repurchase, defease or otherwise discharge the Loans and Commitments being refinanced (or the portion thereof being refinanced), together with accrued and unpaid interest, fees, premiums and expenses related thereto and, in the case of a refinancing of any revolving credit facility, to cash collateralize outstanding letters of credit or other contingent obligations to the extent required by the Refinancing Amendment;

(g) such Refinancing Facility shall not require the consent of any Lender other than the Refinancing Lenders thereunder; and

(h) the Loans and Commitments under such Refinancing Facility shall, unless otherwise provided in the Refinancing Amendment, constitute Loans and Commitments, respectively, and the Refinancing Lenders shall constitute Lenders, for all purposes of this Agreement and the other Loan Documents.

(c) A Refinancing Amendment shall become effective on the date specified in such Refinancing Amendment (each, a "Refinancing Effective Date") and shall be subject to the satisfaction of each of the following conditions precedent:

(a) the Borrower and each Refinancing Lender shall have executed and delivered to the Administrative Agent the applicable Refinancing Amendment, together with any joinder agreements and other Loan Documents necessary to give effect to the Refinancing Facility;

(b) the representations and warranties made by each Credit Party in the Loan Documents shall be true and correct in all material respects (or, in the case of any representation or warranty that is qualified by materiality or Material Adverse Effect, in all respects) on and as of the Refinancing Effective Date, before and after giving effect to the Refinancing Amendment and the transactions contemplated thereby, except to the extent that any such representation or warranty relates to an earlier date, in which case it shall be true and correct in all material respects (or, if already so qualified, in all respects) as of such earlier date;

(c) no Default or Event of Default has occurred and is continuing and no Default or Event of Default shall result from the Refinancing Amendment or from the application of the proceeds of the Refinancing Facility;

(d) the Administrative Agent shall have received a certificate of a Responsible Officer of the Borrower certifying as to the matters described in the immediately preceding two items;
(e) if the Refinancing Facility is to be secured by any assets of any Credit Party, the Administrative Agent shall have received all security agreements, pledge agreements, mortgages, deeds of trust, intellectual property security agreements, financing statements and other filings and documents, together with such legal opinions, title insurance, surveys, lien searches and other certificates and instruments as the Administrative Agent may reasonably request, in each case as may be necessary or advisable to create, perfect, confirm or protect the Liens in favor of the Secured Parties with respect to the Collateral and to confirm the validity, enforceability and perfection of the guarantees and Liens contemplated by the Loan Documents;
(f) the Borrower shall have paid, or caused to be paid, to the Administrative Agent and the Refinancing Lenders all fees and expenses (including the reasonable and documented fees and expenses of counsel to the Administrative Agent) agreed to be payable in connection with the Refinancing Amendment and the Refinancing Facility; and
(g) the Administrative Agent shall have received such customary know your customer, anti-money laundering and beneficial ownership information as the Administrative Agent may reasonably request with respect to any Refinancing Lender that is not an existing Lender.
(d) The provisions of this Section shall apply to any subsequent refinancing of a Refinancing Facility in the same manner as they apply to the refinancing of any other Facility. A Refinancing Amendment may provide for the permanent reduction or termination of the Facilities, Commitments and Loans being refinanced and the release of any Liens and guarantees granted to secure the Facility being refinanced, in each case upon the payment in full of the obligations being refinanced and the other terms and conditions set forth in the Refinancing Amendment.
Section 2.19 (Cash Collateral). At any time that there shall exist a Defaulting Lender, then, within one Business Day following the written request of the Administrative Agent or the applicable Issuing Lender, each Borrower shall Cash Collateralize the Fronting Exposure of such Defaulting Lender with respect to all outstanding Letters of Credit issued by such Issuing Lender in an amount equal to one hundred five percent of the portion of the Fronting Exposure of such Issuing Lender attributable to such Defaulting Lender, determined after giving effect to any reallocation of the LC Exposure of such Defaulting Lender to other Lenders pursuant to this Agreement and any cash collateral provided by such Defaulting Lender. If, in the reasonable judgment of the Administrative Agent or the applicable Issuing Lender, the amount of cash collateral deposited at any time is less than the amount required by the preceding sentence, the Borrowers shall, within one Business Day after demand therefor, Cash Collateralize such shortfall. The obligation of the Borrowers to Cash Collateralize under this paragraph shall be absolute and unconditional, irrespective of any claim, defense, setoff, counterclaim or other right that any Borrower or any other Person may have against any Secured Party or any other Person, and shall be performed without regard to the validity, regularity or enforceability of any Letter of Credit or any other Loan Document.
(a) Upon the occurrence and during the continuance of any Event of Default, upon demand by the Administrative Agent or the Required Lenders, each Borrower shall Cash Collateralize all LC Exposure then outstanding and all Secured Hedge Obligations then outstanding to Secured Hedge Counterparties, in each case in an amount equal to one hundred five percent of the aggregate amount thereof as determined by the Administrative Agent in its

reasonable discretion. If an Event of Default consisting of the commencement of a bankruptcy, insolvency or reorganization proceeding with respect to any Borrower shall occur, then the obligation to Cash Collateralize under this paragraph shall become effective automatically, without any action, demand or notice by any Person, and shall continue until such time as the Administrative Agent shall have received cash collateral in the amount required by this paragraph.

(b) The Administrative Agent shall have exclusive dominion and control over, and the sole right of withdrawal from, each cash collateral account. No Borrower shall have any right to withdraw, transfer or otherwise direct any cash or other property held in any cash collateral account. The Borrowers shall, at their sole cost and expense, execute and deliver, and shall cause each bank or other financial institution maintaining any cash collateral account to execute and deliver, such account control agreements, acknowledgements, disclaimers and other documents as the Administrative Agent may reasonably request to perfect and maintain a first priority security interest in, and to establish the Administrative Agent's control over, each cash collateral account and all cash, deposit accounts, securities, investment property and financial assets credited thereto. The Administrative Agent may, in its sole discretion, invest or cause to be invested any cash held in any cash collateral account in such Permitted Investments as the Administrative Agent may select, and all such investments and any proceeds thereof shall be held as cash collateral for the obligations in respect of which such cash collateral was provided. The Borrowers shall pay all reasonable costs and expenses incurred in connection with the establishment, maintenance, administration and termination of each cash collateral account and any investments held therein.

(c) The Administrative Agent may apply cash collateral held pursuant to this Section as follows, in the following order of priority: first, to reimburse the Issuing Lenders for drawings under any Letters of Credit and to pay any fees, premiums, expenses, reimbursements, indemnities or other amounts then due and payable to the Issuing Lenders in respect of Letters of Credit; second, to pay the Administrative Agent any fees, expenses, indemnities or other amounts then due and payable under the Loan Documents; third, to pay Secured Hedge Obligations then due and payable to any Secured Hedge Counterparty; fourth, to pay all other Obligations then due and payable; and fifth, to the extent that any cash collateral remains after all Obligations have been indefeasibly paid in full in cash and all Letters of Credit have been cancelled, expired or terminated without any continuing reimbursement obligations, to the Borrowers or as otherwise required by applicable law or ordered by a court of competent jurisdiction.

(d) If the applicable Defaulting Lender provides cash collateral with respect to its Fronting Exposure, the Borrowers' obligation to Cash Collateralize the Fronting Exposure of such Defaulting Lender shall be reduced by the amount of cash collateral provided by such Defaulting Lender. If any Fronting Exposure with respect to which cash collateral has been provided by the Borrowers is reduced as a result of the expiration or termination of Letters of Credit, the reallocation of such Fronting Exposure to another Lender, the payment of drawings under such Letters of Credit, the occurrence of any other reduction in such Fronting Exposure or otherwise, the Administrative Agent shall, promptly upon request of the Borrowers and at the Borrowers' sole cost and expense, return to the Borrowers any cash collateral held with respect to such Fronting Exposure to the extent that the amount of cash collateral exceeds the amount of the remaining Fronting Exposure with respect to which cash collateral is then required to be maintained. For the avoidance of doubt, the Borrowers shall not be required to Cash Collateralize any portion of the Fronting

Exposure that has been reallocated to another Lender or otherwise eliminated.

(e) If any Event of Default giving rise to the obligation to Cash Collateralize under this Section shall be cured or waived, and no Event of Default shall be continuing, the Administrative Agent shall return to the Borrowers, or apply to the Obligations as the Administrative Agent shall elect, any cash collateral held solely on account of such Event of Default to the extent such cash collateral is no longer required to secure or Cash Collateralize the LC Exposure or Secured Hedge Obligations then outstanding. No cash collateral provided by a Defaulting Lender shall be released except to the extent expressly permitted by the definition of Defaulting Lender or with the written consent of the Administrative Agent and the applicable Issuing Lender.

(f) The Borrowers shall not, and shall not permit any of their Subsidiaries to, directly or indirectly, create, incur, assume or suffer to exist any Lien on any cash collateral account or any cash, deposit account, securities, investment property or financial assets credited thereto, other than the Liens in favor of the Administrative Agent for the benefit of the Secured Parties and any Liens expressly permitted by this Agreement. If any cash collateral account or any cash or financial assets credited thereto is subjected to any Lien, judgment, attachment, setoff or other claim in favor of any Person other than the Administrative Agent or the Secured Parties, the Borrowers shall, promptly upon demand by the Administrative Agent, deposit additional cash collateral in an amount equal to the amount subject to such claim and shall take any other action necessary to eliminate any impairment of the Administrative Agent's security interest therein.

(g) Each Borrower shall cause each cash collateral account to be established and maintained in a manner satisfactory to the Administrative Agent and, in the case of any cash collateral account securing the Fronting Exposure of a Defaulting Lender, satisfactory to the applicable Issuing Lender. The Borrowers shall deliver evidence of the deposit of all cash collateral and any control agreements therefor to the Administrative Agent promptly upon request. Any cash collateral deposited pursuant to this Section shall be held by the Administrative Agent as collateral for the applicable Obligations, and the Borrowers shall not be entitled to any interest or other earnings on such cash collateral unless the Administrative Agent, in its sole discretion, elects to credit interest on such cash collateral as provided in this Section; provided, however, that any such interest or earnings shall be and remain part of the cash collateral and subject to the terms of this Section.

(h) The Issuing Lenders shall not be required to issue, amend, renew, extend or increase any Letter of Credit if, after giving effect thereto, there would exist any Fronting Exposure of a Defaulting Lender unless the applicable Borrower has Cash Collateralized such Fronting Exposure in accordance with this Section or the applicable Issuing Lender has agreed in its sole discretion to permit such issuance, amendment, renewal, extension or increase without Cash Collateralization.

Section 2.20 (Judgment Currency Conversion). If, in connection with any suit, action or proceeding in any court, or any arbitral or other tribunal, for the enforcement of any judgment or order, any amount payable by any Loan Party or other Obligor under any Loan Document, including any amount payable under any judgment or order in respect of such amount and any interest thereon, is expressed or ordered to be paid in a currency other than the currency in which such amount is denominated in the relevant Loan Document, the rate of exchange used for any conversion required to determine the amount of the judgment or order in such other currency shall be the rate of exchange as

determined by the Administrative Agent on the date two Business Days immediately preceding the date of the relevant judgment or order, after giving effect to any premium or costs of conversion, at which the Administrative Agent could, in accordance with its normal practices and procedures, purchase the currency in which such amount is denominated with the currency in which such judgment or order is expressed. The date on which such rate is so determined is referred to as the Judgment Conversion Date.

If any amount in the currency in which such amount is denominated under the relevant Loan Document is converted into the currency in which such judgment or order is expressed for the purpose of obtaining or enforcing any judgment or order, and the amount of such judgment currency actually recovered by the relevant Secured Party pursuant to such judgment or order, after giving effect to any costs and expenses of conversion and any premium, is less than the amount in such judgment currency which, when converted at the rate of exchange determined as of the Judgment Conversion Date, would equal the amount of the original currency due under the relevant Loan Document, each Loan Party and each other Obligor that is liable for such amount shall, jointly and severally, as a separate and independent obligation, indemnify and hold harmless the Administrative Agent and each Secured Party against and from any such deficiency. Such deficiency shall be a separate and independent obligation of such Loan Parties and Obligors, shall not merge with or be affected by any judgment or order, and shall bear interest from the date of such determination until paid at the rate from time to time applicable to such original amount under the relevant Loan Document.

If any amount in such judgment currency actually recovered by the relevant Secured Party exceeds, at the rate of exchange determined as of the Judgment Conversion Date, the amount of the original currency due under the relevant Loan Document, the relevant Secured Party shall, to the extent it receives such excess in a form that can be returned, return such excess to the applicable Loan Party or Obligor, provided that such Secured Party shall have no obligation to invest or otherwise maintain such excess and shall not be liable for any loss or diminution in value thereof in the absence of its gross negligence or willful misconduct.

For purposes of this Section, rate of exchange means the spot rate of exchange at which the Administrative Agent, at approximately eleven o'clock, London time, on the date on which such rate is to be determined, would be able to purchase the currency in which such amount is denominated under the relevant Loan Document with the currency in which such judgment or order is expressed at its London office, or, if such rate is not available at such office, at such other office of the Administrative Agent as the Administrative Agent may select, taking into account any required foreign exchange transaction costs; provided that the Administrative Agent's determination of such rate shall be conclusive and binding absent manifest error.

Notwithstanding anything to the contrary in any Loan Document, the obligations of each Loan Party and each other Obligor to pay any amount in the currency of the relevant Loan Document under such Loan Document shall be discharged and satisfied only to the extent of the amount in such currency that the relevant Secured Party receives after converting, in accordance with its normal practices, any judgment currency actually received by it. If the amount in such currency so received is less than the amount of such obligation originally expressed to be payable, the applicable Loan Party or Obligor shall remain liable for such shortfall, and the provisions of this Section shall apply to any claim, action or proceeding for such shortfall.

Section 2.21 (Sharing of Payments). (a) The Lenders agree among themselves that, if any Lender shall obtain any payment, whether voluntary, involuntary, by or on behalf of any Loan Party, by exercise of any right of setoff or banker's lien, by counterclaim, by application of insurance proceeds or condemnation awards, through any proceeding under any Debtor Relief Law, by receipt of any other collateral or proceeds thereof, or otherwise, on account of any Obligations owed to such Lender at any time in excess of its ratable share of all payments received by all Lenders on account of such Obligations, then such Lender shall, within two Business Days after the receipt of such excess payment, purchase from each of the other Lenders such participations in the Obligations held by such other Lenders as shall be necessary to cause such Lender to share such excess payment ratably with each of the other Lenders; provided that, if all or any portion of such excess payment is thereafter recovered from such Lender, the purchase of such participations shall be deemed to have been rescinded to the extent of such recovery, and the purchase price therefor shall be returned to such Lender, without interest.

(b) Each Lender further agrees that, if it receives any payment on account of any Obligations, whether by voluntary payment, by realization upon security, by setoff, by counterclaim or otherwise, prior to the time the Administrative Agent has distributed to all Lenders their ratable shares of a corresponding payment received by the Administrative Agent from any Loan Party or other obligor, such Lender shall promptly pay to the Administrative Agent, for the account of the Lenders, an amount sufficient to permit the Administrative Agent to distribute to each Lender its ratable share of such corresponding payment, and the amount so paid to the Administrative Agent shall be held and applied as provided in this Agreement.

(c) If any Lender shall obtain possession of any collateral, insurance proceeds, condemnation award, or other property or proceeds of any Loan Party in connection with the exercise of any right of setoff, banker's lien, counterclaim or similar right, it shall hold such property in trust for the benefit of the Administrative Agent and the Lenders and shall promptly deliver such property to the Administrative Agent, for application to the Obligations in accordance with this Agreement; and any Lender that fails to comply with this paragraph shall indemnify the Administrative Agent and each other Lender for any loss, cost or expense incurred as a result of such failure.

(d) The provisions of this Section shall not be construed to apply to any payment made by or on behalf of any Loan Party pursuant to and in accordance with the express terms of this Agreement or any other Loan Document, including any payment of principal, interest, fees, or other amount that is distributed to the Lenders in accordance with their respective ratable shares, nor to any payment received by any Lender as consideration for an assignment or participation of any Obligation effected in accordance with this Agreement, nor to any payment made by a Lender to the Administrative Agent for the account of any other Lender pursuant to the terms of this Agreement.

(e) Each Lender agrees that it shall not assert or enforce any right of setoff, banker's lien, counterclaim or similar right against any Loan Party with respect to any Obligations unless, promptly after any such assertion or enforcement results in a payment to such Lender in excess of its ratable share, such Lender complies with the provisions of this Section. Any Lender that obtains a payment in excess of its ratable share shall promptly notify the Administrative Agent of the receipt and amount of such excess payment.

(f) The Borrower and each other Loan Party, to the extent permitted by applicable law, consent to the arrangements set forth in this Section and agree that any Lender holding a participation in an Obligation acquired pursuant to this

Section may exercise all rights of payment and enforcement with respect to such participation, including any right of setoff, as fully as though such Lender were a direct creditor of the Borrower or such other Loan Party in the amount of such participation. The provisions of this Section shall be for the sole benefit of the Administrative Agent and the Lenders, and no Loan Party or other Person shall have any right to enforce or rely upon any provision of this Section; provided that each Loan Party may rely on the provisions of this Section to the extent necessary to ensure that it is not required to make any payment in respect of any Obligation in excess of the amounts actually payable under the Loan Documents.

(g) Nothing in this Section shall be deemed to require any Lender to share any payment that such Lender receives from any other Lender, any payment that is made to all Lenders in accordance with their respective ratable shares by a debtor or trustee in bankruptcy or similar proceeding, or any payment received in respect of any obligation that is not an Obligation under this Agreement.

(h) If any Lender shall fail to purchase participations or pay to the Administrative Agent any amount required to be paid by it pursuant to this Section, the Administrative Agent shall have the right, in addition to any other rights and remedies available to it or the other Lenders, to set off against any amounts held by the Administrative Agent for the account of such Lender any amounts owed by such Lender to the Administrative Agent or any other Lender pursuant to this Section; provided that the failure of the Administrative Agent to exercise such right shall not constitute a waiver and shall not relieve such Lender of its obligations under this Section.

(i) Each Lender from which a participation is purchased pursuant to this Section shall deliver to the purchasing Lender such information and documentation as may be reasonably requested in connection with such participation, and shall remit to the purchasing Lender its ratable share of all payments and other distributions received by it with respect to the Obligations subject to such participation.

Section 2.22 (Application of Payments). (a) Unless this Agreement shall otherwise expressly provide, all payments and prepayments received by the Administrative Agent from or on behalf of any Loan Party in respect of the Obligations, and all proceeds of any Collateral received or realized by the Administrative Agent, shall be applied by the Administrative Agent in the following order of priority:

first, to payment of that portion of the Obligations constituting fees, indemnities, expenses, reimbursements and other amounts then due and payable to the Administrative Agent in its capacity as such;

second, to payment of that portion of the Obligations constituting fees, indemnities, expenses, reimbursements and other amounts then due and payable to the Lenders in respect of the Loan Documents, other than principal and interest, ratably among the Lenders in accordance with the amounts of such Obligations then due and payable to them;

third, to payment of that portion of the Obligations constituting accrued and unpaid interest in respect of the Loans, ratably among the Lenders in accordance with the amounts of such interest then due and payable to them;

fourth, to payment of that portion of the Obligations constituting accrued and unpaid interest and fees in respect of any Swap Contract or Cash Management Agreement to the extent then due and payable, ratably among the applicable Secured Parties;

fifth, to payment of that portion of the Obligations constituting unpaid principal of the Loans, ratably among the

Lenders in accordance with the amounts of such principal then due and payable to them; and
sixth, to payment of all other Obligations then due and payable, ratably among the Secured Parties in accordance with the amounts thereof.
(b) If an Event of Default has occurred and is continuing, the Administrative Agent may, and at the direction of the Required Lenders shall, apply all payments and proceeds of Collateral received in respect of the Obligations in the order set forth in paragraph (a) above, or in such other order or priority as the Required Lenders may direct. So long as no Event of Default has occurred and is continuing, the Borrower may direct the Administrative Agent in writing to apply any voluntary prepayment of the Loans to particular Loans, and in the absence of any such direction, such prepayment shall be applied first to the Term Loans until paid in full and then to the Revolving Loans.
(c) Any payment or prepayment of any Loan shall be applied to the outstanding balance of such Loan held by each Lender ratably in accordance with the outstanding principal amount of such Lender's applicable Loans, unless otherwise expressly provided in this Agreement or the applicable Loan Document.
(d) If the Administrative Agent receives any payment or prepayment of the Obligations that is less than the aggregate amount then due and payable with respect to the Obligations, then, unless otherwise directed in writing by the Required Lenders, the Administrative Agent shall apply such payment or prepayment to the Obligations in the order set forth in paragraph (a) above; provided that, unless the Borrower and the Administrative Agent otherwise agree, no amount shall be applied to the principal of any Loan unless all accrued and unpaid interest with respect to such principal amount has been paid currently.
(e) In no event shall any payment or prepayment of Revolving Loans be applied to reduce the Revolving Credit Commitments unless such reduction is expressly required by this Agreement. Any voluntary prepayment of Revolving Loans may be reborrowed, subject to the terms and conditions of this Agreement, and any mandatory prepayment of Revolving Loans shall reduce the Revolving Credit Commitments only to the extent expressly required by this Agreement.
(f) The Administrative Agent and the Lenders shall not be required to apply any payment or prepayment in a manner that would violate any provision of this Agreement or any other Loan Document, and any payment or prepayment applied in a manner consistent with the order set forth in paragraph (a) above shall be conclusively presumed to have been properly applied.
Section 2.23 (Currency Equivalents). a. All determinations of the Dollar Equivalent of any amount denominated or expressed in a currency other than Dollars, and the equivalent in any other currency of any amount denominated or expressed in Dollars, shall be made by the Administrative Agent using the Exchange Rate determined in accordance with this Section. Each such determination shall be made in good faith and, absent manifest error, shall be conclusive and binding on the Borrowers, each other Loan Party, each Lender, each Issuing Lender and each Swing Line Lender. Upon the reasonable request of the Borrowers, the Administrative Agent shall provide a written statement showing the Exchange Rates used in making any determination under this Section and the resulting Currency Equivalents.
b. The Dollar Equivalent of any Loan, Letter of Credit Outstandings, Swing Line Loan or other amount denominated in a Foreign Currency shall be determined on each date on which any such amount is required to be measured under

this Agreement and, in any event, on the date of each Borrowing, on the date of each issuance, amendment, extension, increase or reinstatement of a Letter of Credit, and on the last Business Day of each fiscal quarter. The Administrative Agent shall use the Exchange Rate with respect to such Foreign Currency as in effect at approximately twelve noon, New York City time, on the date of determination; provided that, if such Exchange Rate is not available on such date, the Administrative Agent shall use the most recent Exchange Rate for such Foreign Currency available to it, adjusted, as reasonably determined by the Administrative Agent, to reflect any material change in the value of such Foreign Currency between such date and the date of the most recent available quotation. The Administrative Agent shall not convert any amount more than once in connection with any single calculation under this Agreement.

c. If the Administrative Agent determines that an Exchange Rate for any Foreign Currency is not quoted, available or ascertainable, or that such Foreign Currency is no longer readily available, freely convertible or freely transferable in the interbank market, the Administrative Agent shall promptly notify the Borrowers and the Lenders. After the delivery of such notice, the Borrowers shall not be entitled to request, and the Lenders shall not be obligated to make, any new Borrowing, and the Issuing Lenders shall not be obligated to issue, amend, extend or increase any Letter of Credit, in such Foreign Currency. Any outstanding Loan denominated in such Foreign Currency shall be repaid by the Borrowers on the earlier of the last day of the then-current Interest Period for such Loan and the thirtieth day after the date of such notice, and any drawing under a Letter of Credit denominated in such Foreign Currency shall be reimbursed in Dollars in accordance with paragraph e of this Section.

d. For purposes of determining the Dollar Equivalent of any Letter of Credit denominated in a Foreign Currency, the Dollar Equivalent of the face amount of such Letter of Credit shall be determined on the date of issuance and shall be used for all purposes until such Letter of Credit is amended, extended, increased or reinstated or the amount available to be drawn thereunder is reduced; on and after the date of any such amendment, extension, increase or reinstatement, the Dollar Equivalent of the face amount of such Letter of Credit shall be redetermined as of such date. If an Issuing Lender makes a payment to a beneficiary under a Letter of Credit denominated in a Foreign Currency, the Dollar Equivalent of such payment shall be determined using the Exchange Rate in effect on the date of such payment.

e. The obligation of the Borrowers to reimburse the Issuing Lender for any drawing under a Letter of Credit denominated in a Foreign Currency shall be discharged by payment in Dollars in an amount equal to the Dollar Equivalent of such drawing, determined as of the date the Issuing Lender pays the beneficiary under such Letter of Credit. If the Issuing Lender, in its reasonable judgment, purchases such Foreign Currency with Dollars in order to make such payment, the Borrowers shall reimburse the Issuing Lender for the actual amount of Dollars so paid, together with all associated costs, expenses and charges incurred by such Issuing Lender in connection with such purchase. The Issuing Lender shall notify the Borrowers of the Dollar amount to be reimbursed, and such notice shall be conclusive and binding on the Borrowers absent manifest error.

f. In any calculation under this Agreement that combines amounts denominated in different currencies, the Administrative Agent shall convert each such amount into Dollars as of the same date of determination, using the Exchange Rate applicable to each such currency on such date, and shall then aggregate such Dollar Equivalent

amounts. No amount shall be converted twice in connection with any such calculation.

g. The Borrowers shall pay, within five Business Days after the delivery of an invoice, all reasonable costs, expenses, taxes, assessments and charges incurred by the Administrative Agent, any Issuing Lender or any Lender in connection with the conversion, purchase, exchange or transfer of any Foreign Currency into Dollars or of Dollars into any Foreign Currency, in each case solely to the extent such conversion, purchase, exchange or transfer is effected in connection with the making, maintaining, repayment or reimbursement of any Loan or Letter of Credit denominated in a Foreign Currency. This paragraph g shall not apply to any costs, expenses, taxes, assessments or charges that are subject to another indemnification or reimbursement provision of this Agreement.

h. The Administrative Agent and each Issuing Lender may rely on any quotation supplied by their designated foreign exchange dealers, and neither the Administrative Agent nor any Issuing Lender shall have any liability to the Borrowers or any other Person for any loss, cost or expense incurred in connection with any currency conversion or revaluation, except to the extent determined by a court of competent jurisdiction in a final, non-appealable judgment to have resulted from such Person's gross negligence or willful misconduct. The Borrowers shall be solely responsible for all currency exchange risks associated with Loans and Letters of Credit denominated in Foreign Currencies, and no provision of this Agreement shall be construed to transfer or allocate any such risk to the Administrative Agent, any Issuing Lender or any Lender.

Section 2.24 (Electronic Transmissions). (a) For purposes of this Section, "Electronic Transmission" means any communication or document transmitted by electronic mail, by facsimile, or through any electronic platform designated by the Administrative Agent for use in connection with this Agreement, and "Electronically Transmitted" shall have a correlative meaning. The Borrower, each other Loan Party, each Lender, and each Issuing Bank consent to the use of Electronic Transmissions in connection with this Agreement and the other Loan Documents.

(b) Any notice, request, instruction, consent, approval, certificate, report, financial statement, borrowing request, prepayment notice, conversion notice, continuation notice, designation notice, letter of credit application, or other communication required or permitted to be given or made under this Agreement or any other Loan Document, other than any communication that the Administrative Agent, any Issuing Bank, or any Lender expressly requires to be delivered in physical form, may be delivered or otherwise transmitted to the Administrative Agent, such Issuing Bank, or such Lender by Electronic Transmission to the electronic address or facsimile number designated by such Person in accordance with this Section. Each Lender and each Issuing Bank shall designate to the Administrative Agent one or more electronic addresses or facsimile numbers for the receipt of Electronic Transmissions. The Administrative Agent shall designate to the Borrower, each Lender, and each Issuing Bank one or more electronic addresses and facsimile numbers for the receipt of Electronic Transmissions. Such designations may be changed from time to time by notice to the other parties.

(c) The Administrative Agent may, in its discretion, establish and maintain an electronic platform for posting communications and documents. The Borrower shall, at its expense, provide to the Administrative Agent all information and documents required to be delivered by the Borrower pursuant to the terms of this Agreement or any other Loan Document in such electronic form and format as the Administrative Agent may reasonably request so that the Administrative Agent may make such information and documents available to the Lenders and Issuing

Banks through such platform. Each Lender and each Issuing Bank shall be responsible for maintaining the confidentiality and security of its access credentials in accordance with the provisions of this Agreement regarding confidential information. No Lender or Issuing Bank shall be deemed to have received any communication posted on such platform unless such Lender or Issuing Bank has actually accessed, or has been given notice of the posting and failed to access, such communication.

(d) Unless otherwise expressly provided in this Agreement or any other Loan Document, an Electronic Transmission shall be deemed delivered at the time it is sent to the applicable electronic address or facsimile number and, if sent after five o'clock in the afternoon on a Business Day, or on a day that is not a Business Day, it shall be deemed delivered on the next succeeding Business Day. An Electronic Transmission posted to an electronic platform shall be deemed delivered on the first Business Day after the date on which the posting is made, unless the posting occurs before five o'clock in the afternoon on a Business Day, in which case it shall be deemed delivered on the date of posting. The Administrative Agent, each Issuing Bank, and each Lender may rely on the date and time indicated in the electronic transmission, and any confirmation of transmission generated by the sender's electronic mail or facsimile system, as conclusive evidence of delivery.

(e) The Borrower shall, and shall cause each other Loan Party to, ensure that all Electronic Transmissions sent by or on behalf of the Borrower or any other Loan Party are sent by an authorized officer or other authorized representative of such Person. The Administrative Agent, each Issuing Bank, and each Lender may conclusively rely on any Electronic Transmission that purports to have been sent by an authorized officer or authorized representative, and no such Person shall have any duty to verify the identity or authority of the sender.

(f) This Agreement and each other Loan Document may be executed and delivered by Electronic Transmission of portable document format or other electronic signatures. An electronic signature delivered by Electronic Transmission shall have the same force and effect as an original manual signature for all purposes, including for purposes of any applicable law governing the enforceability of electronic signatures. Any Lender or Issuing Bank may, at its option, require the Borrower or any other Loan Party to deliver an original manual signature page or an additional conformed signature in physical form before giving effect to any such electronic signature, and no party shall be required to accept an electronic signature if such party, in its sole discretion, is not satisfied with the authenticity or reliability of the manner in which such signature was created or transmitted.

(g) The Borrower shall promptly notify the Administrative Agent of any change in the Borrower's electronic mail address, facsimile number, or other electronic address for the receipt of notices and other communications. Each Lender and each Issuing Bank shall promptly notify the Administrative Agent of any change in such Lender's or Issuing Bank's electronic mail address, facsimile number, or other electronic address. The Administrative Agent shall be entitled to rely on the most recent notice of such change. No party shall have any liability for any loss, cost, damage, or expense arising out of any delay, misdirection, interception, unauthorized access to, or failure of, any Electronic Transmission, except to the extent any such loss, cost, damage, or expense is determined by a final, non-appealable judgment of a court of competent jurisdiction to have resulted from the gross negligence or willful misconduct of the party seeking to be exculpated.

(h) For the avoidance of doubt, any requirement that a notice or other communication be in writing shall be satisfied

by an Electronic Transmission if the communication is preserved in retrievable form and is capable of being reproduced in printed form. Nothing in this Section shall require the Administrative Agent, any Issuing Bank, or any Lender to accept any transmission that it reasonably believes is fraudulent, unauthorized, or technically defective, or to post to an electronic platform any communication that it reasonably believes is not suitable for posting.

Section 2.25 (Certain Waivers of the Borrower). The Borrower, for itself and, to the fullest extent that it may effectively do so under applicable law, for each of its Subsidiaries and each of their respective successors and assigns, hereby irrevocably, knowingly, expressly and unconditionally waives, to the fullest extent permitted by applicable law, each of the following:

(a) The Borrower waives any right to require the Administrative Agent, the Issuing Bank, the Swingline Lender or any Lender, or any of their respective Affiliates or representatives, to institute any action, to exhaust any remedy, to marshal assets, to take any action against any Collateral or other security, or to proceed against any other Person, before the Administrative Agent, the Issuing Bank, the Swingline Lender or any Lender may exercise any right, power or remedy under any Loan Document or applicable law.

(b) The Borrower waives any right to notice of any action taken by any Agent Party in connection with any Loan Document, including any right to notice of the exercise of any setoff, banker's lien, security interest, power of sale, foreclosure, realization or other right or remedy, and any right to a hearing or other prior judicial or administrative determination in connection with any such action.

(c) The Borrower waives diligence, presentment, demand for payment, protest, notice of dishonor, notice of default or delinquency, notice of intent to accelerate, notice of acceleration, notice of nonpayment, notice of acceptance of this Agreement or any other Loan Document, and all other notices and demands of any kind or nature whatsoever in connection with the Loans, the Loan Documents, or any renewal, extension, modification, supplement, amendment or restatement of any thereof.

(d) The Borrower waives any defense, setoff, recoupment, counterclaim or claim against any Agent Party based upon or arising out of any election of remedies by such Agent Party, including any election to proceed against any Collateral or other security in any order or manner that may impair, destroy or diminish any right of the Borrower to be subrogated to, or to receive reimbursement, contribution or indemnity from, any other Person.

(e) To the fullest extent permitted by applicable law, the Borrower waives any claim for consequential, special, punitive, exemplary or indirect damages, or any damages of a like nature, against any Agent Party or any of its or their respective Affiliates, partners, members, shareholders, directors, officers, employees, agents, attorneys, consultants, advisors and representatives, in connection with, arising out of, or related to any Loan Document, the transactions contemplated thereby, the use of the proceeds of the Loans, or any act or omission in connection with any of the foregoing; provided, however, that this paragraph shall not apply to any claim for damages that are the direct, natural and foreseeable consequence of a breach by an Agent Party of its express obligations under any Loan Document, nor to any claim for damages arising from the fraud, gross negligence, willful misconduct or bad faith of the Agent Party against which such claim is asserted, nor to any right of the Borrower to seek specific performance, injunctive relief or other equitable relief against any Agent Party.

(f) The Borrower waives any rights of subrogation, reimbursement, contribution, indemnity and any other rights of

payment whatsoever against any other Loan Party or any guarantor or surety of any of the Obligations, and any rights of recourse to any Collateral, that may arise as a result of any payment made by the Borrower under any Loan Document, until the Obligations have been indefeasibly paid in full and all Commitments, Letters of Credit, Swap Agreements and Treasury Management Agreements, if any, have expired or terminated and all amounts payable thereunder have been irrevocably paid in full.

(g) The Borrower waives any right to claim, assert or receive the benefit of any exemption, stay, moratorium, appraisement, valuation, reinstatement, redemption or other delay or extension of time of payment of any of the Obligations, or to otherwise hinder, delay or impede the enforcement of any right, power or remedy of any Agent Party under any Loan Document.

(h) The Borrower waives any right to require the Administrative Agent or any Lender to disclose to the Borrower any information or evaluation regarding the financial condition, operations, business, assets or prospects of any other Person in connection with any request for credit, any borrowing, any amendment, consent, approval or waiver under any Loan Document, or any exercise of remedies, except to the extent, if any, expressly required by this Agreement.

(i) To the fullest extent permitted by applicable law, the Borrower knowingly, voluntarily and intentionally waives the right to trial by jury in any action, proceeding or counterclaim, whether in contract, tort, equity or otherwise, arising out of or relating to any Loan Document, the transactions contemplated thereby, or the actions of any Agent Party in connection with the negotiation, administration, performance or enforcement of any Loan Document.

(j) The Borrower waives any right to assert, in connection with any bankruptcy, insolvency, reorganization or similar proceeding involving any other Loan Party, any claim or defense based upon the discharge or release of such other Loan Party, the invalidity or unenforceability of any obligation of such other Loan Party under any Loan Document, or any impairment or diminution of the collateral security for the Obligations, in each case to the extent such assertion would be inconsistent with the provisions of any Loan Document or would delay, impede or diminish the enforcement of the Obligations against the Borrower.

Section 2.26 (Reserved Rights of the Administrative Agent Regarding Rate Determinations). (a) The Administrative Agent is authorized and empowered, in its sole discretion, to calculate, determine, establish, apply, and confirm any rate, including any interest rate, benchmark rate, reference rate, replacement rate, term rate, adjusted rate, screen rate, or other similar rate used in connection with the Credit Agreement, and any related margin, spread, adjustment, or formula, and to make all determinations incidental thereto. Any such calculation, determination, establishment, application, or confirmation by the Administrative Agent shall, in the absence of manifest error, be conclusive and binding on the Borrowers, each Lender, and each Issuing Bank.

(b) In making any calculation or determination described in paragraph (a) of this Section, the Administrative Agent shall be entitled to rely conclusively upon any notice, certificate, quotation, input, screen page, publication, table, statement, or other information furnished or made available by any Lender, any Issuing Bank, any Borrower, any agent of the foregoing, or any other Person, or obtained from any financial reporting service, quotation service, interbank market, central bank, fiscal agent, governmental authority, or other authorized source, and the Administrative Agent shall not be required to verify independently, or to investigate the accuracy or completeness

of, any such information.

(c) The Administrative Agent shall have no obligation to solicit any quotation, bid, offer, or other input from any Lender or any other Person for purposes of determining any rate, and shall have no duty to continue to use any particular source, screen page, service, methodology, or convention for determining any rate. If any source, screen page, service, methodology, or convention on which any rate is based is discontinued, modified, or otherwise becomes unavailable, or if the Administrative Agent determines that such source, screen page, service, methodology, or convention does not accurately reflect the cost of funds of the Lenders, the Administrative Agent may, in its sole discretion, select an alternate source, screen page, service, methodology, or convention, and any such selection shall be conclusive and binding on the Borrowers, the Lenders, and the Issuing Banks.

(d) If the Administrative Agent determines, in its sole discretion, that a market disruption, rate unavailability, or rate inadequacy event has occurred, the Administrative Agent may, upon not less than five Business Days' notice to the Borrowers and the Lenders, either establish a temporary replacement or alternative rate for any affected rate, or suspend the obligation of the Lenders to make, convert, or maintain loans bearing interest at the affected rate until such time as the Administrative Agent determines that the applicable event has ceased or a replacement rate has been selected. Any temporary replacement or alternative rate shall be calculated by the Administrative Agent in a manner that, in its sole discretion, reflects the cost of funds of the Lenders during such period, and shall be applied consistently to all Lenders.

(e) The Administrative Agent may establish and revise from time to time such assumptions, conventions, and procedures relating to any rate determination as it determines in its sole discretion to be appropriate, including, without limitation, conventions relating to business days, day count fractions, compounding, calculation periods, and timing of notice. Each Lender, by requesting any loan bearing interest at an affected rate, and each Issuing Bank, by issuing any letter of credit bearing an affected rate, shall be deemed to have consented to any such assumptions, conventions, and procedures established by the Administrative Agent.

(f) The Administrative Agent may, in determining any rate, give effect to any reserve requirement, special deposit, insurance assessment, or other similar charge or requirement applicable to the Lenders as determined by the Administrative Agent, and any such determination shall be conclusive and binding. If any such reserve requirement, special deposit, insurance assessment, or other similar charge or requirement changes, the Administrative Agent may adjust the affected rate accordingly.

(g) Nothing in this Section shall obligate the Administrative Agent to make any rate determination or calculation that it is not expressly required to make under the Credit Agreement or any other Loan Document, and the Administrative Agent shall not be liable to any Borrower, any Lender, any Issuing Bank, or any other Person for any error, delay, or omission in any rate determination, or in the selection of any source or methodology, except in the case of gross negligence or willful misconduct of the Administrative Agent. In the absence of a rate selected, determined, or established by the Administrative Agent, the rate last determined shall, to the extent not contrary to any term of the Credit Agreement, continue to apply until a new rate is selected, determined, or established.

(h) The failure of the Administrative Agent at any time or from time to time to exercise any right described in this Section shall not constitute a waiver of such right, and the Administrative Agent may exercise any such right at any

time and from time to time in its sole discretion. All rights of the Administrative Agent with respect to rate determinations are reserved and are in addition to, and not in limitation of, all other rights and remedies of the Administrative Agent under the Credit Agreement and the other Loan Documents.

ARTICLE III. MANDATORY AND OPTIONAL PREPAYMENTS

Section 3.01 (Mandatory Prepayments). The Borrower shall prepay the Loans, without premium or penalty (subject to any applicable LIBOR/SOFR breakage costs), with: (a) 100% of the net cash proceeds of any incurrence of Indebtedness not otherwise permitted under this Agreement; (b) 100% of the net cash proceeds of any Disposition of property or assets outside the ordinary course of business, subject to customary reinvestment rights; (c) 100% of the net cash proceeds of any casualty or condemnation event, subject to the same reinvestment rights; and (d) a percentage (stepping down as the Total Net Leverage Ratio declines) of Excess Cash Flow for each fiscal year, commencing with the first full fiscal year after the Closing Date.

Section 3.02 (Optional Prepayments). The Borrower may, upon notice to the Administrative Agent, prepay the Loans in whole or in part at any time without premium or penalty, subject to reimbursement of the Lenders' customary breakage costs, if any, in the case of a prepayment of a Term SOFR Borrowing other than on the last day of the applicable Interest Period. Partial prepayments of Term Loans shall be applied to the remaining scheduled installments in the order directed by the Borrower, or, absent direction, in direct order of maturity.

Section 3.03 (Issuance of Letters of Credit). (a) Subject to the terms and conditions of this Agreement, each Issuing Bank may, from time to time at the request of any Borrower, issue, extend, amend, renew or increase Letters of Credit for the account of such Borrower or any Subsidiary of such Borrower. No Issuing Bank shall be obligated to issue, extend, amend, renew or increase any Letter of Credit if, after giving effect to such issuance, extension, amendment, renewal or increase, (A) the aggregate amount of LC Obligations would exceed the LC Facility, (B) the Total Revolving Credit Exposures would exceed the Aggregate Revolving Credit Commitments, (C) the Revolving Credit Exposure of any Lender would exceed such Lender's Revolving Credit Commitment, (D) a Default or Event of Default has occurred and is continuing or would result from such action, or (E) such Letter of Credit would expire later than the fifth Business Day prior to the Revolving Credit Maturity Date. Any Letter of Credit issued for the account of a Subsidiary shall be issued only at the request of a Borrower, and the requesting Borrower shall be deemed to be the primary account party and shall be primarily liable for all reimbursement obligations and other obligations under this Section with respect to such Letter of Credit.

(b) Each request for the issuance, extension, amendment, renewal or increase of a Letter of Credit shall be made by an LC Request delivered to the Administrative Agent and the relevant Issuing Bank not later than five Business Days prior to the requested date, unless the relevant Issuing Bank agrees to a shorter period, and shall be signed by a Responsible Officer of the applicable Borrower. Each such LC Request shall specify (A) the requested issuance, extension, amendment, renewal or increase date, (B) the requested expiration date, (C) the requested stated amount and currency, (D) the name and address of the proposed beneficiary, (E) whether the Letter of Credit is a standby Letter of Credit or a commercial Letter of Credit, and (F) such other terms, documents and information as the relevant Issuing Bank may reasonably request. The issuance, extension, amendment, renewal or increase of any Letter of Credit shall be subject to the satisfaction of the following conditions precedent: (A) the representations and

warranties of the Loan Parties set forth in this Agreement shall be true and correct in all material respects on and as of such date, except to the extent such representations and warranties relate to an earlier date and except that any representation or warranty already qualified by materiality shall be true and correct in all respects; (B) no Default or Event of Default has occurred and is continuing or would result from such issuance, extension, amendment, renewal or increase; (C) the relevant Issuing Bank shall have received the LC Request and such application, letter of credit agreement, indemnity, security agreement or other instrument as such Issuing Bank may reasonably require; and (D) such issuance, extension, amendment, renewal or increase shall not violate Applicable Law or any order, judgment, decree, rule, regulation or directive of any Governmental Authority and shall not expose the Issuing Bank to any liability, penalty, restriction or disability. In the event of any conflict between the terms of this Agreement and any application or other instrument referred to in this subsection, the terms of this Agreement shall govern.

(c) Upon the issuance of any Letter of Credit, each Revolving Credit Lender shall be deemed to have irrevocably and unconditionally purchased, without recourse, from the relevant Issuing Bank a participation in such Letter of Credit equal to such Revolving Credit Lender's Applicable Percentage of the LC Obligations with respect to such Letter of Credit. If any Issuing Bank makes a payment under any Letter of Credit and the applicable Borrower does not reimburse such Issuing Bank by the time required by subsection (d) below, such Issuing Bank shall promptly notify the Administrative Agent, and the Administrative Agent shall promptly notify each Revolving Credit Lender of the amount of such payment. Each Revolving Credit Lender shall pay to the Administrative Agent, for the account of such Issuing Bank, its Applicable Percentage of such payment, in Dollars and in immediately available funds, not later than one Business Day after the date of the notice given by the Administrative Agent. If any Revolving Credit Lender fails to pay the amount of its participation share when due, such Revolving Credit Lender shall pay interest on such amount from the date due to the date paid at the Default Rate. The obligation of each Revolving Credit Lender to pay its participation share shall be absolute, unconditional and irrevocable, and shall not be affected by any circumstance whatsoever, including (A) the existence of any Default or Event of Default; (B) any failure by any Borrower or any other Person to satisfy any condition precedent; (C) any termination of the Revolving Credit Commitments; (D) any claim, setoff, counterclaim, defense or other right that such Revolving Credit Lender may have against any Person; (E) any invalidity, illegality or unenforceability of any Letter of Credit, this Agreement or any other agreement or instrument; (F) any amendment, waiver, consent or other modification of this Agreement or any other agreement; (G) any exchange, release, impairment or nonperfection of any collateral; or (H) any other fact, event or circumstance, whether similar or dissimilar to the foregoing, except that no Revolving Credit Lender shall be required to fund a participation if the Issuing Bank's payment under the Letter of Credit was made as a result of the gross negligence or willful misconduct of the Issuing Bank. No Revolving Credit Lender shall be responsible for the failure of any other Revolving Credit Lender to pay its participation share, and the failure of any Revolving Credit Lender to pay its participation share shall not diminish the obligation of the Borrowers to reimburse the Issuing Bank. The making of any such participation payment shall not constitute a Loan and shall not relieve the Borrowers of their reimbursement obligations under subsection (d) below.

(d) If any Issuing Bank makes a payment under any Letter of Credit, the applicable Borrower shall reimburse such Issuing Bank by paying to the Administrative Agent, for the account of such Issuing Bank, an amount in Dollars

equal to the amount of such payment, together with interest on such amount from the date of such payment to the date of reimbursement at the rate then applicable to Base Rate Loans. Such reimbursement shall be made no later than (A) if the applicable Borrower receives notice of such payment on or before eleven o'clock in the morning on a Business Day, the same Business Day, and (B) if the applicable Borrower receives notice after eleven o'clock in the morning on a Business Day, or on a day that is not a Business Day, the next Business Day. Any amount not paid when due shall bear interest at the Default Rate until paid. The Administrative Agent shall distribute any reimbursement received from the applicable Borrower to the Issuing Bank and each Revolving Credit Lender that has funded a participation share in accordance with its Applicable Percentage of the related LC Disbursement.

(e) The Borrowers shall Cash Collateralize all outstanding LC Obligations no later than the Revolving Credit Maturity Date, and at any time upon the demand of the Administrative Agent or any Issuing Bank made during the continuance of any Default or Event of Default, or at any time after the Revolving Credit Commitments are terminated while any LC Obligations remain outstanding, in an amount equal to one hundred five percent of the aggregate amount of all outstanding LC Obligations. Any Cash Collateral shall be held in a cash collateral account established with the Administrative Agent or the relevant Issuing Bank, as applicable, and shall be subject to the security interest of the Administrative Agent for the benefit of the Secured Parties and a control agreement in favor of the Administrative Agent. Such Cash Collateral may be invested in such Permitted Investments as the Administrative Agent may select, and the Borrowers shall have no right to withdraw or direct the application of such Cash Collateral. The Administrative Agent or the relevant Issuing Bank may apply Cash Collateral to the payment of LC Disbursements, accrued and unpaid fees, fronting fees, interest and other amounts owing in respect of Letters of Credit. The Borrowers shall remain liable for any shortfall. Upon indefeasible payment in full of all LC Obligations and the termination of all Letters of Credit, any Cash Collateral remaining shall be returned to the Borrowers.

(f) The obligations of the Borrowers under this Section to reimburse LC Disbursements and to Cash Collateralize outstanding LC Obligations shall be absolute, unconditional and irrevocable and shall be performed strictly in accordance with the terms of this Agreement under all circumstances, irrespective of any of the following: (A) any lack of validity or enforceability of any Letter of Credit, this Agreement or any other agreement or instrument; (B) any amendment, extension, renewal, increase, modification or waiver of or to any Letter of Credit, this Agreement or any other agreement or instrument; (C) any claim, setoff, counterclaim, defense or other right that any Borrower, any Loan Party, any beneficiary, any Lender, any Issuing Bank, the Administrative Agent or any other Person may have against any Person; (D) any draft, demand, certificate, document or other presentation under any Letter of Credit proving to be forged, fraudulent, invalid, insufficient, inaccurate, counterfeit or irregular in any respect; (E) payment by an Issuing Bank against presentation of documents that do not strictly comply with the terms of the applicable Letter of Credit, other than any payment made as a result of the gross negligence or willful misconduct of the Issuing Bank; (F) any exchange, release, impairment, invalidation, nonperfection or nonpursuit of any security or collateral; or (G) any other happening, event or circumstance, whether or not similar to any of the foregoing. Nothing in this subsection shall relieve any Issuing Bank from liability for its own gross negligence or willful misconduct as determined by a final judgment of a court of competent jurisdiction.

(g) Each Issuing Bank shall be entitled to rely upon, and shall not incur any liability for relying upon, any written or

oral notice, request, certificate, instrument, letter, telegram, facsimile, electronic message or other document or communication believed by it in good faith to be genuine and correct and to have been signed, sent or made by the proper Person. Each Issuing Bank may consult with legal counsel, independent accountants and other experts selected by it, and shall not be liable for any action taken or omitted to be taken by it in good faith in accordance with the advice of such counsel, accountants or experts. No Issuing Bank shall be liable to any Person for any action taken or omitted in connection with any Letter of Credit unless such action or omission is determined by a final judgment of a court of competent jurisdiction to constitute gross negligence or willful misconduct. Without limiting the foregoing, no Issuing Bank shall be responsible for (A) the form, validity, sufficiency, accuracy, genuineness, legality or enforceability of any document or endorsement submitted in connection with any Letter of Credit, (B) any delay, error, omission, interruption, loss or malfunction in the transmission or delivery of any document or communication, (C) any error in the translation or interpretation of any document or communication, or (D) any consequences arising from causes beyond the control of such Issuing Bank, including failures of electronic or mechanical equipment, communication lines, the Internet, or any other network or service.

(h) The Borrowers shall, jointly and severally, indemnify and hold harmless the Administrative Agent, each Issuing Bank, each Lender and each of their respective Affiliates and each of their respective officers, directors, employees, agents, advisors and controlling persons from and against any and all claims, damages, losses, liabilities, costs and expenses, including reasonable attorneys' fees and disbursements, incurred by or asserted against any such Person in connection with or arising out of any Letter of Credit, any application therefor, any drawing or honor or dishonor of any drawing, any payment or refusal to make payment, any presentation, any statement, certificate, document or other information provided in connection with any Letter of Credit, or any investigation, litigation, arbitration or other proceeding relating to any of the foregoing, whether or not such Person is a party thereto, except to the extent that such claims, damages, losses, liabilities, costs and expenses are determined by a final judgment of a court of competent jurisdiction to have resulted from the gross negligence or willful misconduct of such Person. No Person referred to in this subsection shall be liable for special, punitive, indirect or consequential damages arising out of or in connection with any Letter of Credit or any activity referred to in this Section. All amounts payable under this Section shall be paid in Dollars in immediately available funds.

(i) Each Issuing Bank shall, on the last Business Day of each calendar month and at such other times as the Administrative Agent may reasonably request, deliver to the Administrative Agent a report setting forth the outstanding Letters of Credit issued by such Issuing Bank, the stated amount and expiration date of each such Letter of Credit, and any drawings paid or reimbursed during the preceding calendar month. The provisions of this Section shall survive termination of the Revolving Credit Commitments and the payment in full of all other Obligations until all Letters of Credit have expired or been terminated and all LC Obligations have been irrevocably paid in full and any Cash Collateral with respect thereto has been returned to the Borrowers.

Section 3.04 (Letter of Credit Fees). (a) The Borrower shall pay to the Administrative Agent, for the ratable account of each Revolving Credit Lender in accordance with its Revolving Credit Commitment Percentage, a participation fee with respect to each Letter of Credit issued under this Credit Agreement for the account of the Borrower or any Subsidiary equal to the Applicable Rate per annum on the amount available to be drawn under such Letter of Credit

from time to time. Such participation fee shall accrue from and including the date of issuance of such Letter of Credit to but excluding the date on which such Letter of Credit expires by its terms, is drawn in full and not reinstated, is returned to the applicable Issuing Bank for cancellation, or is cash collateralized in accordance with this Credit Agreement. Such participation fee shall be payable by the Borrower to the Administrative Agent in arrears on the last Business Day of each March, June, September and December, on the Maturity Date and, if not paid when due, upon demand.

(b) The Borrower shall pay to each Issuing Bank, for its own account, a fronting fee with respect to each Letter of Credit issued by such Issuing Bank in an amount equal to the rate per annum separately agreed in writing between the Borrower and such Issuing Bank multiplied by the amount available to be drawn under such Letter of Credit from time to time. Such fronting fee shall accrue from and including the date of issuance of such Letter of Credit to but excluding the date on which such Letter of Credit expires by its terms, is drawn in full and not reinstated, is returned to the applicable Issuing Bank for cancellation, or is cash collateralized in accordance with this Credit Agreement. Such fronting fee shall be payable by the Borrower directly to such Issuing Bank in arrears on the last Business Day of each March, June, September and December, on the Maturity Date and, if not paid when due, upon demand.

(c) In addition, the Borrower shall pay to each Issuing Bank, for its own account, the customary documentary and processing fees and charges of such Issuing Bank incurred in connection with the issuance, amendment, renewal, extension, transfer, negotiation, presentment, dishonor, drawing, payment or administration of any Letter of Credit issued by such Issuing Bank. Such fees and charges shall be due and payable on the date incurred or, if later, the date on which such Issuing Bank delivers an invoice therefor to the Borrower.

(d) All participation fees and fronting fees payable under this Section shall be computed on the basis of a three hundred sixty-day year and actual elapsed days. Each such fee shall accrue at all times while the related Letter of Credit is outstanding, including at any time when any conditions precedent to the making of Loans or the issuance of Letters of Credit have not been satisfied, and shall be payable by the Borrower in immediately available funds in Dollars. All participation fees, fronting fees and other fees and charges payable under this Section shall be nonrefundable.

(e) The Administrative Agent shall compute all amounts payable under this Section, and such computation shall, absent manifest error, be conclusive and binding on the Borrower. The Administrative Agent shall distribute to each Revolving Credit Lender its ratable share of each participation fee actually received by the Administrative Agent under paragraph (a) as soon as practicable after receipt thereof, in accordance with such Lender's Revolving Credit Commitment Percentage.

(f) If any amount payable under this Section is not paid when due, such unpaid amount shall bear interest from and after the date due until paid in full at the Default Rate. The obligations of the Borrower to pay all amounts under this Section shall survive the termination of the Commitments and the repayment of all other Obligations until no Letters of Credit are outstanding and all such amounts have been paid in full in cash.

(g) The fees payable under this Section are in addition to, and not in lieu of, any other fees, costs, expenses or other amounts payable under this Credit Agreement or any fee letter. No Lender shall be entitled to any fee or commission

for the issuance or administration of any Letter of Credit other than the participation fees payable pursuant to paragraph (a), and no Issuing Bank shall be entitled to any fee or commission for the issuance or administration of any Letter of Credit other than the fronting fees payable pursuant to paragraph (b), the fees and charges payable pursuant to paragraph (c), and any fees separately agreed in writing between the Borrower and such Issuing Bank.
Section 3.05 (Applications for Letters of Credit). (a) The Borrower may request the issuance, amendment, renewal or extension of a Letter of Credit by delivering to the Administrative Agent and the Issuing Bank, not later than noon on a Business Day at least three Business Days prior to the proposed date of issuance, amendment, renewal or extension, or such shorter period as the Administrative Agent and the Issuing Bank may agree, a completed Letter of Credit Application signed by an Authorized Officer and such other certificates, documents and agreements as the Administrative Agent or the Issuing Bank may reasonably request. Each Letter of Credit Application shall be irrevocable and shall be binding upon the Borrower and, if the requested Letter of Credit is to be issued for the account of any other Loan Party, upon such Loan Party. The Borrower shall promptly provide such additional information as the Administrative Agent or the Issuing Bank may reasonably request in connection with any Letter of Credit Application.
(b) Each Letter of Credit Application shall specify, in form and substance satisfactory to the Administrative Agent and the Issuing Bank: the requested date of issuance, amendment, renewal or extension; the stated amount of the Letter of Credit; the proposed expiration date, which shall be not later than the earlier of twelve months after the issuance date and five Business Days prior to the Revolving Credit Termination Date, unless the Issuing Bank otherwise agrees and any resulting exposure is cash collateralized or otherwise covered to the satisfaction of the Issuing Bank; the name and address of the beneficiary; the proposed form and terms of the Letter of Credit, including the documents required for presentation and the conditions to drawing; the purpose for which the Letter of Credit is requested; and such other information as the Administrative Agent or the Issuing Bank may reasonably request.
(c) The Borrower shall not request, and the Issuing Bank shall not issue, amend, renew or extend, any Letter of Credit if, before and after giving effect to such issuance, amendment, renewal or extension: the aggregate amount of Letter of Credit Obligations outstanding would exceed the Letter of Credit Sublimit or the Revolving Credit Commitments; a Default or Event of Default exists or would result; the issuance, amendment, renewal or extension would violate any applicable law, regulation, rule, directive, judgment, order, decree or requirement of any governmental authority; or the requested Letter of Credit is for the account of any Person other than a Loan Party unless expressly permitted by this Agreement. The Issuing Bank may also decline to issue, amend, renew or extend any Letter of Credit if the Issuing Bank has determined in its reasonable judgment that such issuance, amendment, renewal or extension would expose the Issuing Bank to any unreimbursed liability or would violate any policy of the Issuing Bank applicable to letters of credit generally and consistently applied.
(d) Each Letter of Credit Application shall be deemed a representation and warranty by the Borrower that: all representations and warranties of each Loan Party contained in the Loan Documents are true and correct in all material respects on and as of the date of the application, except to the extent that such representations and warranties relate to an earlier date, in which case they are true and correct in all material respects as of such earlier

date; no Default or Event of Default has occurred and is continuing or would result from the proposed issuance, amendment, renewal or extension; the requested Letter of Credit does not violate any agreement, instrument, law, regulation or order binding on any Loan Party; and the requested Letter of Credit complies with the terms and conditions of this Agreement.

(e) The Issuing Bank may require the Borrower to execute and deliver a reimbursement agreement or other customary documents in connection with any Letter of Credit, and the Borrower shall promptly comply with such reasonable request. In the event of any conflict between the terms of any Letter of Credit Application or reimbursement agreement and the terms of this Agreement, the terms of this Agreement shall control.

(f) The Borrower shall notify the Administrative Agent and the Issuing Bank promptly after becoming aware of any drawing or demand for drawing under any Letter of Credit, any failure of any condition to a drawing, and any other event or circumstance that could reasonably be expected to result in a drawing under any Letter of Credit.

(g) The Issuing Bank shall be entitled to rely upon any Letter of Credit Application, presentation, certificate, document, instrument or other communication that it in good faith believes to be genuine and to have been signed or presented by the proper person. The Issuing Bank may consult with legal counsel, independent accountants and other experts selected by it, and shall not be liable for any action taken or inaction in reliance upon the advice of such counsel or experts. Nothing in this Section shall excuse the Borrower from any obligation to reimburse the Issuing Bank for any drawing under any Letter of Credit in accordance with this Agreement.

(h) The Borrower may not request a Letter of Credit for the benefit of, or for the account of, any Person other than a Loan Party if such Letter of Credit would support any obligation of a Person that is not a Loan Party, except to the extent that such support is expressly contemplated by the Loan Documents. Any Letter of Credit requested for the account of a Loan Party other than the Borrower shall be applied for by the Borrower on behalf of such Loan Party, and such Loan Party shall be bound by the terms of this Agreement as if it were the applicant thereof.

Section 3.06 (Existing Letters of Credit). (a) The Borrower has delivered to the Administrative Agent a true and correct list, dated as of the Closing Date, of all letters of credit that are outstanding and undrawn under the Existing Credit Agreement as of the Closing Date, specifying for each such letter of credit the account party, the beneficiary, the face amount, the date of issuance, the stated expiration date, and the issuing bank, together with any amendments thereto (such letters of credit, together with all other letters of credit issued under the Existing Credit Agreement that are outstanding on the Closing Date, the "Existing Letters of Credit").

(b) On the Closing Date, each Existing Letter of Credit shall automatically and without any further action by any Person be deemed to be a Letter of Credit issued hereunder for the account of the Borrower, as the applicable account party therefor, with the issuing bank that issued such Existing Letter of Credit deemed to be the Issuing Bank hereunder with respect thereto. Each such deemed Letter of Credit shall be subject to the terms and conditions of this Agreement and the other Loan Documents, including, without limitation, the payment of fees and reimbursement obligations in respect of Letter of Credit Usage, and shall be a Letter of Credit for all purposes of this Agreement and the other Loan Documents. For the avoidance of doubt, any Existing Letter of Credit that was supported by a participation from any lender under the Existing Credit Agreement shall, on the Closing Date, be deemed to have participations in accordance with Section 3.03, and each Lender shall promptly pay to the

Administrative Agent or the applicable Issuing Bank, as applicable, any amounts required to fund its participating interest in any drawing under any such Existing Letter of Credit in accordance with Section 3.03, as if such Existing Letter of Credit had been issued on the Closing Date.

(c) If any Existing Letter of Credit, or any portion thereof, is not either (i) cash collateralized on terms reasonably satisfactory to the applicable Issuing Bank and the Administrative Agent or (ii) replaced by a new Letter of Credit issued pursuant to this Agreement on or prior to the Closing Date, then the Borrower shall, on the Closing Date, deposit into a cash collateral account opened by the Administrative Agent with the applicable Issuing Bank an amount in immediately available funds equal to one hundred five percent of the face amount of such Existing Letter of Credit plus any accrued and unpaid fees and charges with respect thereto, to be held as cash collateral for the reimbursement obligations of the Borrower with respect to such Existing Letter of Credit. Such cash collateral shall be applied to reimburse the applicable Issuing Bank for any drawings made under such Existing Letter of Credit and, after all such Existing Letters of Credit have been fully drawn or have expired without being drawn, any remaining amount shall be returned to the Borrower.

(d) The issuance fees and fronting fees payable under Section 3.05 in respect of the Existing Letters of Credit shall accrue from and after the Closing Date based on the face amount of each such Existing Letter of Credit, notwithstanding that such Existing Letter of Credit was issued prior to the Closing Date. No fees shall be payable to any Lender or Issuing Bank in respect of any Existing Letter of Credit for any period prior to the Closing Date.

(e) The Borrower hereby jointly and severally agrees to reimburse each Issuing Bank for any drawing made under any Existing Letter of Credit in accordance with Section 3.03, subject to the same terms and conditions as apply to Letters of Credit issued hereunder, and the Borrower shall pay any fees, expenses, and charges in respect of each Existing Letter of Credit as and when due under the applicable existing reimbursement agreement or other document, to the extent not inconsistent with this Agreement.

(f) Each of the Loan Parties confirms, with respect to each Existing Letter of Credit, that all representations and warranties set forth in Article IV are true and correct in all material respects on the Closing Date with respect to such Existing Letter of Credit, except to the extent any such representation or warranty relates to an earlier date, and that no Default or Event of Default exists on the Closing Date after giving effect to the transactions contemplated by this Agreement, including the deemed issuance of the Existing Letters of Credit as Letters of Credit hereunder. Each Loan Party further agrees to take all such actions as any Issuing Bank may reasonably request to carry out the intent of this Section 3.06, including the execution and delivery of any replacement reimbursement agreements, applications, or other documents as may be reasonably requested to evidence or perfect the rights of such Issuing Bank in respect of any Existing Letter of Credit.

(g) If any Existing Letter of Credit has a stated expiration date that is later than three hundred sixty-four days after the Closing Date, the Borrower shall, not later than thirty days prior to the first anniversary of the Closing Date, cause such Existing Letter of Credit to be cash collateralized in accordance with paragraph (d) above or replaced with one or more Letters of Credit issued hereunder having a stated expiration date no later than three hundred sixty-four days after the Closing Date, and the Borrower shall take such actions as may be necessary to cause each such replacement Letter of Credit to be issued in a face amount at least equal to the undrawn amount of the Existing

Letter of Credit being replaced.

(h) The Administrative Agent, each Issuing Bank, and each Lender shall be entitled to rely conclusively on the list of Existing Letters of Credit delivered by the Borrower pursuant to paragraph (a) above without any independent investigation or verification, and no such Person shall be liable to any Loan Party or any other Person for any action taken or omitted to be taken in reliance upon such list, except for any loss, claim, or damage resulting from the gross negligence or willful misconduct of such Person as determined by a final, nonappealable judgment of a court of competent jurisdiction.

(i) In the event that any Existing Letter of Credit is not deemed to be a Letter of Credit issued hereunder as provided in paragraph (b) above because such Existing Letter of Credit cannot be legally or validly deemed to be issued under this Agreement pursuant to the terms of any document or instrument executed in connection therewith, the Borrower shall, as of the Closing Date, cash collateralize such Existing Letter of Credit in an amount equal to one hundred five percent of the face amount thereof, in accordance with paragraph (c) above, or provide such other credit support as may be reasonably satisfactory to the applicable Issuing Bank.

(j) For purposes of this Section 3.06, any reference to an Existing Letter of Credit shall include any renewal, extension, or replacement thereof that occurs after the Closing Date to the extent such renewal, extension, or replacement is permitted under this Agreement, and the terms of this Section 3.06 shall apply to any such renewed, extended, or replaced Existing Letter of Credit as if it were originally an Existing Letter of Credit. Nothing in this Section 3.06 shall be deemed to waive any condition to the availability of the Facilities set forth in Article V, and the Obligations of the Borrower under this Section 3.06 are absolute and unconditional and shall be performed in accordance with the terms of this Section 3.06 regardless of any defense or setoff that the Borrower might otherwise have.

Section 3.07 (Reimbursement Obligations). (a) The Borrower shall reimburse each Issuing Lender for any amount drawn under any Letter of Credit issued by such Issuing Lender, in the currency in which such Letter of Credit is denominated, no later than the Business Day immediately following the date on which the Borrower receives notice from such Issuing Lender of the amount of such drawing. All such reimbursements shall be made in immediately available funds in accordance with the payment provisions of this Credit Agreement.

(b) If the Borrower fails to reimburse any Issuing Lender for any drawing on or before the date required pursuant to paragraph (a) of this Section, then the Borrower shall pay to such Issuing Lender, on demand, interest on the unreimbursed amount for each day from and including the date of such drawing to but excluding the date of full reimbursement, at a rate per annum equal to the sum of the Applicable Rate for Base Rate Loans plus two percent, such interest to be payable in the same currency as such unreimbursed amount.

(c) The obligations of the Borrower under this Section to reimburse each Issuing Lender for any drawing under any Letter of Credit shall be absolute, unconditional, irrevocable, and independent of any rights or defenses the Borrower or any other Person may have against such Issuing Lender, any beneficiary of such Letter of Credit, or any other Person, including any defense arising by reason of any lack of validity or enforceability of any such Letter of Credit, any claim of fraud, forgery, or dishonor, any force majeure or similar event, or any exchange rate or other fluctuation.

(d) Upon the occurrence of any drawing under any Letter of Credit, the Borrower may, in its sole discretion, request that the amount of such drawing be made available to the Borrower as a Base Rate Loan under the Revolving Credit Facility, notwithstanding any limitation on the number of Borrowings or any other provision of this Credit Agreement to the contrary, by notifying the Administrative Agent and the applicable Issuing Lender of such request no later than one hour prior to the time of such drawing. If the Borrower makes such a request, the terms and conditions of this Credit Agreement relating to Revolving Credit Loans shall apply to such amount, and the Borrower shall then have no further reimbursement obligation with respect to such amount.
(e) The Borrower shall also reimburse the Administrative Agent, in immediately available funds, for any amount that the Administrative Agent has paid to any Lender or any Issuing Lender in respect of the Borrower's obligations under this Credit Agreement when the Borrower has failed to pay such amount when due, together with interest on such amount for each day from and including the date of such payment by the Administrative Agent to but excluding the date of reimbursement, at the rate applicable to overdue Base Rate Loans as set forth in this Credit Agreement, such interest to be payable on demand.
(f) In the event that the Borrower makes any payment to an Issuing Lender in a currency other than the currency in which the related Letter of Credit was denominated, such payment shall be made at the Exchange Rate on the date of such payment, and the Borrower shall indemnify such Issuing Lender against any losses or costs arising from any delay in converting such payment into the required currency.
(g) The obligations of the Borrower under this Section shall be in addition to, and not in limitation of, any other rights and remedies of the Administrative Agent or any Lender under this Credit Agreement or applicable law.
(h) The Borrower's reimbursement obligations under this Section shall survive the termination of this Credit Agreement and the expiry of all Letters of Credit to the extent any amounts remain unpaid or any obligations remain outstanding.
Section 3.08 (Cash Collateralization of Letters of Credit). (a) Upon the occurrence of any of the following events, the Borrower shall, in each case, Cash Collateralize the LC Exposure at such time in accordance with this Section: the Administrative Agent or any L/C Issuer notifies the Borrower in writing that an Event of Default has occurred and is continuing; the Revolving Credit Commitments are terminated or the maturity of any Loans is accelerated; or any Letter of Credit remains outstanding on or after the date that is thirty days prior to the scheduled Revolving Credit Termination Date. Such Cash Collateralization shall be effected no later than the second Business Day after the occurrence of the applicable event or, in the case of the date that is thirty days prior to the scheduled Revolving Credit Termination Date, no later than such date. For purposes of this Section, the amount required to be Cash Collateralized in respect of the LC Exposure on any date shall be equal to one hundred three percent of the LC Exposure as of such date.
(b) To effect such Cash Collateralization, the Borrower shall deposit, or cause to be deposited, with the Administrative Agent, for the benefit of the L/C Issuers and the Lenders, an amount in cash equal to one hundred three percent of the LC Exposure as of the date of such deposit. Such deposit shall be made into a cash collateral account established by the Administrative Agent in the name of the Administrative Agent for the benefit of the L/C Issuers and the Lenders. The Borrower, each other Credit Party holding any interest in such Cash Collateral, the

Administrative Agent, and each L/C Issuer shall execute and deliver such account control agreements, pledge agreements and other documents as the Administrative Agent shall reasonably request to establish and perfect the security interests described in this Section. The Borrower hereby grants, and agrees that each other Credit Party shall grant, to the Administrative Agent, for the benefit of the L/C Issuers and the Lenders, a security interest in all Cash Collateral and all proceeds, products, investments and earnings thereof, as security for the reimbursement obligations and all other obligations of the Borrower with respect to the Letters of Credit and the LC Exposure. The Administrative Agent shall have sole dominion and control over the cash collateral account and all Cash Collateral, and the Borrower shall have no right to withdraw or direct the disposition of any Cash Collateral except as expressly provided in this Section.

(c) The Administrative Agent shall hold all Cash Collateral in cash or, at the written direction of the Borrower, invest such Cash Collateral in Permitted Investments having maturities not later than the date on which such Cash Collateral may be required to be applied pursuant to this Section. All interest, dividends and other earnings on such Cash Collateral shall be held as additional Cash Collateral. The Administrative Agent shall have no obligation to invest Cash Collateral and shall have no liability for any loss or diminution in value resulting from any investment made in accordance with this Section or from the failure to invest Cash Collateral.

(d) The Administrative Agent may from time to time, and at any time upon the occurrence and during the continuance of an Event of Default, apply Cash Collateral to the payment of amounts due and unpaid in respect of drawings under Letters of Credit, unreimbursed payments made by any L/C Issuer in respect of Letters of Credit, and any fees, costs, expenses and indemnities payable by the Borrower to any L/C Issuer or the Administrative Agent in connection with such Letters of Credit, the LC Exposure or the Cash Collateral. The Borrower shall remain liable for any amounts remaining unpaid after the application of Cash Collateral, and no such application shall relieve the Borrower of its obligations under this Agreement or any other Loan Document.

(e) If at any time the aggregate amount of Cash Collateral held pursuant to this Section exceeds the amount required to be held pursuant to this Section, the Administrative Agent shall, at the written request of the Borrower, release the amount of such excess to the Borrower; provided that no such release shall be made if an Event of Default has occurred and is continuing or would result after giving effect to such release. When all Letters of Credit have been cancelled, expired or terminated and all reimbursement obligations and other amounts payable by the Borrower in respect of the Letters of Credit and the LC Exposure have been paid in full, the Administrative Agent shall promptly return to the Borrower all remaining Cash Collateral held pursuant to this Section, together with any unapplied interest or earnings thereon. Any release of Cash Collateral pursuant to this Section shall be made without recourse or warranty and at the sole cost and expense of the Borrower.

(f) With the prior written consent of the Administrative Agent and each L/C Issuer, which consent may be granted or withheld in their sole discretion, the Borrower may cause the Cash Collateral requirement under this Section to be satisfied or reduced by delivering, in lieu of cash, one or more standby letters of credit, surety bonds or other similar credit support issued by an issuer and in a form and substance reasonably acceptable to the Administrative Agent and each L/C Issuer. Upon the delivery of any such substitute credit support, the corresponding amount of Cash Collateral previously delivered pursuant to this Section shall be released to the Borrower. Any such substitute credit

support shall be held and applied in the same manner as Cash Collateral, and references in this Agreement to Cash Collateral shall include such substitute credit support to the extent so delivered.

(g) The Borrower shall pay all reasonable out-of-pocket costs and expenses, including reasonable fees, charges and disbursements of counsel to the Administrative Agent and each L/C Issuer, incurred in connection with the establishment, maintenance, administration, enforcement, release and return of any Cash Collateral and any substitute credit support delivered pursuant to this Section.

(h) The obligations of the Borrower under this Section shall survive the termination of the Revolving Credit Commitments, the termination of the Letters of Credit and the payment of all other Obligations until no LC Exposure remains outstanding and all obligations of the Borrower with respect thereto have been fully satisfied.

Section 3.09 (Resignation or Removal of the Issuing Bank). (a) Resignation. Any Issuing Bank may resign at any time upon at least thirty days prior written notice to the Administrative Agent, the Borrowers, and each other Issuing Bank. Upon receipt of any such notice of resignation, the Administrative Agent shall, with the consent of the Borrowers and subject to the provisions of clause (c) below, appoint a successor Issuing Bank. If a successor Issuing Bank has not been appointed and accepted its appointment within thirty days following the effective date of resignation specified in such notice, the resigning Issuing Bank may, with the consent of the Administrative Agent and the Borrowers, appoint a successor Issuing Bank. If no successor has been so appointed within sixty days following the effective date of resignation, the resigning Issuing Bank may petition any court of competent jurisdiction for the appointment of a successor Issuing Bank. The resignation of any Issuing Bank shall become effective on the earlier of (i) the date a successor Issuing Bank accepts its appointment pursuant to clause (d) below, or (ii) the ninetieth day following the effective date of resignation specified in the notice described in this clause (a), unless such resignation is earlier withdrawn in writing by the resigning Issuing Bank with the consent of the Administrative Agent and the Borrowers.

(b) Removal. The Borrowers may, at any time upon at least thirty days prior written notice to the Administrative Agent and any Issuing Bank, remove such Issuing Bank, and the Administrative Agent shall, with the consent of the Borrowers and subject to the provisions of clause (c) below, appoint a successor Issuing Bank, if such Issuing Bank has failed to issue a Letter of Credit in accordance with the terms of any letter of credit application or any other agreement relating to Letters of Credit when requested to do so by the Borrowers, or if such Issuing Bank has failed to fund any payment pursuant to a Letter of Credit when required to do so under this Credit Agreement or any letter of credit application, or if such Issuing Bank has otherwise committed a material breach of its obligations as an Issuing Bank hereunder. The removal of any Issuing Bank shall become effective on the earlier of (i) the date a successor Issuing Bank accepts its appointment pursuant to clause (d) below, or (ii) the sixtieth day following the effective date of removal specified in the notice described in this clause (b), unless such removal is earlier withdrawn in writing by the Borrowers.

(c) Conditions to Successor Appointment. No successor Issuing Bank shall be appointed unless such successor is a commercial bank, a financial institution, or an affiliate of a commercial bank or financial institution that (i) has a long-term credit rating of at least A minus by Standard & Poor's Rating Services and A three by Moody's Investors Service, or, if no such ratings are available, is otherwise reasonably acceptable to the Administrative Agent and the

Borrowers, (ii) has capital and surplus of at least five hundred million dollars, and (iii) is duly organized and validly existing under the laws of the United States of America, any state thereof, or the District of Columbia, and is authorized to issue letters of credit in the jurisdiction where the applicable Letters of Credit are to be issued. The Administrative Agent shall give written notice to the Borrowers and each Issuing Bank of any proposed successor Issuing Bank at least ten days prior to the effective date of such appointment. The Borrowers may, within five days of receiving such notice, object to the proposed successor Issuing Bank if such successor fails to satisfy any of the conditions set forth in this clause (c). If the Borrowers object, the Administrative Agent shall propose a different successor Issuing Bank in accordance with this clause (c).

(d) Acceptance by Successor. Any successor Issuing Bank shall, as a condition to its appointment, execute and deliver to the Administrative Agent, the Borrowers, and the resigning or removed Issuing Bank, an agreement in form and substance reasonably satisfactory to the Administrative Agent and the Borrowers, pursuant to which such successor shall assume all of the rights, obligations, and liabilities of the resigning or removed Issuing Bank under this Credit Agreement with respect to all outstanding Letters of Credit, including without limitation the obligation to pay all drafts presented under such Letters of Credit and the right to receive all reimbursement obligations, fees, and other amounts owing in respect of such Letters of Credit. Upon such execution and delivery, such successor shall become the Issuing Bank for all purposes under this Credit Agreement, and shall have all of the rights, and be subject to all of the obligations, of an Issuing Bank hereunder with respect to all Letters of Credit outstanding as of the effective date of its appointment, without any further action by any party.

(e) Transfer of Rights and Obligations. Upon the effective date of the resignation or removal of an Issuing Bank, such resigning or removed Issuing Bank shall, to the extent not already transferred pursuant to clause (d) above, assign and transfer to the successor Issuing Bank all of its interest in and to any Letter of Credit applications, cash collateral, and other security held by it in respect of any outstanding Letters of Credit, and shall take all actions reasonably requested by the Administrative Agent or the successor Issuing Bank to effectuate the orderly transfer of the administration of such Letters of Credit, including without limitation delivering any original records and documents in its possession relating to such Letters of Credit and providing such assistance as may be reasonably necessary to enable the successor Issuing Bank to perform its obligations with respect to such Letters of Credit. The successor Issuing Bank shall be entitled to receive all fees and other amounts that accrue from and after the effective date of its appointment in respect of all outstanding Letters of Credit, and the resigning or removed Issuing Bank shall be entitled to retain all fees and other amounts that accrued prior to such effective date.

(f) Effect of Resignation or Removal. Upon the effectiveness of any resignation or removal of an Issuing Bank, such Issuing Bank shall cease to be an Issuing Bank for purposes of this Credit Agreement, but shall retain all rights and remedies it may have with respect to any unpaid reimbursement obligations, fees, or other amounts owed to it with respect to Letters of Credit outstanding as of the effective date of its resignation or removal, and shall remain entitled to all protections, indemnities, and exculpations provided to it as an Issuing Bank under this Credit Agreement with respect to actions taken or omitted to be taken by it prior to such effective date. Neither the resignation nor the removal of any Issuing Bank shall affect any obligation of the Borrowers or any other Loan Party to reimburse such Issuing Bank for any payment made under a Letter of Credit prior to the effective date of such

resignation or removal.

(g) No Obligation to Issue New Letters of Credit. From and after the effective date of any resignation or removal of an Issuing Bank, the resigning or removed Issuing Bank shall have no obligation to issue any new Letter of Credit or amend, renew, or extend any existing Letter of Credit, unless such amendment, renewal, or extension is required by the terms of any letter of credit application or other agreement to which such Issuing Bank is a party and such obligation arose prior to such effective date. The successor Issuing Bank shall, upon request of the Borrowers and subject to the terms and conditions of this Credit Agreement, issue new Letters of Credit and amend, renew, or extend existing Letters of Credit, including Letters of Credit originally issued by the resigning or removed Issuing Bank, as if such successor had issued such Letters of Credit in the first instance.

(h) Cooperation Among Issuing Banks. Each Issuing Bank shall cooperate with the Administrative Agent, the Borrowers, and any successor Issuing Bank in connection with any resignation or removal effected pursuant to this Section, including without limitation by providing such information and documentation as may be reasonably necessary to permit the successor Issuing Bank to perform its obligations under this Credit Agreement and to maintain the integrity and security of the letter of credit facilities. Each Issuing Bank shall also execute and deliver, at the reasonable request of the Administrative Agent and the Borrowers, any amendments, assignments, acknowledgments, or other instruments as may be necessary or appropriate to effectuate the succession and transfer contemplated by this Section.

Section 3.10 (Reporting of Letter of Credit Information). The Borrower shall furnish to the Administrative Agent and, with respect to each Letter of Credit, to the applicable Issuing Lender and each applicable L/C Participant, all information reasonably requested by the Administrative Agent or any Issuing Lender in connection with any Letter of Credit issued, amended, renewed, extended, drawn or outstanding under the Credit Agreement. Without limiting the foregoing, the Borrower shall deliver to the Administrative Agent and each applicable Issuing Lender:

(a) within five Business Days after the end of each calendar month, a report setting forth, as of the last day of such month, for each Letter of Credit outstanding on such date, the account party, the beneficiary, the face amount, the available amount, the date of issuance, the stated expiry date, and the amount of any unreimbursed drawing, together with a schedule of any such Letter of Credit that has been amended, renewed, extended, reduced, returned, cancelled or terminated during such calendar month and such other information as the Administrative Agent or the applicable Issuing Lender may reasonably request;

(b) promptly after the Borrower obtains knowledge thereof, but in any event not later than two Business Days after the occurrence thereof, written notice of any drawing, demand for payment, honor, payment, reimbursement, amendment, renewal, extension, expiration, cancellation or termination of or under any Letter of Credit, together with a reasonably detailed description of the circumstances and the anticipated effect thereof on the aggregate undrawn amount of all Letters of Credit and the aggregate amount of unreimbursed draws thereunder;

(c) within five Business Days after the end of each fiscal quarter, a certificate of a Responsible Officer of the Borrower setting forth (i) the aggregate undrawn face amount of all Letters of Credit outstanding, (ii) the aggregate amount of unreimbursed drawings under Letters of Credit, (iii) the aggregate amount of Letters of Credit scheduled to expire during each of the next two fiscal quarters, and (iv) a list of all Letters of Credit with a face amount equal

to or greater than one million dollars that have been issued, amended, renewed or extended during such fiscal quarter, together with the net change in the aggregate undrawn amount of all Letters of Credit during such fiscal quarter;

(d) at the time of each request for issuance, amendment, renewal or extension of any Letter of Credit, all applications, reimbursement agreements, certificates and other documents and information as the applicable Issuing Lender may require in connection therewith, including a completed and executed application and reimbursement agreement in form and substance reasonably satisfactory to such Issuing Lender; and

(e) at any time upon the reasonable request of the Administrative Agent or any Issuing Lender, such other reports, notices, certificates, statements and information with respect to any Letter of Credit, the aggregate undrawn amount of all Letters of Credit, the aggregate amount of unreimbursed drawings under Letters of Credit, or the expiry, cancellation, return or reduction of any Letter of Credit as the Administrative Agent or such Issuing Lender may reasonably request.

Each report, notice, certificate and other document delivered pursuant to this Section shall be complete and correct in all material respects, shall be dated as of the date of delivery, and shall be signed by a Responsible Officer of the Borrower, except that any report or notice may be delivered by electronic mail or other electronic medium if the Administrative Agent and each applicable Issuing Lender shall have consented to such delivery. The Borrower shall cause each such report, notice, certificate and other document to be prepared in a manner consistent with the requirements of the Credit Agreement and, to the extent applicable, with the rules and standards of the International Chamber of Commerce and the prevailing practices of the applicable Issuing Lender. The Borrower shall deliver the reports required by clauses (a) and (c) above even if no Letter of Credit is outstanding, in which case each such report shall state that no Letter of Credit is outstanding. Nothing in this Section shall require the Borrower to disclose any information that is subject to attorney-client privilege or constitutes non-financial trade secrets, or the disclosure of which would breach a confidentiality obligation binding on the Borrower, in each case to the extent such information is not otherwise required to be disclosed by the express terms of this Agreement.

Section 3.11 (Letters of Credit Issued for Restricted Subsidiaries). (a) The Borrower may request the Issuing Lender to issue, amend, renew or extend Letters of Credit for the account of any Restricted Subsidiary in accordance with the terms and conditions of this Agreement. Each such request shall be made in writing, shall identify the Restricted Subsidiary for whose account the Letter of Credit is to be issued, and shall be accompanied by a written acknowledgment of such Restricted Subsidiary, in form and substance reasonably satisfactory to the Issuing Lender, that such Restricted Subsidiary has authorized the issuance of such Letter of Credit and agrees to be bound by the terms and conditions of this Agreement and the other Loan Documents applicable to Letters of Credit issued for its account as if it were the Borrower. The Borrower and such Restricted Subsidiary shall execute and deliver, or cause to be executed and delivered, to the Issuing Lender and the Administrative Agent all applications, agreements, certificates and other documents reasonably requested by the Issuing Lender in connection with the issuance, amendment, renewal or extension of such Letter of Credit. The Borrower shall not request any Letter of Credit for the account of a Restricted Subsidiary unless the Borrower would be permitted to request the issuance of such Letter of Credit for its own account under the terms of this Agreement, and no such Letter of Credit shall have a stated

expiry date later than the date on which Letters of Credit issued for the account of the Borrower are permitted to expire under this Agreement. Any request by the Borrower under this paragraph shall constitute a representation and warranty by the Borrower that such issuance, amendment, renewal or extension will not cause the aggregate Revolving Credit Exposure to exceed the aggregate Revolving Credit Commitments or the Letter of Credit Exposure to exceed the Letter of Credit Sublimit, and that such issuance, amendment, renewal or extension complies with all other applicable terms and conditions of this Agreement.

(b) The Borrower shall be jointly and severally liable with each Restricted Subsidiary for whose account any Letter of Credit is issued for all reimbursement obligations, interest, fees, commissions, expenses, indemnities and other amounts payable by such Restricted Subsidiary in respect of such Letter of Credit, whether now existing or hereafter arising and whether absolute or contingent. The Borrower shall pay to the Issuing Lender for the account of each L/C Participant letter of credit fees and fronting fees with respect to each such Letter of Credit at the same rates and times as are applicable to Letters of Credit issued for the account of the Borrower. Each such Letter of Credit shall be deemed to be a Letter of Credit for all purposes of this Agreement and the other Loan Documents, including for purposes of the guarantee obligations of the Loan Parties and the security interests granted pursuant to the Collateral Documents. For all purposes of this Agreement, the Borrower shall be deemed to be the applicant and the account party with respect to each such Letter of Credit, and the Issuing Lender and each L/C Participant shall be entitled to exercise all rights and remedies available under this Agreement and the other Loan Documents with respect to each such Letter of Credit as if such Letter of Credit had been issued for the account of the Borrower. The Letter of Credit Exposure attributable to each such Letter of Credit shall be included in the Letter of Credit Exposure of the Borrower and shall be applied against the Letter of Credit Sublimit.

(c) The issuance of any Letter of Credit for the account of a Restricted Subsidiary shall not, by itself, make such Restricted Subsidiary a borrower under this Agreement or obligate such Restricted Subsidiary to repay any Advances or other loans made under this Agreement, except as expressly provided in this Section or otherwise in the Loan Documents. No Restricted Subsidiary shall be required to execute or deliver any guarantee or other agreement in connection with the issuance of a Letter of Credit for its account other than the written acknowledgment referred to in paragraph (a) of this Section and such applications, agreements and other documents as the Issuing Lender may reasonably request. The Borrower shall cause each Restricted Subsidiary for whose account any Letter of Credit is issued to comply with all applicable laws and with the terms and conditions of this Agreement and the other Loan Documents to the same extent as if such Restricted Subsidiary were the Borrower.

(d) The obligations of the Borrower under this Section shall be absolute, unconditional and irrevocable, and shall be performed or paid without any defense, setoff, counterclaim or reduction, whether arising out of any act or omission of the Issuing Lender or any L/C Participant, any default or failure of performance on the part of any Restricted Subsidiary, any illegality or invalidity of any obligation of any Restricted Subsidiary, or any other circumstance whatsoever. The Borrower waives any right to require the Issuing Lender or any L/C Participant to proceed against any Restricted Subsidiary or to pursue any other remedy before enforcing any obligation of the Borrower under this Section. The Borrower shall reimburse the Issuing Lender for the amount of any drawing under a Letter of Credit issued for the account of a Restricted Subsidiary in accordance with the provisions of this Agreement regardless of

whether such Restricted Subsidiary has authorized or ratified such drawing. The Borrower shall indemnify the Issuing Lender and each L/C Participant from and against any and all claims, losses, liabilities, costs and expenses incurred by the Issuing Lender or such L/C Participant in connection with any Letter of Credit issued for the account of a Restricted Subsidiary, except to the extent resulting from the gross negligence or willful misconduct of the Issuing Lender or such L/C Participant, as determined by a final nonappealable judgment of a court of competent jurisdiction.

(e) The Administrative Agent and the Issuing Lender shall be entitled to rely conclusively upon any request, notice, certificate, application or other document delivered by the Borrower pursuant to this Section and shall have no duty to inquire as to the authorization of any Restricted Subsidiary or the accuracy of any statement contained therein. Each such request, notice, certificate, application or other document shall be deemed to be delivered on behalf of the applicable Restricted Subsidiary, and the applicable Restricted Subsidiary shall be bound thereby to the same extent as if it had executed and delivered such document. The Issuing Lender shall have no obligation to issue, amend, renew or extend any Letter of Credit for the account of any Restricted Subsidiary if such issuance, amendment, renewal or extension would violate any applicable law, regulation or order, or unless the Issuing Lender is reasonably satisfied with the creditworthiness of such Restricted Subsidiary and the enforceability of the obligations of the Borrower under this Section. The Borrower shall, and shall cause each such Restricted Subsidiary to, furnish to the Issuing Lender such financial and other information as the Issuing Lender may reasonably request in connection with any proposed issuance, amendment, renewal or extension of any Letter of Credit for the account of such Restricted Subsidiary. The Issuing Lender shall have received such resolutions, incumbency certificates, legal opinions and other documents as it may reasonably request with respect to the authority of such Restricted Subsidiary before any such Letter of Credit is issued.

(f) The provisions of this Section shall be in addition to, and not in limitation of, the other provisions of this Agreement governing Letters of Credit, and nothing in this Section shall be construed to limit the authority or discretion of the Issuing Lender or the Administrative Agent with respect to the issuance, amendment, renewal or extension of Letters of Credit, or to waive any condition or requirement of this Agreement with respect to Letters of Credit generally.

Section 3.12 (Uniform Customs and Practice; Applicable Rules). (a) Each Letter of Credit issued under this Agreement shall be subject to the Uniform Customs and Practice for Documentary Credits, International Chamber of Commerce Publication Number Six Hundred, as the same may be amended, revised, supplemented or replaced from time to time, unless the applicable LC Issuer and the applicable Applicant otherwise agree in writing. Each Letter of Credit that is a standby letter of credit shall also be subject to the International Standby Practices, International Chamber of Commerce Publication Number Five Hundred Ninety, as the same may be amended, revised, supplemented or replaced from time to time, to the extent not inconsistent with the Uniform Customs and Practice. Each Letter of Credit that is a commercial letter of credit shall be subject to the Uniform Customs and Practice and, to the extent applicable, the Uniform Rules for Bank-to-Bank Reimbursements, International Chamber of Commerce Publication Number Seven Hundred Twenty-Five, as the same may be amended, revised, supplemented or replaced from time to time. The rules, terms and conditions set forth in the Uniform Customs and

Practice, the International Standby Practices and the Uniform Rules for Bank-to-Bank Reimbursements, as applicable, shall be incorporated into each Letter of Credit and into each application, agreement, indemnity, certificate or other document related to a Letter of Credit, and shall govern the rights and obligations of the parties to the extent not inconsistent with the express terms of this Agreement, the applicable Letter of Credit application or the applicable Letter of Credit.

(b) In the event of any conflict between the provisions of this Agreement and any applicable rule referred to in paragraph (a), the provisions of this Agreement shall control with respect to the respective rights, duties and liabilities of the Credit Parties, the Administrative Agent and the LC Issuers, and the provisions of such applicable rule shall control with respect to the respective rights, duties and liabilities of the beneficiary of a Letter of Credit and the applicable LC Issuer, unless otherwise expressly agreed in writing by the applicable LC Issuer and the applicable Applicant. No LC Issuer shall be liable to any Credit Party, the Administrative Agent or any Lender for any action taken or omitted in connection with any Letter of Credit if such action or omission is taken or omitted in accordance with this Agreement and, to the extent not prohibited by applicable law, in accordance with the applicable rule. Each LC Issuer may rely upon, and shall be fully protected in acting or failing to act in reliance upon, any presentation, document, certificate, communication or instruction that it reasonably believes to be genuine and to have been signed, sent or given by the proper person or, in the case of an electronic transmission, that it reasonably believes to have been sent by the proper person.

(c) The LC Issuers shall examine each presentation made under a Letter of Credit with reasonable care to determine whether, on its face, such presentation complies with the terms and conditions of such Letter of Credit. The LC Issuers shall give notice of any refusal of a presentation to the presenter and to the applicant thereunder in accordance with the applicable rule, and shall in any event give such notice within the time required by the applicable rule, but in no event later than the close of business on the fifth business day following the day of presentation if the applicable rule does not specify a different time limit. Unless the applicable LC Issuer gives such notice of refusal, the applicable LC Issuer shall be deemed to have honored such presentation as between the applicable LC Issuer and the applicant, and the Credit Parties shall be obligated to reimburse such honored presentation in accordance with the terms of this Agreement; provided that such deemed honor shall not apply if a court of competent jurisdiction has issued a final, nonappealable order enjoining such LC Issuer from honoring such presentation.

(d) Each LC Issuer may, in its sole discretion, and shall, upon the written request of the Administrative Agent, agree to amend, extend or otherwise modify a Letter of Credit only if the applicable Applicant and such LC Issuer have approved such amendment, extension or modification; provided that any such amendment, extension or modification shall be made in accordance with the applicable rule and shall not be effective until the Administrative Agent has received any additional fees and any additional collateral security required by the terms of this Agreement or any other Loan Document. No LC Issuer shall be obligated to issue, amend, extend or otherwise modify any Letter of Credit if such issuance, amendment, extension or modification would conflict with the Uniform Customs and Practice, the International Standby Practices or the Uniform Rules for Bank-to-Bank Reimbursements, as applicable, or with any law, rule or regulation applicable to such LC Issuer.

(e) The Administrative Agent and the LC Issuers shall not be responsible or liable for any failure or delay in the performance of their respective obligations under this Agreement or under any Letter of Credit because of any event or circumstance described in the applicable rule or otherwise beyond their reasonable control, including strikes, lockouts, labor disputes, acts of God, war, terrorism, riots, civil commotion, disruptions of electrical power or communication systems, or governmental action. The LC Issuers may disregard any presentation under a Letter of Credit made after the expiration date of such Letter of Credit, and no payment obligation shall arise with respect to any such late presentation.

(f) Nothing in this Section shall be construed to require any LC Issuer to issue or honor any Letter of Credit in violation of any applicable law, rule, regulation, order, judgment, decree or injunction, or to make any payment or perform any act contrary to the instructions of the Administrative Agent or the applicable Applicant that are consistent with the terms of this Agreement and the applicable Letter of Credit. In the event of any conflict between the Uniform Customs and Practice and the International Standby Practices with respect to a standby letter of credit, the International Standby Practices shall control with respect to standby letter of credit practice, and the Uniform Customs and Practice shall control with respect to documentary examination standards to the extent not inconsistent with the International Standby Practices.

ARTICLE IV. REPRESENTATIONS AND WARRANTIES

Section 4.01. The Borrower represents and warrants, as of the Closing Date and as of each date a credit extension is requested, that: (a) it and each Restricted Subsidiary is duly organized, validly existing and in good standing under the laws of its jurisdiction of organization; (b) the execution, delivery and performance of the Loan Documents do not violate any material Contractual Obligation; and (c) the financial statements delivered pursuant to Section 5.01 fairly present, in all material respects, the financial condition of the Borrower and its Restricted Subsidiaries as of the dates thereof.

Section 4.02 (No Conflict). The execution, delivery and performance of the Loan Documents by each Loan Party do not and will not (a) violate its Organizational Documents, (b) violate any Requirement of Law applicable to it, or (c) result in a breach of, or constitute a default under, any Material Contract to which it is a party.

Section 4.03 (Governmental Approvals). No consent, approval or authorization of, or filing with, any Governmental Authority is required in connection with the execution, delivery or performance by any Loan Party of the Loan Documents, other than filings necessary to perfect the Liens granted under the Collateral Documents.

Section 4.04 (No Material Adverse Effect). Since the date of the most recent audited financial statements delivered to the Administrative Agent, no event has occurred that has had, or could reasonably be expected to have, a Material Adverse Effect.

Section 4.05 (Litigation). There is no action, suit, proceeding or investigation pending or, to the knowledge of the Borrower, threatened against the Borrower or any Restricted Subsidiary that could reasonably be expected to result in a Material Adverse Effect, other than as disclosed on Schedule 4.05.

Section 4.06 (Environmental Matters). Except as disclosed on Schedule 4.06, the Borrower and its Restricted Subsidiaries are in compliance with all applicable Environmental Laws, and there is no pending or threatened claim relating to Hazardous Materials that could reasonably be expected to result in a Material Adverse Effect.

Section 4.07 (ERISA Compliance). Each Plan is in compliance in all material respects with ERISA and the Code, no Reportable Event has occurred with respect to any Plan that could reasonably be expected to result in a Material Adverse Effect, and no Plan is in "at-risk" status within the meaning of Section 430 of the Code.

Section 4.08 (Taxes). The Borrower and its Restricted Subsidiaries have filed all material tax returns required to be filed and paid all material Taxes due, except Taxes being contested in good faith by appropriate proceedings for which adequate reserves have been established in accordance with GAAP.

Section 4.09 (Compliance with Laws). The Borrower and its Restricted Subsidiaries are in compliance in all material respects with all applicable Requirements of Law, including Sanctions and the anti-corruption laws applicable to their respective operations.

Section 4.10 (Investment Company Act). No Loan Party is required to register as an "investment company" under the Investment Company Act of 1940.

Section 4.11 (Margin Regulations). No part of the proceeds of any Loan will be used, directly or indirectly, for a purpose that violates Regulation T, U or X of the Board.

Section 4.12 (Ownership of Property; Liens). The Borrower and its Restricted Subsidiaries have good and valid title to, or valid leasehold interests in, their respective material properties, free and clear of all Liens other than Permitted Liens.

Section 4.13 (Intellectual Property). The Borrower and its Restricted Subsidiaries own, or possess adequate licenses or other rights to use, all Intellectual Property material to the conduct of their respective businesses as currently conducted, without any known conflict with the rights of others that could reasonably be expected to result in a Material Adverse Effect.

Section 4.14 (Insurance). The Borrower and its Restricted Subsidiaries maintain insurance with financially sound and reputable insurers, in such amounts and against such risks as are customarily maintained by companies engaged in the same or similar businesses.

Section 4.15 (Solvency). On the Closing Date, after giving effect to the Transaction and the Credit Extensions to be made on such date, the Borrower and its Restricted Subsidiaries, on a consolidated basis, are Solvent.

Section 4.16 (Subsidiaries). Schedule 4.16 sets forth, as of the Closing Date, a complete and accurate list of each Subsidiary of the Borrower, its jurisdiction of organization, and the percentage of its Equity Interests owned by the Borrower or another Subsidiary, together with an identification of each Restricted Subsidiary and each Immaterial Subsidiary.

Section 4.17 (Federal Reserve Regulations). Neither the Borrower nor any Restricted Subsidiary is engaged principally, or as one of its important activities, in the business of extending credit for the purpose of purchasing or carrying Margin Stock, and no part of the proceeds of any Loan will be used, directly or indirectly, to purchase or carry any Margin Stock or to extend credit to others for such purpose.

Section 4.18 (Sanctions; Anti-Corruption Laws). None of the Borrower, any Restricted Subsidiary, or, to the knowledge of the Borrower, any of their respective directors, officers or employees, is a Sanctioned Person, and the Borrower and its Restricted Subsidiaries are in compliance in all material respects with all applicable Sanctions and Anti-Corruption Laws.

Section 4.19 (Beneficial Ownership Certification). As of the Closing Date, the information included in the Beneficial Ownership Certification, if any, delivered to the Administrative Agent is true and correct in all material respects.

Section 4.20 (No Default). No Default or Event of Default has occurred and is continuing.

Section 4.21 (Labor Matters). There are no material strikes, lockouts or other labor disputes pending or, to the knowledge of the Borrower, threatened against the Borrower or any Restricted Subsidiary that could reasonably be expected to result in a Material Adverse Effect.

Section 4.22 (Government Regulation). Neither the Borrower nor any Restricted Subsidiary is subject to regulation under any federal or state statute that restricts its ability to incur the Indebtedness contemplated by this Agreement or to grant the Liens contemplated by the Collateral Documents.

Section 4.23 (Full Disclosure). All written factual information (other than Projections and general economic and industry information) furnished by or on behalf of the Borrower to the Administrative Agent or any Lender in connection with the negotiation of this Agreement, taken as a whole and as of the date furnished, does not contain any untrue statement of a material fact or omit to state a material fact necessary to make the statements contained therein not materially misleading in light of the circumstances under which they were made.

Section 4.24 (Projections). The Projections have been prepared in good faith based upon assumptions believed by the Borrower to be reasonable as of the date made, it being understood that Projections are subject to significant uncertainty and actual results may vary materially from the Projections and such variations may be material.

Section 4.25 (Perfection of Security Interests). The Collateral Documents create, as security for the Obligations, valid and enforceable Liens on the Collateral described therein, and, when properly recorded, filed or otherwise perfected in accordance with the UCC and other applicable law, such Liens shall constitute perfected Liens on the Collateral to the extent perfection by such recording, filing or other action is possible, in each case subject only to Permitted Liens.

Section 4.26 (Title to Collateral). Each Loan Party has good and marketable title to, or valid leasehold interests in, the Collateral purported to be owned or leased by it, free and clear of all Liens other than Permitted Liens.

Section 4.27 (Senior Notes; Notes Indenture). The Senior Notes and the Notes indenture are in full force and effect, no default or event of default (however denominated) exists thereunder, and the Indebtedness evidenced by the Senior Notes constitutes Existing Indebtedness permitted under Section 7.03(c).

Section 4.28 (Common Enterprise). The Borrower and its Restricted Subsidiaries are engaged in related businesses and are economically and financially interdependent, such that each such Person's execution of the Guarantee and the grant of Liens under the Collateral Documents confers a direct or indirect economic benefit on such Person.

Section 4.29 (No Immunity). Neither the Borrower nor any Restricted Subsidiary, nor any of their respective properties, has any right of immunity, on the grounds of sovereignty or otherwise, from the jurisdiction of any court or from any legal process with respect to its obligations under the Loan Documents.

Section 4.30 (Anti-Terrorism Laws). Neither the Borrower nor any Restricted Subsidiary is in violation of any applicable anti-terrorism law, including the USA PATRIOT Act and Executive Order 13224.

Section 4.31 (No Burdensome Restrictions). The Borrower represents and warrants to the Administrative Agent and

the Lenders that, as of the Closing Date, no Credit Party or Restricted Subsidiary is a party to or bound by any Contractual Obligation, or subject to any charter, bylaw, partnership agreement, limited liability company agreement, shareholders' agreement, voting trust, or other similar organizational or governing document, or any judgment, order, writ, injunction, decree, law, rule, or regulation, that, in any such case, would reasonably be expected to (a) prohibit, restrict, or materially delay the payment by any Credit Party of any principal of, interest on, premium, or other amount due under any Loan, any reimbursement obligation under any Letter of Credit, or any Guarantee; (b) prohibit, restrict, or materially delay the performance by any Credit Party of any of its obligations under any Loan Document to which it is a party; (c) prohibit, restrict, or otherwise limit the ability of any Credit Party or Restricted Subsidiary to create, incur, assume, or suffer to exist any Lien on any of its assets or properties to secure the Obligations or any Guarantee, or the ability of the Administrative Agent or any Lender to obtain a valid and perfected Lien on any Collateral; (d) prohibit, restrict, or otherwise limit the ability of any Credit Party or Restricted Subsidiary to make any distribution, dividend, or other payment in respect of its Equity Interests, to make any loan or advance to, or transfer any assets to, the Borrower or any Guarantor, or to prepay, repay, redeem, defease, or purchase any Indebtedness; or (e) require any Credit Party or Restricted Subsidiary to maintain any financial ratio or other specified level of financial condition as a condition to the exercise by such Credit Party or Restricted Subsidiary of any right to make any payment, distribution, dividend, loan, advance, or transfer described in paragraph (d) above, except, in each case, for restrictions contained in the Loan Documents, restrictions imposed by applicable law, restrictions disclosed by the Borrower to the Administrative Agent in writing on or prior to the Closing Date, and restrictions under any other agreement permitted by this Agreement.

Section 4.32 (Material Contracts). For purposes of this Section, "Material Contract" means any contract or agreement to which any Credit Party is a party or by which any Credit Party or any of its property or assets is bound, other than any Loan Document, that (a) involves aggregate annual payments or receipts by or on behalf of the Credit Parties in excess of twenty-five million dollars, (b) provides for aggregate remaining payments or receipts by or on behalf of the Credit Parties in excess of fifty million dollars, or (c) the loss, termination, breach, default or modification of which would reasonably be expected to have a Material Adverse Effect; provided, however, that any contract or agreement terminable by any Credit Party upon not more than sixty days' notice without premium, penalty or other payment shall not constitute a Material Contract unless such contract or agreement is described in paragraph (c) of this definition.

(a) Each Credit Party has delivered or made available to the Administrative Agent, on or prior to the Closing Date, a true, correct and complete copy of each Material Contract, including all amendments, supplements, modifications, waivers, side letters and letter agreements with respect thereto, in each case in effect on the Closing Date. Each such copy is a true, correct and complete copy of the fully executed agreement and all amendments, supplements, modifications, waivers, side letters and letter agreements thereto as in effect on the Closing Date.

(b) As of the Closing Date, each Material Contract is in full force and effect and is the legal, valid, binding and enforceable obligation of each Credit Party party thereto and, to the knowledge of the Credit Parties, each other party thereto, enforceable against each such party in accordance with its terms, except as the enforceability thereof may be limited by bankruptcy, insolvency, reorganization, moratorium or other similar laws affecting creditors'

rights generally and by general principles of equity, regardless of whether enforceability is considered in a proceeding at law or in equity.

(c) As of the Closing Date, no Credit Party has defaulted or is in default in the performance, observance or fulfillment of any obligation, covenant or condition contained in any Material Contract, and no event has occurred that, with the giving of notice or the lapse of time or both, would constitute a default or event of default by any Credit Party under any Material Contract, except for any such default or event that would not reasonably be expected to have a Material Adverse Effect.

(d) As of the Closing Date, to the knowledge of the Credit Parties, no other party to any Material Contract is in default in the performance, observance or fulfillment of any obligation, covenant or condition contained in such Material Contract, and no event has occurred that, with the giving of notice or the lapse of time or both, would constitute a default or event of default by any other party under any Material Contract, except for any such default or event that would not reasonably be expected to have a Material Adverse Effect.

(e) As of the Closing Date, no Credit Party has received any notice of termination, cancellation, non-renewal, breach, default, invalidity or unenforceability under any Material Contract, and no Credit Party has received any notice from any counterparty asserting that such counterparty intends to terminate, cancel, disclaim, repudiate, revoke or materially reduce the scope of any Material Contract, except, in each case, as would not reasonably be expected to have a Material Adverse Effect.

(f) As of the Closing Date, no event has occurred or failed to occur, and no condition exists, that would permit any party to any Material Contract to terminate, cancel, fail to renew or accelerate the maturity or performance of any obligation under such Material Contract, and no Credit Party has knowledge that any counterparty to any Material Contract has threatened to exercise or has exercised any right to terminate, cancel, disclaim, repudiate or revoke any Material Contract, except, in each case, as would not reasonably be expected to have a Material Adverse Effect.

(g) As of the Closing Date, no Credit Party has assigned, transferred, delegated, pledged or otherwise encumbered any right or obligation under any Material Contract, other than pursuant to the Loan Documents, and no Credit Party has waived any material right under any Material Contract or agreed to any material amendment, supplement, modification or waiver of any Material Contract, other than as reflected in the copies delivered or made available to the Administrative Agent pursuant to paragraph (a) of this Section.

(h) The execution and delivery of the Credit Agreement and the other Loan Documents by the Credit Parties and the performance by the Credit Parties of their obligations thereunder will not conflict with, violate, result in a breach of or constitute a default under any Material Contract, and no consent, approval, authorization, waiver or notice to or from any counterparty to any Material Contract is required in connection with such execution, delivery and performance, except, in each case, as would not reasonably be expected to have a Material Adverse Effect or as has been obtained, given or made and remains in full force and effect.

Section 4.33 (Brokers' Fees). Each Loan Party represents and warrants, as of the Closing Date and as of each Borrowing Date, that no broker, finder, or other agent has acted on behalf of such Loan Party in connection with this Credit Agreement or any of the transactions contemplated hereby, and no brokerage commission, finder's fee, or other similar compensation has been or will be payable by any Loan Party to any Person in connection with the

negotiation, execution, delivery, or performance of this Credit Agreement or any of the transactions contemplated hereby, other than fees payable to the Administrative Agent, the Collateral Agent, and the arrangers pursuant to the Fee Letter and other fees and commissions specifically described in the Loan Documents, including fees payable to legal counsel, accountants, and other professional advisors retained by the Loan Parties.

(a) Each Loan Party hereby agrees to indemnify and hold harmless each Agent Party and each Lender Party from and against any and all claims, liabilities, obligations, losses, damages, awards, settlements, costs, expenses, and fees (including reasonable attorneys' fees and disbursements) incurred by or asserted against any such Person arising out of or in connection with any brokerage commission, finder's fee, or other similar compensation alleged to be payable by any Loan Party to any broker, finder, or other agent in connection with this Credit Agreement or any of the transactions contemplated hereby, other than fees payable to the Administrative Agent, the Collateral Agent, and the arrangers pursuant to the Fee Letter.

(b) The representations, warranties, covenants, and indemnities set forth in this Section 4.33 shall survive the execution and delivery of this Credit Agreement, the making of the Loans, the issuance of the Letters of Credit, and the repayment of the Obligations, and shall remain in full force and effect until the date that is six years after the later of the Maturity Date and the date on which the Commitments have been terminated and all Obligations have been indefeasibly paid in full in cash.

(c) Each Loan Party shall, within ten Business Days after the Closing Date, deliver to the Administrative Agent a certificate, signed by a Responsible Officer of such Loan Party, setting forth the name, address, and the amount of any fees, commissions, or other compensation payable to each broker, finder, or other agent, if any, that has acted on behalf of such Loan Party in connection with this Credit Agreement or any of the transactions contemplated hereby, and, if no such broker, finder, or other agent has acted on behalf of such Loan Party, a statement to that effect.

(d) No Loan Party shall, and each Loan Party shall not permit any of its Subsidiaries to, pay any brokerage commission, finder's fee, or other similar compensation to any Person in connection with any amendment, waiver, consent, or other modification of this Credit Agreement or any other Loan Document, unless such Person is a party to such amendment, waiver, consent, or modification or is an Agent Party or Lender Party expressly identified therein.

(e) Each Loan Party represents and warrants that all fees and commissions payable to any broker, finder, or other agent in connection with the transactions contemplated hereby are and will be paid solely from the proceeds of the Loans or from funds otherwise lawfully available to such Loan Party, and no portion of any such fee or commission is payable by any Agent Party or Lender Party.

(f) The representations and warranties set forth in this Section 4.33 shall constitute a representation and warranty under Article V of this Credit Agreement for all purposes thereof, and any breach of such representations and warranties shall give rise to the rights and remedies set forth in this Credit Agreement, including the right to declare an Event of Default pursuant to the terms of Article VII hereof.

Section 4.34 (EEA and UK Bail-In). (a) For purposes of this Section:

"bail-in action" means the exercise of any bail-in power by an EEA Resolution Authority or a UK Resolution Authority with respect to any liability of any Loan Party under or in connection with this Agreement or any other

Loan Document.

"bail-in power" means any write-down, conversion, transfer, restructuring, suspension, variation, cancellation, amendment or other power conferred on an EEA Resolution Authority or a UK Resolution Authority under any applicable law, regulation, rule or other measure of any member state of the European Economic Area implementing Directive 2014/59/EU of the European Parliament and of the Council, or under any applicable law, regulation, rule or other measure of the United Kingdom, including the Banking Act 2009 of the United Kingdom, in each case as amended, supplemented or otherwise modified from time to time, to reduce, convert, transfer, cancel, suspend, vary or otherwise restructure any liability or to impose a moratorium, suspension, stay or other restriction with respect to any liability.

"EEA Resolution Authority" means any public administrative authority or any person entrusted with public administrative authority of any member state of the European Economic Area, including any delegate or successor thereof, having responsibility for the exercise of resolution powers with respect to any credit institution, investment firm, financial institution or banking or investment group company.

"UK Resolution Authority" means the Bank of England and any other public administrative authority or any person entrusted with public administrative authority of the United Kingdom, including any delegate or successor thereof, having responsibility for the exercise of resolution powers with respect to any credit institution, investment firm, financial institution or banking or investment group company.

(b) Each party to this Agreement acknowledges and agrees that any liability of any Loan Party under or in connection with this Agreement or any other Loan Document may be subject to the exercise of bail-in powers by an EEA Resolution Authority or a UK Resolution Authority with respect to an EEA or UK financial institution, as applicable, and each Loan Party acknowledges, accepts, consents to and agrees to be bound by any bail-in action, in each case to the extent applicable. For the avoidance of doubt, this Section shall apply notwithstanding any other provision of this Agreement or any other Loan Document to the contrary, including any provision that would require the consent or agreement of any Person to the amendment, variation or modification of any term of any such liability.

(c) Without limiting the generality of paragraph (b), each Loan Party acknowledges that a bail-in action may include any one or more of the following: the reduction, in whole or in part, of the principal amount outstanding or the amount of accrued and unpaid interest on any such liability or, in the case of any undrawn commitment, the reduction, termination or cancellation of such commitment; the conversion, in whole or in part, of any such liability into shares, other securities, ownership interests or other obligations of the relevant Loan Party or another person; the cancellation, in whole or in part, of any such liability; the amendment, alteration or variation of the maturity of any such liability, of the amount of interest payable with respect to such liability, of the currency in which such liability is denominated or of any other term of such liability; the transfer of all or any part of any such liability to another person and the transfer to another person of all or any part of the rights and obligations of any party with respect to such liability; and the imposition of a moratorium, suspension, stay or other restriction on the enforceability of any such liability or of any right or remedy of any Agent, arranger, Lender, Issuing Bank, Swingline Lender or other creditor with respect to such liability.

(d) Each Loan Party agrees that this Agreement and each other Loan Document shall be read, construed and deemed to be amended, without any further action by any Person, to the fullest extent necessary to give effect to any bail-in action, and each Loan Party shall take, or refrain from taking, such actions as may be reasonably required by any Agent, Issuing Bank or Lender to give effect to any bail-in action.

(e) Each Loan Party agrees that the exercise of any bail-in power or the taking of any bail-in action by an EEA Resolution Authority or a UK Resolution Authority with respect to any liability of any Loan Party shall not constitute a default or an event of default under this Agreement or any other Loan Document, shall not give rise to any right of setoff, counterclaim, abatement or other similar right or defense, and shall not relieve any Loan Party from any obligation to the extent such obligation has not been reduced, cancelled, converted, transferred or otherwise modified in accordance with such bail-in action.

(f) To the fullest extent permitted by applicable law, each Loan Party irrevocably waives any right to contest, challenge or otherwise object to any bail-in action, and no Agent, arranger, Lender, Issuing Bank, Swingline Lender or other creditor shall have any obligation or liability to any Loan Party by reason of any bail-in action or the failure of any Loan Party to satisfy all or any part of an obligation to the extent such obligation has been reduced, cancelled, converted, transferred or otherwise modified pursuant to any bail-in action.

Section 4.35 (Ranking of Obligations). (a) The Obligations of each Loan Party under the Loan Documents constitute senior obligations of such Loan Party and rank, and will rank, at least pari passu in right of payment with all other senior unsecured and unsubordinated Indebtedness of such Loan Party and with all other Indebtedness of such Loan Party that is not by its terms subordinated to the Obligations, and in all cases senior to all subordinated Indebtedness of such Loan Party.

(b) No obligation of any Loan Party under any Loan Document is subordinated to, or subject to a right of payment junior to, any other Indebtedness or other obligation of such Loan Party, and no such obligation is subject to any defense, counterclaim, set-off, recoupment, abatement, or similar right of any obligor, except for defenses, counterclaims, set-offs, recoupments, abatements, and similar rights arising in the ordinary course of such Loan Party's business that would not reasonably be expected to have a Material Adverse Effect.

(c) The Liens on the Collateral granted by each Loan Party pursuant to the Collateral Documents are, and will be, valid and perfected first-priority Liens, subject only to Permitted Liens and, to the extent perfection is not required under the Collateral Documents, Liens that are not required to be perfected thereunder, and the Obligations secured by such Liens rank at least pari passu with all other obligations secured by Permitted Liens of the type that are not subordinated to the Obligations.

(d) Each Loan Party has not created, and will not create, any contractual or legal restriction on its ability to pay or perform the Obligations when due, other than restrictions arising under the Loan Documents, applicable law, or any Permitted Lien or any documentation governing such Permitted Lien.

(e) The Borrower will cause the Obligations of each Guarantor to rank at all times at least pari passu with all other senior unsecured and unsubordinated Indebtedness of such Guarantor and senior to all subordinated Indebtedness of such Guarantor, and neither the Borrower nor any Guarantor will create or permit to exist any Lien or other encumbrance on any of its assets that would rank prior to or pari passu with the Liens securing the Obligations, other

than Permitted Liens.

(f) The Borrower represents and warrants that, as of the Closing Date, no Loan Party has entered into any agreement or instrument that provides for the subordination of the Obligations to any other Indebtedness of any Loan Party, and no such agreement or instrument will be entered into by any Loan Party after the Closing Date, except as expressly contemplated or permitted by the Credit Agreement.

Section 4.36 (Cybersecurity and Information Systems). Each Loan Party represents and warrants to the Administrative Agent and the Lenders that, as of the Effective Date:

Each Loan Party and each of its Subsidiaries has, and maintains, commercially reasonable written information security, privacy, and data protection policies, procedures, and controls that are consistent in all material respects with generally accepted industry practices for companies of similar size and complexity in the industries in which such Person operates. Such policies, procedures, and controls are designed to protect the confidentiality, integrity, availability, and security of all information systems and data of each Loan Party and each Subsidiary, including all computer hardware, software, firmware, networks, applications, servers, peripherals, and all data and information stored, processed, or transmitted by or on behalf of any Loan Party or any Subsidiary, and to protect such information systems and data against unauthorized access, use, corruption, disclosure, modification, theft, loss, damage, denial of service, and the introduction of malicious code or malware.

All policies, procedures, and controls described in the immediately preceding paragraph, and all information systems and data of each Loan Party and each Subsidiary, are in all material respects in compliance with all applicable Laws, statutes, rules, regulations, administrative interpretations, and binding guidance of all Governmental Authorities relating to privacy, data security, data protection, cybersecurity, or the unauthorized access, use, disclosure, modification, or destruction of personal information, data, or information systems, including, to the extent applicable, the Payment Card Industry Data Security Standard and all applicable data breach notification Laws, and with all material contractual obligations of any Loan Party or any Subsidiary relating to privacy, data security, or cybersecurity.

No event, incident, act, omission, or condition has occurred or exists with respect to any information system or data of any Loan Party or any Subsidiary, including any security breach, unauthorized access, use, disclosure, modification, or theft, denial of service, or introduction of malicious code or malware, that has resulted, or would reasonably be expected to result, in a Material Adverse Effect. To the actual knowledge of each Loan Party, no Loan Party or any of its Subsidiaries has received any written notice from any Governmental Authority or any other Person alleging any material violation of, or material noncompliance with, any applicable Law or contractual obligation described in the preceding paragraph, and no investigation, inquiry, or enforcement action with respect to any such alleged violation or noncompliance is pending or threatened in writing.

Each Loan Party and each of its Subsidiaries has implemented and maintains backup, recovery, business continuity, and disaster recovery plans and procedures with respect to its information systems and data that are commercially reasonable and consistent with generally accepted industry practices, and such plans and procedures are tested at least once during each twelve-month period in a manner reasonably designed to validate their effectiveness. Each Loan Party and each of its Subsidiaries also requires each third-party service provider that has access to its

information systems or data to maintain and enforce confidentiality, privacy, and security protections that are consistent with applicable Law and generally accepted industry practice.

Each Loan Party and each of its Subsidiaries has implemented controls and processes reasonably designed to monitor, detect, contain, and remediate cybersecurity threats and incidents, including ransomware, phishing, denial-of-service, and social engineering attacks, and has established procedures for the timely escalation, response, and notification to appropriate personnel and, as required by applicable Law, to Governmental Authorities, individuals, and counterparties. No Loan Party or any of its Subsidiaries has failed to make any notification required by applicable Law in connection with a security incident, and each Loan Party and each of its Subsidiaries maintains cybersecurity and privacy insurance coverage in amounts that are commercially reasonable and consistent with customary practices for companies of similar size and complexity in the industries in which such Person operates.

Section 4.37 (Data Protection and Privacy Laws). For purposes of this Section, the following terms have the meanings set forth below.

"Data Protection Laws" means all Laws of any Governmental Authority in any jurisdiction in which any Loan Party or any Subsidiary operates or Processes or stores Personal Data, relating to privacy, data protection, data security, cybersecurity, the Processing of Personal Data, cross-border transfer of Personal Data, or breach notification, including, as applicable, the General Data Protection Regulation, the California Consumer Privacy Act, the Health Insurance Portability and Accountability Act, and the Gramm-Leach-Bliley Act, together with all regulations, implementing acts, binding guidance, official interpretations, orders, judgments, and decrees issued under or in connection with any of the foregoing.

"Personal Data" means any information that identifies, relates to, describes, is capable of being associated with, or could reasonably be linked, directly or indirectly, with a particular natural person or household, including any information that constitutes personal data, personal information, personally identifiable information, protected health information, or nonpublic personal information under any applicable Data Protection Law.

"Process" and "Processing" mean any operation or set of operations performed on Personal Data, whether or not by automated means, including collecting, recording, organizing, structuring, storing, adapting, altering, retrieving, consulting, using, disclosing, disseminating, making available, aligning, combining, restricting, erasing, or destroying Personal Data.

"Privacy Policy" means any notice, policy, or statement published or otherwise made available by any Loan Party or any Subsidiary to individuals or employees describing such Person's practices concerning the Processing, privacy, security, retention, or sharing of Personal Data.

"Privacy Requirements" means, collectively, all Data Protection Laws, all Privacy Policies, and all material contractual obligations binding on any Loan Party or any Subsidiary relating to the Processing, privacy, or security of Personal Data.

"Security Breach" means any accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, Personal Data, or any other act or omission that compromises the confidentiality, integrity, or availability of Personal Data or of any information technology system used to Process or store Personal Data.

The Borrower represents and warrants to the Administrative Agent and the Lenders that, as of the Closing Date,

except as would not reasonably be expected to have a Material Adverse Effect:

(a) Each Loan Party and each Subsidiary is, and during the five years immediately preceding the Closing Date has been, in compliance in all material respects with all Privacy Requirements, and none of such Persons has received any written notice, demand, inquiry, or complaint from any Governmental Authority or other Person alleging any violation of, or noncompliance with, any Privacy Requirement, or any written notice stating an intention to commence any investigation, enforcement action, or proceeding with respect to any Privacy Requirement, and, to the knowledge of the Borrower, no such investigation, enforcement action, or proceeding is pending or threatened.

(b) Each Loan Party and each Subsidiary maintains a written information security program that includes reasonable administrative, technical, and physical safeguards appropriate to the size, scope, and nature of its business, designed to protect the confidentiality, integrity, and availability of Personal Data Processed or stored by it or on its behalf, and includes incident response, data retention, access control, vendor management, and employee training procedures consistent with applicable Privacy Requirements and current industry practice.

(c) During the five years immediately preceding the Closing Date, there has been no Security Breach with respect to any Loan Party or any Subsidiary or with respect to any third party Processing Personal Data on behalf of any Loan Party or any Subsidiary, and no Loan Party or any Subsidiary has provided, or has been required to provide, any notice to any Governmental Authority, any affected individual, or any other Person in connection with any Security Breach.

(d) No Loan Party or any Subsidiary is subject to any order, consent decree, settlement, judgment, stipulation, or similar obligation entered into with, or imposed by, any Governmental Authority or any court or arbitrator relating to privacy, data protection, data security, or the Processing of Personal Data.

(e) Each Loan Party and each Subsidiary has provided all information, made all filings, obtained all approvals, consents, registrations, and authorizations, and given all notices required under applicable Privacy Requirements for the Processing of Personal Data as currently conducted by such Person, and the Processing of Personal Data as currently conducted by such Person does not violate any Privacy Requirement or any contractual obligation of such Person concerning Personal Data.

(f) The execution, delivery, and performance of the Credit Agreement and the other Loan Documents by each Loan Party, and the consummation of the transactions contemplated thereby, will not violate any Privacy Requirement, result in a breach of any Privacy Policy, or require any consent, authorization, registration, filing, notification, or other action by or on behalf of any Loan Party or any Subsidiary under any Data Protection Law.

(g) No Loan Party or any Subsidiary has made any untrue statement of a material fact in any Privacy Policy or otherwise made any statement that is misleading in any material respect, or omitted to state a material fact necessary in order to make the statements made, in light of the circumstances under which they were made, not misleading, in each case with respect to its Processing of Personal Data or its compliance with Privacy Requirements.

(h) To the knowledge of the Borrower, no third party that has been engaged by any Loan Party or any Subsidiary to Process Personal Data has, during the five years immediately preceding the Closing Date, suffered a Security Breach that would require notification to any Governmental Authority or affected individual under any Privacy Requirement or that would reasonably be expected to have a Material Adverse Effect.

Section 4.38 (Government Contracts). For purposes of this Section, the term "Government Contract" means any contract or subcontract to which any Loan Party or any Subsidiary is a party with any Governmental Authority, or with a prime contractor or higher-tier subcontractor under any contract with any Governmental Authority, in each case, involving or relating to the business of the Loan Parties and their Subsidiaries.

(a) Each Loan Party and each Subsidiary that is a party to any Government Contract has complied, in all material respects, with all applicable laws, rules, regulations, orders, certifications, and contract terms relating to such Government Contract, including all statutes, regulations, executive orders, and contract clauses relating to procurement integrity, export controls, anti-boycott, equal opportunity, labor standards, environmental matters, national security, data privacy, cybersecurity, and the False Claims Act, the Anti-Kickback Act, the Truth in Negotiations Act, or any comparable state or local law or regulation.

(b) No bid, proposal, quotation, representation, certification, or disclosure submitted by any Loan Party or any Subsidiary in connection with any Government Contract, or in connection with any contract or transaction that was expected to become or result in a Government Contract, contains any material misstatement or omission, and no such bid, proposal, quotation, representation, certification, or disclosure was false or fraudulent when made.

(c) No Government Contract has been terminated for convenience or for default, and no written claim, demand, or assertion of liability has been made, or to the knowledge of the Loan Parties is threatened, by any Governmental Authority against any Loan Party or any Subsidiary in connection with any Government Contract, in each case that would reasonably be expected to have a Material Adverse Effect.

(d) No Loan Party or Subsidiary is suspended, debarred, proposed for debarment, or declared ineligible for award of any Government Contract by any Governmental Authority, and no event has occurred and no condition exists that would reasonably be expected to result in the suspension, debarment, proposed debarment, or ineligibility of any Loan Party or Subsidiary or its products or services under any government procurement program.

(e) No Loan Party or Subsidiary has received any written notice of, or to the knowledge of the Loan Parties is threatened with, any audit, investigation, review, or inquiry by the Defense Contract Audit Agency, the Defense Contract Management Agency, the Government Accountability Office, the Office of Inspector General of any Governmental Authority, the U.S. Department of Justice, any agency of the U.S. Department of Defense, or any other Governmental Authority, in each case regarding any Government Contract, that would reasonably be expected to result in a Material Adverse Effect. All cost or pricing data submitted by any Loan Party or Subsidiary in support of any Government Contract were accurate, complete, and current as of the date of each such submission.

(f) With respect to each Government Contract, no Loan Party or Subsidiary is a party to any cost disallowance, withholding, offset, or penalty proceeding, and no indirect cost rate proposal, final indirect cost rate, billing rate, or forward pricing rate has been questioned, challenged, or disallowed by any Governmental Authority in a manner that would reasonably be expected to have a Material Adverse Effect.

(g) No Loan Party or Subsidiary has made a voluntary disclosure to any Governmental Authority with respect to any alleged irregularity, misstatement, omission, or violation arising under or relating to any Government Contract that remains pending or unresolved, and no Loan Party or Subsidiary is subject to any administrative agreement, consent decree, corporate integrity agreement, or similar arrangement with any Governmental Authority relating to

compliance with any law, rule, or regulation governing Government Contracts.

Section 4.39 (Accuracy of Schedules). The Borrower represents and warrants to the Administrative Agent and each Lender that:

(a) Each Schedule to this Agreement, together with all annexes, exhibits, attachments, amendments, restatements, supplements and other modifications thereto, is true, correct and complete in all material respects as of the Closing Date, except to the extent such Schedule expressly states that it is made as of a different date, in which case such Schedule is true, correct and complete in all material respects as of such different date. For purposes of this Section, Schedule means each schedule attached to this Agreement, as the same may be amended, restated, supplemented or otherwise modified from time to time in accordance with this Agreement.

(b) No Schedule contains any untrue statement of a material fact and no fact or matter has been omitted from any Schedule that is necessary to make the statements contained therein, in light of the circumstances under which such statements were made, not misleading in any material respect.

(c) The information contained in the Schedules fairly presents in all material respects the matters purported to be shown thereby, including the identity of each Person described therein and the nature, amount, jurisdiction and priority of each item disclosed or excluded thereby, and, to the extent any Schedule sets forth information by category, such Schedule is accurate and complete for each category presented.

(d) As of the Closing Date, no event or condition has occurred or exists that would reasonably be expected to cause any Schedule to be false, inaccurate, incomplete or misleading in any material respect, and no fact or matter has arisen since the date of preparation of any Schedule that would be required to be disclosed in such Schedule in order to make the statements contained therein accurate and complete in all material respects.

(e) The Borrower and each Subsidiary have made available to the Administrative Agent and the Lenders true, correct and complete copies of all documents and instruments identified in the Schedules as having been delivered or made available, and each such document and instrument is in full force and effect as of the Closing Date, except as otherwise set forth in such Schedule or as would not reasonably be expected to have a Material Adverse Effect.

(f) The Schedules are part of this Agreement and are qualified by reference to the terms of this Agreement and the other Loan Documents. The inclusion of any item in any Schedule shall not constitute an admission by the Borrower or any Subsidiary that such item is material, and the omission of any item from any Schedule shall not constitute an admission that such item is not material. The Borrower acknowledges that the Administrative Agent and each Lender are relying upon the accuracy and completeness of the Schedules in entering into this Agreement and in making the Loans and other extensions of credit contemplated hereby.

Section 4.40 (No Undisclosed Liabilities). As of the Closing Date, and after giving effect to the making of the initial extensions of credit under the Credit Agreement on the Closing Date and to the application of the proceeds of such extensions of credit, neither the Borrower nor any of its Subsidiaries, taken as a whole, has any liabilities or obligations of any kind, whether absolute, accrued, contingent, fixed, unliquidated, or otherwise, whether due or to become due, whether arising under contract, statute, tort, or otherwise, that would be required to be reflected, disclosed, or reserved against in a consolidated balance sheet of the Borrower and its Subsidiaries prepared in accordance with GAAP, except for (a) liabilities and obligations reflected, disclosed, or reserved against in the

consolidated balance sheet of the Borrower and its Subsidiaries contained in the most recent financial statements delivered to the Administrative Agent pursuant to this Agreement prior to the Closing Date, together with the notes to such consolidated balance sheet, (b) liabilities and obligations incurred after the date of such consolidated balance sheet in the ordinary course of business of the Borrower or any of its Subsidiaries, including trade accounts payable, accrued expenses, and accrued compensation, that would not reasonably be expected to have a Material Adverse Effect, (c) liabilities and obligations arising under the Credit Agreement, the other Loan Documents, and any hedging agreements and cash management agreements entered into, to the extent permitted by this Agreement, with any lender or any affiliate of a lender, and (d) liabilities and obligations that would not reasonably be expected to have, either individually or in the aggregate, a Material Adverse Effect. For the avoidance of doubt, the representation set forth in this Section relates only to liabilities and obligations that would be required to be reflected, disclosed, or reserved against in a consolidated balance sheet prepared in accordance with GAAP and does not extend to executory obligations under contracts, purchase orders, or other agreements to the extent such obligations are not required to be so reflected, disclosed, or reserved against.

Section 4.41 (Title to Personal Property Generally). Each Loan Party represents and warrants to the Administrative Agent and the Lenders that, as of the Closing Date and after giving effect to the Transactions:

(a) Each Loan Party and each of its Subsidiaries has good and valid title to, or valid and enforceable leasehold interests in, all of its personal property and assets that are material to the business and operations of the Loan Parties and their Subsidiaries taken as a whole, including all goods, inventory, equipment, fixtures, accounts, chattel paper, documents, instruments, investment property, deposit accounts, letter-of-credit rights, commercial tort claims, and general intangibles, free and clear of all Liens, except Permitted Liens and except for defects in title, Liens, or other encumbrances that would not reasonably be expected to have a Material Adverse Effect.

(b) No effective financing statement, continuation statement, mortgage, deed of trust, or other security or title retention agreement covering all or any material portion of the personal property of any Loan Party is on file in any recording or filing office, except for filings with respect to Permitted Liens and filings that have been properly terminated, released, or assigned.

(c) With respect to any personal property leased by a Loan Party, the applicable lease is valid, binding, and in full force and effect, and the applicable Loan Party enjoys peaceful and undisturbed possession of such personal property under such lease, in each case except as would not reasonably be expected to have a Material Adverse Effect.

(d) Each Loan Party owns or has the lawful right to use all personal property material to the conduct of its business and operations as currently conducted and as proposed to be conducted, free from any restriction on transfer, assignment, or use imposed by the terms of any contract or other agreement, except for restrictions contained in documents evidencing Permitted Liens and except as would not reasonably be expected to have a Material Adverse Effect.

(e) No claim has been made in writing by any Person alleging that any Loan Party is using any material personal property in violation of the rights of such Person, and, to the knowledge of each Loan Party, no such violation is threatened, in each case except as would not reasonably be expected to have a Material Adverse Effect.

(f) All material personal property of each Loan Party, including all equipment, vehicles, fixtures, and other tangible personal property, is in good working order and condition, ordinary wear and tear excepted, and is maintained in accordance with all applicable laws and insurance requirements, except as would not reasonably be expected to have a Material Adverse Effect.

(g) No Loan Party has received written notice of any pending material adverse claim with respect to, or any pending condemnation, confiscation, or similar proceeding affecting, any material personal property of such Loan Party, except as would not reasonably be expected to have a Material Adverse Effect.

Section 4.42 (Location of Chief Executive Office and Records). (a) Each Loan Party represents and warrants as of the Closing Date that the chief executive office of such Loan Party, and the office where such Loan Party keeps its books and records relating to accounts, chattel paper, documents, instruments, general intangibles, and all other Collateral, is located at the address set forth for such Loan Party in the location schedule delivered by the Loan Parties to the Administrative Agent on or before the Closing Date. The location schedule also accurately sets forth, as of the Closing Date, each other location where any Loan Party keeps any material books or records relating to any Collateral, and all information contained in the location schedule is true, complete, and correct in all material respects.

(b) No Loan Party has, during the five years immediately preceding the Closing Date, changed its legal name, been organized or incorporated under any other jurisdiction, been a party to any merger or consolidation, or maintained its chief executive office or the location of its records relating to any Collateral at any address other than the address set forth for such Loan Party in the location schedule, except for changes, mergers, consolidations, and other locations that have been disclosed in writing to the Administrative Agent on or before the Closing Date and reflected in the location schedule.

(c) Each Loan Party shall give the Administrative Agent at least thirty days prior written notice of any proposed change to its chief executive office or to the location of any books or records relating to any Collateral. Any such notice shall describe the new location and the proposed effective date of the change. No Loan Party shall effect any such change unless, after giving effect to the change, all filings, registrations, and recordings necessary to maintain the perfection, priority, and enforceability of the security interests and liens created under the Security Documents with respect to the affected Collateral shall remain in full force and effect.

(d) Each Loan Party shall, at its sole cost and expense, execute and deliver all financing statements, continuation statements, amendments, certificates, notices, and other documents, and take all other actions, that the Administrative Agent may reasonably request from time to time in order to perfect, protect, continue, or enforce the security interests and liens granted under the Security Documents, including any filings or notifications required as a result of a change in such Loan Party's chief executive office or the location of its records.

Section 4.43 (Trade Names). Each Loan Party has set forth on the Trade Names Schedule a true, correct and complete list of (a) all trade names, fictitious business names, assumed names and other names under or through which it conducts its business as of the Closing Date and (b) all jurisdictions, domestic and foreign, in which each such trade name is registered, filed, recorded or otherwise protected, together with all registration or filing numbers, record owners and renewal dates. No Loan Party has, during the five years immediately preceding the Closing Date,

changed its legal name, adopted any new trade name, fictitious business name or assumed name, discontinued the use of any trade name, fictitious business name or assumed name, or been a party to any merger, consolidation, reorganization or other transaction involving the transfer of all or substantially all of its assets, except in each case as set forth on the Trade Names Schedule.

Each Loan Party has all right, title and interest in and to, or a valid and enforceable license to use, each trade name, fictitious business name and assumed name used in connection with its business, free and clear of all Liens other than Permitted Liens. Each trade name, fictitious business name and assumed name set forth on the Trade Names Schedule is valid, subsisting, unexpired and enforceable, and all filings, registrations, renewals, recordations and payments required to maintain such trade name, fictitious business name or assumed name have been made on a timely basis. No action, suit, investigation or proceeding is pending or, to the knowledge of any Loan Party, threatened in any court or before any governmental authority or arbitrator that challenges or questions the validity, use, registration, enforceability or ownership of any trade name, fictitious business name or assumed name of any Loan Party or that would reasonably be expected to result in a Material Adverse Effect.

To the knowledge of each Loan Party, no Person is infringing, diluting or otherwise violating any trade name, fictitious business name or assumed name of any Loan Party in any material respect. No trade name, fictitious business name or assumed name used by any Loan Party conflicts or interferes with, or infringes upon, any trade name, fictitious business name, assumed name, trademark, service mark or other proprietary right of any other Person in any manner that would reasonably be expected to result in a Material Adverse Effect. The loss or invalidation of any trade name, fictitious business name or assumed name of any Loan Party would not reasonably be expected to result in a Material Adverse Effect.

No Loan Party is in default under any material license, registration, franchise or other agreement governing any trade name, fictitious business name or assumed name, except to the extent such default would not reasonably be expected to result in a Material Adverse Effect. The execution, delivery and performance of this Credit Agreement and the other Loan Documents will not cause the loss or impairment of, or require the consent of any Person in respect of, any right of any Loan Party in or to any trade name, fictitious business name or assumed name, except to the extent such loss, impairment or failure to obtain consent would not reasonably be expected to result in a Material Adverse Effect.

Section 4.44 (Regulatory Approvals of the Loan Documents). Each Loan Party has, as of the Closing Date, duly and validly obtained or made all consents, authorizations, orders, approvals, licenses, exemptions, waivers, filings, registrations, declarations, recordings, publications and notices with or from any Governmental Authority, and all consents of any other Person, in each case required on its part in connection with the execution, delivery and performance of each Loan Document to which it is a party, the borrowings and other extensions of credit under the Credit Agreement, the grant by such Loan Party of the Liens and security interests contemplated by the Collateral Documents, and the exercise by the Administrative Agent, any Lender or any other Secured Party of any rights or remedies under the Loan Documents, except, in each case, where the failure to obtain or make any such item, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect. All such consents, authorizations, orders, approvals, licenses, exemptions, waivers, filings, registrations, declarations,

recordings, publications and notices are in full force and effect, and no condition, restriction, limitation or requirement imposed by any Governmental Authority in connection with any of the foregoing would reasonably be expected to have a Material Adverse Effect.

No consent, authorization, approval, order, license, exemption, waiver, filing, registration, declaration, recording, publication or notice with or from any Governmental Authority is required to be obtained or made by any Loan Party in connection with the execution, delivery or performance of any Loan Document, the initial extensions of credit under the Credit Agreement on the Closing Date, the grant or perfection of any Lien under any Collateral Document, or the exercise by the Administrative Agent or any Secured Party of any rights or remedies under any Loan Document, other than filings and recordings that are necessary to perfect the security interests granted under the Collateral Documents and such consents, authorizations, approvals, orders, licenses, exemptions, waivers, filings, registrations, declarations, recordings, publications and notices as have been obtained or made and are in full force and effect, except, in the case of each of the foregoing exclusions, where the failure to obtain or make any such item, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect.

Each Loan Party is in compliance in all material respects with all laws, statutes, rules, regulations, codes, ordinances, orders, writs, judgments, injunctions, decrees and other requirements of any Governmental Authority applicable to it, its properties, its assets or its business, and holds all material governmental licenses, permits, authorizations and approvals required for the lawful conduct of its business and the ownership and operation of its properties and assets as currently conducted. Neither any Loan Party nor, to the knowledge of any Loan Party, any of its directors, officers, employees or agents is in material default under, or in material violation of, any such law, statute, rule, regulation, code, ordinance, order, writ, judgment, injunction, decree or other requirement, or any such license, permit, authorization or approval. No Loan Party has received any written notice from any Governmental Authority alleging any material violation of, or material noncompliance with, any such law, statute, rule, regulation, code, ordinance, order, writ, judgment, injunction, decree or other requirement, or any such license, permit, authorization or approval, and no such investigation, charge or proceeding is pending or, to the knowledge of any Loan Party, threatened in writing against any Loan Party.

The execution, delivery and performance by each Loan Party of each Loan Document to which it is a party, the borrowings and other extensions of credit under the Credit Agreement, the use of the proceeds thereof, the grant and perfection of the Liens under the Collateral Documents, and the exercise by the Administrative Agent and the Secured Parties of their rights and remedies under the Loan Documents will not, in any material respect, violate, conflict with, result in a default under, or require any additional consent, authorization, approval, order, license, exemption, waiver, filing, registration, declaration, recording, publication or notice not already obtained, made or in full force and effect with respect to, any law, statute, rule, regulation, code, ordinance, order, writ, judgment, injunction, decree or other requirement of any Governmental Authority applicable to any Loan Party or any of its properties, assets or business, except where such violation, conflict, default or failure, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect.

Section 4.45 (Accuracy of Assumptions Underlying Projections). The Borrower represents and warrants that (a) the financial projections, forecasts, budgets, estimates and pro forma financial information (collectively, the

"Projections") furnished by or on behalf of the Borrower to the Administrative Agent and the Lenders prior to the Closing Date in connection with the syndication of the Facilities cover the period beginning on the Closing Date and ending on the last day of the fifth full fiscal year following the Closing Date and have been prepared in good faith by the senior management of the Borrower; (b) the assumptions underlying the Projections were believed by the senior management of the Borrower to be reasonable as of the date such Projections were prepared and continue to be reasonable as of the Closing Date, in each case after giving effect to the transactions contemplated by this Agreement and the other Loan Documents, the incurrence of indebtedness under the Facilities and the application of the proceeds thereof, and no fact or circumstance known to the senior management of the Borrower as of the Closing Date would reasonably be expected to cause any of such assumptions to be false, inaccurate or misleading in any material respect; (c) the Projections present fairly, in all material respects, the projected financial condition, results of operations and cash flows of the Borrower and its Subsidiaries as of the respective dates and for the respective periods covered thereby, are internally consistent, and are consistent with the historical financial statements of the Borrower and its Subsidiaries and the accounting principles applied in the preparation of such historical financial statements; (d) the assumptions disclosed in the Projections constitute all assumptions material to the projected results contained therein, and the Projections do not contain any untrue statement of a material fact or omit to state a material fact necessary to make the statements contained therein, in light of the circumstances under which they were made, not misleading; and (e) the Borrower does not represent or warrant that the Projections are predictive of actual results, and actual results may differ materially from the Projections as a result of changes in economic, business, regulatory or market conditions and other uncertainties, many of which are beyond the control of the Borrower and its Subsidiaries.

Section 4.46 (Deposit and Securities Accounts Disclosure). Each Loan Party represents and warrants to the Administrative Agent and each Lender that, as of the Closing Date, it has delivered to the Administrative Agent and the Collateral Agent a true, correct and complete written disclosure, dated as of the Closing Date, of all deposit accounts and securities accounts maintained by any Loan Party (the "Account Disclosure"). The Account Disclosure sets forth, with respect to each such account, (a) the name and address of the financial institution or other intermediary at which the account is maintained, (b) the full account number and account title, (c) the type of account, including whether the account is a deposit account or a securities account, (d) the name of each account holder and each person authorized to direct transfers, withdrawals, payments or investments with respect to the account, (e) the approximate amount of cash, securities or other financial assets held in the account as of a date not more than thirty days prior to the Closing Date, and (f) a description of any lien, restriction or other encumbrance affecting the account, other than any lien in favor of the Collateral Agent or any permitted lien under the Credit Agreement.

The Account Disclosure is true, correct and complete in all material respects as of the Closing Date, and, except as set forth in the Account Disclosure, no Loan Party maintains, or has any right, title or interest in, any deposit account or securities account, and no Loan Party is a party to any agreement or arrangement relating to any deposit account, securities account, commodities account, custodial account or other similar account with any financial institution or other intermediary. All deposit accounts and securities accounts identified in the Account Disclosure are maintained

with financial institutions or other intermediaries organized under the laws of the United States, any State of the United States or the District of Columbia, and no such account is located or maintained outside the United States. The information contained in the Account Disclosure is not misleading in any material respect, and the Administrative Agent and each Lender may rely on the Account Disclosure in connection with the Credit Agreement and the other Loan Documents.

Section 4.47 (No Material Undisclosed Off-Balance-Sheet Arrangements). (a) Except as set forth in the consolidated financial statements of the Borrower and its Subsidiaries referred to in Section 4.06 or in any report, schedule, or other document filed or furnished by the Borrower with the Securities and Exchange Commission on or prior to the Closing Date, there does not exist on the Closing Date any off-balance-sheet arrangement (as defined in Item 303 of Regulation S-K promulgated by the Securities and Exchange Commission under the Securities Act of 1933, as amended) with respect to the Borrower or any of its Subsidiaries that is reasonably likely to have a material current or future effect on the financial condition, revenues or expenses, results of operations, liquidity, capital expenditures, or capital resources of the Borrower and its Subsidiaries taken as a whole.

(b) No such off-balance-sheet arrangement (including any such arrangement disclosed in any report, schedule, or other document filed or furnished by the Borrower with the Securities and Exchange Commission) (i) provides for the transfer or retention by the Borrower or any of its Subsidiaries of all or any portion of the risk of loss with respect to any asset or liability to or with any other Person, (ii) creates any obligation, including any contingent obligation, of the Borrower or any of its Subsidiaries to make any payment or provide any funding in respect of any obligation or liability of any other Person, or (iii) obligates the Borrower or any of its Subsidiaries to make any payment or provide any funding in respect of any financial instrument or contract, including any derivative contract, entered into for the purpose of hedging or managing risk, in each case, that is reasonably likely to have a material adverse effect on the Borrower and its Subsidiaries taken as a whole.

(c) Neither the Borrower nor any of its Subsidiaries has entered into any transaction, agreement, or other contractual arrangement that is not reflected on the consolidated balance sheet of the Borrower and its Subsidiaries as of the most recent fiscal quarter end for which financial statements have been delivered pursuant to Section 5.01 and that is reasonably likely to (i) require the Borrower or any of its Subsidiaries to make any payment or provide any funding in respect of any obligation or liability, including any contingent obligation or liability, of a type not reflected on such consolidated balance sheet, (ii) require the Borrower or any of its Subsidiaries to make any payment or provide any funding in respect of any financial instrument or contract that is accounted for as a derivative instrument, or (iii) result in any material loss to the Borrower or any of its Subsidiaries in the event of the termination or non-consummation of any such transaction, agreement, or other contractual arrangement.

(d) Neither the Borrower nor any of its Subsidiaries has any material obligation, whether absolute or contingent, to provide financial support, including by way of equity contributions, loans, guarantees, or other financial assistance, to any unconsolidated entity or person in respect of any off-balance-sheet arrangement that is reasonably likely to have a material adverse effect on the Borrower and its Subsidiaries taken as a whole.

(e) The Borrower has complied, in all material respects, with all applicable disclosure requirements under the Securities Act of 1933, as amended, the Securities Exchange Act of 1934, as amended, and the rules and regulations

of the Securities and Exchange Commission promulgated thereunder, in each case relating to off-balance-sheet arrangements of the Borrower and its Subsidiaries.

Section 4.48 (Foreign Assets Control Regulations). (a) For purposes of this Section 4.48, "Sanctions" means economic or trade sanctions administered or enforced by the Office of Foreign Assets Control of the United States Department of the Treasury, the United States Department of State, the United States Department of Commerce, the United Nations Security Council, the European Union, or His Majesty's Treasury. "Sanctioned Person" means any individual or entity that is the subject or target of any Sanctions, including any individual or entity identified on the Specially Designated Nationals and Blocked Persons List maintained by the Office of Foreign Assets Control of the United States Department of the Treasury or any comparable list maintained by another applicable Sanctions authority, any entity owned, directly or indirectly, in the aggregate, fifty percent or more by one or more Sanctioned Persons, and any individual or entity that is otherwise subject to blocking pursuant to any Sanctions.

(b) No Credit Party or any of its Subsidiaries, or any director, officer, employee, or agent of any Credit Party or any of its Subsidiaries, or, to the knowledge of the Credit Parties, any Affiliate of any Credit Party, is a Sanctioned Person or is controlled by a Sanctioned Person. No Credit Party or any of its Subsidiaries is located, organized, or resident in a country or territory that is the subject of comprehensive Sanctions, including, without limitation, Cuba, Iran, North Korea, Syria, and the Crimea, Donetsk, and Luhansk regions of Ukraine.

(c) Each Credit Party and each of its Subsidiaries has complied, and continues to comply, in all material respects with all applicable Sanctions and all applicable anti-money laundering, counter-terrorist financing, and beneficial ownership laws, rules, regulations, and executive orders, including the Bank Secrecy Act and the USA PATRIOT Act.

(d) No Credit Party or any of its Subsidiaries has engaged in, or, to the knowledge of the Credit Parties, has been the subject of, any investigation, inquiry, or enforcement proceeding by any governmental authority or regulatory body relating to any actual or alleged violation of any applicable Sanctions or anti-money laundering law. No Credit Party or any of its Subsidiaries has taken any action that would cause any Lender, Agent, Issuing Bank, or other Person to be in violation of any applicable Sanctions.

(e) The Credit Parties have established and maintain policies and procedures reasonably designed to ensure, and to cause each of their Subsidiaries to ensure, compliance in all material respects with applicable Sanctions and anti-money laundering laws. No part of the proceeds of any Credit Extension will be used, directly or indirectly, by any Credit Party or any of its Subsidiaries, in a manner that would cause any Lender, Agent, Issuing Bank, or other Person to violate any applicable Sanctions or that would provide financing or other support to, or for the benefit of, any Sanctioned Person or any country or territory that is the subject of comprehensive Sanctions.

Section 4.49 (Health, Safety and Product Liability Matters). Each Loan Party represents and warrants to the Administrative Agent and the Lenders that, as of the Closing Date and as of each other date on which any representation and warranty is made or deemed made by the Loan Parties under the Credit Agreement:

(a) Each Loan Party and each Subsidiary is in compliance, and has been in compliance during the three years immediately preceding the Closing Date, with all applicable Laws, rules, regulations, orders, decrees, judgments, permits, licenses, registrations, approvals, and authorizations in all jurisdictions in which it operates or owns or

leases real property relating to occupational health and safety, public health, product safety, product labeling, product warnings, product recalls, and product liability, except where any failure to so comply, individually or in the aggregate, would not reasonably be expected to have a Material Adverse Effect.

(b) No Loan Party or any Subsidiary has received any written notice of, and, to the knowledge of each Loan Party, no Loan Party or any Subsidiary is the subject of, any pending or threatened action, suit, proceeding, hearing, investigation, inquiry, audit, or other claim by any Governmental Authority or any other Person alleging any actual or contingent liability, noncompliance, violation, or obligation under any such Law, or relating to any product manufactured, imported, distributed, sold, transported, stored, handled, developed, or rendered by any Loan Party or any Subsidiary, including any product recall, seizure, withdrawal, market withdrawal, field correction, or other corrective action, or any product liability, personal injury, property damage, or wrongful death claim, in each case that would reasonably be expected to have a Material Adverse Effect.

(c) No Loan Party or any Subsidiary has any material liability, whether asserted or contingent, whether accrued or unaccrued, under any Law relating to product liability, product safety, occupational health, or occupational safety, including without limitation liability arising out of any actual or alleged manufacturing, design, labeling, warning, testing, or instruction defect, and no product manufactured, imported, distributed, sold, transported, stored, handled, developed, or rendered by any Loan Party or any Subsidiary has caused or has been alleged to have caused any material injury, illness, death, or property damage, in each case that would reasonably be expected to have a Material Adverse Effect.

(d) Each Loan Party and each Subsidiary has obtained and maintains in full force and effect all material permits, licenses, registrations, approvals, and other authorizations required under applicable Laws in connection with the manufacture, importation, distribution, sale, storage, transportation, and handling of its products and the operation of its facilities, and no Loan Party or any Subsidiary has received any written notice from any Governmental Authority or other Person of any suspension, revocation, nonrenewal, or limitation of any such permit, license, registration, approval, or authorization that, individually or in the aggregate, would reasonably be expected to have a Material Adverse Effect.

(e) No Loan Party or any Subsidiary has voluntarily or involuntarily undertaken, and, to the knowledge of each Loan Party, no Governmental Authority has ordered or requested, any field correction, product recall, withdrawal, market withdrawal, or other corrective action with respect to any product manufactured, distributed, sold, or otherwise placed into the stream of commerce by any Loan Party or any Subsidiary, and no Loan Party or any Subsidiary has received any written notice or other communication from any Governmental Authority or other Person advising of a potential or actual obligation to undertake any such action, in each case that would reasonably be expected to have a Material Adverse Effect.

(f) No Loan Party or any Subsidiary is subject to any administrative or judicial order or decree relating to health, safety, or product liability matters, no Loan Party or any Subsidiary has received any written notice of any proposed or threatened administrative or judicial order or decree relating to such matters, and no proceeding for any such order or decree is pending or, to the knowledge of each Loan Party, threatened, in each case that would reasonably be expected to have a Material Adverse Effect.

(g) All written submissions made by or on behalf of any Loan Party or any Subsidiary to any Governmental Authority in connection with any product approval, registration, or listing or any health, safety, or product liability matter were true, accurate, and complete in all material respects as of the date so made, and no such submission contained any false statement of material fact or omitted a material fact required to be stated therein or necessary to make the statements therein, in light of the circumstances under which they were made, not misleading.

Section 4.50 (No Default Under Material Contracts). (a) Each Credit Party has performed all obligations required to be performed by it under each Material Contract to which it is a party, in all material respects, and is not in default under any Material Contract to which it is a party.

(b) No condition exists with respect to any Credit Party that, with the giving of notice or lapse of time or both, would constitute a default under any Material Contract to which such Credit Party is a party, and no notice of default has been received by any Credit Party that remains uncured, in each case except as would not reasonably be expected to have a Material Adverse Effect.

(c) To the knowledge of the Borrower, no other party to any Material Contract is in default thereunder and no condition exists with respect to any such other party that, with the giving of notice or lapse of time or both, would constitute a default thereunder, in each case except as would not reasonably be expected to have a Material Adverse Effect.

(d) No event has occurred and no condition exists that has caused, or would reasonably be expected to cause, the acceleration of any payment or performance obligation under any Material Contract or the termination, cancellation, nonrenewal, rescission, revocation or suspension of any Material Contract, in each case except as would not reasonably be expected to have a Material Adverse Effect.

(e) No Credit Party has received any written notice of termination, cancellation, nonrenewal, rescission, revocation or suspension of, or of any intention to terminate, cancel, not renew, rescind, revoke or suspend, any Material Contract, except as would not reasonably be expected to have a Material Adverse Effect.

(f) To the knowledge of the Borrower, the representations and warranties made by or on behalf of each other party to each Material Contract that are material to the rights or benefits of the Credit Parties thereunder are true and correct in all material respects, except as would not reasonably be expected to have a Material Adverse Effect.

(g) Each Material Contract is in full force and effect and constitutes the legal, valid and binding obligation of each party thereto, enforceable against each such party in accordance with its terms, except as such enforceability may be limited by applicable bankruptcy, insolvency, reorganization, moratorium or other similar laws affecting creditors' rights generally and by general principles of equity, and except as would not reasonably be expected to have a Material Adverse Effect.

(h) No Credit Party has taken any action or failed to take any action that would require the consent or approval of any other party to any Material Contract in order to preserve the validity, binding effect or enforceability of such Material Contract, except as would not reasonably be expected to have a Material Adverse Effect.

Section 4.51 (No Adverse Regulatory Actions). The Borrower represents and warrants to the Administrative Agent and the Lenders that, as of the Closing Date, after giving effect to the Transactions, no action, suit, investigation, proceeding, audit, or review by or before any Governmental Authority is pending or, to the knowledge of the

Borrower, threatened in writing against any Loan Party or any of its Subsidiaries or any of their respective properties, assets, or revenues that would reasonably be expected, individually or in the aggregate, to result in a Material Adverse Effect. No Loan Party nor any of its Subsidiaries is subject to any outstanding order, writ, injunction, stipulation, consent decree, memorandum of understanding, or similar arrangement with or imposed by any Governmental Authority that would reasonably be expected, individually or in the aggregate, to result in a Material Adverse Effect.

No Loan Party nor any of its Subsidiaries has received any written notice from any Governmental Authority alleging that any Loan Party or any of its Subsidiaries is in violation of, or has failed to comply with, any applicable law, rule, regulation, judgment, decree, order, license, permit, franchise, concession, or other authorization, except for any such violation or failure that would not reasonably be expected, individually or in the aggregate, to result in a Material Adverse Effect. No Loan Party nor any of its Subsidiaries has, within the past three years, received any written notice of any pending or threatened claim, suit, action, audit, or investigation by any Governmental Authority that would reasonably be expected, individually or in the aggregate, to result in a Material Adverse Effect, other than any such claim, suit, action, audit, or investigation that has been finally and fully resolved prior to the Closing Date.

There is no pending or, to the knowledge of the Borrower, threatened action, suit, investigation, proceeding, or review by any Governmental Authority that would reasonably be expected to prohibit, limit, or restrict the ability of any Loan Party to perform its payment or other material obligations under the Credit Agreement or any other Loan Document to which it is a party, to enjoin, restrain, or delay the making of any Borrowing or the issuance of any Letter of Credit under the Credit Agreement, or to result in the imposition of any material damages, fines, penalties, or other monetary obligations against any Loan Party or any of its Subsidiaries that would reasonably be expected, individually or in the aggregate, to result in a Material Adverse Effect.

Section 4.52 (Compliance with Health Care Laws). Each of the Borrower and each Subsidiary represents and warrants to the Administrative Agent and the Lenders that, as of the date of this Agreement:

(a) all applicable Health Care Laws are being complied with by each of the Borrower and each Subsidiary in all material respects, and none of the Borrower, any Subsidiary, or any of their respective directors, officers, employees, contractors, or other persons performing services on behalf of any of them is a party to any pending or, to the knowledge of the Borrower, threatened legal, administrative, or other proceeding alleging any violation of any Health Care Law;

(b) each of the Borrower and each Subsidiary holds, and maintains in full force and effect, all material licenses, permits, certificates of need, accreditations, certifications, provider numbers, registrations, and other authorizations that are required under applicable Health Care Laws for the conduct of its business as currently conducted, including, to the extent applicable, all such authorizations necessary to participate in and to bill and receive payment from any governmental health care program;

(c) no exclusion, debarment, suspension, or other sanction against the Borrower, any Subsidiary, or any person that owns or controls any of them is in effect, and none of the Borrower, any Subsidiary, or any such person has been convicted of or entered into a settlement or other agreement with any Governmental Authority with respect to any

criminal, civil, or administrative action arising under any Health Care Law, other than any such exclusion, debarment, suspension, or other sanction that would not reasonably be expected to have a Material Adverse Effect;
(d) none of the Borrower, any Subsidiary, or any of their respective directors, officers, or employees has been, or to the knowledge of the Borrower, is threatened to be, excluded, debarred, suspended, or otherwise declared ineligible from participation in any governmental health care program, and no event has occurred or circumstance exists that would reasonably be expected to constitute grounds for any such exclusion, debarment, suspension, or other declaration of ineligibility;
(e) each of the Borrower and each Subsidiary has timely filed all material reports, data, and information required to be filed under applicable Health Care Laws and has paid, or caused to be paid, all material taxes, assessments, fines, penalties, and other amounts required to be paid with respect to its participation in any governmental health care program, in each case, except as would not reasonably be expected to have a Material Adverse Effect;
(f) all claims, reports, statements, and other information submitted or caused to be submitted by or on behalf of the Borrower or any Subsidiary to any governmental health care program or private payor for reimbursement, payment, or other benefit have been, and continue to be, in all material respects accurate, complete, and not false, fraudulent, or otherwise prohibited by any Health Care Law;
(g) none of the Borrower, any Subsidiary, or any of their respective directors, officers, employees, or, to the knowledge of the Borrower, contractors has knowingly and willfully solicited, received, offered, or paid any remuneration, directly or indirectly, in cash or in kind, to or from any person in violation of any applicable Health Care Law, including the federal Anti-Kickback Statute, the federal civil monetary penalties law, and the federal physician self-referral law, and no service or item furnished by or on behalf of the Borrower or any Subsidiary has been billed or claimed in violation of any such law;
(h) each of the Borrower and each Subsidiary is, and for the past six years has been, in material compliance with all applicable privacy, security, breach notification, and transaction standards and requirements of the Administrative Simplification provisions of the Health Insurance Portability and Accountability Act of 1996, as amended, and any rules or regulations promulgated thereunder, and has implemented and maintained a comprehensive written information privacy and security program that includes administrative, physical, and technical safeguards reasonably designed to protect the confidentiality, integrity, and availability of individually identifiable health information in its custody or control;
(i) none of the Borrower, any Subsidiary, or any of their respective directors, officers, employees, or, to the knowledge of the Borrower, contractors or agents is a party to any corporate integrity agreement, integrity agreement, or similar agreement or obligation with any Governmental Authority, and none of them has any ongoing reporting obligations to any Governmental Authority under any such agreement or obligation, except as would not reasonably be expected to have a Material Adverse Effect;
(j) to the knowledge of the Borrower, no investigation, audit, review, or other inquiry by any Governmental Authority is pending or threatened with respect to any alleged violation of any Health Care Law or any alleged false or fraudulent claim or practice, and no written notice of a claim, demand, or overpayment has been received by the Borrower or any Subsidiary from any governmental health care program or private payor that would, individually or

in the aggregate, reasonably be expected to have a Material Adverse Effect;

(k) no event has occurred that, with or without the passage of time or the giving of notice, would constitute a breach or default under any material agreement between the Borrower or any Subsidiary and any Governmental Authority or governmental health care program, and no consent, approval, or authorization from any Governmental Authority is required for the execution, delivery, or performance by the Borrower or any Subsidiary of the Credit Agreement or any other Loan Document to which it is a party, except for consents, approvals, or authorizations that have already been obtained and are in full force and effect;

(l) none of the Borrower, any Subsidiary, or any of their respective directors, officers, employees, or, to the knowledge of the Borrower, contractors or agents has knowingly and willfully made, used, or caused to be made or used a false record or statement material to a false or fraudulent claim for payment or approval under a governmental health care program, or knowingly and willfully made or caused to be made a false statement to induce the purchase of property or services or to induce any Governmental Authority to enter into a contract, in each case in violation of any Health Care Law, including the federal False Claims Act;

(m) all provider-based or facility-based assessments, user fees, and other amounts required to be paid by the Borrower or any Subsidiary to any Governmental Authority in connection with the operation of its health care facilities have been paid when due, except where the amount or validity is being contested in good faith by appropriate proceedings and for which adequate reserves have been established in accordance with GAAP, and except as would not reasonably be expected to have a Material Adverse Effect.

Section 4.53 (Product Liability and Warranty Matters). Each Loan Party represents and warrants to the Administrative Agent and each Lender that:

(a) No product manufactured, sold, leased, distributed, installed, or serviced by any Loan Party or any of its Subsidiaries, and no service provided by any Loan Party or any of its Subsidiaries, is the subject of any pending or, to the knowledge of the Loan Parties, threatened product liability, personal injury, property damage, product recall, product withdrawal, product correction, market withdrawal, safety alert, breach of express or implied warranty, strict liability, negligence, failure to warn, or similar claim, suit, action, investigation, or proceeding brought by any Person, and no Loan Party or any of its Subsidiaries has received any written notice from any Governmental Authority or any other Person asserting the basis for any actual or potential responsibility or liability of any Loan Party or any of its Subsidiaries with respect to any product liability, product safety, product recall, or warranty matter, except, in each case, as would not, individually or in the aggregate, reasonably be expected to have a Material Adverse Effect.

(b) Each product manufactured, sold, leased, distributed, installed, or serviced by any Loan Party or any of its Subsidiaries, and each service provided by any Loan Party or any of its Subsidiaries, is and has been in all material respects in compliance with all applicable Laws, including all applicable product safety, product quality, consumer protection, labeling, packaging, advertising, marketing, and warranty Laws and any rules, regulations, orders, decrees, or guidelines issued by any Governmental Authority having jurisdiction over such product or service, except where any failure to comply would not, individually or in the aggregate, reasonably be expected to have a Material Adverse Effect.

(c) All warranties, express or implied, made by any Loan Party or any of its Subsidiaries with respect to any product sold, leased, or delivered or any service provided by any Loan Party or any of its Subsidiaries, and all warranty disclaimers, limitations, and remedies set forth in the standard terms and conditions of sale, lease, or service of any Loan Party or any of its Subsidiaries, are in all material respects in compliance with applicable Laws, including, to the extent applicable, the Magnuson-Moss Warranty Act and any comparable state Laws, and there are no pending or, to the knowledge of the Loan Parties, threatened proceedings or investigations challenging the enforceability or adequacy of any such warranty, disclaimer, limitation, or remedy that would, individually or in the aggregate, reasonably be expected to have a Material Adverse Effect.

(d) No Loan Party or any of its Subsidiaries has any material liability, whether accrued, absolute, contingent, or otherwise, for return, repair, replacement, refund, recall, correction, or other remedial action with respect to any product sold, leased, or delivered or any service provided, or for any warranty, product liability, product recall, or similar claim with respect to such product or service, whether arising under any express or implied warranty, common law, contract, tort, or applicable Law, other than liabilities that have been fully reserved for in accordance with GAAP or that would not, individually or in the aggregate, reasonably be expected to have a Material Adverse Effect.

(e) Each Loan Party and each of its Subsidiaries has established and maintains, in accordance with GAAP, reserves for product liability, warranty, product recall, and similar claims and obligations that are adequate in all material respects for the nature and volume of the business of such Loan Party or such Subsidiary and the historical loss experience of such Loan Party or such Subsidiary with respect to such claims and obligations.

(f) Each Loan Party and each of its Subsidiaries maintains product liability, product recall, and product withdrawal insurance with financially sound and reputable insurers in amounts, with deductibles and retentions, and covering risks as are commercially reasonable and customary for companies engaged in the same or similar businesses and of comparable size, and all such insurance is in full force and effect and all premiums due thereon have been duly paid.

(g) To the knowledge of the Loan Parties, there is no event, condition, circumstance, or fact that would reasonably be expected to form the basis for any product liability, product recall, product withdrawal, or warranty claim against any Loan Party or any of its Subsidiaries that would, individually or in the aggregate, reasonably be expected to have a Material Adverse Effect.

(h) No Loan Party or any of its Subsidiaries has voluntarily or involuntarily initiated, and no Governmental Authority or other Person has initiated, any product recall, product withdrawal, market withdrawal, correction, safety alert, or similar action with respect to any product manufactured, sold, leased, or distributed by any Loan Party or any of its Subsidiaries, except for any such action that has been finally resolved without any material continuing obligation or liability of any Loan Party or any of its Subsidiaries and without any continuing effect on the business, operations, or financial condition of the Loan Parties and their Subsidiaries taken as a whole.

(i) No product manufactured, sold, leased, or distributed by any Loan Party or any of its Subsidiaries is subject to any outstanding judgment, injunction, order, decree, consent decree, or similar legal process of any Governmental Authority or any court with respect to product safety, product recall, product withdrawal, or warranty matters, except as would not, individually or in the aggregate, reasonably be expected to have a Material Adverse Effect.

(j) Each product manufactured, sold, leased, or distributed by any Loan Party or any of its Subsidiaries has been manufactured, sold, leased, and distributed in all material respects in accordance with all applicable specifications and contractual requirements of the applicable Loan Party or Subsidiary, and all product labels, instructions, warnings, and safety disclosures provided in connection with such product have been, at the time of sale, lease, or distribution, accurate in all material respects and sufficient under applicable Laws to inform users of all material risks associated with the reasonably foreseeable use of such product, except where any inaccuracy or insufficiency would not, individually or in the aggregate, reasonably be expected to have a Material Adverse Effect.

(k) Each Loan Party and each of its Subsidiaries has maintained in all material respects all records and documentation required by applicable Laws relating to product complaints, product failures, warranty claims, product recalls, and product safety investigations.

Section 4.54 (Absence of Undisclosed Broker Agreements). No Loan Party nor any of its Subsidiaries, nor any of their respective officers, directors, employees, or agents, has employed or engaged, or has any knowledge of the employment or engagement by any other Person of, any broker, finder, intermediary, or other agent, or has incurred or been advised of any liability for any brokerage commission, finder's fee, placement fee, success fee, or other similar compensation, in each case in connection with the negotiation, execution, delivery, or performance of this Agreement or any other Credit Document or the consummation of the Credit Transactions, other than fees and commissions expressly set forth in the Credit Documents or otherwise disclosed in writing to the Administrative Agent and the Lenders on or prior to the Effective Date.

No Loan Party nor any of its Subsidiaries is party to any agreement, arrangement, or understanding, whether written or oral, that would entitle any broker, finder, intermediary, or other agent to any payment or other benefit based on, measured by, or contingent upon the execution, delivery, or performance of this Agreement or any other Credit Document, the making of any Borrowing or the issuance of any Letter of Credit, or the consummation of any other Credit Transaction, other than as set forth in the Credit Documents or as otherwise disclosed in writing to the Administrative Agent and the Lenders on or prior to the Effective Date.

Each Loan Party will pay, and will cause each of its Subsidiaries to pay, all such fees, commissions, and compensation disclosed pursuant to this Section and will indemnify and hold harmless the Administrative Agent, each Issuing Bank, each Lender, and each of their respective Affiliates and their respective officers, directors, employees, agents, and advisors from and against any and all losses, claims, damages, expenses, and liabilities, including reasonable and documented out-of-pocket attorneys' fees and expenses, arising directly or indirectly from any claim by any broker, finder, intermediary, or other agent of any Loan Party or any Subsidiary for any brokerage commission, finder's fee, placement fee, success fee, or other similar compensation alleged to be due in connection with this Agreement, any other Credit Document, or any Credit Transaction and not disclosed in accordance with this Section.

Section 4.55 (Compliance with Export Administration Regulations). Each Credit Party and each of its Subsidiaries has been, at all times during the past five years, and is, in compliance in all material respects with the Export Administration Regulations, the International Traffic in Arms Regulations, all export, reexport, transfer, import, customs, sanctions, embargo, and anti-boycott laws, regulations, and executive orders of the United States, and all

other comparable laws, regulations, and orders of any Governmental Authority applicable to the export, reexport, import, transfer, or use of goods, services, software, or technology by any Credit Party or any Subsidiary (collectively, "Export Control Laws"). No Credit Party or any of its Subsidiaries (a) is listed on the Office of Foreign Assets Control Specially Designated Nationals and Blocked Persons List, the Bureau of Industry and Security Denied Persons List, Entity List, or Unverified List, the Department of State Debarred List, or any similar list of prohibited, restricted, or debarred persons maintained by any Governmental Authority; (b) is owned or controlled by, or acting on behalf of, any person listed on any such list; or (c) is located, organized, or resident in a country or territory that is subject to comprehensive United States sanctions (each such person, country, or territory, a "Prohibited Party"). No Credit Party or any of its Subsidiaries has, during the past five years, engaged in any transaction with any Prohibited Party in violation of any Export Control Law, or made any funds or property available, directly or indirectly, to or for the benefit of any Prohibited Party in violation of any Export Control Law. Each Credit Party and each of its Subsidiaries has obtained and maintains in full force and effect all export, reexport, and import licenses, permits, classifications, exceptions, exemptions, and other authorizations required for the conduct of its business as currently conducted, and has timely filed all reports and maintained all records required to be filed or maintained by it under any Export Control Law. No Credit Party or any of its Subsidiaries has received any written notice from any Governmental Authority alleging or asserting any violation of, or noncompliance with, any Export Control Law, or seeking the suspension, revocation, or denial of any license, permit, classification, exception, exemption, or other authorization held by any Credit Party or any of its Subsidiaries, and no investigation, audit, or enforcement proceeding by any Governmental Authority with respect to any Credit Party or any of its Subsidiaries under any Export Control Law is pending or, to the knowledge of any Credit Party, threatened. Neither the execution and delivery of the Credit Agreement nor the use of proceeds of any Loans will, directly or indirectly, cause any Credit Party, any Lender, or any Affiliate of any Lender to be in violation of any Export Control Law, and no portion of the proceeds of any Loans will be used, directly or indirectly, in any manner that would be prohibited under any Export Control Law or that would cause any representation or warranty set forth in this Section to be untrue. Each Credit Party and each of its Subsidiaries has implemented and maintains policies, procedures, and internal controls reasonably designed to ensure ongoing compliance with the Export Control Laws and to prevent the use of any proceeds of any Loans in violation of any Export Control Law. The representations and warranties set forth in this Section are made as of the Closing Date and shall be deemed to be remade on each date on which the representations and warranties set forth in the Credit Agreement are required to be remade by the terms of the Credit Agreement.

Section 4.56 (Accuracy of Environmental Reports). The Borrower represents and warrants to the Administrative Agent, each Issuing Bank, and each Lender, as of the Closing Date, that:

(a) The Borrower has made available to the Administrative Agent and each Lender true, correct, and complete copies of each environmental report, environmental site assessment, environmental audit, phase one environmental site assessment, phase two environmental site assessment, and each other environmental investigation, analysis, or study prepared or commissioned by or on behalf of any Credit Party or any of its Subsidiaries at any time during the five-year period prior to the Closing Date with respect to any real property owned, leased, or operated by any Credit

Party or any of its Subsidiaries. No Credit Party has withheld from the Administrative Agent or any Lender any material environmental report, assessment, audit, investigation, analysis, or study in its possession or control with respect to any real property owned, leased, or operated by any Credit Party or any of its Subsidiaries.

(b) Each environmental report, assessment, audit, investigation, analysis, or study referred to in paragraph (a), as of the date of its preparation, is accurate and complete in all material respects, and the information, data, findings, conclusions, and recommendations contained therein are, as of such date, true, correct, and complete in all material respects and fairly and accurately present the environmental condition of the subject real property and the operations conducted thereat. The Borrower has no knowledge, after due inquiry, of any fact, condition, or circumstance that would reasonably be expected to cause any such report, assessment, audit, investigation, analysis, or study to be inaccurate or incomplete in any material respect or to render any recommendation or conclusion contained therein materially misleading. The Borrower has no knowledge of any material information not contained in such reports that would reasonably be expected to change the conclusions, recommendations, or findings of any such report in any material respect. No such report, assessment, audit, investigation, analysis, or study contains any statement of fact that is untrue or omits to state a material fact necessary in order to make the statements and conclusions contained therein not misleading in light of the circumstances under which such statements and conclusions were made.

(c) Each Credit Party and each of its Subsidiaries is in compliance with all Environmental Laws applicable to such Person, its business, its operations, and its real property, and has obtained, and is in compliance with, all environmental permits, licenses, registrations, authorizations, consents, and approvals required under any Environmental Law in connection with the ownership, lease, operation, or use of such real property, except, in each case, where the failure to comply or to obtain any such permit, license, registration, authorization, consent, or approval would not reasonably be expected to have a Material Adverse Effect. To the knowledge of the Borrower, no condition or occurrence exists with respect to any real property owned, leased, or operated by any Credit Party or any of its Subsidiaries that would reasonably be expected to require any investigation, monitoring, remediation, removal, response, corrective action, or other compliance measure under any Environmental Law, except as disclosed in the environmental reports referred to in paragraph (a) and except as would not reasonably be expected, individually or in the aggregate, to have a Material Adverse Effect.

(d) To the knowledge of the Borrower, no release, spill, discharge, emission, migration, disposal, or other presence of any hazardous substance, hazardous waste, petroleum, petroleum product, or other substance regulated under any Environmental Law has occurred or exists at, on, under, from, or in connection with any real property owned, leased, or operated by any Credit Party or any of its Subsidiaries that would reasonably be expected to result in any environmental liability, claim, obligation, cost, or expense that would, individually or in the aggregate, have a Material Adverse Effect, except as disclosed in the environmental reports referred to in paragraph (a) or in the SEC Documents. No real property owned, leased, or operated by any Credit Party or any of its Subsidiaries is listed or proposed for listing on any federal or state hazardous substances priority list or similar national, federal, state, or local environmental registry, except as disclosed in such environmental reports or in the SEC Documents.

(e) No Credit Party or any of its Subsidiaries has received any written notice, demand letter, request for information,

complaint, citation, summons, administrative order, consent decree, or judicial or administrative order, and no action, suit, proceeding, investigation, or inquiry is pending or, to the knowledge of the Borrower, threatened, in each case, arising under or relating to any Environmental Law or any environmental liability, claim, or obligation, that would reasonably be expected to have a Material Adverse Effect, except as disclosed in the environmental reports referred to in paragraph (a) or in the SEC Documents. No Credit Party or any of its Subsidiaries has entered into or assumed, by operation of law or otherwise, any liability or obligation, or any agreement to perform any remediation, cleanup, removal, response, or corrective action, under any Environmental Law, except as would not reasonably be expected, individually or in the aggregate, to have a Material Adverse Effect.

(f) All information provided by or on behalf of any Credit Party or any of its Subsidiaries to any independent consultant or engineer who prepared any environmental report, assessment, audit, investigation, analysis, or study referred to in paragraph (a) was true, correct, and complete in all material respects when provided, and no such information was provided with the intent or effect of misleading the preparer, the Administrative Agent, or any Lender with respect to any matter that could reasonably be expected to have a Material Adverse Effect. Since the respective dates of preparation of such environmental reports, no event, condition, occurrence, or activity has occurred or been undertaken that would reasonably be expected to render any such report inaccurate or incomplete in any material respect, except as disclosed in writing to the Administrative Agent and the Lenders. The Borrower acknowledges that the Administrative Agent and each Lender are relying upon the accuracy and completeness of the environmental reports referred to in paragraph (a) in entering into this Agreement and in making available the credit facilities under this Agreement, and the Borrower has not knowingly withheld from the Administrative Agent or any Lender any material fact with respect to the environmental condition of any real property owned, leased, or operated by any Credit Party or any of its Subsidiaries.

Section 4.57 (No Restrictions on Upstreaming of Cash). The Borrower represents and warrants to the Administrative Agent and each Lender that, except as set forth in this Credit Agreement and the other Loan Documents, neither the Borrower nor any of its Subsidiaries is a party to, or bound by, any agreement, instrument, indenture, mortgage, lease, license, deed of trust, or other arrangement, and no such Person is subject to any provision of its certificate or articles of incorporation, bylaws, limited liability company agreement, partnership agreement, or other constitutive or organizational documents, that would have the effect of prohibiting, restricting, conditioning, or delaying the ability of any Subsidiary of the Borrower to (a) declare or pay any dividends or make any other distribution or payment on account of its Equity Interests to the Borrower or any other Loan Party; (b) repay, prepay, redeem, or purchase any intercompany Indebtedness, loans, advances, or other obligations owing to the Borrower or any other Loan Party; (c) make any loans or advances to, or to guarantee, assume, endorse, or otherwise become directly or contingently liable with respect to any obligations of, the Borrower or any other Loan Party; (d) transfer, convey, or otherwise make available cash, Cash Equivalents, or other assets to the Borrower or any other Loan Party; or (e) otherwise distribute or make available cash flows or assets to the Borrower or any other Loan Party, in each case to the extent necessary to enable the Borrower and the other Loan Parties to pay their obligations as they become due under this Credit Agreement and the other Loan Documents and to comply with the financial covenants set forth in Article VI.

The foregoing representation shall not be deemed to apply to (a) restrictions imposed by applicable laws and regulations; (b) restrictions contained in this Credit Agreement or the other Loan Documents; (c) restrictions contained in any agreement governing Indebtedness, preferred Equity Interests, or other obligations of any Subsidiary of the Borrower, so long as such restrictions are customary for transactions of the type set forth in such agreement and do not, individually or in the aggregate, materially restrict the ability of the Borrower and its Subsidiaries to upstream cash from any Subsidiary to the Borrower or any other Loan Party for the purpose described in the preceding paragraph; (d) restrictions contained in any joint venture agreement, shareholders agreement, partnership agreement, limited liability company agreement, or other similar organizational or governance document of any Subsidiary of the Borrower that is not directly or indirectly wholly owned by the Borrower, so long as such restrictions are customary therein and apply solely to the equity holders of such Subsidiary that are not Loan Parties; (e) customary restrictions contained in leases, licenses, and similar agreements entered into in the ordinary course of business that restrict the assignment or transfer of the property or rights subject to such agreement; and (f) any other restriction that does not, individually or in the aggregate, materially impair the ability of any Subsidiary of the Borrower to make any of the payments or transfers described in the preceding paragraph.

Section 4.58 (Absence of Undisclosed Guarantees). Each Loan Party, jointly and severally, represents and warrants to the Administrative Agent and the Lenders that, as of the Closing Date, after giving effect to the making of the initial Loans and the initial issuance of Letters of Credit, no Loan Party has any Guarantee of any Indebtedness, lease, dividend, purchase price, reimbursement or other similar obligation of any other Person, and no Loan Party has any obligation, contingent or otherwise, to purchase or acquire any such obligation of any other Person, to make any advance or capital contribution to any other Person, to maintain the net worth, working capital or liquidity of any other Person, or to provide funds for the payment of any obligation of any other Person, including pursuant to any keep-well, take-or-pay or similar arrangement, other than:

(a) Guarantees of Indebtedness and other obligations of any Loan Party;

(b) Guarantees of Indebtedness and other obligations of any Subsidiary that is not a Loan Party, in each case to the extent permitted by the Credit Agreement;

(c) Guarantees in effect on the Closing Date and set forth in the Disclosure Letter, together with any amendments, renewals, extensions, substitutions, refinancings or replacements of any such Guarantee, in each case so long as the aggregate principal amount (or, with respect to any obligation that is not an Indebtedness, the aggregate amount) of the obligations guaranteed under such Guarantee is not increased beyond the amount in effect immediately prior to such amendment, renewal, extension, substitution, refinancing or replacement;

(d) Guarantees incurred in the ordinary course of business in respect of surety, appeal, performance, customs, bid, completion or other similar bonds, whether in favor of one or more Governmental Authorities or otherwise, and in respect of statutory obligations;

(e) Guarantees in respect of workers compensation claims, unemployment insurance, health, disability or other employee benefits, pension, retirement or similar employment-related obligations, in each case in the ordinary course of business;

(f) Guarantees arising from the endorsement, collection, deposit or negotiation of checks, drafts, notes or other negotiable instruments in the ordinary course of business;
(g) Guarantees of Indebtedness and other obligations of joint ventures, non-wholly owned Subsidiaries and other Investments made by any Loan Party, in each case to the extent permitted by the Credit Agreement; and
(h) Guarantees of Indebtedness and other obligations of any other Person that, individually or in the aggregate, would not reasonably be expected to have a Material Adverse Effect.
Section 4.59 (Compliance with the Foreign Account Tax Compliance Act). Each Loan Party represents and warrants to the Administrative Agent and each Lender, on and as of the Closing Date, that: (a) such Loan Party is, and has at all times been, in compliance with the Foreign Account Tax Compliance Act, including all applicable provisions of the Internal Revenue Code, the Treasury Regulations, and other official guidance issued thereunder, and all applicable intergovernmental agreements, treaties, conventions, and fiscal or regulatory legislation, rules, or practices adopted pursuant to or in connection with the Foreign Account Tax Compliance Act, in each case to the extent applicable to such Loan Party; (b) no Loan Party is a foreign financial institution for purposes of the Foreign Account Tax Compliance Act, except that if any Loan Party is a foreign financial institution, such Loan Party has either entered into an agreement with the United States government pursuant to the Foreign Account Tax Compliance Act or is otherwise in compliance with the Foreign Account Tax Compliance Act, including any applicable intergovernmental agreement, in either case in a manner sufficient to ensure that no United States federal withholding tax is imposed under the Foreign Account Tax Compliance Act on any payment made to or for the account of any Agent, any Arranger, any Lender, or any other recipient under any Loan Document; (c) no Loan Party has entered into, and no Loan Party is otherwise subject to, any arrangement, agreement, or obligation that would require any withholding or deduction for or on account of any United States federal withholding tax imposed under the Foreign Account Tax Compliance Act in respect of any payment to be made by or on behalf of such Loan Party under any Loan Document; (d) no Loan Party has received any notice from any governmental authority to the effect that any withholding or deduction is required under the Foreign Account Tax Compliance Act with respect to any payment to be made by or on behalf of such Loan Party under any Loan Document, and, to the knowledge of each Loan Party, no such notice has been threatened or is otherwise pending; and (e) each Loan Party has, as of the Closing Date, delivered to the Administrative Agent all documentation and information reasonably requested by the Administrative Agent in connection with the Foreign Account Tax Compliance Act, and no Loan Party has received any notice from the Administrative Agent or any Lender that any additional documentation or information is required in connection with the Foreign Account Tax Compliance Act.
Section 4.60 (Solvency of Guarantors). Each Guarantor represents and warrants to the Administrative Agent and the Lenders that, on the Effective Date and after giving effect to the incurrence of all Indebtedness under or in connection with this Credit Agreement, the issuance of all Letters of Credit, the making of all Loans and the application of the proceeds thereof, the execution and delivery of each Loan Document to which such Guarantor is a party, and the consummation of all other transactions contemplated by this Credit Agreement and the other Loan Documents:
(a) such Guarantor is Solvent, and neither the execution and delivery of its Guaranty nor the performance of its

obligations under this Credit Agreement or any other Loan Document to which it is a party will render such Guarantor insolvent;

(b) such Guarantor is able to pay, and will continue to be able to pay, its debts and liabilities, including contingent debts and liabilities, as such debts and liabilities become due and payable in the ordinary course of business;

(c) such Guarantor is not engaged and will not be engaged in a business or transaction for which its remaining assets and capital are unreasonably small, taking into account all of such Guarantor's contingent liabilities;

(d) the fair saleable value of the assets of such Guarantor, determined on a going-concern basis, is greater than the total amount of the liabilities of such Guarantor, including contingent liabilities, as such liabilities become absolute and mature, and will remain greater than such total amount after giving effect to the transactions contemplated by this Credit Agreement and the other Loan Documents; and

(e) such Guarantor does not intend and does not believe that it will incur debts beyond its ability to pay such debts as they become absolute and mature, after taking into account the full amount of all contingent and unliquidated liabilities of such Guarantor, including those arising under its Guaranty.

No Guarantor has made or will make any transfer of property or any conveyance of an interest in property, and no Guarantor has incurred or will incur any obligation, in connection with the transactions contemplated by the Loan Documents, with actual intent to hinder, delay, or defraud any present or future creditor of such Guarantor. Each Guarantor has received reasonably equivalent value for its Guaranty, and its Guaranty is not and will not constitute a fraudulent conveyance or fraudulent transfer under any applicable Law.

For purposes of this Section 4.60, "Solvent" means, with respect to any Person on any date, that such Person is able to pay its debts and liabilities, including contingent debts and liabilities, as such debts and liabilities become due in the ordinary course of business, has capital and assets sufficient to carry on its business as conducted and as proposed to be conducted by it, and the fair saleable value of its assets, determined on a going-concern basis, is not less than the amount of its liabilities, including contingent liabilities, as such liabilities become absolute and mature. For purposes of this Section 4.60, the amount of any contingent liability of any Guarantor shall be computed as the amount that, in light of all of the facts and circumstances existing at the time of determination, represents the amount that can reasonably be expected to become an actual or matured liability, and no such contingent liability shall be computed at the full stated amount thereof unless such full stated amount can reasonably be expected to become an actual or matured liability.

ARTICLE V. AFFIRMATIVE COVENANTS

Section 5.01 (Financial Statements). The Borrower shall deliver to the Administrative Agent, for distribution to each Lender: (a) within 90 days after the end of each fiscal year, audited consolidated financial statements; (b) within 45 days after the end of each of the first three fiscal quarters, unaudited consolidated financial statements; and (c) concurrently with the financial statements delivered under clauses (a) and (b), a Compliance Certificate in the form of Exhibit C, signed by a Responsible Officer, setting forth in reasonable detail the calculation of each financial covenant in Article VI.

Section 5.02 (Notices of Material Events). The Borrower shall promptly notify the Administrative Agent of (a) the occurrence of any Default or Event of Default, (b) the filing of any material action or proceeding against the

Borrower or any Restricted Subsidiary, and (c) any Reportable Event with respect to a Plan that could reasonably be expected to result in a Material Adverse Effect.

Section 5.03 (Existence; Conduct of Business). The Borrower shall, and shall cause each Restricted Subsidiary to, preserve and maintain its legal existence and its rights, licenses, permits and franchises material to the conduct of its business, except as otherwise permitted by Section 7.06 (Fundamental Changes).

Section 5.04 (Payment of Obligations). The Borrower shall, and shall cause each Restricted Subsidiary to, pay its material obligations, including Taxes, before they become delinquent, except where contested in good faith by appropriate proceedings and reserved for in accordance with GAAP.

Section 5.05 (Maintenance of Properties; Insurance). The Borrower shall, and shall cause each Restricted Subsidiary to, maintain its material properties in good working order and maintain insurance in accordance with Section 4.14.

Section 5.06 (Books and Records; Inspection Rights). The Borrower shall, and shall cause each Restricted Subsidiary to, keep proper books of record in accordance with GAAP, and shall permit the Administrative Agent, upon reasonable notice, to visit and inspect its properties and examine its books and records, no more often than twice per calendar year absent a continuing Event of Default.

Section 5.07 (Compliance with Laws). The Borrower shall, and shall cause each Restricted Subsidiary to, comply in all material respects with all applicable Requirements of Law, including Environmental Laws and Sanctions.

Section 5.08 (Use of Proceeds). The proceeds of the Term Loans and the Revolving Loans made on the Closing Date shall be used to finance a portion of the Transaction and to pay related fees and expenses, as set forth in the Funds Flow Memorandum; the proceeds of Revolving Loans made after the Closing Date shall be used for working capital and other general corporate purposes of the Borrower and its Restricted Subsidiaries.

Section 5.09 (Further Assurances). The Borrower shall, and shall cause each Restricted Subsidiary to, execute and deliver such further instruments and take such further action as the Administrative Agent may reasonably request to carry out the purposes of the Loan Documents, including perfecting or protecting the Liens granted under the Collateral Documents.

Section 5.10 (Additional Guarantors; Collateral). The Borrower shall cause each Restricted Subsidiary formed or acquired after the Closing Date (other than an Immaterial Subsidiary) to become a Guarantor and grant Liens on its assets under the Collateral Documents within 45 days of formation or acquisition, or such longer period as the Administrative Agent may reasonably agree.

Section 5.11 (Environmental Compliance). The Borrower shall, and shall cause each Restricted Subsidiary to, comply in all material respects with all applicable Environmental Laws and maintain all Environmental permits required for its operations, and shall promptly notify the Administrative Agent of any Environmental Liability that could reasonably be expected to result in a Material Adverse Effect.

Section 5.12 (Maintenance of Ratings). The Borrower shall use commercially reasonable efforts to maintain a public corporate credit rating from each of Moody's and S&P with respect to the Senior Notes, it being understood that this Section 5.12 does not require the Borrower to maintain any specific rating level.

Section 5.13 (Post-Closing Matters). The Borrower shall, and shall cause each Restricted Subsidiary to, complete

each post-closing item set forth on Schedule 5.13 within the time period specified therein, as such period may be extended by the Administrative Agent in its reasonable discretion.

Section 5.14 (Deposit Accounts; Cash Management). The Borrower shall, and shall cause each Restricted Subsidiary to, maintain its primary deposit and operating accounts with the Administrative Agent or an Affiliate thereof, or otherwise subject to an account control agreement in favor of the Administrative Agent, in each case to the extent required by the Security Agreement.

Section 5.15 (Know Your Customer Information). The Borrower shall, promptly following a request by the Administrative Agent or any Lender, provide all documentation and other information required by the Administrative Agent or such Lender under applicable know-your-customer and anti-money laundering rules and regulations, including the USA PATRIOT Act and the Beneficial Ownership Regulation.

Section 5.16 (Compliance Certificates; Notice of Cure). Together with each Compliance Certificate delivered under Section 5.01(c) demonstrating non-compliance with a financial covenant in Article VI, the Borrower may deliver a Notice of Intent to Cure specifying the Equity Cure Right it intends to exercise with respect to the applicable fiscal quarter.

Section 5.17 (Maintenance of Fiscal Year). (a) The Borrower shall, and shall cause each of its Subsidiaries to, maintain its fiscal year as the twelve-month period ending on the thirty-first day of December of each calendar year and its fiscal quarters as the three-month periods ending on the thirty-first day of March, the thirtieth day of June, the thirtieth day of September and the thirty-first day of December of each calendar year; provided, however, that any Subsidiary that is organized under the laws of a jurisdiction outside the United States may maintain a fiscal year different from the fiscal year of the Borrower if such different fiscal year is required by the laws, regulations or customary accounting practices of such jurisdiction, and the Borrower shall deliver to the Administrative Agent written notice of any such different fiscal year.

(b) The Borrower shall not, and shall not permit any of its Subsidiaries to, change its fiscal year or the ending dates of its fiscal quarters unless the Borrower shall have delivered to the Administrative Agent written notice of such proposed change at least thirty days prior to the effective date of such change, which notice shall set forth in reasonable detail the nature and reason for such change and the anticipated impact, if any, of such change on the financial statements and reports required to be delivered under this Agreement.

(c) No change described in paragraph (b) of this Section shall be effective without the prior written consent of the Administrative Agent, which consent shall not be unreasonably withheld, conditioned or delayed; provided that, if such change would reasonably be expected to have a material adverse effect on the ability of the Lenders to monitor compliance with the financial covenants set forth in Article VI, such change shall also require the prior written consent of the Required Lenders.

(d) In the event of any change permitted pursuant to paragraph (c) of this Section, the Borrower shall, at its sole cost and expense, deliver to the Administrative Agent and each Lender, at such times and in such form as the Administrative Agent may reasonably request, such financial statements, reports, certificates and other information as may be necessary or appropriate to enable the Administrative Agent and the Lenders to monitor compliance with this Agreement and the financial covenants set forth in Article VI during the transition period and thereafter,

including, without limitation, financial statements and reports for any transition period, and shall cause such financial statements and reports to be prepared on a basis consistent with the changed fiscal year or fiscal quarter periods.

(e) All financial statements and reports delivered pursuant to this Agreement shall be prepared on the basis of the fiscal year and fiscal quarter periods maintained pursuant to this Section, unless the Administrative Agent shall otherwise agree in writing.

Section 5.18 (Interest Rate Protection). (a) The Borrower shall, and shall cause each Restricted Subsidiary to, maintain, or cause to be maintained, at all times from and after the date that is one hundred eighty days after the Closing Date through and including the Maturity Date, one or more Interest Rate Hedging Agreements with one or more counterparties reasonably satisfactory to the Administrative Agent and having a combined capital and surplus of not less than five hundred million Dollars, covering an aggregate notional amount equal to not less than fifty percent of the aggregate principal amount of the Floating Rate Debt of the Borrower and its Restricted Subsidiaries as of the most recent fiscal quarter end for which financial statements have been delivered in accordance with this Agreement. Each Interest Rate Hedging Agreement shall be documented under an ISDA Master Agreement, shall have a scheduled term of not less than three years from the date on which it is entered into, shall be entered into in the ordinary course of business and not for speculative purposes, and shall contain pricing, termination and other terms and conditions reasonably satisfactory to the Administrative Agent. The Borrower shall cause each such Interest Rate Hedging Agreement to remain in full force and effect and shall perform, and cause each Restricted Subsidiary to perform, all of its payment and other obligations thereunder when due.

(b) The Borrower shall not, and shall not permit any Restricted Subsidiary to, enter into, amend, renew or replace any Interest Rate Hedging Agreement if, after giving effect to such action, the aggregate notional amount of all Interest Rate Hedging Agreements of the Borrower and its Restricted Subsidiaries then in effect would exceed the aggregate principal amount of the Floating Rate Debt of the Borrower and its Restricted Subsidiaries then outstanding. Any Interest Rate Hedging Agreement that does not satisfy the requirements of this Section shall not be taken into account in calculating the aggregate notional amount required to be maintained under paragraph (a) of this Section.

(c) For purposes of this Section, "Interest Rate Hedging Agreement" means any interest rate swap, interest rate cap, interest rate collar, interest rate floor, forward rate agreement or other similar agreement, or any combination of the foregoing, entered into by the Borrower or any Restricted Subsidiary to hedge interest rate risk with respect to Floating Rate Debt and not for speculative purposes. For purposes of this Section, "Floating Rate Debt" means, as of any date, the aggregate principal amount of all Indebtedness of the Borrower and its Restricted Subsidiaries outstanding on such date that bears interest at a floating, variable, adjustable or other rate that is not fixed for the entire term of such Indebtedness, determined without giving effect to any Interest Rate Hedging Agreement. For purposes of this Section, the notional amount of any Interest Rate Hedging Agreement that is an interest rate cap, collar, floor or similar option-based arrangement shall be determined net of any premium paid or payable by the Borrower or the relevant Restricted Subsidiary under such Interest Rate Hedging Agreement and shall not exceed the notional amount of the Floating Rate Debt actually hedged by such arrangement.

(d) The Borrower shall deliver to the Administrative Agent, within five Business Days after the execution and delivery of any Interest Rate Hedging Agreement entered into pursuant to this Section, a copy of such agreement, together with a certificate of a Responsible Officer setting forth the notional amount, scheduled termination date, counterparty and material economic terms of such agreement. The Borrower shall deliver, within thirty days after the end of each fiscal quarter, a certificate of a Responsible Officer calculating the aggregate notional amount of all Interest Rate Hedging Agreements then in effect and the aggregate principal amount of Floating Rate Debt then outstanding and demonstrating compliance with paragraph (a) of this Section.

(e) The Borrower may satisfy the requirements of paragraph (a) of this Section through one or more Interest Rate Hedging Agreements entered into by any Restricted Subsidiary; provided that any such Interest Rate Hedging Agreement shall satisfy the requirements of this Section as if it had been entered into by the Borrower. Without limiting the foregoing, the Borrower shall cause each Restricted Subsidiary entering into any such agreement to comply with all of the terms and conditions of this Section applicable to the Borrower.

(f) If, at any time after the date on which any Interest Rate Hedging Agreement is entered into, the counterparty to such agreement ceases to have a combined capital and surplus of not less than five hundred million Dollars or is otherwise no longer reasonably satisfactory to the Administrative Agent, the Borrower shall use commercially reasonable efforts to replace such agreement, and shall in any event replace such agreement within sixty days after the date on which the Borrower obtains knowledge of such event, with a replacement Interest Rate Hedging Agreement that satisfies the requirements of this Section; provided that, if the Borrower is unable to replace such agreement within such sixty day period despite using commercially reasonable efforts, the Borrower shall continue to use commercially reasonable efforts thereafter to replace such agreement and such existing agreement shall not be counted for purposes of paragraph (a) of this Section.

Section 5.19 (Anti-Corruption Laws Compliance Program). (a) The Borrower shall, and shall cause each of its Subsidiaries to, conduct its business and the business of its Subsidiaries in compliance in all material respects with all applicable anti-corruption and anti-bribery laws, rules, and regulations of any Governmental Authority or other public body in any jurisdiction in which the Borrower or any of its Subsidiaries operates or conducts business, including, to the extent applicable, the United States Foreign Corrupt Practices Act, the United Kingdom Bribery Act, and all laws and regulations implementing the Convention on Combating Bribery of Foreign Public Officials in International Business Transactions. As used in this Section 5.19, "Anti-Corruption Laws" means all such laws, rules, and regulations, as the same may be amended, supplemented, or otherwise modified from time to time.

(b) The Borrower shall establish, maintain, implement, and enforce, and shall cause each of its Subsidiaries to comply with, a written anti-corruption compliance program designed, in light of the size, complexity, geographic scope, and risk profile of the Borrower and its Subsidiaries, to prevent, detect, and remediate violations of Anti-Corruption Laws. The compliance program shall, at a minimum, include the following components: (A) written policies and procedures, including a code of conduct and an anti-bribery policy, that are communicated to all directors, officers, employees, and applicable third parties and that address gifts, entertainment, travel, hospitality, charitable contributions, political contributions, facilitation payments, and the engagement and use of third-party intermediaries; (B) the designation of a senior compliance officer or compliance team with the authority,

responsibility, and resources necessary to administer the compliance program, with direct reporting to the board of directors or an audit committee or comparable body; (C) a risk assessment process, conducted at least annually and upon any material change in the business or geographic footprint of the Borrower or any of its Subsidiaries, to identify and prioritize areas of potential exposure to Anti-Corruption Laws violations; (D) risk-based due diligence, before engagement and periodically thereafter, of any third-party intermediary, agent, consultant, representative, joint venture partner, or other business partner that is reasonably likely to interact with a Government Official, including inquiries into ownership, reputation, qualifications, and any history of violations of Anti-Corruption Laws; (E) contractual provisions with third-party intermediaries that contain anti-corruption representations, undertakings, and audit rights and permit termination in the event of a breach of Anti-Corruption Laws; (F) periodic training, including training at the time of hire and at least annually thereafter, targeted to the roles, responsibilities, and risk exposure of the relevant personnel and provided to all directors, officers, employees, and, as appropriate, agents and representatives, with documentation of attendance and completion; (G) accurate books and records and internal accounting controls sufficient to provide reasonable assurances that no payments are made, authorized, or recorded in violation of Anti-Corruption Laws, including controls designed to prevent inaccurate entries, off-the-books accounts, or other means of concealing improper payments; (H) periodic monitoring, independent review, and, where appropriate, internal or external audit of the compliance program and of the business activities of the Borrower and its Subsidiaries that are subject to Anti-Corruption Laws; (I) a reporting mechanism, including a confidential and anonymous whistleblower process, that permits directors, officers, employees, agents, and representatives to report suspected violations of Anti-Corruption Laws without fear of retaliation, together with a written non-retaliation policy; (J) procedures for the prompt and thorough investigation of any reported or suspected violation, including preservation of evidence, escalation to senior management and the board of directors, and, where applicable, remediation, discipline, restitution, and voluntary disclosure to relevant Governmental Authorities; (K) periodic review and updating of the compliance program to reflect changes in applicable law, the nature of the business, and the results of risk assessments and investigations; and (L) a requirement that all senior officers certify, at least annually, compliance with Anti-Corruption Laws and the continued implementation and effectiveness of the compliance program.

(c) For purposes of this Section 5.19, "Government Official" means any officer or employee of a Governmental Authority or of any department, agency, instrumentality, or other entity owned, controlled, or operated by a Governmental Authority, including any state-owned enterprise; any officer or employee of a public international organization; any person acting in an official capacity for any such Governmental Authority, department, agency, instrumentality, entity, or organization; any officer or employee of a political party or any candidate for political office; and any officer or employee of a political subdivision or local government.

(d) The Borrower shall not, and shall not permit any of its Subsidiaries to, directly or indirectly, offer, promise, pay, loan, transfer, or authorize the payment, loan, transfer, or gift of anything of value to any Government Official or to any political party, political party official, or candidate for political office, for the purpose of influencing any official act or decision, inducing the recipient to use its influence with any Governmental Authority, securing any improper advantage, or otherwise obtaining or retaining business for, or directing business to, the Borrower, any of its

Subsidiaries, or any other person. The Borrower shall not, and shall not permit any of its Subsidiaries to, directly or indirectly, make any payment or transfer through an agent, intermediary, or other third party if the Borrower or such Subsidiary knows or has reason to believe that all or any portion of such payment or transfer would be made in violation of Anti-Corruption Laws. The Borrower shall not, and shall not permit any of its Subsidiaries to, use, or permit any director, officer, employee, agent, or other representative of the Borrower or any of its Subsidiaries to use, the proceeds of any Credit Extension, directly or indirectly, in furtherance of an offer, payment, promise, or other action prohibited by Anti-Corruption Laws.

(e) The Borrower shall, and shall cause each of its Subsidiaries to, make and keep books, records, and accounts that, in reasonable detail, accurately and fairly reflect all transactions and dispositions of assets of the Borrower and such Subsidiaries, and shall maintain, and cause each of its Subsidiaries to maintain, a system of internal accounting controls sufficient to provide reasonable assurances that transactions are executed in accordance with management's authorization; transactions are recorded as necessary to permit preparation of financial statements in conformity with generally accepted accounting principles in the United States and to maintain accountability for assets; access to assets is permitted only in accordance with management's authorization; and the recorded accountability for assets is compared with existing assets at reasonable intervals and appropriate action is taken with respect to any differences. The Borrower shall retain, and shall cause each of its Subsidiaries to retain, all such books and records for a period of at least five years from the date of the relevant transaction.

(f) The Borrower shall promptly, and in no event later than five Business Days after obtaining knowledge thereof, notify the Administrative Agent in writing of (A) any material violation of Anti-Corruption Laws by the Borrower, any Subsidiary, or any director, officer, employee, agent, or other representative thereof; (B) any investigation, inquiry, or enforcement proceeding by any Governmental Authority with respect to an alleged violation of Anti-Corruption Laws by the Borrower, any Subsidiary, or any director, officer, employee, agent, or other representative thereof; or (C) any credible allegation of a violation of Anti-Corruption Laws involving any director, officer, or senior employee of the Borrower or any Subsidiary. Such notice shall include a description of the relevant facts, the identity of the persons involved, and the steps being taken or proposed to be taken to address the matter, and shall be accompanied by copies of any written notices, subpoenas, or other process or correspondence received from any Governmental Authority in connection therewith.

(g) The Borrower shall deliver to the Administrative Agent, within one hundred twenty days after the end of each fiscal year, a certificate signed by a Responsible Officer certifying (A) that, to the knowledge of such Responsible Officer, the Borrower and each of its Subsidiaries are in compliance in all material respects with Anti-Corruption Laws, (B) that the anti-corruption compliance program described in paragraph (b) of this Section has been maintained and implemented during the immediately preceding fiscal year, and (C) that each senior officer required to make a certification under the compliance program has done so. The Borrower shall also notify the Administrative Agent, within ten Business Days after any determination by the Borrower that a material deficiency exists in the anti-corruption compliance program, of the nature of such deficiency and the proposed remediation.

Section 5.20 (Sanctions Compliance Program). (a) Each Credit Party and each of its Subsidiaries has implemented and maintains a written sanctions compliance program that is reasonably designed to ensure compliance by such

Credit Party, its Subsidiaries, and their respective directors, officers, employees, and, to the extent applicable, agents and other Persons acting on behalf of such Credit Party or such Subsidiary, with Sanctions and all applicable Anti-Corruption Laws and Anti-Money Laundering Laws. Such program includes risk-based policies, procedures, internal controls, and training that are reasonably designed to identify and escalate sanctions-related risks, screen customers, counterparties, and other relevant Persons, and report potentially prohibited activity to the appropriate governmental authorities.

(b) No Credit Party or any of its Subsidiaries, or, to the knowledge of the Borrower, any of their respective directors, officers, employees, agents, or Affiliates, is a Sanctioned Person, is owned or controlled by a Sanctioned Person, or is otherwise the subject or target of Sanctions.

(c) No Credit Party or any of its Subsidiaries is located, organized, or resident in a Sanctioned Country, and no Credit Party or any of its Subsidiaries has any material operations, assets, investments, or business relationships in or with any Sanctioned Country, the government of any Sanctioned Country, or, to the knowledge of the Borrower, any Sanctioned Person.

(d) No Credit Party or any of its Subsidiaries has received any written notice or, to the knowledge of the Borrower, any other communication from any governmental authority alleging that such Credit Party or any of its Subsidiaries is in violation of, or has actual or potential liability under, Sanctions, Anti-Corruption Laws, or Anti-Money Laundering Laws, and no Credit Party or any of its Subsidiaries has been assessed any civil penalty or been made party to any criminal or civil proceeding with respect to any alleged violation of Sanctions, Anti-Corruption Laws, or Anti-Money Laundering Laws.

(e) Neither the making of any Loan nor the use of the proceeds of any Loan will violate any Sanctions, Anti-Corruption Laws, or Anti-Money Laundering Laws. No proceeds of any Loan will be used, directly or indirectly, to fund, finance, or facilitate any operations, business, or activity in or with any Sanctioned Country, the government of any Sanctioned Country, or any Sanctioned Person, or to lend, contribute, or otherwise make available any such proceeds to any Person in a manner that would cause any Lender or Arranger to be in violation of Sanctions, Anti-Corruption Laws, or Anti-Money Laundering Laws.

(f) The Borrower has established internal controls and procedures that are reasonably designed to ensure that the Loans and the transactions contemplated by the Credit Agreement are conducted in compliance with Sanctions, Anti-Corruption Laws, and Anti-Money Laundering Laws, and such internal controls and procedures are maintained by the Borrower.

(g) No proceeds of any Loan have been used, directly or indirectly, to make any contribution, gift, payment, or transfer of value that would constitute or give rise to a violation of any Anti-Corruption Law or Anti-Money Laundering Law.

Section 5.21 (Material Contracts; Delivery of Copies). The Borrower hereby covenants and agrees that the Borrower shall, and shall cause each of its Subsidiaries to, comply with the following provisions:

(a) The Borrower shall have delivered, or caused to be delivered, to the Administrative Agent, for itself and for distribution to the Lenders, no later than the Closing Date, a true, correct and complete copy of each Material Contract in effect on the Closing Date, together with all amendments, supplements, waivers, consents, restatements,

replacements, extensions, renewals, exhibits, annexes, schedules and side letters relating thereto.

(b) The Borrower shall, and shall cause each Subsidiary to, perform and observe all material terms, covenants, conditions and provisions of each Material Contract to which it is a party or by which it or any of its properties or assets is bound, and shall not, and shall not permit any Subsidiary to, take or omit to take any action that would constitute, or with the giving of notice or the lapse of time or both would constitute, a material breach or default under any Material Contract.

(c) The Borrower shall, and shall cause each Subsidiary to, maintain each Material Contract in full force and effect and shall not permit any Material Contract to lapse, expire, terminate or become invalid or unenforceable, except to the extent that such lapse, expiration, termination or invalidity could not reasonably be expected to have a Material Adverse Effect.

(d) The Borrower shall, and shall cause each Subsidiary to, use commercially reasonable efforts to preserve and protect its rights under each Material Contract and to enforce the obligations of the other parties to each Material Contract in accordance with its terms.

(e) The Borrower shall deliver, or cause to be delivered, to the Administrative Agent, for itself and for distribution to the Lenders, promptly after the execution, delivery or receipt thereof and in any event within ten Business Days after such execution, delivery or receipt, a true, correct and complete copy of each Material Contract entered into after the Closing Date and each amendment, supplement, waiver, consent, restatement, replacement, extension, renewal, assignment, exhibit, annex, schedule or side letter relating to any Material Contract entered into, issued or received after the Closing Date.

(f) The Borrower shall deliver, or cause to be delivered, to the Administrative Agent, for itself and for distribution to the Lenders, promptly after receipt thereof and in any event within five Business Days after such receipt, a true, correct and complete copy of any written notice, claim, demand, complaint, assertion of default or termination, or other communication received by the Borrower or any Subsidiary from any party to any Material Contract that relates to an alleged or actual breach, default, termination, cancellation, non-renewal, material dispute or failure of performance under such Material Contract.

(g) The Borrower shall not, and shall not permit any Subsidiary to, waive, release, compromise or settle any material right, claim or remedy under any Material Contract, and shall not, and shall not permit any Subsidiary to, consent to any amendment, supplement, termination, cancellation, non-renewal or replacement of any Material Contract, in each case if such waiver, release, compromise, settlement, amendment, supplement, termination, cancellation, non-renewal or replacement could reasonably be expected to have a Material Adverse Effect, without the prior written consent of the Administrative Agent, which consent shall not be unreasonably withheld, conditioned or delayed.

(h) The Borrower shall, and shall cause each Subsidiary to, take all reasonably necessary actions to obtain and maintain all consents, authorizations, approvals, filings and registrations of any Governmental Authority or other third party required for the due execution, delivery, performance and enforceability of each Material Contract, except where the failure to obtain or maintain any such consent, authorization, approval, filing or registration could not reasonably be expected to have a Material Adverse Effect.

(i) The Borrower shall, upon the reasonable request of the Administrative Agent, deliver, or cause to be delivered, to

the Administrative Agent such other information, documents, records, summaries and reports relating to any Material Contract as the Administrative Agent may reasonably request from time to time to verify compliance with this Section and to monitor the financial condition and business operations of the Borrower and its Subsidiaries, including for purposes of the financial covenants set forth in Article VI.

Section 5.22 (Landlord and Bailee Waivers). (a) Each Credit Party shall use commercially reasonable efforts to obtain and deliver, or cause to be delivered, to the Administrative Agent, in form and substance reasonably satisfactory to the Administrative Agent, a landlord waiver, estoppel, collateral access agreement or similar agreement (each, a "Landlord Waiver") from the landlord, ground lessor, licensor, sublessor or mortgagee of each real property owned, leased, subleased, licensed or otherwise occupied or used by such Credit Party at which any Collateral is located or stored (such real property, a "Collateral Location"). Each Credit Party shall use commercially reasonable efforts to deliver each Landlord Waiver as soon as reasonably practicable and in any event within sixty days after the date such Collateral Location is first opened, leased, occupied or used by such Credit Party or, if such Collateral Location exists on the Closing Date, within sixty days after the Closing Date; provided that no Landlord Waiver shall be required with respect to any Collateral Location if the aggregate value of the Collateral located or stored at such Collateral Location does not exceed one million dollars in the reasonable judgment of the Administrative Agent. Each Landlord Waiver shall include (A) an acknowledgment by the applicable landlord, ground lessor, licensor, sublessor or mortgagee of the Liens created and granted under the Security Documents, (B) a waiver by such landlord, ground lessor, licensor, sublessor or mortgagee of any and all claims, liens, rights or interests in or to the Collateral located at such Collateral Location, (C) an agreement by such landlord, ground lessor, licensor, sublessor or mortgagee to permit the Administrative Agent and the other Secured Parties access to such Collateral Location for the purpose of inspecting, removing, storing or disposing of the Collateral, (D) an agreement by such landlord, ground lessor, licensor, sublessor or mortgagee to deliver to the Administrative Agent copies of any notices of default under the applicable lease or other agreement and to afford the Administrative Agent a reasonable opportunity to cure any such default, and (E) such other terms and conditions as the Administrative Agent may reasonably request.

(b) Each Credit Party shall use commercially reasonable efforts to obtain and deliver, or cause to be delivered, to the Administrative Agent, in form and substance reasonably satisfactory to the Administrative Agent, a bailee waiver, acknowledgment and agreement (each, a "Bailee Waiver") from each warehouseman, warehouse operator, bailee, customs broker, freight forwarder, processor, consignee, terminal operator or other third party (other than a common carrier with respect to Collateral in transit and other than a third party performing repairs or maintenance with respect to Collateral for a period not exceeding fifteen days) that has possession of, or holds, any Collateral in the ordinary course of business. Each Credit Party shall use commercially reasonable efforts to deliver each Bailee Waiver as soon as reasonably practicable and in any event within sixty days after the date such third party first obtains possession of, or holds, any Collateral or, if such third party is in possession of, or holds, any Collateral on the Closing Date, within sixty days after the Closing Date; provided that no Bailee Waiver shall be required with respect to any such third party if the aggregate value of the Collateral held by such third party does not exceed one million dollars in the reasonable judgment of the Administrative Agent. Each Bailee Waiver shall include (A) an

acknowledgment by such third party that it holds the Collateral for the benefit of, and subject to, the Liens created and granted under the Security Documents, (B) a waiver by such third party of any and all liens, claims, rights or interests in or to the Collateral, including any warehouseman's, artisan's, mechanic's, processor's, customs broker's, freight forwarder's or other lien, (C) an agreement by such third party to hold the Collateral for the account of the Administrative Agent and to comply with the written instructions of the Administrative Agent with respect to the Collateral, including instructions to deliver, release, ship or dispose of the Collateral, (D) an agreement by such third party to waive any and all defenses, offsets and counterclaims against the Secured Parties with respect to the Collateral, and (E) such other terms and conditions as the Administrative Agent may reasonably request.

(c) No Credit Party shall open, lease, occupy or use any new Collateral Location, or engage any third party described in paragraph (b) above, unless either (A) a Landlord Waiver or Bailee Waiver, as applicable, with respect to such Collateral Location or such third party has been delivered to the Administrative Agent or (B) no such Landlord Waiver or Bailee Waiver is required under paragraph (a) or (b) above because the aggregate value of the Collateral located or held at such location does not exceed the threshold set forth in such paragraph. Each Credit Party shall notify the Administrative Agent in writing at least fifteen days prior to the date on which such Credit Party first opens, leases, occupies or uses any such new Collateral Location or first engages any such third party; provided that no such notice shall be required to the extent no Landlord Waiver or Bailee Waiver is required under paragraph (a) or (b) above.

(d) Upon the reasonable request of the Administrative Agent, each Credit Party shall use commercially reasonable efforts to obtain and deliver to the Administrative Agent, within thirty days after such request or such longer period as the Administrative Agent may agree in its reasonable discretion, such additional Landlord Waivers, Bailee Waivers, estoppels, access agreements, acknowledgments, subordination, non-disturbance and attornment agreements, and other documents and agreements as the Administrative Agent may reasonably request in connection with the Collateral, any Collateral Location or any third party described in paragraph (b) above. Each Credit Party shall use commercially reasonable efforts to keep each Landlord Waiver and Bailee Waiver in full force and effect and shall not, without the prior written consent of the Administrative Agent, consent to any modification, amendment, termination or replacement of any Landlord Waiver or Bailee Waiver that would adversely affect the rights of the Secured Parties.

(e) If any Credit Party is unable to obtain any Landlord Waiver or Bailee Waiver required to be delivered under this Section after using commercially reasonable efforts, such Credit Party shall, at the request of the Administrative Agent, use commercially reasonable efforts to remove, or cause to be removed, the affected Collateral from the applicable Collateral Location or from the possession of the applicable third party within forty-five days after such request or such longer period as the Administrative Agent may agree in its reasonable discretion to another location or third party with respect to which a Landlord Waiver or Bailee Waiver has been delivered or is not required; provided that, if such removal is not reasonably practicable, such Credit Party shall take such other actions as the Administrative Agent may reasonably request to protect and preserve the Liens of the Security Documents with respect to such Collateral.

(f) The Administrative Agent may, in its sole discretion, agree to extend the time periods set forth in this Section or

to waive the requirements of this Section with respect to any particular Collateral Location or third party.

Section 5.23 (Post-Closing Real Property Deliverables). (a) Within ninety days after the Closing Date (or such later date as the Administrative Agent may agree in its sole discretion), the Borrower shall deliver, or cause to be delivered, to the Administrative Agent and the Collateral Agent, in form and substance reasonably satisfactory to the Administrative Agent and the Collateral Agent, the following, in each case with respect to each Mortgaged Property:

(i) a mortgage policy of title insurance (or, if not yet available, a marked commitment for such policy together with an irrevocable undertaking of the title company to issue the same upon payment of the applicable premium, which premium the Borrower shall have paid) in an amount not less than the aggregate outstanding principal amount of the Loans secured by such Mortgaged Property, issued by a title company reasonably satisfactory to the Collateral Agent, insuring that the Mortgage creates a valid and enforceable first-priority Lien upon such Mortgaged Property, subject only to Permitted Encumbrances, and containing such endorsements and affirmative coverages as the Collateral Agent may reasonably request, including, to the extent available in the applicable jurisdiction, the then-current American Land Title Association forms of endorsements for access, survey, contiguity, usury, variable rate, future advances, zoning and replacement liens;

(ii) a survey (or an update of an existing survey) of such Mortgaged Property, in form and substance reasonably satisfactory to the Collateral Agent, prepared by a duly licensed land surveyor reasonably satisfactory to the Collateral Agent, certified to the Collateral Agent and the Lenders, and showing, among other things, the location of all improvements, the absence of any encroachments or overlaps, and the absence of any survey defects other than Permitted Encumbrances;

(iii) a customary opinion of local counsel in the jurisdiction in which such Mortgaged Property is located, addressed to the Administrative Agent, the Collateral Agent and the Lenders, covering such matters as the Collateral Agent may reasonably request, including the validity, perfection and priority of the Lien of the Mortgage, the enforceability of the Mortgage and the related Notes, and such other matters as the Collateral Agent may reasonably request;

(iv) if such Mortgaged Property is a leasehold property, a landlord consent, estoppel and collateral access agreement, in form and substance reasonably satisfactory to the Collateral Agent, executed by the landlord of such property, together with such subordination, non-disturbance and attornment agreements as the Collateral Agent may reasonably request;

(v) if such Mortgaged Property is located in a special flood hazard area, a completed standard flood hazard determination form with respect to such Mortgaged Property, evidence of the flood insurance required by any applicable law or regulation, and evidence that the Administrative Agent and the Collateral Agent have been designated as loss payees under each such flood insurance policy; and

(vi) a copy of the fully executed Mortgage, together with evidence of the recording thereof in the applicable real property records, evidence of the payment of all applicable recording taxes, filing fees and similar charges, and such other documents, instruments and agreements as the Collateral Agent may reasonably request to perfect and confirm the Liens created by the Mortgages.

(b) In the event that any title policy, survey, opinion or other deliverable required by paragraph (a) above discloses any Lien, defect, encroachment or other matter that is not a Permitted Encumbrance, the Borrower shall, at its sole

cost and expense, promptly (and in any event within thirty days after delivery of such deliverable, or such longer period as the Collateral Agent may agree in its sole discretion) cure such Lien, defect, encroachment or other matter or deliver such additional title endorsements, survey affidavits or other documents as the Collateral Agent may reasonably require to eliminate, insure over or otherwise resolve such Lien, defect, encroachment or other matter to the reasonable satisfaction of the Collateral Agent.

(c) The Borrower shall pay all premiums, fees, taxes and charges payable in connection with the preparation, execution, delivery, recording and filing of the Mortgages and all other deliverables described in this Section, and shall cause each Subsidiary Guarantor that owns any Mortgaged Property to execute and deliver such mortgages, deeds of trust, deeds to secure debt and other security documents as the Collateral Agent may reasonably request, in each case in form and substance reasonably satisfactory to the Collateral Agent.

Section 5.24 (Delivery of Budgets and Business Plans). The Borrower shall deliver to the Administrative Agent, for distribution to each Lender, or shall cause to be posted on the electronic platform established for the credit facilities, each of the following items, in each case in form and detail reasonably satisfactory to the Administrative Agent:

(a) as soon as available, and in any event no later than forty-five days after the first day of each fiscal year of the Borrower, a detailed consolidated budget and business plan of the Borrower and its Restricted Subsidiaries for such fiscal year and the following two fiscal years, prepared on a quarter-by-quarter basis for such fiscal year and on an annual basis for each of the following two fiscal years, including, without limitation, projected consolidated balance sheets, statements of operations, statements of cash flows, and statements of stockholders' equity as of the end of and for each such fiscal quarter and fiscal year, projected capital expenditures, projected scheduled debt service payments, projected revolving credit and term loan borrowings outstanding under this Agreement at the end of each such fiscal quarter, and a summary of the material assumptions underlying such projections, all prepared in good faith on a basis consistent with the accounting principles applied in the preparation of the historical financial statements of the Borrower.

(b) concurrently with the delivery of each annual budget and business plan required by paragraph (a), a certificate of a Responsible Officer of the Borrower stating that such budget and business plan has been prepared in good faith on the basis of assumptions believed by management of the Borrower to be reasonable as of the date of preparation, and that such budget and business plan has been approved by the Board of Directors of the Borrower or a committee thereof.

(c) as soon as available, and in any event no later than thirty days after the end of each fiscal quarter of each fiscal year other than the last fiscal quarter of such fiscal year, an updated budget and business plan for the remainder of such fiscal year, setting forth, on a quarter-by-quarter basis, the information required by paragraph (a), together with a narrative explanation of any material variances between such updated budget and business plan and the annual budget and business plan most recently delivered under paragraph (a) for such fiscal year.

(d) promptly upon any material update, amendment, or revision of any budget or business plan previously delivered under this Section, a copy of such update, amendment, or revision, prepared in good faith and in a manner consistent with the preparation of the original budget or business plan, together with a certificate of a Responsible Officer of the Borrower stating that such update, amendment, or revision has been approved by the Board of Directors of the

Borrower or a committee thereof.

(e) The Borrower may satisfy any delivery obligation under this Section with respect to any item by causing such item to be made available on an electronic platform approved by the Administrative Agent for the posting of such items, and such item shall be deemed to have been delivered on the date on which it is made available on such platform and the Administrative Agent shall notify the Lenders of the availability of such item.

(f) All budgets, business plans, projections, and other information delivered pursuant to this Section are furnished solely for informational purposes and shall not constitute financial statements or other information required under any other provision of this Agreement. Neither the Borrower nor any other Loan Party makes any representation or warranty that actual results will not differ from the projections or forecasts set forth in such budgets, business plans, or other information, and any such difference shall not, by itself, constitute a Default or Event of Default; provided that this paragraph (f) shall not be construed to limit the obligations of the Borrower with respect to the financial covenants set forth in Article VI.

(g) No budget or business plan delivered under this Section shall be deemed to amend, supplement, or supersede any financial statement, compliance certificate, or other information required to be delivered under this Agreement, and the delivery of any such budget or business plan shall not relieve the Borrower of any obligation to deliver any such financial statement, compliance certificate, or other information.

(h) The obligations of the Borrower under this Section shall terminate on the date on which all Obligations have been indefeasibly paid in full in cash and all commitments under this Agreement have been terminated.

Section 5.25 (Maintenance of Separate Existence). The Administrative Agent and the Lenders are relying upon the separate legal existence of each Loan Party and each Subsidiary of each Loan Party in extending credit under this Agreement. Each Loan Party shall, at all times, preserve and keep in full force and effect its separate legal existence and all rights, licenses, permits, privileges and franchises material to the conduct of its business, and shall cause each of its Subsidiaries to, at all times, preserve and keep in full force and effect such Subsidiary's separate legal existence and all rights, licenses, permits, privileges and franchises material to the conduct of such Subsidiary's business; provided, however, that the preservation and maintenance of any such right, license, permit, privilege or franchise shall not be required if the failure to preserve and maintain the same could not reasonably be expected to have a Material Adverse Effect. Each Loan Party shall take, and shall cause each of its Subsidiaries to take, all actions necessary or reasonably requested by the Administrative Agent to preserve the separate legal identity of such Loan Party or such Subsidiary, as applicable, and to prevent such separate legal identity from being disregarded for any purpose. Without limiting the foregoing, no Loan Party shall, and no Loan Party shall permit any of its Subsidiaries to, directly or indirectly, take any action or fail to take any action that would result in any of the following with respect to such Loan Party or such Subsidiary, as applicable (the relevant Person):

(a) the commingling of the assets, funds or credit of the relevant Person with the assets, funds or credit of any other Person, or the holding of any asset in the name of the relevant Person for the benefit of any other Person, except as expressly contemplated by the Loan Documents;

(b) the holding out of the relevant Person to the public as having agreed to pay, or as being liable for, any debt, obligation or liability of any other Person, or the holding out of the relevant Person as an agent, partner, joint

venturer or other Person acting for or on behalf of any other Person, except as expressly permitted by this Agreement;

(c) the failure to maintain the books, records, accounts, stationery, invoices and checks of the relevant Person in a manner that reflects the separate legal existence of the relevant Person from any Affiliate or other Person, or the failure to maintain separate financial statements for the relevant Person, it being understood that such financial statements may be included in the consolidated financial statements of the Borrower and its Subsidiaries;

(d) the payment, satisfaction, defeasance or discharge of any debt, obligation or liability of any other Person from the funds or assets of the relevant Person, or the acquisition or holding of any obligations or securities of any other Person, except for cash and Cash Equivalents and except as otherwise expressly permitted by this Agreement and the other Loan Documents;

(e) the assumption, guarantee, endorsement or other incurrence of liability in respect of any debt, obligation or liability of any other Person, except as expressly permitted by this Agreement or the other Loan Documents;

(f) the failure to allocate fairly and reasonably any overhead or other expenses shared with any Affiliate, the failure to pay the relevant Person's portion of such expenses when due, or the failure to maintain adequate capital in light of the relevant Person's business and operations;

(g) the failure to observe all organizational formalities required by the Organizational Documents of the relevant Person and applicable Law, including, without limitation, the failure to hold meetings or take actions by written consent as required by such Organizational Documents, to keep minutes or other records of such meetings and actions, or to act through the duly authorized officers, directors, managers, partners or other representatives of the relevant Person;

(h) the entry into any transaction with any Affiliate except on terms that are no less favorable to the relevant Person than it would obtain in a comparable arm's length transaction with a Person that is not an Affiliate;

(i) the amendment, restatement, supplement or other modification of the Organizational Documents of the relevant Person in any manner that would be materially adverse to the rights or interests of the Administrative Agent or the Lenders, or the change of the name, identity, jurisdiction of organization or the location of the registered office, principal place of business or chief executive office of the relevant Person without providing the Administrative Agent with prior written notice of such change; or

(j) any other action, or failure to take any action, that could reasonably be expected to cause the separate legal existence of the relevant Person or of any other Loan Party to be disregarded or to result in the substantive consolidation of the relevant Person or any other Loan Party with any other Person.

Section 5.26 (Notification of Change of Name or Jurisdiction). The Borrower shall notify the Administrative Agent and the Collateral Agent in writing at least thirty days prior to any change in its name, identity, corporate structure, jurisdiction of organization, or location of its chief executive office or principal place of business, or the location of any of its books and records relating to any Collateral, specifying the effective date of such change and, in the case of a change in jurisdiction of organization, attaching a certificate or other documentation reasonably satisfactory to the Collateral Agent evidencing such change. Such notice shall also identify any new organizational identification number or, if applicable, shall state that the Borrower has none, and shall provide such other information as the

Collateral Agent may reasonably request in connection with the maintenance of the perfection and priority of the Liens in favor of the Collateral Agent for the benefit of the Secured Parties.

The Borrower shall not make or permit any such change unless, at the time of such change and after giving effect thereto, no Default or Event of Default exists or would result therefrom. In addition, the Borrower shall not make or permit any such change if, as a result of such change, any Collateral or any interest of the Collateral Agent or the Secured Parties in any Collateral would become unperfected, unrecordable, or otherwise adversely affected, unless the Borrower shall have taken, or shall concurrently take, all actions reasonably requested by the Collateral Agent to maintain or restore the perfection, priority, and enforceability of such Liens, including the delivery of any financing statements, amendments, certificates, and other documents or instruments necessary for such purpose, in each case in form and substance reasonably satisfactory to the Collateral Agent.

Upon the occurrence of any change described in this Section, the Borrower shall, at its sole cost and expense, promptly take all actions reasonably required by the Collateral Agent to maintain the perfection, priority, and enforceability of the Liens granted under the Security Documents, including executing and delivering any financing statements, amendments, assignments, certificates, and other documents or instruments requested by the Collateral Agent, and shall pay all filing, registration, and recording fees and expenses in connection therewith. The Borrower shall also deliver to the Collateral Agent, upon its request, a certificate of a Responsible Officer certifying that such change has been made in accordance with this Section and that the representations and warranties set forth in the Credit Agreement are true and correct in all material respects as of the date of such change, after giving effect thereto, except to the extent any such representation and warranty expressly relates to an earlier date.

Nothing in this Section shall be construed to limit the Borrower's obligations under any other provision of the Credit Agreement or any Security Document with respect to the provision of notices or information to the Administrative Agent or the Collateral Agent, or the taking of any action to preserve and protect Collateral and the Liens thereon.

Section 5.27 (Cooperation with Field Examinations and Appraisals). (a) The Borrower shall, and shall cause each other Loan Party to, cooperate fully with the Administrative Agent, the Collateral Agent, any Lender, and any of their respective officers, employees, agents, independent contractors, consultants, accountants, auditors, appraisers and other representatives (each, a Representative) in connection with any field examination, appraisal, audit or inspection of the business, assets, properties, Collateral, books, records or operations of any Loan Party that the Administrative Agent, the Collateral Agent or any Lender may conduct or cause to be conducted from time to time in accordance with the terms of this Agreement. Such cooperation shall include, without limitation: (i) affording the relevant Representatives reasonable access, during normal business hours and upon not less than five Business Days prior written notice (or such shorter notice as the Borrower may agree in its sole discretion), to the premises, offices, facilities, warehouses, plants, fixtures, equipment, inventory, accounts receivable records, contracts, files, correspondence, books, records, and paper or electronic data reasonably requested by the relevant Representative; (ii) providing copies or extracts of any such books, records, data or other information, and the right to make excerpts or copies thereof, as the relevant Representative may reasonably request; (iii) making available to the relevant Representative the appropriate financial, accounting, treasury, operations, sales, credit, collections and other personnel of each Loan Party, as applicable, for consultation and to answer questions regarding the matters under

review; (iv) providing all assistance and information reasonably required to allow the relevant Representative to complete any physical count, inventory verification, collateral verification, receivable verification, audit, appraisal, environmental assessment or other review; and (v) otherwise supplying all information, documentation and support reasonably requested in connection with such field examination, appraisal, audit or inspection.

(b) Unless a Default or an Event of Default has occurred and is continuing, the Administrative Agent and the Collateral Agent shall not request, and the Loan Parties shall not be required to conduct or participate in, more than one field examination in any calendar year and more than one appraisal of the inventory of the Loan Parties and one appraisal of the equipment of the Loan Parties in any calendar year, taken as a whole. Upon the occurrence and during the continuance of a Default or an Event of Default, the Administrative Agent and the Collateral Agent may request, and the Borrower shall cause each Loan Party to participate in, field examinations and appraisals at such times, and in such form and for such purposes, as the Administrative Agent and the Collateral Agent may determine in their sole discretion. Any such field examination, appraisal, audit or inspection shall be conducted in a manner that minimizes, to the extent commercially reasonable, interference with the ordinary business operations of the Borrower and its Subsidiaries, and the Borrower may have a representative present during any such field examination, appraisal, audit or inspection.

(c) The Borrower shall pay all reasonable fees, costs and out-of-pocket expenses of any independent third-party appraisers, accountants, auditors, environmental consultants and other consultants and advisors retained by the Administrative Agent or the Collateral Agent in connection with any field examination, appraisal, audit or inspection conducted pursuant to this Section, together with all reasonable third-party travel, lodging, telecommunication and similar out-of-pocket costs incurred in connection therewith. The Borrower shall not be obligated to pay or reimburse any internal salaries, overhead or other administrative expenses of the Administrative Agent, the Collateral Agent or any Lender or any of their officers or employees with respect to any such field examination, appraisal, audit or inspection. All costs and expenses incurred by the Borrower in complying with this Section shall be for the account of the Borrower, and no such costs or expenses shall be subject to reimbursement by the Administrative Agent, the Collateral Agent or any Lender.

(d) Notwithstanding the foregoing, no Loan Party shall be required to disclose, provide or make available any document, information or other matter (i) that is subject to the attorney-client privilege or the work product doctrine and that the Borrower determines in good faith could reasonably be expected to result in a waiver of such privilege or doctrine, (ii) that the Borrower is prohibited from disclosing pursuant to applicable law, rule or regulation, or (iii) that is subject to a binding confidentiality agreement with a third party; provided, that, in the case of the immediately preceding subparagraph (iii), the Borrower shall use commercially reasonable efforts to obtain a waiver of such confidentiality restriction or otherwise such information may be provided in a manner that would not violate such restriction. This Section shall not be construed to require any Loan Party to create, prepare or generate any records or information that do not already exist or that would not be prepared in the ordinary course of business, except to the extent such records or information are expressly required to be prepared and delivered under this Agreement.

Section 5.28 (Delivery of Lender Meeting Materials). The Borrower shall, at the request of the Administrative Agent or the Required Lenders, prepare, or cause to be prepared, at its sole cost and expense, and deliver to the

Administrative Agent, for distribution to the Lenders, a complete and accurate package of materials (the "Lender Meeting Materials") for any meeting of Lenders held pursuant to this Agreement or any other meeting, conference call, or other forum convened by the Administrative Agent or the Required Lenders in connection with the administration of this Agreement, including any meeting convened to consider any amendment, waiver, consent, or approval of the Lenders. The Borrower shall deliver the Lender Meeting Materials not less than five Business Days prior to the date of the applicable meeting, conference call, or other forum, unless the Administrative Agent, in its reasonable discretion, agrees to a shorter period; provided that if the Borrower is unable to deliver the complete Lender Meeting Materials by such time, the Borrower shall deliver the materials then available by such time and shall deliver the remaining materials as soon as reasonably practicable thereafter, but in no event later than two Business Days prior to the date of such meeting, conference call, or other forum.

The Lender Meeting Materials shall include, to the extent not previously delivered to the Lenders and to the extent such information is in the possession of, or reasonably available to, any Credit Party:

(a) a written agenda for the applicable meeting and a summary of each matter expected to be presented for action or discussion, including any proposed amendment, waiver, consent, or approval of the Lenders and a description of the facts and circumstances giving rise to such matter;

(b) copies of all written materials, presentations, memoranda, financial projections, reports, and other documents prepared by or on behalf of any Credit Party or any of their respective officers, directors, employees, accountants, or financial advisors in connection with such meeting, conference call, or other forum or the subject matter thereof, including any board packages or committee packages;

(c) a current list of all Credit Parties, showing for each such Credit Party its jurisdiction of organization, organizational identification number, the location of its chief executive office, and, to the extent known after due inquiry, any pending or threatened litigation, arbitration, or governmental proceeding that could reasonably be expected to result in a material adverse effect;

(d) a report, as of the most recent fiscal quarter end and fiscal year end for which financial statements are required to be delivered under this Agreement, showing the aggregate outstanding principal amount of each tranche of Loans, the aggregate undrawn amount of all Letters of Credit, the aggregate amount of all outstanding reimbursement obligations in respect of Letters of Credit, and the aggregate amount of any other credit exposures outstanding under the revolving credit facility and the term loan facility;

(e) a certificate of a Responsible Officer of the Borrower, dated the date of delivery, certifying that, to the best of such officer's knowledge after due inquiry, the Lender Meeting Materials, taken as a whole, do not contain any untrue statement of a material fact or omit to state a material fact necessary in order to make the statements contained therein, in light of the circumstances under which they were made, not misleading, and that no Default or Event of Default has occurred and is continuing, or if a Default or Event of Default has occurred and is continuing, describing with particularity the nature and period of existence of such Default or Event of Default and the actions being taken or proposed to be taken by the Credit Parties to remedy such Default or Event of Default; and

(f) such other information with respect to the business, operations, financial condition, Collateral, Liens, and perfection of Liens as the Administrative Agent or the Required Lenders may reasonably request in connection with

such meeting, conference call, or other forum, including the results of any collateral audits or appraisals conducted in the preceding twelve months.

The Borrower shall not be required to include in the Lender Meeting Materials any document, information, or portion thereof that constitutes attorney-client privileged communications, attorney work product, trade secrets, or other competitively sensitive confidential information not customarily disclosed to lenders; provided that the Borrower shall, to the extent any such document or information is withheld, deliver to the Administrative Agent a written description of the nature of the withheld material reasonably sufficient to enable the Lenders to understand the basis for the withholding.

The Administrative Agent shall have no obligation to distribute the Lender Meeting Materials and may, in its sole discretion, determine whether, when, and in what form to make such materials available to the Lenders; provided that the Administrative Agent shall use reasonable efforts to distribute the Lender Meeting Materials to the Lenders in connection with any meeting, conference call, or other forum convened by the Administrative Agent or the Required Lenders. The Administrative Agent shall have no duty to verify, and shall not be responsible for, the accuracy, completeness, or sufficiency of the Lender Meeting Materials, and shall not be liable to any Lender for any loss or claim arising out of the distribution or failure to distribute any Lender Meeting Materials, except for losses resulting from the willful misconduct or gross negligence of the Administrative Agent as determined by a final, nonappealable judgment of a court of competent jurisdiction. No Lender shall be entitled to rely on the Lender Meeting Materials in connection with any decision to vote, grant a consent, or take any other action under this Agreement, and each Lender shall make its own independent investigation and evaluation of the Credit Parties and the matters described in such materials.

The Borrower shall, upon the reasonable request of the Administrative Agent or the Required Lenders, make available one or more senior officers of the Borrower, including, if reasonably available, the chief executive officer, the chief financial officer, or the chief operating officer, to attend or participate by telephone in any meeting, conference call, or other forum for which Lender Meeting Materials are required to be delivered, to answer questions and discuss the Lender Meeting Materials and the business, operations, and financial condition of the Credit Parties.

The Borrower shall pay all reasonable out-of-pocket costs and expenses incurred by the Administrative Agent in connection with the preparation, reproduction, and distribution of the Lender Meeting Materials, including the reasonable fees, charges, and disbursements of counsel and other advisors to the Administrative Agent, whether or not the applicable meeting, conference call, or other forum is actually held.

Section 5.29 (Application of Insurance Proceeds). (a) The Borrower shall promptly notify the Administrative Agent in writing of any casualty loss, damage, destruction, or condemnation (or any proceeding or agreement for the taking in lieu of condemnation) affecting any Collateral, describing in reasonable detail the nature of such event, the affected property, and the estimated amount of any proceeds or award. The Borrower shall deliver to the Administrative Agent such additional information with respect thereto as the Administrative Agent may reasonably request.

(b) Subject to the terms of this Section, all proceeds of any insurance covering Collateral (other than business

interruption, liability, and other insurance proceeds described in clause (f) below) and all awards or payments in respect of any condemnation or taking (or proceeding or agreement for the taking in lieu of condemnation) of Collateral, net of the reasonable out-of-pocket costs and expenses incurred by the Borrower in collecting such proceeds and any taxes paid or payable by the Borrower in respect of such event or the receipt of such proceeds (collectively, "Proceeds"), shall be applied by the Borrower as follows: (i) if the aggregate amount of Proceeds in respect of any single event does not exceed five hundred thousand dollars, the Borrower may apply such Proceeds to the repair, restoration, or replacement of the affected Collateral, or, at the Borrower's option, to the prepayment of the Obligations in accordance with clause (d) below, provided, that if at the time of receipt of such Proceeds a Default or Event of Default has occurred and is continuing, such Proceeds shall be paid to the Administrative Agent and applied as provided in clause (d) below, and (ii) if the aggregate amount of Proceeds in respect of any single event exceeds five hundred thousand dollars, then, unless the Borrower elects to apply such Proceeds to the repair, restoration, or replacement of the affected Collateral in compliance with clause (c) below, the Borrower shall pay such Proceeds to the Administrative Agent, and such Proceeds shall be applied to the Obligations as provided in clause (d) below; provided, further, that if at the time of receipt of such Proceeds a Default or Event of Default has occurred and is continuing, such Proceeds shall be paid to the Administrative Agent and applied as provided in clause (d) below without regard to the foregoing.

(c) The Borrower may elect to use Proceeds in excess of five hundred thousand dollars in respect of any single event for the repair, restoration, or replacement of the affected Collateral if, and only if, (i) no Default or Event of Default has occurred and is continuing at the time of such election and at the time of any use of such Proceeds, and (ii) the Borrower delivers to the Administrative Agent prior to any such use a certificate of an Authorized Officer setting forth (A) a description of the proposed repair, restoration, or replacement, (B) a reasonable estimate of the cost thereof, (C) a schedule for completion thereof, which schedule shall not extend beyond one hundred eighty days after the date of the initial receipt of such Proceeds, and (D) such other information as the Administrative Agent may reasonably request to substantiate the estimated value of the affected Collateral after such repair, restoration, or replacement relative to its value immediately prior to the event giving rise to such Proceeds. The Administrative Agent may require, as a condition to the release of any such Proceeds for the purposes described in this clause (c), that the Borrower provide additional assurances in form and substance reasonably satisfactory to the Administrative Agent that the repair, restoration, or replacement will be completed in accordance with such schedule and that the security interests of the Secured Parties in the affected Collateral will remain perfected and of at least the same priority as existed prior to such event. Any Proceeds not applied to the repair, restoration, or replacement of the affected Collateral in accordance with this clause (c) shall be promptly paid to the Administrative Agent for application as provided in clause (d) below.

(d) Any Proceeds paid to the Administrative Agent pursuant to this Section shall be held by the Administrative Agent in a non-interest bearing cash collateral account and, so long as no Event of Default has occurred and is continuing, shall be applied by the Administrative Agent from time to time at the Borrower's written request to the prepayment of the Loans and to the payment of other Obligations in accordance with Section 2.12. If an Event of Default has occurred and is continuing, the Administrative Agent may apply such Proceeds to any Obligations in such manner

and order as it or the Required Lenders may determine. Any such application to the Term Loans shall be made to the scheduled principal installments thereof in the inverse order of maturity. No application of Proceeds to the Obligations shall be construed as a cure of any Default or Event of Default or as a waiver of any right of the Administrative Agent or any Lender.

(e) In the event of any condemnation or taking (or proceeding or agreement for the taking in lieu of condemnation) of all or any material portion of the Collateral, the Borrower shall give the Administrative Agent prompt written notice thereof, and the provisions of clauses (b), (c), and (d) above shall apply to the awards or payments received in respect thereof as if such condemnation or taking were an event of loss, damage, or destruction; provided, that if the affected Collateral is not to be repaired, restored, or replaced and the aggregate amount of such awards or payments exceeds five hundred thousand dollars, the Borrower shall be obligated to prepay the Obligations in accordance with clause (d) above regardless of whether a Default or Event of Default has occurred.

(f) Notwithstanding the foregoing, proceeds of business interruption insurance, liability insurance, and any other insurance policies maintained by the Loan Parties that do not cover Collateral shall be applied to the purposes for which such policies are maintained and shall not be subject to this Section, and neither the Administrative Agent nor any Lender shall have any right to require the payment over or application of such proceeds to the Obligations, except to the extent required by the terms of any other agreement or applicable law.

(g) The Borrower shall not, without the prior written consent of the Administrative Agent, consent to or approve the adjustment or settlement of any claim under any insurance policy covering Collateral in respect of which the amount of the resulting Proceeds exceeds five hundred thousand dollars, unless no Default or Event of Default has occurred and is continuing, or cancel, surrender, or materially amend any such insurance policy. Upon the reasonable request of the Administrative Agent, the Borrower shall, and shall cause each other Loan Party to, execute and deliver any assignments, endorsements, or other instruments as may be necessary or, in the reasonable opinion of the Administrative Agent, advisable to perfect or protect the Secured Parties' interest in any claims under any such insurance policies and the Proceeds thereof.

Section 5.30 (Employee Benefit Plan Compliance). (a) Each Plan is in compliance in all material respects with the provisions of ERISA, the Code and all other applicable federal, state, local and foreign laws and regulations, and with the terms of such Plan, except for any noncompliance that, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect.

(b) Each Plan that is intended to be qualified under Section 401(a) of the Code has received a favorable determination letter from the Internal Revenue Service with respect to such qualification and, to the knowledge of the Borrower, nothing has occurred or exists that could reasonably be expected to result in the revocation of any such determination letter or the loss of such qualification, except as could not reasonably be expected to have a Material Adverse Effect.

(c) No accumulated funding deficiency (within the meaning of Section 302 of ERISA and Section 412 of the Code), whether or not waived, exists with respect to any Plan, and no Credit Party or any ERISA Affiliate has (i) failed to make any contribution or payment to any Plan required to be made under the terms of such Plan, ERISA, the Code or any other applicable law, (ii) incurred or reasonably expects to incur any liability under Section 4062, 4063, 4064,

4069, 4201, 4204 or 4212 of ERISA or Section 4971, 4972, 4975, 4976 or 4980 of the Code, (iii) engaged in any transaction that is a prohibited transaction (within the meaning of Section 406 of ERISA or Section 4975 of the Code) with respect to any Plan, or (iv) breached any fiduciary duty (within the meaning of Part 4 of Subtitle B of Title I of ERISA) with respect to any Plan, except, in each such case, as could not reasonably be expected to have a Material Adverse Effect.

(d) No event has occurred or is reasonably expected to occur with respect to any Plan that is subject to Title IV of ERISA that would result in the termination of such Plan, the appointment of a trustee to administer such Plan, the institution of proceedings by the PBGC to terminate such Plan or to appoint a trustee to administer such Plan, or any liability of any Credit Party or any ERISA Affiliate to the PBGC, except as could not reasonably be expected to have a Material Adverse Effect.

(e) Except as could not reasonably be expected to have a Material Adverse Effect, no Credit Party or any ERISA Affiliate has withdrawn, or is reasonably expected to withdraw, from any Multiemployer Plan in a complete or partial withdrawal (within the meaning of Section 4203 or 4205 of ERISA), and no Multiemployer Plan is, or is reasonably expected to become, insolvent or in reorganization (within the meaning of Section 4241 or 4245 of ERISA).

(f) Except as could not reasonably be expected to have a Material Adverse Effect, no Plan provides post-employment or post-retirement welfare benefits to any current or former employee, officer or director of any Credit Party or any ERISA Affiliate, except to the extent required under Part 6 of Subtitle B of Title I of ERISA, Section 4980B of the Code or any other applicable law.

(g) Each Foreign Plan is in compliance in all material respects with all applicable laws, regulations and rules, except for any noncompliance that, individually or in the aggregate, could not reasonably be expected to have a Material Adverse Effect. No Foreign Plan has any unfunded liability that is not reflected in the consolidated financial statements of the Borrower, except as could not reasonably be expected to have a Material Adverse Effect.

(h) No claim, action, suit, audit, investigation or proceeding is pending or, to the knowledge of the Borrower, threatened against or with respect to any Plan, any Credit Party or any ERISA Affiliate with respect to any Plan, except as could not reasonably be expected to have a Material Adverse Effect.

(i) No Credit Party or any ERISA Affiliate has incurred or reasonably expects to incur any liability under Section 4980H of the Code or any other applicable law relating to health care coverage or continuation coverage, except as could not reasonably be expected to have a Material Adverse Effect.

Section 5.31 (Further Identification of Collateral). (a) Each Loan Party shall, at its sole cost and expense, take all such actions as the Administrative Agent may reasonably request in order to ensure that all property of such Loan Party intended to be subject to the Liens created by any Collateral Document, whether now owned or hereafter acquired, is accurately and completely identified in the Collateral Documents and that such Liens attach, are perfected, and are maintained with the priority required by the Collateral Documents. Without limiting the generality of the preceding sentence, each Loan Party shall execute and deliver, as soon as reasonably practicable and in any event within thirty days after the date of any request by the Administrative Agent, or within such longer period as the Administrative Agent may agree, all supplements, amendments, assignments, conveyances, pledge agreements,

financing statements, continuation statements, control agreements, certificates, and other documents and instruments as the Administrative Agent may reasonably request to perfect or maintain the security interests of the Administrative Agent and the Secured Parties in any Collateral, including any Collateral acquired or arising after the Closing Date. Each Loan Party hereby authorizes the Administrative Agent to file any financing statement, continuation statement, or amendment with respect to the Collateral without the signature of such Loan Party to the extent permitted under the Uniform Commercial Code.

(b) Each Loan Party shall notify the Administrative Agent in writing no later than thirty days prior to the effective date of any change in such Loan Party's legal name, organizational identification number, federal employer identification number, form of organization, type of organization, jurisdiction of organization, registered office, chief executive office, principal place of business, or the location at which any books or records of such Loan Party are kept. Such notice shall describe the change in reasonable detail and shall be accompanied by any financing statement amendment or other document that the Administrative Agent may reasonably request to reflect such change.

(c) Each Loan Party shall notify the Administrative Agent in writing no later than thirty days prior to the opening of any new deposit account or the establishment of any new securities account or commodity account, other than any deposit account that is a payroll account, tax account, or trust account or any account that is excluded from the Collateral Documents. Any such notice shall identify the depository institution, securities intermediary, or commodity intermediary, as applicable, and shall include such other information as the Administrative Agent may reasonably request.

(d) At the request of the Administrative Agent, each Loan Party shall cause, at its sole cost and expense, the applicable depository institution, securities intermediary, or commodity intermediary to execute and deliver to the Administrative Agent, within forty-five days after such request or within such longer period as the Administrative Agent may agree, a control agreement in form and substance reasonably satisfactory to the Administrative Agent establishing the Administrative Agent's control over such deposit account, securities account, or commodity account for the benefit of the Secured Parties. Such Loan Party shall also take any other action reasonably requested by the Administrative Agent to enable the Administrative Agent to obtain control over any deposit account, securities account, commodity account, letter-of-credit right, electronic chattel paper, or investment property constituting Collateral.

(e) Each Loan Party shall notify the Administrative Agent in writing no later than thirty days after the date of any filing, registration, acquisition, renewal, or extension by such Loan Party of any patent, trademark, service mark, copyright, or mask work, or any application for any of the foregoing, in the United States or any other jurisdiction, unless the relevant patent, trademark, service mark, copyright, mask work, application, renewal, or extension is identified in the Collateral Documents at the time of such filing, registration, acquisition, renewal, or extension. Such notice shall describe the relevant intellectual property in reasonable detail and, upon the request of the Administrative Agent, the applicable Loan Party shall execute and deliver, at its sole cost and expense, such intellectual property security agreements, supplements, assignments, and other documents and instruments as the Administrative Agent may reasonably request to cause such intellectual property to be subject to the Liens created

by the Collateral Documents and to perfect and maintain such Liens with the priority required by the Collateral Documents.

(f) If any Loan Party owns or acquires any commercial tort claim, as defined in the Security Agreement, with a value reasonably estimated by such Loan Party in good faith to exceed two million five hundred thousand dollars, such Loan Party shall deliver to the Administrative Agent, no later than thirty days after the earlier of the date such claim is first asserted in writing by or against such Loan Party and the date such Loan Party first obtains knowledge of such claim, a written notice describing the nature of such claim, the parties to such claim, the court or forum in which such claim is pending, the amount or estimated amount of damages sought or reasonably expected to be recovered, and such other information as the Administrative Agent may reasonably request. Upon the request of the Administrative Agent, such Loan Party shall amend, or cause to be amended, the Collateral Documents to include such commercial tort claim in the Collateral and shall take all actions reasonably requested by the Administrative Agent to perfect and maintain the Lien on such commercial tort claim.

(g) Each Loan Party shall use commercially reasonable efforts, at its sole cost and expense, to cause each lessor, warehouseman, processor, bailee, or other third party that owns, operates, or controls any premises where any Collateral with an aggregate value in excess of two million five hundred thousand dollars is located or maintained, that is in possession of any such Collateral, or that maintains any books or records of any Loan Party, to execute and deliver to the Administrative Agent, within ninety days after the request of the Administrative Agent or within such longer period as the Administrative Agent may agree, a landlord waiver, access agreement, collateral access agreement, bailee waiver, warehouseman waiver, processor waiver, or similar acknowledgment, in form and substance reasonably satisfactory to the Administrative Agent.

(h) Each Loan Party shall, upon the request of the Administrative Agent, deliver to the Administrative Agent within thirty days after such request a certificate of a responsible officer, in form and substance reasonably satisfactory to the Administrative Agent, setting forth the location of all Collateral, the names and addresses of all account debtors and obligors in respect of material accounts, instruments, chattel paper, electronic chattel paper, and payment intangibles, and such other information as the Administrative Agent may reasonably request to verify the identification, perfection, and priority of the Liens on the Collateral. Each Loan Party shall cause all such information to be true, correct, and complete in all material respects as of the date such information is provided.

ARTICLE VI. FINANCIAL COVENANTS

Section 6.01 (Maximum Total Net Leverage Ratio). The Borrower shall not permit the ratio of Consolidated Net Debt to Consolidated EBITDA (as defined in Section 1.01 of this Agreement, and computed using no other EBITDA presentation) to exceed 5.25x, tested quarterly on a pro forma basis, commencing with the fiscal quarter ending after the Closing Date.

Section 6.02 (Minimum Fixed Charge Coverage Ratio). The Borrower shall not permit the FCCR (as defined in Section 1.01), tested quarterly on a trailing-four-quarter basis, to be less than 1.25 to 1.00.

ARTICLE VII. NEGATIVE COVENANTS

Section 7.01. The Borrower shall not, and shall not permit any Restricted Subsidiary to, incur Liens, incur additional Indebtedness, make Restricted Payments, make Investments, or dispose of assets, in each case except as

permitted under the corresponding baskets and exceptions set forth in the Security Agreement and this Agreement's negative covenant schedules, substantially consistent in structure with the Limitation on Liens and Limitation on Restricted Payments covenants of the Notes indenture, though the two documents' baskets are independently negotiated and are not identical.

Section 7.02 (Liens). The Borrower shall not, and shall not permit any Restricted Subsidiary to, create or suffer to exist any Lien on any of its property or assets, except Permitted Liens.

Section 7.03 (Indebtedness). The Borrower shall not, and shall not permit any Restricted Subsidiary to, create, incur, assume or suffer to exist any Indebtedness, except: (a) the Obligations; (b) Existing Indebtedness; (c) the Senior Notes and any Permitted Refinancing Indebtedness thereof; (d) intercompany Indebtedness among the Borrower and its Restricted Subsidiaries, evidenced where required by an Intercompany Note; (e) Capital Lease Obligations and purchase-money Indebtedness incurred to finance the acquisition, construction or improvement of fixed or capital assets, not to exceed the amount set forth on Schedule 7.03; (f) Guarantees by any Restricted Subsidiary of Indebtedness of the Borrower or another Restricted Subsidiary otherwise permitted to be incurred under this Section 7.03; (g) unsecured Indebtedness of the Borrower or a Restricted Subsidiary owing to the seller under a Permitted Acquisition, representing deferred purchase price or an earn-out obligation, so long as such Indebtedness is subordinated in right of payment to the Obligations on terms reasonably satisfactory to the Administrative Agent; (h) obligations under Cash Management Agreements and under Swap Contracts entered into for bona fide hedging purposes and not for speculation; (i) surety, performance, customs, appeal or similar bonds and completion guarantees incurred in the ordinary course of business; (j) Indebtedness in respect of insurance premium financing incurred in the ordinary course of business; (k) Indebtedness of a Person existing at the time such Person becomes a Restricted Subsidiary pursuant to a Permitted Acquisition, so long as such Indebtedness was not incurred in contemplation of such Person becoming a Restricted Subsidiary and is not recourse to the Borrower or any other Restricted Subsidiary other than such Person; (l) Permitted Refinancing Indebtedness in respect of Indebtedness otherwise permitted under this Section 7.03; (m) accrual, accretion or capitalization of interest, original issue discount or payment-in-kind interest on Indebtedness otherwise permitted under this Section 7.03, to the extent not constituting an incurrence of new Indebtedness for cash; (n) Indebtedness in respect of letters of credit issued under this Agreement, or in respect of workers' compensation claims, health, disability or other employee benefits, or self-insurance obligations, in each case in the ordinary course of business; (o) Indebtedness arising from customary indemnification, adjustment of purchase price, holdback or similar obligations incurred in connection with a Permitted Acquisition or Disposition, in each case not constituting Indebtedness for borrowed money; (p) Indebtedness under the Additional Term Loan Commitments or any increase in the Revolving Commitments established under Section 2.05; and (q) other unsecured Indebtedness in an aggregate principal amount not to exceed the amount set forth on Schedule 7.03.

Section 7.04 (Fundamental Changes). The Borrower shall not, and shall not permit any Restricted Subsidiary to, merge, consolidate, liquidate, wind up or dissolve, or convey, transfer or lease all or substantially all of its assets, except (a) a Restricted Subsidiary may merge into the Borrower or another Restricted Subsidiary, so long as, if the Borrower is a party, the Borrower is the surviving entity; (b) as otherwise permitted under a Permitted Acquisition;

(c) an Immaterial Subsidiary may liquidate or dissolve if the Borrower determines in good faith that such liquidation or dissolution is in the best interests of the Borrower and is not materially disadvantageous to the Lenders; and (d) any Disposition expressly permitted by Section 7.05 may be structured as a merger, consolidation or conveyance of assets.

Section 7.05 (Dispositions). The Borrower shall not, and shall not permit any Restricted Subsidiary to, make any Disposition, except: (a) sales of inventory, and licenses of Intellectual Property on a non-exclusive basis, in each case in the ordinary course of business; (b) Dispositions of obsolete, worn-out or surplus property, whether now owned or hereafter acquired, in the ordinary course of business; (c) Dispositions among the Borrower and its Restricted Subsidiaries; (d) Dispositions of Cash Equivalents for fair market value; (e) leases, subleases, licenses or sublicenses of real or personal property in the ordinary course of business that do not materially interfere with the business of the Borrower and its Restricted Subsidiaries, taken as a whole; (f) Dispositions constituting Restricted Payments permitted under Section 7.06 or Investments permitted under Section 7.07; (g) Dispositions of Excluded Property; (h) Dispositions resulting from any casualty or condemnation event, or any taking by eminent domain, of property or assets of the Borrower or any Restricted Subsidiary; (i) Dispositions in connection with a Permitted Lien, including dispositions of cash or Cash Equivalents constituting Permitted Investments made pursuant to a Cash Management Agreement; and (j) other Dispositions for Fair Market Value so long as at least 75% of the consideration therefor consists of cash or Cash Equivalents (subject to Designated Non-Cash Consideration not exceeding the amount set forth on Schedule 7.05), and the mandatory prepayment requirement in Section 3.01(b) is satisfied with respect to any net cash proceeds not the subject of a timely Reinvestment Notice.

Section 7.06 (Restricted Payments). The Borrower shall not, and shall not permit any Restricted Subsidiary to, make any Restricted Payment, except: (a) dividends or distributions payable solely in additional Equity Interests of the Borrower; (b) Restricted Payments by a Restricted Subsidiary to the Borrower or another Restricted Subsidiary (and, in the case of a Restricted Payment by a non-Wholly-Owned Subsidiary, to its other equityholders on a pro rata basis or a more favorable basis to the Borrower or the relevant Restricted Subsidiary); (c) repurchases of Equity Interests deemed to occur upon the exercise of stock options or warrants to the extent such Equity Interests represent all or a portion of the exercise price of such options or warrants; (d) repurchases of Equity Interests held by present or former officers, directors, consultants or employees (or their estates or beneficiaries) upon death, disability, retirement or termination of employment, in an aggregate amount not to exceed the amount set forth on Schedule 7.06 in any fiscal year; (e) Restricted Payments funded solely with an Excluded Contribution made substantially concurrently therewith; (f) Restricted Payments consummating the Transaction, including the payment of the purchase price and any post-closing purchase price adjustment under the Purchase Agreement; (g) so long as the Payment Conditions are satisfied, Restricted Payments in an aggregate amount not to exceed the Available Amount at the time of such Restricted Payment; and (h) other Restricted Payments so long as, after giving pro forma effect thereto, the Total Net Leverage Ratio does not exceed the level set forth for such purpose on Schedule 7.06 and no Default or Event of Default has occurred and is continuing or would result therefrom.

Section 7.07 (Investments). The Borrower shall not, and shall not permit any Restricted Subsidiary to, make any Investment, except: (a) Cash Equivalents; (b) Investments existing on the Closing Date and identified on Schedule

7.03; (c) Investments by the Borrower or a Restricted Subsidiary in the Borrower or another Restricted Subsidiary; (d) Permitted Acquisitions; (e) extensions of trade credit, and advances to suppliers and customers, in each case in the ordinary course of business; (f) loans and advances to officers, directors and employees of the Borrower or a Restricted Subsidiary for bona fide business purposes, or for moving, travel and similar ordinary-course business expenses, not to exceed the amount set forth on Schedule 7.03 in the aggregate at any time outstanding; (g) Investments in Joint Ventures, in an aggregate amount not to exceed the amount set forth on Schedule 7.03; (h) Investments consisting of Swap Contracts permitted under Section 7.03(h); (i) Investments received in settlement of a bona fide dispute with, or in bankruptcy or reorganization of, a supplier or customer; (j) Investments funded solely with an Excluded Contribution; (k) Investments constituting non-cash consideration received in connection with a Disposition permitted under Section 7.05; and (l) other Investments not to exceed, in the aggregate at any time outstanding, the amount set forth on Schedule 7.03.

Section 7.08 (Nature of Business). The Borrower shall not, and shall not permit any Restricted Subsidiary to, engage in any business other than the businesses conducted on the Closing Date and businesses reasonably related, ancillary or complementary thereto, or reasonable extensions thereof.

Section 7.09 (Transactions with Affiliates). The Borrower shall not, and shall not permit any Restricted Subsidiary to, enter into any transaction with an Affiliate involving aggregate consideration in excess of the amount set forth on Schedule 7.09, except: (a) transactions solely among the Borrower and its Restricted Subsidiaries not involving any other Affiliate; (b) customary compensation, benefit and indemnification arrangements for officers, directors, employees and consultants, approved by the Borrower's board of directors in good faith; (c) fees payable under the Management Agreement to the extent permitted under clause (q) of the Consolidated EBITDA definition; (d) transactions pursuant to agreements in effect on the Closing Date and listed on Schedule 7.09, and any amendment thereto so long as such amendment is not materially adverse to the Lenders; (e) Restricted Payments permitted under Section 7.06 and Investments permitted under Section 7.07; and (f) transactions on terms no less favorable to the Borrower or such Restricted Subsidiary than would be obtained in a comparable arm's-length transaction with a Person that is not an Affiliate, as determined in good faith by a Responsible Officer.

Section 7.10 (Amendments to Material Documents). The Borrower shall not, and shall not permit any Restricted Subsidiary to, amend, modify or waive any provision of the Notes indenture, its Organizational Documents, or any other Material Contract, in each case in a manner materially adverse to the Lenders, without the consent of the Required Lenders.

Section 7.11 (Sale and Leaseback Transactions). The Borrower shall not, and shall not permit any Restricted Subsidiary to, enter into any sale and leaseback transaction, except as permitted under Section 7.05 (Dispositions) and Section 7.03 (Indebtedness) as applicable to the resulting Capital Lease Obligation or Attributable Indebtedness, as the case may be.

Section 7.12 (Restrictive Agreements). The Borrower shall not, and shall not permit any Restricted Subsidiary to, enter into any agreement that restricts the ability of a Restricted Subsidiary to pay dividends or make other distributions to the Borrower, or to repay intercompany Indebtedness owing to the Borrower or another Restricted Subsidiary, except (a) restrictions imposed by this Agreement and the other Loan Documents, (b) restrictions

imposed by the Notes indenture, (c) restrictions applicable to a Restricted Subsidiary at the time it becomes a Restricted Subsidiary pursuant to a Permitted Acquisition, so long as such restrictions were not entered into in contemplation thereof, and (d) customary restrictions in leases, licenses and other agreements entered into in the ordinary course of business.

Section 7.13 (Accounting Changes; Fiscal Year). The Borrower shall not, and shall not permit any Restricted Subsidiary to, change its Fiscal Year, or make any change in accounting policies or reporting practices that would affect the calculation of any financial covenant in Article VI, except as required by GAAP or permitted by Section 1.03 (Accounting Terms) and the definition of Fixed GAAP Date.

Section 7.14 (Use of Proceeds). The Borrower shall not use the proceeds of any Credit Extension for any purpose that would violate Section 4.11 (Margin Regulations), or that would cause any representation in Section 4.09 (Compliance with Laws) to be untrue.

Section 7.15 (Hedging Arrangements). (a) The Borrower will enter into and maintain, and will cause each Restricted Subsidiary to enter into and maintain, in effect at all times from and after the Closing Date, such interest rate hedging arrangements, commodity hedging arrangements and foreign currency hedging arrangements as are necessary or advisable, in the reasonable determination of the Borrower, to hedge or mitigate the interest rate, commodity price and foreign currency exchange risks arising in the ordinary course of business of the Borrower and its Restricted Subsidiaries, and in any event such hedging arrangements as are required by the financial covenants set forth in Article VI.

(b) Each hedging arrangement required by this Section shall be documented under one or more master agreements, schedules, confirmations, annexes, credit support annexes or other similar agreements, each in form and substance reasonably satisfactory to the Administrative Agent, and shall be entered into with the Administrative Agent, a Lender or an Affiliate of a Lender, or with any other financial institution that has capital and surplus of not less than five hundred million Dollars and is otherwise reasonably satisfactory to the Administrative Agent. The obligations of the Borrower and each Restricted Subsidiary under each such hedging arrangement shall be direct, unconditional and secured obligations of the Borrower or such Restricted Subsidiary, as applicable, and shall be secured by the Collateral on a pari passu basis with the other Secured Obligations pursuant to the Security Documents.

(c) The Borrower will, and will cause each Restricted Subsidiary that is a party to a hedging arrangement described in this Section to, duly and punctually pay and perform all of its obligations, covenants, conditions and agreements under each such hedging arrangement, including the payment of all premiums, costs, fees, expenses, settlements, termination payments and other amounts payable thereunder. The Borrower will not, and will not permit any Restricted Subsidiary to, directly or indirectly, terminate, cancel, amend, modify, supplement, waive, suspend, assign or otherwise dispose of, or suffer or permit the lapse, invalidity or unenforceability of, any such hedging arrangement or any of its rights thereunder, in any manner that would be materially adverse to the interests of the Secured Parties, unless the Administrative Agent shall have given its prior written consent.

(d) The Borrower will, and will cause each Restricted Subsidiary that is a party to a hedging arrangement described in this Section to, promptly notify the Administrative Agent in writing of the occurrence of any default, event of default, termination event or event of early termination under any such hedging arrangement, or any event or

condition that, with the giving of notice or the lapse of time or both, would constitute such a default, termination event or event of early termination, and will deliver to the Administrative Agent, upon reasonable request, copies of all notices, certificates, statements, reports, confirmations and other documents and instruments delivered by or on behalf of the counterparty under or in respect of any such hedging arrangement.

(e) The Borrower will, and will cause each Restricted Subsidiary that is a party to a hedging arrangement described in this Section to, take all actions necessary or advisable to preserve and protect the rights and benefits of the Borrower and its Restricted Subsidiaries under each such hedging arrangement and to enforce the obligations of the counterparty thereunder, including the giving of all required notices and the timely exercise of all rights, options, remedies and elections under each such hedging arrangement.

(f) The Borrower will cause each counterparty to each hedging arrangement described in this Section to be, for all purposes of the Security Documents, a Secured Party with respect to the obligations of the Loan Parties under such hedging arrangement, and will cause all such obligations to be secured by and entitled to the benefits of the Collateral and the guarantees of the Loan Parties in accordance with the Security Documents.

(g) The Borrower will not, and will not permit any Restricted Subsidiary to, enter into or maintain any hedging arrangement for speculative purposes. Each hedging arrangement entered into under this Section shall be entered into, and shall remain, in the ordinary course of business and shall be for the purpose of hedging or mitigating the actual interest rate, commodity price or foreign currency exchange risks of the Borrower and its Restricted Subsidiaries and not for the purpose of speculation.

Section 7.16 (Holding Company Covenant). For purposes of this Section, a holding company means a Person that does not engage in any business or activity other than the activities described in this paragraph. The Borrower shall at all times remain a holding company. The Borrower will not, and will not permit any of its Subsidiaries to, directly or indirectly, engage in any business or activity other than (a) the ownership, holding, management and disposition of Equity Interests of its Subsidiaries; (b) the performance of the Borrower's obligations and the exercise of the Borrower's rights under the Loan Documents and the other agreements, instruments and documents contemplated thereby; (c) the receipt, holding and disposition of dividends, distributions, interest, principal, fees, tax sharing payments, management fees and other amounts paid or payable to the Borrower by its Subsidiaries; (d) the making of intercompany loans, advances and other extensions of credit to, and the provision of management, administrative, financial, legal, accounting, tax, insurance, investor relations, human resources and other support services for, its Subsidiaries, in each case to the extent otherwise permitted by this Agreement; (e) the maintenance of the Borrower's corporate existence, good standing and qualification to do business under the laws of its jurisdiction of organization and each other jurisdiction in which such qualification is necessary or advisable; (f) the issuance by the Borrower of its own Equity Interests and the performance by the Borrower of its obligations under its organizational documents; (g) the incurrence of liabilities and the ownership of assets incidental to the activities described in this paragraph; and (h) any other business or activity approved in writing by the Required Lenders.

The Borrower will not, and will not permit any of its Subsidiaries to, directly or indirectly, create, incur, assume, guarantee or suffer to exist any Indebtedness or other liability, whether absolute, contingent or otherwise, except for (a) Indebtedness and obligations under the Loan Documents; (b) trade payables, accrued expenses and other

ordinary course liabilities incurred in the ordinary course of business and incidental to the activities described in the preceding paragraph; (c) liabilities for taxes, assessments, governmental charges or levies that are not yet due and payable or that are being contested in accordance with this Agreement; (d) liabilities arising under intercompany arrangements permitted by this Agreement; and (e) other liabilities incidental to the business and activities described in the preceding paragraph.

The Borrower will not, and will not permit any of its Subsidiaries to, own, acquire or hold any material assets other than (a) the Equity Interests of its Subsidiaries, (b) cash, Cash Equivalents and other liquid assets received in connection with the ownership of such Equity Interests and held pending the application or distribution thereof, and (c) office furniture, equipment, leasehold interests, contracts and other property used in connection with the business and activities described above.

The Borrower will not, and will not permit any of its Subsidiaries to, directly or indirectly, issue, sell, transfer, assign or otherwise dispose of any Equity Interests of any Subsidiary except to the Borrower or to a direct or indirect wholly owned Subsidiary of the Borrower; provided that the foregoing shall not restrict any transaction otherwise permitted by this Agreement or any pledge of Equity Interests created in favor of the administrative agent for the benefit of the secured parties under the Loan Documents.

Section 7.17 (Anti-Layering). (a) The Borrower will not, and will not permit any Restricted Subsidiary to, directly or indirectly, create, incur, assume, guarantee, acquire, suffer to exist, or otherwise become liable in respect of any Indebtedness that is subordinated in right or time of payment to any other Indebtedness of the Borrower or such Restricted Subsidiary, unless such Indebtedness is also subordinated in right or time of payment to the Obligations on terms not less favorable to the Secured Parties than the terms on which such Indebtedness is subordinated to such other Indebtedness. For the avoidance of doubt, this paragraph shall not require any Indebtedness that is not subordinated in right or time of payment to any other Indebtedness to be subordinated to the Obligations.

(b) The Borrower will not, and will not permit any Restricted Subsidiary to, directly or indirectly, create, incur, assume, suffer to exist, or permit to exist any Lien on any of its assets or properties to secure any Indebtedness if such Lien is subordinated or junior to any other Lien on such assets or properties, unless such Lien is also subordinated or junior to the Liens securing the Obligations on terms not less favorable to the Secured Parties than the terms on which such Lien is subordinated or junior to such other Lien. For the avoidance of doubt, this paragraph shall not require any Lien that is not subordinated or junior to any other Lien to be subordinated or junior to the Liens securing the Obligations.

(c) The Borrower will not, and will not permit any Restricted Subsidiary to, directly or indirectly, amend, modify, alter, supplement, renew, extend, restate, replace, refund, refinance, repay, prepay, redeem, purchase, or defease any Indebtedness or Lien of the type described in paragraph (a) or paragraph (b) above, or any agreement, instrument, or document governing or relating to such Indebtedness or Lien, if such amendment, modification, alteration, supplement, renewal, extension, restatement, replacement, refunding, refinancing, repayment, prepayment, redemption, purchase, or defeasance would either make the terms of the subordination or junior priority of such Indebtedness or Lien to any other Indebtedness or Lien less favorable in any material respect to the Secured Parties than the terms in effect immediately prior to such action, or result in such Indebtedness or Lien being subordinated

or junior to any other Indebtedness or Lien unless, immediately after giving effect to such action, such Indebtedness or Lien is also subordinated or junior to the Obligations or the Liens securing the Obligations, as applicable, on terms not less favorable to the Secured Parties than the terms of such subordination or junior priority to such other Indebtedness or Lien.

(d) The Borrower will not, and will not permit any Restricted Subsidiary to, directly or indirectly, take or omit to take any action the purpose or effect of which is to cause any Indebtedness or Lien to become subject to any subordination, nonrecourse, intercreditor, or priority arrangement that is not expressly made for the benefit of the Secured Parties or that would result in any person or holder of obligations being interposed between the Secured Parties and any Credit Party or any Restricted Subsidiary with respect to the payment of the Obligations or the exercise of remedies with respect to any collateral securing the Obligations.

Section 7.18 (Additional Negative Pledge (Non-Collateral Assets)). (a) For purposes of this Section, "Non-Collateral Assets" means, at any time, all property, assets and rights of the Borrower and the Restricted Subsidiaries, whether tangible or intangible, that are not at such time subject to a valid and perfected Lien in favor of the Collateral Agent for the benefit of the Secured Parties under the Security Documents. For the avoidance of doubt, Non-Collateral Assets shall include the capital stock and other equity interests of any Unrestricted Subsidiary, any Foreign Subsidiary, and any other Subsidiary that is not a Loan Party, and all other property and assets of any such Subsidiary, in each case to the extent such property, assets, or equity interests are not subject to a Lien in favor of the Collateral Agent.

(b) The Borrower will not, and will not permit any Restricted Subsidiary to, directly or indirectly, create, incur, assume, or suffer to exist any Lien on any Non-Collateral Asset to secure any Indebtedness, guarantee, or other obligation of any Person, other than as expressly permitted by paragraphs (c), (d), (e), and (f) of this Section.

(c) Liens that constitute Permitted Liens on Non-Collateral Assets are permitted.

(d) Liens on Non-Collateral Assets of any Restricted Subsidiary that is not a Loan Party are permitted, so long as such Liens secure only Indebtedness and other obligations of such Restricted Subsidiary, and such Indebtedness and other obligations are permitted by this Agreement to be incurred or to remain outstanding.

(e) Liens on Non-Collateral Assets of the Borrower or any Loan Party are permitted, so long as such Liens secure only Indebtedness of the Borrower or such Loan Party, and such Indebtedness is permitted by this Agreement to be incurred or to remain outstanding; provided that the aggregate outstanding principal amount of all Indebtedness secured by Liens permitted under this paragraph (e) shall not exceed one hundred fifty million dollars at any time.

(f) Liens on Non-Collateral Assets acquired after the Closing Date are permitted, so long as such Liens existed on such assets at the time of acquisition, were not created in anticipation of or in connection with such acquisition, and the aggregate outstanding principal amount of all Indebtedness secured by all Liens permitted under this paragraph (f) does not exceed fifty million dollars at any time.

(g) If any Lien permitted under paragraph (e) or paragraph (f) of this Section is granted on any Non-Collateral Asset of the Borrower or any Loan Party, then the Borrower will, concurrently with the grant of such Lien, make effective provision such that the Obligations are secured by such Non-Collateral Asset on an equal and ratable basis with the obligations secured by such Lien, and will, at the Borrower's sole cost and expense, execute and deliver to the

Administrative Agent and the Collateral Agent any amendments, supplements, consolidations, assignments, financing statements, continuation statements, control agreements, certificates, legal opinions, and other documents and instruments as the Collateral Agent may reasonably request to evidence and perfect the Lien of the Security Documents on such Non-Collateral Asset. This paragraph (g) shall not apply to any Non-Collateral Asset of a Restricted Subsidiary that is not a Loan Party.

(h) The Borrower will not, and will not permit any Restricted Subsidiary to, enter into or suffer to exist any Sale and Leaseback Transaction with respect to any Non-Collateral Asset, unless the sale or transfer of such Non-Collateral Asset pursuant to such Sale and Leaseback Transaction is permitted by this Agreement and the Lien, if any, arising in connection with such Sale and Leaseback Transaction is a Lien permitted under paragraph (c), (d), (e), or (f) of this Section.

(i) The Borrower will not, and will not permit any Restricted Subsidiary to, take or omit to take any action the purpose or effect of which is to cause any asset that is required by the Security Documents to constitute Collateral to cease to constitute Collateral or to be released from the Lien of the Security Documents, other than as expressly permitted by the Security Documents and this Agreement.

Section 7.19 (Limitation on Subsidiary Preferred Stock). No Subsidiary of the Borrower shall issue any preferred Equity Interests, and no Subsidiary of the Borrower shall permit any of its Subsidiaries to issue any preferred Equity Interests, except as set forth in paragraph (a), paragraph (b) or paragraph (c) of this Section.

(a) Any Subsidiary of the Borrower may issue preferred Equity Interests to, and cause such preferred Equity Interests to be held by, the Borrower or any Wholly Owned Subsidiary of the Borrower that is a Guarantor; provided that, if any such preferred Equity Interests are transferred to any Person other than the Borrower or a Wholly Owned Subsidiary of the Borrower that is a Guarantor, such transfer shall be deemed, immediately prior to such transfer, to be an issuance of such preferred Equity Interests to such Person, and such deemed issuance shall be permitted only to the extent that such issuance would be permitted under paragraph (c) of this Section at the time of such transfer.

(b) Any Subsidiary of the Borrower may issue preferred Equity Interests in connection with the substitution, replacement or exchange of preferred Equity Interests of such Subsidiary outstanding on the Closing Date; provided that (A) the aggregate liquidation preference of the substituted, replacement or exchanged preferred Equity Interests does not exceed the aggregate liquidation preference of the preferred Equity Interests being replaced, (B) no Default or Event of Default has occurred and is continuing, or would result from such issuance, and (C) the terms of such substituted, replacement or exchanged preferred Equity Interests do not amend or modify any term of the preferred Equity Interests being replaced in a manner that is materially adverse to the Lenders.

(c) Any Subsidiary of the Borrower may issue preferred Equity Interests to any Person after the Closing Date if, and only if, each of the following conditions is satisfied:

(A) no Default or Event of Default has occurred and is continuing, or would result from such issuance or from the application of the proceeds thereof;

(B) the Borrower has delivered to the Administrative Agent a certificate of a Responsible Officer of the Borrower setting forth reasonably detailed calculations demonstrating that, after giving effect to such issuance and the application of the proceeds thereof, the Borrower is in compliance with the financial covenants set forth in this

Credit Agreement as of the last day of the most recent fiscal quarter for which financial statements were required to have been delivered pursuant to this Credit Agreement, recomputed on a pro forma basis as if such issuance had occurred on such date;

(C) the terms of such preferred Equity Interests do not provide for, and do not permit the holder thereof to require, any redemption, purchase, repurchase, sinking fund, defeasance, or other payment in respect of such preferred Equity Interests, and do not provide for any dividend or other distribution in cash or other property, other than dividends payable solely in additional shares of such preferred Equity Interests, in each case on or prior to the date that is ninety-one days after the Latest Maturity Date; provided that no such dividend shall be payable unless, after giving effect to such dividend and the resulting increase in the aggregate liquidation preference of such preferred Equity Interests, no Default or Event of Default has occurred and is continuing or would result therefrom;

(D) such preferred Equity Interests are not guaranteed by, and are not otherwise recourse to, the Borrower or any Guarantor, and are not secured by any assets of the Borrower, any Guarantor, or any other Subsidiary of the Borrower that is a Guarantor;

(E) such preferred Equity Interests do not contain any covenant, event of default, or other provision that restricts the ability of the issuer or any of its Subsidiaries to make dividends or other distributions to the Borrower or any Guarantor, to make loans or advances to the Borrower or any Guarantor, or to transfer assets or property to the Borrower or any Guarantor, and do not impose any financial covenant, financial ratio, or maintenance covenant on the Borrower or any Subsidiary of the Borrower;

(F) such preferred Equity Interests are not convertible into or exchangeable for any Equity Interests of the Borrower or any Guarantor, are not entitled to any voting rights other than customary protective voting rights, and do not confer upon the holder thereof the right to designate or elect any director of the issuer or to participate in the management of the issuer;

(G) such preferred Equity Interests are not issued to, and are not held by, any Affiliate of the Borrower other than the Borrower or a Wholly Owned Subsidiary of the Borrower that is a Guarantor; provided that, if any such preferred Equity Interests are issued to a Person that is not an Affiliate of the Borrower at the time of issuance and such Person later becomes an Affiliate of the Borrower, such issuance shall be deemed permitted under this paragraph (c) so long as the conditions set forth in this paragraph (c) were satisfied at the time of such issuance; and

(H) within thirty days after the issuance of such preferred Equity Interests, the issuer shall have delivered to the Administrative Agent a copy of the definitive documentation governing such preferred Equity Interests and a certificate of a Responsible Officer of the Borrower certifying, as of the date of such issuance, that such issuance complies with this Section.

Section 7.20 (Limitation on Prepayment of Junior Financing). No Loan Party will, nor will any Loan Party permit any of its Subsidiaries to, directly or indirectly, make or offer to make, or agree or commit to make, any prepayment, repurchase, redemption, defeasance, sinking fund or similar payment, or any other payment or distribution, of or in respect of any Junior Financing, in each case prior to the scheduled maturity of such Junior Financing, or set aside or reserve any amount for any such prepayment, repurchase, redemption, defeasance, sinking fund or similar payment, whether by way of payment to a sinking fund, deposit into a defeasance account, or otherwise (each, a "Junior

Financing Prepayment"), other than:

(a) any regularly scheduled payment or mandatory prepayment of interest, fees, expenses, principal, premium, and other amounts in respect of any Junior Financing, in each case to the extent required to be made by the terms of the applicable Junior Financing Documents and not constituting an optional prepayment, repurchase, redemption, or defeasance of such Junior Financing prior to its scheduled maturity, so long as, at the time of such payment and after giving effect thereto, no Default or Event of Default exists or would result;

(b) any Junior Financing Prepayment made with the proceeds of, or in connection with, any Permitted Refinancing of such Junior Financing, so long as such Junior Financing Prepayment and such Permitted Refinancing are otherwise permitted under the terms of this Agreement and, at the time of such Junior Financing Prepayment and after giving effect thereto, no Default or Event of Default exists or would result;

(c) any Junior Financing Prepayment made with the net cash proceeds of any issuance or sale of Equity Interests of the Borrower (other than Disqualified Stock) or with the net cash proceeds of any capital contribution to the Borrower; provided that the aggregate amount of Junior Financing Prepayments made in reliance on this paragraph (c) in any fiscal year does not exceed the aggregate amount of such net cash proceeds issued, sold or contributed in such fiscal year and actually received by the Borrower; provided further that, at the time of each such Junior Financing Prepayment and after giving effect thereto, no Default or Event of Default exists or would result;

(d) any conversion or exchange of Junior Financing into Equity Interests of the Borrower (other than Disqualified Stock) or into Junior Financing that constitutes a Permitted Refinancing, including any payment or delivery of cash, Cash Equivalents, or other property in lieu of fractional shares or as part of a cash settlement, net share settlement, or similar transaction entered into in connection with such conversion or exchange, so long as any such cash, Cash Equivalents, or other property is paid or delivered in accordance with the terms of the applicable Junior Financing Documents;

(e) any Junior Financing Prepayment made by the Borrower or any Subsidiary in respect of any Junior Financing owed to the Borrower or any Subsidiary, so long as no Default or Event of Default exists or would result and any Junior Financing so prepaid is permanently extinguished and cancelled;

(f) any Junior Financing Prepayment required to be made by the terms of the applicable Junior Financing Documents upon an event that constitutes an asset sale, casualty event, condemnation, change of control, debt issuance, equity issuance, or similar event; provided that such Junior Financing Prepayment is required to be made with the proceeds of such event in accordance with the terms of the applicable Junior Financing Documents and such proceeds are not otherwise required to be applied to prepay the Loans or to cash collateralize Letters of Credit under the Credit Agreement;

(g) any Junior Financing Prepayment in an aggregate amount not to exceed twenty-five million Dollars in any fiscal year, so long as no Default or Event of Default exists or would result and, after giving effect to such Junior Financing Prepayment, the Borrower would be in compliance with the financial covenants set forth in Article VI recomputed as of the most recent fiscal quarter end for which the financial statements required to be delivered by this Agreement have been delivered; and

(h) any Junior Financing Prepayment, so long as, immediately before and after giving effect to such Junior

Financing Prepayment, no Default or Event of Default exists or would result, the Borrower has delivered to the Administrative Agent at least five Business Days prior written notice of such Junior Financing Prepayment together with a certificate of a Responsible Officer certifying that, after giving effect to such Junior Financing Prepayment, the aggregate amount of unrestricted cash and Cash Equivalents of the Borrower and its Restricted Subsidiaries plus the unused amount of the Revolving Commitments would be not less than one hundred million Dollars and the Borrower would be in compliance with the financial covenants set forth in Article VI recomputed as of the most recent fiscal quarter end for which the financial statements required to be delivered by this Agreement have been delivered, and the aggregate amount of all Junior Financing Prepayments made in reliance on this paragraph (h) in any fiscal year does not exceed two hundred million Dollars.

For the avoidance of doubt, no Junior Financing Prepayment shall be made under this Section unless such Junior Financing Prepayment is permitted by the subordination provisions, if any, of the applicable Junior Financing Documents.

Section 7.21 (Limitation on Speculative Transactions). (a) Neither the Borrower nor any of its Restricted Subsidiaries will, directly or indirectly, enter into, or become obligated under, any Speculative Transaction. For purposes of this Section 7.21, a Speculative Transaction is any transaction involving one or more futures contracts, option contracts, forward contracts, swap agreements, caps, collars, floors, or other derivative instruments, or any combination of the foregoing, the material purpose of which is to profit from or speculate on changes in the price of any underlying asset, rate, index, or other reference item rather than to hedge or mitigate an actual or reasonably anticipated exposure of the Borrower or such Restricted Subsidiary arising in the ordinary course of its business.

(b) The prohibition in paragraph (a) above shall not apply to any transaction that is entered into by the Borrower or any Restricted Subsidiary in the ordinary course of its business and not for speculation, including any transaction entered into in accordance with the risk management policies of the Borrower and its Restricted Subsidiaries to hedge or mitigate interest rate risk, foreign currency exchange rate risk, commodity price risk, or equity price risk with respect to actual or reasonably anticipated assets, liabilities, revenues, or cash flows of the Borrower or such Restricted Subsidiary. Any transaction permitted under this paragraph (b) shall be entered into with a counterparty that is a financial institution or other entity customarily engaged in the business of providing the relevant transaction, shall be documented pursuant to an International Swaps and Derivatives Association master agreement or a master agreement in customary form for the relevant transaction, shall be supported by such credit support, margin, or collateral arrangements, if any, as are customary for the relevant transaction, and shall be reported to the Administrative Agent by the Borrower upon reasonable request, together with a description of the underlying exposure being hedged or mitigated.

(c) Nothing in this Section 7.21 shall be construed to permit any transaction that would cause the Borrower or any Restricted Subsidiary to fail to comply with any law, rule, regulation, or order applicable to it, including any rule, regulation, or order of the Commodity Futures Trading Commission, the Securities and Exchange Commission, or any exchange or clearing organization. The Borrower shall maintain, and shall cause each Restricted Subsidiary to maintain, appropriate records of each transaction entered into pursuant to paragraph (b) above, including any master agreement, confirmation, credit support document, and valuation statement, and shall make such records available to

the Administrative Agent upon reasonable request.

Section 7.22 (Limitation on Issuance of Capital Stock by Restricted Subsidiaries). The Borrower shall not, and shall not permit any Restricted Subsidiary to, issue, sell, assign, transfer or otherwise dispose of any Capital Stock of any Restricted Subsidiary, or any option, warrant, call or other right to acquire Capital Stock of any Restricted Subsidiary, and the Borrower shall not permit any Restricted Subsidiary to issue, sell, assign, transfer or otherwise dispose of any of its own Capital Stock, except:

(a) an issuance or disposition of Capital Stock of any Restricted Subsidiary, in one transaction or a series of related transactions, to the Borrower or to any Restricted Subsidiary that is directly or indirectly wholly owned by the Borrower, if, immediately after giving effect to such issuance or disposition, such Capital Stock is owned, directly or indirectly, by the Borrower or by a Restricted Subsidiary that is directly or indirectly wholly owned by the Borrower and no Default has occurred and is continuing or would result from such issuance or disposition;

(b) an issuance of Capital Stock of any Restricted Subsidiary to any director, officer, employee, consultant or other service provider of the Borrower or any of its Restricted Subsidiaries, or to any employee benefit plan, trust or other vehicle established for the benefit of any such person, pursuant to any equity incentive plan, employee stock purchase plan, stock option plan, restricted stock plan, stock appreciation rights plan, director stock purchase plan or other similar compensation or benefit plan, program or arrangement approved by the Board of Directors of the Borrower or, if applicable, the board of directors or comparable governing body of such Restricted Subsidiary, if, immediately after giving effect to such issuance, no Default has occurred and is continuing or would result from such issuance;

(c) an issuance of directors' qualifying shares or Capital Stock issued to a director of any Restricted Subsidiary solely to the extent required to qualify such director to hold office under applicable law, regulation or the organizational documents of such Restricted Subsidiary, if the aggregate economic and voting interest of such director in such Restricted Subsidiary is nominal and no Default has occurred and is continuing or would result from such issuance;

(d) an issuance of Capital Stock of any Restricted Subsidiary to any Person other than the Borrower or a Restricted Subsidiary, in a public offering, private placement or other transaction, if, immediately after giving effect to such issuance, the Borrower and its Restricted Subsidiaries own, directly or indirectly, not less than a majority of the total voting power of all classes of Capital Stock of such Restricted Subsidiary entitled to vote generally in the election of directors and not less than a majority of the total number of shares of each class of Capital Stock of such Restricted Subsidiary not entitled to vote generally in the election of directors, no Default has occurred and is continuing or would result from such issuance, the Capital Stock so issued does not have, as of the date of issuance, any preference as to dividends, distributions, redemption or liquidation over any Capital Stock of such Restricted Subsidiary held by the Borrower or any of its Restricted Subsidiaries, other than a preference that is customary for preferred stock issued to minority investors in joint ventures or similar arrangements, and such issuance is not otherwise prohibited by the terms of the Credit Agreement or any other Loan Document;

(e) an issuance of Capital Stock of any Restricted Subsidiary pursuant to a stock split, stock dividend, reclassification, subdivision, combination, exchange or conversion of outstanding Capital Stock of such Restricted

Subsidiary, in each case if no cash or other property is paid or distributed to the holders of such Capital Stock other than Capital Stock of such Restricted Subsidiary and the transaction is not effected to avoid the limitations set forth in this Section;

(f) an issuance of Capital Stock of any Restricted Subsidiary upon the exercise or settlement of any option, warrant, right or other similar instrument, or upon the conversion or exchange of any convertible or exchangeable security, in each case outstanding on the Closing Date or issued in accordance with this Section and the other provisions of the Credit Agreement, if, immediately after giving effect to such issuance, no Default has occurred and is continuing or would result from such issuance;

(g) an issuance of Capital Stock of any Restricted Subsidiary as consideration for the acquisition of assets or Capital Stock of any other Person, if such acquisition is permitted by the Credit Agreement, immediately after giving effect to such issuance the Borrower and its Restricted Subsidiaries own, directly or indirectly, not less than a majority of the total voting power of all classes of Capital Stock of such Restricted Subsidiary entitled to vote generally in the election of directors, and no Default has occurred and is continuing or would result from such issuance; and

(h) an issuance of Capital Stock of any Restricted Subsidiary if, immediately after giving effect to such issuance, such Restricted Subsidiary remains a wholly owned Restricted Subsidiary of the Borrower or of a Restricted Subsidiary that is directly or indirectly wholly owned by the Borrower.

Notwithstanding the foregoing, the Borrower shall not, and shall not permit any Restricted Subsidiary that is a Loan Party to, issue any Capital Stock of such Restricted Subsidiary to any Person other than the Borrower or another Loan Party, other than directors' qualifying shares or Capital Stock issued to a director solely to the extent required by applicable law, regulation or the organizational documents of such Restricted Subsidiary, and no Default has occurred and is continuing or would result from such issuance; and the Borrower shall not, and shall not permit any Restricted Subsidiary to, issue any Disqualified Capital Stock of any Restricted Subsidiary, other than Disqualified Capital Stock issued to the Borrower or to a Restricted Subsidiary that is directly or indirectly wholly owned by the Borrower.

Section 7.23 (Limitation on Passive Holding Company Status of the Borrower). (a) The Borrower shall not, and shall not permit any of its Subsidiaries to, directly or indirectly, take any action, enter into any agreement, or engage in any transaction as a result of which the Borrower would be or become a Passive Holding Company, except as provided in clause (c) of this Section.

(b) For purposes of this Section, "Active Business" means a business conducted by employees of the Borrower or any of its Subsidiaries that derives its revenues primarily from the sale, lease or provision of goods or services to Persons other than Affiliates and not primarily from dividends, interest, royalties, rents or other passive investment income. For purposes of this Section, "Passive Holding Company" means the Borrower, as of any date of determination, if (i) the Borrower does not conduct, directly or indirectly through one or more of its Subsidiaries that are engaged, directly or indirectly, in an Active Business, any material business operations other than the ownership of Equity Interests in, or the making of loans or advances to, such Subsidiaries, and (ii) either (A) the aggregate fair market value of all assets of the Borrower and its consolidated Subsidiaries that are not used or held for use in the Active Business exceeds fifty percent of the aggregate fair market value of all assets of the Borrower and its

consolidated Subsidiaries, determined on a consolidated basis, or (B) for the most recently ended period of four consecutive fiscal quarters for which the Borrower has delivered consolidated financial statements pursuant to this Agreement, the aggregate gross revenues of the Borrower and its consolidated Subsidiaries that are derived from dividends, interest, royalties, rents, gains from the sale or other disposition of assets, or other income of a similar nature (excluding any such revenues received from a Subsidiary engaged in an Active Business) exceed fifty percent of the aggregate gross revenues of the Borrower and its consolidated Subsidiaries for such period.

(c) Notwithstanding clause (a), the Borrower may be or become a Passive Holding Company if (i) such status arises solely as a result of a transaction or series of transactions that is expressly permitted by any other provision of this Agreement, (ii) immediately before and after giving effect to such transaction, no Default or Event of Default has occurred and is continuing or would result, (iii) after giving effect to such transaction, the Borrower and its Subsidiaries would be in compliance with the financial covenants set forth in this Agreement, on a pro forma basis, (iv) the Borrower has delivered to the Administrative Agent, at least fifteen days prior to the effective date of such transaction (or such shorter period as the Administrative Agent may agree in its reasonable discretion), a written notice setting forth in reasonable detail the nature and expected effective date of such transaction, and (v) the Borrower delivers to the Administrative Agent, at or prior to the effective date of such transaction, an officer's certificate certifying compliance with the conditions set forth in clauses (ii) and (iii) above and such other documents or written opinions of counsel as the Administrative Agent may reasonably request in connection with such transaction.

(d) If the Borrower determines that it has become a Passive Holding Company otherwise than in accordance with clause (c), the Borrower shall, within five Business Days after obtaining knowledge of such status, notify the Administrative Agent of such status and shall, within thirty days after the date of such notice (or such longer period as the Administrative Agent may agree in its reasonable discretion), use commercially reasonable efforts to take all actions necessary to cause the Borrower to cease to be a Passive Holding Company. So long as the Borrower is using commercially reasonable efforts to comply with this clause (d), no Event of Default shall be deemed to exist solely as a result of the Borrower's being a Passive Holding Company in violation of clause (a).

Section 7.24 (Limitation on Amendments to Organizational Documents). The Borrower shall not, and shall not permit any of its Restricted Subsidiaries to, directly or indirectly, amend, restate, supplement, replace, or otherwise modify, or consent to or approve any amendment, restatement, supplement, replacement, or other modification of, its certificate or articles of incorporation, bylaws, limited liability company agreement, limited partnership agreement, or other organizational or governing documents, in each case whether by merger, consolidation, conversion, change of form of legal entity, or otherwise, in any manner that could reasonably be expected to be adverse in any material respect to the interests of the Secured Parties, including by reason of any change to the voting rights, board representation, manager rights, general partner rights, or other governance rights of the Borrower or any Restricted Subsidiary, or any change to the rights, preferences, or privileges of any class of Equity Interests of the Borrower or any Restricted Subsidiary, or any change to the legal existence, limited liability, limited liability status, or legal structure of the Borrower or any Restricted Subsidiary, or any change to the jurisdiction of organization, formation, or domicile of the Borrower or any Restricted Subsidiary, or any change to the location of the registered office or

registered agent of the Borrower or any Restricted Subsidiary, or any change to the governing law, submission to jurisdiction, or waiver of immunity of the Borrower or any Restricted Subsidiary, or any change to the terms of any Equity Interests that are pledged, or expressed to be pledged, as collateral security for the Obligations. Notwithstanding the foregoing, the Borrower or any Restricted Subsidiary may make any such amendment, restatement, supplement, replacement, or other modification if the Required Lenders shall have given their prior written consent to such action, which consent may be given or withheld in the Required Lenders' sole discretion and may be conditioned upon the delivery to the Administrative Agent of such legal opinions, resolutions, officers' certificates, certificates of good standing, and other documents as the Administrative Agent may reasonably request. The Borrower shall deliver to the Administrative Agent, promptly upon becoming available, and in any event within ten Business Days after the effectiveness of any amendment, restatement, supplement, replacement, or other modification of any organizational or governing document of the Borrower or any Restricted Subsidiary permitted by this Section, a copy of such amendment, restatement, supplement, replacement, or other modification, certified as true, correct, and complete by a Responsible Officer of the Borrower or such Restricted Subsidiary, together with a certificate of a Responsible Officer of the Borrower certifying that such amendment, restatement, supplement, replacement, or other modification does not conflict with, or constitute a default under, the Credit Agreement or any other Loan Document and does not violate the terms of this Section.

The Borrower shall not, and shall not permit any of its Restricted Subsidiaries to, take any action, or fail to take any action, the effect of which is to cause any representation or warranty made in the Loan Documents relating to the organizational existence, power, authority, or qualification of the Borrower or any Restricted Subsidiary to be inaccurate in any material respect at any time while any Loan Document is in effect, and the Borrower shall promptly notify the Administrative Agent of any proposed amendment, restatement, supplement, replacement, or other modification of any organizational or governing document of the Borrower or any Restricted Subsidiary that could reasonably be expected to have a material adverse effect on the rights or remedies of the Secured Parties or on the ability of the Borrower or any Restricted Subsidiary to perform its obligations under the Loan Documents.

The Borrower will ensure that each of its and its Restricted Subsidiaries' organizational or governing documents continues to contain provisions relating to the indemnification, exculpation, or reimbursement of directors, managers, general partners, officers, employees, and agents that are no more extensive, and do not provide any greater protections to such persons, than the provisions contained in the organizational or governing documents of the Borrower or such Restricted Subsidiary in effect on the Closing Date, other than amendments, restatements, supplements, replacements, or other modifications that are required by applicable law or that are made with the prior written consent of the Required Lenders.

Section 7.25 (Limitation on Sale of Receivables). The Borrower will not, and will not permit any of its Restricted Subsidiaries to, directly or indirectly, sell, assign, transfer, convey or otherwise dispose of any Receivables, or any interest therein or any Lien thereon, in each case by way of sale, assignment, transfer, conveyance, participation, discount, factoring or otherwise, other than (a) sales and transfers of Receivables to a Receivables Subsidiary, and sales and transfers of Receivables by such Receivables Subsidiary to any Person that is not the Borrower or a Restricted Subsidiary, in each case in connection with a Permitted Receivables Financing and subject to the

conditions set forth in the immediately following paragraph, and (b) sales and transfers of Receivables that are past due or defaulted at the time of sale, or that the Borrower reasonably expects to become past due or defaulted within sixty days after the date of sale, to any Person that is not the Borrower or a Restricted Subsidiary, in each case without recourse and without any representation or warranty, other than customary representations and warranties as to the absence of Liens and the validity and enforceability of such Receivables, for the purpose of collection, compromise or liquidation.

For purposes of the exception described in clause (a) of the immediately preceding paragraph, the following conditions must be satisfied in the case of each sale, assignment, transfer or other disposition of Receivables: (a) the sale, assignment, transfer or other disposition shall be made pursuant to a written receivables purchase agreement or other written agreement and shall be treated as a true sale and not as a secured borrowing for accounting and financial reporting purposes; (b) the purchase price paid for such Receivables shall be no less than the fair market value of such Receivables at the time of sale, assignment, transfer or other disposition, as determined in good faith by the Borrower, and shall be paid in cash at the time of such sale, assignment, transfer or other disposition, other than any deferred purchase price arrangement that is customary in receivables financing transactions and that is subject to all of the requirements of this Section 7.25; (c) no recourse shall exist against the Borrower or any Restricted Subsidiary, other than the applicable Receivables Subsidiary, for any such Receivable that is not paid when due or otherwise becomes uncollectible, except for customary representations and warranties, customary covenants, customary servicing obligations, customary repurchase obligations and customary indemnities for breaches of representations and warranties, failures to satisfy servicing obligations and other customary matters; (d) the aggregate unpaid balance of Receivables sold, assigned, transferred or otherwise disposed of pursuant to the exception described in clause (a) of the immediately preceding paragraph and remaining uncollected shall not exceed one hundred fifty million Dollars at any time; (e) no sale, assignment, transfer or other disposition may be made to any Affiliate of the Borrower or any Restricted Subsidiary other than a Receivables Subsidiary, and no sale, assignment, transfer or other disposition may be made with recourse to any assets of the Borrower or any Restricted Subsidiary other than the Receivables sold or transferred, the related assets of the applicable Receivables Subsidiary and the proceeds of the foregoing; (f) the applicable Receivables Subsidiary shall be a bankruptcy-remote entity and each sale, assignment, transfer or other disposition of Receivables shall be supported by customary opinions of counsel, including opinions regarding the true sale treatment of such sale, assignment, transfer or other disposition and the non-consolidation of such Receivables Subsidiary with the Borrower and its Restricted Subsidiaries, in each case in form and substance reasonably satisfactory to the Administrative Agent; and (g) the proceeds of any sale, assignment, transfer or other disposition of Receivables shall be applied by the Borrower and its Restricted Subsidiaries to repay or reduce revolving loans or other indebtedness of the Borrower and its Restricted Subsidiaries, to fund receivables purchases, or to the extent not so applied, to hold as cash collateral or for other general corporate purposes in the ordinary course of business.

For purposes of this Section 7.25, "Receivables" means all accounts receivable, notes receivable and other rights to payment for goods sold or leased or services rendered by the Borrower or any Restricted Subsidiary, whether existing on the date of this Agreement or arising after such date, together with all related security, collateral,

guarantees, supporting obligations, books and records and any and all proceeds of any of the foregoing. Notwithstanding the foregoing, (x) no sale, assignment, transfer or other disposition of Receivables may be made under this Section 7.25 if such sale, assignment, transfer or other disposition would cause a breach of any of the financial covenants set forth in Article VI, and (y) no sale, assignment, transfer or other disposition of Receivables may be made under this Section 7.25 if the primary purpose of such sale, assignment, transfer or other disposition is to reduce the amount of Receivables reflected on the consolidated balance sheet of the Borrower in order to avoid or mitigate the application of the financial covenants set forth in Article VI.

Section 7.26 (Limitation on Amendments to the Management Agreement). The Borrower shall not, and shall not permit any of its Restricted Subsidiaries to, directly or indirectly, amend, modify, supplement, restate, replace, terminate or waive, or consent to any amendment, modification, supplement, restatement, replacement, termination or waiver of, any provision of the Management Agreement, or agree to any such action, including any such action effected by merger, consolidation, conversion or otherwise, if such action would, individually or in the aggregate, (a) increase the aggregate amount of any management fees, monitoring fees, advisory fees, expense reimbursements or other compensation or amounts payable by the Borrower or any of its Restricted Subsidiaries to the manager or any of its Affiliates under the Management Agreement, or otherwise increase the costs or obligations of the Borrower or any of its Restricted Subsidiaries thereunder, in each case by more than five percent of the aggregate amount of such fees, expenses and other amounts paid under the Management Agreement during the four consecutive fiscal quarters most recently ended for which financial statements have been delivered pursuant to this Agreement, (b) shorten the stated term, or make more easy the termination, of the Management Agreement or any rights of the manager thereunder, or increase any termination fee, penalty or other payment payable in connection therewith, (c) release or waive any material right of the Borrower or any of its Restricted Subsidiaries under the Management Agreement, (d) change the governing law, jurisdiction, venue, arbitration or other dispute resolution provisions, or any waiver of jury trial provision, of the Management Agreement in any manner that is adverse to the interests of the Lenders, (e) reduce the duties, standard of care, exculpation or indemnification obligations of the manager, or expand the indemnification obligations of the Borrower or any of its Restricted Subsidiaries, under the Management Agreement, in each case in any material respect, or (f) otherwise reduce the amount or quality of services to be provided to the Borrower or any of its Restricted Subsidiaries thereunder in any material respect.

Notwithstanding the foregoing, the Borrower and its Restricted Subsidiaries may take any action described in the immediately preceding sentence if: (i) no Default or Event of Default has occurred and is continuing or would result from such action; (ii) after giving effect to such action, the Borrower and its Restricted Subsidiaries would be in compliance with the financial covenants set forth in Article VI, calculated on a pro forma basis as of the most recent fiscal quarter end for which financial statements have been delivered pursuant to this Agreement as if such action had occurred on the first day of such fiscal quarter; and (iii) either (A) the Required Lenders shall have given their prior written consent to such action, or (B) the Borrower shall have delivered to the Agent, not less than ten Business Days prior to the effective date of such action, a certificate of a Responsible Officer of the Borrower (1) describing in reasonable detail the proposed action and the provisions of the Management Agreement affected thereby, (2) certifying that the conditions set forth in the immediately preceding subparagraphs (i) and (ii) have been satisfied,

and (3) certifying that, on the basis of the facts known to such Responsible Officer, such action is not adverse in any material respect to the interests of the Lenders.

No amendment, modification, supplement, restatement, replacement, termination or waiver of the Management Agreement shall be effective or binding on the Borrower or any of its Restricted Subsidiaries unless the same shall be in writing and signed by the parties thereto. The Borrower shall deliver to the Agent a copy of each such amendment, modification, supplement, restatement, replacement, termination or waiver promptly upon the execution and delivery thereof.

Section 7.27 (Limitation on Additional Negative Covenants in Junior Financing Documents). No Borrower or any Subsidiary shall, directly or indirectly, enter into, assume, guarantee, or otherwise become liable for, or amend, modify, supplement, restate, replace, repay, renew, extend, or otherwise change, any Junior Financing Document if such Junior Financing Document contains any covenant, undertaking, restriction, or prohibition that is in addition to, or more restrictive than, the covenants, undertakings, restrictions, and prohibitions applicable to the Borrower and its Subsidiaries under this Credit Agreement and the other Credit Documents, taken as a whole, except to the extent that any such additional or more restrictive covenant, undertaking, restriction, or prohibition would not reasonably be expected to impair the ability of the Borrower and its Subsidiaries to perform their payment and other obligations under this Credit Agreement and the other Credit Documents as and when due. Without limiting the generality of the foregoing, no Junior Financing Document shall contain any covenant, undertaking, restriction, or prohibition that:

(a) restricts the ability of any Borrower or any Subsidiary to (i) incur, issue, assume, guarantee, or suffer to exist any Indebtedness, (ii) create, incur, assume, or suffer to exist any Lien on any of its assets or property, (iii) declare or make any Restricted Payment, (iv) make any Investment, (v) sell, transfer, lease, assign, or otherwise dispose of any assets or property, (vi) prepay, redeem, purchase, defease, or otherwise satisfy any Indebtedness, or (vii) amend, supplement, or otherwise modify this Credit Agreement or any other Credit Document, in each case if the Borrower or such Subsidiary would be permitted to take such action under this Credit Agreement and the other Credit Documents after giving effect to all applicable notices, waiting periods, conditions, and thresholds set forth therein;

(b) requires the maintenance or satisfaction of any financial covenant, financial ratio, financial test, or similar condition, whether as an affirmative covenant, negative covenant, or condition precedent to any action, other than a covenant or condition that becomes operative only upon the occurrence and during the continuance of a default under such Junior Financing Document or the acceleration of the indebtedness thereunder;

(c) requires any Borrower or any Subsidiary to offer to repurchase, redeem, or prepay, or otherwise provides the holders of any Junior Indebtedness with any right to require the repurchase, redemption, or prepayment of, all or any portion of such Junior Indebtedness as a result of any event or circumstance, other than an event or circumstance that, with the giving of notice or lapse of time, or both, would constitute an Event of Default under this Credit Agreement;

(d) contains any representation, warranty, covenant, or event of default that is not market or customary for financings of a type similar to such Junior Financing Document and that would reasonably be expected to have a material adverse effect on the rights or remedies of the Administrative Agent or any Lender under this Credit Agreement or any other Credit Document; or

(e) restricts the ability of the Borrower or any Subsidiary to grant, create, or suffer to exist any Lien on any asset or property to secure the Obligations, any Hedging Agreement, or any other Indebtedness that is permitted to be incurred under this Credit Agreement.

Notwithstanding the foregoing, this Section 7.27 shall not restrict the ability of the Borrower or any Subsidiary to enter into any Junior Financing Document containing any covenant, undertaking, restriction, or prohibition that is applicable solely (i) to the assets financed or refinanced with the proceeds of, or constituting collateral for, any nonrecourse Indebtedness or asset-backed financing permitted under this Credit Agreement, (ii) after the discharge of the Obligations and the termination or expiration of the Commitments in accordance with the terms of this Credit Agreement, (iii) to any period after the date on which all Obligations were required to have been discharged under the terms of this Credit Agreement, or (iv) to the extent required by any customary intercreditor agreement or subordination agreement entered into in connection with any Junior Indebtedness permitted under this Credit Agreement.

Section 7.28 (Limitation on Formation of Subsidiaries). The Borrower will not, and will not permit any of its Subsidiaries to, form, create, acquire, or otherwise cause or suffer to exist any Subsidiary after the Closing Date, whether by merger, consolidation, amalgamation, division, or otherwise, unless:

(a) such new Subsidiary is a wholly owned Subsidiary of the Borrower or of another Loan Party (or, if such new Subsidiary is formed, created, or acquired by a Foreign Subsidiary, a wholly owned Subsidiary of such Foreign Subsidiary), it being understood that qualifying directors' shares and other de minimis shareholdings required by applicable law shall not be treated as violating the requirement of this paragraph (a);

(b) not fewer than ten Business Days prior to such formation, creation, acquisition, or existence, the Borrower shall have delivered to the Administrative Agent a written notice describing such new Subsidiary, including its name, jurisdiction of organization, ownership structure, and proposed business activities, together with a certification by a Responsible Officer that, after giving effect to such formation, creation, acquisition, or existence, no Default or Event of Default exists or would result and that the requirements of this Section will be satisfied in respect of such new Subsidiary within the time periods contemplated by this Section;

(c) such new Subsidiary is organized and existing under the laws of the United States of America, any state thereof, or the District of Columbia or, if a Foreign Subsidiary, under the laws of a jurisdiction that is reasonably acceptable to the Administrative Agent and in which the Administrative Agent is able, without any action not contemplated by the Security Documents, to perfect a security interest in the equity interests of such new Subsidiary held by any Loan Party; provided, that if such new Subsidiary is a Foreign Subsidiary organized in a jurisdiction in which no Loan Party has a Subsidiary as of the Closing Date, the Borrower shall have consulted with the Administrative Agent concerning such jurisdiction before forming, creating, acquiring, or otherwise causing or suffering to exist such new Subsidiary and shall have delivered, or caused to be delivered, to the Administrative Agent such local counsel opinions and other documents as the Administrative Agent may reasonably request with respect to such jurisdiction;

(d) if such new Subsidiary is a Domestic Subsidiary, other than a CFC Holding Company with respect to which the Borrower elects the treatment described in paragraph (e) below, the Borrower shall have taken, or caused to be

taken, at or prior to the time of such formation, creation, acquisition, or existence, all action necessary to cause such new Subsidiary to become a Loan Party in accordance with the Guarantee and Collateral Agreement and the other Security Documents, including the execution and delivery of joinder agreements, supplements to the Security Documents, resolutions, organizational documents, certificates of a Responsible Officer, opinions of counsel, and lien searches, and all other action necessary to grant and perfect in favor of the Administrative Agent for the benefit of the Secured Parties a first-priority Lien on all assets and equity interests of such new Subsidiary, in each case to the extent and in the manner required by the Security Documents and consistent with the requirements in effect on the Closing Date;

(e) if such new Subsidiary is a Foreign Subsidiary or a CFC Holding Company, the Borrower shall have taken, or caused to be taken, all action required by the Security Documents to perfect, in favor of the Administrative Agent for the benefit of the Secured Parties, a Lien on the equity interests of such new Subsidiary owned by any Loan Party, subject to the limitation set forth in paragraph (f) below and subject to any limitation on guarantees by Foreign Subsidiaries set forth in the Security Documents; provided, that no such new Subsidiary shall be required to become a Loan Party or to grant a Lien or provide a guarantee if doing so would result in material adverse tax consequences or would be prohibited by applicable law or by binding obligations of such new Subsidiary in effect at the time of its formation, creation, acquisition, or existence; provided, further, that, in the case of a CFC Holding Company, if making such CFC Holding Company a Loan Party would result in material adverse tax consequences, the Borrower may elect to cause such CFC Holding Company to become a Loan Party with a limited guarantee and a pledge limited to the equity interests of its Foreign Subsidiaries that are CFCs, to the extent permitted by applicable law and the Security Documents;

(f) the Borrower will not, and will not permit any Loan Party to, pledge, or permit to exist any Lien on, more than sixty-five percent of the issued and outstanding voting equity interests of any CFC or any Foreign Subsidiary that is a CFC, and the Borrower will not, and will not permit any Loan Party to, take any action that would cause the undistributed earnings of any CFC to be currently includible in the gross income of any Loan Party under the applicable provisions of the Internal Revenue Code of 1986, as amended;

(g) the Borrower shall not be required to cause any such new Subsidiary that is not a Material Subsidiary to become a Loan Party; provided, that the Borrower shall cause the equity interests of any such new Subsidiary that is not a Material Subsidiary to be pledged to the extent required by the Security Documents, and if any such new Subsidiary subsequently becomes a Material Subsidiary, the Borrower shall cause such new Subsidiary to become a Loan Party and shall take all of the actions described in paragraph (d) or paragraph (e) above, as applicable, within thirty Business Days after the date on which such new Subsidiary becomes a Material Subsidiary;

(h) such new Subsidiary will not have any organizational document, shareholder, partner, member, or other equity holder agreement, indenture, or other contractual obligation in effect that would reasonably be expected to prevent or materially impair such new Subsidiary from complying with the requirements of this Section or, to the extent required by this Section, from becoming a Loan Party, granting Liens, or providing guarantees;

(i) such new Subsidiary will not issue any equity interests other than to the Borrower, a Loan Party, or, if such new Subsidiary is formed, created, or acquired by a Foreign Subsidiary, to such Foreign Subsidiary, or qualifying

directors' shares or other de minimis shareholdings required by applicable law;

(j) not later than thirty Business Days after such formation, creation, acquisition, or existence, the Borrower shall have delivered to the Administrative Agent, to the extent requested by the Administrative Agent, updated Perfection Certificate schedules and such other certificates, documents, and information as the Administrative Agent may reasonably request to confirm compliance with this Section; and

(k) the formation, creation, acquisition, or existence of such new Subsidiary, and the ownership, business, and operations of such new Subsidiary, will not contravene, and will not cause any Loan Party or the Administrative Agent to contravene, any applicable law, rule, or regulation, and will not result in any Loan Document failing to create or perfect the security interests intended to be created and perfected thereunder.

Notwithstanding the foregoing, the Borrower will not, and will not permit any of its Subsidiaries to, form, create, acquire, or otherwise cause or suffer to exist any Subsidiary after the Closing Date if, after giving effect to such formation, creation, acquisition, or existence, the Borrower and its Subsidiaries would not be in compliance with the financial covenants set forth in Article VI or if any Default or Event of Default would exist. This Section 7.28 shall not be construed as permitting any investment, acquisition, merger, consolidation, or other transaction that is not otherwise permitted by the Credit Agreement. Any action required to be taken under this Section with respect to any new Subsidiary shall be taken by the applicable Loan Party or Subsidiary, as the case may be, and no provision of this Section shall be construed to require any Person that is not a party to the Credit Agreement to take any action.

Section 7.29 (Limitation on Lines of Business). The Borrower will not, and will not permit any Restricted Subsidiary to, engage in any material line of business other than (a) the lines of business conducted by the Borrower and its Restricted Subsidiaries on the Closing Date, (b) any line of business reasonably related, ancillary, complementary, or incidental to the lines of business described in clause (a), (c) any natural extension, development, expansion, or evolution of the lines of business described in clauses (a) and (b), including the development, marketing, and sale of new or improved products and services and the entry into new geographic markets that are reasonably related to such lines of business, and (d) any line of business conducted by a Person acquired, merged into, or consolidated with the Borrower or any Restricted Subsidiary in a transaction permitted by this Agreement, together with any line of business reasonably related, ancillary, complementary, or incidental to such line of business; provided, however, that, in any case, any new line of business described in clause (b), clause (c), or clause (d) shall be of a type that, taken together with all other lines of business of the Borrower and its Restricted Subsidiaries, is not materially more adverse to the interests of the Lenders than the lines of business conducted by the Borrower and its Restricted Subsidiaries on the Closing Date, and so long as no Default or Event of Default exists or would result therefrom; provided, further, that the Borrower and its Restricted Subsidiaries may take such actions and engage in such activities as are reasonably necessary, useful, or advisable to support, maintain, protect, or enhance the business of the Borrower and its Restricted Subsidiaries, including the ownership, licensing, protection, or enforcement of intellectual property or other assets, the provision of treasury, cash management, administrative, tax, accounting, legal, human resource, information technology, or other shared services to any entity in which the Borrower or any Restricted Subsidiary has an investment, the incurrence of intercompany liabilities, and the entering into of intercompany transactions in the ordinary course of business, in each case to the extent not

otherwise prohibited by this Agreement; provided, further, that the Borrower and its Restricted Subsidiaries may engage in any line of business approved in writing by the Required Lenders. The Borrower will not, and will not permit any Restricted Subsidiary to, make any material change in the nature or scope of the business of the Borrower and its Restricted Subsidiaries, taken as a whole, as conducted on the Closing Date, except as permitted by the immediately preceding sentence. The Borrower will not, and will not permit any Restricted Subsidiary to, enter into any transaction or series of related transactions the principal purpose of which is to circumvent the restrictions of this Section 7.29.

Section 7.30 (Limitation on Prepayment of the Notes). The Borrower will not, and will not permit any Restricted Subsidiary to, prepay, redeem, purchase, defease or otherwise satisfy prior to its scheduled maturity any Notes (as defined in the Credit Agreement), except:

(a) the payment of regularly scheduled interest and principal installments on the Notes when due, and the payment of fees, expenses and indemnities in accordance with the terms of the Notes;

(b) the prepayment, redemption, purchase, defeasance or other satisfaction of the Notes with the proceeds of any revolving loans, term loans, or other extensions of credit under the Credit Agreement, including any refinancing thereof;

(c) the prepayment, redemption, purchase, defeasance or other satisfaction of the Notes in connection with a Change of Control, an Asset Sale, or a Casualty Event, so long as (i) such prepayment, redemption, purchase, defeasance or other satisfaction is made solely with the proceeds required to be applied to prepay Indebtedness in accordance with the terms of the Credit Agreement, and (ii) at the time of such prepayment, redemption, purchase, defeasance or other satisfaction, no Default or Event of Default has occurred and is continuing or would result therefrom;

(d) the prepayment, redemption, purchase, defeasance or other satisfaction of the Notes in exchange for, or out of the proceeds of, any Indebtedness that is permitted by the Credit Agreement to be incurred and the proceeds of which are used to refinance such Notes, whether in whole or in part;

(e) the conversion of the Notes into equity interests of the Borrower or any Restricted Subsidiary, or into securities convertible into or exchangeable for such equity interests, to the extent such conversion is in accordance with the original terms of the Notes;

(f) the prepayment, redemption, purchase, defeasance or other satisfaction of the Notes (i) from the proceeds of a substantially concurrent issuance of equity interests of the Borrower or any Restricted Subsidiary, or (ii) from the net cash proceeds of any casualty insurance, condemnation or other similar event, in each case to the extent such proceeds are permitted to be used for such purpose under the Credit Agreement;

(g) the prepayment, redemption, purchase, defeasance or other satisfaction of the Notes in an aggregate principal amount not to exceed the sum of (i) one hundred million dollars during any fiscal year of the Borrower, plus (ii) the amount of any net cash proceeds from the sale or issuance of equity interests of the Borrower or any Restricted Subsidiary received after the Closing Date, other than proceeds referred to in clause (f) above, that are not required to be applied to prepay Indebtedness under the Credit Agreement, so long as, in each case, immediately before and after giving effect to such prepayment, redemption, purchase, defeasance or other satisfaction, no Default or Event of Default has occurred and is continuing, and the Borrower has delivered to the Administrative Agent a certificate

of a Responsible Officer certifying that, after giving pro forma effect to such prepayment, redemption, purchase, defeasance or other satisfaction and any incurrence of Indebtedness in connection therewith, the Borrower and its Restricted Subsidiaries would be in compliance with the financial covenants set forth in Article VI on a pro forma basis;

(h) the prepayment, redemption, purchase, defeasance or other satisfaction of the Notes to the extent required by the terms of the Notes, if such Notes were issued after the Closing Date and such prepayment, redemption, purchase, defeasance or other satisfaction was not within the control of the Borrower or any Restricted Subsidiary;

(i) the prepayment, redemption, purchase, defeasance or other satisfaction of the Notes that are subordinated to the obligations under the Credit Agreement, to the extent such prepayment, redemption, purchase, defeasance or other satisfaction is made with the proceeds of any Indebtedness permitted to be incurred under the Credit Agreement and the terms of such subordination provisions expressly permit such prepayment, redemption, purchase, defeasance or other satisfaction after giving effect to the requirements of such subordination provisions;

(j) the prepayment, redemption, purchase, defeasance or other satisfaction of the Notes in connection with the simultaneous incurrence of replacement Notes that are permitted by the Credit Agreement, so long as the terms of such replacement Notes are not materially less favorable to the lenders under the Credit Agreement than the terms of the Notes being replaced, as determined by the Borrower in good faith;

(k) the prepayment, redemption, purchase, defeasance or other satisfaction of the Notes pursuant to mandatory or optional redemption provisions contained in the terms of the Notes, so long as such prepayment, redemption, purchase, defeasance or other satisfaction is made in compliance with the applicable provisions of the Credit Agreement;

(l) the prepayment, redemption, purchase, defeasance or other satisfaction of the Notes held by any Affiliate of the Borrower or any Restricted Subsidiary, so long as such prepayment, redemption, purchase, defeasance or other satisfaction is made on terms no less favorable to the Borrower or such Restricted Subsidiary than would be obtained in an arm's-length transaction, as determined by the Borrower in good faith;

(m) the prepayment, redemption, purchase, defeasance or other satisfaction of the Notes to the extent the Notes are not Indebtedness for borrowed money, including, for the avoidance of doubt, any purchase price adjustments, earnouts, or other similar obligations;

(n) the prepayment, redemption, purchase, defeasance or other satisfaction of the Notes with the proceeds of any termination or unwind of any Secured Cash Management Agreement, Secured Hedging Agreement, or other similar agreement, to the extent such proceeds are permitted to be used for such purpose under the Credit Agreement; and

(o) the prepayment, redemption, purchase, defeasance or other satisfaction of the Notes as a result of a mandatory prepayment of Indebtedness under the terms of the Notes, if such prepayment, redemption, purchase, defeasance or other satisfaction is caused by an event that also gives rise to a mandatory prepayment under the Credit Agreement, and the Borrower applies proceeds to the prepayment of the obligations under the Credit Agreement on a pro rata basis with the prepayment of such Notes.

Section 7.31 (Limitation on Sanctioned Person Dealings). (a) No Credit Party shall, directly or indirectly, use the proceeds of any Advance, any Letter of Credit, or any other extension of credit made under this Credit Agreement,

or knowingly make available any such proceeds to any Person, for the purpose of funding, financing, or facilitating any activities, business, or transaction with or involving any Person that is, or is owned or controlled by, a Sanctioned Person, or in any country or territory that is the subject of comprehensive sanctions, if such activities, business, or transaction would be prohibited by, or would result in a violation of, Sanctions, and no Credit Party shall knowingly permit any of its Subsidiaries to do any of the foregoing.

(b) No Credit Party shall knowingly deal in, invest in, contribute to, or otherwise engage in any transaction or dealing with or for the benefit of any Person that is, or is owned or controlled by, a Sanctioned Person, or in any country or territory that is the subject of comprehensive sanctions, including any transaction or dealing involving any property or interest in property owned, controlled, or held by or for the benefit of any such Person or country or territory, if such transaction or dealing would be prohibited by, or would result in a violation of, Sanctions, and no Credit Party shall knowingly permit any of its Subsidiaries to do any of the foregoing.

(c) No Credit Party shall request any Advance or any Letter of Credit if the proceeds of such Advance or such Letter of Credit would be used, or could reasonably be expected to be used, by any Credit Party or any Subsidiary of any Credit Party, or would be made available, or could reasonably be expected to be made available, to any Person, in a manner that would violate this Section 7.31.

(d) Nothing in this Section 7.31 shall be construed to prohibit any Credit Party or any Subsidiary of any Credit Party from conducting any transaction or dealing that is authorized, exempted, or otherwise permitted under applicable Sanctions, including any transaction or dealing conducted pursuant to a general or specific license or regulatory exception issued by, or otherwise obtained from, the Office of Foreign Assets Control of the United States Department of the Treasury, the United Nations Security Council, the European Union, or His Majesty's Treasury, or any other sanctions authority with jurisdiction over such transaction or dealing.

(e) Each Credit Party shall maintain, and shall cause each of its Subsidiaries to maintain, policies and procedures reasonably designed to promote and achieve compliance with Sanctions applicable to such Credit Party and its Subsidiaries.

Section 7.32 (Limitation on Anti-Corruption Law Violations). (a) No Loan Party shall, nor shall any Loan Party permit any of its Subsidiaries to, directly or indirectly, use or permit the use of the proceeds of any Credit Extension, in whole or in part, to make any contribution, gift, payment, promise to pay, or transfer of anything of value to any Person, including any Government Official, if such contribution, gift, payment, promise or transfer would constitute a violation of any applicable Anti-Corruption Law. No Loan Party shall request any Credit Extension if, at the time of such request, the proceeds of such Credit Extension would be used by any Loan Party or any of its Subsidiaries in a manner that would be prohibited by this Section 7.32.

(b) Each Loan Party shall, and shall cause each of its Subsidiaries to, conduct its business in compliance in all material respects with all applicable Anti-Corruption Laws, including, without limitation, the United States Foreign Corrupt Practices Act of 1977, as amended, the United Kingdom Bribery Act 2010, and any other applicable anti-corruption or anti-bribery law, rule or regulation of any jurisdiction in which such Loan Party or such Subsidiary is organized, operates or transacts business. No Loan Party shall take any action, or permit any of its Subsidiaries to take any action, that would cause the Administrative Agent, any Lender or any other party to this Credit Agreement

to be in violation of any applicable Anti-Corruption Law.

(c) No Loan Party shall, nor shall any Loan Party permit any of its Subsidiaries to, directly or indirectly, use or permit the use of the proceeds of any Credit Extension for the purpose of influencing any official action of any Governmental Authority or any official thereof, or for the purpose of securing any improper advantage for any Person, in each case in violation of any applicable Anti-Corruption Law.

(d) Each Loan Party shall maintain, and shall cause each of its Subsidiaries to maintain, policies and procedures reasonably designed to ensure compliance in all material respects by such Loan Party and its Subsidiaries and their respective directors, officers, employees and agents with all applicable Anti-Corruption Laws. Such policies and procedures shall include, without limitation, appropriate training for the directors, officers, employees and agents of such Loan Party and its Subsidiaries whose duties may involve the use of the proceeds of Credit Extensions or other dealings with any Governmental Authority or any official thereof.

(e) Promptly upon obtaining actual knowledge of any material violation of any applicable Anti-Corruption Law by any Loan Party or any of its Subsidiaries or any of their respective directors, officers, employees or agents, in each case in connection with the use of the proceeds of any Credit Extension, any such Loan Party shall notify the Administrative Agent of such violation. Any notice delivered pursuant to this subsection shall not be deemed to be a waiver of any right of the Administrative Agent or any Lender under this Credit Agreement or any other Loan Document.

(f) For purposes of this Section 7.32, "Anti-Corruption Law" means any law, rule or regulation of any jurisdiction applicable to any Loan Party or any of its Subsidiaries concerning or relating to bribery, corruption, money laundering, or the making of gifts, payments or other transfers of value to any Government Official, any Governmental Authority, or any other Person, including the United States Foreign Corrupt Practices Act of 1977, as amended, and the United Kingdom Bribery Act 2010. "Government Official" means any officer or employee of any Governmental Authority or any department, agency or instrumentality thereof, or of any public international organization, and any person acting in an official capacity for or on behalf of any such Governmental Authority, department, agency, instrumentality or public international organization.

(g) The covenants set forth in this Section 7.32 shall be given independent effect and shall not be limited or otherwise affected by any other provision of this Credit Agreement, including the financial covenants set forth in Article VI, and no reference to "Anti-Corruption Law" in this Credit Agreement shall be construed as limiting the scope of the term "Law" or any other defined term used in this Credit Agreement.

Section 7.33 (Limitation on Impairment of Security Interests). (a) The Borrower will not, and will not permit any other Credit Party to, take or omit to take any action that would, or could reasonably be expected to, result in the material impairment, invalidation, or loss of perfection or priority of any Lien or security interest granted by any Credit Party to the Collateral Agent for the benefit of the Secured Parties under any Security Document with respect to any Collateral, other than any such impairment, invalidation, or loss of perfection or priority that is expressly permitted by the Credit Agreement, including as a result of any Disposition of Collateral permitted thereunder, the release of any Lien in connection with any such Disposition, or the failure to maintain any such Lien or security interest with respect to any asset that ceases to constitute Collateral in accordance with the terms of the Security

Documents.

(b) Without limiting the generality of the foregoing, the Borrower will not, and will not permit any other Credit Party to, without at least thirty days prior written notice to the Administrative Agent, change its legal name, jurisdiction of organization, organizational identification number, or form of organization, or take any other action or fail to take any action that could reasonably be expected to require the filing, recording, or registration of any new or supplemental financing statement, mortgage, assignment, or other instrument in order to continue the perfection of the Liens and security interests granted to the Collateral Agent for the benefit of the Secured Parties under the Security Documents, to the extent such Liens and security interests are required to be perfected under the terms of the Security Documents.

(c) The Borrower will cause each Credit Party to take all action that the Administrative Agent reasonably requests in order to maintain, preserve, and protect the Collateral and the Liens and security interests granted by the Credit Parties under the Security Documents, including the prompt payment of all taxes, assessments, and other charges that, if unpaid, could reasonably be expected to result in any Lien upon any Collateral other than Permitted Liens, the prompt filing and prosecution of such continuation statements, termination statements, amendments, assignments, certificates, and other documents as may be necessary to maintain the perfection and priority of such Liens and security interests, and the delivery to the Administrative Agent, upon reasonable request, of such legal opinions, certificates, and other documents as the Administrative Agent may reasonably request in connection with such perfection and priority.

(d) The Borrower will not, and will not permit any other Credit Party to, directly or indirectly, create, incur, assume, or suffer to exist any Lien on or with respect to any Collateral other than Permitted Liens, and will not enter into any agreement, instrument, or other arrangement that would prohibit or restrict the Collateral Agent from enforcing the Liens and security interests granted under the Security Documents for the benefit of the Secured Parties, other than as expressly permitted under the Credit Agreement.

(e) The Borrower will not, and will not permit any other Credit Party to, enter into any agreement or take any action that would materially interfere with the ability of the Collateral Agent or the Secured Parties to exercise any right, power, or remedy under the Security Documents in respect of any Collateral, including any agreement or action that would limit the Collateral Agent’s right to take possession, collect, sell, lease, dispose of, or otherwise realize upon any Collateral in accordance with the terms of the Security Documents, other than as expressly permitted under the Credit Agreement or the Security Documents.

(f) The Borrower will, and will cause each other Credit Party to, appear in and defend any action or proceeding arising out of or relating to any Collateral or any Lien or security interest granted under the Security Documents where the failure to appear and defend could reasonably be expected to have a material adverse effect on the Collateral, the Liens or security interests granted under the Security Documents, or the rights of the Secured Parties with respect thereto.

(g) Should any Credit Party fail to take any action required under this Section 7.33 with respect to the maintenance, preservation, or protection of any Collateral or the Liens and security interests granted under the Security Documents, the Administrative Agent may, but shall not be obligated to, take such action on behalf of the Secured

Parties at the expense of the Borrower, and the Borrower shall reimburse the Administrative Agent upon demand for all reasonable and documented out-of-pocket costs and expenses incurred by the Administrative Agent in connection with the taking of such action.

(h) Notwithstanding the foregoing, nothing in this Section 7.33 shall be construed as imposing on the Administrative Agent, the Collateral Agent, or any other Secured Party any duty or obligation to monitor the condition of any Collateral, to enforce any Lien or security interest, to collect any amounts owed in respect of any Collateral, to file any financing statement or continuation statement, or to take any other action with respect to the Collateral, and the sole obligation of each Credit Party under this Section 7.33 shall be to take such actions and refrain from taking such actions as are expressly set forth herein.

Section 7.34 (Limitation on Changes to Fiscal Quarter-End Reporting Dates). The Borrower will not, and will not permit any Restricted Subsidiary to, change its fiscal month, fiscal quarter, or fiscal year end, or the date as of which any financial statements, certificates, or reports are required to be delivered pursuant to this Agreement, from the corresponding dates in effect on the Closing Date, except that the Borrower may make such a change if (a) such change is required by GAAP or by applicable law, (b) such change is consented to in writing by the Administrative Agent, which consent may be granted or withheld in the Administrative Agent's sole discretion, or (c) the Borrower, at least thirty days prior to the effective date of such change, delivers to the Administrative Agent (i) a written notice describing such change in reasonable detail, and (ii) a certificate of a Financial Officer demonstrating that such change will not materially and adversely affect the determination of compliance with the financial covenants set forth in Article VI or the timing of any reporting obligation under this Agreement; provided, that in the case of any change permitted under the preceding clauses (a), (b), or (c), the Borrower shall, within one hundred eighty days after the effective date of such change or such later date as the Administrative Agent may agree, deliver to the Administrative Agent such transitional financial statements, calculations, and other information as the Administrative Agent may reasonably request to permit the Administrative Agent and the Lenders to review the effect of such change on the financial statements of the Borrower and its Restricted Subsidiaries and on the historical comparisons used in determining compliance with the financial covenants set forth in Article VI, and any such permitted change shall not alter the dates on which financial statements and compliance certificates are required to be delivered under this Agreement unless the Administrative Agent has agreed to a revised delivery schedule in writing.

Section 7.35 (Limitation on Non-Ordinary-Course Asset Swaps). For purposes of this Section, a Non-Ordinary-Course Asset Swap means any transaction or series of related transactions pursuant to which the Company or any Restricted Subsidiary transfers, conveys, assigns, or otherwise disposes of any asset or group of assets, including any Capital Stock of any Restricted Subsidiary, to any Person and, as consideration therefor, receives from such Person any asset or group of assets, including any Capital Stock of any other Person, other than any transaction that is solely for cash or Cash Equivalents and other than any transaction entered into in the ordinary course of business. The Company will not, and will not permit any Restricted Subsidiary to, enter into, agree to enter into, or consummate any Non-Ordinary-Course Asset Swap unless each of the following conditions is satisfied:

(a) no Default has occurred and is continuing or would result from such Non-Ordinary-Course Asset Swap, and the

representations and warranties of the Loan Parties set forth in Article IV and in the other Loan Documents are true and correct in all material respects on and as of the date of such Non-Ordinary-Course Asset Swap with the same effect as though made on and as of such date, except to the extent that any such representation or warranty is stated to relate solely to an earlier date, in which case it is true and correct in all material respects as of such earlier date.

(b) such Non-Ordinary-Course Asset Swap is entered into on terms not less favorable to the Company or the relevant Restricted Subsidiary than would be obtained in a comparable arm's-length transaction with an unrelated Person, as determined in good faith by the Board of Directors of the Company or, with respect to any Non-Ordinary-Course Asset Swap involving assets with an aggregate fair market value below the threshold established by the Board of Directors of the Company, by a Responsible Officer of the Company.

(c) the assets received in connection with such Non-Ordinary-Course Asset Swap have an aggregate fair market value at least equal to the aggregate fair market value of the assets transferred by the Company or such Restricted Subsidiary, in each case as determined in good faith by the Board of Directors of the Company or, with respect to any Non-Ordinary-Course Asset Swap by a Restricted Subsidiary, by the board of directors, managing member, general partner, or equivalent governing body of such Restricted Subsidiary and approved by the Company.

(d) the assets received are used or useful in the business of the Company and its Restricted Subsidiaries and, to the extent any asset received constitutes Collateral under any Security Document, the Company has caused, or has caused such Restricted Subsidiary to cause, such asset to be subjected to the Liens created under the Security Documents to secure the Secured Obligations, and the Collateral Agent has received all certificates, instruments, financing statements, and other documents, together with any opinions of counsel, as the Collateral Agent may reasonably request, in each case sufficient to grant, perfect, and protect the Collateral Agent's Lien on such asset, subject only to Permitted Liens.

(e) the assets received are not subject to any Lien other than Permitted Liens and Liens securing the Secured Obligations, and no consent, approval, or authorization of any Governmental Authority or other third party is required for the grant to the Collateral Agent of a security interest therein, other than any such consent, approval, or authorization that has been obtained and is in full force and effect.

(f) after giving effect to such Non-Ordinary-Course Asset Swap, the Company and its Restricted Subsidiaries would be in pro forma compliance with the financial covenants set forth in Article VI.

(g) if such Non-Ordinary-Course Asset Swap involves any Affiliate of the Company, the terms of such Non-Ordinary-Course Asset Swap are no less favorable to the Company or the relevant Restricted Subsidiary than the terms that would be obtained in a comparable transaction with an unrelated Person, and such Non-Ordinary-Course Asset Swap is approved by a majority of the disinterested members of the Board of Directors of the Company.

(h) the assets transferred by the Company or any Restricted Subsidiary in such Non-Ordinary-Course Asset Swap do not constitute all or substantially all of the assets of the Company and its Restricted Subsidiaries, taken as a whole, and do not constitute all or substantially all of the Capital Stock of any Restricted Subsidiary.

Any cash or Cash Equivalents received in connection with any Non-Ordinary-Course Asset Swap, including any cash boot, shall be applied in accordance with the provisions of this Agreement governing the application of proceeds of asset sales.

At least ten Business Days prior to the consummation of any Non-Ordinary-Course Asset Swap, the Company shall deliver to the Administrative Agent and the Collateral Agent a certificate of a Responsible Officer setting forth, in reasonable detail, a description of the assets to be transferred and the assets to be received, the fair market value of each such group of assets, and a certification that each of the conditions set forth in this Section has been satisfied or will be satisfied at the time of consummation.

Within thirty days after the consummation of any Non-Ordinary-Course Asset Swap, or such later date as the Collateral Agent may agree in its reasonable discretion, the Company shall deliver to the Collateral Agent all documentation required by paragraph (d) of this Section with respect to any assets received in such Non-Ordinary-Course Asset Swap that constitute Collateral.

Section 7.36 (Limitation on Guarantees of Third-Party Indebtedness). The Borrower shall not, and shall not permit any of its Subsidiaries to, directly or indirectly, create, incur, assume, guarantee, endorse, or otherwise become or be liable for, or suffer to exist, any guarantee of any Indebtedness of any Person (any such Person, a "Third Party"), except:

(a) Guarantees by the Borrower or any Subsidiary of Indebtedness of the Borrower or any other Loan Party.

(b) Guarantees by any Subsidiary of Indebtedness of any other Subsidiary of the Borrower; provided that, if the Indebtedness guaranteed is Indebtedness of a Subsidiary that is not a Loan Party, the aggregate principal amount of all Indebtedness of Subsidiaries that are not Loan Parties guaranteed by the Borrower and its Subsidiaries pursuant to this paragraph (b) shall not exceed the greater of one hundred million dollars and five percent of the consolidated total assets of the Borrower and its Subsidiaries, determined as of the most recent fiscal quarter end for which internal financial statements have been delivered.

(c) Endorsements of checks, drafts, notes, and other negotiable instruments for deposit or collection, and similar transactions, in each case in the ordinary course of business.

(d) Guarantees of Indebtedness of Third Parties in connection with workers compensation claims, unemployment insurance, social security benefits, disability benefits, pension and retiree health liabilities, taxes, assessments, fines, judgments, and similar statutory, regulatory, and governmental obligations, in each case incurred in the ordinary course of business and not in connection with the incurrence of Indebtedness for borrowed money.

(e) Guarantees of Indebtedness of Third Parties in respect of performance, bid, surety, customs, appeal, reclamation, environmental, and similar bonds or guarantees required by Applicable Law, governmental authorities, or contractual obligations of the Borrower or any Subsidiary, in each case in the ordinary course of business.

(f) Guarantees of Indebtedness of Third Parties that are customers, suppliers, vendors, contractors, subcontractors, franchisees, distributors, agents, brokers, operators, or lessees of the Borrower or any Subsidiary, in each case incurred in the ordinary course of business and not in respect of Indebtedness for borrowed money, if such guarantees are customary in the industry and are directly related to the business transacted between such Third Party and the Borrower or such Subsidiary.

(g) Guarantees of Indebtedness of Third Parties that are joint ventures, minority-owned entities, or non-wholly owned Subsidiaries of the Borrower, in each case to the extent required by lenders or other providers of Indebtedness to such Third Party or otherwise in the ordinary course of business; provided that the aggregate

principal amount of all Indebtedness of such Third Parties guaranteed by the Borrower and its Subsidiaries pursuant to this paragraph (g), when taken together with all Guarantees of Indebtedness of non-Loan Party Subsidiaries under paragraph (b), shall not exceed the greater of one hundred million dollars and five percent of the consolidated total assets of the Borrower and its Subsidiaries determined as of the most recent fiscal quarter end for which internal financial statements have been delivered.

(h) Guarantees of Indebtedness of any Third Party that were existing at the time such Third Party became a Subsidiary or was acquired, merged, consolidated, or amalgamated with or into the Borrower or any Subsidiary, and were not created in anticipation of such transaction; provided that no such guarantee shall extend to Indebtedness incurred after such transaction, other than refinancings of such Indebtedness that do not increase the principal amount thereof.

(i) Guarantees of Indebtedness of Third Parties in connection with the sale, transfer, lease, license, or other disposition of assets, capital stock, or equity interests of the Borrower or any Subsidiary, if such guarantee is required by the purchaser or transferee and is limited to the obligations of the business or assets being disposed of and to a reasonable time period; provided that the aggregate principal amount of Indebtedness so guaranteed shall not exceed the fair value of the consideration received for such disposed assets or equity interests.

(j) Guarantees of Indebtedness of Third Parties that are insurance companies, captive insurance companies, or reinsurance companies, in connection with insurance and reinsurance arrangements entered into in the ordinary course of business, including guarantees of loss reserves, premium reserves, and other reserves required by insurance regulatory authorities; provided that no such guarantee shall obligate the Borrower or any Subsidiary to maintain minimum capital and surplus in excess of the minimum statutory capital and surplus required by applicable insurance regulatory authorities.

(k) Guarantees of Indebtedness of Third Parties that are not otherwise permitted by this Section, so long as the aggregate outstanding principal amount of all Indebtedness of Third Parties guaranteed pursuant to this paragraph (k), together with the aggregate outstanding principal amount of all such Indebtedness guaranteed pursuant to paragraphs (b) and (g), does not exceed the greater of one hundred million dollars and five percent of the consolidated total assets of the Borrower and its Subsidiaries, determined as of the most recent fiscal quarter end for which internal financial statements have been delivered.

Section 7.37 (Limitation on Modifications to the Intercreditor Agreement). No Credit Party shall, directly or indirectly, amend, restate, supplement, waive, forbear, forgive, release, replace, terminate or otherwise modify, or grant any consent or approval under, any provision of the Intercreditor Agreement, or enter into any agreement, instrument or other document that supersedes, replaces, restates or supplements the Intercreditor Agreement, and no Credit Party shall permit any of its Subsidiaries to do any of the foregoing, unless, in each case, the Administrative Agent shall have given its prior written consent to such action, which consent may be given or withheld, conditioned or delayed, in the Administrative Agent's sole discretion.

For the avoidance of doubt, and without limiting the generality of the preceding sentence, an amendment, restatement, supplement, waiver, forbearance, release, replacement, termination or other modification of, or consent under, the Intercreditor Agreement that would have any of the following effects shall be deemed to be adverse in any

material respect to the interests of the Secured Parties:

(a) alter, change or affect the relative priority of the Liens on any Collateral securing the Secured Obligations in relation to any other Liens on such Collateral, or the relative priority, operation or effect of any payment subordination provisions contained in the Intercreditor Agreement;

(b) release, or permit the release of, any Collateral from any Lien securing the Secured Obligations, except to the extent such release is expressly permitted by the Intercreditor Agreement as in effect on the Closing Date;

(c) change, alter or affect the rights, powers, duties, authorities or discretions of the Administrative Agent, the Collateral Agent or any Secured Party with respect to the exercise of remedies against, or the collection, sale, disposition, application or distribution of, any Collateral, or the order in which any such remedies may be exercised;

(d) change the terms on which the Administrative Agent or the Collateral Agent is authorized or instructed to act, or to refrain from acting, on behalf of any Secured Party, including the terms governing acceleration, enforcement, voting, deemed consent, or direction by the Secured Parties;

(e) change the provisions of the Intercreditor Agreement governing the application of proceeds of any Collateral, the payment of costs, fees, expenses, indemnities or reimbursements, or the manner or timing of any such application or payment;

(f) alter the provisions of the Intercreditor Agreement relating to the joinder of additional creditors, additional secured parties or additional indebtedness, or relating to the termination, reduction or withdrawal of any creditor's commitments or extensions of credit;

(g) change the provisions of the Intercreditor Agreement relating to exculpation, liability, standard of care, reliance, indemnification, reimbursement or similar protections of the Administrative Agent or the Collateral Agent;

(h) impose or increase any obligation or liability of, or reduce any right or protection available to, any Secured Party under the Intercreditor Agreement.

Notwithstanding the foregoing, the Administrative Agent may, without the consent of any Credit Party or Secured Party, enter into or consent to any amendment, restatement, supplement, waiver, forbearance, release, replacement or other modification of the Intercreditor Agreement, or any agreement, instrument or other document that supersedes, replaces, restates or supplements the Intercreditor Agreement, if the Administrative Agent determines in good faith that such action is necessary or advisable to cure any ambiguity, error, omission or inconsistency in the Intercreditor Agreement, to effectuate the intent of this Agreement and the other Loan Documents, or to comply with any requirement of law, any court, any governmental authority or any securities exchange, in each case so long as such action is not adverse in any material respect to the interests of the Secured Parties.

No amendment, restatement, supplement, waiver, forbearance, release, replacement, termination or other modification of, or consent under, the Intercreditor Agreement shall be effective or binding on any Secured Party unless such action is set forth in a writing executed by each Person whose consent is required by the Intercreditor Agreement and, to the extent so required by this Agreement, by the Administrative Agent and any other Secured Party whose consent is required by this Agreement. Any purported amendment, restatement, supplement, waiver, forbearance, release, replacement, termination or other modification of, or consent under, the Intercreditor Agreement made in violation of this Section shall be null and void ab initio and may be disregarded by the

Administrative Agent and the Secured Parties for all purposes.

Section 7.38 (Limitation on Layering of Unsecured Indebtedness Above the Secured Obligations). The Borrower will not, and will not permit any Restricted Subsidiary to, directly or indirectly create, incur, assume, suffer to exist, or in any manner become liable with respect to any Indebtedness (any such Indebtedness, "Layering Indebtedness") if such Indebtedness is unsecured and (a) by its terms or by the terms of any agreement or instrument relating thereto is subordinated in right of payment to any other Indebtedness of the Borrower or such Restricted Subsidiary and (b) is senior in right of payment to the Obligations or is not subordinated in right of payment to the Obligations on terms at least as favorable to the Secured Parties as the terms on which such Indebtedness is subordinated to such other Indebtedness. The foregoing limitation shall not apply to the incurrence, assumption, or creation of Layering Indebtedness if each of the following conditions is satisfied at the time of such incurrence, assumption, or creation and after giving pro forma effect thereto:

(a) no Default or Event of Default has occurred and is continuing, or would result from such incurrence, assumption, or creation of Layering Indebtedness;

(b) the Borrower would be in pro forma compliance with the financial covenants set forth in Article VI, recomputed as of the most recent fiscal quarter end for which financial statements have been delivered pursuant to the Credit Agreement, as if such Layering Indebtedness had been incurred or created on the first day of the applicable testing period and had remained outstanding through the end of such testing period;

(c) such Layering Indebtedness is, by its terms, expressly subordinated in right of payment, upon any bankruptcy, reorganization, insolvency, winding up, dissolution, or liquidation of the Borrower or such Restricted Subsidiary, as applicable, to the prior payment in full in cash of all Obligations of the Borrower or such Restricted Subsidiary, and such subordination is effective and enforceable against the holders of such Layering Indebtedness and is on terms no less favorable to the Secured Parties than the subordination of such Layering Indebtedness to the other Indebtedness referred to in the preceding paragraph;

(d) such Layering Indebtedness is not guaranteed by, and is not secured by a Lien on any asset of, any Restricted Subsidiary that does not also guarantee or secure, as applicable, the Obligations at such time, and any guarantee of such Layering Indebtedness by a Restricted Subsidiary that is a Loan Party is subordinated in right of payment to such Loan Party's guarantee of the Obligations on terms no less favorable to the Secured Parties than the subordination terms described in paragraph (c) above;

(e) the aggregate principal amount of all Layering Indebtedness of the Borrower and the Restricted Subsidiaries outstanding immediately after giving effect to such incurrence, assumption, or creation does not exceed the greater of (a) one billion dollars and (b) thirty-five percent of Consolidated Total Assets as of the most recent fiscal quarter end for which financial statements have been delivered pursuant to the Credit Agreement;

(f) if such Layering Indebtedness is incurred, assumed, or created by a Restricted Subsidiary, such Layering Indebtedness is incurred, assumed, or created by a Restricted Subsidiary that is a Loan Party, and the Borrower is a co-obligor or guarantor of such Layering Indebtedness on a basis that is subordinated to the Obligations in the manner contemplated by paragraph (c) above; and

(g) the Borrower has delivered to the Administrative Agent a certificate of a Responsible Officer certifying that the

conditions set forth in paragraphs (a) through (f) above have been satisfied and setting forth reasonably detailed calculations demonstrating compliance with paragraph (e) above.

The Borrower will not, and will not permit any Restricted Subsidiary to, amend, supplement, restate, or otherwise modify any Layering Indebtedness, or any agreement or instrument relating thereto, if such amendment, supplement, restatement, or modification would increase the principal amount of such Layering Indebtedness, shorten the maturity or average life to maturity of such Layering Indebtedness, increase the interest rate or fees payable with respect to such Layering Indebtedness, alter the subordination provisions of such Layering Indebtedness in a manner adverse to the Secured Parties, or otherwise make the terms of such Layering Indebtedness more favorable to the holders thereof or less favorable to the Secured Parties, in each case if, after giving effect to such amendment, supplement, restatement, or modification, such Layering Indebtedness would not satisfy the conditions set forth in paragraphs (a) through (g) above as if it were being incurred at such time. For the avoidance of doubt, Indebtedness that is contractually subordinated in right of payment to the Obligations on terms at least as favorable to the Secured Parties as any other subordination applicable to such Indebtedness shall not constitute Layering Indebtedness.

Section 7.39 (Limitation on Amendments to Permitted Acquisition Documents). The Borrower will not, and will not permit any of its Restricted Subsidiaries to, directly or indirectly, amend, modify, supplement, restate, replace, waive, rescind, terminate, abandon or otherwise change, or grant any waiver or consent under, or enter into any amendment, modification, supplement, restatement, replacement, waiver, rescission, termination, abandonment or other change to, any Permitted Acquisition Document, or consent to any of the foregoing, if such action would be reasonably expected to, in any material respect:

(a) impair, diminish, delay, release, discharge, subordinate or otherwise materially adversely affect any right, remedy, benefit, payment, indemnity, contribution right, warranty, representation, covenant, condition, claim, defense or other protection of the Borrower or any Restricted Subsidiary under or in respect of such Permitted Acquisition Document, including any purchase price adjustment, earn-out payment, escrow arrangement, holdback, indemnification payment, refund, rebate or reimbursement, or any right to terminate, rescind or abandon the related Permitted Acquisition;

(b) increase, expand, accelerate or otherwise modify any payment, funding, contribution, guarantee, indemnity, covenant, representation, warranty, condition or other obligation of the Borrower or any Restricted Subsidiary under such Permitted Acquisition Document, or impose any new or additional obligation on the Borrower or any Restricted Subsidiary under such Permitted Acquisition Document;

(c) alter, amend, condition, limit or otherwise change the terms of any earn-out, escrow, holdback, purchase price adjustment or similar arrangement in a manner that is adverse to the Borrower or any Restricted Subsidiary;

(d) release, reduce, waive, impair, terminate or otherwise adversely affect any covenant not to compete, non-solicitation covenant, exclusivity arrangement or other restrictive covenant of any seller party or other obligor in favor of the Borrower or any Restricted Subsidiary under such Permitted Acquisition Document;

(e) decrease the amount, or change the priority, of any security interest or lien granted or to be granted in favor of the Borrower or any Restricted Subsidiary in connection with the related Permitted Acquisition, or otherwise alter the perfection or priority of any such security interest or lien;

(f) modify the definition of Material Adverse Effect or any comparable definition or concept contained in such Permitted Acquisition Document in a manner adverse to the Borrower or any Restricted Subsidiary; or

(g) otherwise be materially adverse to the rights or interests of the Administrative Agent, any Issuing Bank or any Lender under this Agreement or any other Loan Document.

Notwithstanding the foregoing, the Borrower and its Restricted Subsidiaries may take any action described in the immediately preceding paragraph if:

(a) such action would not be reasonably expected to have a Material Adverse Effect and is not materially adverse to the rights or interests of the Administrative Agent, any Issuing Bank or any Lender under this Agreement or any other Loan Document;

(b) such action is required by applicable law, rule, regulation, order, writ, judgment, injunction or decree of any governmental authority;

(c) such action is expressly required by, or is expressly contemplated by, this Agreement or any other Loan Document;

(d) such action is necessary to consummate a Permitted Acquisition and such action does not have any of the effects described in clauses (a) through (f) of the immediately preceding paragraph; or

(e) the Administrative Agent shall have consented in writing to such action, such consent not to be unreasonably withheld, conditioned or delayed.

With respect to any action permitted by the immediately preceding paragraph, the Borrower shall deliver to the Administrative Agent, at least five Business Days prior to the proposed effective date of such action, a certificate of a Responsible Officer describing in reasonable detail the substance and effect of such action and, in the case of an action permitted pursuant to clause (a), (b), (c) or (d) of the immediately preceding paragraph, certifying that such action satisfies the conditions set forth in such clause. In connection therewith, the Borrower shall, upon the reasonable request of the Administrative Agent, provide such other information and documentation as the Administrative Agent may reasonably request relating to such action and the effect of such action on the rights of the Administrative Agent and the Lenders.

The Borrower will not, and will not permit any of its Restricted Subsidiaries to, take or fail to take any action under any Permitted Acquisition Document if such action or failure to act would constitute a breach of or default under such Permitted Acquisition Document and such breach or default would reasonably be expected to result in the loss of all or any material portion of the assets, properties, rights or benefits acquired or to be acquired pursuant to the related Permitted Acquisition, except to the extent such action or failure to act is expressly permitted by this Section and would not be materially adverse to the interests of the Administrative Agent, any Issuing Bank or any Lender under this Agreement or any other Loan Document.

Section 7.40 (Limitation on Amendments to Tax Sharing Agreements). For purposes of this Section, the following terms have the meanings assigned to them in this Section:

"Tax Affiliate" means, with respect to any Person, any other Person that is a member of the same consolidated, combined, unitary, or similar group for tax purposes as such first Person.

"Tax Attribute" means any net operating loss, capital loss, net capital loss, unused investment credit, unused foreign

tax credit, charitable contribution carryover, earnings and profits, basis, or other tax item of any Person that could reduce, offset, or defer the liability for taxes of any Person or any other Person.

"Tax Sharing Agreement" means any agreement, arrangement, or understanding, whether written or oral, between or among the Parent Borrower or any Restricted Subsidiary, on the one hand, and any other Person, on the other hand, that provides for the payment, sharing, allocation, indemnification, assignment, or compensation of taxes or Tax Attributes, including any tax allocation agreement, tax sharing agreement, tax indemnity agreement, or similar agreement; provided that "Tax Sharing Agreement" shall not include (a) this Credit Agreement or any other Loan Document, (b) any agreement the primary purpose of which is not the payment, sharing, allocation, indemnification, assignment, or compensation of taxes or Tax Attributes and that contains only customary tax indemnification, tax reimbursement, or gross-up provisions that are incidental to the primary purpose of such agreement, or (c) any agreement with a Governmental Authority entered into in connection with a tax audit, tax settlement, or other tax proceeding.

The Parent Borrower shall not, and shall not permit any of its Restricted Subsidiaries to, directly or indirectly, whether through a single transaction or a series of transactions, enter into, adopt, assume, or otherwise become a party to any Tax Sharing Agreement, or amend, restate, supplement, waive, terminate, or otherwise modify any Tax Sharing Agreement, or any provision thereof, unless, in each case, each of the following conditions is satisfied:

(a) such action is entered into or effected in the ordinary course of the administration of the consolidated, combined, unitary, or similar tax group of which the Parent Borrower is the common parent or, with respect to any Restricted Subsidiary that is not a member of such group, the consolidated, combined, unitary, or similar tax group of which such Restricted Subsidiary is a member or, if such Restricted Subsidiary is not a member of any such group, the management of its own tax affairs;

(b) such action is entered into or effected on an arm's-length basis and on terms that are no less favorable, taken as a whole, to the Parent Borrower and its Restricted Subsidiaries than would be obtained in a comparable transaction at the time with an unrelated third party;

(c) such action is not materially adverse to the interests of the Secured Parties, taken as a whole, and would not, individually or in the aggregate, reasonably be expected to have a Material Adverse Effect;

(d) such action would not require or permit any Loan Party to make any payment in respect of taxes or Tax Attributes in an amount, at a time, or on terms that would reasonably be expected to impair the ability of such Loan Party to make any payment when due under the Credit Agreement or any other Loan Document or otherwise to comply with its obligations under the Loan Documents;

(e) such action would not result in, or permit, any transfer, assignment, surrender, forfeiture, or other disposition of any Tax Attribute of any Loan Party to any Person that is not a Tax Affiliate of such Loan Party, except for the settlement or discharge of intercompany tax allocations among members of the same consolidated, combined, unitary, or similar tax group in the ordinary course of business;

(f) such action would not adversely affect, terminate, or otherwise impair any Lien granted by any Loan Party under the Security Documents with respect to any payment, reimbursement, indemnity, or other right of such Loan Party under such Tax Sharing Agreement, or require any consent or acknowledgment of any other Person in respect of

such Lien, unless such consent or acknowledgment has been obtained and is in full force and effect;

(g) no Default or Event of Default is continuing, or would result, after giving effect to such action; and

(h) the Parent Borrower shall have delivered to the Administrative Agent, at least five Business Days prior to the effectiveness of such action, or such shorter period as the Administrative Agent may agree in its sole discretion, a copy of the proposed Tax Sharing Agreement or of the proposed amendment, restatement, supplement, waiver, termination, or modification, as applicable, and an officer's certificate of a Responsible Officer of the Parent Borrower certifying that the conditions set forth in clauses (a) through (g) above have been satisfied and setting forth in reasonable detail the facts and calculations demonstrating such satisfaction; provided that, if any such document is subject to a binding confidentiality obligation that prohibits the delivery thereof, the Parent Borrower shall deliver a summary or redacted version of such document that is not so prohibited.

Notwithstanding the foregoing, the conditions set forth in clauses (a) through (g) above shall not apply to any action described in this Section that is required by a change in applicable law or by a final, nonappealable order, judgment, or other binding determination of a Governmental Authority or a court of competent jurisdiction, or that consists of the expiration or termination of any Tax Sharing Agreement in accordance with its terms as in effect on the date of this Credit Agreement, so long as the Parent Borrower shall deliver to the Administrative Agent, as soon as reasonably practicable following the effectiveness of such action, an officer's certificate of a Responsible Officer describing such action in reasonable detail and certifying that such action qualifies for the exception set forth in this paragraph.

The Parent Borrower shall promptly, and in any event within ten Business Days after its receipt of a written request from the Administrative Agent or any Lender, deliver to the Administrative Agent a complete and correct copy of each Tax Sharing Agreement that is then in effect and of any amendment, restatement, supplement, waiver, termination, or modification thereof, together with such other information relating to such Tax Sharing Agreement as the Administrative Agent or such Lender may reasonably request.

Section 7.41 (Limitation on Formation of Unrestricted Subsidiaries). The Borrower shall not, and shall not permit any Restricted Subsidiary to, directly or indirectly, form, create, acquire, or designate any Person as an Unrestricted Subsidiary unless each of the following conditions is satisfied at the time of such formation, creation, acquisition, or designation and immediately after giving effect thereto:

(a) no Default or Event of Default has occurred and is continuing or would result from such formation, creation, acquisition, or designation;

(b) the Borrower is in compliance, and after giving effect to such formation, creation, acquisition, or designation and all transactions contemplated thereby or in connection therewith, would be in compliance, on a pro forma basis, with the financial covenants set forth in Article VI, recomputed for the four consecutive fiscal quarters most recently ended for which financial statements of the Borrower and the Restricted Subsidiaries have been delivered under the Credit Agreement, as if such formation, creation, acquisition, or designation had occurred on the first day of such four-consecutive-fiscal-quarter period;

(c) such formation, creation, acquisition, or designation is permitted by, and complies with, the limitations on Investments, Loans and Advances set forth in the Credit Agreement, and, for purposes of determining compliance

with such limitations and with paragraph (d) of this Section, the Borrower or the applicable Restricted Subsidiary, as the case may be, shall be deemed to have made an Investment in such Unrestricted Subsidiary in an amount equal to the fair market value of the net assets of such Unrestricted Subsidiary on such date, as determined in good faith by the Borrower, which amount shall include the aggregate principal amount of all intercompany loans, advances, and other extensions of credit owing by such Unrestricted Subsidiary to the Borrower or any Restricted Subsidiary;

(d) the aggregate amount of all Investments made by the Borrower and the Restricted Subsidiaries in Unrestricted Subsidiaries from and after the date of this Agreement, including any deemed Investment described in paragraph (c) of this Section, shall not exceed the greater of two hundred fifty million Dollars and fifteen percent of Consolidated Net Tangible Assets of the Borrower as of the end of the most recently ended fiscal quarter for which financial statements of the Borrower and the Restricted Subsidiaries have been delivered under the Credit Agreement; provided that, for purposes of computing such aggregate amount, the amount of any such Investment shall be reduced, dollar for dollar, by the sum of (A) the aggregate amount of all cash and cash equivalents received by the Borrower or any Restricted Subsidiary from such Unrestricted Subsidiary after the date of this Agreement as dividends, distributions, repayments of intercompany loans, advances, or other returns of capital or otherwise in respect of such Investment and (B) the fair market value of the net assets of any Unrestricted Subsidiary that is re-designated as a Restricted Subsidiary in accordance with paragraph (h) of this Section;

(e) no such Unrestricted Subsidiary is, directly or indirectly, the record or beneficial owner of any Equity Interest in the Borrower or any Restricted Subsidiary, except that such Unrestricted Subsidiary may own Equity Interests in another Unrestricted Subsidiary or in any Restricted Subsidiary that is, concurrently with such ownership, re-designated as an Unrestricted Subsidiary in compliance with this Section;

(f) such Unrestricted Subsidiary is not a borrower, guarantor, or other obligor with respect to any Indebtedness under any Credit Document, and none of the assets of such Unrestricted Subsidiary constitutes collateral for any Obligations, unless such assets have been released from the Liens created by the Security Documents in accordance with the Credit Agreement;

(g) the Borrower shall have delivered to the Administrative Agent a written notice of such formation, creation, acquisition, or designation, together with a certificate of a Responsible Officer of the Borrower certifying, in reasonable detail, compliance with the conditions set forth in this Section and setting forth the computation of the aggregate amount of Investments described in paragraph (d) of this Section; and

(h) any re-designation of an Unrestricted Subsidiary as a Restricted Subsidiary shall be permitted only if, immediately before and after such re-designation, no Default or Event of Default has occurred and is continuing and the Borrower is in compliance, on a pro forma basis, with the financial covenants set forth in Article VI, and such re-designation does not result in a violation of the limitations on Investments, Loans and Advances set forth in the Credit Agreement.

The designation of any Restricted Subsidiary as an Unrestricted Subsidiary shall be made by written resolution of the Board of Directors of the Borrower and shall be irrevocable, except that an Unrestricted Subsidiary may be re-designated as a Restricted Subsidiary in accordance with paragraph (h) of this Section.

Section 7.42 (Limitation on Designation of Unrestricted Subsidiaries). The Borrower shall not, and shall not permit

any Restricted Subsidiary to, designate any Subsidiary as an Unrestricted Subsidiary unless, at the time of such designation and immediately after giving effect to such designation, each of the following conditions is satisfied:
(a) no Default or Event of Default has occurred and is continuing or would result from such designation;
(b) no Unrestricted Subsidiary, after giving effect to such designation, directly or indirectly owns any Capital Stock of, or any Indebtedness owed by, the Borrower or any Restricted Subsidiary;
(c) no Restricted Subsidiary is directly or indirectly obligated to repay, repurchase, defease, guarantee or otherwise support any Indebtedness, preferred Equity Interests, dividends or other obligations of any Unrestricted Subsidiary;
(d) after giving effect to such designation, the representations and warranties set forth in Article IV would be true and correct in all material respects on and as of the date of such designation, except to the extent that any such representation and warranty is expressly made as of an earlier date, in which case such representation and warranty shall be true and correct in all material respects as of such earlier date, and the Borrower and its Restricted Subsidiaries would be in compliance with each covenant set forth in this Agreement applicable to the Borrower and its Restricted Subsidiaries, including, without limitation, the financial covenants set forth in Article VI, in each case as if such designation had occurred on the first day of the most recently ended fiscal quarter for which financial statements of the Borrower have been delivered;
(e) the Borrower has determined in good faith that the fair market value of the Capital Stock of such Subsidiary held by the Borrower and its Restricted Subsidiaries is not greater than the aggregate amount that the Borrower and its Restricted Subsidiaries are then permitted to invest in such Subsidiary under the limitations on Investments set forth in this Agreement, and such designation would not cause the aggregate amount of Investments made by the Borrower and its Restricted Subsidiaries in Unrestricted Subsidiaries to exceed any applicable limitation on Investments set forth in this Agreement;
(f) such designation is not otherwise prohibited by any other provision of this Agreement; and
(g) if such Subsidiary is a Loan Party, all guarantees, security agreements and other credit support provided by such Subsidiary in respect of the Obligations shall have been released in accordance with the Loan Documents concurrently with such designation.
Any designation of a Restricted Subsidiary as an Unrestricted Subsidiary shall be deemed to be an Investment by the Borrower in such Unrestricted Subsidiary in an amount equal to the fair market value of the Capital Stock of such Unrestricted Subsidiary held by the Borrower and its Restricted Subsidiaries as of the date of such designation, determined in good faith by the Borrower. The Borrower shall deliver to the Administrative Agent, not fewer than five Business Days prior to the effective date of any such designation, a written notice of such designation, together with an officers' certificate certifying that the conditions set forth above in this Section have been satisfied and setting forth the name of such Subsidiary and the date of such designation. If the fair market value of any Investment deemed to be made pursuant to this Section exceeds twenty-five million Dollars, the Borrower shall deliver to the Administrative Agent, together with such notice, a certificate of the chief financial officer of the Borrower setting forth the calculation of such fair market value in reasonable detail.
The Borrower may designate any Unrestricted Subsidiary as a Restricted Subsidiary only if, at the time of such designation and immediately after giving effect thereto, no Default or Event of Default has occurred and is

continuing or would result from such designation and the representations and warranties set forth in Article IV, after giving effect to such designation, would be true and correct in all material respects on and as of the date of such designation, except to the extent that any such representation and warranty is expressly made as of an earlier date, in which case such representation and warranty shall be true and correct in all material respects as of such earlier date, and the Borrower and its Restricted Subsidiaries would be in compliance with each covenant set forth in this Agreement applicable to the Borrower and its Restricted Subsidiaries, including, without limitation, the financial covenants set forth in Article VI, in each case as if such designation had occurred on the first day of the most recently ended fiscal quarter for which financial statements of the Borrower have been delivered. The Borrower shall deliver to the Administrative Agent, not fewer than five Business Days prior to the effective date of any such designation, a written notice of such designation, together with an officers' certificate certifying compliance with this paragraph. Any such designation shall be deemed to be a repayment by such Unrestricted Subsidiary of any Investment made by the Borrower or any Restricted Subsidiary in such Unrestricted Subsidiary that was deemed to have been made at the time such Subsidiary was designated as an Unrestricted Subsidiary, and no further Investment shall be deemed to have been made by the Borrower or any Restricted Subsidiary in such Subsidiary as a result of such redesignation.

For so long as any Subsidiary is an Unrestricted Subsidiary, neither the Borrower nor any Restricted Subsidiary shall, directly or indirectly, advance funds to, lend money to, guarantee or otherwise become liable for any obligation of, or make any Investment in, such Unrestricted Subsidiary, except to the extent expressly permitted by this Agreement. The Borrower shall not, and shall not permit any Restricted Subsidiary to, designate any Unrestricted Subsidiary as a Restricted Subsidiary if such designation would cause the Borrower or any Restricted Subsidiary to be in breach of any representation, warranty or covenant set forth in this Agreement, including, without limitation, the financial covenants set forth in Article VI.

If any Subsidiary designated as an Unrestricted Subsidiary shall at any time fail to satisfy any condition set forth in the definition of Unrestricted Subsidiary, the Borrower shall be deemed to have designated such Subsidiary as a Restricted Subsidiary and shall promptly deliver to the Administrative Agent an officers' certificate notifying the Administrative Agent of such deemed designation.

Section 7.43 (Limitation on Redesignation of Unrestricted Subsidiaries). The Borrower shall not, and shall not permit any Restricted Subsidiary to, designate any Restricted Subsidiary as an Unrestricted Subsidiary or any Unrestricted Subsidiary as a Restricted Subsidiary unless, at the time of such designation and immediately after giving pro forma effect to such designation, together with any related transactions, including any Investments, Restricted Payments, incurrence of Indebtedness, or dispositions of property made in connection therewith, each of the following conditions is satisfied:

(a) no Default or Event of Default has occurred and is continuing or would result from such designation;

(b) the Borrower and its Restricted Subsidiaries, on a consolidated basis, would be in compliance with the financial covenants set forth in Article VI, recomputed as of the last day of the most recently ended fiscal quarter for which financial statements are required to have been delivered under this Agreement, and after giving effect to such designation and such related transactions as if the same had occurred on the first day of the applicable test period;

(c) the representations and warranties made by the Borrower and the other Loan Parties in the Loan Documents are true and correct in all material respects on and as of the date of such designation, except where any such representation and warranty is qualified by materiality or Material Adverse Effect, in which case such representation and warranty is true and correct in all respects, in each case as if made on and as of such date, other than any representation and warranty that expressly relates to an earlier date, in which case such representation and warranty remains true and correct in all material respects as of such earlier date;

(d) if the Subsidiary being designated as an Unrestricted Subsidiary is a Loan Party or owns any Equity Interests of any Loan Party or any assets constituting Collateral, such designation shall not become effective until, in addition to the foregoing conditions, the obligations of such Subsidiary under the Loan Documents have been or concurrently are released and terminated in accordance with the Loan Documents and all Liens on such Equity Interests and assets constituting Collateral owned by such Subsidiary have been or concurrently are released, in each case to the extent required by the Loan Documents and the Collateral and Guarantee Requirement continues to be satisfied in all material respects after giving effect to such release;

(e) in the case of any designation of a Restricted Subsidiary as an Unrestricted Subsidiary, such designation shall be deemed to be an Investment by the Borrower in such Unrestricted Subsidiary in an amount equal to the fair market value of the net assets of such Subsidiary at the time of such designation, as determined in good faith by the board of directors of the Borrower, and such Investment, together with all other Investments made by the Borrower and its Restricted Subsidiaries in Unrestricted Subsidiaries, is permitted by the section of this Agreement governing Investments by the Borrower and its Restricted Subsidiaries; and

(f) in the case of any designation of an Unrestricted Subsidiary as a Restricted Subsidiary, such designation shall be deemed to be the repayment or return of the Investment previously made by the Borrower and its Restricted Subsidiaries in such Unrestricted Subsidiary, in an amount equal to the lesser of the amount of such Investment and the fair market value of the net assets of such Subsidiary at the time of such designation, as determined in good faith by the board of directors of the Borrower.

The Borrower shall deliver to the Administrative Agent not less than five Business Days prior to the effective date of any designation permitted under this Section a written certificate of a Responsible Officer setting forth reasonably detailed calculations demonstrating compliance with this Section and certifying that the conditions set forth in this Section have been satisfied. Any designation of an Unrestricted Subsidiary as a Restricted Subsidiary shall require that, concurrently with such designation, such Subsidiary becomes a Loan Party and grants Liens to the Administrative Agent to the extent required by the Collateral and Guarantee Requirement, and the Borrower shall deliver all such documents, agreements, opinions, and other materials as the Administrative Agent may reasonably request in connection therewith.

Section 7.44 (Limitation on Non-Cash Consideration in Asset Sales). (a) For purposes of this Section, "Non-Cash Consideration" means any consideration received by the Borrower or any Restricted Subsidiary in connection with an Asset Sale other than cash and Cash Equivalents; provided that Non-Cash Consideration shall not include (A) any liabilities of the Borrower or any Restricted Subsidiary that are assumed by the transferee in connection with such Asset Sale and for which the Borrower and the applicable Restricted Subsidiary have been released from all liability

or that are otherwise discharged or irrevocably released in connection with such Asset Sale, (B) any obligations of the transferee or any other Person to indemnify the Borrower or any Restricted Subsidiary in respect of such Asset Sale or the assets, business, or operations related to such Asset Sale, and (C) any escrow arrangements, purchase price holdbacks, earn-out rights, or deferred purchase price obligations, in each case to the extent payable in cash or Cash Equivalents.

(b) The Borrower will not, and will not permit any Restricted Subsidiary to, enter into any agreement, letter of intent, or other arrangement providing for an Asset Sale, or consummate any Asset Sale, if such Asset Sale involves any Non-Cash Consideration, unless (A) at least seventy-five percent of the aggregate consideration received or to be received in connection with such Asset Sale consists of cash and Cash Equivalents and (B) the aggregate fair market value of all Non-Cash Consideration received or to be received in connection with such Asset Sale, when aggregated with the fair market value of all other Non-Cash Consideration received by the Borrower and its Restricted Subsidiaries in connection with Asset Sales consummated during the same fiscal year of the Borrower, does not exceed the greater of twenty-five million dollars and five percent of the total assets of the Borrower and its Restricted Subsidiaries, determined on a consolidated basis in accordance with GAAP as of the last day of the most recently completed fiscal quarter of the Borrower for which financial statements have been delivered to the Administrative Agent.

(c) For purposes of determining whether the requirement described in subsection (b)(A) of this Section has been satisfied, any liabilities of the Borrower or any Restricted Subsidiary that are assumed by the transferee in connection with such Asset Sale and for which the Borrower and the applicable Restricted Subsidiary have been released from all liability shall be treated as cash, and any escrow arrangements, purchase price holdbacks, earn-out rights, and deferred purchase price obligations payable in cash or Cash Equivalents shall be treated as cash, in each case to the extent of the amount of such liabilities or obligations.

(d) The fair market value of any Non-Cash Consideration received in connection with an Asset Sale shall be determined by the Borrower in good faith as of the date of the definitive agreement for such Asset Sale and, if the fair market value of the Non-Cash Consideration to be received in any single Asset Sale exceeds five million dollars, the Borrower shall deliver to the Administrative Agent, at or prior to the consummation of such Asset Sale, a certificate of a Responsible Officer setting forth in reasonable detail such determination and the principal terms of such Non-Cash Consideration.

(e) For purposes of this Section, all Asset Sales that are consummated with the same Person or group of related Persons pursuant to a single plan or arrangement, or that are consummated within a period of five consecutive Business Days, shall be aggregated and treated as a single Asset Sale. The Borrower will not, and will not permit any Restricted Subsidiary to, divide, structure, or restructure any Asset Sale, or enter into separate Asset Sales, for the purpose of or with the effect of avoiding the limitations set forth in this Section.

(f) The limitations set forth in this Section may be waived or amended only in accordance with the Credit Agreement, and no Asset Sale involving Non-Cash Consideration in excess of the limitations set forth in this Section may be consummated without the prior written consent of the Required Lenders or, if the Credit Agreement requires a greater percentage of Lenders for such matter, such greater percentage of Lenders.

(g) Any Non-Cash Consideration received in connection with an Asset Sale shall be and remain subject to the Liens and security interests created by the Security Documents, and the Borrower will, and will cause each Restricted Subsidiary to, take all action necessary or reasonably requested by the Administrative Agent to perfect and maintain the perfection of such Liens and security interests with respect to such Non-Cash Consideration, including delivering any instruments, certificates, chattel paper, or other documents required by the Security Documents.
(h) Promptly upon the receipt of any cash or Cash Equivalents in exchange for, in respect of, or upon the monetization, sale, collection, or conversion of any Non-Cash Consideration, the Borrower will, or will cause the applicable Restricted Subsidiary to, apply such cash or Cash Equivalents in accordance with the provisions of this Credit Agreement governing the application of proceeds of Asset Sales, to the same extent as if such cash or Cash Equivalents had been received directly in connection with the original Asset Sale.
(i) For the avoidance of doubt, nothing in this Section shall be construed to permit any Asset Sale that is not otherwise permitted by this Credit Agreement or to affect any obligation of the Borrower or any Restricted Subsidiary to comply with all other conditions and requirements applicable to Asset Sales under this Credit Agreement.
Section 7.45 (Limitation on Sale-Leaseback of Principal Properties). The Borrower shall not, and shall not permit any Restricted Subsidiary to, directly or indirectly, enter into, assume or become liable for any arrangement with any Person providing for the leasing by the Borrower or any Restricted Subsidiary of any Principal Property, whether now owned or hereafter acquired, that has been or is to be sold or transferred by the Borrower or such Restricted Subsidiary to such Person (a "Sale and Leaseback Transaction"). For purposes of this Section, "Principal Property" means any manufacturing or processing plant, warehouse, distribution center, office building or other facility, together with the land upon which it is situated and related improvements, owned by the Borrower or any Restricted Subsidiary and located in the United States, other than any such property that, as of the Closing Date, has a fair market value of less than twenty-five million Dollars and other than any inventory, accounts receivable, cash, Cash Equivalents or other current assets. The limitations set forth in this Section shall not apply to any Sale and Leaseback Transaction:
(a) with respect to which the sale or transfer of such Principal Property is made within one hundred eighty days after the date of such Sale and Leaseback Transaction; provided that the consideration received by the Borrower or such Restricted Subsidiary in connection with such sale or transfer is at least equal to the fair market value of such Principal Property (determined in good faith by the Borrower) and the Borrower or such Restricted Subsidiary applies or causes to be applied an amount equal to the net cash proceeds of such sale or transfer within one hundred eighty days after the date of such sale or transfer to either (A) the prepayment, repayment, purchase, redemption, defeasance or satisfaction of any Senior Funded Debt of the Borrower or any Restricted Subsidiary (other than Senior Funded Debt owed to the Borrower or any Restricted Subsidiary) or (B) the purchase, construction, development, expansion, replacement or improvement of property, plants, equipment or other assets used or useful in the business of the Borrower or such Restricted Subsidiary; or
(b) between or among the Borrower and any Restricted Subsidiary or between or among any Restricted Subsidiaries; or

(c) involving any Principal Property if the fair market value of such Principal Property, together with the fair market value of all other Principal Properties sold or transferred and leased back pursuant to Sale and Leaseback Transactions permitted by this paragraph (c) during the immediately preceding twelve calendar months, does not exceed the greater of one hundred million Dollars and five percent of Consolidated Total Assets as of the most recently ended fiscal quarter for which financial statements have been delivered pursuant to this Agreement; or

(d) if, at the time of such Sale and Leaseback Transaction, the Borrower would be permitted to incur additional Indebtedness under the financial covenants set forth in Article VI after giving effect to such Sale and Leaseback Transaction and the application of the net cash proceeds thereof, treating the obligation of the Borrower or such Restricted Subsidiary to make payments under the lease in such Sale and Leaseback Transaction as Indebtedness; or

(e) with respect to any Principal Property that is sold or transferred to a Governmental Authority in connection with a condemnation, eminent domain or similar proceeding, or the threat of any such proceeding; or

(f) involving any Principal Property that is not a Principal Property on the Closing Date if the fair market value of such Principal Property, together with the fair market value of all other Principal Properties sold or transferred and leased back pursuant to Sale and Leaseback Transactions permitted by this paragraph (f) during the term of this Agreement, does not exceed two hundred fifty million Dollars in the aggregate; or

(g) with respect to any Principal Property acquired after the Closing Date if such Principal Property is subject to a lease at the time of acquisition or if the Sale and Leaseback Transaction is with the seller of such Principal Property and is entered into substantially contemporaneously with the acquisition thereof; or

(h) with respect to which the net cash proceeds of such Sale and Leaseback Transaction are applied by the Borrower or such Restricted Subsidiary to the prepayment of Senior Funded Debt or to the purchase, construction, development, expansion, replacement or improvement of property, plants, equipment or other assets used or useful in the business of the Borrower and its Restricted Subsidiaries, in each case within two hundred seventy days after the date of such Sale and Leaseback Transaction; provided that no Default or Event of Default exists or would result from such Sale and Leaseback Transaction.

Section 7.46 (Limitation on Incurrence of Disqualified Stock). The Borrower shall not, and shall not permit any Restricted Subsidiary to, Incur any Disqualified Stock, except as expressly permitted by this Section.

(a) The Borrower may Incur Disqualified Stock, and any Restricted Subsidiary may Incur Disqualified Stock issued to any Person other than the Borrower, any Guarantor, or any other Restricted Subsidiary, in each case in an aggregate liquidation preference not to exceed, at any time outstanding, five hundred million dollars in the case of Disqualified Stock issued by the Borrower and one hundred million dollars in the case of Disqualified Stock issued by Restricted Subsidiaries; provided that, at the time of any such Incurrence and immediately after giving effect to such Incurrence and the application of the proceeds thereof, no Default or Event of Default has occurred and is continuing or would result therefrom.

(b) The Borrower may Incur Disqualified Stock, and any Restricted Subsidiary may Incur Disqualified Stock issued to any Person other than the Borrower, any Guarantor, or any other Restricted Subsidiary, in each case to refinance, replace, extend, renew, amend, supplement, restate, or defease any Disqualified Stock of the Borrower or such Restricted Subsidiary, as applicable, outstanding on the Closing Date or previously Incurred in accordance with this

Section; provided that the aggregate liquidation preference of such new Disqualified Stock does not exceed the sum of the aggregate liquidation preference of the Disqualified Stock being so refinanced, replaced, extended, renewed, amended, supplemented, restated, or defeased plus the aggregate amount of accrued and unpaid dividends or distributions on such Disqualified Stock, any premium or make-whole amount payable in connection therewith, and any fees, commissions, expenses, and other customary amounts incurred in connection with such refinancing, replacement, extension, renewal, amendment, supplement, restatement, or defeasance; and provided further that the terms of such new Disqualified Stock, taken as a whole, are not more restrictive to the Borrower or such Restricted Subsidiary, as applicable, than the terms of the Disqualified Stock being so refinanced, replaced, extended, renewed, amended, supplemented, restated, or defeased.

(c) Any Restricted Subsidiary may Incur Disqualified Stock issued to the Borrower, any Guarantor, or any other Restricted Subsidiary; provided that any Disqualified Stock issued in accordance with this paragraph (c) shall not be deemed outstanding for purposes of the limitations set forth in paragraph (a) above; provided further that if any such Disqualified Stock is at any time transferred or sold to, or otherwise owned by, any Person other than the Borrower, any Guarantor, or any other Restricted Subsidiary, such Disqualified Stock shall, for all purposes of this Section, be deemed to have been Incurred by such Restricted Subsidiary at the time of such transfer, sale, or other event, and such Restricted Subsidiary shall not permit such Disqualified Stock to remain outstanding unless such Incurrence is then permitted under this Section.

(d) The Borrower may Incur Disqualified Stock, and any Restricted Subsidiary may Incur Disqualified Stock issued to any Person other than the Borrower, any Guarantor, or any other Restricted Subsidiary, if, in each case, at the time of such Incurrence and immediately after giving effect to such Incurrence and the application of the proceeds thereof, no Default or Event of Default has occurred and is continuing or would result therefrom and the Borrower would have been able to Incur at least one dollar of additional Indebtedness under the financial covenants set forth in Article VI.

(e) The Borrower shall not, and shall not permit any Restricted Subsidiary to, amend, modify, alter, waive, or otherwise change the terms of any outstanding Disqualified Stock, or take any other action, if such amendment, modification, alteration, waiver, change, or action would cause such Disqualified Stock to have, or would confer upon the holder thereof any right to cause, any scheduled redemption, repurchase, exchange, or sinking fund obligation, or any right to require the redemption, repurchase, or exchange thereof, at any time prior to the date that is ninety-one days after the Maturity Date, unless such Disqualified Stock, as so amended, modified, altered, waived, changed, or otherwise affected, would have been permitted to be Incurred under this Section at the time of such amendment, modification, alteration, waiver, change, or action.

Section 7.47 (Limitation on Amendments to Escrow Arrangements). The Borrower shall not, and shall not permit any Subsidiary to, directly or indirectly, amend, supplement, restate, replace, waive, or otherwise modify, or consent to any amendment, supplement, restatement, replacement, waiver, or other modification of, any Escrow Arrangement, whether or not in effect as of the Closing Date, if such amendment, supplement, restatement, replacement, waiver, or other modification would reasonably be expected to be adverse in any material respect to the Lenders or any other Secured Party, including by reason of the reduction or delay of any payment or distribution

from the escrow account that would otherwise be available to the Borrower or any Subsidiary for the payment of principal of, or interest on, the Loans or any other Obligation.

Without limiting the generality of the foregoing, the Borrower shall not, and shall not permit any Subsidiary to, enter into any amendment, supplement, restatement, replacement, waiver, or other modification of any Escrow Arrangement that would:

(a) reduce the amount of cash, Cash Equivalents, securities, or other consideration to be released from escrow to the Borrower or any Subsidiary, or to be applied to the repayment of any Indebtedness or to the satisfaction of any other Obligation, below the amount that would have been released or applied immediately prior to such action;

(b) postpone the date on which any cash, Cash Equivalents, securities, or other consideration held in escrow is required to be released, whether to the Borrower or any Subsidiary or directly to the Administrative Agent or any Lender, to a date later than the date such release would have been required under the terms of such Escrow Arrangement in effect immediately prior to such action;

(c) subject the escrow account or any cash, Cash Equivalents, securities, or other consideration held therein to any lien, claim, setoff, counterclaim, defense, or other right in favor of any person other than the Borrower or any Subsidiary, or permit the escrow agent, trustee, securities intermediary, or any other person to exercise any right of setoff, banker's lien, or similar remedy against the escrow account or any property held therein;

(d) alter the order of application or priority of payments from the escrow account in any manner that has or would reasonably be expected to have a material adverse effect on the timing or amount of funds available for the payment of any principal, interest, fee, expense, or other amount payable under the Loan Documents;

(e) change the investment guidelines, permitted investments, or rating requirements applicable to funds held in escrow in a manner that would permit such funds to be invested other than in Cash Equivalents, or in Cash Equivalents with effective maturities extending beyond the expected release dates of such funds;

(f) release, replace, or permit the resignation or replacement of the escrow agent, trustee, securities intermediary, or other financial institution acting as depositary, custodian, or agent under the relevant Escrow Arrangement, except with a replacement bank or trust company organized under the laws of the United States, any state thereof, or the District of Columbia, having combined capital and surplus of not less than five hundred million dollars and reasonably acceptable to the Administrative Agent;

(g) add any condition to the release of funds from escrow, other than a condition that is expressly set forth in the applicable Escrow Arrangement as in effect on the Closing Date or that is no less favorable to the Borrower or any Subsidiary than the conditions in effect on such date; or

(h) amend, modify, or waive any provision of any Escrow Arrangement that requires the escrow agent or other depositary to hold, protect, invest, or disburse the funds held in escrow in accordance with written instructions delivered by the Borrower or any Subsidiary, or that otherwise materially impairs the ability of the Borrower or any Subsidiary to control the timing, amount, or manner of disbursement from the escrow account.

Notwithstanding the immediately preceding paragraphs, the Borrower and its Subsidiaries may amend, supplement, restate, replace, waive, or otherwise modify any Escrow Arrangement without the prior written consent of the Required Lenders if such action would not be adverse in any material respect to the Lenders or any other Secured

Party and the Borrower has delivered to the Administrative Agent, at least five Business Days prior to the effectiveness of such action, a certificate of a Responsible Officer certifying that such action satisfies the requirements of this sentence. No such amendment, supplement, restatement, replacement, waiver, or other modification shall become effective if, after giving effect thereto, the Borrower or any Subsidiary would not be in compliance with the terms of the Credit Agreement.

Section 7.48 (Limitation on Modifications to Insurance Policies). No Loan Party shall, nor shall any Loan Party permit any Subsidiary to, directly or indirectly, cancel, terminate, fail to renew, materially amend, modify, supplement, or otherwise change, or give or send any notice of cancellation, nonrenewal, or material amendment with respect to, any policy of insurance required to be maintained by the Loan Parties or any of their Subsidiaries pursuant to this Agreement, including any policy of property, casualty, liability, business interruption, or other insurance maintained with respect to assets or operations that are material to the business of the Loan Parties and their Subsidiaries taken as a whole, if such cancellation, termination, failure to renew, amendment, modification, supplement, change, or notice would reasonably be expected to be materially adverse to the interests of the Administrative Agent or any other Secured Party.

Notwithstanding the foregoing, the Loan Parties and their Subsidiaries may take any action described in the immediately preceding sentence if all of the following conditions are satisfied:

(a) such cancellation, termination, failure to renew, amendment, modification, supplement, or change is made in the ordinary course of business of the applicable Loan Party or Subsidiary and is not made in connection with any actual or threatened default under, or any actual or threatened termination of, any material insurance policy maintained by the Loan Parties or any of their Subsidiaries;

(b) with respect to any replacement or amended coverage, such replacement or amended coverage (i) covers risks and properties that are at least as broad and at least as favorable in all material respects as the coverage being replaced or amended, (ii) has coverage limits, insured amounts, deductibles, self-insured retentions, exclusions, and other material terms that, taken as a whole, are no less favorable in any material respect to the Loan Parties and the Secured Parties than the coverage being replaced or amended, (iii) is provided by an insurer or reinsurer that is financially sound and reputable and, if the coverage being replaced or amended was provided by an insurer or reinsurer with a rating from a nationally recognized statistical rating organization, such insurer or reinsurer has a rating that is not less than the rating of such predecessor insurer or reinsurer, and (iv) otherwise complies with the requirements of this Agreement relating to insurance;

(c) such replacement or amended coverage is in full force and effect prior to the effective date of the cancellation, termination, nonrenewal, amendment, modification, supplement, or change of the coverage being replaced or amended, and no coverage gap exists with respect to any such policy;

(d) no Default or Event of Default has occurred and is continuing or would result from such cancellation, termination, failure to renew, amendment, modification, supplement, or change; and

(e) the Administrative Agent has received, at least thirty days prior to the effective date of such proposed action, a written notice describing such proposed action in reasonable detail, together with a certificate of an Authorized Officer of the applicable Loan Party certifying that the conditions set forth in clauses (a) through (d) of this Section

have been satisfied or will be satisfied on or prior to the effective date of such proposed action.

Each Loan Party shall, and shall cause each Subsidiary to, deliver to the Administrative Agent, promptly upon receipt, true and complete copies of all renewal notices, certificates of insurance, endorsement schedules, binders, policies, and other documents evidencing any material change, modification, supplement, or amendment to any policy of insurance required to be maintained by such Loan Party or such Subsidiary pursuant to this Agreement. In addition, each Loan Party shall cause the Administrative Agent and its counsel to be named as an additional insured, loss payee, or mortgagee, as applicable, on each such policy of insurance to the extent required by, and in accordance with, this Agreement, and shall deliver to the Administrative Agent such evidence of such additional insured, loss payee, or mortgagee status as the Administrative Agent may reasonably request from time to time.

No Loan Party shall, nor shall any Loan Party permit any Subsidiary to, take any action or fail to take any action, or suffer or permit any condition or event to exist, if such action, failure, condition, or event would entitle any insurer, reinsurer, or surety to deny any claim with respect to, or to assert any defense, set-off, counterclaim, right of rescission, cancellation, or nonrenewal against, any policy of insurance required to be maintained pursuant to this Agreement, or would render any such policy void, voidable, or unenforceable, or would otherwise materially impair the ability of any Secured Party to realize the benefits of any such policy. Without limiting the generality of the foregoing, each Loan Party shall pay, and shall cause each Subsidiary to pay, all premiums and other amounts due and payable under or in respect of each such policy when due, and shall otherwise comply with all terms and conditions of each such policy.

If any Loan Party or any Subsidiary fails to maintain any policy of insurance required by this Agreement, or fails to pay any premium due and payable in respect of any such policy, the Administrative Agent may, after prior written notice to the applicable Loan Party, obtain or renew any such policy of insurance on behalf of and for the account of such Loan Party or such Subsidiary. The Loan Parties shall promptly reimburse the Administrative Agent for the cost of any such policy or renewal obtained by the Administrative Agent, together with all reasonable out-of-pocket expenses incurred by the Administrative Agent in connection therewith, and any amount not so reimbursed shall bear interest at the rate applicable to overdue principal under the Credit Agreement and shall be payable by the Loan Parties on demand. The obtaining or renewal of any such insurance by the Administrative Agent shall not constitute a waiver of any Default or Event of Default arising from the failure of the Loan Parties or any Subsidiary to maintain such insurance or to pay any premium with respect thereto.

Section 7.49 (Limitation on Changes to Depositary Bank Arrangements). No Credit Party will, and no Credit Party will permit any of its Subsidiaries to, directly or indirectly, establish, maintain, or otherwise use any Deposit Account, Securities Account, or Commodity Account (each, a "Depositary Account") with any Depositary Bank other than the Administrative Agent, unless (a) such Depositary Bank has executed and delivered to the Administrative Agent an Account Control Agreement, in form and substance reasonably satisfactory to the Administrative Agent, for the benefit of the Secured Parties, with respect to such Depositary Account, and (b) such Depositary Account is subject, and remains subject, at all times to a perfected, first-priority security interest in favor of the Administrative Agent for the benefit of the Secured Parties; provided, however, that this Section shall not apply to any Depositary Account that is a Permitted Account.

For purposes of this Section, "Permitted Account" means any Depositary Account (a) maintained exclusively for payroll, payroll taxes, employee benefits, withholding, sales, excise, or other taxes, trust, escrow, fiduciary, self-insurance, workers' compensation, or similar purposes, (b) that is a zero-balance account or sweep account maintained solely to facilitate transfers to a concentration account that is subject to an Account Control Agreement, (c) the balance of which does not exceed two hundred fifty thousand dollars at any time, or (d) maintained by a Credit Party or any Subsidiary in a jurisdiction outside the United States in the ordinary course of business; provided that the aggregate balance of all Depositary Accounts maintained in reliance on subparagraph (c) shall not exceed one million dollars at any time, and the aggregate balance of all Depositary Accounts maintained in reliance on subparagraph (d) shall not exceed one million dollars at any time. For the avoidance of doubt, no Depositary Account shall be a Permitted Account if it is established or maintained for the purpose of avoiding the requirements of this Section.

The Borrower will, and will cause each of its Subsidiaries to, on or before the date that is thirty days after the Closing Date, or such later date as the Administrative Agent may approve in its sole discretion, deliver to the Administrative Agent, for the benefit of the Secured Parties, an Account Control Agreement, duly executed by the applicable Depositary Bank, with respect to each Depositary Account, other than any Permitted Account, in existence on the Closing Date, together with such other agreements, documents, and instruments as the Administrative Agent may reasonably request in connection with the perfection and priority of the Secured Parties' security interest in such Depositary Account and the funds and financial assets held therein.

No Credit Party will, and no Credit Party will permit any of its Subsidiaries to, change its primary depositary bank or establish, amend, or terminate any lockbox, collection, concentration, disbursement, or other depositary arrangement, or any agreement relating to any Depositary Account, unless the Borrower has given the Administrative Agent not less than fifteen Business Days' prior written notice of such change, establishment, amendment, or termination, and, upon the reasonable request of the Administrative Agent, the Borrower has delivered to the Administrative Agent, before the effectiveness of such change, establishment, amendment, or termination, an Account Control Agreement and such other documents and agreements as the Administrative Agent may reasonably request to ensure the continuing perfection and priority of the security interest of the Secured Parties in the related Depositary Accounts and all funds and financial assets held therein.

If any Account Control Agreement delivered pursuant to this Section is terminated, expires, or ceases to be in full force and effect for any reason, the Borrower will, and will cause each applicable Subsidiary to, promptly, and in any event within ten Business Days after such termination, expiration, or cessation, transfer all funds and financial assets from the related Depositary Account to a Depositary Account maintained with the Administrative Agent or with another Depositary Bank that has executed and delivered an Account Control Agreement in accordance with this Section, and to take all other action as may be necessary to maintain the perfection and priority of the security interest of the Secured Parties in such funds and financial assets.

No Credit Party will, and no Credit Party will permit any of its Subsidiaries to, enter into or maintain any agreement, arrangement, or understanding with any Depositary Bank or other financial institution that restricts, prohibits, or conditions in any manner the ability of any Credit Party or any Subsidiary to grant, or the Administrative Agent to

obtain, perfect, or maintain, a security interest in any Depositary Account or any funds or financial assets held therein, or that requires the consent or notice of such Depositary Bank or financial institution as a condition to the creation, perfection, or priority of such security interest.

The Borrower will, and will cause each of its Subsidiaries to, deposit, and cause to be deposited, all cash, checks, wires, and other instruments and items of payment received by any Credit Party or any Subsidiary into a Depositary Account maintained with the Administrative Agent or with a Depositary Bank that has executed and delivered an Account Control Agreement in accordance with this Section, or into a Permitted Account, in each case as soon as practicable and in any event within two Business Days after receipt thereof.

The Borrower will deliver to the Administrative Agent, within fifteen days after the end of each calendar month, a certificate of a Responsible Officer setting forth a true and complete list of all Depositary Accounts maintained by the Credit Parties and their Subsidiaries as of the last day of such calendar month, identifying for each such Depositary Account the name of the Depositary Bank, the account number, whether such Depositary Account is a Permitted Account, and, if such Depositary Account is not a Permitted Account, the date on which an Account Control Agreement was delivered to the Administrative Agent with respect to such Depositary Account.

Section 7.50 (Limitation on Additional Liens on the Collateral). (a) The Borrower will not, and will not permit any Restricted Subsidiary to, directly or indirectly, create, incur, assume or suffer to exist, or permit or suffer to exist, any Lien on any Collateral to secure any Indebtedness other than the Obligations, unless such Lien is (A) a Permitted Lien, (B) a Lien securing the Obligations, or (C) an Additional Lien permitted by and created in accordance with the provisions of this Section.

(b) As used in this Section, "Additional Lien" means any Lien on Collateral, other than a Permitted Lien or a Lien securing the Obligations, that secures Indebtedness incurred after the Closing Date by the Borrower or any Restricted Subsidiary; "Secured Additional Indebtedness" means any Indebtedness secured by an Additional Lien; and "Discharge of Obligations" means the date on which all Obligations (other than contingent indemnification obligations not then due and payable) have been indefeasibly paid in full in cash and all commitments under this Agreement have been terminated.

(c) No Additional Lien may be created, incurred, assumed or suffered to exist, or permitted or suffered to exist, unless each of the following conditions is satisfied with respect to such Additional Lien and the Secured Additional Indebtedness secured thereby:

(A) the Secured Additional Indebtedness is incurred in compliance with the limitations on Indebtedness and other covenants contained in this Agreement, and the Borrower has delivered to the Administrative Agent, at least five Business Days prior to the date on which such Additional Lien is granted, a certificate of a Responsible Officer certifying that such compliance has been achieved and that the conditions set forth in this paragraph (c) will be satisfied on the date of such grant;

(B) no Default or Event of Default has occurred and is continuing, or would result, immediately before and after giving effect to the grant of such Additional Lien and the incurrence of such Secured Additional Indebtedness;

(C) the holders of the Secured Additional Indebtedness, or a trustee or agent acting on their behalf, have executed and delivered to the Administrative Agent an intercreditor agreement in form and substance reasonably satisfactory

to the Administrative Agent that provides, for the benefit of the Secured Parties, that the Liens and security interests securing the Obligations on the Collateral are senior to the Liens and security interests securing the Secured Additional Indebtedness on such Collateral, that the Secured Parties are entitled to receive all proceeds of the Collateral arising from any enforcement of the Liens securing the Obligations prior to the holders of the Secured Additional Indebtedness, that the holders of the Secured Additional Indebtedness will not challenge or assist any Person in challenging the validity, priority or enforceability of the Liens or security interests securing the Obligations, and that no enforcement action or other remedy with respect to the Collateral may be taken by or on behalf of the holders of the Secured Additional Indebtedness until the Discharge of Obligations has occurred, other than any action expressly permitted by the intercreditor agreement;

(D) the aggregate principal amount of all Secured Additional Indebtedness outstanding at any time, calculated, in the case of any Indebtedness issued at a discount, at the accreted value thereof and, in the case of any other non-cash Indebtedness, at the principal amount thereof, does not exceed the greater of seventy-five million dollars and twelve and one-half percent of Total Assets; provided, that for purposes of this Section, "Total Assets" means the total assets of the Borrower and its Restricted Subsidiaries on a consolidated basis as shown on the most recent consolidated balance sheet of the Borrower delivered pursuant to the reporting covenants contained in this Agreement, or, prior to the delivery of the first such balance sheet, as shown on the consolidated balance sheet of the Borrower and its Restricted Subsidiaries delivered in connection with the Closing Date, in each case determined in accordance with GAAP;

(E) the Borrower has caused, or concurrently with the creation of such Additional Lien will cause, all Collateral subject to such Additional Lien to be subject, to the extent not already so subject, to a Lien securing the Obligations with a priority senior to or equal with the Lien securing such Secured Additional Indebtedness, and has taken, or concurrently with the creation of such Additional Lien will take, all actions necessary or reasonably requested by the Administrative Agent to perfect such Liens securing the Obligations, including, without limitation, the execution and delivery of any security agreement, pledge agreement, mortgage, deed of trust, fixture filing or financing statement, and the delivery of any stock certificates, promissory notes and executed instruments of transfer, in each case in form and substance reasonably satisfactory to the Administrative Agent; and

(F) the Collateral subject to such Additional Lien does not include any asset that is not also Collateral for the Obligations as of the date of such grant, unless such asset is made Collateral for the Obligations concurrently with the grant of such Additional Lien and the Obligations are secured by such asset on a senior basis as required by paragraph (E) of this paragraph (c).

(d) The Borrower will not, and will not permit any Restricted Subsidiary to, take or omit to take any action if such action or omission would result in the priority of the Liens securing the Obligations on any Collateral being impaired, subordinated or otherwise adversely affected, other than as expressly permitted by the applicable intercreditor agreement.

(e) The Administrative Agent is hereby authorized, on behalf of the Secured Parties, to enter into any intercreditor agreement referred to in this Section and to perform, observe and enforce the rights of the Secured Parties under any such intercreditor agreement, and the Borrower agrees to pay all reasonable out-of-pocket expenses of the

Administrative Agent in connection with the negotiation, execution, delivery and administration of any such intercreditor agreement.

(f) The Borrower will not, and will not permit any Restricted Subsidiary to, amend, supplement, extend, renew, refinance, replace or otherwise modify any Additional Lien or any Secured Additional Indebtedness if such amendment, supplement, extension, renewal, refinancing, replacement or other modification would cause any of the conditions set forth in paragraph (c) of this Section not to be satisfied with respect to such Additional Lien or such Secured Additional Indebtedness.

(g) Notwithstanding anything to the contrary in this Section, no Lien may be created on any Collateral to secure any Indebtedness if such Lien would be prohibited by the Security Documents or by any intercreditor agreement governing the Liens on the Collateral, and any purported grant of such Lien shall be void.

Section 7.51 (Limitation on Guarantees by Unrestricted Subsidiaries). The Company shall not, and shall not permit any Restricted Subsidiary to, cause or permit any Unrestricted Subsidiary to Guarantee, assume, endorse, contingently agree to purchase or otherwise become liable, whether directly or indirectly, in respect of, or to pledge, grant or suffer to exist any Lien on any of its assets to secure, any Indebtedness of the Company or any Restricted Subsidiary (any such Guarantee, assumption, endorsement, contingent agreement, liability, pledge, grant or Lien, an "Unrestricted Subsidiary Guarantee"), unless, at the time of the incurrence of such Unrestricted Subsidiary Guarantee and after giving pro forma effect thereto, each of the following conditions is satisfied:

(a) such Unrestricted Subsidiary Guarantee is incurred in compliance with Section 7.03 as an Investment by the Company or such Restricted Subsidiary in such Unrestricted Subsidiary and is in respect of Indebtedness of the Company or a Restricted Subsidiary that is permitted to be incurred under Section 7.01;

(b) the aggregate principal amount of all Indebtedness of the Company and its Restricted Subsidiaries guaranteed by Unrestricted Subsidiaries pursuant to this Section 7.51, determined without duplication of any such Indebtedness guaranteed by a Restricted Subsidiary or by the Company and, in the case of any Guarantee of a revolving credit facility or other facility under which Indebtedness may be incurred from time to time, based on the maximum aggregate principal amount that may be drawn and outstanding thereunder at any time, does not exceed the greater of (i) five hundred million dollars and (ii) ten percent of Consolidated Total Assets of the Company determined as of the most recent fiscal quarter end for which financial statements have been delivered pursuant to the Credit Agreement;

(c) no Default or Event of Default has occurred and is continuing or would result from the incurrence of such Unrestricted Subsidiary Guarantee;

(d) if the Indebtedness guaranteed by such Unrestricted Subsidiary Guarantee is Subordinated Indebtedness, the related Unrestricted Subsidiary Guarantee is subordinated to the Obligations at least to the same extent as such Subordinated Indebtedness is subordinated to the Obligations of the Company;

(e) if such Unrestricted Subsidiary Guarantee is not a Guarantee of the Obligations and such Unrestricted Subsidiary is a direct or indirect Wholly Owned Subsidiary of the Company, then, upon the reasonable request of the Administrative Agent, the Company shall cause such Unrestricted Subsidiary to execute and deliver a joinder to the Guarantee and Collateral Agreement, together with such customary legal opinions, secretary's certificates,

resolutions and other documents in form and substance reasonably satisfactory to the Administrative Agent as the Administrative Agent may reasonably request, pursuant to which such Unrestricted Subsidiary becomes a Guarantor under the Credit Agreement and grants a Lien on all or substantially all of its assets to secure the Obligations; provided that this paragraph (e) shall not apply to the extent that becoming a Guarantor would reasonably be expected to result in material adverse tax consequences to the Company or any of its Restricted Subsidiaries.

For the avoidance of doubt, no Unrestricted Subsidiary Guarantee of Indebtedness of another Unrestricted Subsidiary shall be subject to the limitations set forth in this Section 7.51, and no Unrestricted Subsidiary Guarantee of Indebtedness of the Company or any Restricted Subsidiary that is outstanding on the date on which a Person is designated as an Unrestricted Subsidiary shall be required to be discharged solely by reason of such designation; provided that any such outstanding Unrestricted Subsidiary Guarantee shall thereafter be deemed to be an Unrestricted Subsidiary Guarantee incurred on the date of such designation and shall comply with the provisions of this Section 7.51 (other than the condition set forth in paragraph (c) to the extent that a Default or Event of Default existed at such time solely as a result of facts or circumstances existing prior to such designation).

Section 7.52 (Limitation on Investments in Joint Ventures). For purposes of this Section, "Joint Venture" means any Person, whether incorporated or unincorporated, in which the Borrower or any Restricted Subsidiary owns, directly or indirectly, any Equity Interests and in which any one or more Persons other than the Borrower and its Restricted Subsidiaries own, directly or indirectly, any Equity Interests; a wholly owned Subsidiary of the Borrower shall not be a Joint Venture. "Joint Venture Investment" means any Investment by the Borrower or any Restricted Subsidiary in any Joint Venture, including the acquisition of any Equity Interests of any Joint Venture, any capital contribution or other contribution to the capital or net worth of any Joint Venture, any loan, advance, or other extension of credit to any Joint Venture, any guarantee, letter of credit, or other contingent obligation incurred for the benefit of any Joint Venture, and any other transfer of cash or other property to or for the account of any Joint Venture. "Joint Venture Investment Amount" means, with respect to any group of Joint Venture Investments to which reference is made in the applicable subparagraph of this Section, as of any date, the aggregate amount of all such Joint Venture Investments made or outstanding on or after the Closing Date, determined in accordance with GAAP, less the aggregate amount of all cash dividends, distributions, returns of capital, repayments, proceeds of sales or other dispositions, and other cash amounts actually received by the Borrower and its Restricted Subsidiaries on or after the Closing Date from or in respect of such Joint Venture Investments; provided that no effect shall be given to any earnings, losses, write-ups, write-downs, appreciation, depreciation, or other non-cash items attributable to such Joint Venture Investments. For purposes of determining the Joint Venture Investment Amount, the amount of any Joint Venture Investment made in the form of non-cash property shall be the fair market value of such property at the time such Joint Venture Investment is made, as determined in good faith by the Borrower, and the amount of any Joint Venture Investment consisting of a guarantee, letter of credit, or other contingent obligation shall be the maximum aggregate amount of the underlying obligation as determined in good faith by the Borrower, which amount shall not be reduced until the underlying obligation is discharged or such Joint Venture Investment is released in accordance with its terms. No Joint Venture Investment shall be counted more than once in calculating the Joint Venture Investment Amount.

The Borrower will not, and will not permit any Restricted Subsidiary to, directly or indirectly, make, increase, or permit to remain outstanding any Joint Venture Investment, except:

(a) Joint Venture Investments in Joint Ventures existing on the Closing Date, so long as the Joint Venture Investment Amount of all Joint Venture Investments described in this subparagraph (a), at any one time outstanding, does not exceed the sum of the aggregate amount of all Joint Venture Investments in such Joint Ventures as of the Closing Date, determined in accordance with GAAP, plus one hundred million dollars.

(b) Joint Venture Investments in Joint Ventures formed or acquired after the Closing Date, so long as the Joint Venture Investment Amount of all Joint Venture Investments described in this subparagraph (b), at any one time outstanding, does not exceed two hundred million dollars.

(c) Joint Venture Investments consisting of additional capital contributions to a Joint Venture required by a capital call made by such Joint Venture, so long as such capital call is made on a pro rata basis among all equity holders of such Joint Venture, the Borrower or the applicable Restricted Subsidiary funds no more than its pro rata share of such capital call, and the aggregate amount of all such additional capital contributions does not exceed fifty million dollars at any one time outstanding.

(d) Joint Venture Investments consisting of loans, advances, or other extensions of credit to any Joint Venture, so long as the aggregate outstanding principal amount of all such loans, advances, and other extensions of credit does not exceed seventy-five million dollars at any one time.

(e) Joint Venture Investments consisting of guarantees, letters of credit, or other contingent obligations in respect of Indebtedness or other liabilities of any Joint Venture, so long as the aggregate amount of the obligations guaranteed or supported thereby does not exceed fifty million dollars at any one time.

(f) Joint Venture Investments consisting of the extension, renewal, refinancing, replacement, or substitution of any Joint Venture Investment permitted by this Section, so long as the amount of such Joint Venture Investment is not increased by more than the amount of any cash returns of capital, repayments, or other cash proceeds actually received by the Borrower or the applicable Restricted Subsidiary in connection with the Joint Venture Investment being extended, renewed, refinanced, replaced, or substituted plus any premiums, accrued interest, fees, and expenses paid in connection therewith.

(g) Joint Venture Investments consisting of the contribution of non-cash property to the capital of any Joint Venture in exchange for Equity Interests in such Joint Venture, so long as the aggregate amount of all such Joint Venture Investments does not exceed twenty-five million dollars in any fiscal year.

Joint Venture Investments made pursuant to subparagraphs (c) through (g) of this Section shall be in addition to Joint Venture Investments made pursuant to subparagraphs (a) and (b) of this Section, and shall not be counted against the limitations set forth in subparagraphs (a) and (b) of this Section.

Notwithstanding the foregoing, the Borrower will not, and will not permit any Restricted Subsidiary to, make any Joint Venture Investment unless each of the following conditions is satisfied at the time of and immediately after giving effect to such Joint Venture Investment:

(a) no Default or Event of Default has occurred and is continuing or would result from such Joint Venture Investment;

(b) the representations and warranties of the Borrower and the other Credit Parties contained in the Loan Documents are true and correct in all material respects on and as of the date of such Joint Venture Investment with the same effect as though made on and as of such date, except to the extent any such representation and warranty expressly relates to an earlier date, in which case such representation and warranty shall have been true and correct in all material respects as of such earlier date, and except that any representation and warranty that is qualified by materiality or Material Adverse Effect shall be true and correct in all respects as so qualified;
(c) the Borrower and its Restricted Subsidiaries are, on a pro forma basis after giving effect to such Joint Venture Investment, in compliance with the financial covenants set forth in Article VI;
(d) the business of such Joint Venture, after giving effect to such Joint Venture Investment, is the same as or reasonably related, complementary, or ancillary to the businesses conducted by the Borrower and its Restricted Subsidiaries on the Closing Date or any reasonable extension, expansion, or evolution thereof; and
(e) the Borrower shall have delivered to the Administrative Agent, at least five Business Days prior to the date of such Joint Venture Investment or such shorter period as the Administrative Agent may agree, a certificate of a Responsible Officer setting forth in reasonable detail the calculation of the Joint Venture Investment Amount before and after giving effect to such Joint Venture Investment and certifying as to the matters set forth in subparagraphs (a), (b), and (c) of this paragraph.
For the avoidance of doubt, the Borrower will not, and will not permit any Restricted Subsidiary to, make or permit to remain outstanding any Joint Venture Investment if the primary purpose of such Joint Venture Investment is to avoid, evade, or circumvent any covenant or other restriction contained in this Agreement.
Section 7.53 (Limitation on Prepayment of Management Fees). (a) The Borrower will not, and will not permit any Restricted Subsidiary to, directly or indirectly, prepay or make any payment, whether by way of deposit, escrow, advance, letter of credit, collateral account or otherwise, in respect of any Management Fees prior to the date on which such Management Fees are due and payable in accordance with the terms of the agreement or arrangement pursuant to which such Management Fees are payable, except to the extent such prepayment or earlier payment constitutes a Permitted Management Fee Prepayment.
(b) For purposes of this Section, "Management Fees" means all management, consulting, monitoring, advisory, transaction, success, termination or similar fees and expenses (including any related indemnification, tax gross-up, reimbursement or other similar obligations) payable by the Borrower or any Restricted Subsidiary to any direct or indirect parent of the Borrower or any Affiliate of any direct or indirect parent of the Borrower (including any manager, consultant, advisor or similar Person appointed by any such parent or Affiliate), in each case, pursuant to any management, consulting, monitoring, advisory, transition, separation or similar agreement or arrangement, whether any such agreement or arrangement is in effect on the Closing Date or is entered into after the Closing Date in accordance with the Credit Agreement.
(c) "Permitted Management Fee Prepayments" means any prepayment or earlier payment of Management Fees (i) that is required by the terms of the applicable agreement or arrangement and is made on or before the date on which such Management Fees would otherwise become due and payable; provided that no Default or Event of Default exists or would result from such prepayment; (ii) with the proceeds of a substantially concurrent issuance or sale of

Qualified Equity Interests of the Borrower or any direct or indirect parent of the Borrower; provided that, in the case of an issuance by a direct or indirect parent of the Borrower, the proceeds of such issuance are contributed to the common equity of the Borrower or loaned to the Borrower on terms subordinated to the obligations of the Borrower under the Loan Documents; provided further that no Default or Event of Default exists or would result from such prepayment; (iii) with cash on hand of the Borrower or any Restricted Subsidiary; provided that, in each case, at the time of such prepayment and after giving effect thereto, no Default or Event of Default exists or would result and the Borrower is, and would continue to be, in compliance with the financial covenants set forth in Article VI on a pro forma basis as of the most recent fiscal quarter for which financial statements have been delivered pursuant to the Credit Agreement; and (iv) that is made in connection with the termination or expiration of any management, consulting, monitoring, advisory, transition, separation or similar agreement or arrangement, if such prepayment is required by the terms of such agreement or arrangement and is made to the Person entitled to receive such Management Fees under such agreement or arrangement in an amount not exceeding the amount that would have been payable to such Person had such agreement or arrangement remained in effect through the scheduled expiration date and such Person continued to perform its obligations thereunder; provided that no Default or Event of Default exists or would result from such prepayment.

Section 7.54 (Limitation on Amendments to This Article). The Borrower will not, and will not permit any of its Restricted Subsidiaries to, directly or indirectly, amend, modify, supplement, restate, replace, waive, rescind, terminate or otherwise change, or enter into any agreement, arrangement, understanding or other transaction having the purpose or effect of amending, modifying, supplementing, restating, replacing, waiving, rescinding, terminating or otherwise changing, any term or provision of this Article, including any defined term used in this Article, in any manner that would (a) reduce, impair, delay, circumvent, eliminate or otherwise adversely affect any covenant, restriction, condition, prohibition or obligation contained in this Article, (b) expand any basket, threshold, exception, carve-out, allowance or other permitted amount or condition contained in this Article, (c) extend any period within which any action or condition required or permitted by this Article may be taken or satisfied, (d) change the basis upon which compliance with any provision of this Article is measured or determined, or (e) otherwise alter the interpretation or application of this Article in a manner adverse to the Administrative Agent or any Lender.

Without limiting the generality of the foregoing, the Borrower will not, and will not permit any of its Restricted Subsidiaries to, directly or indirectly, amend, modify, supplement, restate, replace, waive, rescind, terminate or otherwise change, or consent to or approve any amendment, modification, supplement, restatement, replacement, waiver, rescission, termination or other change of, any provision of its certificate of incorporation, by-laws, limited liability company agreement, partnership agreement, trust agreement or other organizational document, or any agreement, instrument, policy or other document, if such amendment, modification, supplement, restatement, replacement, waiver, rescission, termination or other change would (a) cause any Loan Party or any Restricted Subsidiary to fail to comply with any term or provision of this Article, (b) reduce or impair the ability of any Loan Party or any other Person to comply with any term or provision of this Article, (c) alter, reduce or eliminate any minimum capital and surplus requirement applicable to any insurance subsidiary of the Borrower or any of its Restricted Subsidiaries, (d) release, subordinate, terminate or otherwise impair any guarantee, collateral, security

interest or other credit support for the obligations under the Credit Agreement, or (e) otherwise materially impair the rights or remedies of the Administrative Agent, any Lender or any other Secured Party under the Credit Agreement or any other Loan Document.

Notwithstanding anything to the contrary in this Section, this Section shall not restrict (a) any amendment, modification, supplement, restatement, replacement, waiver, rescission, termination or other change to the Credit Agreement made in accordance with the terms of the Credit Agreement and effective as provided therein, or (b) any amendment, modification, supplement, restatement, replacement, waiver, rescission, termination or other change to any certificate of incorporation, by-laws, limited liability company agreement, partnership agreement, trust agreement or other organizational document, or any agreement, instrument, policy or other document that is not materially adverse to the Lenders and is otherwise permitted by the Credit Agreement. For the avoidance of doubt, the financial covenants set forth in Article VI may be amended, modified, supplemented, restated, replaced, waived, rescinded, terminated or otherwise changed only to the extent expressly permitted by the Credit Agreement, and nothing in this Section shall be deemed to permit any such change to be made without the consent of the Required Lenders or, if a greater percentage of Lenders is required by the Credit Agreement, such greater percentage of Lenders.

ARTICLE VIII. EVENTS OF DEFAULT

Section 8.01. Each of the following constitutes an Event of Default hereunder: (a) failure to pay any principal, interest or fees when due; (b) any representation or warranty proves to have been materially incorrect when made; (c) failure to comply with any covenant in Article V, VI or VII, subject to any applicable cure period; (d) a Change of Control (as defined in the Notes indenture, incorporated herein by cross-reference) occurs without the prior written consent of Lenders holding a majority of the Commitments; (e) a default under any other Indebtedness in excess of a specified threshold, including the Notes, resulting in acceleration or the right to accelerate; and (f) certain bankruptcy, insolvency or reorganization events with respect to the Borrower or a Significant Subsidiary. Upon an Event of Default, the Administrative Agent may, and at the request of Lenders holding a majority of the Commitments shall, terminate the Commitments and declare the Loans immediately due and payable.

Section 8.01(g). One or more final judgments for the payment of money in excess of the amount set forth on Schedule 8.01 shall be rendered against the Borrower or any Restricted Subsidiary and shall remain unsatisfied and unstayed for a period of 60 consecutive days.

Section 8.01(h). Any ERISA Event shall have occurred that, in the reasonable judgment of the Required Lenders, could reasonably be expected to result in a Material Adverse Effect.

Section 8.01(i). Any Loan Document, after delivery thereof, ceases to be in full force and effect, or any Loan Party denies in writing that it has any further liability under any Loan Document to which it is a party.

Section 8.01(j). Any Collateral Document, after delivery thereof, ceases to create a valid and perfected Lien on any material portion of the Collateral purported to be covered thereby, other than as a result of an act or omission of the Administrative Agent.

Section 8.01(k). Any Guarantor repudiates, purports to revoke, or fails to perform any material obligation under the Guarantee.

Section 8.01(l). The Borrower fails to comply, in any material respect, with Section 5.10 (Additional Guarantors; Collateral) within the period specified therein.

Section 8.02 (Remedies). In addition to, and not in limitation of, the acceleration remedy stated in Section 8.01 above, upon the occurrence and during the continuance of any Event of Default, the Administrative Agent may, and at the request of the Required Lenders shall, (a) terminate the Commitments, (b) declare the unpaid principal of and accrued interest on the Loans, and all other Obligations, to be immediately due and payable, (c) require the Borrower to cash-collateralize the LC Exposure, and (d) exercise any and all remedies available to it under the Collateral Documents or applicable law, subject in each case, upon the occurrence of an Event of Default under Section 8.01(f), to automatic acceleration and automatic termination of the Commitments without any further act of the Administrative Agent or any Lender.

Section 8.03 (Cross-Default to Hedging Obligations). The occurrence of any of the following events or conditions with respect to any Hedging Obligations of the Borrower or any Restricted Subsidiary shall constitute an Event of Default:

(a) any default, event of default, or similar condition shall occur under any Hedging Agreement to which the Borrower or any of its Restricted Subsidiaries is a party, and, as a result of such default, event of default, or similar condition, the counterparty thereunder shall have the right, with or without the giving of notice or the passage of time, to declare any amount payable by the Borrower or any Restricted Subsidiary under such Hedging Agreement to be due and payable prior to the date on which such amount would otherwise have become due and payable, to terminate such Hedging Agreement, or to require the Borrower or any Restricted Subsidiary to post collateral or other credit support in respect of its obligations under such Hedging Agreement, and the aggregate amount of all amounts that could be so declared due or required to be posted, without duplication, exceeds the Threshold Amount;

(b) the Borrower or any Restricted Subsidiary shall fail to make any payment or delivery when due under any Hedging Agreement to which it is a party, and such payment or delivery shall remain unpaid or undelivered for more than five Business Days after the date on which such payment or delivery was required to be made, giving effect to any applicable grace period set forth in such Hedging Agreement, if the aggregate amount of all such unpaid or undelivered payments or deliveries, without duplication, exceeds the Threshold Amount;

(c) any early termination amount, settlement amount, close-out amount, or other amount payable by the Borrower or any Restricted Subsidiary in respect of any Hedging Agreement shall become payable earlier than its scheduled payment date by reason of the designation of an early termination date or the occurrence of a termination event, event of default, or similar condition under such Hedging Agreement, and the aggregate amount of all such amounts, without duplication, exceeds the Threshold Amount;

(d) any Hedging Agreement shall be terminated, liquidated, or closed out in whole or in part by the relevant counterparty in accordance with its terms as a result of the occurrence of an event of default, termination event, or similar condition thereunder, and the net amount, if any, payable by the Borrower or any Restricted Subsidiary in connection with such termination, liquidation, or close-out, without duplication, exceeds the Threshold Amount; or

(e) any collateral, margin, or other credit support obligation of the Borrower or any Restricted Subsidiary under any Hedging Agreement or under any guarantee, pledge, security agreement, credit support document, or other

document or arrangement entered into in connection with any Hedging Agreement shall be required to be performed or satisfied and shall not be performed or satisfied within any applicable grace period, and the aggregate value of such collateral or other credit support obligations that are not so performed or satisfied, without duplication, exceeds the Threshold Amount.

Section 8.04 (Judicial or Regulatory Seizure of Assets). It shall constitute an Event of Default if any court, governmental, regulatory, administrative, or other authority, or any marshal, sheriff, receiver, trustee, examiner, liquidator, sequestrator, or similar official, shall have issued any writ, judgment, decree, order, warrant, levy, garnishment, attachment, execution, distraint, seizure, forfeiture, condemnation, expropriation, requisition, or other similar process or proceeding, whether judicial or regulatory, against any assets or properties of any Loan Party or any Subsidiary, or shall otherwise have taken possession, custody, or control of any such assets or properties, including any portion of the Collateral, and such process, proceeding, seizure, taking, possession, custody, or control shall not have been discharged, released, vacated, lifted, stayed, bonded, or otherwise cured or remedied, in each case, within thirty days of the commencement or entry thereof.

For purposes of this Section, the assets and properties of any Loan Party or Subsidiary shall include all assets and properties held directly or indirectly by such Person and all equity interests in any Subsidiary of such Loan Party, and the seizure of any such equity interest shall be deemed a seizure of assets of the relevant Person. No Event of Default shall be deemed to have occurred under this Section if the aggregate fair market value of all assets and properties subject to all such processes, proceedings, seizures, takings, possessions, custodial arrangements, or controls then outstanding does not exceed one hundred million dollars, unless such assets and properties constitute Collateral and the loss thereof could reasonably be expected to have a Material Adverse Effect. Any such process, proceeding, seizure, taking, possession, custody, or control that is being contested in good faith and by appropriate proceedings and with respect to which execution or enforcement is stayed, bonded, or otherwise suspended may remain outstanding beyond the thirty-day period described above for an additional period not exceeding sixty days, so long as the failure to discharge, release, vacate, lift, stay, bond, or otherwise cure or remedy such process, proceeding, seizure, taking, possession, custody, or control during such additional period could not reasonably be expected to result in a Material Adverse Effect.

Each Loan Party shall promptly, and in any event within two Business Days after obtaining knowledge thereof, notify the Administrative Agent in writing of the occurrence of any process, proceeding, seizure, taking, possession, custody, or control described in this Section; provided that any failure to give such notice shall not, in and of itself, constitute an Event of Default if such failure is not otherwise required to be remedied pursuant to any other provision of this Agreement.

Section 8.05 (Cessation of Business). The Borrower will not, and will not permit any of its Subsidiaries to, wind up, liquidate, dissolve, terminate, suspend, cease, abandon, discontinue, or otherwise cease to conduct all or any material portion of the business, operations, or affairs of the Borrower and its Subsidiaries, taken as a whole, and will not take any corporate or other action, or approve or adopt any plan, resolution, or arrangement, having a like effect, except:

(a) the winding up, liquidation, dissolution, termination, suspension, cessation, abandonment, or discontinuance of

any business, product line, service, facility, operation, or activity if, after giving effect thereto, the business, operations, or affairs of the Borrower and its Subsidiaries, taken as a whole, are not materially and adversely affected;

(b) the winding up, liquidation, or dissolution of any Subsidiary that is not a Loan Party, or of any Subsidiary that is a Loan Party to the extent permitted by the Credit Agreement;

(c) the winding up, liquidation, or dissolution of any Subsidiary that is dormant, inactive, or no longer has any material assets or liabilities, or of any Subsidiary that has been replaced or is no longer necessary for the operation of the business of the Borrower and its Subsidiaries, taken as a whole;

(d) the sale, transfer, conveyance, lease, or other disposition of all or any portion of the assets or equity interests of any Subsidiary, or of any division, line of business, product line, or facility, to the extent permitted by the Credit Agreement;

(e) any suspension, cessation, or termination of operations at any facility or location for the purpose of maintenance, repair, replacement, expansion, turnaround, inspection, upgrade, demolition, decommissioning, or similar activities, or as a result of any breakdown, accident, casualty, sabotage, cyberattack, act of God, force majeure event, strike, lockout, labor dispute, governmental order, condemnation, seizure, requisition, or other similar event, in each case for so long as the Borrower and its Subsidiaries are using commercially reasonable efforts to resume or restore the affected operations promptly;

(f) any action taken in compliance with, or required by, any Governmental Authority pursuant to any Law, regulation, rule, order, decree, judgment, permit, license, or other authorization, or taken to protect the health or safety of any Person or the environment, in each case to the extent the resulting cessation, suspension, winding-up, liquidation, dissolution, or discontinuance is limited to the minimum scope and duration necessary to comply with such requirement or to achieve such protection;

(g) any merger, consolidation, amalgamation, reorganization, restructuring, division, conversion, domestication, or continuance of the Borrower into, in, or under another jurisdiction, or of any Subsidiary into, in, or under another jurisdiction, in each case to the extent permitted by the Credit Agreement, and in any such transaction involving the Borrower, the surviving, resulting, or successor Person assumes all of the obligations of the Borrower under the Credit Agreement and the other Loan Documents; and

(h) any other cessation, suspension, winding-up, liquidation, dissolution, discontinuance, or abandonment if the Borrower determines in good faith that such action is in the best interests of the Borrower and its Subsidiaries, taken as a whole, and such action could not reasonably be expected to have a Material Adverse Effect.

Section 8.06 (Invalidity of Subordination Provisions). (a) To the fullest extent permitted by applicable law, each Guarantor subordinates to the prior payment in full of the Obligations all rights, claims, and interests that such Guarantor may now or hereafter have against any other Loan Party or any of its properties, whether arising by subrogation, contribution, indemnification, reimbursement, or otherwise.

(b) Upon the occurrence and during the continuance of any Event of Default, no Guarantor shall demand, accept, or retain any payment, distribution, or other benefit with respect to any such right, claim, or interest, and any payment, distribution, or other benefit received by any Guarantor with respect to any such right, claim, or interest while any

Event of Default is continuing shall be held in trust for the benefit of the Secured Parties and shall promptly be paid over to the Administrative Agent for the benefit of the Secured Parties to be applied to the Obligations in accordance with the Credit Agreement.

(c) If any court or other governmental authority of competent jurisdiction shall determine, in a final and nonappealable order, that any provision of this Section or any other provision of any Loan Document subordinating any such right, claim, or interest is invalid, illegal, or unenforceable in whole or in part, then such determination shall not affect the validity or enforceability of the remaining provisions of this Section or of any other Loan Document. To the extent of any such invalidity, illegality, or unenforceability, each such right, claim, or interest shall nevertheless be deemed to be held in trust for the benefit of the Secured Parties, and each Guarantor shall, as promptly as practicable after receipt thereof, pay over and deliver to the Administrative Agent for the benefit of the Secured Parties any cash, securities, or other property received, recovered, or otherwise realized on account of such right, claim, or interest, to be applied by the Administrative Agent toward the Obligations in accordance with the Credit Agreement.

(d) Each Guarantor shall execute and deliver such further instruments and take such further actions as the Administrative Agent may reasonably request to evidence, perfect, or otherwise protect the Secured Parties' trust interest in any cash, securities, or other property described in paragraph (c) of this Section, and no Guarantor shall take any action, or fail to take any action, that would diminish or impair the value of any such trust. Each Guarantor shall indemnify and hold harmless the Administrative Agent and the Secured Parties from and against any loss, cost, or expense incurred as a result of any Guarantor's failure to comply with this Section.

(e) The subordination effected by this Section is intended solely for the benefit of the Secured Parties and shall not give any other Person any right or defense. The provisions of this Section are supplemental to, and not in limitation of, any other subordination, payment, or trust provision contained in any Loan Document, and shall survive the execution and delivery of the Loan Documents.

Section 8.07 (Impairment of Security Interests). Each Grantor hereby covenants and agrees that it shall not, and shall not permit any of its Subsidiaries to, take any action, or fail to take any action, that would result in the impairment of the validity, perfection, enforcement, or priority of the security interests and Liens created, purported to be created, or intended to be created under the Security Documents, except as expressly permitted by the Credit Agreement. Without limiting the generality of the foregoing, each Grantor shall:

(a) defend the Collateral and the security interests and Liens of the Administrative Agent and the Secured Parties in the Collateral against all claims and demands of any Person, other than Permitted Liens and other than claims and demands that are being contested in good faith by appropriate proceedings promptly commenced and diligently conducted, against which adequate reserves or other provisions are being maintained in accordance with GAAP, and with respect to which no Lien on any Collateral is materially impaired or the priority of any such Lien is materially adversely affected pending such contest;

(b) at its sole cost and expense, do all acts and execute and deliver all documents and instruments, including financing statements, continuation statements, amendments, assignments, certificates, control agreements, mortgages, deeds of trust, deeds of trust amendments, landlord consents, bailee waivers, collateral access

agreements, and other documents, in each case in form and substance reasonably satisfactory to the Administrative Agent, as the Administrative Agent may reasonably request from time to time to create, perfect, protect, preserve, continue, or maintain the perfection and priority of the security interests and Liens in the Collateral and to fulfill the intended purposes of the Security Documents, subject to Permitted Liens and other exceptions expressly permitted by the Credit Agreement;

(c) promptly, but in any event within ten Business Days after the occurrence of any change in its name, identity, corporate structure, jurisdiction of organization, location of its chief executive office, or location of any Collateral, notify the Administrative Agent thereof and, at the request of the Administrative Agent, deliver such financing statements, amendments, certificates, and other documents as may be necessary or advisable to maintain the validity, perfection, and priority of the security interests and Liens in favor of the Administrative Agent; provided that no such notice or delivery shall be required if such change could not reasonably be expected to impair the validity, perfection, or priority of a security interest in any material portion of the Collateral;

(d) with respect to any real property that constitutes Collateral, upon the reasonable request of the Administrative Agent, deliver or cause to be delivered mortgages, deeds of trust, deeds of trust amendments, and other real property security documents, together with title insurance commitments or policies, surveys, legal opinions, and other deliverables, in each case as the Administrative Agent may reasonably request, within thirty days after such request or such longer period as the Administrative Agent may agree in its reasonable discretion, to the extent such delivery is necessary or advisable to perfect or protect the security interest of the Administrative Agent in such real property; provided that no such delivery shall be required with respect to any real property unless the failure to deliver would reasonably be expected to impair the validity, perfection, or priority of a security interest in a material portion of the Collateral;

(e) with respect to any material intellectual property constituting Collateral, take all actions necessary or advisable to maintain, protect, and preserve its rights in such intellectual property and to ensure that the security interests therein remain perfected, including the prompt filing with the United States Patent and Trademark Office, the United States Copyright Office, and any applicable foreign registry of the appropriate assignments, security interest filings, and recordations as may be required under applicable law or as the Administrative Agent may reasonably request, and shall not take or omit to take any action that would abandon, forfeit, or materially impair any material right in such intellectual property, except as expressly permitted by the Credit Agreement;

(f) with respect to any deposit accounts, securities accounts, commodities accounts, or other investment property constituting Collateral, upon the reasonable request of the Administrative Agent, deliver or cause to be delivered to the Administrative Agent control agreements or other instruments, in form and substance reasonably satisfactory to the Administrative Agent, duly executed by the applicable Grantor and the applicable depositary bank, securities intermediary, commodities intermediary, or other holder of such Collateral, within thirty days after such request; provided that no such delivery shall be required unless the failure to deliver would reasonably be expected to impair the validity, perfection, or priority of a security interest in a material portion of the Collateral;

(g) not permit or suffer any of the Collateral to be sold, transferred, assigned, leased, subleased, licensed, or otherwise disposed of, except as expressly permitted by the Credit Agreement, and not permit or suffer any Lien,

other than Permitted Liens, to be created on or to attach to any Collateral; and

(h) if any Collateral is in the possession of any third party, upon the reasonable request of the Administrative Agent, use commercially reasonable efforts to obtain customary acknowledgments, bailee waivers, landlord consents, and collateral access agreements, in form and substance reasonably satisfactory to the Administrative Agent, with respect to such Collateral within thirty days after such request, unless the failure to obtain such acknowledgment, waiver, or consent could not reasonably be expected to impair the validity, perfection, or priority of a security interest in a material portion of the Collateral.

Without limiting the foregoing, upon the acquisition by any Grantor of any property, including any capital stock, equity interest, or debt obligation issued by any Person, any accounts, deposit accounts, securities accounts, commodities accounts, or any real or personal property, that under the terms of the Security Documents or the Credit Agreement is required to be included in the Collateral for the Secured Obligations, such Grantor shall, at its own expense, take all action as the Administrative Agent may reasonably request to cause such property to be subjected to the valid, perfected security interest and Lien, in each case subject to Permitted Liens, in favor of the Administrative Agent for the benefit of the Secured Parties, including delivering to the Administrative Agent all certificates, instruments, assignments, undated stock powers, financing statements, control agreements, mortgages, surveys, title insurance, and legal opinions reasonably requested by the Administrative Agent.

Each Grantor hereby authorizes the Administrative Agent, without the signature of any Grantor, to file any initial financing statements, amendments, assignments, continuation statements, and other filings or records deemed by the Administrative Agent to be necessary or appropriate to perfect, protect, or continue the perfection of the Liens granted by the Security Documents, and each Grantor shall pay all costs and expenses in connection with such filings and recordings.

Nothing in this Section shall require any Grantor to take any action, or refrain from taking any action, if such action or failure to act would violate applicable law or any contractual obligation existing on the date of this Agreement or permitted by the Credit Agreement. The Administrative Agent and the Secured Parties shall have no duty to protect, preserve, enforce, or realize upon any Collateral or to exercise any rights or remedies with respect to any Collateral, and no such duty shall be implied by law, except for the duty to exercise reasonable care in the custody and preservation of Collateral in the Administrative Agent's possession to the extent required by the Uniform Commercial Code as in effect in the applicable jurisdiction.

Section 8.08 (Change of Control Under This Agreement). (a) The Borrower shall not, and shall not permit any of its Restricted Subsidiaries to, directly or indirectly, cause, permit, or suffer to exist a Change of Control. Without limiting the generality of the foregoing, neither the Borrower nor any Restricted Subsidiary shall enter into, effect, or consummate any merger, consolidation, amalgamation, share exchange, business combination, recapitalization, reclassification, reorganization, sale, transfer, lease, assignment, disposition, dividend, distribution, issuance, or other transaction or event if such transaction or event would result in a Change of Control.

(b) If a Change of Control occurs, the Borrower shall, no later than the third Business Day after the date of such Change of Control, deliver to the Administrative Agent and each Lender a written notice setting forth in reasonable detail the nature and date of such Change of Control and the actions, if any, that the Borrower proposes to take in

respect thereof, and shall offer to prepay all outstanding Loans in accordance with this Section.
(c) Each Lender shall have the right, for a period of ten Business Days after receipt of the notice described in paragraph (b) of this Section, to accept such offer by delivering written acceptance to the Borrower and the Administrative Agent. Upon the expiration of such ten Business Day period, the Borrower shall, on a date not later than the third Business Day after such expiration, prepay in full all Loans of each Lender that has accepted such offer, together with all accrued and unpaid interest to the date of prepayment and all other amounts due and payable under the Loan Documents in respect of such Loans, at a prepayment price equal to one hundred one percent of the aggregate principal amount of such Loans.
(d) The Commitments of each Lender whose Loans are so prepaid shall automatically and permanently terminate and be reduced to zero, and the Borrower shall pay to each such Lender all accrued and unpaid commitment fees and letter of credit participation fees, if any, owing to such Lender as of the date of such prepayment.
(e) On or before the date of any prepayment required by this Section, the Borrower shall deposit with the Administrative Agent an amount equal to one hundred five percent of the aggregate undrawn face amount of all Letters of Credit then outstanding, plus all accrued and unpaid fees and charges in respect thereof, to be held as cash collateral in accordance with the provisions of the Loan Documents. Such cash collateral shall be applied to the reimbursement of draws under such Letters of Credit and to the payment of any other obligations in respect thereof, with any surplus returned to the Borrower after all such Letters of Credit have been cash collateralized and all related obligations have been discharged.
(f) Any Lender that does not accept such offer within the ten Business Day period described in paragraph (c) of this Section shall continue to hold its Loans and Commitments in accordance with the terms of this Agreement. The failure of the Borrower to make any prepayment required by this Section shall constitute an immediate Event of Default under the Loan Documents. No acceptance or prepayment under this Section shall be deemed to waive any Event of Default or any right of the Administrative Agent or any Lender to exercise any remedy available under the Loan Documents, except to the extent such prepayment has actually been made in full.
Section 8.09 (Notice of Default; Cure Rights). (a) Each Loan Party shall, within three Business Days after a responsible officer of such Loan Party obtains actual knowledge of the occurrence of any Default or Event of Default, deliver to the Administrative Agent a written notice specifying the nature and period of existence of such Default or Event of Default and the action that such Loan Party is taking or proposes to take to cure such Default or Event of Default. The Administrative Agent shall, promptly after receipt of any such notice, deliver a copy of such notice to each Lender. The Borrower shall deliver to the Administrative Agent, together with such notice, a description of any actions taken or proposed to be taken to remedy such Default or Event of Default, and the Borrower shall keep the Administrative Agent and the Lenders reasonably informed of the progress of such actions.
(b) The Administrative Agent shall not be deemed to have knowledge or notice of the occurrence of any Default or Event of Default unless a responsible officer of the Administrative Agent has received written notice from any Loan Party or any Lender referring to this Agreement and describing such Default or Event of Default. The Administrative Agent shall have no obligation to inquire of any Loan Party or any Lender as to the occurrence of any Default or Event of Default. In the absence of written notice from the Required Lenders directing the taking of any particular

action, the Administrative Agent may take any action, or refrain from taking any action, with respect to any Default or Event of Default as the Administrative Agent in its sole discretion determines to be consistent with this Agreement and the other Loan Documents; provided that the Administrative Agent shall not be liable to any Person for any action taken or omitted to be taken with respect to such Default or Event of Default, except for gross negligence or willful misconduct.

(c) Without limiting the provisions of paragraph (a), if any Default or Event of Default arises solely from the failure of the Borrower and its Subsidiaries on a consolidated basis to comply with any financial covenant set forth in Article VI for any applicable test period, such Default or Event of Default shall be deemed not to have occurred, and shall be deemed cured, if the Borrower shall have exercised, in accordance with and within the time period expressly provided in Article VI, any cure right available to the Borrower under Article VI with respect to such financial covenant. The Borrower shall, no later than the date on which notice of such Default or Event of Default is required to be delivered under paragraph (a), deliver to the Administrative Agent a certificate of a responsible officer of the Borrower certifying that the Borrower has exercised, or is exercising, such cure right in accordance with Article VI and describing in reasonable detail the manner in which the cure has been effected.

(d) The exercise or availability of any cure right described in paragraph (c) shall not prevent the Required Lenders from exercising any right or remedy available to them under this Agreement or any other Loan Document with respect to any other Default or Event of Default, and no cure shall waive, amend or otherwise affect any provision of this Agreement or any other Loan Document or constitute a waiver of any Default or Event of Default other than the specific Default or Event of Default so cured. Upon the cure of any Default or Event of Default in accordance with this Section, such Default or Event of Default shall cease to exist and the Administrative Agent shall so notify the Lenders, but no such notice shall be a condition to the effectiveness of such cure.

Section 8.10 (Application of Proceeds Following Acceleration). Upon the occurrence of an Event of Default and the acceleration of the Obligations, whether by declaration of the Administrative Agent or by the operation of this Agreement, all proceeds of the Collateral received by the Administrative Agent and all other payments received by the Administrative Agent from or on behalf of any Credit Party after such acceleration in respect of the Obligations shall be applied by the Administrative Agent in the following order:

First, to payment of that portion of the Obligations constituting fees, expenses, indemnities and other amounts payable to the Administrative Agent in its capacity as such, including the reasonable and documented out-of-pocket fees, costs and expenses of counsel and other advisors to the Administrative Agent and all reasonable and documented out-of-pocket costs and expenses incurred by the Administrative Agent in connection with the enforcement of this Agreement and any other Loan Document, the preservation, sale, collection, liquidation, foreclosure or other realization upon any Collateral and the protection of the rights and remedies of the Secured Parties;

Second, to payment of that portion of the Obligations constituting fees, expenses, indemnities and other amounts, other than principal, interest and letter of credit obligations, payable to the Lenders, the Issuing Banks and the Swingline Lender in their respective capacities as such, including the reasonable and documented out-of-pocket fees, costs and expenses of counsel and other advisors to the Lenders, the Issuing Banks and the Swingline Lender,

ratably among the Lenders, the Issuing Banks and the Swingline Lender in proportion to the respective amounts of such fees, expenses, indemnities and other amounts then due and payable to them;

Third, to payment of that portion of the Obligations constituting accrued and unpaid interest on the Loans, the Swingline Loans, the L/C Obligations, the Hedging Obligations and the Cash Management Obligations, ratably among the Secured Parties in proportion to the respective amounts of such accrued and unpaid interest then due and payable to them;

Fourth, to payment of that portion of the Obligations constituting unpaid principal of the Loans and the Swingline Loans and that portion of the L/C Obligations constituting reimbursement obligations in respect of drawings under Letters of Credit and, without duplication, the payment or cash collateralization of the undrawn amount of all outstanding Letters of Credit in an amount equal to one hundred percent of such undrawn amount, ratably among the Lenders, the Issuing Banks and the Swingline Lender in proportion to the respective amounts of such unpaid principal, reimbursement obligations and undrawn letter of credit amounts then held by them, and any amounts so paid or cash collateralized with respect to undrawn Letters of Credit shall be held by the Administrative Agent, for the benefit of the Issuing Banks and the other Secured Parties, as cash collateral to secure the Obligations in respect of such Letters of Credit and shall be applied to payments of obligations under such Letters of Credit as and when the same become due and payable;

Fifth, to payment of all other Obligations then due and payable, including all premiums, make-whole amounts, breakage costs, indemnities and other amounts payable under the Loan Documents and all Hedging Obligations and Cash Management Obligations not paid pursuant to the Third and Fourth priorities of this Section, ratably among the Secured Parties in proportion to the respective amounts of such other Obligations then due and payable to them; and

Last, to the extent of any surplus after the payment in full of all Obligations, to the Credit Parties or as otherwise required by applicable law, and any such surplus shall be paid to such Credit Parties or to whomsoever may be lawfully entitled to receive such surplus.

Each Secured Party, by accepting the benefits of this Agreement and the other Loan Documents, agrees that any payment or other recovery received by such Secured Party in respect of the Obligations after the acceleration of the Obligations otherwise than in accordance with this Section shall be held in trust for the benefit of the Administrative Agent and the other Secured Parties and shall be immediately paid over to the Administrative Agent to be applied in accordance with this Section.

Section 8.11 (Rescission of Acceleration). The Required Lenders may, by written notice to the Administrative Agent, rescind and annul any acceleration of the Obligations and any related termination of the Commitments effected by the Administrative Agent or the Lenders pursuant to Section 8.10, as well as any exercise of remedies with respect to the Collateral that was based upon such acceleration, if, at or before the time of such rescission, each of the following conditions is satisfied: (a) no Obligations shall have been paid, satisfied or discharged as a result of such acceleration or any related exercise of remedies, and no proceeds of any Collateral shall have been applied to the payment of any of the Obligations; (b) no final, nonappealable judgment or decree shall have been entered against the Borrower or any other Loan Party with respect to the payment of any of the Obligations; (c) all Events of Default that existed at the time of such acceleration and all Events of Default that have occurred and are continuing

on the date of such rescission shall have been cured or waived in accordance with the terms of this Agreement, other than any Event of Default consisting solely of the failure to pay principal of any Loan that became due and payable solely by reason of such acceleration and that would not have been due and payable but for such acceleration; (d) no Default or Event of Default, other than an Event of Default described in paragraph (c) of this Section, shall have occurred and be continuing on the date of such rescission; (e) the Borrower shall have paid, or caused to be paid, to the Administrative Agent for the ratable account of the applicable Lenders all accrued and unpaid interest, fees, expenses and other amounts, other than principal of the Loans that became due solely by reason of such acceleration, that would have been due and payable under the Loan Documents on or before the date of such rescission if such acceleration had not occurred; (f) the Borrower shall have paid, or caused to be paid, all reasonable and documented out-of-pocket expenses, including reasonable and documented fees, charges and disbursements of counsel, incurred by the Administrative Agent, the Collateral Agent and the Lenders in connection with the enforcement and protection of their rights under the Loan Documents, to the extent required by the Loan Documents; and (g) the Administrative Agent shall have received such other documents, instruments and evidence as the Administrative Agent or the Required Lenders may reasonably request to confirm the satisfaction of the conditions set forth in this Section.

Upon any such rescission and annulment by the Required Lenders, the maturity and repayment schedule of the Loans shall be reinstated as in effect immediately prior to such acceleration, the Commitments shall be reinstated as in effect immediately prior to such termination, and all rights, powers, privileges and remedies of the Administrative Agent, the Collateral Agent and the Lenders under the Loan Documents with respect to the Obligations shall be restored to their former status as if no such acceleration or termination had occurred, and thereafter, the Loans, the Commitments and all such rights, powers, privileges and remedies shall continue in full force and effect and shall not be affected or impaired by such rescission and annulment.

Any rescission and annulment of acceleration pursuant to this Section shall not extend to or affect any subsequent Default or Event of Default or impair any right consequent thereon, and shall not constitute a waiver of any Default or Event of Default or of any other right or remedy of the Administrative Agent, the Collateral Agent or any Lender under the Loan Documents or applicable law. The rights of the Required Lenders to rescind and annul acceleration pursuant to this Section are in addition to, and not in limitation of, any rights of the Required Lenders to waive any Default or Event of Default in accordance with the terms of this Agreement.

Section 8.12 (Remedies Cumulative; No Election). The rights, powers, and remedies of the Administrative Agent and each Secured Party under this Credit Agreement and the other Loan Documents shall be cumulative and not exclusive of any rights, powers, or remedies that the Administrative Agent or any Secured Party may have at law or in equity, by contract, under any applicable law, or otherwise. Each such right, power, or remedy may be availed of from time to time, may be exercised concurrently or independently, and shall be in addition to every other right, power, or remedy available to the Administrative Agent or any Secured Party, whether under this Credit Agreement, any other Loan Document, at law, in equity, or otherwise, and regardless of whether any other right, power, or remedy has been or may be exercised.

No course of dealing and no delay or omission on the part of the Administrative Agent or any Secured Party in

exercising any right, power, or remedy shall operate as a waiver thereof or otherwise prejudice the Administrative Agent's or such Secured Party's ability to exercise such right, power, or remedy at any subsequent time. No single or partial exercise of any right, power, or remedy shall preclude any further exercise thereof or the exercise of any other right, power, or remedy. The failure of the Administrative Agent or any Secured Party to insist upon strict performance of any provision of this Credit Agreement or any other Loan Document or to exercise any right, power, or remedy consequent upon a Default or an Event of Default shall not constitute a waiver of such provision, right, power, or remedy or a waiver of any Default or Event of Default, and no waiver by the Administrative Agent or any Secured Party of any provision, right, power, or remedy shall be effective unless it is in writing, signed by the party against whom such waiver is sought to be enforced, and then only to the extent expressly set forth in such writing. The exercise by the Administrative Agent or any Secured Party of any right, power, or remedy shall not be deemed to be an election of remedies, and no doctrine of election of remedies, election of actions, res judicata, estoppel, or similar principle of law or equity shall be asserted or available against the Administrative Agent or any Secured Party by reason of, or in connection with, any exercise of, or failure to exercise, any right, power, or remedy. No right, power, or remedy of the Administrative Agent or any Secured Party shall be deemed to be exhausted or impaired by any course of dealing, by any single or partial exercise, by any failure or delay to exercise, or by any other act or omission, and no action taken by the Administrative Agent or any Secured Party in connection with any Default or Event of Default shall be deemed to cure such Default or Event of Default or to waive, release, or otherwise affect any other obligation of any Credit Party or any other Obligor under this Credit Agreement or any other Loan Document.

Without limiting the generality of the foregoing, the Administrative Agent and each Secured Party may pursue any of their respective rights, powers, and remedies against any Obligor, any Guarantor, any Credit Party, or any Collateral at any time and from time to time without thereby waiving, releasing, or impairing any other right, power, or remedy, discharging or reducing the Obligations or any liability of any Obligor, Guarantor, or Credit Party, releasing any Collateral or any Lien on any Collateral, affecting the validity, enforceability, or priority of any Lien, or requiring the Administrative Agent or any Secured Party to marshal assets or otherwise exhaust any Collateral or to pursue any particular remedy, whether at law or in equity, before seeking to enforce any other remedy, and any failure to marshal or exhaust shall not be asserted as a defense to any action or proceeding brought by the Administrative Agent or any Secured Party.

The terms of this Section shall not be construed to impose on the Administrative Agent or any Secured Party any duty or obligation to exercise any right, power, or remedy, or to prescribe the order in which any such right, power, or remedy shall be exercised. The Administrative Agent and the Lenders may exercise one or more remedies simultaneously or successively, and may determine, in their sole discretion, the order and manner in which to proceed against any Obligor, Guarantor, Credit Party, or Collateral. No remedy provided in this Credit Agreement or any other Loan Document shall be exclusive of any other remedy provided herein or therein or available at law or in equity, and no provision of this Credit Agreement or any other Loan Document shall be construed to require the Administrative Agent or any Secured Party to pursue a particular remedy before pursuing another remedy. All rights, powers, and remedies of the Administrative Agent and the Secured Parties shall continue in full force and effect until

the Obligations have been paid in full in cash and all Commitments have terminated, and no failure or delay in exercising any such right, power, or remedy on or prior to such date shall operate as a waiver thereof.

ARTICLE IX. THE ADMINISTRATIVE AGENT

Section 9.01 (Appointment and Authorization). Each Lender irrevocably appoints the Administrative Agent to act on its behalf as administrative agent under the Loan Documents and authorizes the Administrative Agent to take such actions and exercise such powers as are delegated to it under the Loan Documents, together with such actions and powers as are reasonably incidental thereto.

Section 9.02 (Rights as a Lender). The Person serving as Administrative Agent has the same rights and powers under the Loan Documents in its capacity as a Lender as any other Lender, and may exercise such rights and powers as though it were not the Administrative Agent, including accepting deposits from, and generally engaging in any kind of business with, the Borrower or any Affiliate thereof.

Section 9.03 (Exculpatory Provisions). The Administrative Agent shall not have any duties or obligations except those expressly set forth in the Loan Documents, and its duties are administrative in nature. The Administrative Agent shall not be liable for any action taken or not taken by it in the absence of its own gross negligence or willful misconduct, as determined by a final, non-appealable judgment of a court of competent jurisdiction.

Section 9.04 (Reliance by Administrative Agent). The Administrative Agent may rely, and shall be fully protected in relying, upon any writing, notice, resolution or other document believed by it in good faith to be genuine and to have been signed by the proper Person, and may consult with legal counsel, independent accountants and other experts selected by it.

Section 9.05 (Delegation of Duties). The Administrative Agent may perform any of its duties under the Loan Documents by or through agents, employees or attorneys-in-fact and shall not be responsible for the negligence or misconduct of any such agent or attorney-in-fact selected by it with reasonable care.

Section 9.06 (Resignation of Administrative Agent). The Administrative Agent may resign upon 30 days' prior written notice to the Lenders and the Borrower. Upon any such resignation, the Required Lenders shall have the right to appoint a successor, subject to the Borrower's consent (not to be unreasonably withheld) so long as no Event of Default under Section 8.01(a) or (f) has occurred and is continuing.

Section 9.07 (Non-Reliance on Administrative Agent and Other Lenders). Each Lender acknowledges that it has, independently and without reliance upon the Administrative Agent or any other Lender, made its own credit analysis and decision to enter into this Agreement, and will continue to make its own credit decisions in taking or not taking action under the Loan Documents.

Section 9.08 (Indemnification of Administrative Agent). The Lenders agree to indemnify the Administrative Agent, ratably according to their respective Commitments, for any losses, costs or expenses incurred by the Administrative Agent in connection with the Loan Documents, except to the extent resulting from the Administrative Agent's own gross negligence or willful misconduct as determined by a final, non-appealable judgment of a court of competent jurisdiction.

Section 9.09 (No Reliance on Administrative Agent's Customer Identification Program). Each Lender acknowledges that it is solely responsible for its own compliance with applicable know-your-customer and anti-money laundering

rules and regulations, and shall not rely on any due diligence performed by the Administrative Agent with respect to any Loan Party.

Section 9.10 (Administrative Agent May File Proofs of Claim). In case of the pendency of any Insolvency Proceeding with respect to any Loan Party, the Administrative Agent shall be entitled to file such proofs of claim and other papers as may be necessary to allow the claims of the Lenders and the Administrative Agent to be allowed in such Insolvency Proceeding.

Section 9.11 (Collateral and Guarantee Matters). Each Lender irrevocably authorizes the Administrative Agent to release any Lien on any Collateral, or to release any Guarantor from the Guarantee, in each case that is sold, transferred or disposed of in a transaction permitted by Section 7.04 or 7.05, or otherwise ceases to constitute Collateral or a Guarantor in accordance with the terms of the Loan Documents, without further consent of or notice to any Lender.

Section 9.12 (Erroneous Payments; Administrative Agent's Rights). Without limiting Section 2.14, each Lender and the Issuing Bank agrees that the Administrative Agent may, in its discretion, deduct any Erroneous Payment from amounts otherwise payable to such Lender or the Issuing Bank under this Agreement, and each Lender and the Issuing Bank grants the Administrative Agent a security interest in any such amounts to secure the return obligation described in Section 2.14.

Section 9.13 (Certain ERISA Matters). The Borrower represents and warrants to the Administrative Agent and each Lender that:

(a) Each Plan is in compliance in all material respects with ERISA, the Code, and all other applicable federal, state, local, and non-United States laws, rules, and regulations relating to employee benefit plans, except where the failure to comply, individually or in the aggregate, could not reasonably be expected to result in a Material Adverse Effect. Each Plan that is intended to be qualified under the Code has received a favorable determination letter or opinion letter from the Internal Revenue Service upon which the applicable Plan is entitled to rely, and, to the knowledge of the Borrower, nothing has occurred since the date of such letter that could reasonably be expected to cause such Plan to lose its qualification.

(b) No ERISA Event has occurred or, to the knowledge of the Borrower, is reasonably expected to occur with respect to any Plan, other than any ERISA Event that, individually or in the aggregate, could not reasonably be expected to result in a Material Adverse Effect or in the imposition of a lien on any asset of any Loan Party.

(c) No prohibited transaction, within the meaning of ERISA or the Code, and no breach of fiduciary duty under ERISA has occurred or, to the knowledge of the Borrower, is reasonably expected to occur with respect to any Plan, other than any prohibited transaction or breach of fiduciary duty that, individually or in the aggregate, could not reasonably be expected to result in a Material Adverse Effect.

(d) With respect to each Plan, if any, that is subject to Title Four of ERISA, no liability under Title Four of ERISA has been or, to the knowledge of the Borrower, is reasonably expected to be incurred by the Borrower or any ERISA Affiliate, no proceeding has been commenced or, to the knowledge of the Borrower, is threatened by the Pension Benefit Guaranty Corporation to terminate any such Plan, and no condition exists that, to the knowledge of the Borrower, could reasonably be expected to constitute grounds for the termination of any such Plan by the Pension

Benefit Guaranty Corporation, other than any liability, proceeding, or condition that, individually or in the aggregate, could not reasonably be expected to result in a Material Adverse Effect.

(e) Neither the Borrower nor any ERISA Affiliate has withdrawn from any Multiemployer Plan or incurred any withdrawal liability with respect to any Multiemployer Plan, and, to the knowledge of the Borrower, no event or circumstance has occurred or exists that could reasonably be expected to result in the withdrawal from, or the imposition of withdrawal liability with respect to, any Multiemployer Plan, other than any withdrawal or withdrawal liability that, individually or in the aggregate, could not reasonably be expected to result in a Material Adverse Effect.

(f) Neither the Borrower nor any ERISA Affiliate has, during the six-year period preceding the Closing Date, engaged in any transaction or taken any action that could reasonably be expected to result in the imposition of a lien on any asset of the Borrower or any Restricted Subsidiary under ERISA or the Code, and no such lien has been imposed, other than any lien that, individually or in the aggregate, could not reasonably be expected to result in a Material Adverse Effect.

(g) Neither the Borrower nor any Restricted Subsidiary maintains or has any obligation to maintain, or contributes or has any obligation to contribute to, any employee welfare benefit plan that provides post-retirement health, medical, life insurance, or similar benefits to current or former directors, officers, employees, or consultants, other than (i) plans required by applicable law, (ii) plans with respect to which all obligations have been fully accrued in accordance with generally accepted accounting principles, and (iii) plans the obligations under which could not reasonably be expected to result in a Material Adverse Effect.

(h) Each Non-U.S. Plan is in material compliance with all applicable local laws, regulations, and governmental orders, and all contributions, premiums, and benefit payments required to be made with respect to each Non-U.S. Plan have been made when due, except in each case where the failure to comply or to make such contributions, premiums, or benefit payments, individually or in the aggregate, could not reasonably be expected to result in a Material Adverse Effect.

(i) No Plan has an accumulated funding deficiency, no funding waiver has been granted or requested with respect to any Plan, and no Plan is in at-risk status, as such terms are defined or used in ERISA or the Code, other than any accumulated funding deficiency, funding waiver, or at-risk status that, individually or in the aggregate, could not reasonably be expected to result in a Material Adverse Effect.

Section 9.14 (Titled Agents; Bookrunners). (a) Appointment and Authorization. Each Lender, each Issuing Bank, and the Swingline Lender hereby irrevocably designates and appoints each Person identified as a Titled Agent on the signature pages to this Credit Agreement or in any commitment letter, engagement letter, or other writing accepted by the Borrower and such Person, in such Person's capacity as a Titled Agent, as a Titled Agent for the purposes of this Credit Agreement. Each Titled Agent, by accepting such designation, shall be entitled to all of the rights, privileges, protections, and immunities granted to the Administrative Agent under this Article, and no Titled Agent shall have any duties, responsibilities, or liabilities under this Credit Agreement or any other Loan Document in its capacity as a Titled Agent, except as expressly set forth in a separate writing signed by such Titled Agent.

(b) Titles of Titled Agents; Bookrunners. The Persons identified as joint lead arrangers, joint bookrunners, co-lead

arrangers, co-bookrunners, syndication agents, co-syndication agents, documentation agents, co-documentation agents, and any other comparable titled agents on the cover page, on the signature pages, or in any commitment letter or engagement letter relating to this Credit Agreement are referred to collectively as the Titled Agents. The Persons identified as joint lead arrangers, joint bookrunners, co-lead arrangers, and co-bookrunners in any such cover page, signature pages, commitment letter, or engagement letter are referred to collectively as the Bookrunners. Such titles are solely honorary and confer no duties, responsibilities, obligations, or liabilities of any kind. No Titled Agent and no Bookrunner shall, in its capacity as a Titled Agent or Bookrunner, as applicable, be deemed to be an agent, fiduciary, or trustee of any Lender, the Administrative Agent, any Issuing Bank, the Swingline Lender, any Loan Party, or any other Person. No Titled Agent and no Bookrunner shall have any right to vote or to consent to any amendment, waiver, or other action under this Credit Agreement solely by reason of its designation as a Titled Agent or Bookrunner, and no Titled Agent and no Bookrunner shall be obligated to advance funds, make loans, issue letters of credit, purchase participations, or otherwise commit or risk its own funds in its capacity as a Titled Agent or Bookrunner.

(c) No Monitoring or Enforcement Duties. No Titled Agent and no Bookrunner shall have any duty to monitor, verify, or enforce compliance by any Loan Party with the provisions of this Credit Agreement or any other Loan Document, including the financial covenants set forth in Article VI, and no Titled Agent and no Bookrunner shall be deemed to have notice or knowledge of any Default or Event of Default unless a written notice specifically describing such Default or Event of Default has been delivered to such Titled Agent or Bookrunner by the Borrower, the Administrative Agent, or any Lender. No Titled Agent and no Bookrunner shall be required to ascertain or to take any action with respect to any Default or Event of Default, and no Titled Agent and no Bookrunner shall be liable to any Person for any failure to take any such action.

(d) Reliance and Liability. Each Lender, each Issuing Bank, and the Swingline Lender acknowledges that no Titled Agent and no Bookrunner has made any representation or warranty, and no Titled Agent and no Bookrunner shall have any responsibility or liability, with respect to the execution, delivery, legality, validity, enforceability, genuineness, sufficiency, or value of this Credit Agreement or any other Loan Document, or with respect to the financial condition, creditworthiness, or legal capacity of any Loan Party, in each case in such Titled Agent's or Bookrunner's capacity as a Titled Agent or Bookrunner. Each Titled Agent and each Bookrunner may consult with legal counsel, independent public accountants, and other experts selected by it and shall not be liable for any action taken or omitted to be taken in good faith by it in accordance with the advice of such counsel, accountants, or experts. No Titled Agent and no Bookrunner shall be liable for any indirect, special, punitive, consequential, or incidental damages of any kind arising out of or relating to this Credit Agreement or any other Loan Document.

(e) Indemnification. Each Lender, each Issuing Bank, and the Swingline Lender severally and not jointly agrees to indemnify each Titled Agent and each Bookrunner, solely in its capacity as a Titled Agent or Bookrunner, as applicable, from and against any and all liabilities, obligations, losses, damages, penalties, actions, judgments, suits, costs, expenses, and disbursements of any kind or nature whatsoever which may be imposed on, incurred by, or asserted against such Titled Agent or Bookrunner in its capacity as a Titled Agent or Bookrunner, except for liabilities arising from its own bad faith, gross negligence, or willful misconduct. Each Titled Agent and each

Bookrunner shall have the same rights to request additional information and assurances as the Administrative Agent has under this Article.

(f) Resignation or Replacement. A Titled Agent or Bookrunner may resign or be removed, and a successor Titled Agent or Bookrunner may be appointed, in each case solely as set forth in an agreement among the Borrower, such Titled Agent or Bookrunner or its successor, and the Administrative Agent. Any such resignation, removal, or appointment shall become effective upon the written acceptance of such successor Titled Agent or Bookrunner. The obligations of the Lenders under paragraph (e) of this Section shall survive any such resignation, removal, or replacement of any Titled Agent or Bookrunner and the termination of this Credit Agreement and the payment of all Obligations.

Section 9.15 (Documentation Agent; Syndication Agent). (a) Appointment and Authority. Each of the Documentation Agent and the Syndication Agent is hereby appointed to act as such by the Borrower and each Lender, and each of the Documentation Agent and the Syndication Agent hereby accepts such appointment. Each of the Documentation Agent and the Syndication Agent shall have no duties, responsibilities or liabilities under this Credit Agreement or any other Loan Document, except for its obligations as a Lender, if any, under the Loan Documents. Each of the Documentation Agent and the Syndication Agent shall be entitled to all of the rights, immunities, indemnities and exculpations granted to the Administrative Agent under this Article IX, including, without limitation, the right to rely on certificates and opinions, the right to engage counsel and other professionals, and the right to be indemnified and held harmless by the Loan Parties.

(b) No Fiduciary Duties. Without limiting the foregoing, neither the Documentation Agent nor the Syndication Agent shall be deemed to have any fiduciary or other implied duties to any Lender, any other Agent, any arranger or any other party to any Loan Document. Each of the Documentation Agent and the Syndication Agent shall have no duty to disclose to any Lender or any other Person any information relating to any Loan Party or any Affiliate of any Loan Party that is not expressly required to be disclosed by the terms of this Credit Agreement. Neither the Documentation Agent nor the Syndication Agent shall have any responsibility for the financial condition, creditworthiness, business affairs or any other matter concerning any Loan Party or any other Person.

(c) Reliance and Exculpation. Neither the Documentation Agent nor the Syndication Agent shall be liable to any Person for any action taken or omitted to be taken by it in its capacity as Documentation Agent or Syndication Agent, as applicable, except for its own gross negligence or willful misconduct as determined by a final, nonappealable judgment of a court of competent jurisdiction. Each of the Documentation Agent and the Syndication Agent may rely upon, and shall not be liable for any action taken or omitted to be taken in reliance upon, any notice, consent, certificate, statement, instrument, opinion, request, waiver, resolution, telegram, facsimile, electronic transmission or other communication believed by it to be genuine and to have been signed or sent by the proper Person. Each of the Documentation Agent and the Syndication Agent may consult with legal counsel, independent public accountants and other experts selected by it and shall not be liable for any action taken or omitted to be taken in accordance with the advice of such counsel, accountants or experts.

(d) Resignation and Removal. Each of the Documentation Agent and the Syndication Agent may resign from its capacity as such at any time by giving written notice to the Administrative Agent and the Borrower. The

Administrative Agent or the Required Lenders may remove the Documentation Agent or the Syndication Agent from its capacity as such at any time. Any such resignation or removal shall become effective upon the earlier of the appointment of a successor and the date specified in such notice, but in no event later than thirty days after the date of such notice. Upon the effectiveness of any such resignation or removal, the resigning or removed Person shall cease to have any rights or obligations as Documentation Agent or Syndication Agent, as applicable, other than any rights or obligations that survive pursuant to the terms of this Credit Agreement. The Borrower shall pay all reasonable fees and expenses incurred in connection with any such resignation or removal and the appointment of any successor.

(e) No Representation or Warranty. Each of the Documentation Agent and the Syndication Agent has not made, and shall not be deemed to have made, any representation or warranty to any Lender or other party to any Loan Document with respect to the execution, validity, legality, enforceability, genuineness, sufficiency or value of any Loan Document or any other instrument or document furnished pursuant hereto or in connection herewith, or with respect to the financial condition, creditworthiness, operations, properties or any other matter concerning any Loan Party or any other Person. Each Lender and each other party acknowledges that it has made its own independent investigation and analysis of the financial condition and affairs of the Loan Parties and has made its own decision to enter into this Credit Agreement, and that neither the Documentation Agent nor the Syndication Agent shall be responsible for any such investigation or analysis or for any information provided to any Lender or other party.

(f) No Obligation to Act. Neither the Documentation Agent nor the Syndication Agent shall be obligated to take any action or refrain from taking any action in its capacity as Documentation Agent or Syndication Agent, as applicable, other than as expressly set forth in this Credit Agreement. Neither the Documentation Agent nor the Syndication Agent shall be responsible for the performance or observance by any Loan Party or any other Person of any of the obligations under any Loan Document. Neither the Documentation Agent nor the Syndication Agent shall be required to initiate or conduct any litigation or collection proceedings under or in connection with any Loan Document, except to the extent expressly required by the terms of this Credit Agreement.

(g) Successor Agents. Any successor to the Documentation Agent or the Syndication Agent appointed pursuant to this Section shall be entitled to the same rights, immunities, indemnities and exculpations as the predecessor. The provisions of this Section shall inure to the benefit of each Person acting as Documentation Agent or Syndication Agent and any successor or permitted assign thereof.

Section 9.16 (No Fiduciary Duty of the Administrative Agent). Anything in this Agreement or any other Loan Document to the contrary notwithstanding, the Administrative Agent shall have no fiduciary duties, implied covenants, or obligations of any kind to any Loan Party, any other Credit Party, any Lender, any Secured Party, or any other person or entity, and no such fiduciary duties, implied covenants, or obligations shall be deemed to arise by reason of this Agreement, any other Loan Document, or any transaction contemplated hereby or thereby.

(a) Without limiting the generality of the foregoing, the Administrative Agent shall not be deemed to have any duty to any person or entity to disclose any information, regardless of whether such information is or may be material, concerning the business, operations, financial condition, or any other matter of any Loan Party or any of its affiliates, except to the extent expressly required by this Agreement or any other Loan Document to be disclosed to

the Lenders or the Secured Parties, as applicable. The Administrative Agent shall not be responsible for, or have any duty or obligation to any person or entity to monitor or verify, the satisfaction of any condition precedent set forth in this Agreement or any other Loan Document, nor shall the Administrative Agent have any duty or obligation to any person or entity to determine or inquire into the occurrence of any Default or Event of Default, except as expressly provided in this Agreement.

(b) The Administrative Agent may engage in any business or transaction with any Loan Party or any affiliate of any Loan Party, and may accept fees and other consideration from any Loan Party or any affiliate of any Loan Party, without any duty to account therefor to any Lender or any Secured Party, and without giving rise to any claim or liability hereunder or under any other Loan Document. The Administrative Agent may purchase, sell, hold, or otherwise deal in any obligations of, or equity interests in, any Loan Party or any affiliate of any Loan Party, and may act as an arranger, administrative agent, collateral agent, trustee, or in any other capacity with respect to any other financing or transaction, all as though it were not the Administrative Agent hereunder, and without any duty or liability to any Lender or any Secured Party.

(c) Each of the Lenders and each other Secured Party, by accepting the benefits of this Agreement and the other Loan Documents, acknowledges and agrees that the Administrative Agent is acting solely on behalf of the Secured Parties as their administrative agent and not in its individual capacity, and that the Administrative Agent shall not have any fiduciary duty to any Lender or any Secured Party. The Administrative Agent shall not be deemed to have any fiduciary relationship with any Lender or any Secured Party by reason of this Agreement or any other Loan Document, and the relationship between the Administrative Agent and each Lender is, and shall be deemed to be, solely that of debtor and creditor, and no fiduciary relationship shall be implied or imposed by law or otherwise.

(d) In no event shall the Administrative Agent be liable to any person or entity for any action taken or omitted to be taken by it in connection with this Agreement or any other Loan Document, except for its own gross negligence or willful misconduct as determined by a final nonappealable judgment of a court of competent jurisdiction. Nothing in this Section shall be construed to impose on the Administrative Agent any duty or obligation other than those expressly set forth in this Agreement and the other Loan Documents.

Section 9.17 (Administrative Agent's Reliance on Sub-Agents). (a) Appointment of Sub-Agents. The Administrative Agent may, without the consent of any Lender, any Loan Party or any other Secured Party, perform any and all of its duties and obligations and exercise any and all of its rights, powers, authorities and remedies under the Credit Agreement and the other Loan Documents by or through any one or more sub-agents appointed by the Administrative Agent. The Administrative Agent shall give the Borrowers and the Lenders prompt written notice of the initial appointment of any sub-agent and of any replacement or removal of any sub-agent. No sub-agent shall be authorized to bind the Administrative Agent or any Lender to any obligation or liability not expressly assumed by the Administrative Agent or such Lender in the Loan Documents, and no sub-agent shall be deemed to be an agent of any Lender or any other Secured Party or to owe any fiduciary duty to the Borrowers, any Lender or any other Secured Party.

(b) Performance Through Sub-Agents. The Administrative Agent may perform any and all of its duties and exercise any and all of its rights and powers by or through any sub-agent and the Related Parties of any such sub-agent. The

exculpatory provisions of this Section and the indemnification provisions of the Credit Agreement shall apply to each sub-agent and each Related Party of each sub-agent to the same extent as such provisions apply to the Administrative Agent, and each sub-agent and each Related Party of each sub-agent shall be entitled to rely on such provisions as a third-party beneficiary. The Administrative Agent shall not be responsible for the negligence or misconduct of any sub-agent or attorney-in-fact selected by it with reasonable care.

(c) Reliance on Sub-Agents. The Administrative Agent shall be fully protected in acting or refraining from acting in reliance on any notice, certificate, report, statement, opinion, instruction, direction, request or other communication received by the Administrative Agent from any sub-agent that the Administrative Agent believes in good faith to have been given or made by a qualified and authorized sub-agent. The Administrative Agent may deem and treat any sub-agent as the duly authorized representative of the Person on whose behalf such sub-agent purports to act until the Administrative Agent receives written notice to the contrary. No provision of this Section shall require the Administrative Agent to inquire into or verify the authority, capacity or qualifications of any sub-agent or any person giving instructions on behalf of any sub-agent.

(d) Reliance on Advice of Sub-Agents and Experts. The Administrative Agent may consult with and obtain advice from any sub-agent, legal counsel, independent public accountants, financial advisors and other experts selected by the Administrative Agent with reasonable care, and the Administrative Agent shall not be liable to any Lender, any Secured Party, any Loan Party or any other Person for anything done, omitted or suffered in good faith by the Administrative Agent in reliance upon the advice of any such sub-agent, counsel, accountant, financial advisor or other expert. The Administrative Agent may request and follow instructions from the Required Lenders with respect to any act or omission of the Administrative Agent or any sub-agent in connection with the Credit Agreement, and if the Administrative Agent requests such instructions, the Administrative Agent may refrain from taking any action or may direct any sub-agent to refrain from taking any action until such instructions have been received. The Administrative Agent shall be fully protected in acting or refraining from acting in accordance with any such instructions, and no sub-agent shall be liable for any action taken or omitted to be taken in accordance with such instructions, except for its own gross negligence or willful misconduct.

(e) No Duty to Inquire. The Administrative Agent shall not have any duty or obligation to inquire into the performance by any Loan Party of any covenant contained in the Credit Agreement or any other Loan Document, or to monitor the compliance of any Loan Party with any such covenant, except as expressly set forth in the Credit Agreement. The Administrative Agent shall not be liable for any failure to make any such inquiry or to obtain any certificate, report or other information from any Loan Party, any sub-agent or any other Person, except to the extent expressly required by the Credit Agreement.

Section 9.18 (Successor Administrative Agent's Rights). (a) Upon any Successor Administrative Agent accepting appointment as Administrative Agent in accordance with the terms of this Agreement, such Successor Administrative Agent shall automatically and without any further act, deed, or conveyance be vested with all of the authority, rights, powers, privileges, immunities, and protections of the Administrative Agent under this Agreement and under each other Loan Document, and the retiring Administrative Agent shall be fully released and discharged from any further duties and obligations under this Agreement and the other Loan Documents, other than duties or

obligations that are expressly stated to survive the appointment of a Successor Administrative Agent and other than liability for its own gross negligence, willful misconduct, or breach of any express obligation under this Agreement or any other Loan Document.

(b) The Successor Administrative Agent shall have the right to require the retiring Administrative Agent to deliver to the Successor Administrative Agent all credit agreements, loan documents, collateral documents, guarantees, promissory notes, legal opinions, financial statements, notices, certificates, correspondence, records, files, and other writings or data in the possession or control of the retiring Administrative Agent relating to this Agreement, the other Loan Documents, the Borrower, the Lenders, the Issuing Bank, the Swingline Lender, or any collateral, and the retiring Administrative Agent shall execute and deliver such further instruments and documents and take such other actions as the Successor Administrative Agent may reasonably request in order to give full effect to the transfer of the administration of this Agreement and the other Loan Documents to the Successor Administrative Agent.

(c) The Successor Administrative Agent shall be entitled to exercise all rights and remedies of the Administrative Agent under this Agreement and the other Loan Documents, including the right to request and receive from the Borrower, the Lenders, the Issuing Bank, and the Swingline Lender such certificates, notices, reports, opinions, and other information as the Successor Administrative Agent may reasonably deem appropriate, the right to rely on any such certificate, notice, report, opinion, or other document and on any written or electronic communication believed by it to have been signed, sent, or delivered by the proper person, the right to execute and file any financing statements, continuation statements, assignments, amendments, or other documents that the Successor Administrative Agent reasonably considers necessary to perfect, protect, or continue the security interests and liens described in the Loan Documents, and the right to commence, defend, or settle any action, suit, or proceeding relating to any Loan Document or any collateral in the name of the Administrative Agent on behalf of the Lenders, the Issuing Bank, and the Swingline Lender to the same extent as the retiring Administrative Agent would have been entitled to do immediately prior to the effectiveness of such appointment.

(d) The Successor Administrative Agent shall be entitled to reimbursement of its reasonable out-of-pocket expenses and to indemnification from the Borrower, the Lenders, the Issuing Bank, and the Swingline Lender to the same extent and on the same terms as the retiring Administrative Agent was entitled to receive immediately prior to the effectiveness of such appointment, and any such rights of the Successor Administrative Agent shall be in addition to any rights of the retiring Administrative Agent under paragraph (e) of this Section.

(e) No acceptance by any Successor Administrative Agent of an appointment under this Agreement shall affect or prejudice any rights, powers, privileges, immunities, duties, or obligations of the retiring Administrative Agent arising out of or relating to acts or omissions occurring while the retiring Administrative Agent was acting as Administrative Agent, and all such rights, powers, privileges, immunities, duties, and obligations, including all rights to indemnification and reimbursement of expenses, shall survive the resignation or removal of the retiring Administrative Agent and shall continue in full force and effect for the benefit of the retiring Administrative Agent notwithstanding such resignation or removal.

Section 9.19 (Administrative Agent's Right to Assume No Default). (a) The Administrative Agent shall be entitled to presume that no Default or Event of Default has occurred and is continuing unless the Administrative Agent has

received a written notice to the contrary from any Credit Party or any Lender. The Administrative Agent shall not be deemed to have knowledge or notice of the occurrence of any Default or Event of Default unless a Responsible Officer of the Administrative Agent has received a written notice from a Credit Party or a Lender specifying that a Default or Event of Default has occurred and is continuing and describing the nature thereof. The Administrative Agent shall have no duty to investigate or make any inquiry into whether any Default or Event of Default has occurred or is continuing.

(b) The Administrative Agent shall not be deemed to have notice of any Default or Event of Default as a result of any information received by it in any capacity, including as arranger, bookrunner, lender, or in any other capacity, unless such information is received as a written notice described in paragraph (a) of this Section by a Responsible Officer of the Administrative Agent. The Administrative Agent may, in its sole discretion, give notice to the Lenders of any event that it believes may constitute a Default or Event of Default, but shall have no obligation to do so.

(c) If the Administrative Agent receives a notice described in paragraph (a) of this Section, it shall promptly deliver a copy of such notice to each Lender. The Administrative Agent shall be fully protected in relying upon any such notice and shall not be required to verify the accuracy or completeness of the information contained in such notice. Until the Administrative Agent receives written instructions from the Required Lenders with respect to such notice, the Administrative Agent shall be entitled to refrain from taking any action in respect of such notice and shall not be liable for any failure to act prior to receiving such instructions.

(d) The Administrative Agent shall also be entitled to presume that each condition precedent to the making of any Loan or the issuance, extension or renewal of any Letter of Credit has been satisfied, unless the Administrative Agent has received a written notice to the contrary from any Credit Party or any Lender before the making of such Loan or the issuance, extension or renewal of such Letter of Credit. The Administrative Agent may rely on any representation made in any Borrowing Request or other notice delivered in connection with any such request.

(e) The Administrative Agent shall be entitled to assume that any Default or Event of Default of which it has received notice has not been cured or waived unless the Administrative Agent has received a written notice from the party that delivered the original notice, or from the Required Lenders or the Credit Parties, as applicable, stating that such Default or Event of Default has been cured or waived. The Administrative Agent shall not be obligated to give effect to any purported cure or waiver unless and until it has received such written notice.

(f) The Administrative Agent may act in reliance upon any notice delivered to it pursuant to this Section or upon the absence of any such notice, and shall not be liable for any action taken or omitted to be taken in good faith in reliance upon such notice or absence, or in accordance with the instructions of the Required Lenders, except in the case of its own gross negligence or willful misconduct. Without limiting the foregoing, the Administrative Agent shall not be liable for any failure to discover or act upon any Default or Event of Default in the absence of a written notice described in this Section.

(g) The Administrative Agent may request, and shall be entitled to rely upon, the advice of legal counsel selected by it with respect to any matter relating to this Section, and shall not be liable for any action taken or omitted to be taken in good faith in accordance with such advice. The Administrative Agent shall also be entitled to rely on the advice of independent accountants and other professionals selected by it.

(h) Any notice delivered pursuant to this Section shall be delivered in accordance with the notice provisions of the Credit Agreement and shall be effective upon actual receipt by a Responsible Officer of the Administrative Agent at the office designated by the Administrative Agent for that purpose. The Administrative Agent shall be entitled to rely on the identity of the sender of any such notice and on the authority of the signatory thereof and shall have no duty to verify any signature or the authority of any signatory.

(i) Nothing in this Section shall impose upon the Administrative Agent any obligation to monitor or investigate the financial condition or affairs of any Credit Party or any other Person or to determine whether any Default or Event of Default has occurred. The Administrative Agent shall have no duty to disclose to any Lender any information acquired by it in any capacity, except as expressly required by the Credit Agreement.

(j) This Section is for the sole benefit of the Administrative Agent and the Lenders and does not confer any rights upon any Credit Party. Nothing in this Section shall relieve any Credit Party or any Lender of any obligation to deliver any notice required by any provision of the Credit Agreement or any Loan Document. The Administrative Agent's rights under this Section are in addition to, and not in limitation of, the rights of the Administrative Agent under any other provision of the Credit Agreement or any Loan Document.

Section 9.20 (Copies of Notices to the Administrative Agent). The Borrower will deliver, or cause to be delivered, to the Administrative Agent, at the address for notices maintained by the Administrative Agent for such purpose under this Agreement, a complete copy of each notice, request, certificate, financial statement, report, opinion, consent, waiver, amendment, supplement, or other communication delivered by or on behalf of the Borrower or any other Loan Party to any Lender or group of Lenders under this Agreement or any other Loan Document, other than a notice or other communication that is expressly required to be delivered to the Administrative Agent for the benefit of the Lenders and that is so delivered pursuant to the notice provisions of this Agreement, in each case concurrently with the first delivery of such notice or other communication to such Lender or group of Lenders.

The Administrative Agent will have no obligation to review, verify, transmit, or deliver to any Lender any copy of any notice or other communication received by it pursuant to this Section, and the Administrative Agent will not be liable to any Person for any failure to deliver or transmit any such copy. A Loan Party will be deemed to have satisfied its obligation to deliver a copy of any notice or other communication under this Section if it delivers, or causes to be delivered, such notice or other communication to the Administrative Agent in accordance with the notice provisions of this Agreement, together with such additional copies as the Administrative Agent may reasonably request. No notice or other communication delivered to the Administrative Agent under this Section will be deemed to be a notice or other communication delivered to the Administrative Agent for purposes of any provision of this Agreement that requires the Administrative Agent to take action, refrain from taking action, or be charged with notice or knowledge of any matter based on the delivery of such notice or other communication.

Section 9.21 (Administrative Agent as Collateral Agent). (a) Appointment and Authority. Each of the Secured Parties hereby irrevocably appoints and authorizes the Administrative Agent to act as the collateral agent for and on behalf of the Secured Parties under the Loan Documents, and each of the Secured Parties agrees that the Administrative Agent shall hold, for the ratable benefit of the Secured Parties, any Collateral and any Security Documents and shall exercise any rights, remedies, powers and authorities under the Security Documents, in each

case subject to the terms and conditions of this Agreement and the Security Documents. The Administrative Agent shall be the collateral agent for purposes of the Security Documents, and each of the Secured Parties hereby authorizes the Administrative Agent to perform such duties and to exercise such powers as are expressly delegated to the Administrative Agent under the Security Documents, together with such incidental powers as may be reasonably necessary or appropriate to carry out such duties.

(b) Powers and Protections. The Administrative Agent, in its capacity as collateral agent, shall have the same rights, protections, immunities and indemnities as are provided to the Administrative Agent under this Agreement, and such rights, protections, immunities and indemnities shall apply to the Administrative Agent in its capacity as collateral agent and to each of its officers, directors, employees, agents and related persons. Without limiting the foregoing, the Administrative Agent shall not be responsible for (i) the existence, genuineness, value or perfection of any Collateral or any security interest therein, (ii) the title of any obligor or other person to any Collateral, (iii) the validity, enforceability or sufficiency of any Security Document or any other instrument or document creating or evidencing a Lien on any Collateral, (iv) the performance by any obligor of any obligation under any Loan Document, or (v) any action taken or omitted to be taken by any sub-agent appointed by the Administrative Agent, except in the case of gross negligence or willful misconduct as determined by a final nonappealable judgment of a court of competent jurisdiction.

(c) Execution of Security Documents and Intercreditor Agreements. The Administrative Agent may execute any Security Document, mortgage, deed of trust, assignment, pledge agreement or other instrument or document creating, perfecting or evidencing a Lien in favor of the Secured Parties, and may take any other action in connection with the administration of the Collateral and the Security Documents, as the Administrative Agent deems appropriate. The Administrative Agent is authorized to enter into, and is authorized to perform under, any intercreditor agreement, subordination agreement or other agreement contemplated by this Agreement or any other Loan Document, and each of the Secured Parties agrees to be bound by the terms of any such agreement.

(d) Enforcement and Release. Without limiting the generality of the foregoing, each of the Secured Parties authorizes the Administrative Agent to take any enforcement action or exercise any remedy with respect to any Collateral, and to release, convey, assign or otherwise dispose of any Collateral, in each case as the Administrative Agent may determine in its sole discretion or as directed by the Required Lenders in accordance with this Agreement and the Security Documents. The Administrative Agent shall not have any obligation to any Secured Party to monitor, verify or enforce compliance by any obligor with any representation, warranty, covenant or agreement in any Loan Document, nor shall the Administrative Agent have any duty to any Secured Party to disclose any information relating to any obligor or any Collateral that the Administrative Agent has in its possession, except as expressly required by this Agreement.

(e) Event of Default. Upon the occurrence and during the continuation of an Event of Default, the Administrative Agent may, without any further authorization from any Secured Party, take all actions and institute all proceedings as it, in its sole discretion, deems necessary or appropriate to enforce the rights of the Secured Parties under any Security Document, to collect any Obligations secured by any Collateral, to foreclose upon any Collateral, to sell, lease, assign or otherwise dispose of any Collateral at public or private sale, and to exercise all rights, remedies,

powers and authorities of a secured creditor under the Uniform Commercial Code as in effect in any applicable jurisdiction or under any other applicable law. Each of the Secured Parties agrees that the Administrative Agent may, in its sole discretion, choose not to exercise any right or remedy with respect to any Collateral, and no such decision shall create any obligation or liability on the part of the Administrative Agent.

(f) Sub-Agents. The Administrative Agent is authorized to appoint one or more sub-agents, co-agents, separate trustees, collateral sub-agents or other persons to perform any duty or exercise any power of the Administrative Agent as collateral agent, and any such appointee shall be entitled to the same benefits, protections and indemnities as the Administrative Agent. In the event that any Security Document requires or permits the appointment of a separate trustee or agent for any Collateral, the Administrative Agent shall have the power to appoint such trustee or agent, and to remove any such trustee or agent, and to vest in such trustee or agent any title to or rights in any such Collateral as the Administrative Agent deems necessary or appropriate. Each of the Secured Parties agrees that any such trustee or agent shall have no duty or liability to any Secured Party other than as expressly set forth in this Agreement or the applicable Security Document.

(g) No Individual Rights. Each of the Secured Parties acknowledges and agrees that no Secured Party shall have any right individually to enforce any Security Document or to realize upon any Collateral, it being understood that all such rights, remedies, powers and authorities are vested solely and exclusively in the Administrative Agent for the benefit of the Secured Parties. The Administrative Agent may, in its sole discretion, require that the Secured Parties or any of them furnish to the Administrative Agent such information, certifications, representations or opinions as the Administrative Agent may deem appropriate before taking any action under any Security Document, and the Administrative Agent shall be fully protected in relying on any such information, certification, representation or opinion.

(h) Termination and Release of Collateral. The Administrative Agent shall be discharged from all duties and obligations under the Security Documents upon the payment in full of all Obligations and the termination of all Commitments, or earlier upon the appointment of a successor Administrative Agent in accordance with this Agreement, and in any such case the Administrative Agent shall execute and deliver such documents and take such actions as may be reasonably requested to release, terminate, reassign or otherwise deal with the Collateral and the Security Documents, including any releases requested in connection with any permitted disposition of Collateral. Any release of Collateral by the Administrative Agent in accordance with the terms of this Agreement and the Security Documents shall be deemed a release by each of the Secured Parties, and each of the Secured Parties shall execute and deliver such further documents and instruments as the Administrative Agent may reasonably request to evidence any such release.

Section 9.22 (Release of Information to Participants). (a) The Administrative Agent may, at any time and from time to time, whether at the request of any Lender or on its own initiative, disclose to any actual or prospective Participant, any actual or prospective assignee, any actual or prospective sub-participant, any provider or prospective provider of credit insurance, guarantee, or other credit support with respect to any Credit Party's obligations under any Credit Document, any pledgee or other transferee of any interest of any Lender in the Loans, the Commitments, the Collateral, or any Credit Document, any direct or indirect contractual counterparty to any swap agreement or

other derivative agreement relating to any Credit Party or any obligation of any Credit Party, and the officers, directors, partners, employees, legal counsel, independent accountants, consultants, and other advisors of any such person, such information with respect to the Credit Parties, their Subsidiaries, the Collateral, the Credit Documents, and the transactions contemplated hereby as the Administrative Agent shall determine in its sole discretion to be appropriate, including copies of this Agreement and any other Credit Document and any financial statements, projections, reports, certificates, notices, or other information delivered pursuant hereto or thereto, in each case by posting to an electronic platform, by electronic mail, by mail, or by any other medium, and whether in written, electronic, or other form; provided that any such person has executed and delivered to the Administrative Agent a written confidentiality agreement in form and substance reasonably satisfactory to the Administrative Agent or is subject to professional obligations of confidentiality reasonably satisfactory to the Administrative Agent and has agreed in writing to use such information solely for the purpose of evaluating, acquiring, or administering an interest in the Loans, the Commitments, or a participation or other interest therein.

(b) The Administrative Agent shall not make any disclosure pursuant to paragraph (a) of this Section if such disclosure would, in the reasonable judgment of the Administrative Agent, constitute a waiver of any legal privilege that any Credit Party would otherwise be entitled to assert or would violate any law, rule, regulation, or order of any governmental authority. Without limiting the foregoing, the Administrative Agent may, in its sole discretion, decline to disclose any information to any person that has not satisfied the conditions set forth in paragraph (a) of this Section and may withhold any portion of any information that it determines is not reasonably necessary for the purpose of evaluating, acquiring, or administering an interest in the Loans, the Commitments, or a participation or other interest therein.

(c) No Lender shall, and each Lender shall cause each of its affiliates not to, disclose any nonpublic information with respect to any Credit Party or any of its Subsidiaries that the Borrower has identified in writing to such Lender as confidential at the time of delivery to any Participant, any prospective Participant, any assignee, any prospective assignee, any sub-participant, any pledgee, any swap counterparty, or any officer, director, partner, employee, legal counsel, independent accountant, consultant, or other advisor of any such person, unless such disclosure is made after such information has become generally available to the public other than as a result of a breach of this Agreement by such Lender or any of its affiliates, or such disclosure is made in connection with a proposed assignment, participation, sub-participation, or other transfer of an interest in the Loans or Commitments and the recipient has executed and delivered to such Lender a written confidentiality agreement no less restrictive than the confidentiality provisions of this Agreement, or such disclosure is made to any person that is a Lender or an affiliate of a Lender and such person has agreed in writing to keep such information confidential, or such disclosure is required by law, rule, regulation, or legal process. Each Lender making any disclosure pursuant to this paragraph shall be responsible for compliance by the recipient with the terms of this Section and shall use commercially reasonable efforts to ensure that the recipient does not make any further disclosure of such information except as permitted by this Agreement.

(d) Nothing in this Section shall limit the right of any Lender to disclose to any actual or prospective Participant, assignee, or swap counterparty information regarding such Lender's own Commitments, Loans, participations,

pricing, and credit decisions with respect to any Credit Party, in each case subject to the recipient's agreement to comply with confidentiality provisions no less restrictive than those set forth in this Agreement.

(e) Each Lender shall indemnify each Credit Party and the Administrative Agent from and against any loss, claim, cost, expense, liability, or damage, including reasonable attorneys' fees and expenses, arising out of or resulting from any unauthorized disclosure of nonpublic information by such Lender or by any Participant, prospective Participant, assignee, prospective assignee, sub-participant, pledgee, swap counterparty, or other person to which such Lender has disclosed information in violation of this Section. The Administrative Agent shall not be liable to any Credit Party or any Lender for any disclosure made in good faith pursuant to this Section, except to the extent that such disclosure is finally determined by a court of competent jurisdiction to have resulted from the gross negligence or willful misconduct of the Administrative Agent. No Credit Party shall have any obligation to provide any information directly to any Participant, prospective Participant, assignee, prospective assignee, pledgee, swap counterparty, or other recipient of information under this Section, and no such person shall have any right to request or receive information directly from any Credit Party.

(f) The provisions of this Section shall survive any termination of this Agreement, the repayment of all Obligations, and the termination or expiration of all Commitments.

Section 9.23 (Administrative Questionnaire). (a) Each Lender shall deliver to the Administrative Agent, with a copy to the Borrower, a fully executed Administrative Questionnaire in the form provided by the Administrative Agent, on or before the later of the date on which such Lender becomes a Lender and five Business Days after the Effective Date. The Administrative Questionnaire shall set forth, to the extent applicable, such Lender's notice address, each lending office through which such Lender will extend credit and receive payments, the account or accounts to which payments to such Lender are to be made, and such other administrative information as the Administrative Agent may reasonably request. The Administrative Agent may reject any Administrative Questionnaire that is not completed in a manner reasonably satisfactory to the Administrative Agent.

(b) Each Lender shall deliver an updated Administrative Questionnaire to the Administrative Agent, with a copy to the Borrower, not later than ten Business Days after any change in any information set forth in the most recent Administrative Questionnaire delivered by such Lender. The Administrative Agent may also, by written notice to all Lenders, require each Lender to reconfirm or update its Administrative Questionnaire, and each Lender shall comply with such request not later than fifteen Business Days after the date of such notice.

(c) Each Lender, by delivering an Administrative Questionnaire, authorizes the Administrative Agent to use, disclose, reproduce, and retain the information contained in such Administrative Questionnaire for all purposes related to the administration of this Credit Agreement and the other Loan Documents, including the calculation and payment of interest, fees, and other amounts, the giving of notices, the distribution of any amounts received by the Administrative Agent, and the maintenance of the Register. The Administrative Agent shall be entitled to rely conclusively upon the most recent Administrative Questionnaire delivered by such Lender and shall have no duty to verify the accuracy or completeness of any information contained in any Administrative Questionnaire. Unless a later written instruction specifically supersedes the payment instructions set forth in a Lender's Administrative Questionnaire, all payments to such Lender shall be made in accordance with the payment instructions set forth in

such Administrative Questionnaire.

(d) The Administrative Agent shall not be liable to any Lender, the Borrower, or any other Person for any action taken or omitted to be taken in good faith in reliance upon any Administrative Questionnaire or for any delay or failure to make any payment caused by the absence, inaccuracy, or incompleteness of an Administrative Questionnaire. Each Lender shall indemnify the Administrative Agent and the Borrower and their respective officers, directors, employees, agents, and affiliates from and against any losses, claims, damages, liabilities, and related reasonable expenses arising out of any material misstatement in or material omission from such Lender's Administrative Questionnaire, except to the extent determined by a final, nonappealable judgment of a court of competent jurisdiction to have resulted from the bad faith, gross negligence, or willful misconduct of the Person seeking indemnification.

(e) If a Lender has not delivered an Administrative Questionnaire by the date required by paragraph (a) of this Section, the Administrative Agent may request such delivery in writing, and such Lender shall deliver an Administrative Questionnaire within two Business Days after receipt of such request. The Administrative Agent may, in its sole discretion, withhold any payment to such Lender to which such Lender would otherwise be entitled under this Credit Agreement until such Administrative Questionnaire has been delivered; provided that the Administrative Agent shall give written notice to such Lender at least two Business Days before withholding any payment solely by reason of such non-delivery. Upon delivery of the Administrative Questionnaire, the Administrative Agent shall promptly make any payment withheld solely by reason of such non-delivery, but no such payment shall bear interest for the period during which it was withheld.

Section 9.24 (Administrative Agent's Fees). (a) The Borrower agrees to pay to the Administrative Agent, for its own account, the fees set forth in the Fee Letter, including any upfront fees, arrangement fees, and agency fees, in the amounts and at the times specified in the Fee Letter. All such fees shall be payable in Dollars, in immediately available funds, and, once paid, shall be nonrefundable and fully earned. No failure or delay by the Administrative Agent in demanding any such fee shall constitute a waiver of the Borrower's obligation to pay such fee, and no single or partial exercise of any right or remedy shall preclude any other or further exercise of any right or remedy.

(b) The Borrower agrees to pay to the Administrative Agent, for its own account, the annual agency fee set forth in the Fee Letter, payable in advance on the Closing Date and on each anniversary of the Closing Date so long as any Commitment, Loan, Letter of Credit, or other Obligation shall remain outstanding. If the Commitments are terminated and all Loans and other Obligations, other than contingent indemnification obligations, are paid in full on a date that is not an anniversary of the Closing Date, the agency fee for the period from the most recent anniversary of the Closing Date to the date of such termination and payment shall be prorated on a daily basis and shall be payable on such date.

(c) The Borrower shall pay all fees described in this Section without any deduction, withholding, setoff, counterclaim, abatement, or reduction of any kind. If any such fee is not paid when due, the unpaid amount shall bear interest from the due date until paid in full at the rate applicable to overdue principal under this Agreement, and such interest shall be payable on demand.

(d) The fees payable under this Section are solely for the Administrative Agent's own account and not for the

account of, or for distribution to, any Lender, and no Lender shall have any right to any portion of such fees, except as expressly provided in the Fee Letter. Nothing in this Section limits the Borrower's obligation to pay any fees, interest, or other amounts payable to the Lenders or any other Person under any other provision of this Agreement or any other Loan Document.

(e) The Administrative Agent may, in its sole discretion, allocate all or any portion of the fees received by it under this Section among its affiliates or sub-agents. No such allocation shall relieve the Borrower of its obligations to pay such fees in accordance with this Section.

(f) The provisions of this Section shall survive termination of the Commitments, repayment in full of the Loans, and termination of this Agreement. The obligations of the Borrower to pay fees under this Section shall constitute Obligations for all purposes of this Agreement and the other Loan Documents and shall be entitled to the benefits of all guarantees and collateral granted pursuant to the Loan Documents.

ARTICLE X. MISCELLANEOUS

Section 10.01 (Governing Law; Amendments). This Agreement shall be governed by, and construed in accordance with, the laws of the State of New York. No amendment, modification or waiver of any provision of this Agreement shall be effective unless in writing and signed by the Borrower and Lenders holding at least a majority of the Commitments, except that no amendment reducing the Commitments of any Lender, extending the maturity of any Loan, or reducing the amount or extending the due date of any scheduled principal or interest payment shall be effective without the written consent of each Lender directly affected thereby.

Section 10.02 (Notices). All notices and other communications provided for under the Loan Documents shall be in writing and delivered by hand, overnight courier, or electronic mail (with confirmation of receipt), to the addresses set forth in the signature pages hereto or such other address as a party may designate by notice to the others.

Section 10.03 (No Waiver; Cumulative Remedies). No failure or delay by the Administrative Agent or any Lender in exercising any right or remedy under the Loan Documents shall operate as a waiver thereof, and the rights and remedies provided are cumulative and not exclusive of any other rights or remedies provided by law.

Section 10.04 (Expenses; Indemnification). The Borrower shall reimburse the Administrative Agent for its reasonable out-of-pocket expenses in connection with the preparation, negotiation and administration of the Loan Documents, and shall indemnify the Administrative Agent, the Issuing Bank and each Lender against losses, claims and expenses arising out of the Transaction or the Loan Documents, except to the extent resulting from the indemnitee's own gross negligence or willful misconduct.

Section 10.05 (Successors and Assigns; Participations). This Agreement shall be binding upon and inure to the benefit of the parties and their respective successors and permitted assigns. No Lender may assign any of its rights or obligations hereunder except to an Eligible Assignee pursuant to an Assignment and Assumption, and no Lender may sell participations in its Loans and Commitments except in accordance with customary participation terms that preserve the participating Lender's voting rights on the matters described in the proviso to Section 10.01.

Section 10.06 (Set-off). Upon the occurrence and during the continuance of an Event of Default, each Lender is authorized, to the fullest extent permitted by law, to set off and apply any deposits and other obligations owing by such Lender to the Borrower against any Obligations then due and owing, irrespective of whether such Lender has

made demand under this Agreement.

Section 10.07 (Consent to Jurisdiction; Venue). Each party irrevocably submits to the exclusive jurisdiction of the state and federal courts sitting in the Borough of Manhattan, New York City, in connection with any dispute arising out of the Loan Documents, and waives any objection based on inconvenient forum.

Section 10.08 (Waiver of Jury Trial). EACH PARTY IRREVOCABLY WAIVES, TO THE FULLEST EXTENT PERMITTED BY LAW, ANY RIGHT IT MAY HAVE TO A TRIAL BY JURY IN ANY LEGAL PROCEEDING ARISING OUT OF OR RELATING TO THE LOAN DOCUMENTS.

Section 10.09 (Counterparts; Electronic Execution). This Agreement may be executed in counterparts, each of which shall constitute an original, and all of which together shall constitute one instrument. Delivery of an executed counterpart by electronic transmission shall be as effective as delivery of an original manually executed counterpart.

Section 10.10 (Severability). If any provision of the Loan Documents is held to be invalid, illegal or unenforceable in any jurisdiction, such invalidity, illegality or unenforceability shall not affect any other provision, and the remaining provisions shall remain in full force and effect.

Section 10.11 (USA PATRIOT Act Notice). Each Lender subject to the USA PATRIOT Act hereby notifies the Borrower that, pursuant to the requirements of such Act, it may be required to obtain, verify and record information that identifies the Borrower, which information includes the name and address of the Borrower and other information that will allow such Lender to identify the Borrower in accordance with such Act.

Section 10.12 (Confidentiality). Each Lender agrees to maintain the confidentiality of Information (as defined in this Section 10.12) received from the Borrower, except disclosures to Affiliates, auditors, regulators, or as required by applicable law or legal process, or in connection with the exercise of remedies under the Loan Documents.

Section 10.13 (No Fiduciary Duty). The Administrative Agent, the Issuing Bank and the Lenders are arm's length contractual counterparties to the Borrower, and no such Person shall be deemed to be a fiduciary of the Borrower or any of its Affiliates by reason of the Loan Documents.

Section 10.14 (Judgment Currency). If, for the purpose of obtaining or enforcing judgment in any court, it is necessary to convert an amount due hereunder into a currency other than Dollars, the rate of exchange used shall be the Administrative Agent's spot rate of exchange for the purchase of Dollars with such other currency on the Business Day preceding the day on which final, non-appealable judgment is given.

Section 10.15 (Entire Agreement). The Loan Documents constitute the entire agreement among the parties with respect to the subject matter thereof and supersede all prior agreements and understandings, oral or written, relating to such subject matter.

Section 10.16 (Acknowledgment Regarding Supported QFCs). To the extent the Loan Documents constitute a Supported QFC, the parties acknowledge that the Loan Documents are subject to the QFC Stay Rules, and, in the event a Covered Entity that is a party to a Loan Document becomes subject to a proceeding under the Federal Deposit Insurance Act or Title II of the Dodd-Frank Wall Street Reform and Consumer Protection Act, any Default Right under such Loan Document held by a Covered Entity or a Covered Party is subject to the same limitations that would apply to such Default Right under the QFC Stay Rules were the Loan Document governed by the laws of the United States or a state thereof.

Section 10.17 (Acknowledgment Regarding Bail-In of Affected Financial Institutions). Each party acknowledges that any liability of an Affected Financial Institution arising under any Loan Document may be subject to Bail-In Action by the applicable resolution authority, and agrees to be bound by the effect of any Bail-In Action, including a reduction in the amount due, a conversion of any such liability into equity, and a variation of the terms of such liability, in each case to the extent required by applicable Bail-In Legislation.

Section 10.18 (Release of Guarantors and Collateral). Upon the Discharge of Obligations, the Administrative Agent shall, at the Borrower's expense, release all Liens on the Collateral and release each Guarantor from the Guarantee, and shall execute and deliver such documents as the Borrower may reasonably request to evidence such release.

Section 10.19 (Interest Rate Limitation). Notwithstanding any provision of this Agreement, it is the intention of the parties that no Lender shall receive interest under the Loan Documents at a rate in excess of the Maximum Rate; if the amount of interest payable for any period would exceed the amount permitted by the Maximum Rate, the interest payable for such period shall be reduced to the maximum amount permitted, and any excess previously collected shall be credited against principal or, if in excess thereof, refunded.

Section 10.20 (Titles and Captions). Article, Section and Schedule titles and captions in this Agreement are for convenience of reference only and shall not affect the construction of, or be taken into consideration in interpreting, this Agreement.

Section 10.21 (Independence of Covenants). (a) Each covenant, condition, undertaking, and agreement contained in this Agreement shall be construed independently of every other covenant, condition, undertaking, and agreement contained in this Agreement, and shall be given independent effect. No covenant, condition, undertaking, or agreement shall be construed to limit, qualify, condition, or supersede any other covenant, condition, undertaking, or agreement except to the extent expressly provided in this Agreement. Compliance with any one covenant, condition, undertaking, or agreement shall not constitute compliance with any other covenant, condition, undertaking, or agreement, and the breach of any one covenant, condition, undertaking, or agreement shall constitute a separate and independent Default or Event of Default, regardless of whether the Borrower, any other Loan Party, or any of their respective Restricted Subsidiaries is in full compliance with every other covenant, condition, undertaking, or agreement. No covenant shall be construed as a condition precedent to the performance or observance of any other covenant, and the use of any defined term or phrase in more than one covenant shall not be construed to make such covenants mutually dependent or to limit the independent effect of any such covenant.

(b) If any covenant, condition, undertaking, or agreement set forth in this Agreement is inconsistent or conflicts with any other covenant, condition, undertaking, or agreement set forth in this Agreement, the provision that is more restrictive on the Borrower, the other Loan Parties, and the Restricted Subsidiaries shall control, and the less restrictive provision shall be deemed modified to the minimum extent necessary to eliminate such inconsistency or conflict and to give effect to the more restrictive provision. For purposes of this Section, a provision that prohibits or limits an action shall be deemed more restrictive than a provision that requires an action, and a provision that imposes a financial or numerical limitation shall be deemed more restrictive than a provision that does not impose such a limitation.

(c) The rights and remedies of the Agent, the Lenders, and the other Secured Parties arising out of any breach of any

covenant shall be cumulative and in addition to, and not exclusive of, any other rights or remedies available to them under this Agreement, any other Loan Document, or applicable law, whether arising out of the same breach, any other breach, or otherwise. No failure or delay by the Agent, any Lender, or any other Secured Party in exercising any right or remedy shall operate as a waiver of such right or remedy, and no single or partial exercise of any right or remedy shall preclude any other or further exercise of such right or remedy or the exercise of any other right or remedy. The Agent, any Lender, and any other Secured Party may pursue any right or remedy arising out of any covenant without regard to any other covenant and without first exhausting any right or remedy arising out of any other covenant. The obligations of the Loan Parties to comply with each covenant contained in this Agreement shall not be conditioned on the performance by the Agent, any Lender, or any other Secured Party of any obligation, and no failure of performance by any such Person shall excuse or suspend the performance or observance of any covenant, except to the extent expressly provided in this Agreement.

(d) Each financial covenant set forth in Article VI shall be applied, measured, and tested separately and independently as of each date and for each period required by its terms, and no amount, item, event, or condition taken into account in determining compliance with any financial covenant set forth in Article VI shall be excluded, discounted, or otherwise treated differently in determining compliance with any other financial covenant set forth in Article VI solely because it was so taken into account. No failure to comply with any financial covenant set forth in Article VI shall be deemed cured, excused, or mitigated by compliance with any other financial covenant set forth in Article VI, by compliance with any other provision of this Agreement, or by the occurrence of any event or condition during a period other than the period to which such financial covenant relates.

(e) No covenant contained in this Agreement shall be deemed waived, amended, or modified by any course of dealing, course of performance, or trade practice, or by any failure or delay on the part of the Agent, any Lender, or any other Secured Party in asserting or enforcing any right or remedy arising out of such covenant, except by a written amendment, waiver, or consent executed in accordance with this Agreement. A waiver of any right or remedy arising out of any one covenant shall not be deemed a waiver of any right or remedy arising out of any other covenant, and a waiver on any one occasion shall not be deemed a waiver on any subsequent occasion. No acceptance by the Agent, any Lender, or any other Secured Party of any payment or performance shall constitute a waiver of any covenant or any breach thereof, except to the extent expressly set forth in a written waiver.

(f) The covenants contained in this Agreement are cumulative and are in addition to, and not in lieu of, all representations, warranties, conditions, and other agreements contained in this Agreement or any other Loan Document. For the avoidance of doubt, a breach of any covenant may constitute a Default or Event of Default irrespective of whether the representations and warranties set forth in this Agreement are true and correct, irrespective of whether any condition to any extension of credit has been satisfied, and irrespective of whether any other covenant has been complied with. For the further avoidance of doubt, the fact that a particular action is not prohibited by one covenant shall not be construed to mean that such action is not prohibited by another covenant or is otherwise permitted by this Agreement. The Borrower and each other Loan Party acknowledge that each such covenant is a material and bargained-for element of the agreement of the Agent and the Lenders to enter into this Agreement and to make Credit Extensions, and that the independence of such covenants is essential to that

agreement.

(g) Each covenant of the Borrower and each other Loan Party contained in this Agreement shall bind such Person and its successors and permitted assigns, and shall inure to the benefit of the Agent, each Lender, and each other Secured Party and their respective permitted successors and assigns. No covenant contained in this Agreement shall be construed as creating any obligation on the part of the Agent, any Lender, or any other Secured Party to monitor compliance with any covenant, and no failure to monitor or notify shall give rise to any defense, offset, or counterclaim in favor of any Loan Party or impair any right or remedy arising out of any breach.

(h) For the avoidance of doubt, the testing or measurement of any covenant as of a particular date or for a particular period shall not imply that such covenant is not also required to be tested or measured as of any other date or for any other period specified in such covenant, and no such testing or measurement shall limit the independent application of such covenant to any other date or period. Unless expressly stated otherwise, each covenant applies on a continuing basis from the date of this Agreement until the termination of the Commitments and the payment in full of all Obligations, and the occurrence of any event or condition that causes compliance with a covenant to cease shall constitute a breach of such covenant on each day such event or condition continues.

Section 10.22 (Survival). All representations and warranties made by any Loan Party in this Agreement, in any other Loan Document, or in any certificate, statement, report, financial statement or other writing delivered by or on behalf of any Loan Party in connection with this Agreement or any other Loan Document shall be deemed to be relied upon by the Administrative Agent, the Collateral Agent, the Issuing Banks, the Swingline Lenders and the Lenders, and shall survive the execution and delivery of this Agreement and the other Loan Documents, the making of each Loan, the issuance of each Letter of Credit, and any investigation or examination made by or on behalf of any such Person, and shall continue in full force and effect so long as any Commitment, Loan, Letter of Credit or other Obligation remains outstanding. No such investigation or examination, and no waiver or consent with respect to any of the foregoing, shall affect the right of any such Person to rely upon any such representation or warranty or to enforce the same, or shall limit any liability of any Loan Party with respect thereto.

All covenants and agreements made by any Loan Party in this Agreement or any other Loan Document shall remain in full force and effect and shall be enforceable by the Administrative Agent, the Collateral Agent, the Issuing Banks, the Swingline Lenders and the Lenders so long as any Commitment, Loan, Letter of Credit or other Obligation remains outstanding, regardless of any waiver, amendment, consent, forbearance, course of dealing, release of Collateral, or acceptance of additional credit support, except to the extent otherwise expressly waived or amended in accordance with the provisions of the Credit Agreement. Without limiting the foregoing, any covenant or agreement that by its terms requires performance after the expiration or termination of the Commitments, the repayment of all Loans, the expiration or termination of all Letters of Credit, or the payment in full of all other Obligations shall continue to be performed in accordance with its terms.

All indemnification, reimbursement, contribution, exculpation and payment obligations of the Loan Parties under this Agreement and the other Loan Documents, including all obligations to pay or reimburse costs, expenses, losses, claims, damages, judgments, fines, penalties, liabilities, interest, fees and related amounts, shall survive the termination of the Commitments, the expiration or termination of all Letters of Credit, the repayment of all Loans,

the payment in full of all other Obligations, the release of all Collateral, and any foreclosure, enforcement or other exercise of remedies with respect to any Collateral, and shall continue in full force and effect thereafter, whether or not the Credit Agreement or any other Loan Document has been terminated, and whether or not any Loan Party has been discharged, released or dissolved.

The provisions of this Section shall be in addition to, and not in limitation of, any other survival provisions contained in this Agreement or any other Loan Document, and shall not be construed to limit any provision of any Loan Document that by its terms continues or requires performance after the termination of this Agreement or the payment in full of the Obligations.

Section 10.23 (Payments Set Aside). To the extent that any payment made by or on behalf of any Loan Party under this Credit Agreement or any other Loan Document, or any payment made by or on behalf of any Loan Party to any Lender, the Administrative Agent, the Issuing Bank, or the Swingline Lender, or any Affiliate of any of the foregoing, is subsequently invalidated, declared to be fraudulent or preferential, rescinded, set aside, or is required to be repaid to a trustee, receiver, or any other Person under any bankruptcy law, insolvency law, fraudulent conveyance law, or similar law, then, to the extent of such payment or recovery, the Obligations or part thereof originally intended to be satisfied shall be revived and continued in full force and effect, as if such payment or recovery had not occurred, and shall remain payable by the Loan Parties as provided in this Credit Agreement.

Each Loan Party agrees that, in the event of any such invalidation, rescission, set aside, or required repayment, the Administrative Agent and each holder of any Obligation shall be entitled to all rights, remedies, and protections provided under this Credit Agreement and the other Loan Documents with respect to such revived Obligations, including, without limitation, all rights with respect to, and the continuation of, any Liens securing such Obligations, and each Loan Party shall, upon demand, take all actions necessary to restore and maintain the validity, perfection, and priority of such Liens to the same extent as if such payment had not been made.

Notwithstanding the foregoing, to the extent that any payment or recovery referred to in this Section 10.23 is received by a Lender, the Administrative Agent, the Issuing Bank, the Swingline Lender, or any Affiliate of any of the foregoing, the recipient shall, to the extent permitted by applicable law, be obligated to return such payment or recovery to the applicable debtor or trustee in bankruptcy, receiver, or other Person making such claim, and the provisions of this Section 10.23 shall apply to the Obligations to the extent of the amount so returned, revived, and continued.

This Section 10.23 shall survive the termination of this Credit Agreement and the payment in full of the Obligations and the resignation or replacement of the Administrative Agent, the Issuing Bank, and the Swingline Lender, and shall be binding upon the Loan Parties and their respective successors and assigns.

Section 10.24 (Treatment of Certain Information; Non-Public Information). (a) For purposes of this Section, "Non-Public Information" means any information that constitutes material non-public information with respect to the Borrower or any of its Subsidiaries, and "Public Information" means any information that is not Non-Public Information. The Administrative Agent shall have no obligation to determine whether any information delivered to it or by it constitutes Non-Public Information or Public Information, and the Administrative Agent shall have no liability to any Person for any disclosure made in reliance on any designation or notice delivered under this Section,

except for disclosure resulting from the gross negligence or willful misconduct of the Administrative Agent as determined in a final, nonappealable judgment of a court of competent jurisdiction.

(b) Each Lender may deliver to the Administrative Agent a written notice designating the officers, employees, agents, and representatives of such Lender who are authorized to receive Non-Public Information. Any Lender that does not deliver such a written notice shall be deemed to have designated all of its officers, employees, agents, and representatives as authorized recipients of Non-Public Information. The Administrative Agent shall be entitled to rely conclusively on any such notice and shall have no liability for delivering Non-Public Information to any Person designated in any such notice or to any Lender that has not delivered a notice under this paragraph.

(c) Any Lender that wishes to be treated as a "Public Lender" shall deliver to the Administrative Agent a written notice identifying one or more contact persons at such Lender who shall receive only Public Information. All Lenders that have not delivered such a written notice shall be treated as private Lenders and may receive Non-Public Information. The Administrative Agent shall not deliver Non-Public Information to any Public Lender or to any contact person identified in a notice under this paragraph; provided that the Administrative Agent shall have no liability for any inadvertent delivery of Non-Public Information to a Public Lender or to any such contact person unless such delivery resulted from the gross negligence or willful misconduct of the Administrative Agent.

(d) Any Lender may change its designation under paragraph (b) or (c) of this Section by delivering an updated written notice to the Administrative Agent. The updated designation shall be effective upon receipt by the Administrative Agent. A Lender that has changed its designation from a Public Lender to a private Lender shall be entitled to receive Non-Public Information only after the effective date of such updated designation and shall continue to be bound by applicable law and its internal compliance policies with respect to any Non-Public Information previously received.

(e) Each Lender acknowledges that the Administrative Agent may receive or be in possession of Non-Public Information concerning the Borrower and its Subsidiaries. Neither the Administrative Agent nor any of its Affiliates or representatives shall have any obligation to disclose any Non-Public Information to any Lender, and no Lender shall have any right to receive Non-Public Information except as expressly provided in this Agreement.

(f) Each Lender represents and warrants to the Administrative Agent that it has established and will maintain procedures for the handling of Non-Public Information in accordance with applicable securities laws and its internal compliance policies, and each Lender agrees that it shall be solely responsible for compliance with such laws and policies. No Lender or any of its Affiliates shall use Non-Public Information in any manner that would constitute a violation of applicable law.

(g) The Borrower consents to the disclosure by the Administrative Agent to the Lenders and their permitted participants and prospective assignees of Non-Public Information received by the Administrative Agent from the Borrower or from any other source, subject to applicable law and the provisions of this Agreement. The Borrower agrees that neither the Administrative Agent nor any Lender shall be required to return or destroy Non-Public Information except as may be required by the express terms of any confidentiality agreement or by applicable law.

(h) No provision of this Section shall be construed to create any fiduciary duty or other duty of trust on the part of the Administrative Agent or any Lender to any other Lender with respect to Non-Public Information, and the receipt

of Non-Public Information by any Lender shall not create a fiduciary relationship among the Borrower, the Administrative Agent, and such Lender. Each Lender shall be solely responsible for determining whether it may receive, use, or act upon any Non-Public Information under applicable law and for any consequences of doing so.
Section 10.25 (No Advisory or Fiduciary Responsibility). Each Loan Party acknowledges that it has had the opportunity to review the Credit Agreement, the other Loan Documents and the Transactions with its own legal, accounting, tax and financial advisors, and that it has made its own independent decision to enter into the Credit Agreement and the other Loan Documents based upon its own judgment and the advice of its own advisors. Each Loan Party further acknowledges that the Administrative Agent, each Arranger, each Lender, each Issuing Bank, each Swingline Lender and any Affiliate of any of the foregoing (collectively, the "Agent Parties") has acted and is acting solely as a principal in connection with the Credit Agreement, the other Loan Documents and the Transactions, and not as an agent, fiduciary, trustee or advisor to any Loan Party, any Affiliate of any Loan Party or any other person. No fiduciary or implied duty of any kind shall be deemed to arise between any Loan Party and any Agent Party by reason of the Credit Agreement, any other Loan Document, the Transactions, any course of dealing between the parties, industry custom or otherwise.
Each Loan Party severally acknowledges that none of the Agent Parties has provided, or will provide, any advice, opinion or recommendation to any Loan Party or any Affiliate of any Loan Party regarding the legal, tax, accounting, financial, commercial, regulatory or other merits of the Credit Agreement, the other Loan Documents or the Transactions, and that the Loan Parties have not relied and will not rely on any Agent Party for any such advice. The relationship among each Loan Party, on the one hand, and the Agent Parties, on the other hand, in connection with the Credit Agreement and the other Loan Documents is, and shall be, solely that of debtor and creditor, and no arrangement among any of the Agent Parties and any Loan Party shall give rise to any advisory, fiduciary or agency duty on the part of any Agent Party.
No Agent Party shall have any duty to disclose to any Loan Party any information, whether or not material, relating to any Loan Party, any Affiliate of any Loan Party, any other obligor or any of their respective affiliates that is acquired by any Agent Party in connection with the Credit Agreement, the other Loan Documents or the Transactions or otherwise, except as expressly required by the Credit Agreement or applicable Law. No Agent Party shall be obligated to refrain from engaging in any business or providing any financing, investment, underwriting, advisory or other service to or for any person, including any person whose interests may be adverse to the interests of any Loan Party, or from purchasing, selling or holding any security or other financial instrument, in each case whether or not such business, service, purchase, sale or holding is similar to or competitive with any business or activity in which any Loan Party or any Affiliate of any Loan Party may engage.
Each Loan Party severally waives, to the fullest extent permitted by applicable Law, any claim it may have against any Agent Party for breach of fiduciary duty, breach of implied duty, or any advisory duty in connection with the Credit Agreement, the other Loan Documents or the Transactions. Each Loan Party agrees that no Agent Party shall have any liability to any Loan Party, its Affiliates or its equityholders, whether in contract, tort, equity or otherwise, for any action taken or omitted to be taken by any Agent Party in connection with the Credit Agreement, the other Loan Documents or the Transactions, except for direct, actual damages suffered by such Loan Party and determined

by a final, non-appealable judgment of a court of competent jurisdiction to have resulted from such Agent Party's gross negligence or willful misconduct. Nothing in this Section shall limit any express obligation of any Agent Party under the Credit Agreement or any other Loan Document.

Each Loan Party acknowledges that the Agent Parties may have interests that conflict with the interests of the Loan Parties, including, without limitation, by reason of existing or future lending, financing, hedging, investment, advisory or other relationships between any Agent Party and other persons, and that none of the Agent Parties shall be required to disclose any such relationship or any action taken in connection therewith to any Loan Party or any Affiliate of any Loan Party. No Loan Party will contend, in any action, suit, proceeding, claim or otherwise, that any Agent Party has any fiduciary or advisory duty to such Loan Party or any Affiliate of such Loan Party or that any Agent Party is an agent, trustee or partner of such Loan Party or any Affiliate of such Loan Party.

The provisions of this Section are for the benefit of the Agent Parties and their respective successors and assigns, and shall survive the execution and delivery of the Credit Agreement and the other Loan Documents, the making of any Loans, the issuance of any Letters of Credit, the repayment of all Obligations, the termination of the Commitments and the termination of the Credit Agreement.

Section 10.26 (Right of Setoff (Cash Management Banks)). (a) Subject to the terms of this Section, upon the occurrence and during the continuation of an Event of Default, each Cash Management Bank is hereby authorized, at any time and from time to time, without notice to any Loan Party or any other Person, all such notices being expressly waived by each Loan Party, to the fullest extent permitted by law, to set off, appropriate, and apply any and all deposits, balances, credits, accounts, securities, instruments, financial assets, funds, indebtedness, and other property and claims of any kind, whether general or special, time or demand, provisional or final, matured or unmatured, held or carried by, or otherwise owing by, such Cash Management Bank, including any branch or agency of such Cash Management Bank, to or for the credit of any Loan Party or any Guarantor, against any and all Cash Management Obligations of such Loan Party or such Guarantor to such Cash Management Bank, whether now existing or hereafter arising, direct or indirect, absolute or contingent, matured or unmatured, joint or several. Each Loan Party and each Guarantor waives, to the fullest extent permitted by law, any requirement of presentment, demand, protest, notice of dishonor, notice of nonpayment, notice of intent to set off, and all other notices in connection with the exercise of setoff by a Cash Management Bank.

(b) Promptly after any Cash Management Bank exercises a right of setoff under this Section, such Cash Management Bank shall notify the Administrative Agent and the applicable Loan Party of such setoff and the amount of Cash Management Obligations to which such setoff was applied; provided that the failure to provide such notice shall not affect the validity or enforceability of such setoff. No Cash Management Bank shall be required to exercise any right of setoff, and the failure to exercise a right of setoff shall not constitute a waiver of any right of setoff, banker's lien, or other remedy.

(c) No Cash Management Bank shall exercise a right of setoff under this Section with respect to any Cash Management Obligation unless such Cash Management Obligation is owed to such Cash Management Bank by the Loan Party or Guarantor against whose property or obligations such right of setoff is exercised. No Cash Management Bank shall set off against any deposit, account, or other amount that is subject to a lien or security

interest in favor of the Collateral Agent for the benefit of the Secured Parties unless the Collateral Agent has consented in writing to such setoff. Each Cash Management Bank shall hold any amount set off by it in excess of the aggregate Cash Management Obligations of the applicable Loan Party or Guarantor to such Cash Management Bank in trust for such Loan Party or Guarantor and shall promptly return such excess to such Loan Party or Guarantor. If any Cash Management Bank elects to set off an amount in respect of a Cash Management Obligation that is not then due and payable, such Cash Management Bank may, in its sole discretion, hold such amount as cash collateral for such Cash Management Obligation until such time as such Cash Management Obligation becomes due and payable, at which time such amount may be applied to such Cash Management Obligation in accordance with this Section.

(d) The rights and remedies of each Cash Management Bank under this Section are in addition to, and not in limitation of, all other rights and remedies of such Cash Management Bank under applicable law, the Loan Documents, or any Cash Management Agreement, including other rights of setoff, banker's lien, and counterclaim. Each Cash Management Bank agrees to comply with the payment sharing provisions of this Agreement in respect of any amount set off under this Section to the same extent as if such amount had been received by a Lender in respect of the Obligations. If any amount set off and applied to Cash Management Obligations is subsequently required to be returned by such Cash Management Bank by reason of any insolvency, preference, fraudulent transfer, or other law, the Cash Management Obligations so satisfied shall be reinstated to the extent of such returned amount. This Section shall survive the termination of this Agreement and the payment in full of all Cash Management Obligations to the extent necessary to permit the exercise of setoff in respect of any amounts outstanding at the time of such termination.

Section 10.27 (Amendment and Restatement; No Novation). Upon the date on which this Agreement becomes effective in accordance with the terms hereof, this Agreement shall amend, restate, supersede and replace in its entirety that certain credit agreement, dated as of the date specified in the recitals to this Agreement, among the Borrower, the financial institutions party thereto as lenders, the financial institutions party thereto as issuing banks and swingline lenders, and the Administrative Agent, as previously amended, restated, supplemented, waived or otherwise modified prior to the date of this Agreement (the "Existing Credit Agreement"). From and after such date, the Existing Credit Agreement shall be of no further force or effect, and all references to the Existing Credit Agreement in any Loan Document or any other agreement, document, instrument or certificate executed and delivered in connection with this Agreement or the other Loan Documents shall be deemed to refer to this Agreement as the same may be further amended, restated, supplemented or otherwise modified from time to time. The parties hereto acknowledge and agree that this Agreement is an amendment and restatement of the Existing Credit Agreement and is not intended to constitute, and shall not be construed to constitute, a novation, an accord and satisfaction, a payment, a discharge, a release or a waiver of any of the obligations, liabilities, agreements, covenants or duties of any Loan Party or any other obligor under the Existing Credit Agreement, nor shall this Agreement constitute a release or impairment of any Lien or other security interest or any guarantee of any of the Obligations. No existing debt shall be discharged, released or extinguished, and no existing obligation shall be reinstated or replaced, as a result of the execution, delivery or effectiveness of this Agreement. All obligations, loans, letters of credit, guarantees, security interests and other Liens in existence under the Existing Credit

Agreement immediately prior to the date of this Agreement shall continue and remain in full force and effect as obligations, loans, letters of credit, guarantees, security interests and other Liens under this Agreement and the other Loan Documents, and all such obligations shall constitute, and shall continue to constitute, Obligations under this Agreement and the other Loan Documents.

Without limiting the generality of the immediately preceding paragraph, all guarantees, pledges, security agreements, mortgages, deeds of trust, assignments, financing statements and other instruments and documents executed and delivered in connection with the Existing Credit Agreement shall continue in full force and effect and shall guarantee, secure, support or otherwise apply to the Obligations and the other obligations under this Agreement and the other Loan Documents, in each case as if such guarantees, pledges, security agreements, mortgages, deeds of trust, assignments, financing statements and other instruments and documents had been executed and delivered in connection with this Agreement. Each of the Administrative Agent, the Issuing Banks, the Swingline Lenders and the Lenders shall be entitled to the benefits and protection of all such guarantees, pledges, security agreements, mortgages, deeds of trust, assignments, financing statements and other instruments and documents, and no such guarantee, pledge, security agreement, mortgage, deed of trust, assignment, financing statement or other instrument or document shall be released, terminated, amended or otherwise impaired by the execution, delivery or effectiveness of this Agreement.

Each Loan Party hereby ratifies and confirms all of its respective obligations under the Loan Documents and under all guarantees, security agreements, mortgages, deeds of trust, assignments, financing statements and other instruments and documents executed and delivered in connection with the Existing Credit Agreement, all of which shall remain in full force and effect and are hereby ratified and confirmed. Nothing contained in this Section shall be deemed to release any Loan Party or other obligor from any of its obligations, or to release, terminate or otherwise impair any Lien or security interest held by or on behalf of the Administrative Agent or the Lenders. For the avoidance of doubt, all obligations outstanding under the Existing Credit Agreement immediately prior to the date of this Agreement, whether absolute or contingent, matured or unmatured, direct or indirect, shall constitute Obligations under this Agreement.

Section 10.28 (Certain Notices Regarding Benchmark Replacement). (a) The Administrative Agent shall promptly notify the Borrower and each Lender upon the occurrence of any Benchmark Transition Event, the commencement of any Benchmark Unavailability Period, the occurrence of the Benchmark Replacement Date, and the implementation of any Benchmark Replacement or Benchmark Replacement Conforming Changes. Each such notice shall be given as soon as reasonably practicable after the Administrative Agent obtains actual knowledge of the applicable event, implementation, or date, and in no event later than two Business Days after such actual knowledge, and shall specify, to the extent then known, the Benchmark Replacement implemented or to be implemented, the Benchmark Replacement Date, any Benchmark Unavailability Period then continuing or reasonably expected to commence, and each Benchmark Replacement Conforming Change that has been made or is to be made.

(b) Any notice required by paragraph (a) of this Section may be delivered, or caused to be delivered, by the Administrative Agent in accordance with the notice provisions of the Credit Agreement, including by electronic

mail, by posting to an electronic platform, or by any other method authorized by the Credit Agreement. Each such notice shall be in writing and shall be deemed effective upon delivery in accordance with the applicable notice provisions of the Credit Agreement.

(c) The Administrative Agent shall have no obligation to monitor, ascertain, or verify the occurrence of any Benchmark Transition Event or Benchmark Unavailability Period or the effectiveness of any Benchmark Replacement and shall not be liable to the Borrower or any Lender for any failure to provide any notice required by this Section except to the extent such failure is attributable to the gross negligence or willful misconduct of the Administrative Agent as determined in a final, non-appealable judgment of a court of competent jurisdiction. If the Administrative Agent receives written notice from the Borrower or any Lender asserting that a Benchmark Transition Event or Benchmark Unavailability Period has occurred or may be imminent, the Administrative Agent shall promptly transmit such notice to the other parties to the Credit Agreement, but the Administrative Agent shall have no duty to investigate or confirm the matters asserted in such notice.

(d) Each notice delivered pursuant to this Section shall be conclusive and binding on the Borrower and each Lender absent manifest error. The Borrower and each Lender may rely upon any such notice without making any independent investigation or inquiry, and no party shall have any claim against the Administrative Agent with respect to any action taken or omitted to be taken in reliance upon any such notice, except as set forth in paragraph (c) of this Section.

(e) If a Benchmark Replacement Date has occurred and is continuing, the Administrative Agent shall set forth in each notice delivered pursuant to this Section the Benchmark Replacement then in effect and, if applicable, the Benchmark Unavailability Period then continuing. The Administrative Agent shall also give notice to the Borrower and each Lender of any change from one Benchmark Replacement to another Benchmark Replacement and of any modification to any Benchmark Replacement Conforming Changes, in each case as soon as reasonably practicable after such change or modification has been determined.

(f) The Borrower shall promptly notify the Administrative Agent upon becoming aware that any Benchmark Transition Event or Benchmark Unavailability Period has occurred or is reasonably likely to occur and shall provide to the Administrative Agent such information as the Administrative Agent may reasonably request in connection with any determination made by the Administrative Agent under the definition of Benchmark Replacement or any related definition. The Administrative Agent may rely conclusively on any such information provided by the Borrower and shall have no duty to verify the accuracy or sufficiency of such information.

(g) At any time after the delivery of a notice pursuant to this Section, the Administrative Agent shall, upon the reasonable request of the Borrower or any Lender, provide to the requesting party such information with respect to the basis for the determination or implementation described in such notice as the Administrative Agent then has in its possession or is reasonably able to obtain. The Administrative Agent shall have no responsibility to prepare or provide any information not in its possession or reasonably available to it and shall have no further notice obligations with respect to any Benchmark except as expressly set forth in this Section.

Section 10.30 (Lender-Provided Cash Management Services). (a) The Borrower may from time to time request one or more Lenders or any Affiliate of a Lender to provide Cash Management Services to any Loan Party or any

Subsidiary. Any Lender or Affiliate of a Lender that provides any Cash Management Services is referred to in this Section as a Lender Provider. No Lender Provider shall have any obligation to provide any Cash Management Services, and each Lender Provider may, in its sole discretion, accept or reject any request to provide Cash Management Services and may, in its sole discretion and upon such notice as is required by the applicable Cash Management Services agreement, terminate any Cash Management Services. Cash Management Services shall be provided solely pursuant to the terms and conditions of the applicable Cash Management Services agreement, documentation or other arrangement between the applicable Lender Provider and the applicable Loan Party or Subsidiary, and not pursuant to this Agreement, except that the repayment obligations and other liabilities arising in connection with such Cash Management Services shall, if so provided in the applicable Cash Management Services agreement and to the extent not expressly excluded from the obligations secured and guaranteed by the Loan Documents, constitute Cash Management Obligations for all purposes of this Agreement.

(b) The Borrower shall, and shall cause each Loan Party and each Subsidiary to, execute and deliver to each Lender Provider such agreements, certificates, authorizations, instructions and other documents as such Lender Provider may reasonably request to establish, maintain, operate and terminate any Cash Management Services, including the opening and maintaining of deposit accounts, the designation of authorized signatories, the execution of automated clearing house and wire transfer authorizations and the execution of any electronic banking services agreement. Each Loan Party and each Subsidiary that uses any Cash Management Services shall comply with all terms and conditions of the applicable Cash Management Services agreement and all applicable laws, rules and regulations. Any Cash Management Services agreement may contain representations, warranties, covenants, events of default, fees, expense reimbursement provisions, indemnities and other terms as the parties thereto may agree, but no such agreement shall modify, amend or waive any provision of the Credit Agreement or any other Loan Document without the prior written consent of the Administrative Agent.

(c) Each Lender Provider shall be entitled to all rights, benefits and protections afforded to Secured Parties under the Loan Documents with respect to Cash Management Obligations, including the right to share in the Collateral and the proceeds thereof as provided in the Loan Documents. To the extent not already included in the definition of Secured Party under the Loan Documents, each Lender Provider shall be deemed a Secured Party for purposes of the Loan Documents with respect to its Cash Management Obligations. No Lender Provider shall be deemed to be a fiduciary or advisor to any Loan Party or any Subsidiary with respect to any Cash Management Services. No Lender Provider shall have any duty to monitor or verify the use of proceeds of any Cash Management Services, and no Lender Provider shall have any duty to disclose any information regarding any Loan Party or any Subsidiary to any other Lender Provider, the Administrative Agent or any other Person, except as may be expressly required by applicable law or by the terms of the Credit Agreement.

(d) The Borrower shall pay to each Lender Provider, within ten days after demand, all fees, costs, expenses, indemnities and other amounts due from any Loan Party or any Subsidiary to such Lender Provider pursuant to the applicable Cash Management Services agreement, together with interest thereon, if any, as provided in such Cash Management Services agreement. Each Lender Provider may exercise any right of setoff, banker's lien or similar right with respect to deposits and other balances held by such Lender Provider to secure Cash Management

Obligations only to the extent such right is set forth in the applicable Cash Management Services agreement and is not otherwise limited by the Loan Documents. The exercise of any such setoff, banker's lien or similar right shall be subject to the applicable provisions of the Credit Agreement governing the application of proceeds of Collateral.

(e) No Lender Provider shall be liable to any Loan Party, any Subsidiary or any other Person for any special, indirect, incidental, consequential, punitive or exemplary damages, including loss of profits, revenue or business, arising from or relating to any Cash Management Services, except to the extent determined by a final, nonappealable judgment of a court of competent jurisdiction to have resulted from the gross negligence, bad faith or willful misconduct of such Lender Provider. Nothing in this Section shall impose any duty or obligation on the Administrative Agent to administer, monitor, or inquire into any Cash Management Services, and the Administrative Agent shall not have any liability for the actions, inactions, acts or omissions of any Lender Provider or for the performance or nonperformance of any Cash Management Services.

(f) The provisions of this Section are for the benefit of the Lender Providers, and no other Person shall have any rights, benefits or remedies under this Section except as expressly provided in the Credit Agreement or the other Loan Documents. This Section does not require any Lender to provide Cash Management Services and does not condition the availability of the credit facility established under the Credit Agreement on the availability of Cash Management Services. Neither the termination of any Cash Management Services nor the failure of any Lender Provider to provide any Cash Management Services shall affect the obligations of the Loan Parties under the Credit Agreement or the other Loan Documents.

Section 10.31 (Erroneous Payment Subrogation). (a) For purposes of this Section, "Erroneous Payment" means any payment, credit, or other distribution made by the Administrative Agent or any of its Affiliates to any Lender, any Issuing Lender, any Swingline Lender, any holder of any participation in any Loan, Letter of Credit, or Swingline Loan, or any other Person (each such recipient, a "Payment Recipient") under or in connection with any Loan Document that, as determined by the Administrative Agent in its sole discretion, is made in an amount greater than the amount required to be paid or credited to such Payment Recipient, is made on a date earlier than the date on which such payment or credit is required to be made, is made in respect of an amount that has previously been paid or credited to such Payment Recipient, or is otherwise erroneously or mistakenly made, including, without limitation, by reason of a clearing, settlement, wire transfer, data processing, accounting, or similar error. For the avoidance of doubt, an Erroneous Payment shall not include any payment, credit, or other distribution made by the Administrative Agent to a Payment Recipient in accordance with the express terms of the Loan Documents.

(b) If the Administrative Agent notifies a Payment Recipient that an Erroneous Payment has been made to such Payment Recipient, such Payment Recipient shall promptly, and in any event no later than two Business Days after the date of such notice, return to the Administrative Agent the full amount of such Erroneous Payment, together with interest thereon from the date such Erroneous Payment was received by such Payment Recipient to the date of such return at the greater of the Federal Funds Effective Rate and a rate determined by the Administrative Agent in accordance with banking industry rules on overnight funds, in each case in immediately available funds in the currency in which such Erroneous Payment was made. Until such return, the Payment Recipient shall hold such Erroneous Payment in trust for the benefit of the Administrative Agent and shall not, and shall not permit any of its

Affiliates to, use, pledge, invest, commingle, or otherwise dispose of such Erroneous Payment; provided, that nothing in this paragraph shall require the Payment Recipient to segregate such Erroneous Payment from other funds held by it. The Administrative Agent shall have no obligation to notify any Payment Recipient of an Erroneous Payment, and the failure of the Administrative Agent to provide any such notice shall not limit the rights of the Administrative Agent under this Section or otherwise.

(c) To the extent that any Erroneous Payment or any portion thereof is not returned to the Administrative Agent in accordance with paragraph (b) of this Section, the Administrative Agent shall be automatically and without further action subrogated to all rights, interests, remedies, and claims of the applicable Payment Recipient with respect to such Erroneous Payment, including, without limitation, all rights of such Payment Recipient against the Borrower, any other Loan Party, and any other obligor in respect of the obligations that gave rise to such Erroneous Payment, and each Payment Recipient shall take such further action and execute such further documents as the Administrative Agent may reasonably request in order to evidence, perfect, preserve, protect, or enforce such subrogation rights. The Administrative Agent may also set off, recoup, and apply any and all amounts owing by such Payment Recipient to the Administrative Agent or any of its Affiliates against any amounts payable by such Payment Recipient to the Administrative Agent in respect of any Erroneous Payment.

(d) No Erroneous Payment shall operate to reduce, satisfy, discharge, or otherwise affect any obligation of the Borrower, any Guarantor, or any other Loan Party under any Loan Document, and each payment, credit, or other distribution constituting an Erroneous Payment shall be deemed to have been made solely for the account and benefit of the applicable Payment Recipient and not for the account or benefit of the Borrower or any other Loan Party. In the event that any Erroneous Payment or any portion thereof is not recovered by the Administrative Agent from the applicable Payment Recipient for any reason, the Borrower and each other Loan Party shall remain liable for the full amount of the underlying obligation in respect of which such Erroneous Payment was made, and the Administrative Agent shall retain all rights and remedies with respect to such underlying obligation.

(e) Each Payment Recipient irrevocably waives any and all rights, claims, and causes of action, whether now existing or hereafter arising, against the Administrative Agent and any of its Affiliates with respect to any Erroneous Payment, including, without limitation, any claim for unjust enrichment, and shall, and shall cause its Affiliates to, refrain from asserting any such right, claim, or cause of action; provided, that the foregoing shall not prevent any Payment Recipient from asserting any claim for payment of any amount that is actually due and payable to it under the Loan Documents.

(f) The provisions of this Section shall survive the payment of all Obligations, the termination of the Commitments, the resignation or replacement of the Administrative Agent, and the termination of this Agreement and the other Loan Documents, and shall continue for the benefit of the Administrative Agent and its Affiliates.

Section 10.32 (Public-Side Information Disclosure Procedures). (a) The Administrative Agent shall maintain a list of Lenders and prospective Lenders that have notified the Administrative Agent in writing that they are Public Lenders and shall make such list available to the Borrower upon request. Each Lender that identifies itself as a Public Lender shall be deemed to have represented to the Administrative Agent and the Borrower that it is able to receive Public-Side Information and that it maintains compliance procedures that are adequate to protect against the

unauthorized use or disclosure of Private-Side Information.

(b) The Borrower shall designate, at the time of delivery, in a written notice to the Administrative Agent, all information, certificates, reports, notices, financial statements, and other materials delivered by or on behalf of the Borrower under this Agreement that are Public-Side Information. Any information so designated as Public-Side Information may be distributed by the Administrative Agent to Public Lenders through a public-side information portal or through any other means that the Administrative Agent determines to be appropriate. Any information not so designated shall be treated as Private-Side Information and shall be distributed only to Lenders that are not Public Lenders, or to their authorized representatives, through the private-side information portal or by other confidential means. For purposes of this Section, Public-Side Information means information that is publicly available or that the Borrower has designated in accordance with this paragraph as suitable for delivery to Public Lenders, and Private-Side Information means all other information delivered by or on behalf of the Borrower under this Agreement.

(c) If the Borrower delivers any information to the Administrative Agent without a written designation, the Administrative Agent shall be entitled to treat such information as Private-Side Information and to distribute it only in accordance with paragraph (b) above. The Administrative Agent shall not be required to determine whether any information designated as Public-Side Information contains material non-public information, to monitor compliance by any Lender with its internal policies, trading policies, or regulatory obligations, or to ensure that any Public Lender has in place adequate safeguards for the protection of material non-public information. The Administrative Agent may rely conclusively on the designations made by the Borrower and shall have no liability for any misclassification, unauthorized disclosure, or other misuse of information by the Borrower, any Lender, or any other Person.

(d) Each Lender that is a Public Lender shall be solely responsible for its own compliance with applicable securities laws, regulations, and internal policies with respect to the receipt and use of Public-Side Information. No Public Lender shall be entitled to receive Private-Side Information, and none of the Administrative Agent, the Borrower, or any subsidiary of the Borrower shall have any obligation to deliver Private-Side Information to any Public Lender. A Lender may change its status as a Public Lender by delivering written notice to the Administrative Agent, and such change shall be effective at the time the Administrative Agent updates the list of Public Lenders maintained pursuant to paragraph (a) above.

(e) Notwithstanding the foregoing, the Borrower shall not be obligated to deliver any Public-Side Information through a public-side information portal, or to make any information available to any Public Lender, if the Borrower reasonably determines that such delivery or availability would violate any law, regulation, or binding confidentiality or other agreement to which the Borrower or any of its subsidiaries is a party, or would result in the disclosure of material non-public information in a manner inconsistent with the Borrower's or any subsidiary's securities trading, disclosure, or confidentiality policies. In such event, the Borrower shall promptly notify the Administrative Agent of such determination and shall make such information available to Lenders that are not Public Lenders in accordance with this Section and the other provisions of this Agreement.

(f) The Administrative Agent may establish procedures for the posting of Public-Side Information and Private-Side Information on one or more electronic platforms and may require Lenders and prospective Lenders to elect, through

such platforms or otherwise, whether they are Public Lenders. The Administrative Agent may rely on any such election and shall have no obligation to verify the accuracy of any such election. Nothing in this Section shall be construed to require the Borrower to disclose any information to any Lender that the Borrower is not otherwise required to disclose under this Agreement, or to limit, supersede, or modify any confidentiality or information-sharing provision of this Agreement.

Section 10.33 (Electronic Execution of Assignments and Certain Other Documents). (a) The words "execute," "execution," "signed," "signature," and words of like import in this Agreement, in each other Loan Document, and in each assignment, assumption, joinder, amendment, waiver, consent, or other agreement, instrument, or document contemplated by this Agreement or any other Loan Document or delivered in connection therewith, shall be deemed to include electronic signatures, electronic records, and electronic contract formation, including signatures, records, and contract formations created, executed, adopted, or transmitted by means of an electronic signature platform approved by the Administrative Agent, and including any electronic reproduction of a manual signature.

(b) Each of the Loan Parties, the Administrative Agent, each Issuing Bank, and each Lender may, in its sole discretion, execute or accept any such Loan Document or other document through the use of electronic signatures, and may deliver executed signature pages by electronic transmission. The Administrative Agent may establish, and may amend from time to time, reasonable procedures for the use of electronic signatures and electronic delivery, including the designation of approved electronic signature platforms. Any such procedures shall be communicated to the Lenders, the Issuing Banks, and the Loan Parties, and each party shall comply with such procedures in connection with any electronic execution or delivery.

(c) Any electronic signature on, or electronic execution or delivery of, any Loan Document or other document described in paragraph (a) above shall be binding on each party to the same extent as a manually executed original signature and shall be given the same legal effect, validity, and enforceability as a written signature, to the fullest extent permitted by applicable law, including any applicable state electronic transactions act and the federal Electronic Signatures in Global and National Commerce Act. No party to any such document shall contest the validity, binding effect, or enforceability of such document solely because it was executed electronically or delivered by electronic transmission, and each such party waives any defense based on the absence of a manual signature or the use of an electronic record.

(d) Delivery of an executed counterpart of a signature page of any Loan Document or other document described in paragraph (a) above by electronic transmission, including by electronic mail in portable document format, by facsimile, or by means of an approved electronic signature platform, shall be as effective as delivery of a manually executed counterpart of such document. Any party delivering such an executed counterpart may also deliver a manually executed counterpart to the extent the Administrative Agent or any other party to such document reasonably requests.

(e) Without limiting the foregoing, the parties to any assignment or assumption effected pursuant to this Agreement may enter into such assignment or assumption through the electronic matching of assignment terms and the electronic execution of the applicable assignment agreement using an electronic signature platform approved by the Administrative Agent. No such assignment or assumption shall be ineffective or unenforceable solely because it was

executed and delivered by electronic means in accordance with this Section.

(f) The Administrative Agent may require that any Loan Document or other document described in paragraph (a) above be executed manually and not electronically if the Administrative Agent determines in its sole discretion that manual execution is necessary or advisable, including for the enforceability, validity, recording, filing, or registration of such document in any jurisdiction. Upon any such determination, the applicable parties shall promptly cooperate to execute and deliver a manually executed counterpart of such document, and until such manually executed counterpart is delivered, any electronically executed version shall have been effective solely to the extent permitted by applicable law.

(g) Nothing in this Section shall require any party to accept any electronic signature or electronic record if such party reasonably determines that such acceptance would violate applicable law, and no party shall be liable to any other party for declining to accept any electronic signature or electronic record under such circumstances. For the avoidance of doubt, this Section does not apply to any document that expressly requires a manual signature or notarization under its terms, or that under applicable law must be executed manually or notarized, unless the Administrative Agent and the applicable parties otherwise agree in writing.

Section 10.35 (Assignments to Federal Reserve Banks). Notwithstanding anything to the contrary in this Credit Agreement or any other Loan Document, any Lender may, at any time and from time to time, without the consent of the Borrower, the Administrative Agent, the Collateral Agent, any Issuing Lender, the Swingline Lender, or any other Person and without payment of any assignment fee, processing fee, or other charge, (a) assign, sell, transfer, negotiate, or pledge all or any portion of its rights and obligations under this Credit Agreement and the other Loan Documents to any Federal Reserve Bank, or (b) grant participations in all or any portion of its rights and obligations under this Credit Agreement and the other Loan Documents to any Federal Reserve Bank. No such assignment, sale, transfer, negotiation, pledge, or participation shall be subject to, or restricted by, any of the limitations, conditions, or procedures set forth in the assignment and participation provisions of this Credit Agreement, other than the limitations and conditions set forth in this Section.

No assignment, sale, transfer, negotiation, pledge, or participation made pursuant to this Section shall relieve the assigning Lender from any of its obligations under this Credit Agreement or any other Loan Document, and the assigning Lender shall remain liable to the Credit Parties for the full amount of its Commitments and its outstanding Loans and all other obligations as if no such assignment, sale, transfer, negotiation, pledge, or participation had been made. The Borrower, the Administrative Agent, the Collateral Agent, the Issuing Lenders, the Swingline Lender, and the other Lenders shall continue to deal solely and directly with the assigning Lender in connection with the rights and obligations so assigned, sold, transferred, negotiated, pledged, or participated, and the assigning Lender shall remain responsible for the performance of all obligations, including all funding obligations, with respect to the assigned, sold, transferred, negotiated, pledged, or participated interests.

Each of the parties to this Credit Agreement acknowledges and agrees that (a) any Federal Reserve Bank that acquires rights under this Credit Agreement or any other Loan Document by assignment, sale, transfer, negotiation, pledge, or participation pursuant to this Section may exercise such rights solely to the extent necessary to preserve and enforce its security interest or other collateral rights in the related interests and may not exercise any consent,

approval, voting, or other right of a Lender or participant under this Credit Agreement, and (b) no Federal Reserve Bank shall be deemed to be a Lender, a participant, or a Credit Party under this Credit Agreement, nor shall any Federal Reserve Bank have any duty, obligation, or liability under this Credit Agreement or any other Loan Document, in each case solely as a result of any such acquisition; it being understood that any Federal Reserve Bank that becomes a party to an assignment, pledge, or participation agreement with a Lender may receive payments of principal, interest, fees, and other amounts in respect of the rights acquired by it to the extent and in the manner provided in such agreement.

Section 10.36 (Extensions of Credit to Affiliated Lenders). (a) Except as otherwise expressly provided in this Section, no Loan Party shall, and no Loan Party shall permit any of its Subsidiaries to, directly or indirectly, make, issue, extend, renew, increase, replace, or otherwise provide any Extension of Credit to, or for the benefit of, any Affiliated Lender, or assume, guarantee, endorse, or otherwise become liable with respect to any Extension of Credit made by any other Person to any Affiliated Lender. For purposes of this Section, an Extension of Credit to an Affiliated Lender shall be deemed to include any Extension of Credit to, for the account of, or for the benefit of such Affiliated Lender or any of its Affiliates.

(b) For the avoidance of doubt, no Extension of Credit made by an Affiliated Lender in its capacity as a Lender under this Agreement, and no acquisition by an Affiliated Lender of a Loan, a Commitment, or a participation in a Loan in accordance with the provisions of this Agreement, shall be deemed to be an Extension of Credit to such Affiliated Lender for purposes of this Section. No grant by any Loan Party of a Lien on any of its assets to secure any Obligation owing to an Affiliated Lender in its capacity as a Lender, and no payment by any Loan Party of principal, interest, fees, or other amounts in respect of any Loan, Letter of Credit, or other Obligation held by, or owed to, an Affiliated Lender in its capacity as a Lender, shall be deemed to be an Extension of Credit to such Affiliated Lender if such payment is made in accordance with the applicable provisions of this Agreement and the other Loan Documents.

(c) Notwithstanding subsection (a), a Loan Party may make, or permit any of its Subsidiaries to make, an Extension of Credit to an Affiliated Lender if each of the following conditions is satisfied:

(1) such Extension of Credit is made in the ordinary course of business and on terms, taken as a whole, that are no less favorable to such Loan Party or Subsidiary than would be obtained in a comparable arm's length transaction with a Person that is not an Affiliated Lender;

(2) such Extension of Credit has been approved by the board of directors or comparable governing body of such Loan Party or Subsidiary, including the affirmative vote of a majority of the disinterested members of such board or governing body;

(3) after giving effect to such Extension of Credit, no Default or Event of Default shall have occurred and be continuing;

(4) such Extension of Credit is not prohibited by the financial covenants set forth in Article VI; and

(5) the aggregate principal amount of all Extensions of Credit then outstanding from all Loan Parties to all Affiliated Lenders, after giving effect to such Extension of Credit, shall not exceed the aggregate principal amount of all Loans then outstanding under this Agreement that are held by Affiliated Lenders.

(d) Each Affiliated Lender shall, upon the reasonable request of the Administrative Agent or the Borrower, provide to the Administrative Agent and the Borrower a written certificate setting forth the outstanding aggregate principal amount of all Loans, Commitments, and other Extensions of Credit made by such Affiliated Lender under this Agreement and such other information as the Administrative Agent or the Borrower may reasonably request to confirm compliance with this Section.

(e) Any Extension of Credit made in violation of this Section shall be null and void ab initio, and no Loan Party shall have any liability or obligation to repay, pay interest on, or otherwise recognize any such Extension of Credit; provided, that if a Loan Party shall have received any funds or other consideration in connection with such Extension of Credit, such Loan Party shall promptly return such funds or consideration to the Person from whom it was received.

(f) No Loan Party shall make any payment, whether of principal, interest, fees, or otherwise, to or for the account of any Affiliated Lender in respect of any Loan, Letter of Credit, or other Obligation unless such payment is made in accordance with the provisions of this Agreement requiring the sharing of payments among the Lenders or is otherwise expressly permitted by this Agreement. Any such payment received by an Affiliated Lender in violation of this Section shall be held in trust for the benefit of the Administrative Agent and the Lenders and shall be promptly turned over to the Administrative Agent for distribution in accordance with the Loan Documents.

(g) The Administrative Agent shall have no obligation to monitor, verify, or enforce compliance with this Section, and shall be entitled to rely conclusively on any certificate or other information delivered by any Loan Party or Affiliated Lender in connection with this Section. Nothing in this Section shall create any duty on the part of the Administrative Agent to determine whether any Extension of Credit is an Extension of Credit to an Affiliated Lender.

Section 10.37 (Patriot Act Beneficial Ownership Updates). Each Loan Party, severally and not jointly, covenants and agrees that:

(a) upon the reasonable request of the Administrative Agent or any Lender, such Loan Party shall deliver to the Administrative Agent and each Lender, from time to time and including at the time any Lender first becomes a party to this Agreement, a Beneficial Ownership Certification and such other information, documentation, or certifications as the Administrative Agent or such Lender may reasonably request in order to satisfy the requirements of the Patriot Act, the Beneficial Ownership Rule, and any other applicable anti-money laundering, counter-terrorism, or customer identification laws, rules, regulations, orders, or governmental guidance, in each case in form and substance reasonably satisfactory to the Administrative Agent;

(b) such Loan Party shall promptly notify the Administrative Agent and each Lender in writing upon becoming aware of any change in the information provided in the most recently delivered Beneficial Ownership Certification that would cause such certification to be inaccurate, misleading, or incomplete, and such Loan Party shall deliver an updated Beneficial Ownership Certification to the Administrative Agent and each Lender no later than ten Business Days after the date of such notice; provided, however, that if as a result of such change a new Beneficial Ownership Certification rather than an update to the existing Beneficial Ownership Certification is required by the Beneficial Ownership Rule, such Loan Party shall deliver such new Beneficial Ownership Certification within ten Business

Days after the date of such notice, and the Administrative Agent may, in its reasonable discretion, extend such time period upon written notice to such Loan Party;

(c) such Loan Party shall use commercially reasonable efforts to cause each beneficial owner of such Loan Party identified in the most recently delivered Beneficial Ownership Certification to execute and deliver to the Administrative Agent and each Lender such certifications, affidavits, and supporting documentation as the Administrative Agent or any Lender may reasonably request in connection with any review or update of the information set forth in such certification, and to cooperate with the Administrative Agent and the Lenders in their efforts to verify the identity of such beneficial owner;

(d) upon the reasonable request of the Administrative Agent or any Lender, such Loan Party shall provide to the Administrative Agent and each Lender, within ten Business Days after such request, such additional information and documentation as may be reasonably available to such Loan Party to enable the Administrative Agent and the Lenders to comply with the Patriot Act, the Beneficial Ownership Rule, and any other applicable anti-money laundering, counter-terrorism, or customer identification laws, rules, regulations, orders, or governmental guidance, including, without limitation, information regarding the direct and indirect ownership of such Loan Party;

(e) the Administrative Agent and each Lender shall hold any Beneficial Ownership Certification and any information provided pursuant to this Section in confidence in accordance with the confidentiality provisions of this Agreement and shall use such information solely for purposes of complying with the Patriot Act, the Beneficial Ownership Rule, and any other applicable anti-money laundering, counter-terrorism, or customer identification laws, rules, regulations, orders, or governmental guidance, and for purposes of enforcing this Agreement; and

(f) for the avoidance of doubt, nothing in this Section shall be construed to require any Loan Party to take any action or deliver any information, documentation, or certification in violation of any applicable law, rule, regulation, order, or governmental guidance.

Section 10.38 (Time of the Essence). (a) Time is of the essence as to each covenant, agreement, condition, obligation, and provision of the Credit Agreement and each other Loan Document. Each date and time specified in any Loan Document for the payment of any amount, the delivery of any certificate, notice, statement, financial report, borrowing request, reduction notice, or other communication, the satisfaction of any condition precedent, or the performance of any other act is material and shall be observed strictly and without substitution.

(b) Without limiting the generality of the foregoing, all payments required to be made under the Credit Agreement or any other Loan Document must be received in immediately available funds by the time specified on the date on which such payment is due, and no notice of intention to pay, availability of funds, or other communication shall be sufficient to satisfy the obligation to pay unless such payment is actually received in the amount, currency, and account specified. If any date on which a payment is due is not a Business Day, the payment shall be made on the next succeeding Business Day, and such extension of time shall be taken into account in the calculation of interest and fees, as applicable, unless the Credit Agreement expressly provides otherwise for such payment.

(c) Each representation and warranty made in any Loan Document shall be true and correct in all material respects on and as of the date made and on and as of each date on which it is repeated or deemed made, and the accuracy of such representations and warranties shall be a condition to the availability of extensions of credit under the Credit

Agreement, in each case at the times and on the dates specified in the Credit Agreement.

(d) Any reference to a period of days in the Credit Agreement or any other Loan Document shall mean the full number of days specified, calculated by excluding the first day and including the last day, unless the period is expressed as Business Days or another defined term. When a notice, consent, approval, or other action is required to occur by a specified time, such action must be completed before such time in the time zone where such action is required to be taken, or if no time zone is specified, in the time zone of the office of the Administrative Agent specified in the Credit Agreement.

(e) No course of dealing, performance, or practice by any party, and no delay or failure by the Administrative Agent, any Issuing Bank, the Swingline Lender, or any Lender to require strict compliance with any time or date specified in the Credit Agreement or any other Loan Document, shall constitute a waiver of, or estoppel with respect to, any right to enforce any such time or date, or any other term or condition, and no single or partial exercise of any right or remedy shall preclude any other or further exercise thereof or the exercise of any other right or remedy. No extension of time for the performance of any obligation shall be implied from any waiver, consent, or forbearance, and no such extension shall be effective unless expressly set forth in a written amendment or waiver executed in accordance with the Credit Agreement.

Section 10.39 (No Third-Party Beneficiaries). (a) This Credit Agreement and each other Loan Document is made and entered into for the sole protection and benefit of the parties hereto and thereto and their respective permitted successors and assigns and, to the extent expressly provided in this Credit Agreement or such other Loan Document, the Administrative Agent, the Collateral Agent, the Issuing Banks, the Swingline Lender, the Lenders, each counterparty to any Hedging Agreement, each Cash Management Bank, each Indemnitee, and each other Person expressly entitled to receive payment or indemnification hereunder or thereunder, and no other Person shall have any right, benefit, priority, or interest under, or by reason of, this Credit Agreement or any other Loan Document, whether as a third-party beneficiary or otherwise.

(b) Nothing in this Credit Agreement or any other Loan Document, whether express or implied, shall be construed to confer upon any Person, other than the parties hereto and thereto and their respective permitted successors and assigns and, to the extent expressly set forth in the Loan Documents, the other Persons referred to in clause (a) above, any legal or equitable right, remedy, or claim under or by reason of this Credit Agreement or any other Loan Document or any covenant, condition, or provision hereof or thereof, and all rights, benefits, and remedies of every nature under or in connection with this Credit Agreement and the other Loan Documents shall be enforceable only by the parties hereto and thereto and their respective permitted successors and assigns and, to the extent expressly set forth in the Loan Documents, such other Persons.

(c) Without limiting the generality of clauses (a) and (b) above, no creditor of, or other Person having a claim against, any Loan Party, whether liquidated or unliquidated, fixed or contingent, shall have any right to enforce this Credit Agreement or any other Loan Document, to xxx on any obligation of any Loan Party hereunder or thereunder, or to compel any party hereto or thereto to take any action, whether for the benefit of such creditor or for the benefit of any other Person, and no Person other than the parties hereto and their permitted successors and assigns shall have any right to bring any action or proceeding to enforce any provision of this Credit Agreement or any other

Loan Document.

(d) Each Indemnitee and each other Person entitled to indemnification, reimbursement, exculpation, or contribution under the Loan Documents shall be an express third-party beneficiary of the indemnification, reimbursement, exculpation, and contribution provisions of the Loan Documents and may enforce such provisions directly against the Loan Parties and any other obligor thereunder to the same extent as if such Indemnitee or other Person were a party to this Credit Agreement, and no consent of any other Person shall be required with respect to any such enforcement.

(e) No provision of this Credit Agreement or any other Loan Document shall be construed to create any fiduciary relationship between the Administrative Agent, the Collateral Agent, any Issuing Bank, any Swingline Lender, or any Lender, on the one hand, and any Loan Party, any stockholder or equityholder of any Loan Party, any creditor of any Loan Party, or any other Person, on the other hand, and no Person other than the parties hereto shall have any right to object to, contest, oppose, or otherwise challenge any amendment, waiver, or modification of any provision of this Credit Agreement or any other Loan Document made in accordance with the amendment or waiver provisions of this Credit Agreement or to any action taken by the Administrative Agent, the Collateral Agent, any Issuing Bank, the Swingline Lender, or any Lender in connection with any such amendment, waiver, or modification.

(f) Each Loan Party acknowledges and agrees that no representation, warranty, covenant, or agreement contained in this Credit Agreement or any other Loan Document shall be enforceable by, or shall give rise to any right of, any Person other than the parties hereto and thereto and their respective permitted successors and assigns and, to the extent expressly set forth in the Loan Documents, the other Persons referred to in clause (a) above, and no such Person shall have any claim against any party hereto with respect to any such representation, warranty, covenant, or agreement. The provisions of this Section 10.39 shall survive the termination of this Credit Agreement and the other Loan Documents and the resignation or replacement of the Administrative Agent and the Collateral Agent.

Section 10.40 (Cumulative Rights; No Merger). The rights, powers, privileges and remedies of the Administrative Agent and each Secured Party under this Agreement and the other Loan Documents are cumulative and in addition to, and not exclusive of, any rights or remedies that the Administrative Agent or any Secured Party would otherwise have at law, in equity, under any other Loan Document, or under any other agreement. No right, power, privilege or remedy of the Administrative Agent or any Secured Party shall be deemed to be in derogation of, or to limit or impair, any other right, power, privilege or remedy of the Administrative Agent or such Secured Party, and no single or partial exercise by the Administrative Agent or any Secured Party of any right, power, privilege or remedy shall preclude any other or further exercise thereof or the exercise of any other right, power, privilege or remedy.

No failure or delay by the Administrative Agent or any Secured Party in exercising, and no course of dealing with respect to, any right, power, privilege or remedy shall operate as a waiver thereof, and no single or partial exercise thereof shall preclude any other or further exercise thereof or the exercise of any other right, power, privilege or remedy. No waiver of any provision of this Agreement or any other Loan Document, and no consent by the Administrative Agent or any Secured Party to any departure by any Loan Party therefrom, shall be effective unless in writing signed by the party granting such waiver or consent, and any such waiver or consent shall be effective only in the specific instance and for the specific purpose for which given and shall not be deemed to be a waiver or

consent to any other provision or to any other departure, whether similar or different. No notice to or demand on any Loan Party shall, in any event, entitle any Loan Party to any other or further notice or demand in similar or other circumstances or constitute a waiver of the right of the Administrative Agent or any Secured Party to take any action without notice or demand.

Any rights, powers, privileges and remedies of the Administrative Agent and the Secured Parties under the Loan Documents, and any obligation of any Loan Party thereunder, shall not be merged into, extinguished by, or otherwise affected by any judgment, order, decree, release, discharge, novation, accord and satisfaction, payment, including payment in full, or other event, and no such judgment, order, decree, release, discharge, novation, accord and satisfaction, payment or other event shall constitute a merger, extinguishment or novation of any such right, power, privilege, remedy or obligation unless, in the case of the Obligations, all Obligations have been paid in full in cash and all Commitments have been terminated.

No action or inaction by the Administrative Agent or any Secured Party in connection with any Event of Default, and no acceptance by the Administrative Agent or any Secured Party of any payment or performance, shall be construed as an election of remedies, a waiver of any Event of Default, or a release, discharge, merger, novation, accord and satisfaction or extinguishment of any right, power, privilege or remedy, and the Administrative Agent and each Secured Party may exercise any and all rights and remedies cumulatively or alternately at any time and from time to time. The rights and remedies of the Administrative Agent and the Secured Parties may be exercised at such times and in such order as they may determine, and all rights and remedies are cumulative to the fullest extent permitted by law.

The provisions of this Section shall survive repayment of the Obligations and termination of the Commitments to the extent necessary to enforce any rights or remedies that have accrued prior to such repayment or termination and to permit the enforcement of any indemnification or reimbursement obligations that by their terms survive. Nothing in this Section shall be construed to limit or impair any right of setoff, recoupment, counterclaim, banking lien, attachment, levy, foreclosure, collection, suit in equity or other remedy that any Secured Party may have under applicable law or any other Loan Document.

Section 10.41 (Delivery of Electronic Records). (a) Each Loan Party and each other Person party to any Loan Document agrees that any notice, request, instruction, certificate, consent, waiver, financial statement, report, opinion, or other communication (each, a "Communication") required or permitted to be made or delivered under this Agreement or any other Loan Document may be delivered by electronic transmission, including by electronic mail or by posting to a secure electronic portal, in accordance with this Section. A Communication delivered by electronic mail or other electronic means shall be deemed delivered when it is transmitted to the electronic mail address or other electronic delivery destination designated by the recipient for that purpose, and a Communication posted to a secure electronic portal shall be deemed delivered when it is posted and the recipient has been notified of the posting. The Administrative Agent may in its sole discretion establish requirements for electronic delivery, including with respect to format, security, and confirmation of receipt, and may decline to effect any particular delivery by electronic transmission if it determines that such delivery is not practicable or reliable.

(b) Each Loan Party agrees to maintain, and to cause each other Loan Party to maintain, the ability to receive

Communications through the electronic delivery destinations designated by it, and to retrieve promptly any Communication posted to a secure electronic portal. The Borrower shall provide to the Administrative Agent the electronic mail addresses and any other electronic delivery destinations of each individual authorized to receive Communications on behalf of each Loan Party and shall update such information promptly upon any change. The Administrative Agent and each Lender shall be entitled to rely on any Communication that appears to have been sent or posted by a Person authorized to give such Communication, and no Administrative Agent or Lender shall have any obligation to verify the identity, authority, or authenticity of any sender or signer.

(c) Each Loan Party acknowledges that electronic delivery may involve risks of interception, misdirection, corruption, unauthorized access, and other data security hazards. Each Loan Party agrees that the Administrative Agent and the Lenders shall not have any liability to any Loan Party or any other Person for any loss, cost, damage, claim, expense, or liability arising out of or relating to the electronic delivery of Communications, except to the extent determined by a court of competent jurisdiction in a final nonappealable judgment to have resulted from the bad faith, gross negligence, or willful misconduct of the Person against whom such liability is asserted. This paragraph shall not limit any indemnification or exculpation provision set forth in this Agreement or any other Loan Document.

(d) To the fullest extent permitted by applicable law, the electronic transmission of a Communication by or on behalf of a Loan Party and the electronic execution of any Communication by or on behalf of a Loan Party shall satisfy any requirement in any Loan Document that such Communication be in writing or be signed, and shall have the same legal effect, validity, and enforceability as a paper record bearing an original manual signature. This Section shall not require the Administrative Agent or any Lender to accept any signature in electronic form unless it has agreed to do so in writing.

(e) For purposes of this Section, an "Electronic Record" means a record created, generated, sent, communicated, received, or stored by electronic means. Any Communication delivered in the form of an Electronic Record shall be a writing to the extent required under any Loan Document.

(f) The Administrative Agent may at any time and from time to time designate additional electronic delivery mechanisms or platforms and adopt procedures for their use, and any such designation or procedure shall be effective upon notice to each Loan Party. Each Loan Party shall comply with all reasonable procedures adopted by the Administrative Agent in accordance with this Section. This Section shall not affect the right of the Administrative Agent or any Lender to require delivery of any Communication in paper form, and any Communication that is required by any Loan Document to be delivered by a particular method or within a particular time shall not be effective unless it also satisfies that requirement.

Section 10.42 (Confirmation of Beneficial Ownership Information). (a) Each Loan Party shall deliver to the Administrative Agent and each Lender, in the case of any Loan Party that is a party to this Agreement as of the Closing Date, on or prior to the Closing Date, and in the case of any Person that becomes a Loan Party after the Closing Date, on or prior to the date on which such Person becomes a Loan Party, a Beneficial Ownership Certification with respect to such Loan Party, executed by a Responsible Officer of such Loan Party, in form and substance reasonably satisfactory to the Administrative Agent.

(b) Each Loan Party shall deliver to the Administrative Agent and each Lender, promptly but in any event within thirty days after any change occurs in the information contained in the Beneficial Ownership Certification most recently delivered by such Loan Party that would cause such certification to become false or misleading in any material respect, an updated Beneficial Ownership Certification with respect to such Loan Party, executed by a Responsible Officer of such Loan Party, in form and substance reasonably satisfactory to the Administrative Agent.
(c) Each request for a Borrowing, each request for the issuance, amendment, renewal or extension of a Letter of Credit, and each other request by any Loan Party for an extension of credit under this Agreement shall constitute a confirmation by such Loan Party, as of the date of such request, that the Beneficial Ownership Certification most recently delivered by such Loan Party to the Administrative Agent and each Lender remains true, correct and complete in all material respects and that no update to such certification is required by paragraph (b) of this Section.
(d) The Administrative Agent may, upon reasonable prior notice to the applicable Loan Party, require such Loan Party to confirm in writing that the Beneficial Ownership Certification most recently delivered by such Loan Party remains true, correct and complete in all material respects, and such Loan Party shall provide such written confirmation within five Business Days after the date of such request.
Section 10.43 (No Duty to Marshal). (a) No Secured Party and no Administrative Agent shall have any duty or obligation to marshal, collect, protect, preserve, or realize upon any Collateral or any other property or asset of any Loan Party, to sell, lease, license, liquidate, or otherwise dispose of any Collateral, or to take any other action to preserve or protect any Collateral or any rights of any Loan Party or any other person with respect to any Collateral, whether before or after the occurrence and during the continuance of an Event of Default, and none of the Secured Parties or the Administrative Agent shall be liable for any loss, cost, damage, or expense suffered or incurred by any Loan Party or any other person as a result of any failure to take any such action.
(b) The rights and remedies of the Secured Parties and the Administrative Agent under the Credit Agreement and the other Loan Documents are cumulative and may be exercised singly, successively, or concurrently in any order and from time to time, whether or not an Event of Default has occurred and is continuing, and no such exercise shall be deemed to be an election of remedies or to preclude the subsequent exercise of any other right or remedy. No delay or omission by any Secured Party or the Administrative Agent in exercising any right or remedy shall operate as a waiver thereof or of any other right or remedy, and no single or partial exercise thereof shall preclude any other or further exercise thereof or the exercise of any other right or remedy.
(c) Without limiting the generality of the foregoing, no Secured Party and no Administrative Agent shall be under any obligation to take any action to enforce, protect, or preserve any Collateral or any Lien purported to be created by the Security Documents, or to marshal, collect, or realize upon any Collateral, or to pursue any other remedy with respect to any Obligations, and the Secured Parties and the Administrative Agent may exercise any and all rights and remedies available to them under the Credit Agreement, the other Loan Documents, or applicable law, in any order and in their sole discretion.
(d) The provisions of this Section are for the benefit of the Secured Parties and the Administrative Agent, and no Loan Party or any other person shall have any right to require any Secured Party or the Administrative Agent to take any action described in this Section. Nothing in this Section shall be construed to create any duty or obligation on

the part of any Secured Party or the Administrative Agent to take any action, and no Loan Party or any other person may rely on any course of conduct, delay, or omission by any Secured Party or the Administrative Agent as a waiver or as creating any estoppel or other defense.

(e) In no event shall any Secured Party or the Administrative Agent be required to marshal any assets in favor of any person, dispose of any Collateral in any particular order, pursue any remedy against any Collateral before pursuing any other remedy, or take any action in respect of any Collateral for the benefit of any person other than the Secured Parties. No provision of this Section or any other provision of the Credit Agreement or any other Loan Document shall be construed to impose upon any Secured Party or the Administrative Agent any duty to take any action described in this Section, and no implied duties or obligations of any kind with respect to marshaling, collecting, or liquidating any Collateral shall be imposed on any Secured Party or the Administrative Agent by the Credit Agreement, the other Loan Documents, or any course of dealing between the parties.

Section 10.44 (Waiver of Consequential Damages). To the fullest extent permitted by applicable law, no Covered Party shall be liable to any other Covered Party for any special, indirect, punitive, exemplary or consequential damages, including without limitation any loss of profits, business, revenue, anticipated savings, goodwill, use, opportunity or data, arising out of, in connection with, or relating to this Agreement, any other Loan Document, any transaction contemplated by this Agreement or any other Loan Document, any use of the proceeds of any Loans or Letters of Credit, any act or omission of any party, any communication, discussion, negotiation, statement or advice, or any enforcement of rights or remedies, in each case whether based on contract, tort, strict liability, negligence, statute or otherwise, and regardless of whether such damages were foreseeable or the applicable Covered Party was advised of the possibility of such damages. As used in this Section, each of the Administrative Agent, the Lenders, the Issuing Bank, the Swing Line Lender, each Loan Party and each of their respective Affiliates, officers, directors, employees, agents, advisors and representatives is a Covered Party. Each Covered Party hereby waives, to the fullest extent permitted by applicable law, any claim, demand or action seeking any such damages from any other Covered Party and agrees not to assert any such claim.

Notwithstanding the foregoing, nothing in this Section shall limit any Covered Party's right to recover direct damages, or to seek injunctive or other equitable relief, in each case to the extent otherwise available under this Agreement, any other Loan Document or applicable law. For the avoidance of doubt, this Section shall not apply to any liability for damages awarded to a third party pursuant to a claim brought by such third party against a Covered Party, and nothing in this Section shall impair, limit or otherwise affect any indemnification, reimbursement or contribution obligation of any Covered Party under this Agreement or any other Loan Document to the extent such obligation relates to damages awarded to a third party.

Each Covered Party acknowledges that the waivers and limitations set forth in this Section are an integral part of the economic structure of the transactions contemplated by this Agreement and the other Loan Documents and that, without such waivers and limitations, the parties would be unwilling to enter into this Agreement or the other Loan Documents. This Section shall survive the repayment of the Obligations and the termination of this Agreement, the other Loan Documents and the Commitments.

Section 10.45 (Currency Indemnity). (a) The obligation of each Loan Party to pay any amount in the currency in

which such amount is stated to be payable under any Loan Document shall be discharged only by payment in that currency in the amount of the stated amount. To the extent that any payment in respect of any such obligation is made in a currency other than the currency in which such amount is stated to be payable, such payment shall constitute a discharge of such obligation only to the extent of the amount of the stated currency that the Administrative Agent or the applicable Issuing Bank or Lender, as the case may be, is able, in accordance with its normal procedures, to purchase with the currency actually paid in the foreign exchange market at the rate of exchange available to it on the date of such payment, after taking into account all premiums and costs of exchange.

(b) Without limiting the generality of the foregoing, each Loan Party shall indemnify each Administrative Agent, each Issuing Bank, and each Lender against any loss, cost, liability, or expense actually incurred by such Person in connection with any conversion of any amount payable under any Loan Document from the currency in which such amount is stated to be payable into any other currency, whether such conversion is made for the purpose of determining amounts payable, effecting payment, obtaining judgment, enforcing rights, or otherwise. Such loss, cost, liability, or expense shall include, without limitation, any shortfall in the amount of the original currency receivable as a result of any difference between the rate of exchange used to convert such amount and the rate of exchange available to such Person on the date of payment, any loss of margin or premium required to reconvert any amount received in a different currency into the original currency, and any loss arising from any change in the value, availability, or convertibility of any currency.

(c) If, for the purpose of obtaining judgment in any court, it is necessary to convert an amount due under any Loan Document in the currency in which such amount is stated to be payable into any other currency, the rate of exchange used shall be, to the extent permitted by applicable law, the rate at which the Administrative Agent, the applicable Issuing Bank, or the applicable Lender could purchase the original currency with such other currency in accordance with its normal banking procedures on the Business Day immediately preceding the day on which such judgment is rendered. Each Loan Party shall indemnify each Administrative Agent, each Issuing Bank, and each Lender against any loss, cost, liability, or expense incurred by such Person as a result of any difference between the amount of the original currency so converted and the amount of the original currency that would have been payable under the applicable Loan Document had such judgment been paid on the date it became due, together with any amount required to restore such Person to the position it would have occupied had such amount been paid when due.

(d) Each obligation of each Loan Party under this Section shall be in addition to, and not in limitation of, any other indemnity or reimbursement obligation of any Loan Party under any Loan Document and shall remain in full force and effect notwithstanding any payment in full of the Obligations, any termination of this Agreement, or any release or discharge of any Loan Party or any other Person from its obligations under any Loan Document.

Section 10.46 (Determinations by the Administrative Agent). (a) The Administrative Agent may, in its reasonable discretion, make any determination, calculation, election, consent, approval, waiver, or request that the Administrative Agent is required or permitted to make under any Loan Document, and may exercise any right, power, or remedy of the Administrative Agent under any Loan Document, in each case in such manner as the Administrative Agent, in its reasonable discretion, deems appropriate. Unless otherwise expressly provided in any Loan Document, each such determination, calculation, election, consent, approval, waiver, request, exercise, or other

act by the Administrative Agent shall be conclusive and binding upon the Borrower, each other Loan Party, and each Lender absent manifest error. In the event that the Administrative Agent determines that any ambiguity or inconsistency exists in any Loan Document or that any provision of a Loan Document is susceptible to more than one construction, the Administrative Agent shall have the right to resolve such ambiguity, inconsistency, or construction in its reasonable discretion and such resolution shall be binding absent manifest error.

(b) The Administrative Agent shall be entitled to rely upon any notice, request, certificate, consent, approval, waiver, instrument, representation, report, statement, opinion, or other communication or document, including any electronic transmission, believed by it in good faith to be genuine and to have been signed, sent, or made by the proper Person. The Administrative Agent may consult with legal counsel, independent counsel, accountants, appraisers, consultants, and other experts selected by it, and shall not be liable for any action taken or omitted to be taken by it in good faith in accordance with the advice of such counsel, accountants, appraisers, consultants, or experts. The Administrative Agent shall have no obligation to verify or independently investigate the accuracy, completeness, or authenticity of any information or document delivered to it under any Loan Document.

(c) The Administrative Agent shall not be deemed to have notice or knowledge of any Default, Event of Default, or other event that with the giving of notice or the passage of time, or both, would constitute an Event of Default, unless the Administrative Agent has received from a Lender or the Borrower a written notice describing such Default or Event of Default. The Administrative Agent shall not have any duty to inquire or investigate, and shall not be required to make any inquiry or investigation concerning, whether any such Default or Event of Default has occurred, whether any condition to the making of any Loan or the issuance of any Letter of Credit has been satisfied, whether any representation, warranty, covenant, or other agreement contained in any Loan Document has been performed or observed, or any other matter relating to any Loan Document or any transaction contemplated thereby, except as expressly required by the terms of the Loan Documents. If the Administrative Agent elects to make any inquiry or investigation, the Administrative Agent may require the Borrower and each Loan Party to provide such information and assistance as the Administrative Agent reasonably requests.

(d) Without limiting the foregoing, in connection with any determination required regarding the financial covenants set forth in Article VI, the Administrative Agent shall be entitled to rely conclusively on the information and computations delivered by or on behalf of the Borrower pursuant to the Credit Agreement or otherwise, and shall have no obligation to recalculate, verify, or audit such information or computations, except to the extent expressly required by the terms of the Credit Agreement. The Administrative Agent's acceptance of any such information or computations shall not constitute a waiver of any condition, covenant, or other provision of the Credit Agreement.

(e) The Administrative Agent may from time to time adopt, modify, rescind, or otherwise implement policies and procedures with respect to the operation and administration of the credit facilities as it deems advisable, including procedures for the timing and manner of funding advances and setting or changing interest rates, provided that such policies and procedures are not inconsistent with the terms of this Agreement. The Administrative Agent shall give prompt notice of any such policy or procedure to the Borrower and the Lenders, though failure to give such notice shall not affect the validity of any action taken in accordance with such policy or procedure.

(f) Any determination made by the Administrative Agent in its individual capacity as a Lender shall be made by the

Administrative Agent in its capacity as a Lender and not in its capacity as Administrative Agent, and shall not be subject to the standards or liabilities applicable to the Administrative Agent acting in its agency capacity. This Section shall not apply to any determination made by the Administrative Agent solely in its capacity as a Lender under any Loan Document.

(g) The Administrative Agent shall be entitled to rely on any certificate of a Responsible Officer of the Borrower or any other Loan Party, and any opinion of counsel delivered under any Loan Document, as to the matters set forth therein. The Administrative Agent shall not be responsible for the validity, enforceability, effectiveness, or genuineness of any document or instrument delivered under any Loan Document, or for the creation, perfection, priority, or sufficiency of any Lien purported to be created by any Loan Document, and shall be entitled to assume that all Liens are perfected and have the priority contemplated by the Loan Documents unless it has received notice to the contrary.

(h) The Administrative Agent may delegate any of its rights, powers, responsibilities, or duties under any Loan Document to any of its Affiliates or to any of its or their officers, directors, employees, agents, or attorneys, and any such delegation may be made upon such terms and conditions as the Administrative Agent shall deem appropriate. The Administrative Agent shall not be liable for any action taken or omitted to be taken by any such delegate in good faith and in a manner consistent with this Section.

(i) In no event shall the Administrative Agent be liable for any indirect, special, punitive, consequential, or other similar damages arising out of or in connection with any Loan Document or any transaction contemplated thereby, whether in contract, tort, or otherwise, except to the extent resulting from its gross negligence, willful misconduct, or bad faith. The Administrative Agent shall not be liable for any action taken or omitted to be taken by it in good faith in connection with the Loan Documents or the transactions contemplated thereby, except to the extent that such action or omission is determined by a final, nonappealable judgment of a court of competent jurisdiction to have resulted from its gross negligence, willful misconduct, or bad faith.

(j) All certificates, reports, notices, and other communications required or permitted to be delivered to or from the Administrative Agent may be made by electronic means, and the Administrative Agent may rely on the authenticity of any electronic signature or transmission, provided that the Administrative Agent shall not be obligated to accept any electronic signature or transmission unless it reasonably believes it to be genuine.

(k) The Administrative Agent shall be fully protected in acting, or in refraining from acting, in accordance with written instructions of the Required Lenders with respect to any matter as to which the Administrative Agent requests instructions, and any action taken or omitted to be taken by the Administrative Agent in accordance with any such instructions shall be binding on the Borrower, each other Loan Party, and each Lender, and the Administrative Agent shall not be liable to any Person for any action taken or omitted to be taken in accordance with such instructions. The Administrative Agent shall not be required to take any action that it reasonably determines might subject it to liability or that is contrary to any Loan Document or applicable law.

Section 10.47 (Delegation of Calculation Duties). (a) The Administrative Agent may in its sole discretion, without the consent of any Lender, by a written instrument executed by the Administrative Agent and accepted in writing by the proposed delegate, delegate all or any portion of the duties, responsibilities, powers and authorities of the

Administrative Agent under this Agreement and the other Loan Documents that relate to the calculation, computation, verification, certification, determination or estimation of any amount, rate, ratio, quantity, condition or other metric required or permitted to be made by the Administrative Agent, including any such calculation or determination required or permitted in connection with the financial covenants set forth in the Credit Agreement, to any Affiliate of the Administrative Agent or to any other Person selected by the Administrative Agent in its sole discretion. Any such delegation shall be upon such terms and conditions, and subject to such limitations and restrictions, as the Administrative Agent and the delegate may agree, except as expressly otherwise provided in this Section.

(b) No delegation shall become effective until the proposed delegate shall have accepted the delegation in writing. The Administrative Agent may revoke any delegation made under this Section at any time by written notice to the delegate, the Borrower and the Lenders, and any such revocation may be effective immediately or on a date specified in such notice. Upon the effectiveness of any such revocation, the duties, responsibilities, powers and authorities delegated to such delegate shall revert to the Administrative Agent, and the Administrative Agent shall thereafter perform all such duties and responsibilities in accordance with this Agreement and the other Loan Documents. No revocation shall affect any action taken or determination made by the delegate prior to the effectiveness of such revocation.

(c) Any calculation, computation, verification, certification, determination or estimation made by a delegate in accordance with a delegation made under this Section shall, for all purposes of this Agreement and the other Loan Documents, be deemed to have been made or given by the Administrative Agent and shall be final, conclusive and binding upon the Borrower, each other Loan Party, each Lender and the Administrative Agent, absent manifest error. The Administrative Agent may, in its sole discretion, perform any delegated duty directly notwithstanding any delegation made under this Section. No delegation under this Section shall be construed to waive, amend or otherwise modify any duty, responsibility, power or authority of the Administrative Agent under this Agreement or the other Loan Documents, and, except as otherwise expressly provided in the applicable delegation instrument, the Administrative Agent shall continue to have the right to receive, review, act upon and rely upon any calculations performed by the delegate as if such calculations had been performed by the Administrative Agent.

(d) The Administrative Agent may conclusively rely, and shall be fully protected in relying, and shall incur no liability to the Borrower, any other Loan Party, any Lender or any other Person, in respect of any calculation, computation, verification, certification, determination or estimation furnished by a delegate appointed under this Section, absent manifest error, and any such calculation, computation, verification, certification, determination or estimation shall be accepted by the Administrative Agent as correct for all purposes of this Agreement and the other Loan Documents. The Administrative Agent shall not be responsible or liable for any act, omission, error, negligence, default or misconduct of any delegate appointed under this Section, except by reason of the gross negligence or willful misconduct of the Administrative Agent in the selection or replacement of such delegate. Each delegate appointed under this Section shall be entitled to the same rights, protections, immunities and indemnities as are provided to the Administrative Agent under this Agreement and the other Loan Documents with respect to any actions taken or determinations made by such delegate in accordance with the terms of its delegation, and the

Borrower and each other Loan Party shall indemnify any such delegate on the same terms as they are required to indemnify the Administrative Agent under this Agreement.

(e) The Administrative Agent may, in connection with the performance of any of the duties and responsibilities described in this Section, employ and obtain the advice and assistance of such financial advisors, accountants, consultants, appraisers, engineers, surveyors, agents, sub-agents and other Persons as the Administrative Agent shall determine to be necessary or advisable, and may rely upon the advice and opinions of any such Persons. All reasonable fees, disbursements, costs and expenses of any such Persons shall, to the extent not reimbursed by the applicable Loan Parties, be for the account of the Borrower and shall be payable by the Borrower upon demand.

(f) No delegate appointed under this Section shall be permitted to subdelegate, assign, transfer or otherwise convey any duty, responsibility, power or authority delegated to it under this Section, in whole or in part, without the prior written consent of the Administrative Agent. Any attempted subdelegation, assignment, transfer or conveyance in violation of this paragraph shall be null and void. No delegate shall have any power or authority to bind the Borrower, any other Loan Party, any Lender or the Administrative Agent except as expressly set forth in the applicable delegation instrument.

(g) The Borrower shall, and shall cause each other Loan Party to, provide to any delegate appointed under this Section, and to its employees, officers, agents, advisors and representatives, such access to, and copies of, books, records, accounts, ledgers, reports, financial statements and other information as such delegate may reasonably request in connection with the performance of its delegated duties, and shall otherwise cooperate with such delegate in the performance of such duties. Any information provided to a delegate under this Section shall be subject to the confidentiality provisions of this Agreement as if such delegate were the Administrative Agent.

(h) Unless otherwise expressly provided in the applicable delegation instrument, any delegation made by the Administrative Agent under this Section shall automatically terminate upon the effectiveness of the resignation or removal of the Administrative Agent under this Agreement. Upon any such automatic termination, the duties and responsibilities delegated to such delegate shall revert to the successor Administrative Agent, and the successor Administrative Agent may, in its sole discretion, reinstate, renew or replace any such delegation in accordance with this Section. Any Person may rely on the effectiveness or termination of any delegation without making any inquiry.

Section 10.48 (Publicity). (a) Each Loan Party consents to the use by the Administrative Agent and each Lender of the names, logos, and other identifying marks of such Loan Parties and their respective subsidiaries in connection with any publicity, marketing, or other public announcement relating to the credit facilities established under this Credit Agreement, including any tombstone advertisement, deal trophy, case study, presentation, newsletter, website posting, press release, or similar communication; provided that the Administrative Agent or such Lender, as applicable, shall obtain the prior written approval of the Borrower before making any such use, which approval shall not be unreasonably withheld, conditioned, or delayed. The Borrower shall be deemed to have approved a proposed use if it does not deliver a written objection to the Administrative Agent within five business days after receipt of the proposed material for review. No approval shall be required for any use required by applicable law, rule, regulation, legal process, or any governmental or regulatory authority, including the Securities and Exchange Commission.

(b) The Borrower may issue press releases and other public communications concerning this Credit Agreement and

the transactions contemplated hereby; provided that the Borrower shall provide the Administrative Agent with a copy of any such press release or public communication at least two business days before the proposed release or publication, unless such release or publication is required by applicable law, rule, regulation, or securities exchange listing standard, in which case the Borrower shall provide such copy as promptly as practicable and, to the extent feasible, before such release or publication.

(c) No Loan Party shall use the name, logo, or trademark of the Administrative Agent or any Lender, or any of their respective affiliates, in any press release, advertisement, or other public communication, except as required by applicable law, rule, regulation, legal process, or any governmental or regulatory authority, or with the prior written consent of such Person, which consent may be granted or withheld in such Person's sole discretion.

(d) Each Loan Party shall, and shall cause each of its subsidiaries to, cooperate with the Administrative Agent and the Lenders in connection with any permitted publicity or marketing activity described in paragraph (a) above, including by making appropriate senior officers and other personnel available for interviews and providing such information as may be reasonably requested from time to time, subject to confidentiality, legal, and regulatory constraints applicable to such Loan Party.

Section 10.49 (Relationship of the Parties). (a) Each Loan Party acknowledges, represents and agrees that the credit facilities evidenced by this Agreement and the other Loan Documents are commercial transactions, that no Agent, Arranger, Issuing Bank or Lender has acted or is acting as a fiduciary, investment manager, financial adviser or other adviser to such Loan Party or any of its Affiliates, and that no Agent, Arranger, Issuing Bank or Lender has any fiduciary, advisory or agency obligation to such Loan Party or any of its Affiliates in connection with this Agreement, any other Loan Document or any transaction contemplated hereby or thereby. Each Loan Party has consulted its own legal, accounting, financial and other advisors to the extent it has deemed appropriate, has independently determined whether to enter into this Agreement and the other Loan Documents, and has not relied upon any representation, warranty, opinion, statement or advice from any Agent, Arranger, Issuing Bank or Lender other than the representations and warranties expressly set forth in this Agreement and the other Loan Documents.

(b) The relationship among the Loan Parties, on the one hand, and the Agents, the Arrangers, the Issuing Banks and the Lenders, on the other hand, is and shall be solely that of debtor and creditor. No provision of this Agreement or any other Loan Document, and no action taken by any party in connection with the transactions contemplated hereby or thereby, shall be deemed to create a partnership, joint venture, agency, trust or other fiduciary relationship among or between any Loan Party, any Agent, any Arranger, any Issuing Bank or any Lender, and no such relationship shall exist or be implied from the execution, delivery or performance of this Agreement or any other Loan Document. Each party to this Agreement and the other Loan Documents expressly disclaims any intention to create any such relationship.

(c) Each Loan Party further acknowledges and agrees that each Agent, Arranger, Issuing Bank and Lender is and shall be entitled to pursue its own separate interests and the interests of its other customers and its own account, and that no provision of this Agreement or any other Loan Document shall be construed to impose on any such Person any obligation to act or refrain from acting in a manner consistent with the interests of any Loan Party or any of its Affiliates. Each Loan Party understands that the interests of one or more of the Agents, the Arrangers, the Issuing

Banks or the Lenders may be adverse to the interests of such Loan Party or its Affiliates, and each Loan Party confirms that it is entering into this Agreement and the other Loan Documents with full knowledge of such potential conflicts and not in reliance upon any expectation of disinterested advice from any Agent, Arranger, Issuing Bank or Lender.

(d) Each Loan Party, for itself and, to the extent it may lawfully do so, for each of its Affiliates, irrevocably waives, to the fullest extent permitted by law, any claim or cause of action based upon an alleged fiduciary, advisory or agency relationship arising out of or in connection with this Agreement, any other Loan Document or any transaction contemplated hereby or thereby, other than claims arising from the gross negligence or willful misconduct of such Agent, Arranger, Issuing Bank or Lender as determined by a final, non-appealable judgment of a court of competent jurisdiction. Each Loan Party acknowledges that the waivers contained in this Section are a material part of the consideration for the commitments made by the Lenders under this Agreement and that the Lenders would not enter into this Agreement absent such waivers.

Section 10.50 (Conflicts with Other Loan Documents). This Agreement, the Notes, the Guaranty, and each other Loan Document are the result of negotiations among the parties, and except as expressly provided otherwise in this Agreement, the terms and provisions of this Agreement shall govern and control in all respects. In the event of any conflict or inconsistency between the terms and provisions of this Agreement and the terms and provisions of any other Loan Document, the terms and provisions of this Agreement shall govern and control; provided, however, that (a) any other Loan Document may contain covenants, agreements, representations, warranties, terms, and conditions in addition to those set forth in this Agreement that are not inconsistent with this Agreement and that are for the benefit of the Administrative Agent or any Lender, (b) if any Security Document contains covenants, agreements, terms, or conditions that are more restrictive with respect to the Collateral than those contained in this Agreement, such Security Document shall control with respect to the Collateral, (c) in the event of any conflict or inconsistency between this Agreement and any intercreditor, subordination, or similar agreement among the Secured Parties, such intercreditor, subordination, or similar agreement shall control with respect to the priority, subordination, and other matters expressly addressed thereby, (d) no provision of any other Loan Document shall be deemed to amend, modify, or supersede any provision of this Agreement by implication or otherwise unless such other Loan Document expressly references the provision of this Agreement being amended, modified, or superseded and states the intention to do so, and (e) to the extent that any term is defined both in this Agreement and in any other Loan Document, the definition set forth in this Agreement shall control for all purposes of this Agreement and the other Loan Documents, unless the other Loan Document expressly provides otherwise with respect to its own application.

SCHEDULES

SCHEDULE 1.01(b). PRICING GRID

The Applicable Margin for any Loan is determined by reference to the Total Net Leverage Ratio most recently reported pursuant to a Compliance Certificate delivered under Section 5.01(c), as set forth below, effective prospectively on the first Business Day following delivery of such Compliance Certificate and remaining in effect until the next adjustment.

Pricing Tier	Total Net Leverage Ratio	SOFR Loans	Base Rate Loans
I	Greater than or equal to 4.25x	2.50%	1.50%
II	Less than 4.25x but greater than or equal to 3.25x	2.25%	1.25%
III	Less than 3.25x but greater than or equal to 2.25x	2.00%	1.00%
IV	Less than 2.25x	1.75%	0.75%

SCHEDULE 1.01(c). SYNERGY CLASSIFICATION AND RUN-RATE REALIZABILITY

1. For purposes of clause (i) of the Consolidated EBITDA definition in Section 1.01, a specified action's projected annualized effect is classified as follows: an action whose projected effect operates on the cost, expense or overhead structure of providing the Borrower's existing goods or services, without altering the price, volume or mix of goods or services sold to customers, is a cost saving, operating expense reduction or other synergy for purposes of clause (i) (and is not subject to the cap in that clause). An action whose projected effect operates on the price, volume or mix of goods or services sold to customers is a revenue enhancement for purposes of clause (i) (and is subject to the cap in that clause). This classification governs irrespective of any label a diligence report, management presentation, or other work product not delivered under this Agreement may apply to the same action.

2. A specified action's projected effect qualifies as 'run-rate' for purposes of clause (i) only if the action has been substantially implemented as of the date of determination and its full annualized effect is reasonably expected to be realized within the twelve months following that date. A projected effect whose full realization is not reasonably expected within that twelve-month window is not includable under clause (i), regardless of whether clause 1 of this Schedule would otherwise classify it as a cost saving or a revenue enhancement.

3. This Schedule governs the classification of any run-rate item presented in the Borrower's quality-of-earnings work product or any successor diligence presentation for purposes of the addback computation under clause (i); a presentation's own descriptive label for an item is informational only and is not itself the classification this Agreement requires.

The Borrower's own classification of the two specified actions identified in its diligence work product, applying clause 1 of this Schedule, is: cost savings and operating expense reductions of 4,600,000.00 (not subject to the cap in clause (i) of the Consolidated EBITDA definition), and revenue enhancements of 6,000,000.00 (subject to that cap).

SCHEDULE 1.01(d). BORROWING BASE

The Borrowing Base as of any date of determination equals the sum of (a) eighty-five percent of Eligible Accounts, plus (b) sixty-five percent of Eligible Inventory (valued at the lower of cost or market), minus (c) the aggregate amount of Reserves established by the Administrative Agent in its reasonable credit judgment, in each case as set forth in the most recently delivered Borrowing Base Certificate (Exhibit I).

Eligible Accounts excludes, without duplication: accounts outstanding more than ninety days past invoice date; accounts owing by an Affiliate; accounts subject to a bona fide dispute, counterclaim or contra relationship; and

accounts owing by an account debtor as to which fifty percent or more of all accounts owing by that account debtor are otherwise ineligible. Eligible Inventory excludes work-in-process, slow-moving and obsolete inventory, and inventory held on consignment.

SCHEDULE 2.01. COMMITMENTS

Lender	Revolving Commitment	Term Loan Commitment	Applicable Percentage
Lane N.A.	15,000,000.00	0.00	25.00%
Ball-Rosales Bank, N.A.	12,000,000.00	0.00	20.00%
Anderson-West National Association	11,400,000.00	0.00	19.00%
Williams Inc N.A.	9,600,000.00	0.00	16.00%
Lee Ltd Bank, N.A.	7,200,000.00	0.00	12.00%
Ramirez Group National Association	4,800,000.00	0.00	8.00%
Total	60,000,000.00	0.00	100.00%

No Term Loans are committed as of the Closing Date; each Lender's Term Loan Commitment above is $0.00 pending the establishment of a Term Loan tranche pursuant to Section 2.20 (Incremental Facilities) or Section 2.05 (Increase Option). This Schedule is the Schedule referred to as Sec2.01 under the abbreviated-citation convention stated in Section 1.02.

SCHEDULE 2.02. AMORTIZATION SCHEDULE

As of the Closing Date, no Term Loans are outstanding and this Schedule is unpopulated. Upon the incurrence of any Term Loan pursuant to Section 2.05 or Section 2.20, the Administrative Agent shall append to this Schedule the quarterly amortization percentages applicable to such Term Loan, which shall in no event provide for scheduled amortization of less than one percent of the original principal amount of such Term Loan per annum prior to the Maturity Date, consistent with customary market terms for term loan facilities of this kind.

SCHEDULE 4.05. LITIGATION

Except as set forth below, there is no action, suit, proceeding or investigation pending or, to the Borrower's knowledge, threatened against the Borrower or any Restricted Subsidiary that would reasonably be expected, individually or in the aggregate, to result in a Material Adverse Effect.

Caption	Forum	Nature of Claim	Status
Lane v. the Borrower	Michigan Superior Court, Port Richardport Division	commercial contract dispute with a former distributor	Pending; immaterial exposure
Hansen Ltd v. the Borrower	Hawaii Superior Court, North Danielborough Division	employment matter alleging wage-and-hour violations	Pending; immaterial exposure
Banks-Ramirez v. the Borrower	New York Superior Court, Pearsonburgh Division	product warranty claim by a commercial customer	Pending; immaterial exposure

SCHEDULE 4.06. ENVIRONMENTAL MATTERS

The Borrower has disclosed the following environmental matters, none of which is reasonably expected to result in a Material Adverse Effect: (a) a Phase II subsurface investigation at one leased distribution facility, completed prior to the Closing Date, identifying no remediation obligation; and (b) routine air-permit renewals in the ordinary course at two manufacturing facilities, neither of which is in dispute.

SCHEDULE 4.16. SUBSIDIARIES

Subsidiary	Jurisdiction of Organization	Percentage Owned	Owned By
Davidson Manufacturing LLC	Delaware	100%	the Borrower
Haynes Distribution Inc.	Texas	100%	the Borrower
Quinn Logistics L.P.	Ohio	100%	the Borrower

Garcia Holdings Corp.	North Carolina	100%	Davidson Manufacturing LLC
Cook Services LLC	Georgia	100%	Haynes Distribution Inc.
Smith Industries Inc.	Illinois	100%	Quinn Logistics L.P.
Powell Properties L.P.	Pennsylvania	100%	Davidson Manufacturing LLC
Phillips Ventures Corp.	Indiana	100%	Haynes Distribution Inc.

Each Subsidiary listed above is a Restricted Subsidiary and, except as otherwise indicated, a Wholly Owned Subsidiary of the Borrower.

SCHEDULE 5.10. IMMATERIAL SUBSIDIARIES; EXCLUDED PROPERTY

No Subsidiary is exempted from the requirements of Section 5.10 as of the Closing Date. Real property with a fair market value of less than the threshold specified in Section 5.10 is exempted from the mortgage requirement of that Section; no owned real property held by the Borrower or any Restricted Subsidiary as of the Closing Date exceeds that threshold.

SCHEDULE 5.13. POST-CLOSING MATTERS

Item	Deadline
Deliver landlord waivers for each leased Collateral location identified in the Perfection Certificate	sixty days after the Closing Date
Deliver an updated Borrowing Base Certificate reflecting post-Closing collateral values	thirty days after the Closing Date
Complete UCC-1 filings in each jurisdiction identified in the Perfection Certificate	ten Business Days after the Closing Date
Deliver control agreements for each Deposit Account not subject to one as of the Closing Date	ninety days after the Closing Date

SCHEDULE 5.14. DEPOSIT ACCOUNTS; CASH MANAGEMENT

Depository Institution	Account Type	Control Agreement in Place
Davidson National Bank	Operating Account	Yes
Haynes National Bank	Concentration Account	Yes
Quinn National Bank	Payroll Account	No - see Schedule 5.13

SCHEDULE 6.03. EQUITY CURE RIGHT - LIMITS AND CONDITIONS

The Equity Cure Right may be exercised no more than twice in any period of four consecutive fiscal quarters and no more than five times over the term of the facility. A cash contribution made pursuant to the Equity Cure Right must be received by the Borrower no later than ten Business Days after the date the applicable Compliance Certificate is required to be delivered, and is applied solely to increase Consolidated EBITDA for the fiscal quarter to which the cure relates and, if applicable, each subsequent period in which that fiscal quarter is included in the applicable measurement period - it is not applied to reduce Consolidated Net Debt or Indebtedness for any purpose. No more than the amount necessary to cure the applicable breach, and in no event an amount that would cause pro forma compliance with an unbreached financial covenant to fail, may be applied under this Schedule.

SCHEDULE 7.02. EXISTING LIENS

Debtor	Secured Party	Collateral Description	Filing Office
the Borrower	Davidson Equipment Finance Corp.	specific manufacturing equipment financed thereby	VA Secretary of State
the Borrower	Haynes Leasing LLC	specific material handling equipment financed thereby	IL Secretary of State

Each Lien listed above is a purchase money Lien securing only the Indebtedness incurred to acquire the specific equipment described, and does not extend to any other asset of the Borrower or any Restricted Subsidiary.

SCHEDULE 7.03. EXISTING INDEBTEDNESS

Obligor	Instrument	Nature
the Borrower	the Notes indenture	Senior unsecured notes, described in the Notes indenture
the Borrower	the Industrial Revenue Bonds assumed in the Transaction	Conduit-issued, secured solely by the financed facility

the Borrower and its Restricted Subsidiaries	purchase money Indebtedness described on Schedule 7.02	Equipment financing

SCHEDULE 7.05. DISPOSITIONS

No Disposition outside the ordinary course of business, other than Dispositions of obsolete or worn-out equipment and Dispositions expressly permitted by Section 7.05, is contemplated as of the Closing Date.

SCHEDULE 7.06. RESTRICTED PAYMENTS

No Restricted Payment other than customary tax distributions to equity holders in respect of pass-through income tax liability, and Restricted Payments expressly permitted by Section 7.06, is contemplated as of the Closing Date.

SCHEDULE 7.09. AFFILIATE TRANSACTIONS

The Management Agreement referenced in clause (q) of the Consolidated EBITDA definition, and customary compensation and indemnification arrangements with officers and directors described in Section 7.09(b), are the only agreements between the Borrower or any Restricted Subsidiary, on the one hand, and an Affiliate, on the other hand, in effect on the Closing Date.

SCHEDULE 8.01. JUDGMENT THRESHOLD

For purposes of Section 8.01(g), the threshold amount is five million dollars, in the aggregate for all such judgments outstanding at any time.

EXHIBITS

EXHIBIT B. FORM OF ASSIGNMENT AND ASSUMPTION

This Assignment and Assumption is entered into between the Assignor named in the signature pages hereto and the Assignee named in the signature pages hereto. The Assignor and the Assignee hereby agree that the Assignor hereby irrevocably sells and assigns to the Assignee, and the Assignee hereby irrevocably purchases and assumes from the Assignor, subject to and in accordance with the Standard Terms and Conditions set forth in Annex 1 attached hereto and the Credit Agreement, as of the Effective Date inserted by the Administrative Agent as contemplated below, the interest described below in and to all of the Assignor's rights and obligations under the Credit Agreement and any other Loan Documents.

Annex 1 (Standard Terms and Conditions) sets forth the customary representations, warranties, general provisions and governing-law clause applicable to assignments of this kind, and is incorporated by reference rather than restated in full in this form exhibit.

EXHIBIT D. GUARANTEE AGREEMENT

This Guarantee Agreement is entered into by each Guarantor party hereto in favor of the Administrative Agent, for the benefit of the Secured Parties, guaranteeing the Obligations of the Borrower under the Credit Agreement and the other Loan Documents.

Section 1 (Guarantee Agreement). (a) Subject to the terms and conditions of this Agreement, each Guarantor, jointly and severally, hereby irrevocably, absolutely and unconditionally guarantees to the Administrative Agent, for the benefit of the Secured Parties, the punctual payment when due, whether at stated maturity, by required prepayment, by acceleration, or otherwise, of all Guaranteed Obligations now or hereafter existing, whether for principal, interest, premium, fees, costs, expenses, indemnities, or otherwise, in each case howsoever created, arising, or evidenced, whether direct or indirect, absolute or contingent, or now or hereafter existing, or due or to become due. This Guarantee is an irrevocable, absolute, and unconditional guarantee of payment and not merely of collection, and is in no way conditional or contingent upon any attempt to collect from any other obligor, any action or proceeding against any other obligor, the pursuit of any remedies against any collateral, or the enforcement of any other right or remedy.

(b) Each Guarantor agrees that its obligations under this Section 1 are absolute and unconditional, irrespective of, and shall not be released, discharged, limited, or affected by, any circumstance or event whatsoever, whether or not referred to herein, including, without limitation, any of the following: (i) any renewal, extension, amendment, supplement, modification, waiver, consent, or restatement of, or resignation under, any Loan Document or any other document or instrument referred to therein or herein; (ii) any sale, exchange, release, impairment, substitution, or other dealing with or in respect of any collateral or any other security for any of the Guaranteed Obligations; (iii) any assignment, transfer, or other disposition of any of the Guaranteed Obligations or any interest therein by the Administrative Agent or any other Secured Party; (iv) any failure, delay, omission, or refusal on the part of the Administrative Agent or any other Secured Party to exercise, or any exercise of, any right, remedy, power, or privilege under or in respect of the Loan Documents or otherwise; (v) any bankruptcy, insolvency, reorganization, arrangement, composition, adjustment, dissolution, liquidation, or other like proceeding relating to any other

Guarantor, any other obligor, or any other person, or any action taken with respect to this Agreement or any other Loan Document in any such proceeding; (vi) any invalidity, illegality, or unenforceability of, or any defect or deficiency in, this Agreement or any other Loan Document or any assignment or transfer thereof; (vii) any change in the corporate, partnership, limited liability company, or other existence, structure, or ownership of any other Guarantor or any other obligor, or any merger, consolidation, or sale of assets by any such person; (viii) any payment by any other Guarantor or any other obligor to any holder of any Guaranteed Obligation being held to be a preference, fraudulent transfer, or otherwise voidable or void, in whole or in part; (ix) any discharge, release, or termination of any other Guarantor or any other obligor from this Agreement or any other Loan Document, or any release or substitution of any collateral; or (x) any other circumstance, act, omission, or happening that might in any manner or to any extent vary, increase, or affect the liability of any Guarantor or otherwise operate as a release, discharge, or defense of a guarantor or surety, whether at law or in equity, other than payment in full of the Guaranteed Obligations. Each Guarantor expressly waives any and all rights and defenses that it may have under any suretyship, guaranty, or similar law, including any rights or defenses arising by reason of any election of remedies by the Administrative Agent or any Secured Party, including any election to proceed against any collateral rather than against any Guarantor, and each Guarantor acknowledges that such waiver may be relied upon by the Administrative Agent and each Secured Party.

(c) Each Guarantor further agrees that this Guarantee shall continue to be effective or be reinstated, as the case may be, if at any time any payment, or any part thereof, made or purported to be made by any Guarantor, any other obligor, or any other person in respect of the Guaranteed Obligations, or any payment received by the Administrative Agent or any other Secured Party against the Guaranteed Obligations, is rescinded, avoided, or otherwise required to be returned or restored by the Administrative Agent or any other Secured Party, whether as a preferential transfer, fraudulent conveyance, or otherwise, all as though such payment had not been made. In furtherance of the foregoing, each Guarantor agrees that its obligations under this Section 1 shall be reinstated to the extent of any such rescission, avoidance, or return as if such payment had never been made, and any such payment shall constitute Guaranteed Obligations of such Guarantor.

(d) Each Guarantor irrevocably waives, to the fullest extent permitted by law, any and all rights that it may now or hereafter have to require the Administrative Agent or any Secured Party to (i) proceed against any other Guarantor, any other obligor, or any collateral, (ii) pursue any other remedy in the power of the Administrative Agent or any Secured Party, or (iii) enforce any other right or take any other action against any other person or property. Each Guarantor further irrevocably waives, to the fullest extent permitted by law, any and all rights and defenses arising out of an election of remedies by the Administrative Agent or any Secured Party, even though that election of remedies, such as a nonjudicial foreclosure with respect to any collateral, has destroyed or impaired the subrogation rights of such Guarantor or the right of such Guarantor to proceed against any other Guarantor or any other obligor or any collateral for reimbursement or otherwise. No payment by any Guarantor hereunder shall entitle such Guarantor, by subrogation or otherwise, to any payment from the Administrative Agent or any Secured Party, from any other Guarantor, from any other obligor, or from any collateral, nor shall any Guarantor seek reimbursement, contribution, indemnification, or any other right of recovery from any other Guarantor or any other obligor, in each

case unless and until all Guaranteed Obligations have been indefeasibly paid in full in cash and all commitments and other obligations of the Loan Parties under the Loan Documents have terminated. Each Guarantor waives any right to enforce any remedy that the Administrative Agent or any Secured Party may have against any other Guarantor or any other obligor and any right to participate in any collateral, until the Guaranteed Obligations have been indefeasibly paid in full in cash and all such commitments and other obligations have been terminated.

(e) Each Guarantor agrees that it shall be liable for the full amount of the Guaranteed Obligations irrespective of any lack of authority, lack of capacity, or other incapacity of any other Guarantor or any other obligor, or any irregularity, invalidity, illegality, or unenforceability of any Loan Document or any other instrument or agreement. Each Guarantor acknowledges that its obligations hereunder are independent of the obligations of any other Guarantor or any other obligor and that a separate action or actions may be brought and prosecuted against such Guarantor whether or not an action is brought against any other Guarantor or any other obligor and whether or not any other Guarantor or any other obligor is joined in any such action or actions.

(f) This Guarantee is a continuing guarantee and shall remain in full force and effect until all Guaranteed Obligations are indefeasibly paid in full in cash and all commitments and other obligations of the Loan Parties under the Loan Documents are terminated. No notice of any kind, including any notice of the existence, creation, or incurrence of any Guaranteed Obligation, or of any default, event of default, or acceleration, need be given to any Guarantor. Each Guarantor hereby absolutely, irrevocably, and unconditionally waives, to the fullest extent permitted by law, any and all notice of the creation, renewal, extension, accrual, or performance of any Guaranteed Obligations, and any and all notice of or proof of reliance by the Administrative Agent or any Secured Party upon this Guarantee, and any and all demands for payment, presentment, protest, notice of dishonor, notice of default, notice of intent to accelerate, notice of acceleration, and any other notice whatsoever in connection with any Guaranteed Obligation. The liability of each Guarantor under this Section 1 shall not be affected or impaired by any failure or delay on the part of the Administrative Agent or any Secured Party to assert any claim or demand or to enforce any right or remedy with respect to any Guaranteed Obligation or this Agreement.

(g) Each Guarantor further agrees that, to the fullest extent permitted by law, it shall not assert, and hereby waives, any right or claim to have the collateral, if any, marshaled, or to require that the Administrative Agent or any Secured Party foreclose upon, sell, collect, or otherwise realize upon any collateral or any other security before pursuing such Guarantor under this Guarantee. Each Guarantor also agrees that the Administrative Agent and each Secured Party may enforce this Guarantee without first resorting to any other right, remedy, collateral, or security, and without first instituting any proceeding against any other Guarantor, any other obligor, or any collateral.

(h) Each Guarantor agrees to pay, on demand, all reasonable and documented out-of-pocket costs and expenses, including reasonable fees and disbursements of counsel, incurred by the Administrative Agent or any Secured Party in connection with the enforcement of this Guarantee, whether or not any litigation or other proceeding is commenced, and all such costs and expenses shall constitute Guaranteed Obligations and shall bear interest as provided in the Credit Agreement.

(i) Each Guarantor waives any and all defenses, claims, and discharges of any obligor, or other sureties or guarantors, including, without limitation, any defense based on the incapacity, lack of authority, death, or disability

of any other Guarantor or any other obligor, or the failure of the Administrative Agent or any Secured Party to file or enforce a claim against the estate of any other Guarantor or any other obligor in any bankruptcy or other proceeding. In the event of any bankruptcy, insolvency, reorganization, or other similar proceeding involving any other Guarantor or any other obligor, the Administrative Agent and each Secured Party may, in their sole discretion, file a claim or prove a claim in such proceeding with respect to the Guaranteed Obligations, and no Guarantor shall have any right to require the Administrative Agent or any Secured Party to file any such claim or to otherwise pursue any rights or remedies against any other person or property. To the extent any payment made or received in any such proceeding is rescinded or must otherwise be returned, each Guarantor shall remain liable under this Guarantee for the full amount of the Guaranteed Obligations as if such payment had not been made.

(j) Each Guarantor acknowledges that the Guaranteed Obligations may arise from time to time and may be increased, decreased, or otherwise changed, and that the Administrative Agent and each Secured Party may, without notice to or consent of any Guarantor, extend, renew, modify, accelerate, compromise, settle, or otherwise change the terms of any Guaranteed Obligation, or release or substitute any collateral or any other guarantor or obligor, all without affecting the obligations of such Guarantor under this Guarantee. This Guarantee may not be revoked, terminated, or modified by any Guarantor, and no course of dealing, delay, or indulgence on the part of the Administrative Agent or any Secured Party shall affect the obligations of any Guarantor hereunder. Any invalidity or unenforceability of any provision of this Section 1 shall not affect the validity or enforceability of any other provision of this Agreement, and the invalidity or unenforceability of any provision of any other Loan Document shall not affect the validity or enforceability of this Guarantee.

(k) Each Guarantor acknowledges that this Guarantee is delivered as an exhibit to the Credit Agreement and is one of the Loan Documents referred to therein. The rights and remedies of the Administrative Agent and each Secured Party under this Guarantee are cumulative and in addition to, and not in substitution for, any other rights and remedies provided by law or equity or under any other Loan Document. Nothing in this Section 1 shall be construed to limit the liability of any Guarantor under any instrument or document other than this Agreement, nor shall any provision of this Section 1 be construed to waive, release, or impair any right of the Administrative Agent or any Secured Party to realize upon any collateral or to enforce any other guaranty or obligation.

Section 2 (Guarantee Agreement). Each Guarantor hereby unconditionally and irrevocably, directly and as a primary obligor and not merely as a surety, guarantees to the Administrative Agent, for the benefit of each Secured Party, the due and punctual payment in full in cash when due, whether at stated maturity, by acceleration, by mandatory prepayment or otherwise, and the performance, of all Obligations (as defined in the Credit Agreement), and all costs, expenses, fees and disbursements (including reasonable attorneys' fees, legal expenses and court costs) incurred by the Administrative Agent or any Secured Party in connection with the enforcement or preservation of any rights or remedies under this Guarantee Agreement or any other Loan Document (all of the foregoing, collectively, the "Guaranteed Obligations"). This Guarantee Agreement is an absolute, unconditional, direct, primary and continuing guarantee of payment and performance and not of collection, and the obligations of each Guarantor under this Guarantee Agreement are independent of the Obligations of any other Loan Party, any other obligor, or any collateral.

(a) To the fullest extent permitted by applicable law, the Guaranteed Obligations of each Guarantor shall not be released, discharged, reduced or otherwise affected by any of the following: (A) any extension, renewal, settlement, compromise, waiver, forbearance, indulgence, release, discharge or modification of, or substitution with respect to, all or any part of the Guaranteed Obligations or any other Loan Document, or any agreement relating to any of the foregoing; (B) any taking, exchange, release, surrender, sale, foreclosure, acceptance or other disposition of, or failure to take or perfect any security interest in, or any other dealing with, any collateral at any time held by the Administrative Agent or any Secured Party; (C) any exercise or failure or delay in exercising any right, power or remedy under or with respect to this Guarantee Agreement, any other Loan Document or any collateral; (D) any waiver, consent, extension, forbearance or action or inaction on the part of the Administrative Agent or any Secured Party or any other person, whether or not such Guarantor has notice or knowledge of any of the foregoing; (E) any failure of any condition precedent to any disbursement or advance under the Credit Agreement; (F) any invalidity, irregularity, illegality, unenforceability or lack of genuineness of any Loan Document or any collateral; (G) any bankruptcy, insolvency, reorganization, arrangement, composition, readjustment, liquidation, dissolution, winding-up or other similar proceeding with respect to any other Loan Party, any obligor or any collateral; (H) any discharge of any other Loan Party or any other obligor from any obligation, whether by operation of law, statute, regulation or otherwise; (I) any change in the existence, structure, ownership, management or control of any other Loan Party or any other obligor; (J) any merger, consolidation, sale, lease or transfer of all or any part of the assets of any other Loan Party or any other obligor; (K) any change in applicable law or any interpretation thereof; or (L) any other fact or circumstance, whether similar or dissimilar to the foregoing, that would, in the absence of this paragraph, constitute a legal or equitable discharge or defense of a surety or guarantor.

(b) Each Guarantor unconditionally and irrevocably waives, to the fullest extent permitted by law, any and all rights to require the Administrative Agent or any Secured Party to (A) proceed against any other Loan Party, any other obligor or any collateral; (B) pursue any other remedy or enforce any other right; (C) exhaust any collateral or any other source of payment; or (D) marshal any assets or take any other action. Each Guarantor further waives, to the fullest extent permitted by law, any and all presentment, demand for payment, notice of dishonor, protest, notice of protest, notice of nonpayment, notice of default, notice of intent to accelerate, notice of acceleration, notice of acceptance of this Guarantee Agreement, notice of any action or inaction on the part of the Administrative Agent or any Secured Party, and any other notice or demand of any kind.

(c) Each Guarantor unconditionally and irrevocably waives, to the fullest extent permitted by law, any and all defenses, claims, setoffs, recoupments, counterclaims and discharges available to such Guarantor or to any other Loan Party or any other obligor with respect to the Guaranteed Obligations, including, without limitation, any defense based on (A) the illegality, invalidity, irregularity, unenforceability, genuineness, regularity, or inadmissibility in evidence of any Loan Document or any collateral; (B) the failure of any other Loan Party or any other obligor to execute and deliver any agreement, document or instrument; (C) the failure of any condition precedent; (D) the failure of any consideration; (E) any statute of limitations; (F) any rescission, novation, or accord and satisfaction; (G) any election of remedies; (H) any impairment of any collateral, including without limitation any sale, disposition, or other transfer of any collateral or the taking of any additional collateral; (I) any disability or

lack of corporate, partnership, limited liability company or other power or authority of any other Loan Party or any other obligor; (J) any right to require a proceeding first against any other Loan Party or any other obligor; or (K) any other matter or thing whatsoever. Each Guarantor agrees that this Guarantee Agreement may be enforced by the Administrative Agent without the necessity of first asserting or enforcing any claim against any other Loan Party or any other obligor or any collateral.

(d) To the fullest extent permitted by applicable law, each Guarantor hereby waives any right to the benefit of any valuation, stay, appraisement, exemption, extension, moratorium, redemption, bankruptcy, insolvency or other similar law now or hereafter in force, and any right to require that any action be brought or prosecuted against any other Loan Party, any other obligor or any collateral before any demand is made upon such Guarantor or this Guarantee Agreement is enforced.

(e) This Guarantee Agreement is an irrevocable, continuing guarantee and shall remain in full force and effect until the Guaranteed Obligations are paid in full in cash and all commitments under the Credit Agreement that would give rise to any Guaranteed Obligations have terminated. No Guarantor may revoke, terminate or rescind this Guarantee Agreement, and any purported revocation, termination or rescission shall be void and of no force or effect.

(f) Each Guarantor agrees that the Guaranteed Obligations may be enforced and collected by the Administrative Agent on behalf of the Secured Parties, and that the Administrative Agent shall have the sole and exclusive right to enforce this Guarantee Agreement and to exercise any rights, powers or remedies under this Guarantee Agreement. Each Guarantor acknowledges that the Secured Parties have relied on this Guarantee Agreement in making funds available under the Credit Agreement and will continue to rely on this Guarantee Agreement in making subsequent advances, and waives any right to require notice of any such reliance.

(g) Each Guarantor hereby subordinates any and all rights of subrogation, indemnification, reimbursement, contribution and any other similar rights or claims that such Guarantor may now or hereafter have against any other Loan Party or any other obligor, whether arising in contract, tort, equity or otherwise, to the prior payment in full in cash of all Guaranteed Obligations. Until the Guaranteed Obligations have been paid in full in cash and all commitments under the Credit Agreement that would give rise to any Guaranteed Obligations have terminated, no Guarantor shall receive, accept, or seek to enforce any payment or recovery on account of any such subrogation, indemnification, reimbursement, contribution or other similar right or claim, and no Guarantor shall take any action to perfect or enforce any security interest in any collateral to secure any such right or claim.

(h) Each Guarantor agrees that the Administrative Agent and the Secured Parties may, at any time and from time to time, without notice to or consent of any Guarantor, sell, assign, transfer, negotiate or grant participations in all or any part of the Obligations and any related Loan Documents, and no such sale, assignment, transfer, negotiation or participation shall affect the liabilities of any Guarantor under this Guarantee Agreement. Each Guarantor irrevocably consents to any such sale, assignment, transfer, negotiation or participation and agrees that the Administrative Agent or any Secured Party may furnish to any actual or prospective purchaser, assignee, transferee or participant all information concerning the Credit Agreement, the Loan Parties and the collateral as the Administrative Agent or such Secured Party deems appropriate.

(i) No provision of this Guarantee Agreement may be waived, amended, supplemented or modified except by a

written instrument executed by the Administrative Agent (or, if required by the Credit Agreement, by the Required Lenders) and the affected Guarantor, and no waiver of any provision or right shall be effective unless contained in a written instrument signed by the party to be charged with such waiver. No course of dealing, failure to exercise or delay in exercising any right, power or remedy shall operate as a waiver thereof or otherwise prejudice any right, power or remedy of the Administrative Agent or any Secured Party.

(j) Each Guarantor agrees that, in addition to all other rights and remedies available at law, in equity or otherwise, the Administrative Agent and the Secured Parties shall be entitled to seek equitable relief, including specific performance and injunctive relief, to enforce the provisions of this Guarantee Agreement, without the necessity of proving inadequacy of legal remedies or posting any bond or security.

(k) If any provision of this Guarantee Agreement is determined to be invalid, illegal or unenforceable in any jurisdiction, the remaining provisions shall remain in full force and effect, and the invalid, illegal or unenforceable provision shall be deemed modified to the minimum extent necessary to make it valid, legal and enforceable. Each Guarantor acknowledges and agrees that its obligations under this Guarantee Agreement are joint and several with the obligations of any other guarantor under any other guarantee agreement or similar instrument delivered pursuant to the Credit Agreement.

(l) To the fullest extent permitted by law, each Guarantor unconditionally and irrevocably waives any right to trial by jury in any action, suit or proceeding arising out of or relating to this Guarantee Agreement or the transactions contemplated hereby, and waives any right to assert any defense of statute of limitations in any such action, suit or proceeding to the fullest extent permitted by law.

Section 3 (Guarantee Agreement). Each Guarantor irrevocably and unconditionally waives, to the fullest extent permitted by applicable law, any and all rights, remedies, defenses, claims, setoffs, recoupments, counterclaims, and privileges that such Guarantor may now or hereafter have under any law, statute, rule, regulation, or in equity, relating to suretyship, guaranty, or otherwise, including, without limitation, each of the following:

(a) any right to require the Administrative Agent, any Collateral Agent, any Lender, or any other Credit Party to proceed against or exhaust any collateral security held by any Credit Party, to pursue any remedy against the Borrower, any other Guarantor, or any other Person, to enforce any right or pursue any remedy under any Credit Document, to join the Borrower, any other Guarantor, or any other Person as a party to any proceeding, or to take any action to collect or enforce any of the Obligations;

(b) any defense arising by reason of any disability, lack of authority, or other defense of the Borrower, any other Guarantor, or any other obligor with respect to the Obligations, or by reason of the cessation or limitation of the liability of the Borrower, any other Guarantor, or any other obligor from any cause other than payment in full of the Obligations;

(c) any defense based on any discharge, release, redemption, impairment, or sale of any collateral for the Obligations, or any right to require that any collateral be maintained, preserved, or realized upon;

(d) any defense based on any statute or rule of law that provides that the obligation of a surety or guarantor must be kept in force or must not be altered, or any change in the corporate existence, structure, or ownership of the Borrower, any other Guarantor, or any other obligor;

(e) any right to require that a demand be made or that any notice be given to the Borrower, any other Guarantor, or any other obligor, including any notice of acceptance, notice of default, notice of nonpayment, notice of dishonor, notice of protest, presentment, diligence, or protest with respect to any instrument evidencing any of the Obligations;
(f) any defense based on any extension, renewal, compromise, settlement, release, or indulgence granted to the Borrower, any other Guarantor, or any other obligor, or any substitution, exchange, release, or impairment of any collateral, or any waiver or modification of any provision of any Credit Document;
(g) any defense based on the invalidity, illegality, or unenforceability of any Credit Document or any provision thereof, or the failure of the Borrower, any other Guarantor, or any other obligor to execute or deliver any Credit Document;
(h) any defense based on the failure of any Credit Party to disclose to such Guarantor any information relating to the financial condition, operations, or prospects of the Borrower or any other Person, or any other circumstance bearing on the risk undertaken by such Guarantor;
(i) any right to assert any claim, defense, setoff, recoupment, or counterclaim against any Credit Party, or any other defense of any kind or nature, by reason of any action or inaction of any Credit Party with respect to the Obligations, including any failure to perfect, maintain, or protect any security interest or lien in any collateral;
(j) any right to a trial by jury in any action or proceeding arising out of or relating to this Agreement or any other Credit Document;
(k) any right to marshal assets, or to compel any Credit Party to marshal assets, or to require that the Obligations be paid from any particular collateral or source, or otherwise to require the application of any payments or proceeds of collateral in any particular order or manner;
(l) any right to be subrogated to the rights of any Credit Party under any Credit Document or otherwise, or to seek reimbursement, contribution, indemnification, or any other recovery from the Borrower or any other Guarantor, in each case until the Obligations have been paid in full in cash and all commitments under the Credit Agreement have been terminated;
(m) any defense arising from any election by any Credit Party to apply any payments or proceeds of collateral to the Obligations in any order or manner, or from any election by any Credit Party to refrain from making any such application;
(n) any defense arising from any failure of any Credit Party to file any claim in any bankruptcy or insolvency proceeding, or to take any other action in connection with any such proceeding, or any defense based on any discharge, release, or impairment of the Obligations in any such proceeding;
(o) any defense based on any limitation of the liability of any other Guarantor or any other obligor, or any limitation on the amount of any Guarantor's obligations under this Agreement, to the extent such limitation is not expressly set forth in this Agreement;
(p) any defense arising by reason of any merger, consolidation, reorganization, dissolution, or bankruptcy of the Borrower or any other Guarantor, or any other event or circumstance that might otherwise operate, at law or in equity, to discharge, impair, or otherwise affect the obligations of such Guarantor under this Agreement; and
(q) any and all other rights and defenses that any Guarantor might otherwise have against any Credit Party under any

applicable law, including any rights and defenses under the laws of the State of New York or any other jurisdiction relating to suretyship, guaranty, or the enforcement of the Obligations.

Each Guarantor acknowledges that the waivers set forth in this Section 3 are made with full knowledge of the consequences thereof and that the Credit Parties have relied upon such waivers in extending credit to the Borrower and in accepting this Agreement. No waiver by any Credit Party of any default, breach, or condition precedent shall be deemed a waiver of any subsequent default, breach, or condition precedent, and no failure or delay by any Credit Party in exercising any right, power, or privilege shall operate as a waiver thereof, nor shall any single or partial exercise thereof preclude any other or further exercise thereof or the exercise of any other right, power, or privilege. Each Guarantor agrees that any and all rights and defenses that such Guarantor might otherwise have under any law, statute, rule, regulation, or in equity, including any rights or defenses arising out of any doctrine of election of remedies, shall be deemed waived to the greatest extent permitted by applicable law. Each Guarantor further agrees that the Obligations shall be absolute and unconditional, irrespective of the validity, regularity, or enforceability of any Credit Document, the absence of any action to enforce the same, any waiver or consent by any Credit Party concerning any provision of any Credit Document, the recovery of any judgment against the Borrower or any other Guarantor, any action to enforce the same, or any other circumstance that might otherwise constitute a legal or equitable discharge or defense of a surety or guarantor.

This Section 3 shall survive the execution and delivery of this Agreement and shall continue in full force and effect until the Obligations are paid in full in cash and all commitments under the Credit Agreement are terminated. To the extent that any provision of this Section 3 is invalid or unenforceable under any applicable law, such provision shall be ineffective to the extent of such invalidity or unenforceability without invalidating the remaining provisions of this Section 3.

Section 4 (Guarantee Agreement). (a) Subject to the provisions of this Section, upon the making by any Guarantor of any payment under its Guarantee, such Guarantor shall, to the extent of such payment, be subrogated to the rights of the Secured Parties against the Borrower and any other obligor in respect of the Obligations and against any collateral security therefor; provided, however, that such Guarantor shall not be entitled to enforce, receive, or otherwise realize upon any such subrogated right or any right of reimbursement, contribution, indemnity, or exoneration, or any other claim or remedy against the Borrower or any other obligor, and shall not be entitled to assert, compel, or receive any payment, security, or other benefit by reason of any such subrogated right or any such other right, claim, or remedy, unless and until all of the Obligations have been fully, finally, and irrevocably paid and performed in cash and all commitments of the Secured Parties under the Credit Agreement have terminated.

(b) Each Guarantor hereby unconditionally and irrevocably waives, until such time as all of the Obligations have been fully, finally, and irrevocably paid and performed in cash and all commitments of the Secured Parties under the Credit Agreement have terminated, any and all rights of subrogation, reimbursement, contribution, indemnification, and exoneration, and any other right, claim, or remedy against the Borrower, any other Guarantor, or any other obligor, and any right to participate in any collateral securing the Obligations, whether such rights arise at common law, in equity, by contract, by statute, or otherwise.

(c) Any rights of subrogation, reimbursement, contribution, indemnification, or exoneration, or any other right,

claim, or remedy of any Guarantor against the Borrower, any other Guarantor, or any other obligor, and any right of any Guarantor to participate in any collateral securing the Obligations, shall be and are hereby expressly subordinated and junior in right of payment to the indefeasible payment in full in cash of all of the Obligations and the termination of all commitments of the Secured Parties under the Credit Agreement, and no Guarantor shall accept or receive any payment, distribution, or other transfer on account of any such right, claim, or remedy, or any such right of participation, in whole or in part, until such prior indefeasible payment in full in cash of all of the Obligations and such termination shall have occurred.

(d) If any payment made by or on behalf of the Borrower or any other obligor, or any amount received by any Secured Party in respect of any collateral, is subsequently avoided, recovered, rescinded, or set aside, or is required to be returned, repaid, or restored by any Secured Party, whether pursuant to any bankruptcy or insolvency proceeding or otherwise, then, to the extent of such avoidance, recovery, rescission, set-aside, return, repayment, or restoration, the prior payment or satisfaction of the Obligations shall be deemed not to have occurred for purposes of this Section, and each Guarantor shall remain liable under its Guarantee and this Section as if such payment or satisfaction had not occurred.

(e) Each Guarantor agrees that it will not, until the indefeasible payment in full in cash of all of the Obligations and the termination of all commitments of the Secured Parties under the Credit Agreement, commence, join in, or otherwise prosecute any action or proceeding against the Borrower or any other obligor on account of any right, claim, or remedy subordinated and junior under this Section, or assert, enforce, or pursue any such right, claim, or remedy in any insolvency, bankruptcy, liquidation, or reorganization proceeding of the Borrower or any other obligor, including any right to receive any payment or distribution in any such proceeding from the estate of the Borrower or any other obligor in respect of such subordinated rights.

(f) Upon the occurrence of the indefeasible payment in full in cash of all of the Obligations and the termination of all commitments of the Secured Parties under the Credit Agreement, the Secured Parties shall, at the reasonable expense of the Guarantors, deliver to the Guarantors such instruments and documents, and take such other actions, as the Guarantors may reasonably request to evidence the release and assignment to the Guarantors of any rights of subrogation of the Secured Parties against the Borrower and any other obligor and any collateral with respect thereto, in each case to the extent then held by the Secured Parties; provided that the Secured Parties shall have no liability or obligation whatsoever to any Guarantor in connection with or arising out of any such release or assignment except for gross negligence or willful misconduct.

(g) Nothing in this Section shall be construed to limit or impair any right, title, or interest of any Secured Party in or to any collateral or any other property, or to limit, impair, or otherwise affect the obligations of the Borrower or any other obligor under the Credit Agreement or any other Loan Document, or the obligations of any Guarantor under its Guarantee, all of which obligations shall remain in full force and effect in accordance with their respective terms.

(h) Each Guarantor acknowledges and agrees that this Section is a material inducement to the Secured Parties' extension of credit under the Credit Agreement, and that each Secured Party would not enter into the Credit Agreement or make any extension of credit thereunder without the waivers, subordinations, and acknowledgements set forth in this Section. Nothing contained in this Section shall be deemed to be a waiver, release, or discharge of

any of the Obligations, nor shall any provision hereof limit, impair, or otherwise affect the liability of any Guarantor under its Guarantee, it being expressly understood and agreed that the rights, benefits, and protections afforded to the Guarantors under this Section are separate from and in addition to any other rights, benefits, and protections afforded to the Guarantors under any other provision of this Agreement or any other Loan Document.

Section 5 (Guarantee Agreement). (a) The Guarantor agrees that its obligations under this Agreement are absolute, unconditional, joint and several, irrevocable, and continuing, and shall remain in full force and effect until the Commitments have been terminated and the Obligations have been paid in full in cash, other than contingent indemnification obligations not then due and payable. Without limiting the generality of the foregoing, the Guarantor agrees that its obligations under this Agreement shall not be discharged, released, impaired, or otherwise affected by any of the following events or circumstances, whether occurring before or after the date of this Agreement:

(i) any amendment, modification, extension, renewal, supplement, waiver, consent, or other change to or departure from any provision of the Credit Agreement or any other Loan Document;

(ii) any action or inaction, failure, delay, or omission on the part of the Agent, any Lender, or any other Secured Party to exercise, or to enforce, any right, power, privilege, or remedy under or with respect to the Credit Agreement, any other Loan Document, or any collateral, including any failure to perfect or continue perfection of any security interest in any collateral;

(iii) any foreclosure, collection, sale, lease, transfer, or other disposition of, or realization upon, any collateral, or any release, substitution, exchange, or impairment of any collateral, including any release of any security interest in any collateral;

(iv) any release, discharge, substitution, or addition of any other guarantor, co-obligor, endorser, or other person liable for any Obligations;

(v) any bankruptcy, insolvency, reorganization, arrangement, composition, assignment for the benefit of creditors, receivership, or similar proceeding with respect to the Borrower, any Guarantor, or any other person, or any discharge of any Obligations in any such proceeding;

(vi) any invalidity, illegality, or unenforceability of the Credit Agreement, any other Loan Document, or any provision thereof, or any limitation on the liability of the Borrower thereunder;

(vii) any statute of limitations or any other defense based on the lapse of time;

(viii) any change in the corporate, partnership, or other existence, structure, or ownership of the Borrower or any Guarantor, or any merger, consolidation, reorganization, or sale of assets of the Borrower or any Guarantor;

(ix) any claim of fraud, duress, undue influence, mistake, or misrepresentation by the Agent, any Lender, or any other Secured Party;

(x) any failure of the Agent or any Secured Party to disclose to the Guarantor any information relating to the business, financial condition, operations, properties, assets, liabilities, or prospects of the Borrower or any other person; or

(xi) any other act, omission, event, or circumstance that might, in the absence of this paragraph, operate, directly or indirectly, to discharge, release, impair, or otherwise affect the obligations of the Guarantor under this Agreement.

(b) The Guarantor waives, to the fullest extent permitted by law, any right to require the Agent or any Secured Party to proceed against the Borrower or any other person, or to exhaust any collateral or any other remedy, before demanding payment or performance from the Guarantor. The Guarantor further waives, to the fullest extent permitted by law, all notices of any kind, including notice of acceptance of this Agreement, notice of any default or nonpayment, notice of the incurrence of any Obligations, notice of any amendment or modification of any Loan Document, notice of any transfer or pledge of any Obligations, notice of any presentment, demand for payment, protest, notice of dishonor or nonpayment, and all other notices whatsoever, other than notices expressly required to be given to the Guarantor under this Agreement.

(c) If any payment made by the Borrower or any other person, or any proceeds of any collateral, and applied to the Obligations is at any time rescinded, avoided, annulled, or set aside, or is required to be restored or returned by the Agent or any Secured Party under any bankruptcy law, fraudulent conveyance law, or other similar law, or otherwise as a preference, fraudulent transfer, or similar voidable payment, then the aggregate amount of such payment or proceeds so rescinded, avoided, annulled, set aside, restored, or returned shall, to the extent of such payment or proceeds, constitute part of the Obligations and the Guarantor's obligations under this Agreement shall automatically be reinstated with respect to such amount, as though such payment or proceeds had not been made or received, and such reinstatement shall be effective as of the date of such rescission, avoidance, annulment, set aside, restoration, or return, regardless of any lapse of time or any delay in asserting such reinstatement.

(d) The Guarantor agrees that it shall not be entitled to any subrogation, contribution, reimbursement, indemnification, or other similar right or claim against the Borrower or any other person, or against any collateral, by reason of any payment or performance by the Guarantor under this Agreement, until the Commitments shall have been terminated and the Obligations shall have been paid in full in cash. If any amount shall be paid to the Guarantor on account of any such subrogation, contribution, reimbursement, indemnification, or similar right prior to the termination of the Commitments and payment in full in cash of the Obligations, such amount shall be held in trust for the benefit of the Secured Parties, shall be segregated from other funds and property of the Guarantor, and shall, promptly upon receipt, be turned over to the Agent for application to the Obligations, whether matured or unmatured, in accordance with the Credit Agreement.

(e) The Guarantor acknowledges and agrees that this Agreement is a guaranty of payment and not of collection, and that the Guarantor's obligations under this Agreement are primary, absolute, unconditional, and irrevocable, and shall not be subject to any counterclaim, setoff, recoupment, or defense whatsoever, other than payment in full of the Obligations and the termination of the Commitments.

(f) The Guarantor agrees that the Agent and each Secured Party may, at any time and from time to time, without the consent of or notice to the Guarantor, and without affecting or impairing the obligations of the Guarantor under this Agreement, deal with the Borrower and any other person and with any collateral in any manner whatsoever, including without limitation releasing all or any part of the collateral, compromising or extending the time for payment of all or any part of the Obligations, releasing any other guarantor, or exercising or refraining from exercising any rights or remedies against the Borrower or any other person.

(g) The provisions of this Section 5 shall survive the payment in full of the Obligations and the termination of the

Commitments, and shall continue in full force and effect to the extent necessary to give effect to the reinstatement provisions of subsection (c) above and to permit the Secured Parties to enforce their rights with respect to any amounts so reinstated.

Section 6 (Guarantee Agreement). For purposes of this Section, Taxes means all present and future taxes, levies, imposts, duties, fees, assessments, or other charges of any nature whatsoever, together with all interest, penalties, and additions to tax, imposed, assessed, levied, or withheld by any Governmental Authority. Excluded Taxes means, with respect to any Secured Party, Taxes imposed on or measured by net income or overall net income of such Secured Party, and franchise taxes and branch profits taxes imposed on such Secured Party, in each case by the Governmental Authority of the jurisdiction in which such Secured Party is organized or in which the applicable lending office of such Secured Party is located, or any political subdivision thereof. Indemnified Taxes means all Taxes other than Excluded Taxes.

(a) All amounts payable by each Guarantor under this Agreement shall be paid in full, in United States Dollars, in immediately available funds, to the Administrative Agent for the account of the applicable Secured Parties, without setoff, recoupment, counterclaim, defense, deduction, withholding, reduction, abatement, or other similar claim or defense, and free and clear of, and without deduction or withholding for or on account of, any Indemnified Taxes.

(b) If any Guarantor or any other person is required by applicable law or by any Governmental Authority to make a deduction or withholding from any payment made by such Guarantor under this Agreement for or on account of any Indemnified Tax, then such Guarantor shall make such deduction or withholding, pay the full amount deducted or withheld to the relevant Governmental Authority in accordance with applicable law, and pay to the Administrative Agent for the account of each applicable Secured Party such additional amount as may be necessary so that, after giving effect to such deduction or withholding and to any Taxes imposed on or with respect to such additional amount, each such Secured Party receives and retains, free of any liability for such Indemnified Tax, an amount equal to the full amount that such Secured Party would have received had no such deduction or withholding been required.

(c) Each Guarantor shall jointly and severally indemnify each Secured Party, within ten days after written demand therefor, for the full amount of any Indemnified Tax imposed on or with respect to any payment made by such Guarantor under this Agreement, including any Indemnified Tax imposed on or with respect to any additional amount paid under paragraph (b) of this Section, and required to be paid by such Secured Party, together with any reasonable expenses, including reasonable fees and disbursements of counsel, incurred by such Secured Party in connection therewith, whether or not such Indemnified Tax was correctly or legally imposed or asserted by the relevant Governmental Authority. A certificate as to the amount of any such Indemnified Tax or expense delivered to the relevant Guarantor by the applicable Secured Party shall be conclusive, absent manifest error. No Guarantor shall be required to indemnify any Secured Party for any Excluded Tax.

(d) Within thirty days after the payment of any Indemnified Tax in respect of which an additional amount was paid pursuant to paragraph (b) of this Section, or in respect of which indemnification was made pursuant to paragraph (c) of this Section, the relevant Guarantor shall deliver to the Administrative Agent, for delivery to each applicable Secured Party, the original or a certified copy of a receipt issued by the relevant Governmental Authority evidencing

payment of such Indemnified Tax, or other evidence of payment reasonably satisfactory to the Administrative Agent and such Secured Party. If such Guarantor fails to pay any such Indemnified Tax when due to the relevant Governmental Authority, or fails to deliver such receipt or other evidence, then such Guarantor shall indemnify each applicable Secured Party for any incremental interest, penalties, or additions to tax that may become payable by such Secured Party as a result of such failure.

(e) Each Guarantor shall pay, and shall indemnify each Secured Party against, any stamp, court, or documentary taxes and any excise or property taxes, and any interest, penalties, or additions to tax with respect thereto, arising with respect to this Agreement or any other instrument or document delivered in connection herewith, except for any such taxes arising in connection with an assignment or transfer by a Secured Party.

(f) Each Secured Party seeking indemnification under this Section shall use reasonable efforts promptly to notify the relevant Guarantor in writing of any Indemnified Tax as soon as reasonably practicable after becoming aware of such Indemnified Tax. A failure or delay by any Secured Party to give notice of any Indemnified Tax shall not affect the obligations of any Guarantor under this Section, except to the extent that such failure or delay materially and adversely affects the ability of such Guarantor to contest such Indemnified Tax or to obtain a refund or credit with respect thereto.

(g) If any Secured Party determines in good faith that it has received a refund of any Indemnified Tax as to which it has been paid an additional amount or indemnification by a Guarantor under this Section, it shall pay to such Guarantor an amount equal to such refund, but only to the extent of the additional amount or indemnification payments made by such Guarantor with respect to the Indemnified Tax giving rise to such refund, together with any interest paid or credited by the relevant Governmental Authority with respect to such refund; provided, that such Secured Party shall not be required to pay any portion of such refund to such Guarantor to the extent that, in the reasonable opinion of such Secured Party, it would place such Secured Party in a less favorable net after-tax position than such Secured Party would have been in if the additional amount or indemnification had never been paid. To the extent such Secured Party is required to return any such refund to the relevant Governmental Authority, such Guarantor shall reimburse such Secured Party for any such amount. Nothing in this paragraph shall require any Secured Party to provide any information regarding its tax returns or to disclose any information that it reasonably determines to be confidential or privileged.

(h) The obligations of each Guarantor under this Section shall survive the termination of this Agreement, the repayment of all amounts guaranteed hereby, the resignation or replacement of the Administrative Agent, and any assignment or transfer by any Secured Party of its rights and obligations under this Agreement or the Credit Agreement. No Secured Party shall be entitled to any double recovery under this Section with respect to the same Indemnified Tax.

Section 7 (Guarantee Agreement). (a) Continuing Guarantee. This Guarantee Agreement is a continuing, irrevocable, absolute, full-recourse guarantee and guarantee of payment and performance, and not merely of collection. Subject to the terms of this Guarantee Agreement and the Credit Agreement, each Guarantor, jointly and severally, irrevocably, absolutely and unconditionally guarantees to the Administrative Agent for the benefit of each Secured Party the due and punctual payment and performance in full in cash of all Obligations, whether now

existing or hereafter arising, as and when the same shall become due and payable, whether at stated maturity, by acceleration, by mandatory or optional prepayment, or otherwise, and whether or not any demand is made upon any Credit Party. This Guarantee shall remain in full force and effect and be binding upon each Guarantor until all Obligations have been finally and irrevocably paid and performed in full in cash and all Commitments under the Credit Agreement have been terminated and all Letters of Credit have expired or been terminated or, if drawn, have been reimbursed in full, in each case in accordance with the Credit Agreement.

(b) Primary Obligations. Each Guarantor is and shall be liable under this Guarantee as primary obligor and not merely as surety. The Administrative Agent and each other Secured Party may proceed against each Guarantor without first proceeding against any Credit Party or other obligor, without exhausting any collateral, and without exercising any other right or remedy. Each Guarantor waives any right to require that any action be brought against any other person or entity or that any collateral be exhausted. To the fullest extent permitted by law, each Guarantor waives any defense arising by reason of any disability or other defense of any Credit Party or other obligor or by reason of the cessation from any cause of the liability of any Credit Party or other obligor, and any defense arising by reason of any statute of limitations or any election of remedies by any Secured Party.

(c) Certain Waivers. Each Guarantor irrevocably waives, to the fullest extent permitted by law, notice of acceptance of this Guarantee, notice of the incurrence or existence of any Obligations, presentment, demand for payment or performance, protest, notice of protest, notice of dishonor, notice of default or nonpayment, notice of any extension of time for payment or performance, notice of any amendment, waiver, or consent with respect to any of the Obligations or any agreement relating to any of the Obligations, notice of any transfer or assignment of any of the Obligations, and any other notice of any kind whatsoever with respect to any Obligations or this Guarantee. No failure or delay on the part of any Secured Party in exercising any right, power, or privilege under this Guarantee shall operate as a waiver thereof, and no single or partial exercise thereof shall preclude any other or further exercise thereof or the exercise of any other right, power, or privilege.

(d) No Impairment. The obligations of each Guarantor under this Guarantee shall not be released, diminished, impaired, discharged, or reduced by any of the following, whether occurring before or after the execution of this Guarantee Agreement and whether or not with notice to or consent of any Guarantor: any modification, extension, renewal, acceleration, compromise, settlement, composition, release, collection, or discharge of, or indulgence with respect to, all or any part of the Obligations or any agreement relating to the Obligations; any amendment to, restatement of, or waiver under, the Credit Agreement or any other agreement relating to the Obligations; any sale, exchange, release, surrender, substitution, impairment, deterioration, disposition, or failure to perfect or protect any collateral or any right or remedy of any Secured Party; any application of any payment, proceeds, or other recovery to the Obligations in any order or manner; any change in the corporate or other existence, structure, name, jurisdiction of organization, location, assets, or business of any Guarantor or any Credit Party; any dissolution, liquidation, termination, insolvency, bankruptcy, reorganization, arrangement, composition, receivership, or similar proceeding affecting any Guarantor, any Credit Party, or their properties; any incapacity, illegality, invalidity, or unenforceability of, or any defect in, the Obligations or any agreement relating to the Obligations; any failure or refusal of any Secured Party to marshal any assets in favor of any Secured Party; any defense, setoff, counterclaim,

or discharge available to any Guarantor or any Credit Party, whether direct or indirect, at law or in equity, other than final and irrevocable payment and performance in full of the Obligations and termination of this Guarantee in accordance with its terms; and any other act, omission, circumstance, or occurrence that might in any manner or to any extent vary the risk of any Guarantor or otherwise operate as a discharge of a surety or guarantor, as the case may be, in whole or in part.

(e) Reinstatement. If any payment or transfer of property or value with respect to the Obligations is rescinded, avoided, or set aside, or must be returned or restored by any Secured Party as a result of the insolvency, bankruptcy, fraudulent conveyance, or similar event or proceeding or otherwise, then the liability of each Guarantor under this Guarantee with respect to such payment or transfer shall be reinstated automatically and to the same extent as if such payment or transfer had not been made, and this Guarantee shall continue in full force and effect until final and irrevocable payment and performance in full in cash of all Obligations affected by such reinstatement. Nothing in this paragraph shall be construed as a waiver of any right of any Secured Party to contest any such avoidance or return.

(f) Deferral of Subrogation and Similar Rights. No Guarantor shall assert, claim, or exercise any rights of subrogation, contribution, reimbursement, indemnity, or other similar rights against any Credit Party or other obligor or against any collateral until the later of the date on which all Obligations have been paid and performed in full in cash and all Commitments under the Credit Agreement have been terminated and all Letters of Credit have expired or been terminated or, if drawn, have been reimbursed in full, and the date on which this Guarantee has been terminated in accordance with its terms. If any such rights arise prior to such date, they shall be subordinated to the prior payment and performance in full in cash of the Obligations. Each Guarantor waives, to the fullest extent permitted by law, any right to participate in any collateral or any proceeds thereof prior to the payment and performance in full in cash of all Obligations.

(g) Successors and Assigns. This Guarantee shall be binding upon each Guarantor and its successors and permitted assigns, and shall inure to the benefit of the Administrative Agent and each other Secured Party and their respective successors and assigns. No Guarantor may assign any of its rights or delegate any of its duties under this Guarantee without the prior written consent of the Administrative Agent and, if required by the Credit Agreement, the Lenders, and any purported assignment or delegation without such consent shall be null and void. Any assignee of any Commitments, loans, or other Obligations in accordance with the Credit Agreement shall, without the need for any action by or consent of any Guarantor, become a Secured Party entitled to the benefits of this Guarantee with respect to the Obligations so assigned. Any successor administrative agent appointed in accordance with the Credit Agreement shall be entitled to all of the rights and benefits of the Administrative Agent under this Guarantee without any further action by any Guarantor.

(h) Release Upon Payment. Upon the date on which all Obligations have been paid and performed in full in cash and all Commitments under the Credit Agreement have been terminated and all Letters of Credit have expired or been terminated or, if drawn, have been reimbursed in full and this Guarantee has been terminated in accordance with its terms, the Administrative Agent shall, at the expense of the applicable Credit Party, execute and deliver such releases and acknowledgements of discharge as any Guarantor may reasonably request to reflect the termination of

this Guarantee.

(i) Cumulative Rights. All rights of the Administrative Agent and each other Secured Party under this Guarantee are cumulative and are in addition to all rights and remedies under the Credit Agreement, any other agreement relating to any of the Obligations, or applicable law. No exercise of any right or remedy shall constitute an election, and no waiver of any default shall operate as a waiver of any other default.

Section 8 (Guarantee Agreement). Each Guarantor represents and warrants to the Administrative Agent for the benefit of the Secured Parties that, as of the date of this Guarantee Agreement and as of each other date on which the representations and warranties of the Borrower contained in the Credit Agreement are required to be made or are deemed to be made, and, in the case of any entity that becomes a Guarantor after the date of this Guarantee Agreement, as of the date on which such entity becomes a Guarantor, in each case as if made on and as of such date, the following are true and correct:

(a) Organization, Good Standing and Qualification. The Guarantor is duly organized, validly existing and in good standing under the laws of its jurisdiction of organization and has all requisite power and authority to own its assets, to incur its obligations and to carry on its business as now conducted. The Guarantor is duly qualified to do business and is in good standing in each jurisdiction in which the ownership of its assets or the conduct of its business requires such qualification, except where the failure to be so qualified or in good standing could not reasonably be expected to have a Material Adverse Effect.

(b) Authority; No Conflict; Enforceability. The execution, delivery and performance by the Guarantor of this Guarantee Agreement and each other Loan Document to which it is or is contemplated to be a party are within the Guarantor's powers, have been duly authorized by all necessary corporate or other organizational action and do not, first, contravene the Guarantor's certificate or articles of incorporation, by-laws, limited liability company agreement, partnership agreement or other constitutive or organizational documents, second, contravene any law, rule or regulation binding on the Guarantor or any judgment, order, writ, injunction or decree of any court or governmental or regulatory authority applicable to the Guarantor, third, conflict with or result in a breach of or constitute a default under any indenture, mortgage, agreement, contract, instrument or other undertaking to which the Guarantor is a party or by which the Guarantor or any of its assets is bound, or fourth, result in the creation or imposition of any Lien upon any of the assets of the Guarantor, other than Permitted Liens. No consent, approval, authorization, order, registration, filing or qualification of or with any governmental or regulatory authority is required for the execution, delivery or performance by the Guarantor of this Guarantee Agreement or any other Loan Document to which it is a party, except those that have been obtained or made and are in full force and effect. This Guarantee Agreement has been duly executed and delivered by the Guarantor and constitutes a legal, valid and binding obligation of the Guarantor, enforceable against the Guarantor in accordance with its terms, except as enforceability may be limited by applicable bankruptcy, insolvency, reorganization, moratorium or other similar laws affecting creditors' rights generally and by general principles of equity.

(c) No Default or Event of Default; No Burdensome Restrictions. No event has occurred and is continuing that constitutes, or that would with the giving of notice or the lapse of time or both constitute, a Default or an Event of Default under the Credit Agreement or any other Loan Document, and the Guarantor is not in default under any

material indenture, agreement, contract, instrument or other undertaking to which it is a party or by which it or any of its assets is bound, except where such default could not reasonably be expected to have a Material Adverse Effect. The Guarantor is not a party to or bound by any indenture, agreement, contract, instrument, law, rule, regulation, judgment, order, writ, injunction or decree that could reasonably be expected to have a Material Adverse Effect or to impair the Guarantor's ability to perform its obligations under this Guarantee Agreement.

(d) Financial Statements; No Material Adverse Change. The financial statements of the Guarantor and its Subsidiaries, if any, most recently delivered to the Administrative Agent or the Lenders in connection with the Credit Agreement and the other Loan Documents fairly present in all material respects the financial condition, results of operations and cash flows of the Guarantor and its Subsidiaries, if any, as of the dates and for the periods stated therein in accordance with generally accepted accounting principles consistently applied, subject, in the case of unaudited financial statements, to the absence of footnotes and to normal year-end adjustments. Since the date of such most recent financial statements, there has been no event, change, circumstance, development or effect that has had or could reasonably be expected to have a Material Adverse Effect.

(e) Litigation and Proceedings. There is no action, suit, investigation, litigation, proceeding or claim pending, or to the knowledge of the Guarantor threatened, before any court, arbitrator, governmental authority or other tribunal, against the Guarantor or any of its Subsidiaries, if any, or with respect to any of its or their assets or properties, and there are no bankruptcy, insolvency, reorganization, receivership or other similar proceedings pending, or to the knowledge of the Guarantor threatened, against the Guarantor or any of its Subsidiaries, if any, that, in any such case, could reasonably be expected to be determined adversely and, if determined adversely, could reasonably be expected to have a Material Adverse Effect or to impair the Guarantor's ability to perform its obligations under this Guarantee Agreement.

(f) Title to Properties; Liens. The Guarantor has good and valid title to, or a valid leasehold interest in, all of its real and personal property that is material to its business, free and clear of all Liens except Permitted Liens.

(g) Intellectual Property. The Guarantor owns, or has the right to use under valid and enforceable license or other arrangements, all intellectual property material to the conduct of its business as currently conducted, and no claim is pending or, to the knowledge of the Guarantor, threatened with respect to any such intellectual property that could reasonably be expected to have a Material Adverse Effect.

(h) Taxes. The Guarantor has filed all material Tax returns required to be filed by it and has paid all Taxes shown as due and payable on such returns and all Taxes, assessments, fees and other governmental charges imposed upon it or any of its assets, other than any Taxes being contested in good faith by appropriate proceedings and for which adequate reserves have been established in accordance with generally accepted accounting principles. The amount of any such Taxes not paid could not reasonably be expected, in the aggregate, to have a Material Adverse Effect.

(i) Environmental Matters. The Guarantor and its Subsidiaries, if any, are in compliance with all applicable Environmental Laws, except where the failure to comply could not reasonably be expected to have a Material Adverse Effect. There is no claim, notice, directive, order, complaint, proceeding or request for information pending or, to the knowledge of the Guarantor, threatened in writing against the Guarantor or any of its Subsidiaries, if any, alleging a violation of or liability under any Environmental Law, and there are no conditions or circumstances

involving any release or threatened release of hazardous materials at, on, under or from any real property owned, leased or operated by the Guarantor or any of its Subsidiaries, if any, that, in any such case, could reasonably be expected to have a Material Adverse Effect.

(j) Employee Benefits. Each employee benefit plan maintained or contributed to by the Guarantor or, if any, any of its Subsidiaries, or with respect to which the Guarantor or any such Subsidiary has any liability, is in compliance with ERISA and the Internal Revenue Code, in all material respects; no event has occurred or is reasonably expected to occur with respect to any such plan that could reasonably be expected to subject the Guarantor to any material liability under applicable law; and there are no material unfunded liabilities with respect to any such plan.

(k) Solvency. The Guarantor is Solvent, and after giving effect to the incurrence of the Obligations and to the execution, delivery and performance of this Guarantee Agreement, the Guarantor will be Solvent.

(l) Investment Company Act; Margin Regulations. The Guarantor is not an investment company or a company controlled by an investment company, in each case within the meaning of the Investment Company Act. The Guarantor is not engaged principally, or as one of its important activities, in the business of extending credit for the purpose of purchasing or carrying margin stock within the meaning of Regulation U, and no part of the proceeds of any Loan will be used to purchase or carry margin stock or to extend credit to others for the purpose of purchasing or carrying margin stock, in each case in violation of Regulation U or Regulation X.

(m) Compliance with Sanctions, Anti-Money Laundering Laws and Anti-Corruption Laws. To the extent applicable, the Guarantor and its Subsidiaries, if any, are in compliance with all applicable anti-money laundering laws, rules and regulations, with all economic and trade sanctions administered by the Office of Foreign Assets Control of the United States Department of the Treasury or any other applicable governmental authority, and with all applicable anti-corruption and anti-bribery laws. Neither the Guarantor nor, to the knowledge of the Guarantor, any of its Subsidiaries, if any, or any director, officer or employee of the Guarantor or any such Subsidiary, is a Person that is subject to any such sanctions or is organized, resident or located in a country or territory that is the subject of comprehensive sanctions.

(n) No Broker’s Fees. No broker, finder, investment banker or other intermediary is entitled to any brokerage, finder’s or other fee or commission in connection with the transactions contemplated by this Guarantee Agreement or any other Loan Document based upon arrangements made by or on behalf of the Guarantor.

(o) Insurance. The Guarantor maintains, and causes each of its Subsidiaries, if any, to maintain, insurance with responsible and reputable insurance companies or associations in such amounts and against such risks as are customarily maintained by companies engaged in similar businesses operating in the same or similar locations, except where the failure to maintain such insurance could not reasonably be expected to have a Material Adverse Effect.

(p) Full Disclosure. All written information, reports, financial statements, exhibits and schedules furnished by or on behalf of the Guarantor to the Administrative Agent or the Lenders in connection with this Guarantee Agreement and the other Loan Documents, when taken as a whole, do not contain any untrue statement of a material fact and do not omit to state any material fact necessary in order to make the statements contained therein not misleading in light of the circumstances under which such statements were made.

(q) Incorporation of Credit Agreement Representations. The representations and warranties of the Borrower set forth in the Credit Agreement are hereby incorporated by reference into this Guarantee Agreement, mutatis mutandis, with the same force and effect as if set forth in full herein, as if each reference to the Borrower in such representations and warranties were a reference to the Guarantor and as if each reference to the Credit Agreement in such representations and warranties were a reference to this Guarantee Agreement, provided that such incorporation shall not be construed to limit or impair the representations and warranties made by the Guarantor in this Guarantee Agreement.

Section 9 (Guarantee Agreement). Each Guarantor, for so long as any Guaranteed Obligations remain outstanding or any Guarantor has any obligation under this Guaranty, unless the Administrative Agent shall otherwise consent in writing (such consent not to be unreasonably withheld, conditioned or delayed), hereby covenants and agrees that:

(a) Existence and Conduct of Business. Such Guarantor shall do or cause to be done all things necessary to preserve, renew and keep in full force and effect its legal existence and all rights, licenses, permits, franchises and privileges necessary to the conduct of its business, and shall comply in all material respects with its organizational documents and with all applicable laws, rules, regulations and orders of any Governmental Authority, except where the failure to do so could not reasonably be expected to have a Material Adverse Effect. Such Guarantor shall maintain its good standing in its jurisdiction of formation and in each other jurisdiction in which the failure to maintain such good standing could reasonably be expected to have a Material Adverse Effect.

(b) Payment of Taxes and Claims. Such Guarantor shall pay and discharge all taxes, assessments and other governmental charges or levies imposed upon it or upon any of its properties, income or profits, and all lawful claims for labor, materials, supplies and services, that have become due and payable and that by law have or may become a lien on any of its properties, in each case prior to the date on which penalties attach thereto, except that no such tax, assessment, charge, levy or claim need be paid if it is being contested in good faith by appropriate proceedings diligently conducted and adequate reserves in conformity with GAAP have been established therefor, or the failure to pay such tax, assessment, charge, levy or claim could not reasonably be expected to have a Material Adverse Effect.

(c) Maintenance of Properties. Such Guarantor shall keep and maintain all material properties used in the conduct of its business in good working order and condition, ordinary wear and tear excepted, and shall make all needful repairs, renewals, replacements and improvements thereof, except where the failure to do so could not reasonably be expected to have a Material Adverse Effect.

(d) Insurance. Such Guarantor shall maintain, with financially sound and reputable insurers, insurance with respect to its properties and business against loss or damage of the kinds and in amounts customarily insured against by corporations of similar size and engaged in the same or similar businesses, and shall, upon the reasonable request of the Administrative Agent, furnish to the Administrative Agent evidence of the maintenance of such insurance.

(e) Books and Records; Inspection Rights. Such Guarantor shall keep proper books of record and account in which full, true and correct entries in conformity with GAAP and all applicable requirements of law shall be made of all dealings and transactions in relation to its business and activities. Upon reasonable notice and during normal business hours, such Guarantor shall permit any representatives designated by the Administrative Agent or any

Lender to visit and inspect any of its properties, to examine and make extracts from its books and records, and to discuss its affairs, finances and accounts with its officers, all at such reasonable times and as often as reasonably requested; provided that, so long as no Event of Default has occurred and is continuing, such visits and inspections shall be limited to one visit per calendar year unless additional visits are reasonably required in response to a material deterioration in the financial condition of such Guarantor.

(f) Notices. Such Guarantor shall promptly, and in any event within five business days after a senior officer of such Guarantor obtains knowledge thereof, give written notice to the Administrative Agent of any of the following: (i) the occurrence of any event or condition that constitutes an Event of Default or Default, specifying the nature and period of existence thereof and the action being taken or proposed to be taken with respect thereto; (ii) any matter that has had or could reasonably be expected to have a Material Adverse Effect; and (iii) any notice of default or acceleration received by such Guarantor with respect to any material Indebtedness.

(g) Compliance with the Credit Agreement. Such Guarantor shall comply with all covenants and agreements applicable to it under the Credit Agreement, including the financial covenants set forth in Article VI, to the extent provided therein, and shall perform and observe all obligations binding upon it under the Credit Agreement and the other Loan Documents.

(h) Negative Covenants. Such Guarantor shall not, directly or indirectly:

(i) Liens. Create, incur, assume or suffer to exist any Lien on or with respect to any of its property or assets, whether now owned or hereafter acquired, or assign or otherwise convey any right to receive income, except for Liens permitted by the Credit Agreement.

(ii) Indebtedness. Create, incur, assume or suffer to exist any Indebtedness, except Indebtedness permitted by the Credit Agreement.

(iii) Investments, Loans and Advances. Make or hold any Investment, except Investments permitted by the Credit Agreement.

(iv) Restricted Payments. Declare or make any Restricted Payment, except Restricted Payments permitted by the Credit Agreement.

(v) Fundamental Changes. Merge, consolidate, wind up, liquidate or dissolve, or enter into any transaction of merger or consolidation, or sell, lease, transfer or otherwise dispose of all or any substantial part of its assets, except as permitted by the Credit Agreement.

(vi) Transactions with Affiliates. Enter into any transaction with any Affiliate, except transactions in the ordinary course of business and on fair and reasonable terms no less favorable to such Guarantor than would be obtained in a comparable arm's length transaction with a Person that is not an Affiliate, except as otherwise permitted by the Credit Agreement.

(vii) Sale and Leaseback Transactions. Enter into any sale and leaseback transaction, except as permitted by the Credit Agreement.

(viii) Changes in Fiscal Year and Accounting Practices. Change its fiscal year or make any change in its accounting treatment and reporting practices except as required by GAAP, or change its organizational documents in a manner that would adversely affect the interests of the Lenders.

(i) Further Assurances. Such Guarantor shall, at the reasonable request of the Administrative Agent, execute and deliver such further documents, instruments and assurances and take such further action as may be reasonably necessary to carry out the purposes and intent of this Guaranty and to perfect and preserve the rights and remedies of the Administrative Agent and the Lenders with respect to the Guaranteed Obligations.

Section 10 (Guarantee Agreement). (a) This Guarantee and the obligations of each Guarantor hereunder shall terminate and be released automatically, without any further action by any party, upon the first to occur of the following:

(i) with respect to any Guarantor, the consummation of any sale, transfer or other disposition (including by way of merger, consolidation or sale of capital stock) of such Guarantor or all or substantially all of its assets, in each case, to any Person that is not, immediately after giving effect to such transaction, a Loan Party or a Subsidiary of a Loan Party, in each case to the extent such sale, transfer or other disposition is permitted by the Credit Agreement; provided that, if any consent or approval is required in connection therewith under the terms of the Credit Agreement or any other Loan Document, such consent or approval shall have been obtained and such sale, transfer or other disposition shall otherwise be in compliance with the terms of the Credit Agreement and the other Loan Documents;

(ii) with respect to any Guarantor, the designation by the Borrower of such Guarantor as an Unrestricted Subsidiary in accordance with the Credit Agreement, to the extent such designation is permitted by the Credit Agreement and complies with all conditions set forth in the Credit Agreement, including, without limitation, the financial covenants set forth in Article VI;

(iii) with respect to any Guarantor, the release by the Administrative Agent of all Liens granted by such Guarantor to secure the Obligations, to the extent such release is permitted by the Credit Agreement and the other Loan Documents;

(iv) with respect to any Guarantor, such Guarantor ceasing to be a Subsidiary of the Borrower as a result of any transaction permitted by the Credit Agreement; or

(v) the payment in full in cash of all Obligations (other than contingent indemnification obligations not then due and payable) and the termination of all Commitments and the expiration, termination or cash collateralization of all Letters of Credit in accordance with the Credit Agreement, in which case this Guarantee and all obligations of every Guarantor hereunder shall terminate and be released in their entirety.

(b) No Guarantor shall be released from its obligations under this Guarantee except in accordance with the provisions of this Section or as otherwise expressly provided in the Credit Agreement or the other Loan Documents. Upon any release of a Guarantor pursuant to this Section, the Administrative Agent shall, at the request and sole expense of the Borrower, execute and deliver to the Borrower such documents and instruments as the Borrower may reasonably request to evidence such release, including one or more termination, release or other similar documents in form and substance reasonably satisfactory to the Administrative Agent; provided that any release of a Guarantor shall not affect any obligations of such Guarantor arising on or prior to the date of such release, and such obligations shall survive such release in accordance with the terms of this Guarantee and the other Loan Documents.

(c) The Administrative Agent shall have no liability or responsibility to any Guarantor or any other Person for any

failure to release, or any delay in releasing, any Guarantor from its obligations hereunder, except to the extent determined in a final, non-appealable judgment of a court of competent jurisdiction to have resulted from the gross negligence or willful misconduct of the Administrative Agent.

(d) For the avoidance of doubt, no Guarantor shall be released from its obligations under this Guarantee solely as a result of any sale, transfer or other disposition of all or substantially all of the capital stock or assets of such Guarantor if such sale, transfer or other disposition is not permitted by the Credit Agreement or if, immediately after giving effect to such transaction, such Guarantor remains a Subsidiary of a Loan Party, unless such sale, transfer or other disposition is expressly permitted by the Credit Agreement and such Guarantor ceases to be a Subsidiary of any Loan Party in connection therewith.

(e) This Guarantee and the obligations of each Guarantor shall terminate automatically upon the date on which all Obligations (other than contingent indemnification obligations not then due and payable) have been paid in full in cash and all Commitments have been terminated and all Letters of Credit have expired or been terminated or have been cash collateralized or otherwise satisfied in accordance with the Credit Agreement. Upon any such termination, the Administrative Agent shall, at the request and sole expense of the Borrower, execute and deliver such documents and instruments as the Borrower may reasonably request to evidence such termination, including one or more acknowledgments of termination or release in form and substance reasonably satisfactory to the Administrative Agent.

Section 11 (Guarantee Agreement). (a) The Borrower shall cause each of its Subsidiaries that is not a Guarantor on the date of this Agreement and that is required to become a Guarantor under the terms of the Credit Agreement, including each Subsidiary formed or acquired after the date hereof, to execute and deliver to the Collateral Agent a joinder to this Agreement in substantially the form of Exhibit D (each, a "Joinder") within twenty Business Days after the date on which such Subsidiary becomes required to become a Guarantor under the Credit Agreement, or within such longer period as the Collateral Agent may agree in its reasonable discretion. Together with each Joinder, the Borrower shall deliver, or cause to be delivered, to the Collateral Agent:

(i) a certificate of the secretary, assistant secretary or other appropriate officer of such Subsidiary (A) certifying that attached thereto is a true, correct and complete copy of the certificate of incorporation or formation and the by-laws, limited liability company agreement or other governing document of such Subsidiary, (B) certifying that attached thereto is a true, correct and complete copy of the resolutions of the board of directors, members, managers or other governing body of such Subsidiary authorizing the execution, delivery and performance of such Joinder and the performance of the obligations of a Guarantor under this Agreement, and (C) certifying as to the incumbency and genuine signatures of the officers or signatories of such Subsidiary executing such Joinder;

(ii) a written opinion of counsel to such Subsidiary, addressed to the Collateral Agent, the Administrative Agent and each other Credit Party, in form and substance reasonably satisfactory to the Collateral Agent, and covering such matters relating to such Subsidiary, this Agreement or such Joinder as the Collateral Agent may reasonably request;

(iii) a certificate of good standing or similar certificate with respect to such Subsidiary issued by the secretary of state or other appropriate governmental authority of the jurisdiction of its organization and each other jurisdiction where such Subsidiary is qualified to do business, to the extent the failure to be so qualified could reasonably be

expected to have a material adverse effect on such Subsidiary or on the rights or remedies of the Collateral Agent or any other Credit Party; and

(iv) such other resolutions, certificates, documents and instruments, including any other joinder or supplement to any other Loan Document, as the Collateral Agent may reasonably request to evidence or perfect the security interests, assignments, pledges, rights and remedies intended to be granted for the benefit of the Credit Parties under this Agreement or any other Loan Document.

(b) Upon the receipt by the Collateral Agent of a Joinder executed by such Subsidiary and the other documents and certificates described in paragraph (a) of this Section, and the satisfaction of the conditions set forth in paragraph (a), the Collateral Agent shall execute, acknowledge and return or deliver a counterpart of such Joinder to the Borrower and to such Subsidiary. Upon such execution and acknowledgment by the Collateral Agent, such Subsidiary shall automatically and without further action become a Guarantor under this Agreement and shall be bound by all of the terms, covenants, conditions, agreements, acknowledgements, confirmations, representations and warranties of a Guarantor set forth in this Agreement, with the same force and effect as if such Subsidiary had originally executed this Agreement as a Guarantor on the date hereof. Each reference in this Agreement to a "Guarantor" shall, unless the context otherwise requires, be deemed to include each such Subsidiary effective as of the date of the Collateral Agent's execution and acknowledgment of the applicable Joinder.

(c) Each Joinder shall be deemed to constitute a confirmation by the Subsidiary executing such Joinder of all of the representations and warranties made by the Guarantors under this Agreement as of the date of such Joinder, including, without limitation, the representations and warranties contained in this Agreement and in the Credit Agreement, and shall be deemed to constitute a ratification and reaffirmation by such Subsidiary of the Guaranty provided for in this Agreement and of the security interests, assignments and other rights granted to the Collateral Agent for the benefit of the Credit Parties under this Agreement. Each Joinder shall further be deemed to constitute an agreement by such Subsidiary that all references to the "Guarantors" with respect to the representations, warranties, covenants and obligations set forth in this Agreement shall include such Subsidiary as a party to this Agreement without regard to the date of execution of such Joinder.

(d) The Borrower shall, forthwith upon the formation or acquisition of any Subsidiary that is required to become a Guarantor under the Credit Agreement, give written notice to the Collateral Agent of such formation or acquisition, which notice shall set forth the name and jurisdiction of organization of such Subsidiary, a description of the ownership interests in such Subsidiary, and such other information with respect to such Subsidiary as the Collateral Agent may reasonably request. The Borrower shall cause each such Subsidiary to comply with the provisions of paragraph (a) of this Section within the time period specified therein, and shall provide to the Collateral Agent all information and documentation with respect to such Subsidiary as the Collateral Agent may reasonably request in connection with the joinder of such Subsidiary as a Guarantor.

(e) Any Joinder may, with the prior written consent of the Collateral Agent, contain such amendments, modifications or supplements to this Agreement as may be necessary or appropriate to reflect the addition of the Subsidiary executing such Joinder as a Guarantor, including, without limitation, any amendment, modification or supplement to the schedules attached to this Agreement. Any such amendment, modification or supplement effected in accordance

with this paragraph shall be binding on all Credit Parties and shall be effective upon the execution and acknowledgment of such Joinder by the Collateral Agent.

(f) Nothing in this Section shall be construed as consent by the Collateral Agent or any other Credit Party to the creation, formation or acquisition of any Subsidiary if such creation, formation or acquisition would constitute a violation of the Credit Agreement or any other Loan Document. No failure by the Collateral Agent to require compliance with any provision of this Section shall constitute a waiver of the right of the Collateral Agent or any other Credit Party to require compliance with all of the provisions of this Section at any time.

(g) The provisions of this Section are solely for the benefit of the Collateral Agent and the other Credit Parties, and no Subsidiary formed or acquired after the date of this Agreement shall have any right to require the Collateral Agent to accept a Joinder or to become a Guarantor. The Collateral Agent may, in its sole discretion, decline to accept any Joinder that does not comply with the provisions of this Section, notwithstanding any provision of the Credit Agreement or any other Loan Document to the contrary.

Section 12 (Guarantee Agreement). (a) For purposes of this Section 12, the following terms shall have the meanings set forth in this Section. "Adjusted Net Worth" means, with respect to any Guarantor, the net worth of such Guarantor determined in accordance with GAAP on a consolidated basis, plus, without duplication, the aggregate principal amount of all intercompany Indebtedness owed to such Guarantor by any Loan Party, minus, without duplication, the aggregate principal amount of all intercompany Indebtedness owed by such Guarantor to any Loan Party, in each case to the extent such intercompany Indebtedness would be eliminated in consolidation in accordance with GAAP; provided that, if the amount so determined is less than zero, such amount shall be deemed to be zero. "Contribution Percentage" means, with respect to any Guarantor, a fraction, expressed as a percentage, obtained by dividing the Adjusted Net Worth of such Guarantor by the aggregate Adjusted Net Worth of all Guarantors; provided that, if the aggregate Adjusted Net Worth of all Guarantors is less than or equal to zero, the Contribution Percentage of each Guarantor shall be a fraction obtained by dividing one by the number of Guarantors. "Excess Payment Amount" means, with respect to any Guarantor, the amount, if any, by which the aggregate amount paid by such Guarantor under this Agreement and under any other Loan Document in its capacity as a Guarantor in respect of the Guaranteed Obligations, net of any amounts received by such Guarantor from any other Guarantor or from any collateral by way of subrogation, reimbursement, contribution, indemnification, or similar recovery, exceeds the product of the aggregate amount paid by all Guarantors under this Agreement and under any other Loan Document in their capacity as Guarantors in respect of the Guaranteed Obligations, net of any amounts received by any Guarantor from any other Guarantor or from any collateral by way of subrogation, reimbursement, contribution, indemnification, or similar recovery, multiplied by the Contribution Percentage of such Guarantor.

(b) If, after the Guaranteed Obligations have been indefeasibly paid in full in cash and all Commitments have been terminated, any Guarantor has an Excess Payment Amount, then each other Guarantor shall, upon written demand by such Guarantor, pay to such Guarantor an amount equal to the product of the Excess Payment Amount of the demanding Guarantor multiplied by a fraction obtained by dividing the Adjusted Net Worth of such other Guarantor by the aggregate Adjusted Net Worth of all Guarantors other than the demanding Guarantor; provided that, if the aggregate Adjusted Net Worth of all Guarantors other than the demanding Guarantor is less than or equal to zero,

each such other Guarantor shall pay to the demanding Guarantor an amount equal to the Excess Payment Amount divided by the number of Guarantors other than the demanding Guarantor. Each Guarantor's obligation to make payments under this Section is several and not joint.

(c) Each payment required by paragraph (b) of this Section shall be made in lawful money of the United States of America in immediately available funds to an account designated by the demanding Guarantor not later than ten Business Days after receipt by the paying Guarantor of the written demand referred to in paragraph (b) of this Section. Any amount not paid when due shall bear interest, from the date on which such amount becomes due until paid in full, at a rate per annum equal to the lesser of the Federal Funds Rate as defined in the Credit Agreement then in effect plus two percent and the maximum rate permitted by applicable law.

(d) The obligations of each Guarantor under this Section shall not be discharged, released, reduced, or impaired by any circumstance or act or omission, including, without limitation, any bankruptcy, insolvency, reorganization, arrangement, readjustment, composition, liquidation, or similar proceeding with respect to any Guarantor or any other Person, any invalidity, illegality, or unenforceability of any provision of this Agreement or any other Loan Document, or any other event or circumstance that might otherwise constitute a legal or equitable discharge or defense of a surety or guarantor. This Section is a continuing agreement of contribution and shall remain in full force and effect until the Guaranteed Obligations have been indefeasibly paid in full in cash and all Commitments have been terminated.

(e) Each Guarantor hereby agrees that all rights of such Guarantor to receive payments under this Section and all rights of such Guarantor to subrogation, reimbursement, indemnification, and similar rights in respect of the Guaranteed Obligations are subordinate and junior in right of payment to the prior indefeasible payment in full in cash of the Guaranteed Obligations and the termination of all Commitments. No Guarantor shall demand or receive any payment under this Section before the Guaranteed Obligations have been indefeasibly paid in full in cash and all Commitments have been terminated.

(f) If any payment made by any Guarantor in respect of the Guaranteed Obligations is subsequently rescinded or must be returned by any Secured Party for any reason, including, without limitation, as a preference, fraudulent conveyance, or similar transaction, then the amount of such payment shall be deemed not to have been paid for purposes of this Section and the obligations of each Guarantor under this Section shall be reinstated as if such payment had not been made.

(g) Notwithstanding anything to the contrary in this Section, no Guarantor shall be required to make, and no Guarantor shall be entitled to receive, any payment under this Section to the extent that such payment would constitute a fraudulent conveyance or fraudulent transfer under the United States Bankruptcy Code or any applicable provision of state law, or would render such Guarantor insolvent within the meaning of any such law.

(h) The provisions of this Section shall survive any termination of this Agreement and any release of any Guarantor and shall remain in effect until all rights to contribution under this Section have been fully satisfied. This Section shall be binding upon and inure to the benefit of the Guarantors and their respective permitted successors and assigns. Nothing in this Section shall limit or affect the obligations of any Guarantor under its Guarantee set forth in this Agreement or under any other Loan Document. Nothing in this Section shall confer any rights upon, or be

enforceable by, any Secured Party or any other Person that is not a Guarantor.

Section 13 (Guarantee Agreement). (a) The provisions of this Section 13 constitute Exhibit D to this Agreement and are the Keepwell Provisions referred to in this Agreement. As used in this Section 13, the term Qualified ECP Guarantor means, at any time, each Loan Party that, as of the time the guarantee of any Swap Obligation of any other Loan Party under the Guarantee becomes effective, is a person that is an eligible contract participant under the Commodity Exchange Act and is able to cause such other Loan Party to be an eligible contract participant by providing a keepwell, support, or other agreement pursuant to Section 1a(18)(A)(v)(II) of the Commodity Exchange Act. All capitalized terms used but not otherwise defined in this Section 13 have the meanings assigned to such terms in the Credit Agreement or in this Agreement.

(b) Each Loan Party that is a Qualified ECP Guarantor hereby, jointly and severally, absolutely, unconditionally, and irrevocably covenants and agrees to provide, from time to time, to each other Loan Party that is not a Qualified ECP Guarantor, such payments, capital contributions, loans, advances, guarantees, indemnification, or other support as may be necessary, advisable, or otherwise appropriate in order for such other Loan Party to actually and timely perform all of its obligations and liabilities under or in respect of any Swap Agreement, including all Swap Obligations, as and when the same are due and payable, whether at stated maturity, by acceleration, by mandatory prepayment, or otherwise.

(c) Each Qualified ECP Guarantor acknowledges and agrees that the obligations undertaken by it under this Section 13 are intended to constitute, and shall be construed as, a keepwell, support, or other agreement for the benefit of each other Loan Party that is not a Qualified ECP Guarantor for purposes of Section 1a(18)(A)(v)(II) of the Commodity Exchange Act and the regulations issued thereunder, and are intended to cause each such other Loan Party to be an eligible contract participant within the meaning of Section 1a(18) of the Commodity Exchange Act with respect to each Swap Obligation of such other Loan Party that is guaranteed or purported to be guaranteed by the Guarantee.

(d) Each Qualified ECP Guarantor acknowledges that the Secured Parties, the Swap Creditors, and the other holders of Secured Obligations will rely on the Guarantee and on this Section 13 in making, extending, increasing, renewing, amending, or otherwise continuing any Swap Agreement or other credit or financial accommodation to or for the benefit of any Loan Party, and that the keepwell obligations of such Qualified ECP Guarantor under this Section 13 are a material inducement to such reliance.

(e) Each Qualified ECP Guarantor hereby irrevocably waives any right of subrogation, contribution, indemnification, reimbursement, exoneration, or other similar claim or right against any other Loan Party in respect of any payment made or support provided by such Qualified ECP Guarantor under this Section 13 until the date on which all Secured Obligations have been paid in full in cash and all commitments under the Credit Agreement have terminated. If any Secured Obligation is paid in full in cash and thereafter is required to be repaid or restored because of any rescission, voidance, avoidance, preference, fraudulent conveyance, or similar event, the waiver contained in this paragraph shall be automatically reinstated to the extent of such repayment or restoration.

(f) The obligations of each Qualified ECP Guarantor under this Section 13 shall be absolute, unconditional, and irrevocable and shall remain in full force and effect until the date on which all Secured Obligations have been paid

in full in cash and all commitments under the Credit Agreement have terminated, and shall not be released, discharged, diminished, impaired, or otherwise affected by any circumstance or event, including any amendment, waiver, consent, forbearance, stay, marshalling, release, subordination, discharge, or termination of any Secured Obligation; any lack of validity, legality, or enforceability of any Swap Agreement or any other Loan Document; any exercise, delay, omission, or failure to exercise any right, remedy, power, or privilege under any Loan Document or applicable law; any bankruptcy, insolvency, reorganization, arrangement, moratorium, readjustment, or similar proceeding affecting any Loan Party or any other person; any change in the corporate existence, structure, or ownership of any Loan Party; or any invalidity, irregularity, or unenforceability of the Guarantee or any other Loan Document.

(g) No Secured Party, Swap Creditor, or other holder of Secured Obligations shall be obligated to request, require, demand, or otherwise take any step to enforce this Section 13 before exercising any right or remedy under the Guarantee or any other Loan Document, and the failure of any such person to request or enforce this Section 13 shall not affect the obligations of any Qualified ECP Guarantor under this Section 13.

(h) Each Qualified ECP Guarantor further covenants and agrees that, from the date of this Agreement until the date on which all Secured Obligations have been paid in full in cash and all commitments under the Credit Agreement have terminated, it will not directly or indirectly take any action, or fail to take any action, that could reasonably be expected to cause any other Loan Party to cease to be an eligible contract participant under the Commodity Exchange Act for purposes of the Guarantee.

(i) This Section 13 shall be deemed to be an agreement material to the extension of credit and financial accommodations by the Secured Parties under the Credit Agreement and the other Loan Documents, and shall be enforceable by each Secured Party, each Swap Creditor, and each other holder of Secured Obligations, each of whom is an intended third-party beneficiary of the agreements contained in this Section 13.

(j) Each Qualified ECP Guarantor intends and agrees that this Section 13 shall be, and shall be interpreted as, one of a number of keepwell, support, or other agreements provided by it for the benefit of the other Loan Parties, and, to the extent permitted by applicable law, all obligations of each Qualified ECP Guarantor under this Section 13 shall be senior to its other unsecured obligations except those mandatorily preferred by law.

Section 14 (Guarantee Agreement). (a) All notices, requests, demands, and other communications provided for under this Guarantee Agreement or in connection herewith shall be in writing and shall be deemed to have been duly given or made when delivered by hand, or when received by a reputable overnight courier service with delivery confirmed, or three Business Days after being deposited in the mail, postage prepaid, registered or certified mail return receipt requested, or when transmitted by electronic mail or telecopy, with confirmation of transmission or receipt, in each case addressed as set forth in this Section 14.

(b) If to the Guarantor, notices, requests, demands, and other communications shall be addressed to the Guarantor at the address set forth beneath its signature to this Guarantee Agreement, or at such other address as the Guarantor shall have furnished to the Administrative Agent in writing in accordance with the provisions of this Section 14.

(c) If to the Administrative Agent, notices, requests, demands, and other communications shall be addressed to the Administrative Agent at the address specified from time to time in the Credit Agreement for notices to the

Administrative Agent, or at such other address as the Administrative Agent shall have furnished to the Guarantor in writing in accordance with the provisions of this Section 14.

(d) The Guarantor shall deliver to the Administrative Agent written notice of any change in the Guarantor's address for purposes of this Section 14 at least five Business Days prior to the effectiveness of such change, and the Administrative Agent shall have no obligation to deliver or receive any notice, request, demand, or other communication to or from the Guarantor at any address other than the most recent address so furnished.

(e) All notices, requests, demands, and other communications shall be deemed effective upon the earlier of actual receipt or, if delivered by mail as provided in paragraph (a) of this Section 14, three Business Days after the same shall have been deposited in the mail, postage prepaid, registered or certified mail, addressed as provided in this Section 14; provided, however, that any notice, request, demand, or other communication delivered to the Administrative Agent shall be deemed effective only upon actual receipt thereof by the Administrative Agent.

(f) The Guarantor agrees that the Administrative Agent may rely and act on any notice, request, demand, or other communication purportedly given by or on behalf of the Guarantor in accordance with this Section 14, and that any such notice, request, demand, or other communication so given in accordance with this Section 14 shall be binding upon the Guarantor for all purposes of this Guarantee Agreement and the Credit Agreement.

(g) Nothing in this Section 14 shall be construed to require any notice, request, demand, or other communication to be given to or made upon any Lender directly, it being understood that the Administrative Agent shall receive all such communications on behalf of the Lenders, except as the Credit Agreement may otherwise expressly provide.

Section 15 (Guarantee Agreement). (a) Governing Law. This Agreement, and all claims, counterclaims, controversies, disputes, or causes of action (whether sounding in contract, tort, or otherwise) arising out of or relating to this Agreement, any other Loan Document, or the transactions contemplated hereby or thereby, shall be governed by, and construed and enforced in accordance with, the laws of the State of New York, without regard to the conflicts of laws principles thereof that would require the application of the laws of any other jurisdiction.

(b) Submission to Jurisdiction. Each party hereto irrevocably and unconditionally submits, for itself and its property, to the exclusive jurisdiction of the United States District Court for the Southern District of New York, and of any New York State court sitting in the Borough of Manhattan, and any appellate court from any thereof, in any action or proceeding arising out of or relating to this Agreement, any other Loan Document, or the transactions contemplated hereby or thereby, or for recognition or enforcement of any judgment, and each party hereto irrevocably and unconditionally agrees that all claims in respect of any such action or proceeding may be heard and determined in such courts. Each party hereto irrevocably and unconditionally waives, to the fullest extent it may legally and effectively do so, any objection that it may now or hereafter have to the laying of venue of any such action or proceeding in any such court, and any claim that any such action or proceeding brought in any such court has been brought in an inconvenient forum.

(c) Consent to Service of Process. Each party hereto irrevocably consents to service of process in any such action or proceeding by the mailing of copies thereof by registered or certified mail, postage prepaid, to such party at its address for notices under the Credit Agreement, such service to become effective thirty days after the date of mailing. Nothing in this Section shall affect the right of any party hereto to serve process in any other manner

permitted by law.

(d) Waiver of Immunities. To the extent that any party hereto has or hereafter may acquire any immunity from jurisdiction of any court or from any legal process (whether through service or notice, attachment prior to judgment, attachment in aid of execution, execution, or otherwise) with respect to itself or its property, each party hereby irrevocably and unconditionally waives, and agrees not to assert, such immunity in any action or proceeding arising out of or relating to this Agreement, any other Loan Document, or the transactions contemplated hereby or thereby.

(e) Waiver of Jury Trial. Each party hereto irrevocably and unconditionally waives, to the fullest extent permitted by law, any and all right to trial by jury in any legal action or proceeding arising out of or relating to this Agreement, any other Loan Document, or the transactions contemplated hereby or thereby, whether sounding in contract, tort, or otherwise, and each party hereto agrees that any such action or proceeding may be brought in a court of competent jurisdiction and each party irrevocably and unconditionally waives any right to demand a jury trial in any such action or proceeding.

EXHIBIT C. FORM OF COMPLIANCE CERTIFICATE

The undersigned, a Responsible Officer of the Borrower, hereby certifies, as of the date of this certificate and for the fiscal period covered hereby, on behalf of the Borrower and not in an individual capacity, that (a) the undersigned has reviewed the terms of the Credit Agreement and the financial condition and results of operations of the Borrower and its Restricted Subsidiaries during the accounting period covered by the financial statements delivered pursuant to Section 5.01 concurrently herewith, and (b) such review has not disclosed the existence of any Default or Event of Default, or, if such Default or Event of Default has occurred, this certificate specifies the nature and extent thereof and any corrective action taken or proposed to be taken with respect thereto.

Attached as Exhibit C-2 is the computation, in reasonable detail, of each of the financial covenants set forth in Article VI as of the last day of the fiscal period covered by this certificate.

EXHIBIT C-2 — CONSOLIDATED EBITDA COMPUTATION

This Exhibit C-2 is the form of computation grid contemplated by Exhibit C and Section 5.01(c), restating the Consolidated EBITDA build from Consolidated Net Income up through each addback clause of the Consolidated EBITDA definition in Section 1.01, the Consolidated Net Debt build, and the resulting Total Net Leverage Ratio and Fixed Charge Coverage Ratio against the covenant levels in Article VI. The Responsible Officer completes the blank cells below as of each date of determination; this form does not itself state a computed result for any period.

Consolidated EBITDA Build	Amount
Consolidated Net Income	9,400,000.00
Plus: Provision for Taxes	3,100,000.00
Plus: Consolidated Interest Expense	15,700,000.00
Plus: Depreciation and Amortization	10,300,000.00
Plus: clause (d) stock compensation addback	2,100,000.00
Plus: clause (e) restructuring and severance addback	1,400,000.00
Plus: clause (f) transaction and integration cost addback	3,200,000.00
Plus: clause (t) QofE Report, Regulation S-X presentation addback (abbreviated citation "clause (t)" per Section 1.02)	1,100,000.00
Plus: clause (i) cost savings, operating expense reductions and other synergies (per Schedule 1.01(c) clause 1, not subject to any cap under clause (i))	4,600,000.00
Plus: clause (i) revenue enhancements (per Schedule 1.01(c) clause 1, subject to the cap in clause (i) - see note below)	6,000,000.00 before giving effect to the cap
Clause (p) addback (Confidential Information Memorandum / Sponsor Model)	EXCLUDED - substantiated solely by reference to a document not delivered under this Agreement; see

	clause (p)
Clauses (g) and (r)	[reserved] - see Section 1.01
CONSOLIDATED EBITDA (after giving effect to the clause (i) cap)	$_____

Note: the clause (i) cap limits the revenue-enhancement addback ONLY to 10.00% of Consolidated EBITDA, computed after giving effect to every other addback above; the cost-savings, operating expense reduction and other-synergy addback above is not subject to that or any other cap. This Exhibit does not perform that computation; Section 1.01's own clause (i) and Schedule 1.01(c) govern.

Consolidated Net Debt Build	Amount
Plus: Senior Notes Outstanding At Closing	175,000,000.00
Plus: Revolver Drawn At Closing	12,000,000.00
Plus: Finance Lease Obligations	4,300,000.00
Plus: Irb Assumed Par At Closing	24,500,000.00
Minus: Unrestricted Cash At Closing	9,600,000.00
CONSOLIDATED NET DEBT	$_____

The Consolidated Net Debt build above INCLUDES the Industrial Revenue Bonds assumed by the Borrower in connection with the Transaction, per the Consolidated Net Debt definition in Section 1.01 - a different membership rule than the Stock Purchase Agreement's own, separately defined Net Debt figure, which is not restated in this Exhibit.

Financial Covenant	Covenant Level	Computed Ratio
Total Net Leverage Ratio (Section 6.01): Consolidated Net Debt / Consolidated EBITDA	Not to exceed 5.25x	____x
Fixed Charge Coverage Ratio (Section 6.02, "FCCR")	Not less than 1.25 to 1.00	____ to 1.00

The financial covenants restated in the table above (abbreviated citation Sec6 per Section 1.02) are tested quarterly as provided in Article VI; this Exhibit does not alter Article VI's own testing mechanics.

EXHIBIT E. FORM OF BORROWING REQUEST

The undersigned, a Responsible Officer of the Borrower, hereby requests a Borrowing under the Credit Agreement, and in connection therewith specifies the following information: (a) the aggregate principal amount of the requested Borrowing; (b) the requested Type of Loans comprising the Borrowing (SOFR Loans or Base Rate Loans); (c) if SOFR Loans, the requested Interest Period; (d) the requested Borrowing date, which shall be a Business Day; and (e) the account to which the proceeds are to be disbursed. The Borrower certifies that the conditions set forth in Section 2.16 (Conditions to Each Credit Extension) are satisfied as of the date hereof and will be satisfied as of the requested Borrowing date.

EXHIBIT I. FORM OF BORROWING BASE CERTIFICATE

The undersigned, a Responsible Officer of the Borrower, hereby certifies the calculation of the Borrowing Base as of the date of this certificate, computed in accordance with Schedule 1.01(d) to the Credit Agreement, and the resulting availability under the Revolving Commitments.

Borrowing Base Certificate	Amount
Eligible Accounts x 85%	$_____
Eligible Inventory x 65%	$_____
Less: Reserves	$_____
BORROWING BASE	$_____
Revolving Commitments	60,000,000.00
Revolving Loans and LC Exposure outstanding as of the Closing Date	12,000,000.00
AVAILABILITY (lesser of Borrowing Base and unused Revolving Commitments)	$_____